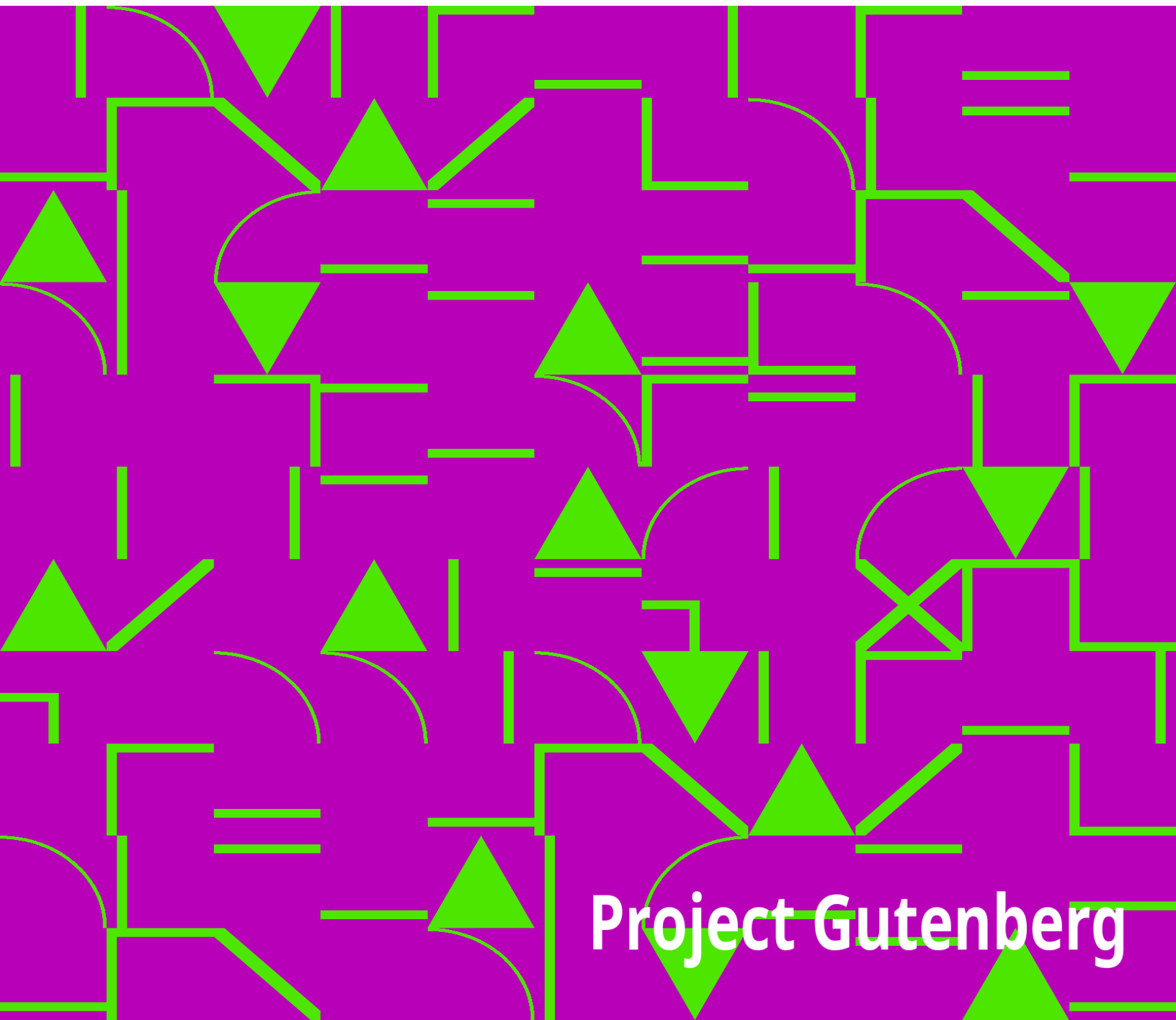


History of Roman Literature from its Earliest Period to the Augustan Age. Vol. II

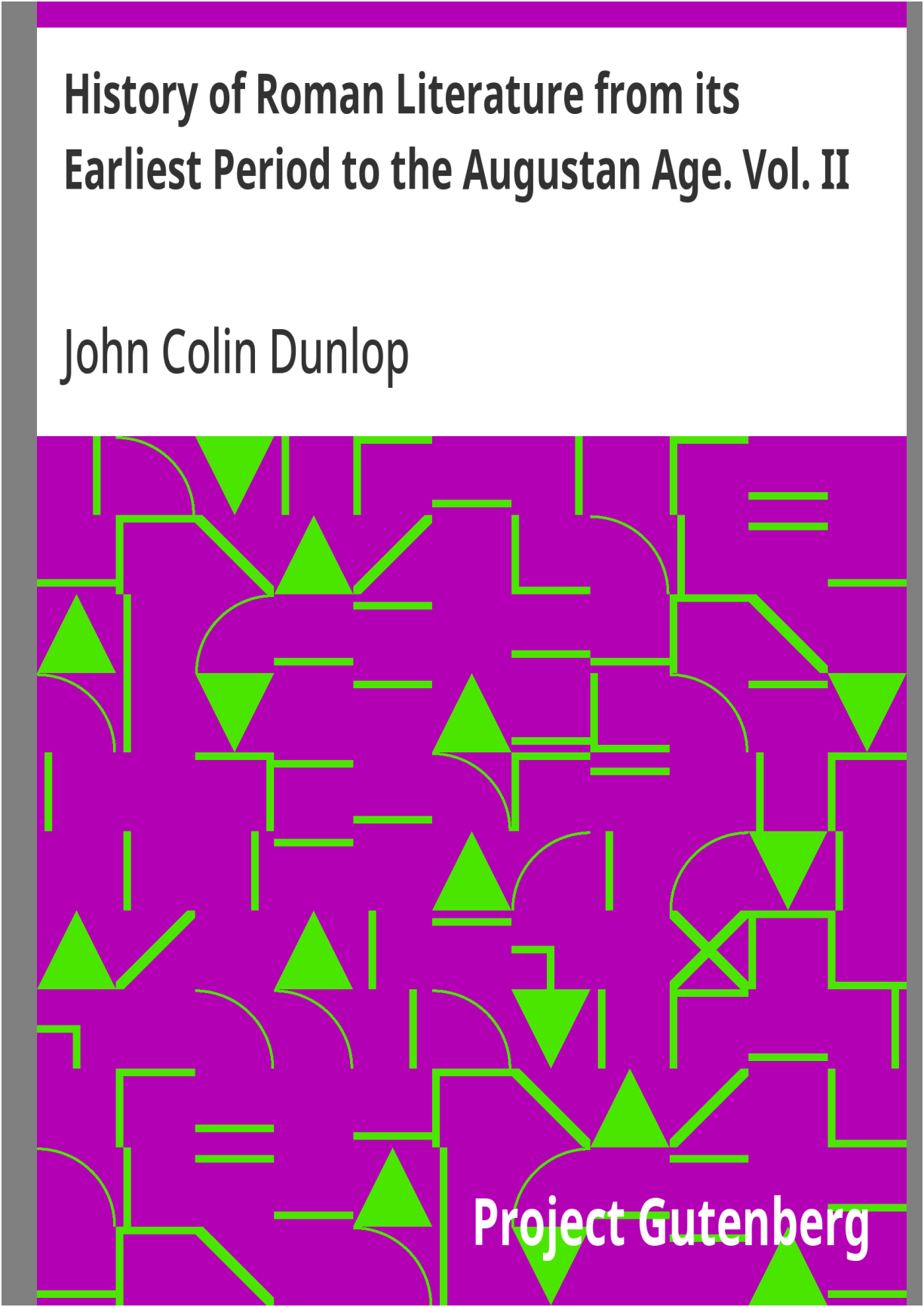
John Colin Dunlop



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HISTORY
OF
ROMAN LITERATURE,
FROM
ITS EARLIEST PERIOD
TO
THE AUGUSTAN AGE.

IN TWO VOLUMES.

BY
JOHN DUNLOP,
AUTHOR OF THE HISTORY OF FICTION.

FROM THE LAST LONDON EDITION.

VOL. II.

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HISTORY

OF

ROMAN LITERATURE, &c.

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ROMAN LITERATURE, &c.

In almost all States, poetical composition has been employed and considerably improved before prose. First, because the imagination expands sooner than reason or judgment; and, secondly, because the early language of nations is best adapted to the purposes of poetry, and to the expression of those feelings and sentiments with which it is conversant.

Thus, in the first ages of Greece, verse was the ordinary written language, and prose was subsequently introduced as an art and invention. In like manner, at Rome, during the early advances of poetry, the progress of which has been detailed in the preceding volume, prose composition continued in a state of neglect and barbarism.

The most ancient prose writer, at least of those whose works have descended to us, was a man of little feeling or imagination, but of sound judgment and inflexible character, who exercised his pen on the subject of *Agriculture*, which, of all the peaceful arts, was most highly esteemed by his countrymen.

The long winding coast of Greece, abounding in havens, and the innumerable isles with which its seas were studded, rendered the Greeks, from the earliest days, a trafficking, seafaring, piratic people: And many of the productions of their oldest poets, are, in a great measure, addressed to what may be called the maritime taste or feeling which prevailed among their countrymen. This sentiment continued to be cherished as long as the chief literary state in Greece preserved [pg 6]the sovereignty of the seas—compelled its allies to furnish vessels of war, and trusted to its naval armaments for the supremacy it maintained during the brightest ages of Greece. In none either of the Doric or Ionian states, was agriculture of such importance as to exercise much influence on manners or literature. Their territories were so limited, that the inhabitants were never removed to such a distance from the capital as to imbibe the ideas of husbandmen. In

Thessaly and Lacedæmon, agriculture was accounted degrading, and its cares were committed to slaves. The vales of Bœotia were fruitful, but were desolated by floods. Farms of any considerable extent could scarcely be laid down on the limited, though lovely isles of the Ægean and Ionian seas. The barren soil and mountains of the centre of Peloponnesus confined the Arcadians to pasturage—an employment bearing some analogy to agriculture, but totally different in its mental effects, leading to a life of indolence, contemplation, and wandering, instead of the industrious, practical, and settled habits of husbandmen. Though the Athenians breathed the purest air beneath the clearest skies, and their long summer was gilded by the brightest beams of Apollo, the soil of Attica was sterile and metallic; while, from the excessive inequalities in its surface, all the operations of agriculture were of the most difficult and hazardous description. The streams were overflowing torrents, which stripped the soil, leaving nothing but a light sand, on which grain would scarcely grow. But it was with the commencement of the Peloponnesian war that the exercise of agriculture terminated in Attica. The country being left unprotected, owing to the injudicious policy of Pericles, was annually ravaged by the Spartans, and the husbandmen were forced to seek refuge within the walls of Athens. In the early part of the age of Pericles, the Athenians possessed ornamented villas in the country; but they always returned to the city in the evening¹. We do not hear that the great men in the early periods of the republic, as Themistocles and Aristides, were farmers; and the heroes of its latter ages, as Iphicrates and Timotheus, chose their retreats in Thrace, the islands of the Archipelago, or coast of Ionia.

A picture, in every point of view the reverse of this, is presented to us by the *Agreste Latium*. The ancient Italian mode of life was almost entirely agricultural and rural; and with exception, perhaps, of the Etruscans, none of the Italian states were in any degree maritime or commercial. Italy was well adapted for every species of agriculture, and was [pg 7]most justly termed by her greatest poet, *magna parens frugum*. Dionysius of Halicarnassus², Strabo³, and Pliny⁴, talk with enthusiasm of its fertile soil and benignant climate. Where the ground was most depressed and marshy, the meadows were stretched out for the pasturage of cattle. In the level country, the rich arable lands, such as the Campanian and Capuan plains, extended in vast tracts, and produced a profusion of fruits of every species,

while on the acclivities, where the skirts of the mountains began to break into little hills and sloping fields, the olive and vine basked on soils famed for Messapian oil, and for wines of which the very names cheer and revive us. The mountains themselves produced marble and timber, and poured from their sides many a delightful stream, which watered the fields, gladdened the pastures, and moistened the meads to the very brink of the shore. Well then might Virgil exclaim, in a burst of patriotism and poetry which has never been surpassed,—

“Sed neque Medorum sylvæ, ditissima terra,
Nec pulcher Ganges, atque auro turbidus Hermus,
Laudibus Italiæ certent; non Bactra, neque Indi,
Totaque thuriferis Panchaia pinguis arenis.
Hic ver assiduum, atque alienis mensibus æstas;
Bis gravidæ pecudes, bis pomis utilis arbor.

* * * *

Salve, magna parens frugum, Saturnia tellus⁵!”

One would not suppose that agricultural care was very consistent, at least in a small state, with frequent warfare. But in no period of their republic did the Romans neglect the advantages which the land they inhabited presented for husbandry. Romulus, who had received a rustic education, and had spent his youth in hunting, had no attachment to any peaceful arts, except to rural labours; and this feeling pervaded his legislation. His Sabine successor, Numa Pompilius, who well understood and discharged the duties of sovereignty, divided the whole territory of Rome into different cantons. An exact account was rendered to him of the manner in which these were cultivated; and he occasionally went in person to survey them, in order to encourage those farmers whose lands were well tilled, and to reproach others with their want of industry⁶. By the institution, too, of various religious festivals, connected with agriculture, it came to be regarded with a sort of sacred reverence. Ancus Martius, who trod in the [pg 8]steps of Numa, recommended to his people the assiduous cultivation of their lands. After the expulsion of the kings, an Agrarian law, by which only seven acres were allotted to each citizen, was promulgated, and for some time rigidly enforced. Exactness and economy in the various occupations of agriculture were the natural consequences of such regulations. Each Roman

having only a small portion of land assigned to him, and the support of his family depending entirely on the produce which it yielded, its culture necessarily engaged his whole attention.

In these early ages of the Roman commonwealth, when the greatest men possessed but a few acres, the lands were laboured by the proprietors themselves. The introduction of commerce, and the consequent acquisition of wealth, had not yet enabled individuals to purchase the estates of their fellow-citizens, and to obtain a revenue from the rent of land rather than from its cultivation.

The patricians, who, in the city, were so distinct from the plebeian orders, were thus confounded with them in the country, in the common avocations of husbandry. After having presided over the civil affairs of the republic, or commanded its armies, the most distinguished citizens returned, without repining, to till the lands of their forefathers. Cincinnatus, who was found at labour in his fields by those who came to announce his election to the dictatorship, was not a singular example of the same hand which held the plough guiding also the helm of the state, and erecting the standard of its legions. So late as the time of the first Carthaginian war, Regulus, in the midst of his victorious career in Africa, asked leave from the senate to return to Italy, in order to cultivate his farm of seven acres, which had been neglected during his absence⁷. Many illustrious names among the Romans originated in agricultural employments, or some circumstances of rustic skill and labour, by which the founders of families were distinguished. The Fabii and Lentuli were supposed to have been celebrated for the culture of pulses, and the Asinii and Vitellii for the art of rearing animals. In the time of the elder Cato, though the manual operations were performed for the most part by servants, the great men resided chiefly on their farms⁸; and they continued to apply to the study and practice of agriculture long after they had carried the victorious arms of their country beyond the confines of Italy. They did not, indeed, follow agriculture as their sole avocation; but they prosecuted it during the intervals of peace, and in the vacations of the Forum. The art being thus exercised by men of high capacity, received the benefit of all the discoveries, inventions, or experiments suggested by talents and force of intellect. The Roman warriors tilled their fields with the same intelligence as they pitched their camps, and sowed

corn with the same care with which they drew up their armies for battle. Hence, as a modern Latin poet observes, dilating on the expression of Pliny, the earth yielded such an exuberant return, that she seemed as it were to delight in being ploughed with a share adorned with laurels, and by a ploughman who had earned a triumph:—

“Hanc etiam, ut perhibent, sese formabat ad artem,
Cùm domito Fabius Dictator ab hoste redibat:
Non veritus, medio dederat qui jura Senatu,
Ferre idem arboribusque suis, terræque colendæ,
Victricesque manus ruri præstare serendo.
Ipsa triumphales tellus experta colonos,
Atque ducum manibus quondam versata suorum,
Majores fructus, majora arbusta ferebat⁹.”

Nor were the Romans contented with merely labouring the ground: They also delivered precepts for its proper cultivation, which, being committed to writing, formed, as it were, a new science, and, being derived from actual experience, had an air of originality rarely exhibited in their literary productions. Such maxims were held by the Romans in high respect, since they were considered as founded on the observation of men who had displayed the most eminent capacity and knowledge in governing the state, in framing its laws, and leading its armies.

These precepts which formed the works of the agricultural writers—the *Rusticæ rei scriptores*—are extremely interesting and comprehensive. The Romans had a much greater variety than we, of grain, pulse, and roots; and, besides, had vines, olives, and other plantations, which were regarded as profitable crops. The situation, too, and construction of a villa, with the necessary accommodation for slaves and workmen, the wine and oil cellars, the granaries, the repositories for preserving fruit, the poultry yard, and aviaries, form topics of much attention and detail. These were the appertenancies of the *villa rustica*, or complete farm-house, which was built for the residence only of an industrious husbandman, and with a view towards profit from the employments of agriculture. As luxury, indeed, increased, the villa was adapted to the [pg 10]accommodation of an opulent Roman citizen, and the country was resorted to rather for recreation than for

the purpose of lucrative toil. What would Cato the Censor, distinguished for his industry and unceasing attention to the labours of the field, have thought of the following lines of Horace?

“O rus, quando ego te aspiciam? quandoque licebit
Nunc veterum libris, nunc somno et inertibus horis,
Ducere sollicitæ jucunda obliviam vitæ?”

It was this more refined relish for the country, so keenly enjoyed by the Romans in the luxurious ages of the state, that furnished the subject for the finest passages and allusions in the works of the Latin poets, who seem to vie with each other in their praises of a country life, and the sweetness of the numbers in which they celebrate its simple and tranquil enjoyments. The Epode of Horace, commencing,

“Beatus ille, qui procul negotiis,”

which paints the charms of rural existence, in the various seasons of the year—the well-known passages in Virgil’s *Georgics*, and those in the second book of Lucretius, are the most exquisite and lovely productions of these triumvirs of Roman poetry. But the ancient prose writers, with whom we are now to be engaged, regarded agriculture rather as an art than an amusement, and a country life as subservient to profitable employment, and not to elegant recreation. In themselves, however, these compositions are highly curious; they are curious, too, as forming a commentary and illustration of the subjects,

“Quas et facundi tractavit Musa Maronis.”

It is likewise interesting to compare them with the works of the modern Italians on husbandry, as the *Liber Ruralium Commodorum* of Crescenzo, written about the end of the thirteenth century,—the *Coltivazione Toscana* of Davanzati,—Vittorio’s treatise, *Degli Ulivi*,—and even Alamanni’s poem *Coltivazione*, which closely follows, particularly as to the situation and construction of a villa, the precepts of Cato, Varro, and Columella. The plough used at this day by the peasantry in the Campagna di Roma, is of the same form as that of the ancient Latian husbandmen¹⁰; and many other points of resemblance may be discovered, on a perusal of the [pg 11]most

recent writers on the subject of Italian cultivation¹¹. Dickson, too, who, in his *Husbandry of the Ancients*, gives an account of Roman agriculture so far as connected with the labours of the British farmer, has shown, that, in spite of the great difference of soil and climate, many maxims of the old Roman husbandmen, as delivered by Cato and Varro, corresponded with the agricultural system followed in his day in England.

Of the distinguished Roman citizens who practised agriculture, none were more eminent than Cato and Varro; and by them the precepts of the art were also committed to writing. Their works are original compositions, founded on experience, and not on Grecian models, like so many other Latin productions. Varro, indeed, enumerates about fifty Greek authors, who, previous to his time, had written on the subject of agriculture; and Mago, the Carthaginian, composed, in the Punic language, a much-approved treatise on the same topic, in thirty-two books, which was afterwards translated into Latin by desire of the senate. But the early Greek works, with the exception of Xenophon's *Æconomics* and the poem of Hesiod called *Works and Days*, have been entirely lost; the tracts published in the collection entitled *Geoponica*, being subsequent to the age of Varro.

MARCUS PORCIUS CATO,

better known by the name of Cato the Censor, wrote the earliest book on husbandry which we possess in the Latin language. This distinguished citizen was born in the 519th year of Rome. Like other Romans of his day, he was brought up to the profession of arms. In the short intervals of peace he resided, during his youth, at a small country-house in the Sabine territory, which he had inherited from his father. Near it there stood a cottage belonging to Manius Curius Dentatus, who had repeatedly triumphed over the Sabines and Samnites, and had at length driven Pyrrhus from Italy. Cato was accustomed frequently to walk over to the humble abode of this renowned commander, where he was struck with admiration at the frugality of its owner, and the skilful management of the farm which was attached to it. Hence it became his great object to emulate his illustrious neighbour, and adopt him as his model¹². Having made an estimate of his house, lands, slaves, [pg 12]and expenses, he applied himself to husbandry with new ardour, and retrenched all superfluity. In the morning he went to the small towns in the vicinity, to plead and defend the causes of those who applied to him for assistance. Thence he returned to his fields; where, with a plain cloak over his shoulders in winter, and almost naked in summer, he laboured with his servants till they had concluded their tasks, after which he sat down along with them at table, eating the same bread, and drinking the same wine¹³. At a more advanced period of life, the wars, in which he commanded, kept him frequently at a distance from Italy, and his forensic avocations detained him much in the city; but what time he could spare was still spent at the Sabine farm, where he continued to employ himself in the profitable cultivation of the land. He thus became by the universal consent of his contemporaries, the best farmer of his age, and was held unrivalled for the skill and success of his agricultural operations¹⁴. Though everywhere a rigid economist, he lived, it is said, more hospitably at his farm than in the city. His entertainments at his villa were at first but sparing, and seldom given; but as his wealth increased, he became more nice and delicate. “At first,” says Plutarch, “when he was but a poor soldier,

he was not difficult in anything which related to his diet; but afterwards, when he grew richer, and made feasts for his friends, presently, when supper was done, he seized a leathern thong, and scourged those who had not given due attendance, or dressed anything carelessly¹⁵.” Towards the close of his life, he almost daily invited some of his friends in the neighbourhood to sup with him; and the conversation at these meals turned not chiefly, as might have been expected, on rural affairs, but on the praises of great and excellent men among the Romans¹⁶.

It may be supposed, that in the evenings after the agricultural labours of the morning, and after his friends had left him, he noted down the precepts suggested by the observations and experience of the day. That he wrote such maxims for his own use, or the instruction of others, is unquestionable; but the treatise *De Re Rustica*, which now bears his name, appears to have been much mutilated, since Pliny and other writers allude to subjects as treated of by Cato, and to opinions as delivered by him in this book, which are nowhere to be found in any part of the work now extant.

In its present state, it is merely the loose unconnected journal of a plain farmer, expressed with rude, sometimes with [pg 13]almost oracular brevity; and it wants all those elegant topics of embellishment and illustration which the subject might have so naturally suggested. It solely consists of the dryest rules of agriculture, and some receipts for making various kinds of cakes and wines. Servius says, it is addressed to the author's son; but there is no such address now extant. It begins rather abruptly, and in a manner extremely characteristic of the simple manners of the author: “It would be advantageous to seek profit from commerce, if that were not hazardous; or by usury, if that were honest: but our ancestors ordained, that the thief should forfeit double the sum he had stolen, and the usurer quadruple what he had taken, whence it may be concluded, that they thought the usurer the worst of the two. When they wished highly to praise a good man, they called him a good farmer. A merchant is zealous in pushing his fortune, but his trade is perilous and liable to reverses. But farmers make the bravest men, and the stoutest soldiers. Their gain is the most honest, the most stable, and least exposed to envy. Those who exercise the art of agriculture, are of all others least addicted to evil thoughts.”

Our author then proceeds to his rules, many of which are sufficiently obvious. Thus, he advises, that when one is about to purchase a farm, he should examine if the climate, soil, and exposure be good: he should see that it can be easily supplied with plenty of water,—that it lies in the neighbourhood of a town,—and near a navigable river, or the sea. The directions for ascertaining the quality of the land are not quite so clear or self-evident. He recommends the choice of a farm where there are few implements of labour, as this shews the soil to be easily cultivated; and where there are, on the other hand, a number of casks and vessels, which testify an abundant produce. With regard to the best way of laying out a farm when it is purchased, supposing it to be one of a hundred acres, the most profitable thing is a vineyard; next, a garden, that can be watered; then a willow grove; 4th, an olive plantation; 5th, meadow-ground; 6th, corn fields; and, lastly, forest trees and brushwood. Varro cites this passage, but he gives the preference to meadows: These required little expense; and, by his time, the culture of vines had so much increased in Italy, and such a quantity of foreign wine was imported, that vineyards had become less valuable than in the days of the Censor. Columella, however, agrees with Cato: He successively compares the profits accruing from meadows, pasture, trees, and corn, with those of vineyards; and, on an estimate, prefers the last.

When a farm has been purchased, the new proprietor should [pg 14]perambulate the fields the day he arrives, or, if he cannot do so, on the day after, for the purpose of seeing what has been done, and what remains to be accomplished. Rules are given for the most assiduous employment without doors, and the most rigid economy within. When a servant is sick he will require less food. All the old oxen and the cattle of delicate frame, the old wagons, and old implements of husbandry, are to be sold off. The sordid parsimony of the Censor leads him to direct, that a provident *paterfamilias* should sell such of his slaves as are aged and infirm; a recommendation which has drawn down on him the well-merited indignation of Plutarch¹⁷. These are some of the duties of the master; and there follows a curious detail of the qualifications and duties of the *villicus*, or overseer, who, in particular, is prohibited from the exercise of religious rites, and consultation of augurs.

It is probable that, in the time of Cato, the Romans had begun to extend their villas considerably, which makes him warn proprietors of land not to be rash in building. When a landlord is thirty-six years of age he may build, provided his fields have been brought into a proper state of cultivation. His direction with regard to the extent of the villa is concise, but seems a very proper one;—he advises, to build in such a manner that the villa may not need a farm, nor the farm a villa. Lucullus and Scævola both violated this golden rule, as we learn from Pliny; who adds, that it will be readily conjectured, from their respective characters, that it was the farm of Scævola which stood in need of the villa, and the villa of Lucullus which required the farm.

A vast variety of crops was cultivated by the Romans, and the different kinds were adapted by them, with great care, to the different soils. Cato is very particular in his injunctions on this subject. A field that is of a rich and genial soil should be sown with corn; but, if wet or moist, with turnips and raddish. Figs are to be planted in chalky land; and willows in watery situations, in order to serve as twigs for tying the vines. This being the proper mode of laying out a farm, our author gives a detail of the establishment necessary to keep it up;—the number of workmen, the implements of husbandry, and the farm-offices, with the materials necessary for their construction.

He next treats of the management of vineyards and olives; the proper mode of planting, grafting, propping, and fencing: And he is here naturally led to furnish directions for making and preserving the different sorts of wine and oil; as also to [pg 15]specify how much of each is to be allowed to the servants of the family.

In discoursing of the cultivation of fields for corn, Cato enjoins the farmer to collect all sorts of weeds for manure. Pigeons' dung he prefers to that of every animal. He gives orders for burning lime, and for making charcoal and ashes from the branches or twigs of trees. The Romans seem to have been at great pains in draining their fields; and Cato directs the formation both of open and covered drains. Oxen being employed in ploughing the fields, instructions are added for feeding and taking due care of them. The Roman plough has been a subject of much discussion: Two sorts are

mentioned by Cato, which he calls *Romanicum*, and *Campanicum*—the first being proper for a stiff, and the other for a light soil. Dickson conjectures, that the *Romanicum* had an iron Share, and the *Campanicum* a piece of timber, like the Scotch plough, and a sock driven upon it. The plough, with other agricultural implements, as the *crates*, *rastrum*, *ligo*, and *sarculum*, most of which are mentioned by Cato, form a curious point of Roman antiquities.

The preservation of corn, after it has been reaped, is a subject of much importance, to which Cato has paid particular attention. This was a matter of considerable difficulty in Italy, in the time of the Romans; and all their agricultural writers are extremely minute in their directions for preserving it from rot, and from the depredations of insects, by which it was frequently consumed.

A great part of the work of Cato is more appropriate to the housewife than the farmer. We have receipts for making all sorts of cakes and puddings, fattening hens and geese, preserving figs during winter; as also medical prescriptions for the cure of various diseases, both of man and beast. *Mala punica*, or pomegranates, are the chief ingredient, in his remedies, for Diarrhœa, Dyspepsia, and Stranguary. Sometimes, however, his cures for diseases are not medical recipes, but sacrifices, atonements, or charms. The prime of all is his remedy for a luxation or fracture.—“Take,” says he, “a green reed, and slit it along the middle—throw the knife upwards, and join the two parts of the reed again, and tie it so to the place broken or disjoined, and say this charm—‘Daries, Dardaries, Astataries, Dissunapiter.’ Or this—‘Huat, Hanat, Huat, Ista, Pista, Fista, Domiabo, Damnaustra.’ This will make the part sound again¹⁸.”

The most remarkable feature in the work of Cato, is its [pg 16]total want of arrangement. It is divided, indeed, into chapters, but the author, apparently, had never taken the trouble of reducing his precepts to any sort of method, or of following any general plan. The hundred and sixty-two chapters, of which his work consists, seem so many rules committed to writing, as the daily labours of the field suggested. He gives directions about the vineyard, then goes to his corn-fields, and returns again to the vineyard. His treatise was, therefore, evidently not intended as a regular or well-composed book,

but merely as a journal of incidental observations. That this was its utmost pretensions, is farther evinced by the brevity of the precepts, and deficiency of all illustration or embellishment. Of the style, he of course would be little careful, as his *Memoranda* were intended for the use only of his family and slaves. It is therefore always simple,—sometimes even rude; but it is not ill adapted to the subject, and suits our notion of the severe manners of its author, and character of the ancient Romans.

Besides this book on agriculture, Cato left behind him various works, which have almost entirely perished. He left a hundred and fifty orations¹⁹, which were existing in the time of Cicero, though almost entirely neglected, and a book on military discipline²⁰, both of which, if now extant, would be highly interesting, as proceeding from one who was equally distinguished in the camp and forum. A good many of his orations were in dissuasion or favour of particular laws and measures of state, as those entitled—“Ne quis iterum Consul fiat—De bello Carthaginiensi,” of which war he was a vehement promoter—“Suasio in Legem Voconiam,—Pro Lege Oppia,” &c. Nearly a third part of these orations were pronounced in his own defence. He had been about fifty times accused²¹, and as often acquitted. When charged with a capital crime, in the 85th year of his age, he pleaded his own cause, and betrayed no failure in memory, no decline of vigour, and no faltering of voice²². By his readiness, and pertinacity, and bitterness, he completely wore out his adversaries²³, and earned the reputation of being, if not the most eloquent, at least the most stubborn speaker among the Romans.

Cato’s oration in favour of the Oppian law, which was a sumptuary restriction on the expensive dresses of the Roman [pg 17]matrons, is given by Livy²⁴. It was delivered in opposition to the tribune Valerius, who proposed its abrogation, and affords us some notion of his style and manner, since, if not copied by the historian from his book of orations, it was doubtless adapted by him to the character of Cato, and his mode of speaking. Aulus Gellius cites, as equally distinguished for its eloquence and energy, a passage in his speech on the division of spoil among the soldiery, in which he complains of their unpunished peculation and licentiousness. One of his most celebrated harangues was that in favour of the Rhodians, the ancient allies of the Roman people, who had fallen under the suspicion of affording aid to Perseus, during the second Macedonian war. The oration

was delivered after the overthrow of that monarch, when the Rhodian envoys were introduced into the Senate, in order to explain the conduct of their countrymen, and to deprecate the vengeance of the Romans, by throwing the odium of their apparent hostility on the turbulence of a few factious individuals. It was pronounced in answer to those Senators, who, after hearing the supplications of the Rhodians, were for declaring war against them; and it turned chiefly on the ancient, long-tried fidelity of that people,—taking particular advantage of the circumstance, that the assistance rendered to Perseus had not been a national act, proceeding from a public decree of the people. Tiro, the freedman of Cicero, wrote a long and elaborate criticism on this oration. To the numerous censures it contains, Aulus Gellius has replied at considerable length, and has blamed Tiro for singling out from a speech so rich, and so happily connected, small and insulated portions, as objects of his reprehensive satire. All the various topics, he adds, which are enlarged on in this oration, if they could have been introduced with more perspicuity, method, and harmony, could not have been delivered with more energy and strength²⁵.

Both Cicero and Livy have expressed themselves very fully on the subject of Cato's orations. The former admits, that his "language is antiquated, and some of his phrases harsh and inelegant: but only change that," he continues, "which it was not in his power to change—add number and cadence—give an easier turn to his sentences—and regulate the structure and connection of his words, (an art which was as little practised by the older Greeks as by him,) and you will find no one who can claim the preference to Cato. The Greeks themselves acknowledge, that the chief beauty of composition results from the frequent use of those forms of expression, [pg 18]which they call tropes, and of those varieties of language and sentiment, which they call figures; but it is almost incredible with what copiousness, and with what variety, they are all employed by Cato²⁶." Livy principally speaks of the facility, asperity, and freedom of his tongue²⁷. Aulus Gellius has instituted a comparison of Caius Gracchus, Cato, and Cicero, in passages where these three orators declaimed against the same species of atrocity—the illegal scourging of Roman citizens; and Gellius, though he admits that Cato had not reached the splendour, harmony, and pathos of Cicero, considers him as far superior in force and copiousness to Gracchus²⁸.

Of the book on Military Discipline, a good deal has been incorporated into the work of Vegetius; and Cicero's orations may console us for the want of those of Cato. But the loss of the seven books, *De Originibus*, which he commenced in his vigorous old age, and finished just before his death, must ever be deeply deplored by the historian and antiquary. Cato is said to have begun to inquire into the history, antiquities, and language of the Roman people, with a view to counteract the influence of the Greek taste, introduced by the Scipios; and in order to take from the Greeks the honour of having colonized Italy, he attempted to discover on the Latin soil the traces of ancient national manners, and an indigenous civilization. The first book of the valuable work *De Originibus*, as we are informed by Cornelius Nepos, in his short life of Cato, contained the exploits of the kings of Rome. Cato was the first author who attempted to fix the era of the foundation of Rome, which he calculated in his *Origines*, and determined it to have been in the first year of the 7th Olympiad. In order to discover this epoch, he had recourse to the memoirs of the Censors, in which it was noted, that the taking of Rome by the Gauls, was 119 years after the expulsion of the kings. By adding this period to the aggregate duration of the reigns of the kings, he found that the amount answered to the first of the 7th Olympiad. This is the computation followed by Dionysius of Halicarnassus, in his great work on Roman antiquities. It is probably as near the truth as we can hope to arrive; but even in the time of Cato, the calculated duration of the reigns of the kings was not founded on any ancient monuments then extant, or on the testimony of any credible historian. The second and third books treated of the origin of the different states of Italy, whence the whole work has received the name of *Origines*. The fourth and [pg 19]fifth books comprehended the history of the first and second Punic wars; and in the two remaining books, the author discussed the other campaigns of the Romans till the time of Ser. Galba, who overthrew the Lusitanians.

In his account of these later contests, Cato merely related the facts, without mentioning the names of the generals or leaders; but though he has omitted this, Pliny informs us that he did not forget to take notice, that the elephant which fought most stoutly in the Carthaginian army was called Surus, and wanted one of his teeth²⁹. In this same work he incidentally treated of all the wonderful and admirable things which existed in Spain and Italy. Some of his orations, too, as we learn from Livy, were incorporated into it, as that

for giving freedom to the Lusitanian hostages; and Plutarch farther mentions, that he omitted no opportunity of praising himself, and extolling his services to the state. The work, however, exhibited great industry and learning, and, had it descended to us, would unquestionably have thrown much light on the early periods of Roman history and the antiquities of the different states of Italy. Dionysius of Halicarnassus, himself a sedulous inquirer into antiquities, bears ample testimony to the research and accuracy of that part which treats of the origin of the ancient Italian cities. The author lived at a time which was favourable to this investigation. Though the Samnites, Etruscans, and Sabines, had been deprived of their independence, they had not lost their monuments or records of their history, their individuality and national manners. Cicero praises the simple and concise style of the *Origines*, and laments that the work was neglected in his day, in consequence of the inflated manner of writing which had been recently adopted; in the same manner as the tumid and ornamented periods of Theopompus had lessened the esteem for the concise and unadorned narrative of Thucydides, or as the lofty eloquence of Demosthenes impaired the relish for the extreme attic simplicity of Lysias³⁰.

In the same part of the dialogue, entitled *Brutus*, Cicero asks what flower or light of eloquence is wanting to the *Origines*—"Quem florem, aut quod lumen eloquentiæ non habent?" But on Atticus considering the praise thus bestowed as excessive, he limits it, by adding, that nothing was required to complete the strokes of the author's pencil but a certain lively glow of colours, which had not been discovered in his age.—"Intelliges, nihil illius lineamentis, nisi eorum pigmentorum, quæ inventa nondum erant, florem et calorem defuisse³¹."

[pg 20]

The pretended fragments of the *Origines*, published by the Dominican, Nanni, better known by the name of Annius Viterbiensis, and inserted in his *Antiquitates Variæ*, printed at Rome in 1498, are spurious, and the imposition was detected soon after their appearance. The few remains first collected by Riccobonus, and published at the end of his Treatise on History, (Basil, 1579,) are believed to be genuine. They have been enlarged by Ausonius Popma, and added by him, with notes, to the other writings of Cato, published at Leyden in 1590.

Any rudeness of style and language which appears either in the orations of Cato, or in his agricultural and historical works, cannot be attributed to total carelessness or neglect of the graces of composition, as he was the first person in Rome who treated of oratory as an art³², in a tract entitled *De Oratore ad Filium*.

Cato was also the first of his countrymen who wrote on the subject of medicine³³. Rome had existed for 500 years without professional physicians³⁴. A people who as yet were strangers to luxury, and consisted of farmers and soldiers, (though surgical operations might be frequently necessary,) would be exempt from the inroads of the “grisly troop,” so much encouraged by indolence and debauchery. Like all semi-barbarous people, they believed that maladies were to be cured by the special interposition of superior beings, and that religious ceremonies were more efficacious for the recovery of health than remedies of medical skill. Deriving, as they did, much of their worship from the Etruscans, they probably derived from them also the practice of attempting to overcome disease by magic and incantation. The Augurs and Aruspices were thus the most ancient physicians of Rome. In epidemic distempers the Sibylline books were consulted, and the cures they prescribed were superstitious ceremonies. We have seen that it was to free the city from an attack of this sort that scenic representations were first introduced at Rome. During the progress of another epidemic infliction a temple was built to Apollo³⁵; and as each periodic pestilence naturally abated in course of time, faith was confirmed in the efficacy of the rites which were resorted to. Every one has heard of the pomp wherewith Esculapius was transported under the form of a serpent, from Epidaurus to an islet in the Tiber, which was thereafter consecrated to that divine physician. The apprehension of diseases raised temples to Febris and Tussis, and [pg 21]other imaginary beings belonging to the painful family of death in order to avert the disorders which they were supposed to inflict. It was perceived, however, that religious professions and lustrations and *lectisterniums* were ineffectual for the cure of those complaints, which, in the 6th century, luxury began to exasperate and render more frequent at Rome. At length, in 534, Archagatus, a free-born Greek, arrived in Italy, where he practised medicine professionally as an art, and received in return for his cures the endearing appellation of *Carnifex*³⁶. But though Archagatus was the first who practised medicine,

Cato was the first who wrote of diseases and their treatment as a science, in his work entitled *Commentarius quo Medetur Filio, Servis, Familiaribus*. In this book of domestic medicine—duck, pigeons, and hare, were the foods he chiefly recommended to the sick³⁷. His remedies were principally extracted from herbs; and colewort, or cabbage, was his favourite cure³⁸. The recipes, indeed, contained in his work on agriculture, show that his medical knowledge did not exceed that which usually exists among a semi-barbarous race, and only extended to the most ordinary simples which nature affords. Cato hated the compound drugs introduced by the Greek physicians—considering these foreign professors of medicine as the opponents of his own system. Such, indeed, was his antipathy, that he believed, or pretended to believe, that they had entered into a league to poison all the barbarians, among whom they classed the Romans.—“Jurarunt inter se,” says he, in a passage preserved by Pliny, “barbaros necare omnes medicina: Et hoc ipsum mercede faciunt, ut fides iis sit, et facile disperdant³⁹.” Cato, finding that the patients lived notwithstanding this detestable conspiracy, began to regard the Greek practitioners as impious sorcerers, who counteracted the course of nature, and restored dying men to life, by means of unholy charms; and he therefore advised his countrymen to remain steadfast, not only by their ancient Roman principles and manners, but also by the venerable unguents and salubrious balsams which had come down to them from the wisdom of their grandmothers. Such as they were, Cato’s old medical saws continued long in repute at Rome. It is evident that they were still esteemed in the time of Pliny, who expresses the same fears as the Censor, lest hot baths and potions should render his countrymen effeminate, and corrupt their manners⁴⁰.

[pg 22]

Every one knows what was the consequence of Cato’s dislike to the Greek philosophers, who were expelled from the city by a decree of the senate. But it does not seem certain what became of Archagatus and his followers. The author of the *Diogene Moderne*, as cited by Tiraboschi, says that Archagatus was stoned to death⁴¹, but the literary historian who quotes him doubts of his having any sufficient authority for the assertion. Whether the physicians were comprehended in the general sentence of banishment pronounced on the learned Greeks, or were excepted from it, has been the subject of a great literary controversy in modern Italy and in France⁴².

Aulus Gellius⁴³ mentions Cato's *Libri quæstionum Epistolicarum*, and Cicero his *Apophthegmata*⁴⁴, which was probably the first example of that class of works which, under the appellation of *Ana*, became so fashionable and prevalent in France.

The only other work of Cato which I shall mention, is the *Carmen de Moribus*. This, however, was not written in verse, as might be supposed from the title. Precepts, imprecations, and prayers, or any set *formulæ* whatever, were called *Carmina*. I do not know what maxims were inculcated in this *carmen*, but they probably were not of very rigid morality, at least if we may judge from the "Sententia Dia Catonis," mentioned by Horace:

"Quidam notus homo cùm exiret fornice, Macte
Virtute esto, inquit sententia dia Catonis⁴⁵."

[pg 23]

Misled by the title, some critics have erroneously assigned to the Censor the *Disticha de Moribus*, now generally attributed to Dionysius Cato, who lived, according to Scaliger in the age of Commodus and Septimius Severus⁴⁶.

The work of

MARCUS TERENTIUS VARRO,

On agriculture, has descended to us more entire than that of Cato on the same subject; yet it does not appear to be complete. In the early times of the republic, the Romans, like the ancient Greeks, being constantly menaced with the incursions of enemies, indulged little in the luxury of expensive and ornamental villas. Even that of Scipio Africanus, the rival and contemporary of Cato the Censor, and who in many other respects anticipated the refinements of a later age, was of the simplest structure. It was situated at Liternum, (now Patria,) a few miles north from Cumæ, and was standing in the time of Seneca. This philosopher paid a visit to a friend who resided in it during the age of Nero, and he afterwards described it in one of his epistles with many expressions of wonder and admiration at the frugality of the great Africanus⁴⁷. When, however, the scourge of war was removed from their immediate vicinity, agriculture and gardening were no longer exercised by the Romans as in the days of the Censor, when great crops of grain were raised for profit, and fields of onions sown for the subsistence of the labouring servants. The patricians now became fond of ornamental gardens, fountains, terraces, artificial wildernesses, and grottos, groves of laurel for shelter in winter, and oriental planes for shade in summer. Matters, in short, were fast approaching to the state described in one of the odes of Horace—

[pg 24]

“Jam pauca aratro jugera regiæ,
Moles relinquent: undique latius
 Extenta visentur Lucrino
 Stagna lacu: platanusque cœlebs
Evincet ulmos: tum violaria, et
Myrtus, et omnis copia narium,
 Spargent olivetis odorem
 Fertilibus domino priori.

Tum spissa ramis laurea fervidos
Excludet ictus. Non ita Romuli
Præscriptum, et intonsi Catonis
Auspiciis, veterumque norma⁴⁸.”

Agriculture, however, still continued to be so respectable an employment, that its practice was not considered unworthy the friend of Cicero and Pompey, nor its precepts undeserving to be delivered by one who was indisputably the first scholar of his age—who was renowned for his profound erudition and thorough insight into the laws, the literature, and antiquities of his country,—and who has been hailed by Petrarch as the third great luminary of Rome, being only inferior in lustre to Cicero and Virgil:

“Qui’ vid’ io nostra gente aver per duce
Varrone, il terzo gran lume Romano,
Che quanto ’l miro più, tanto più luce⁴⁹.”

Varro was born in the 637th year of Rome, and was descended of an ancient senatorial family. It is probable that his youth, and even the greater part of his manhood, were spent in literary pursuits, and in the acquisition of that stupendous knowledge, which has procured to him the appellation of the most learned of the Romans, since his name does not appear in the civil or military history of his country, till the year 680, when he was Consul along with Cassius Varus. In 686, he served under Pompey, in his war against the pirates, in which he commanded the Greek ships⁵⁰. To the fortunes of that Chief he continued firmly attached, and was appointed one of his lieutenants in Spain, along with Afranius and Petreius, at the commencement of the war with Cæsar. Hispania Ulterior was specially confided to his protection, and two legions were placed under his command. After the surrender of his colleagues in Hither Spain, Cæsar proceeded in person against him. Varro appears to have been little qualified to cope with such an adversary. One of the legions deserted in his own sight, and his retreat to Cadiz, where he had meant to retire, [pg 25]having been cut off, he surrendered at discretion, with the other, in the vicinity of Cordova⁵¹. From that period he despaired of the salvation of the republic, or found, at least, that he was not capable of saving it; for although, after receiving his

freedom from Cæsar, he proceeded to Dyrrachium, to give Pompey a detail of the disasters which had occurred, he left it almost immediately for Rome. On his return to Italy he withdrew from all political concerns, and indulged himself during the remainder of his life in the enjoyment of literary leisure. The only service he performed for Cæsar, was that of arranging the books which the Dictator had himself procured, or which had been acquired by those who preceded him in the management of public affairs⁵². He lived during the reign of Cæsar in habits of the closest intimacy with Cicero; and his feelings, as well as conduct, at this period, resembled those of his illustrious friend, who, in all his letters to Varro, bewails, with great freedom, the utter ruin of the state, and proposes that they should live together, engaged only in those studies which were formerly their amusement, but were then their chief support. “And, should none require our services for repairing the ruins of the republic, let us employ our time and thoughts on moral and political inquiries. If we cannot benefit the commonwealth in the forum or the senate, let us endeavour, at least, to do so by our studies and writings; and, after the example of the most learned among the ancients, contribute to the welfare of our country, by useful disquisitions concerning laws and government.” Some farther notion of the manner in which Varro spent his time during this period may be derived from another letter of Cicero, written in June, 707. “Nothing,” says he, “raises your character higher in my esteem, than that you have wisely retreated into harbour—that you are enjoying the happy fruits of a learned leisure, and employed in pursuits, which are attended with more public advantage, as well as private satisfaction, than all the ambitious exploits, or voluptuous indulgences, of these licentious victors. The contemplative hours you spend at your Tusculan villa, are, in my estimation, indeed, what alone deserves to be called life⁵³.”

Varro passed the greatest portion of his time in the various villas which he possessed in Italy. One of these was at Tusculum, and another in the neighbourhood of Cumæ. The latter place had been among the earliest Greek establishments in Italy, and was long regarded as pre-eminent in power and [pg 26]population. It spread prosperity over the adjacent coasts; and its oracle, Sibyl, and temple, long attracted votaries and visitants. As the Roman power increased, that of Cumæ decayed; and its opulence had greatly declined before the time of Varro. Its immediate vicinity was not

even frequently selected as a situation for villas. The Romans had a well-founded partiality for the coasts of Puteoli, and Naples, so superior in beauty and salubrity to the flat, marshy neighbourhood of Cumæ. The situation of Varro's other villa, at Tusculum, must have been infinitely more agreeable, from its pure air, and the commanding prospect it enjoyed.

Besides immense flocks of sheep in Apulia, and many horses in the Sabine district of Reate⁵⁴, Varro had considerable farms both at his Cuman and Tusculan villas, the cultivation of which, no doubt, formed an agreeable relaxation from his severe and sedentary studies. He had also a farm at a third villa, where he occasionally resided, near the town of Casinum, in the territory of the ancient Volsci⁵⁵, and situated on the banks of the Cassinus, a tributary stream to the Liris. This stream, which was fifty-seven feet broad, and both deep and clear, with a pebbly channel, flowed through the middle of his delightful domains. A bridge, which crossed the river from the house, led directly to an island, which was a little farther down, at the confluence of the Cassinus with a rivulet called the Vinius⁵⁶. Along the banks of the larger water there were spacious pleasure-walks which conducted to the farm; and near the place where they joined the fields, there was an extensive aviary⁵⁷. The site of Varro's villa was visited by Sir R. C. Hoare, who says, that it stood close to Casinum, now St Germano: Some trifling remains still indicate its site; but its memory, he adds, will shortly survive only in the page of the historian⁵⁸.

After the assassination of Cæsar, this residence, along with almost all the wealth of Varro, which was immense, was forcibly seized by Marc Antony⁵⁹. Its lawless occupation by that profligate and blood-thirsty triumvir, on his return from his dissolute expedition to Capua, is introduced by Cicero into one of his Philippics, and forms a topic of the most eloquent and bitter invective. The contrast which the orator draws between the character of Varro and that of Antony—between the noble and peaceful studies prosecuted in that delightful residence by the rightful proprietor, and the shameful debaucheries of the wretch by whom it had been usurped, forms a picture, to which it would be difficult to find a parallel in ancient or modern oratory.—“How many days did you shamefully revel, Antony, in that villa? From the third hour, it was one continued scene of drinking, gambling, and uproar. The very roofs were to be pitied. O, what a

change of masters! But how can he be called its master? And, if master—gods! how unlike to him he had dispossessed! Marcus Varro made his house the abode of the muses, and a retreat for study—not a haunt for midnight debauchery. Whilst he was there, what were the subjects discussed—what the topics debated in that delightful residence? I will answer the question—The rights and liberties of the Roman people—the memorials of our ancestors—the wisdom resulting from reason combined with knowledge. But whilst you, Antony, was its occupant, (for you cannot be called its master,) every room rung with the cry of drunkenness—the pavements were swimming with wine, and the walls wet with riot.”

Antony was not a person to be satisfied with robbing Varro of his property. At the formation of the memorable triumvirate, the name of Varro appeared in the list of the proscribed, among those other friends of Pompey whom the clemency of Cæsar had spared. This illustrious and blameless individual had now passed the age of seventy; and nothing can afford a more frightful proof of the sanguinary spirit which guided the councils of the triumvirs, than their devoting to the dagger of the hired assassin a man equally venerable by his years and character, and who ought to have been protected, if not by his learned labours, at least by his retirement, from such inhuman persecution. But, though doomed to death as a friend of law and liberty, his friends contended with each other for the dangerous honour of saving him. Calenus having obtained the preference, carried him to his country-house, where Antony frequently came, without suspecting that it contained a proscribed inmate. Here Varro remained concealed till a special edict was issued by the consul, M. Plancus, under the triumviral seal, excepting him and Messala Corvinus from the general slaughter⁶⁰.

But though Varro thus passed in security the hour of danger, he was unable to save his library, which was placed in the garden of one of his villas, and fell into the hands of an illiterate soldiery.

After the battle of Actium, Varro resided in tranquillity at Rome till his decease, which happened in 727, when he was [pg 28]ninety years of age. The tragical deaths, however, of Pompey and Cicero, with the loss of others of his friends,—the ruin of his country,—the expulsion from his villas,—and the loss of those literary treasures, which he had stored up as the solace

of his old age, and the want of which would be doubly felt by one who wished to devote all his time to study,—must have cast a deep shade over the concluding days of this illustrious scholar. His wealth was restored by Augustus, but his books could not be supplied.

It is not improbable, that the dispersion of this library, which impeded the prosecution of his studies, and prevented the composition of such works as required reference and consultation, may have induced Varro to employ the remaining hours of his life in delivering those precepts of agriculture, which had been the result of long experience, and which needed only reminiscence to inculcate. It was some time after the loss of his books, and when he had nearly reached the age of eighty, that Varro composed the work on husbandry, as he himself testifies in the introduction. “If I had leisure, I might write these things more conveniently, which I will now explain as well as I am able, thinking that I must make haste; because, if a man be a bubble of air, much more so is an old man, for now my eightieth year admonishes me to get my baggage together before I leave the world. Wherefore, as you have bought a farm, which you are desirous to render profitable by tillage, and as you ask me to take this task upon me, I will try to advise you what must be done, not only during my stay here, but after my departure.” The remainder of the introduction forms, in its ostentatious display of erudition, a remarkable contrast to Cato’s simplicity. Varro talks of the Syrens and Sibyls,—invokes all the Roman deities, supposed to preside over rural affairs,—and enumerates all the Greek authors who had written on the subject of agriculture previous to his own time.

The first of the three books which this agricultural treatise comprehends, is addressed, by Varro, to Fundanius, who had recently purchased a farm, in the management of which he wished to be instructed. The information which Varro undertakes to give, is communicated in the form of dialogue. He feigns that, at the time appointed for rites to be performed in the sowing season, (*sementivis feriis*,) he went, by invitation of the priest, to the temple of Tellus. There he met his father-in-law, C. Fundanius, the knight Agrius, and Agrasius, a farmer of imposts, who were gazing on a map of Italy, painted on the inner walls of the temple. The priest, whose duty it was to officiate, having been summoned by the ædile [pg 29] to attend him on affairs of importance, they were awaiting his return; and, in order to pass

the time till his arrival, Agrasius commences a conversation, (suggested by the map of Italy,) by inquiring at the others present in the temple, whether they, who had travelled so much, had ever visited any country better cultivated than Italy. This introduces an eulogy on the soil and climate of that favoured region, and of its various abundant productions,—the Apulian wheat, the Venafrian olive, and the Falernian grape. All this, again, leads to the inquiry, by what arts of agricultural skill and industry, aiding the luxuriant soil, it had reached such unexampled fecundity. These questions are referred to Licinius Stolo, and Tremellius Scrofa, who now joined the party, and who were well qualified to throw light on the interesting discussion—the first being of a family distinguished by the pains it had taken with regard to the Agrarian laws, and the second being well known for possessing one of the best cultivated farms in Italy. Scrofa, too, had himself written on husbandry, as we learn from Columella; who says, that he had first rendered agriculture eloquent. This first book of Varro is accordingly devoted to rules for the cultivation of land, whether for the production of grain, pulse, olives, or vines, and the establishment necessary for a well-managed and lucrative farm; excluding from consideration what is strictly the business of the grazier and shepherd, rather than of the farmer.

After some general observations on the object and end of agriculture, and the exposition of some general principles with regard to soil and climate, Scrofa and Stolo, who are the chief prolocutors, proceed to settle the size, as also the situation of the villa. They recommend that it should be placed at the foot of a well-wooded hill, and open to the most healthful breeze. An eastern exposure seems to be preferred, as it will thus have shade in summer, and sun in winter. They farther advise, that it should not be placed in a hollow valley, as being there subject to storms and inundations; nor in front of a river, as that situation is cold in winter, and unwholesome in summer; nor in the vicinity of a marsh, where it would be liable to be infested with small insects, which, though invisible, enter the body by the mouth or nostrils, and occasion obstinate diseases. Fundanius asks, what one ought to do who happens to inherit such a villa; and is answered, that he should sell it for whatever sum it may bring; and if it will bring nothing, he should abandon it. After this follow the subjects of enclosure—the necessary implements of husbandry—the number of servants and oxen required—and the soil in which different crops should be sown. We have

then [pg 30]a sort of calendar, directing what operations ought to be performed in each season of the year. Thus, the author recommends draining betwixt the winter solstice and approach of the zephyrs, which was reckoned to be about the beginning of February. The sowing of grain should not be commenced before the autumnal equinox, nor delayed after the winter solstice; because the seeds which are sown previous to the equinox spring up too quickly, and those sown subsequent to the solstice scarcely appear above ground in forty days. A taste for flowers had begun to prevail at Rome in the time of Varro; he accordingly recommends their cultivation, and points out the seasons for planting the lily, violet and crocus.

The remainder of the first book of Varro is well and naturally arranged. He considers his subject from the choice of the seed, till the grain has sprung up, ripened, been reaped, secured, and brought to market. The same course is followed in treating of the vine and the olive. While on the subject of selling farm-produce to the best advantage, the conversation is suddenly interrupted by the arrival of the priest's freedman, who came in haste to apologize to the guests for having been so long detained, and to ask them to attend on the following day at the obsequies of his master, who had been just assassinated on the public street by an unknown hand. The party in the temple immediately separate.—“De casu humano magis querentes, quam admirantes id Romæ factum.”

The subject of agriculture, strictly so called, having been discussed in the first book, Varro proceeds in the second, addressed to Niger Turranus, to treat of the care of flocks and cattle, (*De Re Pecuarie*). The knowledge which he here communicates is the result of his own observations, blended with the information he had received from the great pasturers of Epirus, at the time when he commanded the Grecian ships on its coast, in Pompey's naval war with the pirates. As in the former book, the instruction is delivered in the shape of dialogue. Varro being at the house of a person called Cossinius, his host refuses to let him depart till he explain to him the origin, the dignity, and the art of pasturage. Our author undertakes to satisfy him as to the first and second points, but as to the third, he refers him to Scrofa, another of the guests, who had the management of extensive sheep-walks in the territory of the Brutii. Varro makes but a pedantic figure in the part which he has modestly taken to himself. His account of the origin of

pasturage is nothing but some very common-place observations on the early stages of society; and its dignity is proved from several signs of the zodiac being [pg 31]called after animals, as also some of the most celebrated spots on the globe,—Mount Taurus, the Bosphorus, the Ægean sea, and Italy, which Varro derives from Vitulus. Scrofa, in commencing his part of the dialogue, divides the animals concerning which he is to treat into three classes: 1. the lesser; of which there are three sorts—sheep, goats, and swine; 2. the larger; of which there are also three—oxen, asses, and horses; and, lastly, those which do not themselves bring profit, but are essential to the care of the others—the dog, the mule, and the shepherd. With regard to all animals, four things are to be considered in purchasing or procuring them—their age, shape, pedigree, and price. After they have been purchased, there are other four things to be attended to—feeding, breeding, rearing, and curing distempers. According to this methodical division of the subject, Scrofa proceeds to give rules for choosing the best of the different species of animals which he has enumerated, as also directions for tending them after they have been bought, and turning them to the best profit. It is curious to hear what were considered the good points of a goat, a hog, or a horse, in the days of Pompey and Cæsar; in what regions they were produced in greatest size and perfection; what was esteemed the most nutritive provender for each; and what number constituted an ordinary flock or herd. The qualities specified as best in an ox may perhaps astonish a modern grazier; but it must be remembered, that they are applicable to the capacity for labour, not of carrying beef. Hogs were fed by the Romans on acorns, beans, and barley; and, like our own, indulged freely in the luxury of mire, which, Varro says, is as refreshing to them as the bath to human creatures. The Romans, however, did not rear, as we do, a solitary ill-looking pig in a sty, but possessed great herds, sometimes amounting to the number of two or three hundred.

From what the author records while treating of the pasturage of sheep, we learn that a similar practice prevailed in Italy, with that which at this day exists in Spain, in the management of the Merinos belonging to the Mêtà. Flocks of sheep, which pastured during the winter in Apulia, were driven to a great distance from that region, to pass the summer in Samnium; and mules were led from the champaign grounds of Rosea, at certain seasons, to the high Gurgurian mountains. With much valuable and curious information

on all these various topics, there are interspersed a great many strange superstitions and fables, or what may be called vulgar errors, as that swine breathe by the ears instead of the mouth or nostrils—that when a wolf gets hold of a sow, the first thing he does is to [pg 32]plunge it into cold water, as his teeth cannot otherwise bear the heat of the flesh—that on the shore of Lusitania, mares conceive from the winds, but their foals do not live above three years—and what is more inexplicable, one of the speakers in the dialogue asserts, that he himself had seen a sow in Arcadia so fat, that a field-mouse had made a comfortable nest in her flesh, and brought forth its young.

This book concludes with what forms the most profitable part of pasturage—the dairy and sheep-shearing.

The third book, which is by far the most interesting and best written in the work, treats *de villicis pastionibus*, which means the provisions, or moderate luxuries, which a plain farmer may procure, independent of tillage or pasturage,—as the poultry of his barn-yard—the trouts in the stream, by which his farm is bounded—and the game, which he may enclose in parks, or chance to take on days of recreation. If others of the agricultural writers have been more minute with regard to the construction of the villa itself, it is to Varro we are chiefly indebted for what lights we have received concerning its appertenancies, as warrens, aviaries, and fish-ponds. The dialogue on these subjects is introduced in the following manner:—At the comitia, held for electing an Ædile, Varro and the Senator Axius, having given their votes for the candidate whom they mutually favoured, and wishing to be at his house to receive him on his return home, after all the suffrages had been taken, resolved to wait the issue in the shade of a *villa publica*. There they found Appius Claudius, the augur, whom Axius began to rally on the magnificence of his villa, at the extremity of the Campus Martius, which he contrasts with the profitable plainness of his own farm in the Reatine district. “Your sumptuous mansion,” says he, “is adorned with painting, sculpture, and carving; but to make amends for the want of these, I have all that is necessary to the cultivation of lands, and the feeding of cattle. In your splendid abode, there is no sign of the vicinity of arable lands, or vineyards. We find there neither ox nor horse—there is neither vintage in the cellars, nor corn in the granary. In what respect does this

resemble the villa of your ancestors? A house cannot be called a farm or a villa, merely because it is built beyond the precincts of the city.” This polite remonstrance gives rise to a discussion with regard to the proper definition of a villa, and whether that appellation can be applied to a residence, where there is neither tillage nor pasturage. It seems to be at length agreed, that a mansion which is without these, and is merely ornamental, cannot be called a villa; but that it is properly so termed, though there be neither tillage nor pastu[pg 33]rage, if fish-ponds, pigeon-houses, and bee-hives, be kept for the sake of profit; and it is discussed whether such villas, or agricultural farms, are most lucrative.

Our author divides the *Villaticæ pastiones* into poultry, game, and fish. Under the first class, he comprehends birds, such as thrushes, which are kept in aviaries, to be eaten, but not any birds of game. Rules and directions are given for their management, of the same sort with those concerning the animals mentioned in the preceding book. The aviaries in the Roman villas were wonderfully productive and profitable. A very particular account is given of the construction of an aviary. Varro himself had one at his farm, near Casinum, but it was intended more for pleasure and recreation than profit. The description he gives of it is very minute, but not very distinct. The pigeon-house is treated of separately from the aviary. As to the game, the instructions do not relate to field-sports, but to the mode of keeping wild animals in enclosures or warrens. In the more simple and moderate ages of the republic, these were merely hare or rabbit warrens of no great extent; but as wealth and luxury increased, they were enlarged to the size of 40 or 50 acres, and frequently contained within their limits goats, wild boars, and deer. The author even descends to instructions with regard to keeping and fattening snails and dormice. On the subject of fish he is extremely brief, because that was rather an article of expensive luxury than homely fare; and the candidate, besides, was now momentarily expected. Fish-ponds had increased in the same proportion as warrens, and in the age of Varro were often formed at vast expense. Instances are given of the great depth and extent of ponds belonging to the principal citizens, some of which had subterraneous communications with the sea, and others were supplied by rivers, which had been turned from their course. At this part of the dialogue, a shout and unusual bustle announced the success of the candidate whom

Varro favoured: on hearing this tumult, the party gave up their agricultural disquisitions, and accompanied him in triumph to the Capitol.

This work of Varro is totally different from that of Cato on the same subject, formerly mentioned. It is not a journal, but a book; and instead of the loose and unconnected manner in which the brief precepts of the Censor are delivered, it is composed on a plan not merely regular, but perhaps somewhat too stiff and formal. Its exact and methodical arrangement has particularly attracted the notice of Scaliger.—“Unicum Varronem inter Latinos habemus, libris tribus de Re Rustica, qui vere ac μεθοδικως philosophatus sit. Immo nullus [pg 34]est Græcorum qui tam bene, inter eos saltem qui ad nos pervenerunt⁶¹.” Instead, too, of that directness and simplicity which never deviate from the plainest precepts of agriculture, the work of Varro is embellished and illustrated by much of the erudition which might be expected from the learning of its author, and of one acquainted with fifty Greek writers who had treated of the subject before him. “Cato, the famous Censor,” says Martyne, “writes like an ancient country gentleman of much experience: He abounds in short pithy sentences, intersperses his book with moral precepts, and was esteemed a sort of oracle. Varro writes more like a scholar than a man of much practice: He is fond of research into antiquity, and inquires into the etymology of the names of persons and things. Cato, too, speaks of a country life, and of farming, merely as it may be conducive to gain. Varro also speaks of it as of a wise and happy state, inclining to justice, temperance, sincerity, and all the virtues, which shelters from evil passions, by affording that constant employment, which leaves little leisure for those vices which prevail in cities, where the means and occasions for them are created and supplied.”

There were other Latin works on agriculture, besides those of Cato and Varro, but they were subsequent to the time which the present volumes are intended to embrace. Strictly speaking, indeed, even the work of Varro was written after the battle of Actium: the knowledge, however, on which its precepts were founded, was acquired long before. The style, too, is that of the Roman republic, not of the Augustan age. I have therefore considered Varro as belonging to the period on which we are at present engaged.

Indeed, the history of his life and writings is almost identified with the literary history of Rome, during the long period through which his existence was protracted. But the treatise on agriculture is the only one of his multifarious works which has descended to us entire. The other writings of this celebrated polygraph, as Cicero calls him⁶², may be divided into philological, critical, historical, mythological, philosophic, and satiric; and, after all, it would probably be necessary, in order to form a complete catalogue, to add the convenient and comprehensive class of miscellaneous.

The work *De Lingua Latina*, though it has descended to us incomplete, is by much the most entire of Varro's writings, except the Treatise on Agriculture. It is on account of this [pg 35]philological production, that Aulus Gellius ranks him among the grammarians, who form a numerous and important class in the History of Latin Literature. They were called *grammatici* by the Romans—a word which would be better rendered philologists than grammarians. The grammatic science, among the Romans, was not confined to the inflections of words or rules of syntax. It formed one of the great divisions of the art of criticism, and was understood to comprehend all those different inquiries which philology includes—embracing not only grammar, properly so called, but verbal and literal criticism, etymology, the explication and just interpretation of authors, and emendation of corrupted passages. Indeed the name of grammarian (*grammaticus*) is frequently applied by ancient authors⁶³ to those whom we should now term critics and commentators, rather than grammarians.

It will be readily conceived that a people, who, like the first Romans, were chiefly occupied with war, and whose relaxation was agriculture, did not attach much importance to a science, of which the professed object was, teaching how to speak and write with propriety. Accordingly, almost six hundred years elapsed before they formed any idea of such a study⁶⁴. Crates Mallotes, who was a contemporary of Aristarchus, and was sent as ambassador to Rome, by Attalus, King of Pergamus, towards the end of the sixth century⁶⁵, was the first who excited a taste for grammatical inquiries. Having accidentally broken his leg in the course of his embassy, he employed the period of his convalescence in receiving visitors, to whom he delivered lectures, containing grammatic disquisitions: and he also read and commented on poets hitherto unknown in Rome⁶⁶. These discussions,

however, probably turned solely on Greek words, and the interpretation of Greek authors. It is not likely that Crates had such a knowledge of the Latin tongue, as to give lectures on a subject which requires minute and extensive acquaintance with the language. His instructions, however, had the effect of fixing the attention of the Romans on their own language, and on their infant literature. Men sprung up who commented [pg 36]on, and explained, the few Latin poems which at that time existed. C. Octavius Lampadius illustrated the Punic War of Nævius; and also divided that poem into seven books. About the same time, Q. Vargunteius lectured on the Annals of Ennius, on certain fixed days, to crowded audiences. Q. Philocomus soon afterwards performed a similar service for the Satires of his friend Lucilius. Among these early grammarians, Suetonius particularly mentions Ælius Preconinus and Servius Clodius. The former was the master of Varro and Cicero; he was also a rhetorician of eminence, and composed a number of orations for the Patricians, to whose cause he was so ardently attached, that, when Metellus Numidicus was banished in 654, he accompanied him into exile. Serv. Clodius was the son-in-law of Lælius, and fraudulently appropriated, it is said, a grammatical work, written by his distinguished relative, which shows the honour and credit by this time attached to such pursuits at Rome. Clodius was a Roman knight; and, from his example, men of rank did not disdain to write concerning grammar, and even to teach its principles. Still, however, the greater number of grammarians, at least of the verbal grammarians, were slaves. If well versed in the science, they brought, as we learn from Suetonius, exorbitant prices. Luctatius Daphnis was purchased by Quintus Catulus for 200,000 pieces of money, and shortly afterwards set at liberty. This was a strong encouragement for masters to instruct their slaves in grammar, and for them to acquire its rules. Sævius Nicanor, and Aurelius Opilius, who wrote a commentary, in nine books, on different writers, were freedmen, as was also Antonius Gniphos, a Gaul, who had been taught Greek at Alexandria, whither he was carried in his youth, and was subsequently instructed in Latin literature at Rome. Though a man of great learning in the science he professed, he left only two small volumes on the Latin language—his time having been principally occupied in teaching. He taught first in the house of the father of Julius Cæsar, and afterwards lectured at home to those who chose to attend him. The greatest men of Rome, when far advanced in age and dignity, did not disdain to frequent his school. Many of his precepts, indeed, extended to rhetoric and

declamation, the arts, of all others, in which the Romans were most anxious to be initiated. These were now taught in the schools of almost all grammarians, of whom there were, at one time, upwards of twenty in Rome. For a long while, only the Greek poets were publicly explained, but at length the Latin poets were likewise commented on and illustrated. About the same period, the etymology of Latin words began [pg 37]to be investigated: Ælius Gallus, a jurisconsult quoted by Varro, wrote a work on the origin and proper signification of terms of jurisprudence, which in most languages remain unvaried, till they have become nearly unintelligible; and Ælius Stilo attempted, though not with perfect success, to explain the proper meaning of the words of the Salian verses, by ascertaining their derivations⁶⁷.

The science of grammar and etymology was in this stage of progress and in this degree of repute at the time when Varro wrote his celebrated treatise *De Lingua Latina*. That work originally consisted of twenty-four books—the first three being dedicated to Publius Septimius, who had been his quæstor in the war with the pirates, and the remainder to Cicero. This last dedication, with that of Cicero's *Academica* to Varro, has rendered their friendship immortal. The importance attached to such dedications by the great men of Rome, and the value, in particular, placed by Cicero on a compliment of this nature from Varro, is established by a letter of the orator to Atticus—"You know," says he, "that, till lately, I composed nothing but orations, or some such works, into which I could not introduce Varro's name with propriety. Afterwards, when I engaged in a work of more general erudition, Varro informed me, that his intention was, to address to me a work of considerable extent and importance. Two years, however, have passed away without his making any progress. Meanwhile, I have been making preparations for returning him the compliment⁶⁸." Again, "I am anxious to know how you came to be informed that a man like Varro, who has written so much, without addressing anything to me, should wish me to pay him a compliment⁶⁹." The *Academica* were dedicated to Varro before he fulfilled his promise of addressing a work to Cicero; and it appears, from Cicero's letter to Varro, sent along with the *Academica*, how impatiently he expected its performance, and how much he importuned him for its execution.—"To exact the fulfilment of a promise," says he, "is a sort of ill manners, of which the populace themselves are seldom guilty. I cannot,

however, forbear—I will not say, to demand, but remind you, of a favour, which you long since gave me reason to expect. To this end, I have sent you four admonitors, (the four books of the *Academica*,) whom, perhaps, you will not consider as extremely modest⁷⁰.” It is curious, that, when Varro did at length come forth with his [pg 38]dedication, although he had been highly extolled in the *Academica*, he introduced not a single word of compliment to Cicero—whether it was that Varro dealt not in compliment, that he was disgusted with his friend’s insatiable appetite for praise, or that Cicero was considered as so exalted that he could not be elevated higher by panegyric.

We find in the work *De Lingua Latina*, which was written during the winter preceding Cæsar’s death, the same methodical arrangement that marks the treatise *De Re Rustica*. The twenty-four books of which it consisted, were divided into three great parts. The first six books were devoted to etymological researches, or, as Varro himself expresses it, *quemadmodum vocabula essent imposita rebus in lingua Latina*. In the first, second, and third books, of this division of his work, all of which have perished, the author had brought forward what an admirer of etymological science could advance in its favour—what a depreciator might say against it; and what might be pronounced concerning it without enthusiasm or prejudice.—“Quæ contra eam dicentur, quæ pro ea, quæ de ea.” The fragments remaining of this great work of Varro, commence at the fourth book, which, with the two succeeding books, is occupied with the origin of Latin terms and the poetical licenses that have been taken in their use: He first considers the origin of the names of places, and of those things which are in them. His great division of places is, into heaven and earth—*Cælum* he derives from *cavum*, and that, from *chaos*; *terra* is so called *quia teritur*. The derivation of the names of many terrestrial regions is equally whimsical. The most rational are those of the different spots in Rome, which are chiefly named after individuals, as the Tarpeian rock, from Tarpeia, a vestal virgin slain by the Sabines—the Cœlian Mount, from Cœlius, an Etrurian chief, who assisted Romulus in one of his contests with his neighbours. Following the same arrangement with regard to those things which *are in* places, he first treats of the immortals, or gods of heaven and earth. Descending to mortal things, he treats of animals, whom he considers as in three places—air, water, and earth. The creatures inhabiting earth he divides into men, cattle,

and wild beasts. Of the appellations proper to mankind, he speaks first of public honours, as the office of Prætor, who was so called, “quod præiret exercitui.” We have then the derivations both of the generic and special names of animals. Thus, *Armenta* (quasi *aramenta*) is from *aro*, because oxen are used for ploughing; *Lepus* is quasi *Levipēs*. The remainder of the book is occupied with those words which relate to food, clothing, and various sorts [pg 39]of utensils. Of these, the derivation is given, and it is generally far-fetched. But of all his etymologies, the most whimsical is that contained in his book of Divine Things, where he deduces *fur* from *furvus*, (dusky,) because thieves usually steal during the darkness of night⁷¹.

The fifth book relates to words expressive of time and its divisions, and to those things which are done in the course of time. He begins with the months and days consecrated to the service of the gods, or performance of accustomed rites. Things which happen during the lapse of time, are divided into three classes, according to the three great human functions of thought, speech, and act. The third class, or actions, are performed by means of the external senses; the mention of which introduces the explication of those terms which express the various operations of the senses; and the book terminates with a list of vocables derived from the Greek. These two books relate the common employment of words. In the sixth, the author treats of poetic words, and the poetic or metaphoric use of ordinary terms, of which he gives examples. Here he follows the same arrangement already adopted—speaking first of places, and then of time, and showing, as he proceeds, the manner in which poets have changed or corrupted the original signification of words.

Such is the first division of the work of Varro, forming what he himself calls the etymological part. He admits that it was a subject of much difficulty and obscurity, since many original words had become obsolete in course of time, and of those which survived, the meaning had been changed or had never been imposed with exactness. The second division, which extended from the commencement of the seventh to the end of the twelfth book, comprehended the accidents of words, and the different changes which they undergo from declension, conjugation, and comparison. The author admits but of two kinds of words—nouns and verbs, to which he refers all the other parts of speech. He distinguishes two sorts of

declensions, of which he calls one arbitrary, and the other natural or necessary; and he is thenceforth alternately occupied with analogy and anomaly. In the seventh book he discusses the subject of analogy in general, and gives the arguments which may be adduced against its existence in nouns proper: In the eighth, he reasons like those who find analogies everywhere. Book ninth treats of the analogy and anomaly of verbs, and with it the fragment we possess of Varro's treatise terminates. The three other books, which completed the second part, were [pg 40]of course occupied with comparison and the various inflections of words.

The third part of the work, which contained twelve books, treated of syntax, or the junction of words, so as to form a phrase or sentence. It also contained a sort of glossary, which explained the true meaning of Latin vocables.

This, which may be considered as one of the chief works of Varro, was certainly a laborious and ingenious production; but the author is evidently too fond of deriving words from the ancient dialects of Italy, instead of recurring to the Greek, which, after the capture of Tarentum, became a great source of Latin terms. In general, the Romans, like the Greeks before them, have been very unfortunate in their etymologies, being but indifferent critics, and inadequately informed of everything that did not relate to their own country. Blackwell, in his *Court of Augustus*, while he admits that the sagacity of Varro is surprising in the use which he has made of the knowledge he possessed of the Sabine and Tuscan dialects, remarks, that his work, *De Lingua Latina*, is faulty in two particulars; the first, arising from the author having recourse to far-fetched allusions and metaphors in his own language, to illustrate his etymology of words, instead of going at once to the Greek. The second, proceeding from his ignorance of the eastern and northern languages, particularly the Aramean and Celtic⁷²; the former of which, in Blackwell's opinion, had given names to the greater number of the gods, and the latter, to matters occurring in war and rustic life.

It is not certain whether the *Libri De Similitudine Verborum*, and those *De Utilitate Sermonis*, cited by Priscian and Charisius as philological works of Varro, were parts of his great production, *De Lingua Latina*, or separate compositions. There was a distinct treatise, however, *De Sermone Latino*,

addressed to Marcellus, of which a very few fragments are preserved by Aulus Gellius.

The *critical* works of this universal scholar, were entitled, *De Proprietate Scriptorum—De Poetis—De Poematis—Theatrales, sive de Actionibus Scenicis—De Scenicis Originibus—De Plautinis Comædiis—De Plautinis Quæstionibus—De Compositione Satirarum—Rhetoricorum Libri*. These works are praised or mentioned by Gellius, Nonius Marcellus, and Diomedes; but almost nothing is known of their contents.

Somewhat more may be gathered concerning Varro's *mythological* or *theological* works, as they were much studied, and [pg 41]very frequently cited by the early fathers, particularly St Augustine and Lactantius. Of these the chief is the treatise *De Cultu Deorum*, noticed by St Augustine in his seventh book, *De Civitate Dei*, where he says that Varro considers God to be not only the soul of the world, but the world itself. In this work he also treated of the origin of hydromancy, and other superstitious divinations. Sixteen books of the treatise *De Rerum Humanarum et Divinarum Antiquitatibus*, addressed to Julius Cæsar, as Pontifex Maximus, related to theological, or at least what we might call ecclesiastical subjects. He divides theology into three sorts—mythic, physical, and civil. The first is chiefly employed by poets, who have feigned many things contrary to the nature and dignity of the immortals, as that they sprung from the head, or thigh, or from drops of blood—that they committed thefts and impure actions, and were the servants of men. The second species of theology is that which we meet with in the books of philosophers, in which it is discussed, whether the gods have been from all eternity, and what is their essence, whether of fire, or numbers, or atoms. Civil, or the third kind of theology, relates to the institutions devised by men, for the worship of the Gods. The first sort is most appropriate to the stage; the second to the world; the third to the city. Varro was a zealous advocate for the physical explication of the mythological fables, to which he always had recourse, when pressed by the difficulties of their literal meaning⁷³. He also seems to have been of opinion that the images of the gods were originally intended to direct such as were acquainted with the secret doctrines, to the contemplation of the real gods, and of the immortal soul with its constituent parts⁷⁴. The first book of this work, as we learn from St Augustine, was introductory. The three following

treated of the ministers of religion, the Pontiffs, Augurs, and Sibyls; in mentioning whom, he relates the well-known story of her who offered her volumes for sale to Tarquinius Priscus. In the next ternary of chapters, he discoursed concerning places appointed for religious worship, and the celebration of sacred rites. The third ternary related to holidays; the fourth to consecrations, and to private as well as public sacrifices; and the fifth contained an enumeration of all the deities who watch over man, from the moment when Janus opens to him the gates of life, till the dirges of Nænia conduct him to the tomb. The whole universe, he says, in conclusion, is divided into heaven [pg 42]and earth; the heavens, again, into æther and air; earth, into the ground and water. All these are full of souls, mortal in earth and water, but immortal in air and æther. Between the highest circle of heaven and the orbit of the moon, are the ethereal souls of the stars and planets, which are understood, and in fact seem, to be celestial deities; between the sphere of the moon and the highest region of tempests, dwell those aerial spirits, which are conceived by the mind though not seen by the eye—departed heroes, Lares, and Genii.

This work, which is said to have chiefly contributed to the splendid reputation of Varro, was extant as late as the beginning of the fourteenth century. Petrarch, to whom the world has been under such infinite obligations for his ardent zeal in discovering the learned works of the Romans, had seen it in his youth. It continued ever after to be the object of his diligent search, and his bad success was a source to him of constant mortification. Of this we are informed in one of the letters, which that enthusiastic admirer of the ancients addressed to them as if they been alive, and his contemporaries. “Nullæ tamen exstant,” says he to Varro, “vel admodum laceræ, tuorum operum reliquiæ; licet divinarum et humanarum rerum libros, ex quibus sonantius nomen habes, puerum me vidisse meminerim, et recordatione torqueor, summis, ut aiunt, labiis gustatæ dulcedinis. Hos alicubi forsitan latitare suspicor, eaque, multos jam per annos, me fatigat cura, quoniam longâ quidem ac sollicitâ spe nihil est laboriosius in vitâ.”

Plutarch, in his life of Romulus, speaks of Varro as a man of all the Romans most versed in history. The *historical* and political works are the *Annales Libri—Bellî Punici Secundi Liber—De Initiis Urbis Romanæ—De Gente*

Populi Romani—Libri de Familiis Trojanis, which last treated of the families that followed Æneas into Italy. With this class we may rank the *Hebdomadum, sive de Imaginibus Libri*, containing the panegyrics of 700 illustrious men. There was a picture of each, with a legend or verse under it, like those in the children's histories of the Kings of England. That annexed to the portrait of Demetrius Phalereus, who had upwards of 300 brazen statues erected to him by the Athenians, is still preserved:—

“Hic Demetrius æneis tot aptus est
Quot luces habet annus absolutus.”

There were seven pictures and panegyrics in each book, whence the whole work has been called *Hebdomades*. Varro had adopted the superstitious notions of the ancients concern[pg 43]ing particular numbers, and the number seven seems specially to have commanded his veneration. There were in the world seven wonders—there were seven wise men among the Greeks—there were seven chariots in the Circensian games—and seven chiefs were chosen to make war on Thebes: All which he sums up with remarking, that he himself had then entered his twelfth period of seven years, on which day he had written seventy times seven books, many of which, in consequence of his proscription, had been lost in the plunder of his library. It appears from Ausonius, that the tenth book of this work was occupied with pictures and panegyrics of distinguished architects, since, in his *Eidyllium*, entitled *Mosella*, he observes, that the buildings on the banks of that river would not have been despised by the most celebrated architects; and that those who planned them might well deserve a place in the tenth book of the *Hebdomas* of Varro:—

“Forsan et insignes hominumque operumque labores
Hic habuit decimo celebrata volumine Marci
Hebdomas.” ——

It is evident, however, from one of the letters of Symmachus, addressed to his father, that though this was a professed work of panegyric, Varro was very sparing and niggardly of his praise even to the greatest characters: “Ille Pythagoram qui animas in æternitatem primus asseruit; ille Platonem qui deos esse persuasit; ille Aristotelem qui naturam bene loquendi in artem redegit; ille pauperem Curium sed divitibus imperantem; ille severos

Catones, gentem Fabiam, decora Scipionum, totumque illum triumphalem Senatum parca laude perstrinxit.” Varro also wrote an eulogy on Porcia, the wife of Brutus, which is alluded to by Cicero in one of his letters to Atticus. Among his notices of celebrated characters, it is much to be regretted that the *Liber de Vita Sua*, cited by Charisius, has shared the same fate as most of the other valuable works of Varro. The treatise entitled, *Sisenna, sive de Historia*, was a tract on the composition of history, inscribed to Sisenna, the Roman historian, who wrote an account of the civil wars of Marius and Sylla. It contained, it is said, many excellent precepts with regard to the appropriate style of history, and the accurate investigation of facts. But the greatest service rendered by Varro to history was his attempt to fix the chronology of the world. Censorinus informs us that he was the first who regulated chronology by eclipses. That learned grammarian has also mentioned the division of three great periods established by Varro. He did not determine whether the earliest [pg 44]of them had any beginning, but he fixed the end of it at the Ogygian deluge. To this period of absolute historical darkness, he supposed that a kind of twilight succeeded, which continued from that flood till the institution of the Olympic games, and this he called the fabulous age. From that date the Greeks pretend to digest their history with some degree of order and clearness. Varro, therefore, looked on it as the break of day, or commencement of the historical age. The chronology, however, of those events which occurred at the beginning of this second period, is as uncertain and confused as of those which immediately preceded it. Thus, the historical æra is evidently placed too high by Varro. The earliest writers of history did not live till long after the Olympian epoch, and they again long preceded the earliest chronologers. Timæus, about the time of Ptolemy Philadelphus, was the first who digested the events recorded by these ancient historians, according to a computation of the Olympiads⁷⁵. Preceding writers, indeed, mention these celebrated epochs, but the mode of reckoning by them was not brought into established use for many centuries after the Olympic æra. Arnobius farther informs us, that Varro calculated that not quite 2000 years had elapsed from the Ogygian flood to the consulship of Hirtius and Pansa. The building of Rome he placed two years higher than Cato had done in his *Origines*, founding his computation on the eclipse which had a short while preceded the birth of Romulus; but unfortunately this eclipse is not attested by contemporary authors, nor by any historian who could vouch for it with

certainty. It was calculated a long time after the phenomenon was supposed to have appeared, by Tarrutius Firmanus, the judicial astrologer, who amused himself with drawing horoscopes. Varro requested him to discover the date of Romulus's birth, by divining it from the known events of his life, as geometrical problems are solved by analysis; for Tarrutius considered it as belonging to the same art, (and doubtless the conclusions are equally certain,) when a child's nativity is given to predict its future life, and when the incidents of life are given to cast up the nativity. Tarrutius, accordingly, having considered the actions of Romulus, and the manner of his death, and having combined all the incidents, pronounced that he was conceived in the first year of the second Olympiad, on the 23d of the Egyptian month Choiok, on which day there had been a total eclipse of the sun.

Pompey, when about to enter for the first time on the office of Consul, being ignorant of city manners and senatorial [pg 45]forms, requested Varro to frame for him a written commentary or manual, from which he might learn the duties to be discharged by him when he convened the Senate. This book, which was entitled *Isagogicum de Officio Senatus habendi*, Varro says, in the letters which he wrote to Oppianus, had been lost. But in these letters he repeated many things on the subject, as what he had written before had perished⁷⁶.

The *philosophical* writings of Varro are not numerous; but his chief work of that description, entitled *De Philosophia Liber*, appears to have been very comprehensive. St Augustine informs us that Varro examined in it all the various sects of philosophers, of which he enumerated upwards of 280. The sect of the old Academy was that which he himself followed, and its tenets he maintained in opposition to all others. He classed these numerous sects in the following curious manner: All men chiefly desire, or place their happiness in, four things—pleasure—rest—these two united, (which Epicurus, however, termed pleasure,) or soundness of body and mind. Now, philosophers have contended that virtue is to be sought after for the sake of obtaining one or other of these four; or, that some one of these four is to be sought after for the sake of virtue; or, that they and virtue also are to be sought after for their own sake, and from these different opinions each of the four great objects of human desire being sought after with three

different views, there are formed twelve sects of philosophers. These twelve sects are doubled, in consequence of the different opinions created by the considerations of social intercourse—some maintaining that the four great desires should be gratified for our own sake, and others, that they should be indulged only for the sake of our neighbours. The above twenty-four sects become forty-eight, from each system being defended as certain truth, or as merely the nearest approximation to probability—twenty-four sects maintaining each hypothesis as certain, and twenty-four as only probable. These again were doubled, from the difference of opinion with regard to the suitable garb and external habit and demeanour of philosophers.

We have now got ninety-six sects by a very strange sort of computation, and all these are to be tripled, according to the different opinions entertained concerning the best mode of spending life—in literary leisure, in business, or in both⁷⁷.

Varro having followed the sect of the old Academy, in preference to all others, proceeded to refute the principles of [pg 46]the sects he had enumerated. He cleared the way, by dismissing, as unworthy the name of philosophical, all those sects whose differences did not turn on what is the supreme final good; for there is no use in philosophizing, unless it be to make us happy, and that which makes us happy is the final good. But those who dispute, for example, whether a wise man should follow virtue, tranquillity, &c. partly for the sake of others, or solely for his own, do not dispute concerning what is the final good, but whether that good should be shared. In like manner, the Cynic does not dispute with regard to the supreme good, but in what dress or habit he who follows the supreme good should be clad. So also as to the controversy concerning the uncertainty of knowledge. The number of sects were thus reduced to the twelve with which our author set out, and in which the whole question relates to what is the final good. From these, however, he abstracted the sects which place the final good in pleasure, rest, or the union of both—not that he altogether disdained these, but he thought they might be included in soundness of body and mind, or what he called the *prima Naturæ*. There are thus only three questions which merit full discussion. Whether these *prima Naturæ* should be desired for the sake of virtue, or virtue for their sake, or if they and virtue also should be desired for their own sake.

Now, since in philosophy we seek the supreme felicity of man, we must inquire what man is. His nature is compounded of soul and body. Hence the *summum bonum* necessarily consists in the *prima Naturæ* or perfect soundness of mind and body. These, therefore, must be sought on their own account; and under them may be included virtue, which is part of soundness of mind, being the great director and prime former of the felicity of life.

Such were the doctrines of the old Academy, which Varro was also introduced as supporting in Cicero's *Academica*.—"I have comprehended," says that illustrious orator and philosopher, in a letter to Atticus, "the whole Academic system in four books, instead of two, in the course of which Varro is made to defend the doctrines of Antiochus⁷⁸. I have put into his mouth all the arguments which were so accurately collected by Antiochus against the opinion of those who contend that there is no certainty to be attained in human knowledge. These I have answered myself. But the part assigned to Varro in the debate is so good, that I do not think the cause which I support appears the better."

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I am not certain under what class Varro's *Novem libri Disciplinarum* should be ranked, as it probably comprehended instructive lessons in the whole range of arts and sciences. One of the chapters, according to Vitruvius, was on the subject of architecture. Varro was particularly full and judicious in his remarks on the construction and situation of Roman villas, and seems to have laid the foundation for what Palladius and Columella subsequently compiled on that interesting topic. Another chapter was on arithmetic; and Fabricius mentions, that Vetranius Maurus has declared, in his *Life of Varro*, that he saw this part of the work, *De Disciplinis*, at Rome, in the library of the Cardinal Lorenzo Strozzi.

Varro derived much notoriety from his *satirical* compositions. His *Tricarenus*, or *Tricipitina*, was a satiric history of the triumvirate of Cæsar, Pompey, and Crassus. Much pleasantry and sarcasm were also interspersed in his books entitled *Logistorici*; but his most celebrated production in that line was the satire which he himself entitled *Menippean*. It was so called from the cynic Menippus of Gadara, a city in Syria, who, like his countryman Meleager, was in the habit of expressing himself jocularly on

the most grave and important subjects. He was the author of a *Symposium*, in the manner of Xenophon. His writings were interspersed with verses, parodied from Homer and the tragic poets, or ludicrously applied, for the purpose of burlesque. It is not known, however, that he wrote any professed satire. The appellation, then, of *Menippean*, was given to his satire by Varro, not from any production of the same kind by Menippus, but because he imitated his general style of humour. In its external form it appears to have been a sort of literary anomaly. Greek words and phrases were interspersed with Latin; prose was mingled with verses of various measures; and pleasantry with serious remark. As to its object and design, Cicero introduces Varro himself explaining this in the *Academica*. After giving his reasons for not writing professedly on philosophical subjects, he continues,—“In those ancient writings of ours, we, imitating Menippus, without translating him, have infused a degree of mirth and gaiety along with a portion of our most secret philosophy and logic, so that even our unlearned readers might more easily understand them, being, as it were, invited to read them with some pleasure. Besides, in the discourses we have composed in praise of the dead, and in the introductions to our antiquities, it was our wish to write in a manner worthy of philosophers, provided we have attained the desired object.” From what Cicero afterwards says in this dialogue, while addressing himself to Varro, it would appear, that he [pg 48] had indeed touched on philosophical subjects in his *Menippean* satire, but that, learned as he was, his object was more to amuse his readers than instruct them: “You have entered on topics of philosophy in a manner sufficient to allure readers to its study, but inadequate to convey full instruction, or to advance its progress.”

Many fragments of this *Menippean* satire still remain, but they are much broken and corrupted. The heads of the different subjects, or chapters, contained in it, amounting to near one hundred and fifty, have been given by Fabricius in alphabetical order. Some of them are in Latin, others in Greek. A few chapters have double titles; and, though little remains of them but the titles, these show what an infinite variety of subjects was treated by the author. As a specimen, I subjoin those ranged under the letter A. Aborigines,—Περί Αὐθροπῶν φύσεως,—De Admirandis, vel Gallus Fundanius,—Αγαθὸν,—Age modo,—Αἰεὶ διβύη, vel περί Αἵρεσεων,—Ajax Stramentitius,—Ἄλλος οὗτος Ἡρακλῆς,—Andabatæ,—

Anthropopolis,—περι Αρχης, seu Marcopolis,—περι Αρχαιρεσιων, seu Serranus,—περι Αρετης κτησεως,—περι Αφροδισιων, seu vinalia,—Armorum iudicium,—περι Αρρενοτητος, seu Triphallus,—Autumedus,—Μæonius,—Baiaë, &c.⁷⁹

There is a chapter concerning the duty of a husband, (De officio Mariti,) in which the author observes, that the errors of a wife are either to be cured or endured: He who extirpates them makes his wife better, but he who bears with them improves himself. Another is inscribed, “You know not what a late evening, or supper, may bring with it,” (Nescis quid vesper serus vehat.) In this chapter he remarks, that the number of guests should not be less than that of the Graces, or more than that of the Muses. To render an entertainment perfect, four things must concur—agreeable company, suitable place, convenient time, and careful preparation. The guests should not be loquacious or taciturn. Silence is for the bed-chamber, and eloquence for the Forum, but neither for a feast. The conversation ought not to turn on anxious or difficult subjects, but should be cheerful and inviting, so that utility may be combined with a certain degree of pleasure and allurements. This will be best managed, by discoursing of those things which relate to the ordinary occurrences or affairs of life, concerning which one has not leisure to talk in the Forum, or while transacting business. The master of the feast should rather be neat and clean than splendidly attired; and if he introduce reading into the entertainment, it should be so [pg 49]selected as to amuse, and to be neither troublesome nor tedious⁸⁰. A third chapter is entitled, περι ἔδεσµατων; and treats of the rarer delicacies of an entertainment, especially foreign luxuries. Au. Gellius has given us the import of some verses, in which Varro mentioned the different countries which supplied the most exquisite articles of food. Peacocks came from Samos; cranes from Melos; kids from Ambracia; and the best oysters from Tarentum⁸¹. Part of the chapter γνωθι σεαυτου was directed against the Latin tragic poets.

What remains of the verses interspersed in the *Menippean* satire, is too trifling to enable us to form any accurate judgment of the poetical talents of Varro.

The style of satire introduced by Varro was imitated by Lucius Annæus Seneca, in his satire on the deification of Claudius Cæsar, who was called on earth Divus Claudius. The *Satyricon* of Petronius Arbiter, in which that writer lashed the luxury, and avarice, and other vices of his age, is a satire of the Varronian species, prose being mingled with verse, and jest with serious remark. Such, too, are the Emperor Julian's *Symposium of the Cæsars*, in which he characterizes his predecessors; and his *Μισοπωγων*, directed against the luxurious manners of the citizens of Antioch.

Besides the works of Varro above mentioned, there is a miscellaneous collection of sentences or maxims which have been attributed to him, though it is not known in what part of his numerous writings they were originally introduced. Barthius found seventeen of these sentences in a MS. of the middle age, and printed them in his *Adversaria*. Schneider afterwards discovered, in the *Speculum Historiale* of Vincent de Beauvais, a monk of the thirteenth century, a much more ample collection of them, which he has inserted in his edition of the *Scriptores rei Rusticæ*⁸². They consist of moral maxims, in the style of those preserved from the Mimes of Publius Syrus, and had doubtless been culled as flowers from the works of Varro, at a time when the immense garden of taste and learning which he planted, had not yet been laid waste by the hand of time, or the spoiler⁸³.

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Though the above list of the works of Varro is far from complete, a sufficient number has been mentioned to justify the exclamation of Quintilian,—“Quam multa, immo pene omnia tradidit Varro!” and the more full panegyric of Cicero,—“His works brought us home, as it were, while we were foreigners in our own city, and wandering like strangers, so that we might know who and where we were; for in them are laid open the chronology of his country,—a description of the seasons,—the laws of religion,—the ordinances of the priests,—domestic and military occurrences,—the situations of countries and places,—the names of all things divine and human,—the breed of animals,—moral duties,—and the origin of things⁸⁴.”

Nor did Varro merely delight and instruct his fellow-citizens by his writings. By his careful attention, in procuring the most valuable books, and

establishing libraries, he provided, perhaps, still more effectually than by his own learned compositions, for the progressive improvement and civilization of his countrymen. The formation of either private or public libraries was late of taking place at Rome, for the Romans were late in attending to literary studies. Tiraboschi quotes a number of writers who have discovered a library in the public records preserved at Rome⁸⁵, and in the books of the Sibyls⁸⁶. But these, he observes, may be classed with the library which Madero found to have existed before the flood, and that belonging to Adam, of which Hilscherus has made out an exact catalogue⁸⁷. From Syracuse and Corinth the Romans brought away the statues and pictures, and other monuments of the fine arts; but we do not learn that they carried to the capital any works of literature or science. Some agricultural books found their way to Rome from Africa, on the destruction of Carthage; but the other treasures of its libraries, though they fell under the power of a conqueror not without pretensions to taste and erudition, were bestowed on the African princes in alliance with the Romans⁸⁸.

Paulus Emilius is said by Plutarch to have allowed his sons to choose some volumes from the library of Perseus, King of Macedon⁸⁹, whom he led captive to Rome in 585. But the honour of first possessing a library in Rome is justly due to Sylla; who, on the occupation of Athens, in 667, acquired the library of Apellicon, which he discovered in the temple of [pg 51]Apollo. This collection, which contained, among various other books, the works of Aristotle and Theophrastus, was reserved to himself by Sylla from the plunder; and, having been brought to Rome, was arranged by the grammarian Tyrannio, who also supplied and corrected the mutilated text of Aristotle⁹⁰. Engaged, as he constantly was, in domestic strife or foreign warfare, Sylla could have made little use of this library, and he did not communicate the benefit of it to scholars, by opening it to the public; but the example of the Dictator prompted other commanders not to overlook the libraries, in the plunder of captured cities, and books thus became a fashionable acquisition. Sometimes, indeed, these collections were rather proofs of the power and opulence of the Roman generals, than of their literary taste or talents. A certain value was now affixed to manuscripts; and these were, in consequence, amassed by them, from a spirit of rapacity, and the principle of leaving nothing behind which could be carried off by force or stratagem. In one remarkable instance, however, the learning of the

proprietor fully corresponded to the literary treasures which he had collected. Lucullus, a man of severe study, and wonderfully skilled in all the fine arts, after having employed many years in the cultivation of literature, and the civil administration of the republic, was unexpectedly called, in consequence of a political intrigue, to lead on the Roman army in the perilous contest with Mithridates; and, though previously unacquainted with military affairs, he became the first captain of the age, with little farther experience, than his study of the art of war, during the voyage from Rome to Asia. His attempts to introduce a reform in the corrupt administration of the Asiatic provinces, procured him enemies, through whose means he was superseded in the command of the army, by one who was not superior to him in talents, and was far inferior in virtue. After his recall from Pontus, and retreat to a private station, he offered a new spectacle to his countrymen. He did not retire, like Fabricius and Cincinnatus, to plough his farm, and eat turnips in a cottage—he did not, like Africanus, quit his country in disgust, because it had unworthily treated him; nor did he spend his wealth and leisure, like Sylla, in midnight debauchery with buffoons and parasites. He employed the riches he had acquired during his campaigns in the construction of delightful villas, situated on the shore of the sea, or hanging on the declivities of hills. Gardens and spacious porticos, which he adorned with all the elegance of painting [pg 52]and sculpture, made the Romans ashamed of their ancient rustic simplicity. These would doubtless be the objects of admiration to his contemporaries; but it was his library, in which so many copies of valuable works were multiplied or preserved, and his distinguished patronage of learning, that claim the gratitude of posterity. “His library,” says Plutarch, “had walks, galleries, and cabinets belonging to it, which were open to all visitors; and the ingenious Greeks resorted to this abode of the muses to hold literary converse, in which Lucullus delighted to join them⁹¹.” Other Roman patricians had patronized literature, by extending their protection to a favoured few, as the elder Scipio Africanus to Ennius, and the younger to Terence; but Lucullus was the first who encouraged all the arts and sciences, and promoted learning with princely munificence.

But the slave Tyrannio vied with the most splendid of the Romans in the literary treasures he had amassed. A native of Pontus, he was taken prisoner by Lucullus, in the course of the war with Mithridates; and, having been

brought to Rome, he was given to Muræna, from whom he received freedom⁹². He spent the remainder of his life in teaching rhetoric and grammar. He also arranged the library of Cicero at Antium⁹³, and taught his nephew, Quintus, in the house of the orator⁹⁴. These various employments proved so profitable, that they enabled him to acquire a library of 30,000 volumes⁹⁵. Libraries of considerable extent were also formed by Atticus and Cicero; and *Varro* was not inferior to any of his learned contemporaries, in the industry of collecting and transcribing manuscripts, both in the Greek and Latin language.

The library of *Varro*, however, and all the others which we have mentioned, were private—open, indeed, to literary men, from the general courtesy of the possessors, but the access to them still dependent on their good will and indulgence. Julius Cæsar was the first who formed the design of establishing a great public library; and to *Varro* he assigned the task of arranging the books which he had procured. This plan, which was rendered abortive by the untimely fate of Cæsar, was carried into effect by *Asinius Pollio*, who devoted part of the wealth he had acquired from the spoils of war, to the construction of a magnificent gallery, adjacent to the Temple [pg 53]of Liberty, which he filled with books, and the busts of the learned. *Varro* was the only living author who, in this public library, had the honour of an image⁹⁶, which was erected to him as a testimony of respect for his universal erudition. He also aided Augustus with his advice, in the formation of the two libraries which that emperor established, and which was part of his general system for the encouragement of science and learning. When tyrants understand their trade, and when their judgment is equal to their courage or craft, they become the most zealous and liberal promoters of the interests of learning; for they know that it is for their advantage to withdraw the minds of their subjects from political discussion and to give them, in exchange, the consoling pleasures of imagination, and the inexhaustible occupations of scientific curiosity.

Were I writing the history of Roman arts, it would be necessary to mention that *Varro* excelled in his knowledge of all those that are useful, and in his taste for all those that are elegant. He was the contriver of what may be considered as the first hour clock that was made in Rome, and which measured time by a hand entirely moved by mechanism. That he also

possessed a Museum, adorned with exquisite works of sculpture, we learn from Pliny, who mentions, that it contained an admirable group, by the statuary Archelaus, formed out of one block of marble, and representing a lioness, with Cupids sporting around her—some giving her drink from a horn; some in the attitude of putting socks on her paws, and others in the act of binding her. The same writer acquaints us, that, in the year 692, Varro, who was then Curule Ædile, caused a piece of painting, in fresco, to be brought from Sparta to Rome, in order to adorn the Comitium—the whole having been cut out entire, and enclosed in cases of wood. The painting was excellent, and much admired; but what chiefly excited astonishment, was that it should have been taken from the wall without injury, and transported safe to Italy⁹⁷.

I fear I have too long detained the reader with this account of the life and writings of Varro; yet it is not unpleasing to dwell on such a character. He was the contemporary of Marius and Sylla, of Cæsar and Pompey, of Antony and Octavius, these men of contention and massacre; and amid the convulsions into which they threw their country, it is not ungrateful to trace the *Secretum Iter*, which he silently pursued through a period unparalleled in anarchy and crimes. Uninterrupted, save for a moment, by strife and ambition, he [pg 54]prosecuted his literary labours till the extreme term of his prolonged existence. “In eodem enim lectulo,” says Valerius Maximus, with a spirit and eloquence beyond his usual strain of composition—“In eodem enim lectulo, et spiritus ejus, et egregiorum operum cursus extinctus est.”

NIGIDIUS FIGULUS

was a man much resembling Varro, and next to him was accounted the most learned of the Romans⁹⁸. He was the contemporary of Cicero, and one of his chief advisers and associates in suppressing the conspiracy of Catiline⁹⁹. Shortly afterwards he arrived at the dignity of Prætor, but having espoused the part of Pompey in the civil wars, he was driven into banishment on the accession of Cæsar to the supreme power, and died in 709, before Cicero could obtain his recall from exile¹⁰⁰. He was much addicted to judicial astrology; and ancient writers relate a vast number of his predictions, particularly that of the empire of the world to Augustus, which he presaged immediately after the birth of that prince¹⁰¹.

Nigidius vied with Varro in multifarious erudition, and the number of his works—grammar, criticism, natural history, and the origin of man, having successively employed his pen. His writings are praised by Cicero, Pliny, Aulus Gellius, and Macrobius; but they were rendered almost entirely unfit for popular use by their subtlety, mysteriousness, and obscurity¹⁰²—defects to which his cultivation of judicial astrology, and adoption of the Pythagorean philosophy, may have materially contributed. Aulus Gellius gives many examples of the obscurity, or rather unintelligibility, of his grammatical writings¹⁰³. His chief work was his Grammatical Commentaries, in thirty books, in which he attempted to show, that names and words were fixed not by accidental application, but by a certain power and order of nature. One of his examples, of terms being rather natural than arbitrary, was taken from the word *Vos*, in pronouncing which, he observed, that we use a certain motion of the mouth, agreeing with what the word itself expresses: We protrude, by degrees, the tips of our lips, and thrust forward our breath and mind towards those with whom we are engaged in conversation. On the other hand, when we say *nos*, we do not pronounce it with a broad and expanded blast of the voice, nor with projecting lips, but we restrain our breath and lips, as it were, within ourselves. The like natural signs accompany the utterance of the words *tu* and *ego*—*tibi*

and *mihi*¹⁰⁴. Nigidius also wrote works, entitled *De Animalibus*, *De Ventis*, *De Extis*, and a great many treatises on the nature of the gods. All these have long since perished, except a very few fragments, which have been collected and explained by Janus Rutgersius, in the third book of his *Variæ Lectiones*, published at Leyden in 1618; 4to. In this collection he has also inserted a Greek translation of another lost work of Nigidius, on the presages to be drawn from thunder. The original Latin is said to have been taken from books which bore the name of the Etruscan Tages, the supposed founder of the science of divination. The Greek version was executed by Laurentius, a philosopher of the age of Justinian, and his translation was discovered by Meursius, about the beginning of the seventeenth century, in the Palatine library. It is a sort of Almanack, containing presages of thunder for each particular day of the year, and beginning with June. If it thunder on the 13th of June, the life or fortunes of some great person are menaced—if on the 19th of July, war is announced—if on the 5th of August, it is indicated that those women, with whom we have any concern, will become somewhat more reasonable than they have hitherto proved¹⁰⁵.

With Varro and Nigidius Figulus, may be classed Tiro, the celebrated freedman of Cicero, and constant assistant in all his literary pursuits. He wrote many books on the use and formation of the Latin language, and others on miscellaneous subjects, which he denominated *Pandectas*¹⁰⁶, as comprehending every sort of literary topic.

Quintus Cornificius, the elder, was also a very general scholar. He composed a curious treatise on the etymology of the names of things in heaven and earth, in which he discovered great knowledge, both of Roman antiquities, and the most recondite Grecian literature. It was here he introduced an explication of Homer's dark fable, where Jupiter and all the gods proceed to feast for twelve days in Ethiopia. The work was written in 709, during the time of Cæsar's last expedition to Spain, and was probably intended as a supplement to Varro's treatise on a similar topic.

HISTORY.

From our supposing that those things which affected our ancestors may affect us, and that those which affect us must affect posterity, we become fond of collecting memorials of prior events, and also of preserving the remembrance of incidents which have occurred in our own age. The historic passion, if it may be so termed, thus naturally divides itself into two desires—that of indulging our own curiosity, and of relating what has occurred to ourselves or our contemporaries.

Monuments accordingly have been raised, and rude hymns composed, for this purpose, by people who had scarcely acquired the use of letters. Among civilized nations, the passion grows in proportion to the means of gratifying it, and the force of example comes to be so strongly felt, that its power and influence are soon historically employed.

The Romans were, in all ages, particularly fond of giving instruction, by every sort of example. They placed the images of their ancestors in the Forum and the vestibules of their houses, so that these venerable forms everywhere met their eyes; and by recalling the glorious actions of the dead, excited the living to emulate their forefathers. The virtue of one generation was thus transfused, by the magic of example, into those by which it was succeeded, and the spirit of heroism was maintained through many ages of the republic—

“Has olim virtus crevit Romana per artes:
Namque foro in medio stabant spirantia signa
Magnanimûm heroum; hîc Decios, magnosque Camillos
Cernere erat: vivax heroum in imagine virtus,
Invidiamque ipsis factura nepotibus, acri
Urgebat stimulo Romanum in prælia robur¹⁰⁷.”

History, therefore, among the Romans, was not composed merely to gratify curiosity, or satiate the historic passion, but also to inflame, by the force of example, and urge on to emulation, in warlike prowess. An insatiable thirst of military fame—an unlimited ambition of extending their empire—an unbounded confidence in their own force and courage—an impetuous overbearing spirit, with which all their enterprises were pursued, composed, in the early days of the Republic, the characteristics of Romans. To foment, and give fresh [pg 57]vigour to these, was a chief object of history.—“I have recorded these things,” says an old Latin annalist, after giving an account of Regulus, “that they who read my commentaries may be rendered, by his example, greater and better.”

Accordingly, the Romans had journalists or annalists, from the earliest periods of the state. The Annals of the Pontiffs were of the same date, if we may believe Cicero, as the foundation of the city¹⁰⁸; but others have placed their commencement in the reign of Numa¹⁰⁹, and Niebuhr not till after the battle of Regillus, which terminated the hopes of Tarquin¹¹⁰. In order to preserve the memory of public transactions, the Pontifex Maximus, who was the official historian of the Republic, annually committed to writing, on wooden tablets, the leading events of each year, and then set them up at his own house for the instruction of the people¹¹¹. These Annals were continued down to the Pontificate of Mucius, in the year 629, and were called *Annales Maximi*, as being periodically compiled and kept by the Pontifex Maximus, or *Publici*, as recording public transactions. Having been inscribed on wooden tablets, they would necessarily be short, and destitute of all circumstantial detail; and being annually formed by successive Pontiffs, could have no appearance of a continued history. They would contain, as Lord Bolingbroke remarks, little more than short minutes or memoranda, hung up in the Pontiff’s house, like the rules of the game in a billiard room: their contents would resemble the epitome prefixed to the books of Livy, or the Register of Remarkable Occurrences in modern Almanacks.

But though short, jejune, and unadorned, still, as records of facts, these annals, if spared, would have formed an inestimable treasure of early history. The Roman territory, in the first ages of the state, was so confined, that every event may be considered as having passed under the immediate observation of the sacred annalist. Besides, the method which, as Cicero

informs us, was observed in preparing these Annals, and the care that was taken to insert no fact, of which the truth had not been attested by as many witnesses as there were citizens at Rome, who were all entitled to judge and make their remarks on what ought either to be added or retrenched, must have formed the most authentic body of history that could be desired. The memory of transactions which were yet recent, and whose concomitant circumstances every one could remember, was therein transmitted to posterity. By these means, [pg 58]the Annals were proof against falsification, and their veracity was incontestibly fixed.

These valuable records, however, were, for the most part, consumed in the conflagration of the city, consequent on its capture by the Gauls—an event which was to the early history of Rome what the English invasion by Edward I. proved to the history of Scotland. The practice of the Pontifex Maximus preserving such records was discontinued after that eventful period. A feeble attempt was made to revive it towards the end of the second Punic war; and, from that time, the custom was not entirely dropped till the Pontificate of Mucius, in the year 629. It is to this second series of Annals, or to some other late and ineffectual attempt to revive the ancient Roman history, that Cicero must allude, when he talks of the Great Annals, in his work *De Legibus*¹¹², since it is undoubted that the pontifical records of events previous to the capture of Rome by the Gauls, almost entirely perished in the conflagration of the city¹¹³. Accordingly, Livy never cites these records, and there is no appearance that he had any opportunity of consulting them; nor are they mentioned by Dionysius of Halicarnassus, in the long catalogue of records and memorials which he had employed in the composition of his *Historical Antiquities*. The *books* of the Pontiffs, some of which were recovered in the search made to find what the flames had spared, are, indeed, occasionally mentioned. But these were works explaining the mysteries of religion, with instructions as to the ceremonies to be observed in its practical exercise, and could have been of no more service to Roman, than a collection of breviaries or missals to modern history.

Statues, inscriptions, and other public monuments, which aid in perpetuating the memory of illustrious persons, and transmitting to posterity the services they have rendered their country, were accounted, among the

Romans, as the most honourable rewards that could be bestowed on great actions; and virtue, in those ancient times, thought no recompense more worthy of her than the immortality which such monuments seemed to promise. Rome having produced so many examples of a disinterested patriotism and valour must have been filled with monuments of this description when taken by the Gauls. But these honorary memorials were thrown down along with the buildings, and buried in the ruins. If any escaped, it was but a small number; and the greatest part of [pg 59]those that were to be seen at Rome in the eighth century of the city, were founded on fabulous traditions which proved that the loss of the true monuments had occasioned the substitution of false ones. Had the genuine monuments been preserved at Rome, even till the period when the first regular annals began to be composed, though they would not have sufficed to restore the history entirely, they would have served at least to have perpetuated incontestably the memory of various important facts, to have fixed their dates, and transmitted the glory of great men to posterity.

On what then, it will be asked, was the Roman history founded, and what authentic records were preserved as materials for its composition? There were first the *Leges Regiæ*. These were diligently searched for, and were discovered along with the Twelve Tables, after the sack of the city: And all those royal laws which did not concern sacred matters, were publicly exposed to be seen and identified by the people¹¹⁴, that no suspicion of forgery or falsification might descend to posterity. These precautions leave us little room to doubt that the *Leges Regiæ*, and Laws of the Tables, were preserved, and that they remained as they had been originally promulgated by the kings and decemvirs. Such laws, however, would be of no greater service to Roman history, than what the *Regiam Majestatem* has been to that of Scotland. They might be useful in tracing the early constitution of the state, the origin of several customs, ceremonies, public offices, and other points of antiquarian research, but they could be of little avail in fixing dates, ascertaining facts, and setting events in their true light, which form the peculiar objects of civil history.

Treaties of peace, which were the pledges of the public tranquillity from without, being next to the laws of the greatest importance to the state, much care was bestowed, after the expulsion of the Gauls, in recovering as many

of them as the flames had spared. Some of them were the more easily restored, from having been kept in the temple of Jupiter Capitolinus, which the fury of the enemy could not reach¹¹⁵. Those which had been saved, continued to be very carefully preserved, and there is no reason to suspect them of having been falsified. Among the treaties which were rescued from destruction, Horace mentions those of the Kings, with the Gabii and the Sabines (*Fœdera Regum*¹¹⁶.) The former was that concluded by Tarquinius Superbus, and which, Dionysius [pg 60] of Halicarnassus informs us, was still preserved at Rome in his time, in the temple of Jupiter Fidius, on a buckler made of wood, and covered with an ox's hide, on which the articles of the treaty were written in ancient characters¹¹⁷. Dionysius mentions two treaties with the Sabines—the first was between Romulus and their king Tatius¹¹⁸; and the other, the terms of which were inscribed on a column erected in a temple, was concluded with them by Tullus Hostilius, at the close of a Sabine war¹¹⁹. Livy likewise cites a treaty made with the Ardeates¹²⁰; and Polybius has preserved entire another entered into with the Carthaginians, in the year of the expulsion of the kings¹²¹. Pliny has also alluded to one of the conditions of a treaty which Porsenna, the ally of Tarquin, granted to the Roman people¹²². Now these leagues with the Gabii, Sabines, Ardeates, and one or two with the Latins, are almost the only treaties we find anywhere referred to by the ancient Latin historians; who thus seem to have employed but little diligence in consulting those original documents, or drawing from them, in compiling their histories, such assistance as they could have afforded. The treaties quoted by Polybius and Pliny, completely contradict the relations of the Latin annalists; those cited by Polybius proving, in opposition to their assertions, that the Carthaginians had been in possession of a great part of Sicily about a century previous to the date which Livy has fixed to their first expedition to that island; and those quoted by Pliny, that Porsenna, instead of treating with the Romans on equal terms, as represented by their historians, had actually prohibited them from employing arms,—permitting them the use of iron only in tilling the ground¹²³.

The *Libri Lintei* (so called because written on linen) are cited by Livy after the old annalist Licinius Macer, by whom they appear to have been carefully studied. These books were kept in the temple of Juno Moneta, but were probably of less importance than the other public records, which were

inscribed on rolls of lead. They were obviously a work of no great extent, since Livy, who appeals to them on four different occasions in the space of ten years, just after the degradation of the decemvirs, had not quoted them before, and never refers to them again. There also appear to have been different copies of them which did not exactly agree, and Livy seems [pg 61]far from considering their authority as decisive even on the points on which reference is made to them¹²⁴.

The *Memoirs of the Censors* were journals preserved by those persons who held the office of Censor. They were transmitted by them to their descendants as so many sacred pledges, and were preserved in the families which had been rendered illustrious by that dignity. They formed a series of eulogies on those who had thus exalted the glory of their house, and contained a relation of the memorable actions performed by them in discharge of the high censorial office with which they had been invested¹²⁵. Hence they must be considered as part of the *Family Memoirs*, which were unfortunately the great and corrupt sources of early Roman history.

It was the custom of the ancient families of Rome to preserve with religious care everything that could contribute to perpetuate the glory of their ancestry, and confer honour on their lineage. Thus, besides the titles which were placed under the smoky images of their forefathers, there were likewise tables in their apartments on which lay books and memoirs recording, in a style of general panegyric, the services they had performed for the state during their exercise of the employments with which they had been dignified¹²⁶.

Had these Family Memoirs been faithfully composed, they would have been of infinite service to history; and although all other monuments had perished, they alone would have supplied the defect. They were a record, by those who had the best access to knowledge, of the high offices which their ancestors had filled, and of whatever memorable was transacted during the time they had held the exalted situations of Prætor or Consul: Even the dates of events, as may be seen by a fragment which Dionysius of Halicarnassus cites from them, were recorded with all the appearance of accuracy. Each set of family memoirs thus formed a series of biographies, which, by preserving the memory of the great actions of individuals, and

omitting nothing that could tend to their illustration, comprehended also the principal affairs of state, in which they had borne a share. From the fragments of the genealogical book of the Porcian family, quoted by Aulus Gellius, and the abstract of the Memoirs of the Claudian and Livian families, preserved by Suetonius, in the first chapters of his Life of Tiberius, we may perceive how important such memoirs would have been, and what light they would have thrown on history, had they possessed the stamp of fidelity. But unfortunately, in their composition more regard was paid to family reputation than to historical truth. Whatever tended to exalt its name was embellished and exaggerated. Whatever could dim its lustre was studiously withdrawn. Circumstances, meanwhile, became peculiarly favourable for these high family pretensions. The destruction of the public monuments and annals of the Pontiffs, gave ample scope for the vanity or fertile imagination of those who chose to fabricate titles and invent claims to distinction, the falsity of which could no longer be demonstrated. “All the monuments,” says Plutarch, “being destroyed at the taking of Rome, others were substituted, which were forged out of complaisance to private persons, who pretended to be of illustrious families, though in fact they had no relation to them¹²⁷.” So unmercifully had the great families availed themselves of this favourable opportunity, that Livy complains that these private memoirs were the chief cause of the uncertainty in which he was forced to fluctuate during the early periods of his history. “What has chiefly confounded the history,” says he, “is each family ascribing to itself the glory of great actions and honourable employments. Hence, doubtless, the exploits of individuals and public monuments have been falsified; nor have we so much as one writer of these times whose authority can be depended on¹²⁸.” Those funeral orations on the dead, which it was the custom to deliver at Rome, and which were preserved in families as carefully as the memoirs, also contributed to augment this evil. Cicero declares, that history had been completely falsified by these funeral panegyrics, many things being inserted in them which never were performed, or existed—False triumphs, supernumerary consulships, and forged pedigrees¹²⁹.

Connected with these prose legends, there were also the old heroic ballads formerly mentioned, on which the annals of Ennius were in a great measure built, and to which may be traced some of those wonderful incidents of Roman history, chiefly contrived for the purpose of exalting the military

achievements of the country. Many things which of right belong to such ancient poems, still exist under the disguise of an historical clothing in the narratives of the Roman annalists. Niebuhr, the German historian of Rome, has recently analysed these legends, and taken much from the Roman history, by detecting what incidents rest on no other foundation than their chimerical or embellished pictures, and by shewing how [pg 63]incidents, in themselves unconnected, have by their aid been artificially combined. Such, according to him, were the stories of the birth of Romulus, of the treason of Tatia, the death of the Fabii, and the incidents of an almost complete Epopée, from the succession of Tarquinius Priscus to the battle of Regillus. These old ballads, being more attractive and of easier access than authentic records and monuments, were preferred to them as authorities; and even when converted into prose, retained much of their original and poetic spirit. For example, it was feigned in them that Tullus Hostilius was the son of Hostus Hostilius, who perished in the war with the Sabines, which, according to chronology, would make Tullus at least eighty years old when he mounted the throne; but it was thought a fine thing to represent him as the son of a genuine Roman hero, who had fallen in the service of his country. Niebuhr, probably, as I have already shown, has attributed too much to these old heroic ballads, and has assigned to them an extent and importance of which there are no adequate proofs. But I strongly suspect that the heroic or historical poems of Ennius had formed a principal document to the Roman annalists for the transactions during the Monarchy and earlier times of the Republic, and had been appealed to, like Ferdousi's Shad-Nameh, for occurrences which were probably rather fictions of fancy than events of history.

The Greek writers, from whom several fables and traditions were derived concerning the infancy of Rome, lived not much higher than the age of Fabius Pictor, and only mention its affairs cursorily, while treating of Alexander or his successors. Polybius, indeed, considers their narratives as mere vulgar traditions¹³⁰, and Dionysius says they have written some few things concerning the Romans, which they have compiled from common reports, without accuracy or diligence. To them have been plausibly attributed those fables, concerning the exploits of Romans, which bear so remarkable an analogy to incidents in Grecian history¹³¹. Like to these in all

respects are the histories which some Romans published in Greek concerning the ancient transactions of their own nation.

We thus see that the authentic materials for the early history of Rome were meagre and imperfect—that the annals of the Pontiffs and public monuments had perished—that the *Leges Regiæ*, Twelve Tables, and remains of the religious or ritual books of the Pontiffs, could throw no great light on history, and that the want of better materials was supplied by false, [pg 64]and sometimes incredible relations, drawn from the family traditions—“*ad ostentationem scenæ gaudentis miraculis aptiora quàm ad fidem*¹³².” The mutilated inscriptions, too, the scanty treaties, and the family memoirs, became, from the variations in the language, in a great measure unintelligible to the generation which succeeded that in which they were composed. Polybius informs us, that the most learned Romans of his day could not read a treaty with the Carthaginians, concluded after the expulsion of the kings. Hence, the documents for history, such as they were, became useless to the historian, or, at least, were of such difficulty, that he would sometimes mistake their import, and be, at others, deterred from investigation.

When all this is considered, and also that Rome, in its commencement, was the dwelling of a rude and ignorant people, subsisting by rapine—that the art of writing, the only sure guardian of the remembrance of events, was little practised—that critical examination was utterly unknown; and that the writers of no other nation would think of accurately transmitting to posterity events, which have only become interesting from the subsequent conquests and extension of the Roman empire, it must be evident, that the materials provided for the work of the historian would necessarily be obscure and uncertain.

The great general results recorded in Roman history, during the first five centuries, cannot, indeed, be denied. It cannot be doubted that Rome ultimately triumphed over the neighbouring nations, and obtained possession of their territories; for Rome would not have been what we know it was in the sixth century, without these successes. But there exists, in the particular events recorded in the Roman history, sufficient internal evidence of its uncertainty, or rather falsehood; and here I do not refer to the

lying fables, and absurd prodigies, which the annalists may have inserted in deference to the prejudices of the people, nor to the almost incredible daring and endurance of Scævola, Cocles, or Curtius, which may be accounted for from the wild spirit of a half-civilized nation, and are not unlike the acts we hear of among Indian tribes; but I allude to the total improbability of the historic details concerning transactions with surrounding tribes, and the origin of domestic institutions. How, for example, after so long a series of defeats, with few intervals of prosperity interposed, could the Italian states have possessed resources sufficient incessantly to renew hostilities, in which they were [pg 65]always the aggressors? And how, on the other hand, should the Romans, with their constant preponderance of force and fortune, (if the repetition and magnitude of their victories can be depended on,) have been so long employed in completely subjugating them? The numbers slain, according to Livy's account, are so prodigious, that it is difficult to conceive how the population of such moderate territories, as belonged to the independent Italian communities, could have supplied such losses. We, therefore, cannot avoid concluding, that the frequency and importance of these campaigns were magnified by the consular families indulging in the vanity of exaggerating the achievements of their ancestors¹³³. Sometimes these campaigns are represented as carried on against the whole nation of Volsci, Samnites, or Etruscans, when, in fact, only a part was engaged; and, at other times, battles, which never were fought, have been extracted from the family memoirs, where they were drawn up to illustrate each consulate; for what would a consul have been without a triumph or a victory? It would exceed my limits were I to point out the various improbabilities and evident inconsistencies of this sort recorded in the early periods of Roman history. With regard, again, to the domestic institutions of Rome, everything (doubtless for the sake of effect and dignity) is represented as having at once originated in the refined policy and foresight of the early kings. The division of the people into tribes and curiæ—the relations of patron and client—the election of senators—in short, the whole fabric of the constitution, is exhibited as a preconcerted plan of political wisdom, and not (as a constitution has been in every other state, and must have been in Rome) the gradual result of contingencies and progressive improvements, of assertions of rights, and struggles for power.

The opinion entertained by Polybius of the uncertainty of the Roman history, is sufficiently manifest from a passage in the fourth book of his admirable work, which is written with all the philosophy and profound inquiry of Tacitus, without any of his apparent affectation.—“The things which I have undertaken to describe,” says he, “are those which I myself have seen, or such as I have received from men who were eye-witnesses of them. For, had I gone back to a more early period, and borrowed my accounts from the report of persons who themselves had only heard them before from others, as it would scarcely have been possible that I should myself be able to discern the true state of the matters that were then transacted, so neither could I have written anything concerning [pg 66]them with confidence.” What, indeed, can we expect to know with regard to the Kings of Rome, when we find so much uncertainty with regard to the most memorable events of the republic, as the period of the first creation of a dictator and tribunes of the people? The same doubt exists in the biography of illustrious characters. Cicero says, that Coriolanus, having gone over to the Volsci, repressed the struggles of his resentment by a voluntary death; “for, though you, my Atticus,” he continues, “have represented his death in a different manner, you must pardon me if I do not subscribe to the justness of your representations¹³⁴.” Atticus, I presume, gave the account as we now have it, that he was killed in a tumult of the Volsci, and Fabius Pictor had written that he lived till old age¹³⁵. Of the reliance to be placed on the events between the death of Coriolanus and the termination of the second Punic war, we may judge from the uncertainty which prevailed with regard to Scipio Africanus, a hero, of all others, the most distinguished, and who flourished, comparatively, at a recent period. Yet some of the most important events of his life are involved in contradiction and almost hopeless obscurity.—“Cicero,” says Berwick, in his *Memoirs of Scipio*, “speaks with great confidence of the year in which he died, yet Livy found so great a difference of opinion among historians on the subject, that he declares himself unable to ascertain it. From a fragment in Polybius, we learn, that, in his time, the authors who had written of Scipio were ignorant of some circumstances of his life, and mistaken in others; and, from Livy, it appears, that the accounts respecting his life, trial, death, funeral, and sepulchre, were so contradictory, that he was not able to determine what tradition, or whose writings, he ought to credit.”

But, although the early events of Roman history were of such a description, that Cicero and Atticus were not agreed concerning them—that Polybius could write nothing about them with confidence; and that Livy would neither undertake to affirm nor refute them, every vestige of Roman antiquity had not perished. Though the annals of the Pontiffs were destroyed,—those who wrote, who kept, and had read them, could not have lost all recollection of the facts they recorded. Even from the family memoirs, full of falsehoods as they were, much truth might have been extracted by a judicious and acute historian. The journals of different rival families must often have served as historical checks on each other, and much real information might have been gathered, by compar[pg 67]ing and contrasting the vain-glorious lies of those family-legends¹³⁶.

Such was the state of the materials for Roman history, in the middle of the sixth century, from the building of the city, at which time regular annals first began to be composed; and notwithstanding all unfavourable circumstances, much might have been done, even at that period, towards fixing and ascertaining the dates and circumstances of previous events, had the earliest annalist of Rome been in any degree fitted for this difficult and important task; but, unfortunately,

QUINTUS FABIVS PICTOR,

who first undertook to relate the affairs of Rome from its foundation, in a formal and regular order, and is thence called by Livy *Scriptorum antiquissimus*, appears to have been wretchedly qualified for the labour he had undertaken, either [pg 68]in point of fidelity or research: and to his carelessness and inaccuracy, more even than to the loss of monuments, may be attributed the painful uncertainty, which to this day hangs over the early ages of Roman history.

Fabius Pictor lived in the time of the second Punic war. The family received its *cognomen* from Caius Fabius, who, having resided in Etruria, and there acquired some knowledge of the fine arts, painted with figures the temple of *Salus*, in the year 450¹³⁷. Pliny mentions having seen this piece of workmanship, which remained entire till the building itself was consumed, in the reign of the Emperor Claudius. The son of the painter rose to the highest honours of the state, having been Consul along with Ogulnius Gallus, in the year 485. From him sprung the historian, who was consequently grandson of the first Fabius Pictor. He was a provincial quæstor in early youth, and in 528 served under the Consul Lucius Æmilius, when sent to repel a formidable incursion of the Gauls, who, in that year, had passed the Alps in vast hordes. He also served in the second Punic war, which commenced in 534, and was present at the battle of Thrasymene. After the defeat at Cannæ, he was despatched by the senate to inquire from the oracle of Delphos, what would be the issue of the war, and to learn by what supplications the wrath of the gods might be appeased¹³⁸.

The Annals of Fabius Pictor commenced with the foundation of the city, and brought down the series of Roman affairs to the author's own time—that is, to the end of the second Punic war. We are informed by Dionysius of Halicarnassus, that for the great proportion of events which preceded his own age, Fabius Pictor had no better authority than vulgar tradition¹³⁹. He probably found, that if he had confined himself to what was certain in these

early times, his history would have been dry, insipid, and incomplete. This may have induced him to adopt the fables, which the Greek historians had invented concerning the origin of Rome, and to insert whatever he found in the family traditions, however contradictory or uncertain. Dionysius has also given us many examples of his improbable narrations—his inconsistencies—his negligence in investigating the truth of what he relates as facts—and his inaccuracy in chronology. “I cannot refrain,” says he, when speaking of the age of Tarquinius Priscus, “from blaming Fabius Pictor for his little exactness in chronology¹⁴⁰,” and it appears from various other passages, that all the ancient his[pg 69]tory of Fabius which was not founded on hearsay, was taken from Greek authors, who had little opportunity of being informed of Roman affairs, and had supplied their deficiency in real knowledge, by the invention of fables. In particular, as we are told by Plutarch¹⁴¹, he followed an obscure Greek author, Diocles the Peparethian, in his account of the foundation of Rome, and from this tainted source have flowed all the stories concerning Mars, the Vestal, the Wolf, Romulus, and Remus.

It is thus evident, that no great reliance can be placed on the history given by Fabius Pictor, of the events which preceded his own age, and which happened during a period of 500 years from the building of the city; but what must be considered as more extraordinary and lamentable, is, that although a senator, and of a distinguished family, he gave a prejudiced and inaccurate account of affairs occurring during the time he lived, and in the management of which he had some concern. Polybius, who flourished shortly after that time, and was at pains to inform himself accurately concerning all the events of the second Punic war, apologizes for quoting Fabius on one occasion as an authority. “It will perhaps be asked,” says he, “how I came to make mention of Fabius: It is not that I think his relation probable enough to deserve credit: What he writes is so absurd, and has so little appearance of truth, that the reader will easily remark, without my taking notice of it, the little reliance that is to be placed on that author, whose inconsistency is palpable of itself. It is, therefore, only to warn such as shall read his history, not to judge by the title of the book, but by the things it contains—for there are many people, who, considering the author more than what he writes, think themselves obliged to believe everything he says, because a senator and contemporary¹⁴².” Polybius also accuses him of

gross partiality to his own nation, in the account of the Punic war—allowing to the enemy no praise, even where they deserved it, and uncandidly aggravating their faults.¹⁴³ In particular, he charges him with falsehood in what he has delivered, with regard to the causes of the second contest with the Carthaginians. Fabius had alleged, that the covetousness of Hannibal, which he inherited from Asdrubal, and his desire of ultimately ruling over his own country, to which he conceived a Roman war to be a necessary step, were the chief causes of renewing hostilities, to which the Carthaginian government was totally averse. Now, Polybius asks him, if this were true, why the Carthaginian Senate did not deliver up their general, as was required, after the capture of Saguntum; and why they supported him, during fourteen years continuance in Italy, with frequent supplies of money, and immense reinforcements¹⁴⁴.

The sentiments expressed by Dionysius of Halicarnassus, concerning Fabius Pictor's relation of events, in the early ages of Rome, and those of Polybius¹⁴⁵, on the occurrences of which he was himself an eye-witness, enable us to form a pretty accurate estimate of the credit due to his whole history. Dionysius having himself written on the antiquities of Rome, was competent to deliver an opinion as to the works of those who had preceded him in the same undertaking; and it would rather have been favourable to the general view which he has adopted, to have established the credibility of Fabius. We may also safely rely on the judgment which Polybius has passed, concerning this old annalist's relation of the events of the age in which he lived, since Polybius had spared no pains to be thoroughly informed of whatever could render his own account of them complete and unexceptionable.

The opinion which must now be naturally formed from the sentiments entertained by these two eminent historians, is rather confirmed by the few and unconnected fragments that remain of the Annals of Fabius Pictor, as they exhibit a spirit of trifling and credulity quite unworthy the historian of a great republic. One passage is about a person who saw a magpie; another about a man who had a message brought to him by a swallow; and a third concerning a party of *loup garous*, who, after being transformed into wolves, recovered their own figures, and, what is more, got back their cast-

off clothes, provided they had abstained for nine years from preying on human flesh!

[pg 71]

Such were the merits of the earliest annalist of Rome, whom all succeeding historians of the state copied as far as he had proceeded, or at least implicitly followed as their authority and guide in facts and chronology. Unfortunately, his character as a senator, and an eye-witness of many of the events he recorded, gave the stamp of authenticity to his work, which it did not intrinsically deserve to have impressed on it. His successors accordingly, instead of giving themselves the pains to clear up the difficulties with which the history of former ages was embarrassed, and which would have led into long and laborious discussions, preferred reposing on the authority of Fabius. They copied him on the ancient times, without even consulting the few monuments that remained, and then contented themselves with adding the transactions subsequent to the period which his history comprehends. Thus, Dionysius of Halicarnassus¹⁴⁶ informs us that Cincius, Cato the Censor, Calpurnius Piso, and most of the other historians who succeeded him, implicitly adopted Fabius' story of the birth and education of Romulus; and he adds many glaring instances of the little discernment they showed in following him on points where, by a little investigation, they might have discovered how egregiously he had erred. Even Livy himself admits, that his own account of the second Punic war was chiefly founded on the relations of Fabius Pictor¹⁴⁷.

This ancient and dubious annalist was succeeded by Scribonius Libo, and by Calpurnius Piso. Libo served under Ser. Galba in Spain, and on his return to Rome impeached his commander for some act of treachery towards the natives of that province. Piso was Consul along with Mucius Scaevola in 620, the year in which Tib. Gracchus was slain. Like Fabius, he wrote Annals of Rome, from the beginning of the state, which Cicero pronounces to be *exiliter scripti*¹⁴⁸. But although his style was jejune, he is called a profound writer, *gravis auctor*, by Pliny¹⁴⁹; and Au. Gellius says, that there is an agreeable simplicity in some parts of his work—the brevity which displeased Cicero appearing to him *simplicissima suavitas et rei et orationis*¹⁵⁰. He relates an anecdote of Romulus, who, being abroad at supper, drank little wine, because he was to be occupied with important

affairs on the following day. One of the other guests remarked, “that if all men did as he, wine would be cheap.”—“No,” replied Romulus, “I [pg 72]have drunk as much as I liked, and wine would be dearer than it is now if every one did the same.” This annalist first suggested Varro’s famous derivation of the word Italy, which he deduced from *Vitulus*. He is also frequently quoted by Plutarch and Dionysius of Halicarnassus¹⁵¹. Niebuhr thinks, that of all the Roman annalists he is chiefly responsible for having introduced into history the fables of the ancient heroic ballads¹⁵².

About the same time with Piso, lived two historians, who were both called Caius Fannius, and were nearly related to each other. One of them was son-in-law of Lælius, and served under the younger Scipio at the final reduction of Carthage. Of him Cicero speaks favourably, though his style was somewhat harsh¹⁵³; but his chief praise is, that Sallust, in mentioning the Latin historians, while he gives to Cato the palm for conciseness, awards it to Fannius for accuracy in facts¹⁵⁴. Heeren also mentions, that he was the authority chiefly followed by Plutarch in his lives of the Gracchi¹⁵⁵.

Coelius Antipater was contemporary with the Gracchi, and was the master of Lucius Crassus, the celebrated orator, and other eminent men of the day. We learn from Valerius Maximus, that he was the authority for the story of the shade of Tiberius Gracchus having appeared to his brother Caius in a dream, to warn him that he would suffer the same fate which he had himself experienced¹⁵⁶; and the historian testifies that he had heard of this vision from many persons during the lifetime of Caius Gracchus. The chief subject of Antipater’s history, which was dedicated to Lælius, consisted in the events that occurred during the second Punic war. Cicero says, that he was for his age *Scriptor luculentus*¹⁵⁷; that he raised himself considerably above his predecessors, and gave a more lofty tone to history; but he seems to think that the utmost [pg 73]praise to which he was entitled, is, that he excelled those who preceded him, for still he possessed but little eloquence or learning, and his style was yet unpolished. Valerius Maximus, however, calls him an authentic writer, (*certus auctor*¹⁵⁸;) and the Emperor Hadrian thought him superior to Sallust, consistently with that sort of black-letter taste which led him to prefer Cato the Censor to Cicero, and Ennius to Virgil¹⁵⁹.

Sempronius Asellio served as military tribune under the younger Scipio Africanus, in the war of Numantia¹⁶⁰, which began in 614, and ended in 621, with the destruction of that city. He wrote the history of the campaigns in which he fought under Scipio, in Spain, in at least 40 books, since the 40th is cited by Charisius. His work, however, was not written for a considerable time after the events he recorded had happened: That he wrote subsequently to Antipater, we have the authority of Cicero, who says “that Coelius Antipater was succeeded by Asellio, who did not imitate his improvements, but relapsed into the dulness and unskilfulness of the earliest historians¹⁶¹.” This does not at all appear to have been Asellio’s own opinion, as, from a passage extracted by Aulus Gellius from the first book of his *Annals*, he seems to have considered himself as the undisputed father of philosophic history¹⁶².

Quintus Lutatius Catulus, better known as an accomplished orator than a historian, was Consul along with Marius in the year 651, and shared with him in his distinguished triumph over the Cimbrians. Though once united in the strictest friendship, these old colleagues quarrelled at last, during the civil war with Sylla; and Catulus, it is said, in order to avoid the emissaries despatched by the unrelenting Marius, to put him to death, shut himself up in a room newly plastered, and having kindled a fire, was suffocated by the noxious vapours. He wrote the history of his own consulship, and the various public transactions in which he had been engaged, particularly the war with the Cimbrians. Cicero¹⁶³, who has spoken so disadvantageously of the style of the older annalists, admits that Catulus wrote very pure Latin, and that his language had some resemblance to the sweetness of Xenophon.

Q. Claudius Quadrigarius composed *Annals of Rome* in twenty-four books, which, though now almost entirely lost, were in existence as late as the end of the 12th century, being referred to by John of Salisbury in his book *De Nugis Curialibus*. Some passages, however, are still preserved, [pg 74]particularly the account of the defiance by the gigantic Gaul, adorned with a chain, to the whole Roman army, and his combat with Titus Manlius, afterwards surnamed Torquatus, from this chain which he took from his antagonist. “Who the enemy was,” says Au. Gellius, “of how great and formidable stature, how audacious the challenge, and in what kind of battle

they fought, Q. Claudius has told with much purity and elegance, and in the simple unadorned sweetness of ancient language¹⁶⁴.”

There is likewise extant from these Annals the story of the Consul Q. Fabius Maximus making his father, who was then Proconsul, alight from his horse when he came out to meet him. We have also the letter of the Roman Consuls, Fabricius and Q. Emilius, to Pyrrhus, informing him of the treachery of his confidant, Nicias, who had offered to the Romans to make away with his master for a reward. It merits quotation, as a fine example of ancient dignity and simplicity.—“Nos, pro tuis injuriis, continuo animo, strenue commoti, inimiciter tecum bellare studemus. Sed communis exempli et fidei ergo visum est, uti te salvum velimus; ut esset quem armis vincere possimus. Ad nos venit Nicias familiaris tuus, qui sibi pretium a nobis peteret, si te clam interfecisset: Id nos negavimus velle; neve ob eam rem quidquam commodi expectaret: Et simul visum est, ut te certioorem faceremus, nequid ejusmodi, si accidisset, nostro consilio putares factum: et, quid nobis non placet, pretio, aut premio, aut dolis pugnare.”—The Annals of Quadrigarius must at least have brought down the history to the civil wars of Marius and Sylla, since, in the nineteenth book, the author details the circumstances of the defence of the Piræus against Sylla, by Archelaus, the prefect of Mithridates. As to the style of these annals, Aulus Gellius reports, that they were written in a conversational manner¹⁶⁵.

Quintus Valerius Antias also left Annals, which must have formed an immense work, since Priscian cites the seventy-fourth book. They commenced with the foundation of the city; but their accuracy cannot be relied on, as the author was much addicted to exaggeration. Livy, mentioning, on the authority of Antias, a victory gained by the Proconsul Q. Minucius, adds, while speaking of the number of slain on the part of the enemy, “Little faith can be given to this author, as no one was ever more intemperate in such exaggerations;” and Aulus Gellius mentions a circumstance which he had affirmed, contrary to the records of the Tribunes, and the [pg 75]authors of the ancient Annals¹⁶⁶. This history also seems to have been stuffed with the most absurd and superstitious fables. A nonsensical tale is told with regard to the manner in which Numa procured thunder from Jupiter; and stories are likewise related about the conflagration of the lake Thrasimene, before the defeat of the Roman

Consul, and the flame which played round the head of Servius Tullius in his childhood. It also appears from him, that the Romans had judicial trials, as horrible as those of the witches which disgraced our criminal record. Q. Nævius, before setting out for Sardinia, held *Questions* of incantation through the towns of Italy, and condemned to death, apparently without much investigation, not less than two thousand persons. This annalist denies, in another passage, the well-known story of the continence of Scipio, and alleges that the lady whom he is generally said to have restored to her lover, was “*in deliciis amoribusque usurpata*¹⁶⁷.” His opinion of the moral character of Scipio seems founded on some satirical verses of Nævius, with regard to a low intrigue in which he was detected in his youth. But whatever his private amours may have been, it does not follow that he was incapable of a signal exertion of generosity and continence in the presence of his army, and with the eyes of two great rival nations fixed upon his conduct.

Licinius Macer, father of Licin. Calvus, the distinguished poet and orator formerly mentioned¹⁶⁸, was author of *Annals*, entitled *Libri Rerum Romanarum*. In the course of these he frequently quotes the *Libri Lintei*. He was not considered as a very impartial historian, and, in particular, he is accused by Livy of inventing stories to throw lustre over his own family.

L. Cornelius Sisenna was the friend of Macer, and coeval with Antias and Quadrigarius; but he far excelled his contemporaries, as well as predecessors, in the art of historical narrative. He was of the same family as Sylla, the dictator, and was descended from that Sisenna who was Prætor in 570. In his youth he practised as an orator, and is characterized by Cicero as a man of learning and wit, but of no great industry or knowledge in business¹⁶⁹. In more advanced life he was Prætor of Achaia, and a friend of Atticus. Vossius says his history commenced after the taking of Rome by the Gauls, and ended with the wars of Marius and Sylla. Now, it is possible that he may have given some sketch of Roman affairs from the burning of the city by the Gauls, but it is evident he [pg 76]had touched slightly on these early portions of the history, for though his work consisted of twenty, or, according to others, of twenty-two books, it appears from a fragment of the second, which is still preserved, that he had there advanced in his narrative as far as the Social War, which broke out in the year 663. The

greater part, therefore, I suspect, was devoted to the history of the civil wars of Marius; and indeed Velleius Paterculus calls his work *Opus Belli Civilis Sullani*¹⁷⁰. The great defect of his history consisted, it is said, in not being written with sufficient political freedom, at least concerning the character and conduct of Sylla, which is regretted by Sallust in a passage bearing ample testimony to the merits of Sisenna in other particulars.—“L. Sisenna,” says he, “optume et diligentissime omnium, qui eas res dixere persecutus, parum mihi libero ore locutus videtur¹⁷¹.” Cicero, while he admits his superiority over his predecessors, adds, that he was far from perfection¹⁷², and complains that there was something puerile in his Annals, as if he had studied none of the Greek historians but Clitarchus¹⁷³. I have quoted these opinions, since we must now entirely trust to the sentiments of others, in the judgment which we form of the merits of Sisenna; for although the fragments which remain of his history are more numerous than those of any other old Latin annalist, being about 150, they are also shorter and more unconnected. Indeed, there are scarcely two sentences anywhere joined together.

The great defect, then, imputed to the class of annalists above enumerated, is the meagerness of their relations, which are stript of all ornament of style—of all philosophic observation on the springs or consequences of action—and all characteristic painting of the actors themselves. That they often perverted the truth of history, to dignify the name of their country at the expense of its foes, is a fault common to them with many national historians—that they sometimes exalted one political faction or chief to depreciate another, was almost unavoidable amid the anarchy and civil discord of Rome—that they were credulous in the extreme, in their relations of portents and prodigies, is a blemish from which their greater successors were not exempted: The easy faith of Livy is well known. Even the philosophic Tacitus seems to give credit to those presages, which darkly announced the fate of men and empires; and Julius Obsequens, a grave writer in the most enlightened age of Rome, collected in one [pg 77]work all the portents observed from its foundation to the age of Augustus.

The period in which the ancient annalists flourished, also produced several biographical works; and these being lives of men distinguished in the state, may be ranked in the number of histories.

Lucius Emilius Scaurus, who was born in 591, and died in 666, wrote memoirs of his own life, which Tacitus says were accounted faithful and impartial. They are unfortunately lost, but their matter may be conjectured from the well-known incidents of the life of Scaurus. They embraced a very eventful period, and were written without any flagrant breach of truth. We learn from Cicero, that these memoirs, however useful and instructive, were little read, even in his days, though his contemporaries carefully studied the *Cyropædia*; a work, as he continues, no doubt sufficiently elegant, but not so connected with our affairs, nor in any respect to be preferred to the merits of Scaurus¹⁷⁴.

Rutilius Rufus, who was Consul in the year 649, also wrote memoirs of his own life. He was a man of very different character from Scaurus, being of distinguished probity in every part of his conduct, and possessing, as we are informed by Cicero, something almost of sanctity in his demeanour. All this did not save him from an unjust exile, to which he was condemned, and which he passed in tranquillity at Smyrna. These biographical memoirs being lost, we know their merits only from the commendations of Livy¹⁷⁵, Plutarch¹⁷⁶, Velleius Paterculus¹⁷⁷, and Valerius Maximus¹⁷⁸. As the author served under Scipio in Spain—under Scævola in Asia, and under Metellus in his campaign against Jugurtha, the loss of this work is severely to be regretted.

But the want of Sylla's Memoirs of his own Life, and of the affairs in which he had himself been engaged, is still more deeply to be lamented than the loss of those of Scaurus or Rutilius Rufus. These memoirs were meant to have been dedicated to Lucullus, on condition that he should arrange and correct them¹⁷⁹. Sylla was employed on them the evening before his death, and concluded them by relating, that on the [pg 78]preceding night he had seen in a dream one of his children, who had died a short while before, and who, stretching out his hand, showed to him his mother Metella, and exhorted him forthwith to leave the cares of life, and hasten to enjoy repose along with them in the bosom of eternal rest. "Thus," adds the author, who accounted nothing so certain as what was signified to him in dreams, "I finish my days, as was predicted to me by the Chaldeans, who announced that I should surmount envy itself by my glory, and should have the good fortune to fall in the full blossom of my prosperity¹⁸⁰." These memoirs were

sent by Epicadus, the freedman of Sylla, to Lucullus, in order that he might put to them the finishing hand. If preserved, they would have thrown much light on the most important affairs of Roman history, as they proceeded from the person who must, of all others, have been the best informed concerning them. They are quoted by Plutarch as authority for many curious facts, as—that in the great battle by which the Cimbrian invasion was repelled, the chief execution was done in that quarter where Sylla was stationed; the main body, under Marius, having been misled by a cloud of dust, and having in consequence wandered about for a long time without finding the enemy¹⁸¹. Plutarch also mentions that, in these Commentaries, the author contradicted the current story of his seeking refuge during a tumult at the commencement of the civil wars with Marius, in the house of his rival, who, it had been reported, sheltered and dismissed him in safety. Besides their importance for the history of events, the Memoirs of Sylla must have been highly interesting, as developing, in some degree, the most curious character in Roman history. “In the loss of his Memoirs,” says Blackwell, in his usual inflated style, “the strongest draught of human passions, in the highest wheels of fortune and sallies of power, is for ever vanished¹⁸².” The character of Cæsar, though greater, was less incomprehensible than that of Sylla; and the mind of Augustus, though unfathomable to his contemporaries, has been sounded by the long line of posterity; but it is difficult to analyse the disposition which inspired the inconsistent conduct of Sylla. Gorged with power, and blood, and vengeance, he seems to have retired from what he chiefly coveted, as if surfeited; but neither this retreat, nor old age, could mollify his heart; nor could disease, or the approach of death, or the remembrance of his past life, disturb his tranquillity. No part of his existence was more strange than its termination; and nothing can be more [pg 79]singular than that he, who, on the day of his decease, caused in mere wantonness a provincial magistrate to be strangled in his presence, should, the night before, have enjoyed a dream so elevated and tender. It is probable that the Memoirs were well written, in point of style, as Sylla loved the arts and sciences, and was even a man of some learning, though Cæsar is reported to have said, on hearing his literary acquirements extolled, that he must have been but an indifferent scholar who had resigned a dictatorship.

The characteristic of most of the annals and memoirs which I have hitherto mentioned, was extreme conciseness. Satisfied with collecting a mass of facts, their authors adopted a style which, in the later ages of Rome, became proverbially meagre and jejune. Cicero includes Claudius Quadrigarius and Asellio in the same censure which he passes on their predecessors, Fabius Pictor, Piso, and Fannius. But though, perhaps, equally barren in style, much greater trust and reliance may be placed on the annalists of the time of Marius and Sylla than of the second Punic war.

Some of these more modern annalists wrote the History of Rome from the commencement of the state; others took up the relation from the burning of Rome by the Gauls, or confined themselves to events which had occurred in their own time. Their narratives of all that passed before the incursion of the Gauls, were indeed as little authentic as the relations of Fabius Pictor, since they implicitly followed that writer, and made no new researches into the mouldering monuments of their country. But their accounts of what happened subsequently to the rebuilding of Rome, are not liable to the same suspicion and uncertainty; the public monuments and records having, from that period, been duly preserved, and having been in greater abundance than those of almost any other nation in the history of the world. The Roman authors possessed all the auxiliaries which aid historical compilation—decrees of the senate, chiefly pronounced in affairs of state—leagues with friendly nations—terms of the surrender of cities—tables of triumphs, and treaties, which were carefully preserved in the treasury or in temples. There were even rolls kept of the senators and knights, as also of the number of the legions and ships employed in each war; but the public despatches addressed to the Senate by commanders of armies, of which we have specimens in Cicero's Epistles, were the documents which must have chiefly aided historical composition. These were probably accurate, as the Senate, and people in general, were too well versed in military affairs to have been easily deluded, and legates were often commissioned by them [pg 80]to ascertain the truth of the relations. The immense multitude of such documents is evinced by the fact, that Vespasian, when restoring the Capitol, found in its ruins not fewer than 3000 brazen tablets, containing decrees of the Senate and people, concerning leagues, associations, and immunities to whomsoever granted, from an early period of the state, and which Suetonius justly styles, *instrumentum imperii pulcherrimum ac*

*vetustissimum*¹⁸³. Accordingly, when the later annalists came to write of the affairs of their own time, they found historical documents more full and satisfactory than those of almost any other country. But, in addition to these copious sources of information, it will be remarked, that the annalists themselves had often personal knowledge of the facts they related. It is true, indeed, that historians contemporary with the events which they record, are not always best qualified to place them in an instructive light, since, though they may understand how they spring out of prior incidents, they cannot foresee their influence on future occurrences. Of some things, the importance is overrated, and of others undervalued, till time, which has the same effect on events as distance on external objects, obscures all that is minute, while it renders the outlines of what is vast more distinct and perceptible. But though the reach of a contemporary historian's mind may not extend to the issue of the drama which passes before him, he is no doubt best aware of the detached incidents of each separate scene and act, and most fitted to detail those particulars which posterity may combine into a mass, exhibiting at one view the grandeur and interest of the whole. Now, it will have been remarked from the preceding pages, that all the Roman annalists, from the time of Fabius Pictor to Sylla, were Consuls and Prætors, commanders of armies, or heads of political parties, and consequently the principal sharers in the events which they recorded. In Greece, there was an earlier separation than at Rome, between an active and a speculative life. Many of the Greek historians had little part in those transactions, the remembrance of which they have transmitted. They wrote at a distance, as it were, from the scene of affairs, so that they contemplated the wars and dissensions of their countrymen with the unprejudiced eye of a foreigner, or of posterity. This naturally diffuses a calm philosophic spirit over the page of the historian, and gives abundant scope for conjecture concerning the motives and springs of action. The Roman annalists, on the other hand, wrote from perfect knowledge and remembrance; they were the persons who had planned and executed every project; they had fought the battles they described, or excited the war, the vicissitudes of which they recorded. Hence the facts which their pages disclosed, might have borne the genuine stamp of truth, and the analysis of the motives and causes of actions might have been absolute revelations. Yet, under these, the most favourable circumstances for historic composition, prejudices from which the Greek historians were exempt, would unconsciously creep in:

Writers like Sylla or Æmilius Scaurus, had much to extenuate, and strong temptations to set down much in malice¹⁸⁴.

Nor is it always sufficient to have witnessed a great event in order to record it well, and with that fulness which converts it into a lesson in legislation, ethics, or politics. Now, the Roman annals had hitherto been chiefly a dry register of facts, what Lord Bolingbroke calls the *Nuntia Vetustatis*, or Gazette of Antiquity. A history properly so termed, and when considered as opposed to such productions, forms a complete series of transactions, accompanied by a deduction of their immediate and remote causes, and of the consequences by which they were attended,—all related, in their full extent, with such detail of circumstances as transports us back to the very time, makes us parties to the counsels, and actors, as it were, in the whole scene of affairs. It is then alone that history becomes the *magistra vitæ*; and in this sense

SALLUST

has been generally considered as the first among the Romans who merited the title of historian. This celebrated writer was born at Amiternum, in the territory of the Sabines, in the year 668. He received his education at Rome, and, in his early youth, appears to have been desirous to devote himself to literary pursuits. But it was not easy for one residing in the capital to escape the contagious desire of military or political distinction. At the age of twenty-seven, he obtained the situation of Quæstor, which entitled him to a seat in the Senate, and about six years afterwards he was elected Tribune of the people. While in this office, he attached himself to the fortunes of Cæsar, and along with one of his colleagues in the tribunate, conducted the prosecution against Milo for the murder of Clodius. In the year 704, he was excluded from the Senate, on pretext of immoral conduct, but more probably [pg 82]from the violence of the patrician party, to which he was opposed. Aulus Gellius, on the authority of Varro's treatise, *Pius aut de Pace*, informs us that he incurred this disgrace in consequence of being surprised in an intrigue with Fausta, the wife of Milo, by the husband, who made him be scourged by his slaves¹⁸⁵. It has been doubted, however, by modern critics, whether it was the historian Sallust who was thus detected and punished, or his nephew, Crispus Sallustius, to whom Horace has addressed the second ode of the second book. It seems, indeed, unlikely, that in such a corrupt age, an amour with a woman of Fausta's abandoned character, should have been the real cause of his expulsion from the Senate. After undergoing this ignominy, which, for the present, baffled all his hopes of preferment, he quitted Rome, and joined his patron, Cæsar, in Gaul. He continued to follow the fortunes of that commander, and, in particular bore a share in the expedition to Africa, where the scattered remains of Pompey's party had united. That region being finally subdued, Sallust was left by Cæsar as Prætor of Numidia; and about the same time he married Terentia, the divorced wife of Cicero. He remained only a year in his government, but during that period he enriched himself by despoiling the province. On his return to Rome, he was accused by the Numidians, whom he had

plundered, but escaped with impunity, by means of the protection of Cæsar, and was quietly permitted to betake himself to a luxurious retirement with his ill-gotten wealth. He chose for his favourite retreat a villa at Tibur, which had belonged to Cæsar; and he also built a magnificent palace in the suburbs of Rome, surrounded by delightful pleasure-grounds, which were afterwards well known and celebrated by the name of the Gardens of Sallust. One front of this splendid mansion faced the street, where he constructed a spacious market-place, in which every article of luxury was sold in abundance. The other front looked to the gardens, which were contiguous to those of Lucullus, and occupied the valley between the extremities of the Quirinal and Pincian Hills¹⁸⁶. They lay, in the time of Sallust, immediately beyond the walls of Rome, but were included within the new wall of Aurelian. In them every beauty of nature, and every embellishment of art, that could delight or gratify the senses, seem to have been assembled. Umbrageous walks, open parterres, and cool porticos, displayed their various attractions. Amidst shrubs and flowers of every hue and odour, interspersed with statues of the most exquisite workmanship, pure streams of [pg 83]water preserved the verdure of the earth and the temperature of the air; and while, on the one hand, the distant prospect caught the eye, on the other, the close retreat invited to repose or meditation¹⁸⁷. These gardens included within their precincts the most magnificent baths, a temple to Venus, and a circus, which Sallust repaired and ornamented. Possessed of such attractions, the Sallustian palace and gardens became, after the death of their original proprietor, the residence of successive emperors. Augustus chose them as the scene of his most sumptuous entertainments. The taste of Vespasian preferred them to the palace of the Cæsars. Even the virtuous Nerva, and stern Aurelian, were so attracted by their beauty, that, while at Rome, they were their constant abode. “The palace,” says Eustace, “was consumed by fire on the fatal night when Alaric entered the city. The temple, of singular beauty, sacred to Venus, was discovered about the middle of the sixteenth century, in opening the grounds of a garden, and was destroyed for the sale of the materials: Of the circus little remains, but masses of walls that merely indicate its site; while statues and marbles, found occasionally, continue to furnish proofs of its former magnificence¹⁸⁸.” Many statues of exquisite workmanship have been found on the same spot; but these may have been placed there by the magnificence of the imperial occupiers, and not of the original proprietor.

In his urban gardens, or villa at Tibur, Sallust passed the close of his life, dividing his time between literary avocations and the society of his friends—among whom he numbered Lucullus, Messala, and Cornelius Nepos.

Such having been his friends and studies, it seems highly improbable that he indulged in that excessive libertinism which has been attributed to him, on the erroneous supposition that he was the Sallust mentioned by Horace, in the first book of his Satires¹⁸⁹. The subject of Sallust's character is one which has excited some investigation and interest, and on which very different opinions have been formed. That he was a man of loose morals is evident; and it cannot be denied that he rapaciously plundered his province, like other Roman governors of the day. But it seems doubtful if he was that monster of iniquity he has been sometimes represented. He was extremely unfortunate in the first permanent notice taken of his character by his contemporaries. The decided enemy of Pompey and his faction, he had said of that celebrated chief, in his general history, that he was a man "oris probi, animo [pg 84]inverecundo." Lenæus, the freedman of Pompey, avenged his master, by the most virulent abuse of his enemy¹⁹⁰, in a work, which should rather be regarded as a frantic satire than an historical document. Of the injustice which he had done to the life of the historian we may, in some degree, judge, from what he said of him as an author. He called him, as we learn from Suetonius, "Nebulonem, vitâ scriptisque monstrosum: præterea, priscorum Catonisque ineruditissimum furem." The life of Sallust, by Asconius Pedianus, which was written in the age of Augustus, and might have acted, in the present day, as a corrective, or palliative, of the unfavourable impression produced by this injurious libel, has unfortunately perished; and the next work on the subject now extant, is a professed rhetorical declamation against the character of Sallust, which was given to the world in the name of Cicero, but was not written till long after the death of that orator, and is now generally assigned by critics, to a rhetorician, in the reign of Claudius, called Porcius Latro. The calumnies invented or exaggerated by Lenæus, and propagated in the scholiastic theme of Porcius Latro, have been adopted by Le Clerc, professor of Hebrew at Amsterdam, and by Professor Meisner, of Prague¹⁹¹, in their respective accounts of the Life of Sallust. His character has received more justice from the prefatory Memoir and Notes of De Brosses, his French translator, and from the researches of Wieland in Germany.

From what has been above said of Fabius Pictor, and his immediate successors, it must be apparent, that the art of historic composition at Rome was in the lowest state, and that Sallust had no model to imitate among the writers of his own country. He therefore naturally recurred to the productions of the Greek historians. The native exuberance, and loquacious familiarity of Herodotus, were not adapted to his taste; and simplicity, such as that of Xenophon, is, of all things, the most difficult to attain: He therefore chiefly emulated Thucydides, and attempted to transplant into his own language the vigour and conciseness of the Greek historian; but the strict imitation, with which he has followed him, has gone far to lessen the effect of his own original genius.

The first book of Sallust was the *Conspiracy of Catiline*. There exists, however, some doubt as to the precise period of its composition. The general opinion is, that it was written immediately after the author went out of office as Tribune of the People, that is, in the year 703: And the composition of the *Jugurthine War*, as well as of his general history, are fixed [pg 85]by Le Clerc between that period and his appointment to the Prætorship of Numidia. But others have supposed that they were all written during the space which intervened between his return from Numidia, in 708, and his death, which happened in 718, four years previous to the battle of Actium. It is maintained by the supporters of this last idea, that he was too much engaged in political tumults previous to his administration of Numidia, to have leisure for such important compositions—that, in the introduction to Catiline's Conspiracy, he talks of himself as withdrawn from public affairs, and refutes accusations of his voluptuous life, which were only applicable to this period; and that, while instituting the comparison between Cæsar and Cato, he speaks of the existence and competition of these celebrated opponents as things that had passed over—"Sed mea memoria, ingenti virtute, diversis moribus, fuere viri duo, Marcus Cato et Caius Cæsar." On this passage, too, Gibbon in particular argues, that such a flatterer and party tool as Sallust would not, during the life of Cæsar, have put Cato so much on a level with him in the comparison instituted between them. De Brosses agrees with Le Clerc in thinking that the Conspiracy of Catiline at least must have been written immediately after 703, as Sallust would not, subsequently to his marriage with Terentia, have commemorated the disgrace of her sister, for she, it seems, was the vestal virgin whose

intrigue with Catiline is recorded by our historian. But whatever may be the fact as to Catiline's Conspiracy, it is quite clear that the Jugurthine War was written subsequent to the author's residence in Numidia, which evidently suggested to him this theme, and afforded him the means of collecting the information necessary for completing his work.

The subjects chosen by Sallust form two of the most important and prominent topics in the history of Rome. The periods, indeed, which he describes, were painful, but they were interesting. Full of conspiracies, usurpations, and civil wars, they chiefly exhibit the mutual rage and iniquity of embittered factions, furious struggles between the patricians and plebeians, open corruption in the senate, venality in the courts of justice, and rapine in the provinces. This state of things, so forcibly painted by Sallust, produced the Conspiracy, and even in some degree formed the character of Catiline: But it was the oppressive debts of individuals, the temper of Sylla's soldiers, and the absence of Pompey with his army, which gave a possibility, and even prospect of success to a plot which affected the vital existence of the commonwealth, and which, although arrested in its commencement, was one of those violent shocks which hasten the fall of a state. The [pg 86]History of the Jugurthine War, if not so important or menacing to the vital interests and immediate safety of Rome, exhibits a more extensive field of action, and a greater theatre of war. No prince, except Mithridates, gave so much employment to the arms of the Romans. In the course of no war in which they had ever been engaged, not even the second Carthaginian, were the people more desponding, and in none were they more elated with ultimate success. Nothing can be more interesting than the account of the vicissitudes of this contest. The endless resources, and hair-breadth escapes of Jugurtha—his levity, his fickle faithless disposition, contrasted with the perseverance and prudence of the Roman commander, Metellus, are all described in a manner the most vivid and picturesque.

Sallust had attained the age of twenty-two when the conspiracy of Catiline broke out, and was an eyewitness of the whole proceedings. He had therefore, sufficient opportunity of recording with accuracy and truth the progress and termination of the conspiracy. Sallust has certainly acquired the praise of a veracious historian, and I do not know that he has been

detected in falsifying any fact within the sphere of his knowledge. Indeed there are few historical compositions of which the truth can be proved on such evidence as the Conspiracy of Catiline. The facts detailed in the orations of Cicero, though differing in some minute particulars, coincide in everything of importance, and highly contribute to illustrate and verify the work of the historian. But Sallust lived too near the period of which he treated, and was too much engaged in the political tumults of the day, to give a faithful account, unvarnished by animosity or predilection; he could not have raised himself above all hopes, fears, and prejudices, and therefore could not in all their extent have fulfilled the duties of an impartial writer. A contemporary historian of such turbulent times would be apt to exaggerate through adulation, or conceal through fear, to instil the precepts not of the philosopher but partizan, and colour facts into harmony with his own system of patriotism or friendship. An obsequious follower of Cæsar, he has been accused of a want of candour in varnishing over the views of his patron; yet I have never been able to persuade myself that Cæsar was deeply engaged in the conspiracy of Catiline, or that a person of his prudence should have leagued with such rash associates, or followed so desperate an adventurer. But the chief objection urged against Sallust's impartiality, is the feeble and apparently reluctant commendation which he bestows on Cicero, who is now acknowledged to have been the principal actor in detecting and [pg 87]frustrating the conspiracy. Though fond of displaying his talent for drawing characters, he exercises none of it on Cicero, whom he merely terms "homo egregius et optumus Consul," which was but cold applause for one who had saved the commonwealth. It is true, that, in the early part of the history, praise, though sparingly bestowed, is not absolutely withheld. The election of Cicero to the Consulship is fairly attributed to the high opinion entertained of his capacity, which overcame the disadvantage of his obscure birth. The mode adopted for gaining over one of Catiline's accomplices, and fixing his own wavering and disaffected colleague,—the dexterity manifested in seizing the Allobrogian deputies with the letters, and the irresistible effect produced, by confronting them with the conspirators, are attributed exclusively to Cicero. It is in the conclusion of these great transactions that the historian withholds from him his due share of applause, and contrives to eclipse him by always interposing the character of Cato, though it could not be unknown to any witness of the proceedings that Cato himself, and other senators, publicly

hailed the Consul as the Father of his country, and that a public thanksgiving to the gods was decreed in his name, for having preserved the city from conflagration, and the citizens from massacre¹⁹². This omission, which may have originated partly in enmity, and partly in disgust at the ill-disguised vanity of the Consul, has in all times been regarded as the chief defect, and even stain, in the history of the Catilinarian conspiracy.

Although not an eye-witness of the war with Jugurtha Sallust's situation as Prætor of Numidia, which suggested the composition, was favourable to the authority of the work, by affording opportunity of collecting materials and procuring information. He examined into the different accounts, written as well as traditionary, concerning the history of Africa¹⁹³, particularly the documents preserved in the archives of King Hiempsal, which he caused to be translated for his own use, and which proved peculiarly serviceable for his detailed description of the continent and inhabitants of Africa. He has been accused of showing, in this history, an undue partiality towards the character of Marius, and giving, for the sake of his favourite leader, an unfair account of the massacre at [pg 88]Vacca. But he appears to me to do even more than ample justice to Metellus, as he represents the war as almost finished by him previous to the arrival of Marius, though it was, in fact, far from being concluded.

Veracity and fidelity are the chief, and, indeed, the indispensable duties of an historian. Of all the *ornaments* of historic composition, it derives its chief embellishment from a graceful and perspicuous style. That of the early annalists, as we have already seen, was inelegant and jejune; but style came to be considered, in the progress of history, as a matter of primary importance. It is unfortunate, perhaps, that so much value was at length attached to it, since the ancient historians seldom gave their authorities, and considered the excellence of history as consisting in fine writing, more than in an accurate detail of facts. Sallust evidently regarded an elegant style as one of the chief merits of an historical work. His own style, on which he took so much pains, was carefully formed on that of Thucydides, whose manner of writing was in a great measure original, and, till the time of Sallust, peculiar to himself. The Roman has wonderfully succeeded in imitating the vigour and conciseness of the Greek historian, and infusing into his composition something of that dignified austerity, which

distinguishes the works of his great model; but when I say that Sallust has imitated the conciseness of Thucydides, I mean the rapid and compressed manner in which his narrative is conducted,—in short, brevity of idea, rather than language. For Thucydides, although he brings forward only the principal idea, and discards what is collateral, yet frequently employs long and involved periods. Sallust, on the other hand, is abrupt and sententious, and is generally considered as having carried this sort of brevity to a vicious excess. The use of copulatives, either for the purpose of connecting his sentences with each other, or uniting the clauses of the same sentence, is in a great measure rejected. This omission produces a monotonous effect, and a total want of that flow and that variety, which are the principal charms of the historic period. Seneca accordingly talks of the “*Amputatæ sententiæ, et verba ante expectatum cadentia*¹⁹⁴,” which the practice of Sallust had rendered fashionable. Lord Monboddo calls his style incoherent, and declares that there is not one of his short and uniform sentences which deserves the name of a period; so that supposing each sentence were in itself beautiful, there is not variety enough to constitute fine writing.

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It was, perhaps, partly in imitation of Thucydides, that Sallust introduced into his history a number of words almost considered as obsolete, and which were selected from the works of the older authors of Rome, particularly Cato the Censor. It is on this point he has been chiefly attacked by Pollio, in his letters to Plancus. He has also been taxed with the opposite vice, of coining new words, and introducing Greek idioms; but the severity of judgment which led him to imitate the ancient and austere dignity of style, made him reject those sparkling ornaments of composition, which were beginning to infect the Roman taste, in consequence of the increasing popularity of the rhetoric schools of declamation, and the more frequent intercourse with Asia. On the whole, in the style of Sallust, there is too much appearance of study, and a want of that graceful ease, which is generally the effect of art, but in which art is nowhere discovered. The opinion of Sir J. Checke, as reported by Ascham in his *Schoolmaster*, contains a pretty accurate estimate of the merits of the style of Sallust. “Sir J. Checke said, that he could not recommend Sallust as a good pattern of style for young men, because in his writings there was more art than nature, and more labour than art; and in his labour, also, too much toil, as it were,

with an uncontented care to write better than he could—a fault common to very many men. And, therefore, he doth not express the matter lively and naturally with common speech, as ye see Xenophon doth in Greek, but it is carried and driven forth artificially, after too learned a sort, as Thucydides doth in his orations. ‘And how cometh it to pass,’ said I, ‘that Cæsar’s and Cicero’s talk is so natural and plain, and Sallust’s writing so artificial and dark, when all the three lived in one time?’—‘I will freely tell you my fancy herein,’ said he; ‘Cæsar and Cicero, beside a singular prerogative of natural eloquence given unto them by God, were both, by use of life, daily orators among the common people, and greatest councillors in the Senate-house; and therefore gave themselves to use such speech as the meanest should well understand, and the wisest best allow, following carefully that good council of Aristotle, *Loquendum ut multi; sapiendum ut pauci*. But Sallust was no such man.’ ”

Of all departments of history, the delineation of character is that which is most trying to the temper and impartiality of the writer, more especially when he has been contemporary with the individuals he portrays, and in some degree engaged in the transactions he records. Five or six of the characters drawn by Sallust have in all ages been regarded as masterpieces: He has seized the delicate shades, as well as the prominent features, and thrown over them the most lively and appropriate colouring. Those of the two principal actors in his tragic histories are forcibly given, and prepare us for the incidents which follow. The portrait drawn of Catiline conveys a vivid idea of his mind and person,—his profligate untameable spirit, infinite resources, unwearied application, and prevailing address. We behold, as it were, before us the deadly paleness of his countenance, his ghastly eye, his unequal troubled step, and the distraction of his whole appearance, strongly indicating the restless horror of a guilty conscience. I think, however, it might have been instructive and interesting had we seen something more of the atrocities perpetrated in early life by this chief conspirator. The historian might have shown him commencing his career as the chosen favourite of Sylla, and the instrument of his monstrous cruelties. The notice of the other conspirators is too brief, and there is too little discrimination of their characters. Perhaps the outline was the same in all, but each might have been individuated by distinctive features. The parallel drawn between Cato and Cæsar is one of the most celebrated passages in

the history of the conspiracy. Of both these famed opponents we are presented with favourable likenesses. Their defects are thrown into shade; and the bright qualities of each different species which distinguished them, are contrasted for the purpose of showing the various merits by which men arrive at eminence.

The introductory sketch of the genius and manners of Jugurtha is no less able and spirited than the character of Catiline. We behold him, while serving under Scipio, as brave, accomplished, and enterprising; but imbued with an ambition, which, being under no control of principle, hurried him into its worst excesses, and rendered him ultimately perfidious and cruel. The most singular part of his character was the mixture of boldness and irresolution which it combined; but the lesson we receive from it, lies in the miseries of that suspicion and that remorse which he had created in his own mind by his atrocities, and which rendered him as wretched on the throne, or at the head of his army, as in the dungeon where he terminated his existence. The portraits of the other principal characters, who figured in the Jugurthine War, are also well brought out. That of Marius, in particular, is happily touched. His insatiable ambition is artfully disguised under the mask of patriotism,—his cupidity and avarice are concealed under that of martial simplicity and hardihood; but, though we know from his subsequent career the hypocrisy of his pretensions, the character of Marius is presented to us in a more favourable light than that in which it can be viewed on a survey of his [pg 91]whole life. We see the blunt and gallant soldier, and not that savage whose innate cruelty of soul was just about to burst forth for the destruction of his countrymen. In drawing the portrait of Sylla, the memorable rival of Marius, the historian represents him also such as he appeared at that period, not such as he afterwards proved himself to be. We behold him with pleasure as an accomplished and subtle commander, eloquent in speech, and versatile in resources; but there is no trace of the cold-blooded assassin, the tyrant, buffoon, and usurper.

In general, Sallust's painting of character is so strong, that we almost foresee how each individual will conduct himself in the situation in which he is placed. Tacitus attributes all the actions of men to policy,—to refined, and sometimes imaginary views; but Sallust, more correctly, discovers their chief springs in the passions and dispositions of individuals. "Salluste,"

says St Evremond, “donne autant au naturel, que Tacite à la politique. Le plus grand soin du premier est de bien connoître le génie des hommes; les affaires viennent après naturellement, par des actions peu recherchées de ces mêmes personnes qu’il a peintes.”

History, in its original state, was confined to narrative; the reader being left to form his own reflections on the deeds or events recorded. The historic art, however, conveys not complete satisfaction, unless these actions be connected with their causes,—the political springs, or private passions, in which they originated. It is the business, therefore, of the historian, to apply the conclusions of the politician in explaining the causes and effects of the transactions he relates. These transactions the author must receive from authentic monuments or records, but the remarks deduced from them must be the offspring of his own ingenuity. The reflections with which Sallust introduces his narrative, and those he draws from it, are so just and numerous that he has by some been considered as the father of philosophic history. It must always, however, be remembered, that the proper object of history is the detail of national transactions,—that whatever forms not a part of the narrative is episodical, and therefore improper, if it be too long, and do not grow naturally out of the subject. Now, some of the political and moral digressions of Sallust are neither very immediately connected with his subject, nor very obviously suggested by the narration. The discursive nature and inordinate length of the introductions to his histories have been strongly censured. The first four sections of Catiline’s conspiracy have indeed little relation to that topic. They might as well have been prefixed to any other history, and [pg 92]much better to a moral or philosophic treatise. In fact, a considerable part of them, descanting on the fleeting nature of wealth and beauty, and all such adventitious or transitory possessions, is borrowed from the second oration of Isocrates. Perhaps the eight following sections are also disproportioned to the length of the whole work; but the preliminary essay they contain, on the degradation of Roman manners and decline of virtue, is not an unsuitable introduction to the conspiracy, as it was this corruption of morals which gave birth to it, and bestowed on it a chance of success. The preface to the Jugurthine War has much less relation to the subject which it is intended to introduce. The author discourses at large on his favourite topics the superiority of mental endowments over corporeal advantages, and the beauty of virtue and genius. He contrasts a

life of listless indolence with one of honourable activity; and, finally, descants on the task of the historian as a suitable exercise for the highest faculties of the mind.

Besides the conspiracy of Catiline and the Jugurthine War, which have been preserved entire, and from which our estimate of the merits of Sallust must be chiefly formed, he was author of a civil and military history of the republic, in five books, entitled, *Historia rerum in Republica Romana Gestarum*. This work, inscribed to Lucullus, the son of the celebrated commander of that name, was the mature fruit of the genius of Sallust, having been the last history he composed. It included, properly speaking, only a period of thirteen years,—extending from the resignation of the dictatorship by Sylla, till the promulgation of the Manilian law, by which Pompey was invested with authority equal to that which Sylla had relinquished, and obtained, with unlimited power in the east, the command of the army destined to act against Mithridates. This period, though short, comprehends some of the most interesting and luminous points which appear in the Roman Annals. During this interval, and almost at the same moment, the republic was attacked in the east by the most powerful and enterprising of the monarchs with whom it had yet waged war; in the west, by one of the most skilful of its own generals; and in the bosom of Italy, by its gladiators and slaves. This work also was introduced by two discourses—the one presenting a picture of the government and manners of the Romans, from the origin of their city to the commencement of the civil wars, the other containing a general view of the dissensions of Marius and Sylla; so that the whole book may be considered as connecting the termination of the Jugurthine war, and the breaking out of Catiline's conspiracy. The loss of this [pg 93]valuable production is the more to be regretted, as all the accounts of Roman history which have been written, are defective during the interesting period it comprehended. Nearly 700 fragments belonging to it have been amassed, from scholiasts and grammarians, by De Brosses, the French translator of Sallust; but they are so short and unconnected, that they merely serve as land-marks, from which we may conjecture what subjects were treated of, and what events were recorded. The only parts of the history which have been preserved in any degree entire, are four orations and two letters. Pomponius Lætus discovered the orations in a MS. of the Vatican, containing a collection of

speeches from Roman history. The first is an oration pronounced against Sylla by the turbulent Marcus Æmilius Lepidus; who, (as is well known,) being desirous, at the expiration of his year, to be appointed a second time Consul, excited, for that purpose, a civil war, and rendered himself master of a great part of Italy. His speech which was preparatory to these designs, was delivered after Sylla had abdicated the dictatorship, but was still supposed to retain great influence at Rome. He is accordingly treated as being still the tyrant of the state; and the people are exhorted to throw off the yoke completely, and to follow the speaker to the bold assertion of their liberties. The second oration, which is that of Lucius Philippus, is an invective against the treasonable attempt of Lepidus, and was calculated to rouse the people from the apathy with which they beheld proceedings that were likely to terminate in the total subversion of the government. The third harangue was delivered by the Tribune Licinius: It was an effort of that demagogue to depress the patrician, and raise the tribunitial power, for which purpose he alternately flatters the people, and reviles the Senate. The oration of Marcus Cotta is unquestionably a fine one. He addressed it to the people, during the period of his Consulship, in order to calm their minds, and allay their resentment at the bad success of public affairs, which, without any blame on his part, had lately, in many respects, been conducted to an unprosperous issue. Of the two letters which are extant, the one is from Pompey to the Senate, complaining, in very strong terms, of the deficiency in the supplies for the army which he commanded in Spain against Sertorius; the other is feigned to be addressed from Mithridates to Arsaces, King of Parthia, and to be written when the affairs of the former monarch were proceeding unsuccessfully. It exhorts him, nevertheless, with great eloquence and power of argument, to join him in an alliance against the Romans: for this purpose, it places in a strong point of view their unprin[pg 94]cipled policy, and ambitious desire of universal empire—all which could not, without this device of an imaginary letter by a foe, have been so well urged by a national historian. It concludes with showing the extreme danger which the Parthians would incur from the hostility of the Romans, should they succeed in finally subjugating Pontus and Armenia. The only other fragment, of any length, is the description of a splendid entertainment given to Metellus, on his return, after a year's absence, to his government of Farther Spain. It appears, from several other fragments, that Sallust had introduced, on occasion of the Mithridatic war, a geographical

account of the shores and countries bordering on the Euxine, in the same manner as he enters into a topographical description of Africa, in his history of the Jugurthine war. This part of his work has been much applauded by ancient writers for exactness and liveliness; and is frequently referred to, as the highest authority, by Strabo, Pomponius Mela, and other geographers.

Besides his historical works, there exist two political discourses, concerning the administration of the government, in the form of letters to Julius Cæsar, which have generally, though not on sufficient grounds, been attributed to the pen of Sallust¹⁹⁵.

As Sallust has obviously imitated, and, in fact, resembles Thucydides, so has

JULIUS CÆSAR,

in his historical works, been compared to Xenophon, the first memoir writer among the Greeks. Simplicity is the characteristic of both, but Xenophon has more rhetorical flow and sweetness of style, and he is sometimes, I think, a little mawkish; while the simplicity of Cæsar, on the other hand, borders, perhaps, on severity. Cæsar, too, though often circumstantial, is never diffuse, while Xenophon is frequently prolix, without being minute or accurate. “In the Latin work,” says Young, in his *History of Athens*, “we have the commentaries of a general vested with supreme command, and who felt no anxiety about the conduct or obedience of his army—in the Greek, we possess the journal of an officer in subordinate rank, though of high estimation. Hence the [pg 95]speeches of the one are replete with imperatorial dignity, those of the other are delivered with the conciliatory arts of argument and condescension. Hence, too, the mind of Xenophon was absorbed in the care and discipline of those under his command; but thence we are better acquainted with the Greek army than with that of Cæsar. Cæsar’s attention was ever directed to those he was to attack, to counteract, or to oppose—Xenophon’s to those he was to conduct. For the same reason, Xenophon is superficial with respect to any peculiarities of the nations he passed through; while in Cæsar we have a curious, and well authenticated detail, relative to the Gauls, the Britons, and every other enemy. The comparison, however, holds in this, that Cæsar, like Xenophon, was properly a writer of Memoirs. Like him, he aimed at nothing farther than communicating facts in a plain familiar manner; and the account of his campaign was only drawn up as materials for future history, not having leisure to bestow that ornament and dress which history requires.” In the opinion of his contemporaries, however, and all subsequent critics, he has rendered desperate any attempt to write the history of the wars of which he treats. “Dum voluit,” says Cicero, “alios habere parata, unde sumerent, qui vellent scribere historiam, sanos quidem homines a scribendo deterruit.” A similar opinion is given by his continuator Hirtius,—“Adeo probantur omnium judicio ut prærepta, non præbita, facultas scriptoribus videatur.”

Cæsar's Commentaries consist of seven books of the Gallic, and three of the civil wars. Some critics, however, particularly Floridus Sabinus¹⁹⁶, deny that he was the author of the books on the latter war, while Carrio and Ludovicus Caduceus doubt of his being the author even of the Gallic war,—the last of these critics attributing the work to Suetonius. Hardouin, who believed that most of the works now termed classical, were forgeries of the monks in the thirteenth century, also tried to persuade the world, that the whole account of the Gallic campaigns was a fiction, and that Cæsar had never drawn a sword in Gaul in his life. The testimony, however, of Cicero and Hirtius, who were contemporary with Cæsar,—of many authentic writers, who lived after him, as Suetonius, Strabo, and Plutarch,—and of all the old grammarians, must be considered as settling the question; for if such evidence is not implicitly trusted, there seems to be an end of all reliance on ancient authority.

Though these Commentaries comprehend but a small extent [pg 96] of time, and are not the general history of a nation, they embrace events of the highest importance, and they detail, perhaps, the greatest military operations to be found in ancient story. We see in them all that is great and consummate in the art of war. The ablest commander of the most martial people on the globe records the history of his own campaigns. Placed at the head of the finest army ever formed in the world, and one devoted to his fortunes, but opposed by military skill and prowess only second to its own, he, and the soldiers he commanded, may be almost extolled in the words in which Nestor praised the heroes who had gone before him:—

“Καρτισοι δη κεινοι ἐπιχθονιων τραφεν ανδρων,
Καρτισοι μεν ἔσαν και καρτισοις ἐμαχοντο,” —

for the Gauls and Germans were among the bravest and most warlike nations then on earth, and Pompey was accounted the most consummate general of his age. No commander, it is universally admitted, ever had such knowledge of the mechanical part of war: He possessed the complete empire of the sea, and was aided by all the influence derived from the constituted authority of the state.

Perhaps the most interesting part of the whole Commentaries, is the account of the campaign in Spain against Afranius and Petreius, in which Cæsar,

being reduced to extremities for want of provisions and forage, (in consequence of the bridges over the rivers, between which he had encamped, being broken down,) extricated himself from this situation, after a variety of skilful manœuvres, and having pursued Pompey's generals into Celtiberia, and back again to Lerida, forced their legions to surrender, by placing them in those very difficulties from which he had so ably relieved his own army.

It is obvious that the greater part of such Commentaries must be necessarily occupied with the detail of warlike operations. The military genius of Rome breathes through the whole work, and it comprehends all the varieties which warfare offers to our interest, and perhaps, undue admiration—pitched battles, affairs of posts, encampments, retreats, marches in face of the foe through woods and over plains or mountains, passages of rivers, sieges, defence of forts, and those still more interesting accounts of the spirit and discipline of the enemies' troops, and the talents of their generals. In his clear and scientific details of military operations, Cæsar is reckoned superior to every writer, except, perhaps, Polybius. Some persons have thought he was too minute, and that, by describing every evolution performed in a battle, he has rendered his [pg 97]relations somewhat crowded. But this was his principle, and it served the design of the author.

As he records almost nothing at which he was not personally present, or heard of from those acting under his immediate directions, he possessed the best information with regard to everything of which he wrote¹⁹⁷. In general, when he speaks of himself, it is without affectation or arrogance. He talks of Cæsar as of an indifferent person, and always maintains the character which he has thus assumed; indeed, it can hardly be conceived that he had so small a share in the great actions he describes, as appears from his own representations. With exception of the false colours with which he disguises his ambitious projects against the liberties of his country, everything seems to be told with fidelity and candour. Nor is there any very unfair concealment of the losses he may have sustained: he ingenuously acknowledges his own disaster in the affair at Dyracchium; he admits the loss of 960 men, and the complete frustration of his whole plan for the campaign. When he relates his successes, on the other hand, it is with moderation. There is the utmost caution, reserve, and modesty, in his

account of the battle of Pharsalia; and one would hardly conceive that the historian had any share in the action or victory. He in general acknowledges, that the events of war are beyond human control, and ascribes the largest share of success to the power of fortune. The rest he seems willing to attribute to the valour of his soldiers, and the good conduct of his military associates. Thus he gives the chief credit and glory of the great victory over Ariovistus to the presence of mind displayed by Crassus, who promptly made the signal to a body of men to advance and support one of the wings which was overpowered by the multitude of the enemy, and was beginning to give way. He does not even omit to do justice to the distinguished and generous valour of the two centurions, Pulvio and Varenus, or of the centurion Sextius Baculus, during the alarming attack by the Sicambri. On the other hand, when he has occasion to mention the failure of his friends, as in relating Curio's defeat and death in Africa, he does it with tenderness and indulgence. Of his enemies, he speaks without insult or contempt; and even in giving his judgment upon a great military question, though he disapproves Pompey's mode of waiting for the attack at Pharsalia, his own reasons [pg 98]for a contrary opinion are urged with deference and candour. The confident hopes which were entertained in Pompey's camp—the pretensions and disputes of the leading senators, about the division of patronage and officers, and the confiscations which were supposed to be just falling within their grasp, furnished him with some amusing anecdotes, which it must have been difficult to resist inserting; nor can we wonder, that while all the preparations for celebrating the anticipated victory with luxury and festivity, were matters of ocular observation, he should have devoted some few passages in his Commentaries, to recording the vanity and presumption of such fond expectations. Labienus, who had deserted him, and Scipio, who gave him so much trouble, by rekindling the war, are those of whom he speaks with the greatest rancour, in relating the cruelty of the former, and the tyrannical ingenious rapacity of the latter¹⁹⁸.

Whatever concerns the events of the civil war could not easily have been falsified or misrepresented. So many enemies, who had been eye-witnesses of everything, survived that period, that the author could scarcely have swerved from the truth without detection. But in his contests with the Gauls, and Germans, and Britons, there was no one to contradict him. Those

who accompanied him were devoted to his fame and fortunes, and interested like himself in exalting the glory of these foreign exploits. That he has varnished over the real motives, and also the issue, of his expedition to Britain has been frequently suspected. The reason he himself assigns for the undertaking is, that he understood supplies had been thence furnished to the enemy, in almost all the Gallic wars; but Suetonius asserts, that the information he had received of the quantity and size of the pearls on the British coast, was his real inducement. Fourteen short chapters in the fourth book of the Gallic war, relate his first visit, and his hasty return; and sixteen in the fifth, detail his progress in the following summer. These chapters have derived importance from containing the earliest authentic memorials of the inhabitants and state of this island; and there has, of course, been much discussion on the genuine though imperfect notices they afford. Various tracts, chiefly published in the *Archæologia*, have topographically followed the various steps of Cæsar's progress, particularly his passage across the Thames, and have debated the situation of the Portus Iccius, from which he embarked for Britain.

Cæsar's occasional digressions concerning the manners of [pg 99]the Gauls and Germans, are also highly interesting and instructive, and are the only accounts to be at all depended on with regard to the institutions and customs of these two great nations, at that remote period. In Gaul he had remained so long, and had so thoroughly studied the habits and customs of its people for his own political purposes, that whatever is delivered concerning that country, may be confidently relied on. His intercourse with the German tribes was occasional, and chiefly of a military description. Some of his observations on their manners—as their hospitality, the continence of their youth, and the successive occupation of different lands by the same families—are confirmed by Tacitus; but in other particulars, especially in what relates to their religion, he is contradicted by that great historian. Cæsar declares that they have no sacrifices, and know no gods, but those, like the Sun or Moon, which are visible, and whose benefits they enjoy¹⁹⁹. Tacitus informs us, that their chief god is Mercury, whom they appease by human victims; that they also sacrifice animals to Hercules and Mars; and adore that Secret Intelligence, which is only seen in the eye of mental veneration²⁰⁰. The researches of modern writers have also thrown some doubts on the accuracy of Cæsar's German topography; and Cluverius, in

particular, has attempted to show, that he has committed many errors in speaking both of the Germans and Batavians²⁰¹.

As the Commentaries of Cæsar do not pretend to the elaborate dignity of history, the author can scarcely be blamed if he has detailed his facts without mingling many reflections or observations. He seldom inserts a political or characteristic remark, though he had frequent opportunities for both, in describing such singular people as the Gauls, Germans, and Britons. But his object was not, like Sallust or Tacitus, to deduce practical reflections for the benefit of his reader, or to explain the political springs of the transactions he relates. His simple narrative was merely intended for the gratification of those Roman citizens, whom he had already persuaded to favour his ambitious projects; yet even they, I think, might have wished to have heard something more of what may be called the military motives of his actions. He tells us of his [pg 100]marches, retreats, and encampments, but seldom sufficiently explains the grounds on which these warlike measures were undertaken—how they advanced his own plans, or frustrated the designs of the enemy. More insight into the military views by which he was prompted, would have given additional interest and animation to his narrative, and afforded ampler lessons of instruction.

No person, I presume, wishes to be told, for the twentieth time, that the style of Cæsar is remarkable for clearness and ease, and a simplicity more truly noble than the pomp of words. Perhaps the most distinguishing characteristic of his style, is its perfect equality of expression. There was, in the mind of Cæsar, a serene and even dignity. In temper, nothing appeared to agitate or move him—in conduct, nothing diverted him from the attainment of his end. In like manner, in his style, there is nothing swelling or depressed, and not one word occurs which is chosen for the mere purpose of embellishment. The opinion of Cicero, who compared the style of Cæsar to the unadorned simplicity of an ancient Greek statue, may be considered as the highest praise, since he certainly entertained no favourable feelings towards the author; and the style was very different from that which he himself employed in his harangues, or philosophical works, or even in his correspondence. “Nudi sunt,” says he, “recti, et venusti, omni ornatu orationis tanquam veste detracto.” This exquisite purity was not insensibly obtained, as the Lælian and Mucian Families are

said to have acquired it, by domestic habit and familiar conversation, but by assiduous study and thorough knowledge of the Latin language²⁰², and the practice of literary composition, to which Cæsar had been accustomed from his earliest youth²⁰³.

But, however admirable for its purity and elegance, the style of Cæsar seems to be somewhat deficient, both in vivacity and vigour. Walchius, too, has pointed out a few words, which he considers not of pure Latinity, as *ambactus*, a term employed by the Gauls and Germans to signify a servant—also *Ancorarii* funes, a word nowhere else used as an adjective—*Antemittere* for *premittere*, and *summo magistratu præiverat* for *magistratui*²⁰⁴. The use of such words as *collabefieret*, *contabulatio*, *detrimentosum*, *explicitius*, *materiari*, would lead us to suspect that Cæsar had not *always* attended to the rule which he so strongly laid down in his book, *De Analogia*, [pg 101]to avoid, as a rock, every unusual word or expression. Bergerus, in an immense quarto, entitled *De Naturali pulchritudine Orationis* has at great length attempted to show that Cæsar had anticipated all the precepts subsequently delivered by Longinus, for reaching the utmost excellence and dignity of composition. He points out his conformity to these rules, in what he conceives to be the abridgments, amplifications, transitions, gradations,—in short, all the various figures and ornaments of speech, which could be employed by the most pedantic rhetorician; and he also critically examines those few words and phrases of questionable purity, which are so thinly scattered through the Commentaries.

Mankind usually judge of a literary composition by its intrinsic merit, without taking into consideration the age of the author, the celerity with which it was composed, or the various circumstances under which it was written; and in this, perhaps, they act not unjustly, since their business is with the work, and not with the qualities of the author. But were such things to be taken into view, it should be remembered, that these Memoirs were hastily drawn up during the tumult and anxiety of campaigns, and were jotted down from day to day, without care or premeditation. “Ceteri,” says Hirtius, the companion of Cæsar’s expeditions, and the continuator of his Commentaries,—“Ceteri quam bene atque emendate; nos etiam quam facile atque celeriter eos perscripserit scimus.”

The Commentaries, *De Bello Gallico*, and *De Bello Civili*, are the only productions of Cæsar which remain to us. Several ancient writers speak of his *Ephemeris*, or Diary; but it has been doubted whether the work, so termed by Plutarch, Servius, Symmachus, and several others, be the same book as the Commentaries, or a totally different production. The former opinion is adopted by Fabricius, who thinks that *Ephemeris*, or *Ephemerides*, is only another name for the Commentaries, which in fact may be considered as having been written in the manner and form of a diary. He acknowledges, that several passages, cited by Servius, as taken from these *Ephemerides*, are not now to be found in the Commentaries; but then he maintains that there are evidently defects (*lacunæ*) in the latter work; and he conjectures that the words quoted by Servius are part of the lost passages of the Commentaries. This opinion is followed by Vossius, who cites a sort of Colophon at the end of one of the oldest MSS. of the Commentaries which he thinks decisive of the question, as it shows that the term *Ephemeris* was currently applied to them.—“C. J. Cæsar, P. M. Ephemeris rerum Gestarum Belli Gallici, Lib. VIII. explicit feliciter.”

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Bayle, in his Dictionary, has supported the opposite theory. He believes the *Ephemeris* to have been a journal of the author's life. He admits, that a passage which Plutarch quotes as from the *Ephemeris*, occurs also in the fourth book of the Commentaries; but then he maintains, that it was impossible for Cæsar not to have frequently mentioned the same thing in his Commentaries and Journal, and he thinks, that had Plutarch meant to allude to the former, he would have called them, not *Ephemeris*, but ὑπομνηματα as Strabo has termed them. Besides, Polyænus mentions divers warlike stratagems, as recorded by Cæsar, which are not contained in the Commentaries, and which, therefore, could have been explained only in the separate work *Ephemeris*.

There are still some fragments remaining of the letters which Cæsar addressed to the Senate and his friends, and also of his orations, which were considered as inferior only to those of Cicero. Of his rhetorical talents, something may be hereafter said. It appears that his qualities as an orator and historian, were very different, since vehemence and the power of exciting emotion, (*concitatio*), are mentioned as the characteristics of his

harangues. Some of them were delivered in behalf of clients, and on real business, in the Forum; but the two orations entitled *Anticatones* were merely written in the form and manner of accusations before a judicial tribunal. These rhetorical declamations, which were composed about the time of the battle of Munda, were intended as an answer to the laudatory work of Cicero, called *Laus Catonis*. The author particularly considered in them the last act of Cato at Utica, and has raked up all the vices and defects of his character, whether real or imputed, public or private,—his ambition, affectation of singularity, churlishness, and avarice; but as the *Anticatones* were seasoned with lavish commendations of Cicero, whose panegyric on Cato they were intended to confute, the orator felt much flattered with the dictatorial incense, and greatly admired the performances in which it was offered,—“Collegit vitia Catonis, sed cum maximis laudibus meis²⁰⁵.”

These two rival works were much celebrated at Rome; and both of them had their several admirers, as different parties and interests disposed men to favour the subject, or the author of each. It seems also certain, that they were the principal cause of establishing and promoting that veneration which posterity has since paid to the memory of Cato; for his name being thrown into controversy in that critical period of the [pg 103]fate of Rome, by the patron of liberty on one side, and its oppressor on the other, it became a kind of political test to all succeeding ages, and a perpetual argument of dispute between the friends of freedom, and the flatterers of power²⁰⁶. The controversy was taken up by Brutus, the nephew, and Fabius Gallus, an admirer of Cato: it was renewed by Augustus, who naturally espoused the royal side of the question, and by Thræseas Pætus, who ventured on this dangerous topic during the darkest days of imperial despotism.

Cæsar’s situation as Pontifex Maximus probably led him to write the *Auguralia* and *Libri Auspiciousum*, which, as their names import, were books explaining the different auguries and presages derived from the flight of birds. To the same circumstance we may attribute his work on the motions of the stars, *De Motu Siderum*, which explains what he had learned in Egypt on that subject from Sosigenes, a peripatetic philosopher of Alexandria, and in which, if we may credit the elder Pliny, he prognosticated his own death on the ides of March²⁰⁷.

The composition of the works hitherto mentioned naturally enough suggested itself to a high-priest, warrior, and politician, who was also fond of literature, and had the same command of his pen as of his sword. But it appears singular, that one so much occupied with war, and with political schemes for the ruin of his country, should have seriously employed himself in writing formal and elaborate treatises on grammar. There is no doubt, however, that he composed a work, in two books, on the analogies of the Latin tongue, which was addressed to Cicero, and was entitled, like the preceding work of Varro on the same subject, *De Analogia*. It was written, as we are informed by Suetonius, while crossing the Alps, on his return to the army from Hither Gaul, where he had gone to attend the assemblies of that province²⁰⁸. In this book, the great principle established by him was, that the proper choice of words formed the foundation of eloquence²⁰⁹; and he cautioned authors and public speakers to avoid as a rock every unusual word or unwonted expression²¹⁰. His declensions, however, of some nouns, appear, at least to us, not a little strange—as *turbo*, *turbonis*, instead of *turbinis*²¹¹; and likewise his inflections of verbs,—as, *mordeo*, *memordi*; *pungo*., *pepugi*; *spondeo*, *spepondi*²¹². He also treated of derivatives; as we are informed, that he derived *ens* from the verb *sum*, *es*, *est*; and of rules of grammar,—as that the dative and ablative singular [pg 104]of neuters in *e* are the same, as also of neuters in *ar*, except *far* and *jubar*. It appears that he even descended to the most minute consideration of orthography and the formation of letters; Thus, he was of opinion, that the letter V should be formed like an inverted F,—thus ⱥ ,—because it has the force of the Æolic digamma. Cassiodorus farther mentions, that, in the question with regard to the use of the *u* or *i* in such words as *maxumus* or *maximus*, Cæsar gave the preference to *i*; and, from such high authority, this spelling was adopted in general practice.

It has been said, that Cæsar also made a collection of apophthegms and anecdotes, in the style of our modern *Ana*; but Augustus prevented these from being made public. That emperor likewise, in a letter to Pompeius Macrus, to whom he had given the charge of arranging his library, prohibited the publication of several poetical effusions of Cæsar's youth. These are said to have consisted of a tragedy on the subject of Œdipus, and a poem in praise of Hercules²¹³. Another poem, entitled *Iter* was written by him in maturer age. It is said, by Suetonius, to have been composed when

he reached Farther Spain, on the twenty-fourth day after his departure from Rome²¹⁴; and it may therefore be conjectured to have been a poetical relation of the incidents which occurred during that journey, embellished, perhaps, with descriptions of the most striking scenery through which he passed. Two epigrams, which are still extant, have also been frequently attributed to him; one on the dramatic character of Terence, already quoted²¹⁵, and another on a Thracian boy, who, while playing on the ice, fell into the river Hebrus,—

“Thrax puer, astricto glacie dum luderet Hebro,” &c.

But this last is, with more probability, supposed by many to have been the production of Cæsar Germanicus.

There were also several useful and important works accomplished under the eye and direction of Cæsar, such as the graphic survey of the whole Roman empire. Extensive as their conquests had been, the Romans hitherto had done almost nothing for geography, considered as a science. Their knowledge was confined to the countries they had subdued, and them they regarded only with a view to the levies they could furnish, and the taxations they could endure. Cæsar was the first who formed more exalted plans. Æthicus, a writer of the fourth century, informs us, in the preface to his *Cosmographia*, [pg 105] that this great man obtained a *senatusconsultum*, by which a geometrical survey and measurement of the whole Roman empire was enjoined to three geometers. Xenodoxus was charged with the eastern, Polycletus with the southern, and Theodotus with the northern provinces. Their scientific labour was immediately commenced, but was not completed till more than thirty years after the death of him with whom the undertaking had originated. The information which Cæsar had received from the astronomer Sosigenes in Egypt, enabled him to alter and amend the Roman calendar. It would be foreign from my purpose to enter into an examination of this system of the Julian year, but the computation he adopted has been explained, as is well known, by Scaliger and Gassendi²¹⁶; and it has been since maintained, with little farther alteration than that introduced by Pope Gregory XIII. When we consider the imperfection of all mathematical instruments in the time of Cæsar, and the total want of telescopes, we cannot but view with admiration, not unmixed with

astonishment, that comprehensive genius, which, in the infancy of science, could surmount such difficulties, and compute a system, that experienced but a trifling derangement in the course of sixteen centuries.

Although Cæsar wrote with his own hand only seven books of the Gallic campaigns, and the history of the civil wars till the death of his great rival, it seems highly probable, that he revised the last or eighth book of the Gallic war, and communicated information for the history of the Alexandrian and African expeditions, which are now usually published along with his own Commentaries, and may be considered as their supplement, or continuation. The author of these works, which nearly complete the interesting story of the campaigns of Cæsar, was Aulus Hirtius, one of his most zealous followers, and most confidential friends. He had been nominated Consul for the year following the death of his master; and, after that event, having espoused the cause of freedom, he was slain in the attack made by the forces of the republic on Antony's camp, near Modena.

The eighth book of the Gallic war contains the account of the renewal of the contest by the states of Gaul, after the surrender of Alesia, and of the different battles which ensued, at most of which Hirtius was personally present, till the final pacification, when Cæsar, learning the designs which were forming against him at Rome, set out for Italy.

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Cæsar, in the conclusion of the third book of the Civil War, mentions the commencement of the Alexandrian war. Hirtius was not personally present at the succeeding events of this Egyptian contest, in which Cæsar was involved with the generals of Ptolemy, nor during his rapid campaigns in Pontus against Pharnaces, and against the remains of the Pompeian party in Africa, where they had assembled under Scipio, and being supported by Juba, still presented a formidable appearance. He collected, however, the leading events from the conversation of Cæsar²¹⁷, and the officers who were engaged in these campaigns. He has obviously imitated the style of his master; and the resemblance which he has happily attained, has given an appearance of unity and consistence to the whole series of these well-written and authentic memoirs. It appears that Hirtius carried down the

history even to the death of Cæsar, for in his preface addressed to Balbus, he says, that he had brought down what was left imperfect from the transactions at Alexandria, to the end, not of the civil dissensions, to a termination of which there was no prospect, but of the life of Cæsar²¹⁸.

This latter part, however, of the Commentaries of Hirtius, has been lost, as it seems now to be generally acknowledged that he was not the author of the book *De Bello Hispanico*, which relates Cæsar's second campaign in Spain, undertaken against young Cneius Pompey, who, having assembled, in the ulterior province of that country, those of his father's party who had survived the disasters in Thessaly and Africa, and being joined by some of the native states, presented a formidable resistance to the power of Cæsar, till his hopes were terminated by the decisive battle of Munda. Dodwell, indeed, in a Dissertation on this subject, maintains, that it was originally written by Hirtius, but was interpolated by Julius Celsus, a Constantinopolitan writer of the 6th or 7th century. Vossius, however, whose opinion is that more commonly received, attributes it to Caius Oppius²¹⁹, who wrote the Lives of Illustrious Captains, and also a book to prove that the Ægyptian Cæsario was not the son of Cæsar. Oppius was Cæsar's confidential friend, and companion in many of his enterprizes; and it was to him, as we are informed by Suetonius, that Cæsar gave up the only apartment at an inn, while they were travel[pg 107]ling in Gaul, and lay himself on the ground, and in the open air²²⁰.

A fragment has been added at the end of this book, on the Spanish war, by Jungerman, from a MS. of Petavius. Vossius thinks that this fragment was taken from the Commentaries, called those of Julius Celsus, on the Life of Cæsar, published in 1473. These Commentaries, however, were the work of a Christian writer; but Julius Celsus, a Constantinopolitan of the 6th century, already mentioned, having revised the Commentaries of Cæsar, the work on his life came, (from the confusion of names, or perhaps from a fiction devised, to give the stamp of authority,) to be attributed to Julius Celsus, who was contemporary with Cæsar, and was reported to have written a history of his campaigns; just in the same way as a fabulous life of Alexander, produced in the middle ages, passes to this day under the name of Callisthenes, the historiographer of the Macedonian monarch.

There is no other historian of the period on which we are now engaged, of whose works even any fragments have descended to us. Atticus, however, wrote *Memoirs of Rome* from the earliest periods, and also memoirs of its principal families, as the Junian, Cornelian, and Fabian,—tracing their origin, enumerating their honours, and recording their exploits. At the same time Lucceius composed *Histories of the Social War*, and of the Civil Wars of Sylla, which were so highly esteemed by Cicero, that he urges him in one of his letters to undertake a history of his consulship, in which he discovered and suppressed the conspiracy of Catiline²²¹. From a subsequent letter to Atticus we learn that Lucceius had promised to accomplish the task suggested to him²²². It is probable, however, that it never was completed,—his labour having been interrupted by the civil wars, in which he followed the fortunes of Pompey, and was indeed one of his chief advisers in adopting the fatal resolution of quitting Italy.

The *Annals of Procilius*, which appeared at this period, may be conjectured to have comprehended the whole series of Roman history, from the building of the city to his own time; since Varro quotes him for the account of Curtius throwing himself into the gulf²²³ and Pliny refers to him for some remarks with regard to the elephants which appeared at Pompey's African triumph²²⁴.

Brutus is also said to have written epitomes of the meagre and barren histories of Fannius and Antipater. That he should [pg 108]have thought of abridging narratives so proverbially dry and jejune, seems altogether inexplicable.

The works of an historian called Cæcina have also perished, and if we may trust to his own account of them, their loss is not greatly to be deplored. In one of his letters to Cicero he says, “From much have I been compelled to refrain, many things I have been forced to pass over lightly, many to curtail, and very many absolutely to omit. Thus circumscribed, restricted, and broken as it is, what pleasure or what useful information can be expected from the recital²²⁵?”

We have thus traced the progress of historical composition among the Romans, from its commencement to the time of Augustus. There is no history so distinguished and adorned as the Roman, by illustrious

characters; and the circumstances which it records produced the greatest as well as most permanent empire that ever existed on earth. The interest of the early events, and the value of the conclusions to be drawn from them, are much diminished by their uncertainty. Subsequently, however, to the second Punic war, the Roman historians were, for the most part, themselves engaged in the affairs of which they treat, and had therefore, at least, the most perfect *means* of communicating accurate information. But this advantage, which, in one point of view, is so prodigious, was attended with concomitant evils. Lucian, in his treatise, *How History ought to be Written*, says, that the author of this species of composition should be abstracted from all connection with the persons and things which are its subjects; that he should be of no country and no party; that he should be free from all passion, and unconcerned who is pleased or offended with what he writes. Now, the Roman historians of the era on which we are engaged were the slaves of party or the heads of factions; and even when superior to all petty interests or prejudices, they still show plainly that they are Romans. None of them stood impartially aloof from their subject, or supplied the want of historians of Carthage and of Gaul, by whom their narratives might be corrected, and their colouring softened.

Of all the arts next to war, Eloquence was of most importance in Rome; since, if the former led to the conquest of foreign states, the latter opened to each individual a path to empire and dominion over the minds of his fellow citizens²²⁶. [pg 109]Without this art, wisdom itself, in the estimation of Cicero, could be of little avail for the advantage or glory of the commonwealth²²⁷.

During the existence of the monarchy, and in the early age of the republic, law proceedings were not numerous. Many civil suits were prevented by the absolute dominion which a Roman father exercised over his family; and the rigour of the decemviral laws, in which all the proceedings were extreme, frequently concussed parties into an accommodation; while, at the same time, the purity of ancient manners had not yet given rise to those criminal questions of bribery and peculation at home, or of oppression and extortion

in the provinces, which disgraced the closing periods of the commonwealth, and furnished themes for the glowing invective of Cicero and Hortensius. Hence there was little room for the exercise of legal oratory; and whatever eloquence may have shone forth in the early ages of Rome, was probably of a political description, and exerted on affairs of state.

From the earliest times of the republic, history records the wonderful effects which Junius Brutus, Publicola, and Appius Claudius, produced by their harangues, in allaying seditions, and thwarting pernicious counsels. Dionysius of Halicarnassus gives us a formal speech, which Romulus, by direction of his grandfather, made to the people after the building of the city, on the subject of the government to be established²²⁸. There are also long orations of Servius Tullius; and great part of the Antiquities of Dionysius is occupied with senatorial debates during the early ages of the republic. But though the orations of these fathers of Roman eloquence were doubtless delivered with order, gravity, and judgment, and may have possessed a masculine vigour, well calculated to animate the courage of the soldier, and protect the interests of the state, we must not form our opinion of them from the long speeches in Dionysius and Livy, or suppose that they were adorned with any of that rhetoric art with which they have been invested by these historians. A nation of outlaws, destined from their cradle to the profession of arms,—taught only to hurl the spear or javelin, and inure their bodies to other martial exercises,—with souls breathing only conquest,—and regarded as the enemies of every state till they had become its masters, could have possessed but few topics of illustration or embellishment, and were not likely to cultivate any species of rhetorical refinement. To convince by solid arguments when [pg 110]their cause was good, and to fill their fellow-citizens with passions corresponding to those with which they were themselves animated, would be the great objects of an eloquence supplied by nature and unimproved by study. Quintilian accordingly informs us, that though there appeared in the ancient orations some traces of original genius, and much force of argument, they bore, in their rugged and unpolished periods, the signs of the times in which they were delivered.

With exception of the speech of Appius Claudius to oppose a peace with Pyrrhus, there are no harangues mentioned by the Latin critics or historians

as possessing any charms of oratory, previously to the time of Cornelius Cethegus, who flourished during the second Punic war, and was Consul about the year 550. Cethegus was particularly distinguished for his admirable sweetness of elocution and powers of persuasion, whence he is thus characterized by Ennius, a contemporary poet, in the 9th book of his *Annals*:

“Additur orator Cornelius suaviloquenti
Ore Cethegus Marcus, Tuditano collega;
Flos delibatus populi, suadæque medulla.”

The orations of Cato the Censor have been already mentioned as remarkable for their rude but masculine eloquence. When Cato was in the decline of life, a more rich and copious mode of speaking at length began to prevail. Ser. Galba, by the warmth and animation of his delivery, eclipsed Cato and all his contemporaries. He was the first among the Romans who displayed the distinguishing talents of an orator, by embellishing his subject,—by digressing, amplifying, entreating, and employing what are called topics, or common-places of discourse. On one occasion, while defending himself against a grave accusation, he melted his judges to compassion, by producing an orphan relative, whose father had been a favourite of the people. When his orations, however, were afterwards reduced to writing, their fire appeared extinguished, and they preserved none of that lustre with which his discourses are said to have shone when given forth by the living orator. Cicero accounts for this from his want of sufficient study and art in composition. While his mind was occupied and warmed by the subject, his language was bold and rapid; but when he took up the pen, his emotion ceased, and the periods fell languid from its point; “which,” continues he, “never happened to those who, having cultivated a more studied and polished style of oratory, wrote as they spoke. Hence the mind of Lælius yet breathes in his writings, though the force of Galba has failed.” It appears, however, from an anecdote recorded by [pg 111]Cicero, that Galba was esteemed the first orator of his age by the judges, the people, and Lælius himself.—Lælius, being intrusted with the defence of certain persons suspected of having committed a murder in the Silian forest, spoke for two days, correctly, elegantly, and with the approbation of all, after which the Consuls deferred judgment. He then recommended the accused to

carry their cause to Galba, as it would be defended by him with more heat and vehemence. Galba, in consequence, delivered a most forcible and pathetic harangue, and after it was finished, his clients were absolved as if by acclamation²²⁹. Hence Cicero surmises, that though Lælius might be the more learned and acute disputant, Galba possessed more power over the passions; he also conjectures, that the former had more elegance, but the latter more force; and he concludes, that the orator who can move or agitate his judges, farther advances his cause than he who can instruct them.

Lælius is also compared by Cicero with his friend, the younger Scipio Africanus, in whose presence, this question concerning the Silian murder was debated. They were almost equally distinguished for their eloquence; and they resembled each other in this respect, that they both invariably delivered themselves in a smooth manner, and never, like Galba, exerted themselves with loudness of speech or violence of gesture²³⁰; but their style of oratory was different,—Lælius affecting a much more ancient phraseology than that adopted by his friend. Cicero himself seems inclined most to admire the rhetoric of Scipio; but he says, that, being so renowned a captain, and mankind being unwilling to allow supremacy to one individual, in what are considered as the two greatest of arts, his contemporaries for the most part awarded to Lælius the palm of eloquence.

The intercourse which was by this time opening up with Greece, and the encouragement now afforded to Greek teachers, who always possessed the undisputed privilege of dictating the precepts of the arts, produced the same improvement in oratory that it had effected in every branch of literature. Marcus Emilius Lepidus was a little younger than Galba or Scipio, and was Consul in 617. From his orations, which were extant in the time of Cicero, it appeared that he was the first who, in imitation of the Greeks, gave harmony and sweetness to his periods, or the graces of a style regularly polished and improved by art.

Cicero mentions a number of other orators of the same age [pg 112] with Lepidus, and minutely paints their peculiar styles of rhetoric. We find among them the names of almost all the eminent men of the period, as Emilius Paulus, Scipio Nasica, and Mucius Scævola. The importance of eloquence for the purposes of political aggrandizement, is sufficiently

evinced, from this work of Cicero, *De Claris Oratoribus*, since there is scarcely an orator mentioned, even of inferior note, who did not at this time rise to the highest offices in the state.

The political situation of Rome, and the internal inquietude which now succeeded its foreign wars, were the great promoters of eloquence. We hear of no orators in Sparta or Crete, where the severest discipline was exercised, and where the people were governed by the strictest laws. But Rhodes and Athens, places of popular rule, where all things were open to all men, swarmed with orators. In like manner, Rome, when most torn with civil dissensions, produced the brightest examples of eloquence. Cicero declares, that wisdom without eloquence was of little service to the state²³¹; and from the political circumstances of the times, that sort of oratory was most esteemed which had most sway over a restless and ungovernable multitude. The situation of public affairs occasioned those continual debates concerning the Agrarian Laws, and the consequent popularity acquired by the most factious demagogues. Hence, too, those frequent impeachments of the great—those ambitious designs of the patricians—those hereditary enmities in particular families—in fine, those incessant struggles between the Senate and plebeians, which, though all prejudicial to the commonwealth, contributed to swell and ramify that rich vein of eloquence, which now flowed so profusely through the agitated frame of the state. During the whole period previous to the actual breaking out of the civil wars, when the Romans turned the sword against each other, and the mastery of the world depended on its edge, oratory continued to open the most direct path to dignities. The farther a Roman citizen advanced in this career, so much nearer was he to preferment, so much the greater his reputation with the people; and when elevated to the dignified offices of the state, so much the higher his ascendancy over his colleagues.

The Gracchi were the genuine offspring, and their eloquence the natural fruits of these turbulent times. Till their age, oratory had been a sort of *Arcanum imperii*,—an instrument of government in the power of the Senate, who used every precaution to retain its exclusive exercise. It was the [pg 113]great bulwark that withstood the tide of popular passion, and weakened it so as not to beat too high or strongly on their own order and authority. The Gracchi not only broke down the embankment, but turned the

flood against the walls of the Senate itself. The interests of the people had never yet been espoused by men endued with eloquence equal to theirs. Cicero, while blaming their political conduct, admits that both were consummate orators; and this he testifies from the recollection of persons still surviving in his day, and who remembered their mode of speaking. Indeed, the wonderful power which both brothers exercised over the people is a sufficient proof of their eloquence. Tiberius Gracchus was the first who made rhetoric a serious study and art. In his boyhood, he was carefully instructed in elocution by his mother Cornelia: he also constantly attended the ablest and most eloquent masters from Greece, and, as he grew up, he bestowed much time on the exercise of private declamation. It is not likely, that, gifted as he was by nature, and thus instructed, the powers of eloquence should long have remained dormant in his bosom. At the time when he first appeared on the turbulent stage of Roman life, the accumulation of landed property among a few individuals, and the consequent abuse of exorbitant wealth, had filled Italy with slaves instead of citizens—had destroyed the habits of rural industry among the people at large, and leaving only rich masters at the head of numerous and profligate servants, gradually rooted out those middle classes of society which constitute the strength, the worth, and the best hopes of every well-regulated commonwealth. It is said, that while passing through Etruria on his way to Numantia, Tiberius Gracchus found the country almost depopulated of freemen, and thence first formed the project of his Agrarian law, which was originally intended to correct the evils arising from the immense landed possessions of the rich, by limiting them to the number of acres specified in the ancient enactments²³², and dividing the conquered territories among the poorer citizens. Preparatory to its promulgation, he was wont to assemble the people round the rostrum, where he pleaded for the poor, in language of which we have a specimen in Plutarch: “The wild beasts of Italy have their dens to retire to—their places of refuge and repose; while the brave men who shed their blood in the cause of their country, have nothing left but fresh air and sunshine. Without houses, without settled habitations, they wander from place to place with their wives and children; and their commanders do but [pg 114]mock them, when, at the head of their armies, they exhort their soldiers to fight for their sepulchres and altars. For, among such numbers, there is not one Roman who has an altar which belonged to his ancestors, or a tomb in which their

ashes repose. The private soldiers fight and die to increase the wealth and luxury of the great; and they are styled sovereigns of the world, while they have not a foot of ground they can call their own²³³.” By such speeches as these, the people were exasperated to fury, and the Senate was obliged to have recourse to Octavius, who, as one of the tribunes, was the colleague of Gracchus, to counteract the effects of his animated eloquence. Irritated by this opposition, Gracchus abandoned the first plan of his law, which was to give indemnification from the public treasury to those who should be deprived of their estates, and proposed a new bill, by which they were enjoined forthwith to quit those lands which they held contrary to previous enactments. On this subject there were daily disputes between him and Octavius on the rostrum. Finding that his plans could not otherwise be accomplished he resolved on the expedient of deposing his colleague; and thenceforth, to the period of his death, his speeches (one of which is preserved by Plutarch) were chiefly delivered in persuasion or justification of that violent measure.

Caius Gracchus was endued with higher talents than Tiberius, but the resentment he felt on account of his brother's death, and eager desire for vengeance, led him into measures which have darkened his character with the shades of the demagogue. At the time of his brother's death he had only reached the age of twenty. In early youth, he distinguished himself by the defence of one of his friends named Vettius, and charmed the people by the eloquence which he exerted. He appears soon afterwards to have been impelled, as it were, by a sort of destiny, to the same political course which had proved fatal to his brother, and which terminated in his own destruction. His speeches were all addressed to the people, and were delivered in proposing laws, calculated to increase their authority, and lessen that of the Senate,—as those for colonizing the public lands, and dividing them among the poor; for regulating the markets, so as to diminish the price of bread, and for vesting the judicial power in the knights. A fragment of his speech, *De Legibus Promulgatis*, is said to have been recently discovered, with other classical remains, in the Ambrosian Library. Aulus Gellius also quotes from this harangue, a passage, in which the orator complained that some respectable citizens of a municipal town in Italy had been scourged with rods by a Roman magistrate. Gellius praises the conciseness, neatness, and graceful ease of the narrative, resembling

dramatic dialogue, in which this incident was related. Similar, but only similar qualities, appear in his accusation of the Roman legate, who, while travelling to Asia in a litter, caused a peasant to be scourged to death, for having asked his slaves if it was a corpse they were carrying. “The relation of these events,” says Gellius, “does not rise above the level of ordinary conversation. It is not a person complaining or imploring, but merely relating what had occurred;” and he contrasts this tameness with the energy and ardour with which Cicero has painted the commission of a like enormity by Verres²³⁴.

Though similar in many points of character and also in their political conduct, there was a marked difference in the style of eloquence, and forensic demeanour, of the two brothers. Tiberius, in his looks and gestures, was mild and composed—Caius, earnest and vehement; so that when they spoke in public, Tiberius had the utmost moderation in his action, and moved not from his place: whereas Caius was the first of the Romans, who, in addressing the people, walked to and fro in the rostrum, threw his gown off his shoulder, smote his thigh, and exposed his arm bare²³⁵. The language of Tiberius was laboured and accurate, that of Caius bold and figurative. The oratory of the former was of a gentle kind, and pity was the emotion it chiefly raised—that of the latter was strongly impassioned, and calculated to excite terror. In speaking, indeed, Caius was often so hurried away by the violence of his passion, that he exalted his voice above the regular pitch, indulged in abusive expressions, and disordered the whole tenor of his oration. In order to guard against such excesses, he stationed a slave behind him with an ivory flute, which was modulated so as to lead him to lower or heighten the tone of his voice, according as the subject required a higher or a softer key. “The flute,” says Cicero, “you may as well leave at home, but the meaning of the practice you must remember at the bar²³⁶.”

In the time of the Gracchi, oratory became an object of assiduous and systematic study, and of careful education. A youth, intended for the profession of eloquence, was usually introduced to one of the most distinguished orators of the city, [pg 116]whom he attended when he had occasion to speak in any public or private cause, or in the assemblies of the people, by which means he heard not only him, but every other famous speaker. He thus became practically acquainted with business and the courts

of justice, and learned the arts of oratoric conflict, as it were, in the field of battle. “It animated,” says the author of the dialogue *De Causis Corruptæ Eloquentiæ*,—“it animated the courage, and quickened the judgment of youth, thus to receive their instructions in the eye of the world, and in the midst of affairs, where no one could advance an absurd or weak argument, without being exposed by his adversary, and despised by the audience. Hence, they had also an opportunity of acquainting themselves with the various sentiments of the people, and observing what pleased or disgusted them in the several orators of the Forum. By these means they were furnished with an instructor of the best and most improving kind, exhibiting not the feigned resemblance of eloquence, but her real and lively manifestation—not a pretended but genuine adversary, armed in earnest for the combat—an audience ever full and ever new, composed of foes as well as of friends, and amongst whom not a single expression could fall but was either censured or applauded.”

The minute attention paid by the younger orators to all the proceedings of the courts of justice, is evinced by the fragment of a Diary, which was kept by one of them in the time of Cicero, and in which we have a record, during two days, of the various harangues that were delivered, and the judgments that were pronounced²³⁷.

Nor were the advantages to be derived from fictitious oratorical contests long denied to the Roman youth. The practice of declaiming on feigned subjects, was introduced at Rome about the middle of its seventh century. The Greek rhetoricians, indeed, had been expelled, as well as the philosophers, towards the close of the preceding century; but, in the year 661, Plotius Gallus, a Latin rhetorician, opened a declaiming school at Rome. At this period, however, the declamations generally turned on questions of real business, and it was not till the time of Augustus, that the rhetoricians so far prevailed, as to introduce common-place arguments on fictitious subjects.

The eloquence which had originally been cultivated for seditious purposes, and for political advancement, began now to be considered by the Roman youth as an elegant accomplishment. It was probably viewed in the same

light that we [pg 117]regard horsemanship or dancing, and continued to be so in the age of Horace—

“Namque, et nobilis, et decens,
Et pro sollicitis non tacitus reis,
Et centum puer artium,
Latè signa feret militiæ suæ²³⁸.”

Under all these circumstances it is evident, that in the middle of the seventh century oratory would be neglected by none; and in an art so sedulously studied, and universally practised, many must have been proficient. It would be endless to enumerate all the public speakers mentioned by Cicero, whose catalogue is rather extensive and dry. We may therefore proceed to those two orators, whom he commemorates as having first raised the glory of Roman eloquence to an equality with that of Greece—Marcus Antonius, and Lucius Crassus.

The former, surnamed *Orator*, and grandfather of the celebrated triumvir, was the most employed patron of his time; and, of all his contemporaries, was chiefly courted by clients, as he was ever willing to undertake any cause which was proposed to him. He possessed a ready memory, and remarkable talent of introducing everything where it could be placed with most effect. He had a frankness of manner which precluded any suspicion of artifice, and gave to all his orations an appearance of being the unpremeditated effusions of an honest heart. But though there was no apparent preparation in his speeches, he always spoke so well, that the judges were never sufficiently prepared against the effects of his eloquence. His language was not perfectly pure, or of a constantly sustained elegance, but it was of a solid and judicious character, well adapted to his purpose—his gesture, too, was appropriate, and suited to the sentiments and language—his voice was strong and durable, though naturally hoarse—but even this defect he turned to advantage, by frequently and easily adopting a mournful and querulous tone, which, in criminal questions, excited compassion, and more readily gained the belief of the judges. He left, however, as we are informed by Cicero, hardly any orations behind him²³⁹, having resolved never to publish any of his pleadings, lest he should be convicted of

maintaining in one cause something which was inconsistent with what he had alleged in another²⁴⁰.

The first oration by which Antony distinguished himself, [pg 118]was in his own defence. He had obtained the quæstorship of a province of Asia, and had arrived at Brundisium to embark there, when his friends informed him that he had been summoned before the Prætor Cassius, the most rigid judge in Rome, whose tribunal was termed the rock of the accused. Though he might have pleaded a privilege, which forbade the admission of charges against those who were absent on the service of the republic, he chose to justify himself in due form. Accordingly, he returned to Rome, stood his trial, and was acquitted with honour²⁴¹.

One of the most celebrated orations which Antony pronounced, was that in defence of Norbanus, who was accused of sedition, and a violent assault on the magistrate, Æmilius Cæpio. He began by attempting to show from history, that seditions may sometimes be justifiable from necessity; that without them the kings would not have been expelled, or the tribunes of the people created. The orator then proceeded to insinuate, that his client had not been seditious, but that all had happened through the just indignation of the people; and he concluded with artfully attempting to renew the popular odium against Cæpio, who had been an unsuccessful commander²⁴².

What Cicero relates concerning Antony's defence of Aquilius, is an example of his power in moving the passions, and is, at the same time, extremely characteristic of the manner of Roman pleading. Antony, who is one of the speakers in the dialogue *De Oratore*, is introduced relating it himself. Seeing his client, who had once been Consul and a leader of armies, reduced to a state of the utmost dejection and peril, he had no sooner begun to speak, with a view towards melting the compassion of others, than he was melted himself. Perceiving the emotion of the judges when he raised his client from the earth, on which he had thrown himself, he instantly took advantage of this favourable feeling. He tore open the garments of Aquilius, and showed the scars of those wounds which he had received in the service of his country. Even the stern Marius wept. Him the orator then apostrophized; imploring his protection, and invoking with many tears the gods, the citizens, and the allies of Rome. "But whatever I

could have said,” remarks he in the dialogue, “had I delivered it without being myself moved, it would have excited the derision, instead of the sympathy, of those who heard me²⁴³.”

[pg 119]

Antony, in the course of his life, had passed through all the highest offices of the state. The circumstances of his death, which happened in 666, during the civil wars of Marius and Sylla, were characteristic of his predominant talent. During the last proscription by Marius, he sought refuge in the house of a poor person, whom he had laid under obligations to him in the days of his better fortune. But his retreat being discovered, from the circumstance of his host procuring for him some wine nicer than ordinary, the intelligence was carried to Marius, who received it with a savage shout of exultation, and, clapping his hands for joy, he would have risen from table, and instantly repaired to the place where his enemy was concealed; but, being detained by his friends, he immediately despatched a party of soldiers, under a tribune, to slay him. The soldiers having entered his chamber for this purpose, and Antony suspecting their errand, addressed them in terms of such moving and insinuating eloquence, that his assassins burst into tears, and had not sufficient resolution to execute their mission. The officer who commanded them then went in, and cut off his head²⁴⁴, which he carried to Marius, who affixed it to that rostrum, whence, as Cicero remarks, he had ably defended the lives of so many of his fellow-citizens²⁴⁵; little aware that he would soon himself experience, from another Antony, a fate similar to that which he deplores as having befallen the grandsire of the triumvir.

Crassus, the forensic rival of Antony, had prepared himself in his youth, for public speaking, by digesting in his memory a chosen number of polished and dignified verses, or a certain portion of some oration which he had read over, and then delivering the same matter in the best words he could select²⁴⁶. Afterwards, when he grew a little older, he translated into Latin some of the finest Greek orations, and, at the same time, used every mental and bodily exertion to improve his voice, his action, and memory. He commenced his oratorical career at the early age of nineteen, when he acquired much reputation by his accusation of C. Carbo; and he, not long afterwards, greatly heightened his fame, by his defence of the virgin

Licinia. Another of the best speeches of Crassus, was that addressed to the people in favour of the law of Servilius Cæpio, restoring in part the judicial power to the Senate, of which they had been recently deprived, in order to vest it solely in the body of knights. But the most, splendid of all the appearances of Crassus, was one that proved the immediate cause of his death, which happened in 662, a short while [pg 120]before the commencement of the civil wars of Marius and Sylla; and a few days after the time in which he is supposed to have borne his part in the dialogue *De Oratore*. The Consul Philippus had declared, in one of the assemblies of the people, that some other advice must be resorted to, since, with such a Senate as then existed, he could no longer direct the affairs of the government. A full Senate being immediately summoned, Crassus arraigned, in terms of the most glowing eloquence, the conduct of this Consul, who, instead of acting as the political parent and guardian of the Senate, sought to deprive its members of their ancient inheritance of respect and dignity. Being farther irritated by an attempt on the part of Philippus, to force him into compliance with his designs, he exerted, on this occasion, the utmost efforts of his genius and strength; but he returned home with a pleuritic fever, of which he died in the course of seven days. This oration of Crassus, followed as it was by his almost immediate death, made a deep impression on his countrymen; who, long afterwards, were wont to repair to the senate-house, for the purpose of viewing the spot where he had last stood, and fallen, as it may be said, in defence of the privileges of his order.

Crassus left hardly any orations behind him, and he died while Cicero was still in his boyhood; yet that author, having collected the opinions of those who had heard him, speaks with a minute and apparently perfect intelligence of his mode of oratory. He was what may be called the most ornamental speaker that had hitherto appeared in the Forum. Though not without force, gravity, and dignity, these were happily blended with the most insinuating politeness, urbanity, ease, and gaiety. He was master of the most pure and accurate language, and of perfect elegance of expression, without any affectation, or unpleasant appearance of previous study. Great clearness of exposition distinguished all his harangues, and, while descanting on topics of law or equity, he possessed an inexhaustible fund of argument and illustration. In speaking, he showed an uncommon modesty, which went even the length of bashfulness. When a young man, he was so

intimidated at the opening of a speech, that Q. Maximus, perceiving him overwhelmed and disabled by confusion, adjourned the court, which the orator always remembered with the highest sense of gratitude. This diffidence never entirely forsook him; and, after the practice of a long life at the bar, he was frequently so much agitated in the exordium of his discourse, that he was observed to grow pale, and to tremble in every part of his frame²⁴⁷. Some persons considered [pg 121]Crassus as only equal to Antony; others preferred him as the more perfect and accomplished orator: Antony chiefly trusted to his intimate acquaintance with affairs and ordinary life: He was not, however, so destitute of knowledge as he seemed; but he thought the best way to recommend his eloquence to the people, was to appear as if he had never learned anything²⁴⁸. Crassus, on the other hand, was well instructed in literature, and showed off his information to the best advantage. Antony possessed the greater power of promoting conjecture, and of allaying or exciting suspicion, by opposite and well-timed insinuations; but no one could have more copiousness or facility than Crassus, in defining, interpreting, and discussing, the principles of equity. The language of Crassus was indisputably preferable to that of Antony; but the action and gesture of Antony were as incontestably superior to those of Crassus.

Sulpicius and Cotta, who were both born about 630, were younger orators than Antony or Crassus, but were for some time their contemporaries, and had risen to considerable reputation before the death of the latter and assassination of the former. Sulpicius lived for some years respected and admired; but, about the year 665, at the first breaking out of the dissensions between Sylla and Marius, being then a tribune of the people, he espoused the part of Marius. Plutarch gives a memorable account of his character and behaviour at this conjuncture, declaring that he was second to none in the most atrocious villainies. Alike unrestrained in avarice and cruelty, he committed the most criminal and enormous actions without hesitation or reluctance. He sold by public auction the freedom of Rome to foreigners—telling out the purchase-money on counters erected for that purpose in the Forum! He kept 3000 swordsmen in constant pay, and had always about him a company of young men of the equestrian order, ready on every occasion to execute his commands; and these he styled his anti-senatorian band²⁴⁹. Cicero touches on his crimes with more tenderness; but says, that

when he came to be tribune, he stript of all their dignities those with whom, as a private individual, he had lived in the strictest friendship²⁵⁰. Whilst Marius kept his ground against his rival, Sulpicius transacted all public affairs, in his capacity of tribune, by violence and force of arms. He decreed to Marius the command in the Mithridatic war: He attacked the Consuls with his band while they were holding an assembly of the people in the Temple of Castor and Pollux, and deposed one of them²⁵¹. Marius, however, having been at length expelled by the ascendancy of Sylla, Sulpicius was betrayed by one of his slaves, and immediately seized and executed. “Thus,” says Cicero, “the chastisement of his rashness went hand in hand with the misfortunes of his country; and the sword cut off the thread of that life, which was then blooming to all the honours that eloquence can bestow²⁵².”

Cicero had reached the age of nineteen, at the period of the death of Sulpicius. He had heard him daily speak in the Forum, and highly estimates his oratoric powers²⁵³. He was the most lofty, and what Cicero calls the most tragic, orator of Rome. His attitudes, deportment, and figure, were of supreme dignity—his voice was powerful and sonorous—his elocution rapid; his action variable and animated.

The constitutional weakness of Cotta prevented all such oratorical vehemence. In his manner he was soft and relaxed; but every thing he said was sober and in good taste, and he often led the judges to the same conclusion to which Sulpicius impelled them. “No two things,” says Cicero, “were ever more unlike than they are to each other. The one, in a polite, delicate manner, sets forth his subject in well-chosen expressions. He still keeps to his point; and, as he sees with the greatest penetration what he has to prove to the court, he directs to that the whole strength of his reasoning and eloquence, without regarding other arguments. But Sulpicius, endued with irresistible energy, with a full strong voice, with the greatest vehemence, and dignity of action, accompanied with so much weight and variety of expression, seemed, of all mankind, the best fitted by nature for eloquence.”

It was supposed that Cotta wished to resemble Antony, as Sulpicius obviously imitated Crassus; but the latter wanted the agreeable pleasantry

of Crassus, and the former the force of Antony. None of the orations of Sulpicius remained in the time of Cicero—those circulated under his name having been written by Canutius after his death. The oration of Cotta for himself, when accused on the Varian law, was composed, it is said, at his request by Lucius Ælius; and, if this be true, nothing can appear to us more extraordinary, than that so accomplished a speaker as Cotta should have wished any of the trivial harangues of Ælius to pass for his own.

The renown, however, of all preceding orators, was now about to be eclipsed at Rome; and Hortensius burst forth in [pg 123]eloquence at once calculated to delight and astonish his fellow-citizens. This celebrated orator was born in the year 640, being thus ten years younger than Cotta and Sulpicius. His first appearance in the Forum was at the early age of nineteen—that is, in 659; and his excellence, says Cicero, was immediately acknowledged, like that of a statue by Phidias, which only requires to be seen in order to be admired²⁵⁴. The case in which he first appeared was of considerable responsibility for one so young and inexperienced, being an accusation, at the instance of the Roman province of Africa, against its governors for rapacity. It was heard before Scævola and Crassus, as judges—the one the ablest lawyer, the other the most accomplished speaker, of his age; and the young orator had the good fortune to obtain their approbation, as well as that of all who were present at the trial²⁵⁵. His next pleading of importance was in behalf of Nicomedes, King of Bithynia, in which he even surpassed his former speech for the Africans²⁵⁶. After this we hear little of him for several years. The imminent perils of the Social War, which broke out in 663, interrupted, in a great measure, the business of the Forum. Hortensius served in this alarming contest for one year as a volunteer, and in the following season as a military tribune²⁵⁷. When, on the re-establishment of peace in Italy in 666, he returned to Rome, and resumed the more peaceful avocations to which he had been destined from his youth, he found himself without a rival²⁵⁸. Crassus, as we have seen, died in 662, before the troubles of Marius and Sylla. Antony, with other orators of inferior note, perished in 666, during the temporary and last ascendancy of Marius, in the absence of Sylla. Sulpicius was put to death in the same year, and Cotta driven into banishment, from which he was not recalled until the return of Sylla to Rome, and his election to the dictatorship in 670. Hortensius was thus left for some years without a competitor; and, after

670, with none of eminence but Cotta, whom also he soon outshone. His splendid, warm, and animated manner, was preferred to the calm and easy elegance of his rival. Accordingly, when engaged in a cause on the same side, Cotta, though ten years senior, was employed to open the case, while the more important parts were left to the management of Hortensius²⁵⁹. He continued the undisputed sovereign of the Forum, till Cicero returned from his quaestorship in Sicily, in 679, when the talents of that orator first [pg 124]displayed themselves in full perfection and maturity. Hortensius was thus, from 666 till 679, a space of thirteen years, at the head of the Roman bar; and being, in consequence, engaged during that long period, on one side or other, in every cause of importance, he soon amassed a prodigious fortune. He lived, too, with a magnificence corresponding to his wealth. An example of splendour and luxury had been set to him by the orator Crassus, who inhabited a sumptuous palace in Rome, the hall of which was adorned with four pillars of Hymettian marble, twelve feet high, which he brought to Rome in his aedileship, at a time when there were no pillars of foreign marble even in public buildings²⁶⁰. The court of this mansion was ornamented by six lotus trees, which Pliny saw in full luxuriance in his youth, but which were afterwards burned in the conflagration in the time of Nero. He had also a number of vases, and two drinking-cups, engraved by the artist Mentor, but which were of such immense value that he was ashamed to use them²⁶¹. Hortensius had the same tastes as Crassus, but surpassed him and all his contemporaries in magnificence. His mansion stood on the Palatine Hill, which appears to have been the most fashionable situation in Rome, being at that time covered with the houses of Lutatius Catulus, Aemilius Scaurus, Clodius, Catiline, Cicero, and Cæsar²⁶². The residence of Hortensius was adjacent to that of Catiline; and though of no great extent, it was splendidly furnished. After the death of the orator, it was inhabited by Octavius Cæsar²⁶³, and formed the centre of the chief imperial palace, which increased from the time of Augustus to that of Nero, till it covered a great part of the Palatine Mount, and branched over other hills. Besides his mansion in the capital, he possessed sumptuous villas at Tusculum, Bauli, and Laurentum, where he was accustomed to give the most elegant and expensive entertainments. He had frequently peacocks at his banquets, which he first served up at a grand augural feast, and which, says Varro, were more commended by the luxurious, than by men of probity and austerity²⁶⁴. His olive plantations he is said to have regularly moistened

and bedewed with wine; and, on one occasion, during the hearing of an important case, in which he was engaged along with Cicero, begged that he would change with him the previously arranged order of pleading, as he was obliged to go to the country to pour wine on a favourite *platanus*, which grew near his Tusculan villa²⁶⁵. Notwithstanding this profusion, his heir found not less than 10,000 casks of wine in his cellar after his death²⁶⁶. Besides his taste for wine, and fondness for plantations, he indulged a passion for pictures and fish-ponds. At his Tusculan villa, he built a hall for the reception of a painting of the expedition of the Argonauts, by the painter Cydias, which cost the enormous sum of a hundred and forty-four thousand sesterces²⁶⁷. At his country-seat, near Bauli, on the sea shore, he vied with Lucullus and Philippus in the extent of his fish-ponds, which were constructed at immense cost, and so formed that the tide flowed into them²⁶⁸. Under the promontory of Bauli, travellers are yet shown the *Piscina Mirabilis*, a subterraneous edifice, vaulted and divided by four rows of arcades, and which is supposed by some antiquarians to have been a fish-pond of Hortensius. Yet such was his luxury, and his reluctance to diminish his supply, that when he gave entertainments at Bauli, he generally sent to the neighbouring town of Puteoli to buy fish for supper²⁶⁹. He had a vast number of fishermen in his service, and paid so much attention to the feeding of his fish, that he had always ready a large stock of small fish to be devoured by the great ones. It was with the utmost difficulty he could be prevailed on to part with any of them; and Varro declares, that a friend could more easily get his chariot mules out of his stable, than a mullet from his ponds. He was more anxious about the welfare of his fish than the health of his slaves, and less solicitous that a sick servant might not take what was unfit for him, than that his fish might not drink water which was unwholesome²⁷⁰. It is even said, that he was so passionately fond of a particular lamprey, that he shed tears for her untimely death²⁷¹.

The gallery at the villa, which was situated on the little promontory of Bauli, and looking towards Puteoli, commanded one of the most delightful views in Italy. The inland prospect towards Cumæ was extensive and magnificent. Puteoli was seen along the shore at the distance of 30 *stadia*, in the direction of Pompeii; and Pompeii itself was invisible only from its distance. The sea view was unbounded; but it was enlivened by the

numerous vessels sailing across the bay, and the ever changeful hue of its waters, now saffron, azure, or purple, according as the breeze blew, or as the sun ascended or declined²⁷².

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Hortensius possessed another villa in Italy, which rivalled in its sylvan pomp the marine luxuries of Bauli. This mansion lay between Ostia and Lavinium, (now Pratica,) near to the town of Laurentum, so well remembered from ancient fable and poetry, as having been the residence of King Latinus, at the time of the arrival of Æneas in Italy, and at present known by the name of Torre di Paterno. The town of Laurentum was on the shore, but the villa of Hortensius stood to the north-east at some distance from the coast,—the grounds subsequently occupied by the villa of the younger Pliny intervening between it and Laurentum, and also between it and the Tuscan sea. Around were the walks and gardens of patrician villas; on one side was seen the town of Laurentum, with its public baths; on the other, but at a greater distance, the harbour of Ostia. Near the house were groves, and fields covered with herds—beyond were hills clothed with woods. The horizon to the north-east was bounded by magnificent mountains, and beyond the low maritime grounds, which lay between the port of Ostia and Laurentum, there was a distant prospect of the Tuscan sea²⁷³.

Hortensius had here a wooded park of fifty acres, encompassed with a wall. This enclosure he called a nursery of wild beasts, all which came for their provender at a certain hour, on the blowing of a horn—an exhibition with which he was accustomed to amuse the guests who visited him at his Laurentian villa. Varro mentions an entertainment, where those invited supped on an eminence, called a *Triclinium*, in this sylvan park. During the repast, Hortensius summoned his Orpheus, who, having come with his musical instruments, and being ordered to display his talents, blew a trumpet, when such a multitude of deer, boars, and other quadrupeds, rushed to the spot from all quarters, that the sight appeared to the delighted spectators as beautiful as the courses with wild animals in the great Circus of the Ædiles²⁷⁴!

The eloquence of Hortensius procured him not only all this wealth and luxury, but the highest official honours of the state. He was Ædile in 679, Prætor in 682, and Consul two years afterwards. The wealth and dignities he had obtained, and the want of competition, made him gradually relax from that assiduity by which they had been acquired, till the increasing fame of Cicero, and particularly the glory of his consulship, stimulated him to renew his exertions. But his habit of labour had been in some degree lost, and he never again recovered [pg 127]his former reputation. Cicero partly accounts for this decline, from the peculiar nature and genius of his eloquence²⁷⁵. It was of that showy species called Asiatic, which flourished in the Greek colonies of Asia Minor, and was infinitely more florid and ornamental than the oratory of Athens, or even Rhodes, being full of brilliant thoughts and of sparkling expressions. This glowing style of rhetoric, though deficient in solidity and weight, was not unsuitable in a young man; and being farther recommended by a beautiful cadence of periods, met with the utmost applause. But Hortensius, as he advanced in life, did not prune his exuberance, or adopt a chaster eloquence; and this luxury, and glitter of phraseology, which, even in his earliest years, had occasionally excited ridicule or disgust among the graver fathers of the senatorial order, being totally inconsistent with his advanced age and consular dignity, which required something more serious and composed, his reputation diminished with increase of years; and though the bloom of his eloquence might be in fact the same, it appeared to be somewhat withered²⁷⁶. Besides, from his declining health and strength, which greatly failed in his latter years, he may not have been able to give full effect to that showy species of rhetoric in which he indulged. A constant toothache, and swelling in the jaws, greatly impaired his power of elocution and utterance, and became at length so severe as to accelerate his end—

“Ægrescunt teneræ fauces, quum frigoris atri
Vis subiit, vel quum ventis agitabilis aër
Vertitur, atque ipsas flatus gravis inficit auras,
Vel rabidus clamor fracto quum forte sonore
Planum radit iter. Sic est Hortensius olim
Absumptus: caussis etenim confectus agendis
Obticuit, quum vox, domino vivente, periret,
Et nondum extincti moreretur lingua diserti²⁷⁷.”

A few months, however, before his death, which happened in 703, he pleaded for his nephew, Messala, who was accused of illegal canvassing, and who was acquitted, more in consequence of the astonishing exertions of his advocate, than the justice of his cause. So unfavourable, indeed, was his case esteemed, that however much the speech of Hortensius had been admired, he was received on entering the theatre of Curio on the following day, with loud clamour and hisses, which were the more remarked, as he had never met with similar [pg 128]treatment in the whole course of his forensic career²⁷⁸. The speech, however, revived all the ancient admiration of the public for his oratorical talents, and convinced them, that had he always possessed the same perseverance as Cicero, he would not have ranked second to that orator. Another of his most celebrated harangues was that against the Manilian law, which vested Pompey with such extraordinary powers, and was so warmly supported by Cicero. That against the sumptuary law proposed by Crassus and Pompey, in the year 683, which tended to restrain the indulgence of his own taste, was well adapted to Hortensius' style of eloquence; and his speech was highly characteristic of his disposition and habits of life. He declaimed, at great length, on the glory of Rome, which required splendour in the mode of living followed by its citizens²⁷⁹. He frequently glanced at the luxury of the Consuls themselves, and forced them at length, by his eloquence and sarcastic declamation, to relinquish their scheme of domestic retrenchment.

The speeches of Hortensius, it has been already mentioned, lost part of their effect by the orator's advance in years, but they suffered still more by being transferred to paper. As his chief excellence consisted in action and delivery, his writings were much inferior to what was expected from the high fame he had enjoyed; and, accordingly, after death, he retained little of that esteem, which he had so abundantly possessed during his life²⁸⁰. Although, therefore, his orations had been preserved, they would have given us but an imperfect idea of the eloquence of Hortensius; but even this aid has been denied us, and we must, therefore, now chiefly trust for his oratorical character to the opinion of his great but unprejudiced rival. The friendship and honourable competition of Hortensius and Cicero, present an agreeable contrast to the animosities of Æschines and Demosthenes, the two great orators of Greece. It was by means of Hortensius that Cicero was chosen one of the college of Augurs—a service of which his gratified vanity

ever appears to have retained an agreeable recollection. In a few of his letters, indeed, written during the despondency of his exile, he hints a suspicion that Hortensius had been instrumental in his banishment, with a view of engrossing to himself the whole glory of the bar²⁸¹; but this mistrust ended with his recall, which Hortensius, though originally he had advised him to yield to the storm, urged on with all the influence of which he was possessed. Hortensius also appears to have been free from every feeling of jealousy or envy, which in him was still [pg 129]more creditable, as his rival was younger than himself, and yet ultimately forced him from the supremacy. Such having been their sentiments of mutual esteem, Cicero has done his oratoric talents ample justice—representing him as endued with almost all the qualities necessary to form a distinguished speaker. His imagination was fertile—his voice was sweet and harmonious—his demeanour dignified—his language rich and elegant—his acquaintance with literature extensive. So prodigious was his memory, that, without the aid of writing, he recollected every word he had meditated, and every sentence of his adversary's oration, even to the titles and documents brought forward to support the case against him—a faculty which greatly aided his peculiarly happy art of recapitulating the substance of what had been said by his antagonists or by himself²⁸². He also originally possessed an indefatigable application; and scarcely a day passed in which he did not speak in the Forum, or exercise himself in forensic studies or preparation. But, of all the various arts of oratory, he most remarkably excelled in a happy and perspicuous arrangement of his subject. Cicero only reproaches him, and that but slightly, with showing more study and art in his gestures than was suitable for an orator. It appears, however, from Macrobius, that he was much ridiculed by his contemporaries, on account of his affected gestures. In pleading, his hands were constantly in motion, whence he was often attacked by his adversaries in the Forum for resembling an actor; and, on one occasion, he received from his opponent the appellation of *Dionysia*, which was the name of a celebrated dancing girl²⁸³. Æsop and Roscius frequently attended his pleadings, to catch his gestures, and imitate them on the stage²⁸⁴. Such, indeed, was his exertion in action, that it was commonly said that it could not be determined whether people went to hear or to see him²⁸⁵. Like Demosthenes, he chose and put on his dress with the most studied care and neatness. He is said, not only to have prepared his attitudes, but also to have adjusted the plaits of his gown before a mirror,

when about to issue forth to the Forum; and to have taken no less care in arranging them, than in moulding the periods of his discourse. He so tucked up his gown, that the folds did not fall by chance, but were form[pg 130]ed with great care, by means of a knot artfully tied, and concealed in the plies of his robe, which apparently flowed carelessly around him²⁸⁶. Macrobius also records a story of his instituting an action of damages against a person who had jostled him, while walking in this elaborate dress, and had ruffled his toga, when he was about to appear in public with his drapery adjusted according to the happiest arrangement²⁸⁷—an anecdote, which, whether true or false, shows, by its currency, the opinion entertained of his finical attention to everything that concerned the elegance of his attire, or the gracefulness of his figure and attitudes. He also bathed himself in odoriferous waters, and daily perfumed himself with the most precious essences²⁸⁸. This too minute attention to his person, and to gesticulation, appears to have been the sole blemish in his oratorical character; and the only stain on his moral conduct, was his practice of corrupting the judges of the causes in which he was employed—a practice which must be, in a great measure, imputed to the defects of the judicial system at Rome; for, whatever might be the excellence of the Roman laws, nothing could be worse than the procedure under which they were administered²⁸⁹.

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Hortensius has received more justice from Cicero than another orator, Licinius Calvus, who, for a few years, was also considered as his rival in eloquence. Calvus has already been mentioned as an elegant poet; but Seneca calls his competition with Cicero in oratory, *iniquissimam litem*. His style of speaking was directly the reverse of that of Hortensius: he affected the Attic taste in eloquence, such as it appeared in what he conceived to be its purest form—the orations of Lysias. Hence that correct and slender delicacy at which he so studiously aimed, and which he conducted with great skill and elegance; but, from being too much afraid of the faults of redundancy and unsuitable ornament, he refined and attenuated his discourse till it lost its raciness and spirit. He compensated, however, for his sterility of language, and diminutive figure, by his force of elocution, and vivacity of action. “I have met with persons,” says Quintilian, “who preferred Calvus to all our orators; and others who were of opinion, that the too great rigour which he exercised on himself, in point of precision, had

debilitated his oratorical talents. Nevertheless, his speeches, though chaste, grave, and correct, are frequently also vehement. His taste of writing was Attic; and his untimely death was an injury to his reputation, if he designed to add to his compositions, and not to retrench them.” His most celebrated oration, which was against the unpopular Vatinius, was delivered at the age of twenty. The person whom he accused, overpowered and alarmed, interrupted him, by exclaiming to the judges, “Must I be condemned because he is eloquent?” The applause he obtained in this case may be judged of from what is mentioned by Catullus, of some one in the crowd clapping his hands in the middle of his speech, and exclaiming, “O what an eloquent little darling²⁹⁰!” Calvus survived only ten years after this period, [pg 132]having died at the early age of thirty. He left behind him twenty-one books of orations, which are said to have been much studied by the younger Pliny, and were the models he first imitated²⁹¹.

Calvus, though a much younger man than Cicero, died many years before him, and previous to the composition of the dialogue *Brutus*. Most of the other contemporaries, whom Cicero records in that treatise on celebrated orators, were dead also. Among an infinite variety of others, he particularly mentions Marcus Crassus, the wealthy triumvir, who perished in the ill-fated expedition against the Parthians; and who, though possessed but of moderate learning and capacity, was accounted, in consequence of his industry and popular arts, among the chief forensic patrons. His language was pure, and his subject well arranged; but in his harangues there were none of the lights and flowers of eloquence,—all things were expressed in the same manner, and the same tone.

Towards the conclusion of the dialogue, Cicero mentions so many of his predeceased contemporaries, that Atticus remarks, that he is drawing up the dregs of oratory. Calpidius, indeed, seems the only other speaker who merits distinguished notice. He is characterized as different from all other orators,—such was the soft and polished language in which he arrayed his exquisitely delicate sentiments. Nothing could be more easy, pliable, and ductile, than the turn of his periods; his words flowed like a pure and limpid stream, without anything hard or muddy to impede or pollute their course; his action was genteel, his mode of address sober and calm, his arrangement the perfection of art. “The three great objects of an orator,” says Cicero,

while discussing the merits of Calidius, “are to instruct, delight, and move. Two of these he admirably accomplished. He rendered the most abstruse subject clear by illustration, and enchained the minds of his hearers with delight. But the third praise of moving and exciting the soul must be denied him; he had no force, pathos, or animation²⁹².” Such, indeed, was his want of emotion, where it was most appropriate, and most to be expected, that, while pleading his own cause against Q. Gallius for an attempt to poison him, though he stated his case with elegance and perspicuity, yet it was so smoothly and listlessly detailed, that Cicero, who spoke for the person accused, argued, that the charge must be false and an invention of his own, as no one could talk so calmly, and with such indifference, of a recent attempt which threatened his own existence²⁹³.

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These were the most renowned orators who preceded the age of Cicero, or were contemporaries with him; and before proceeding to consider the oratorical merits of him by whom they have been all eclipsed, at least in the eye of posterity, it may be proper, for a single moment, to remind the reader of the state of the Roman law,—of the judicial procedure, and of the ordinary practice of the Forum, at the time when he commenced and pursued his brilliant career of eloquence.

The laws of the first six kings of Rome, called the *Leges Regiæ*, chiefly related to sacred subjects,—regulations of police,—divisions of the different orders in the state,—and privileges of the people. Tarquinius Superbus having laid a plan for the establishment of despotism at Rome, attempted to abolish every law of his predecessors which imposed control on the royal prerogative. About the time of his expulsion²⁹⁴, the Senate and people, believing that the disregard of the laws was occasioned by their never having been reduced in writing, determined to have them assembled and recorded in one volume; and this task was intrusted by them to Sextus Papyrius, a patrician. Papyrius accordingly collected, with great assiduity, all the laws of the monarchs who had governed Rome previously to the time of Tarquin. This collection, which is sometimes called the *Leges Regiæ*, and sometimes the Papyrian Code, did not obtain that confirmation and permanence which might have been expected. Many of the *Leges Regiæ* were the result of momentary emergencies, and inapplicable to future

circumstances. Being the ordinances, too, of a detested race, and being in some respects but ill adapted to the genius and temper of a republican government, a great number of them soon fell into desuetude²⁹⁵. The new laws promulgated immediately after the expulsion of the kings, related more to those constitutional modifications which were rendered necessary by so important a revolution, than to the civil rights of the citizen. In consequence of the dissensions of the patricians and plebeians, every *Senatusconsultum* proceeding from the deliberations of the Senate was negatived by the *veto* of the Tribunes, while the Senate, in return, disowned the authority of the *Plebiscita*, and denied the right of the Tribunes to propose laws. There was thus a sort of legal interregnum at Rome; at least, there were no fixed rules to which all classes were equally subjected: and the great body [pg 134]of the people were too often the victims of the pride of the patricians and tyranny of the consular government. In this situation, C. Terentius Arsa brought forward the law known by the name of *Terentilla*, of which the object was the election by the people of ten persons, who should compose and arrange a body of laws for the administration of public affairs, as well as decision of the civil rights of individuals according to established rules. The Senate, who maintained that the dispensation of justice was solely vested in the supreme magistrates, contrived, for five years, to postpone execution of this salutary measure; but it was at length agreed, that, as a preparatory step, and before the creation of the Decemvirs, who were to form this code, three deputies should be sent to Greece, and the Greek towns of Italy, to select such enactments as they might consider best adapted to the manners and customs of the Roman people.

The delegates, who departed on this embassy towards the close of the year 300, were occupied two years in their important mission. From what cities of Greece, or Magna Græcia, they chiefly borrowed their laws, has been a topic of much discussion, and seems to be still involved in much uncertainty²⁹⁶; though Athens is most usually considered as having been the great fountain of their legislation.

On the return of the deputies to Rome, the office of Consul was suppressed, and ten magistrates, called Decemvirs, among whom these deputies were included, were immediately created. To them was confided the care of digesting the prodigious mass of laws which had been brought from Greece.

This task they accomplished with the aid of Hermodorus, an exile of Ephesus, who then happened to be at Rome, and acted as their interpreter. But although the importation from Greece formed the chief part of the twelve tables, it cannot be supposed that the ancient laws of Rome were entirely superseded. Some of the *Leges Regiæ*, which had no reference to monarchical government, as the laws of Romulus, concerning the *Patria potestas*, those concerning parricides, the removal of landmarks, and insolvent debtors, had, by tacit consent, passed into consuetudinary law; and all those which were still in observance were incorporated in the Decemviral Code; in the same manner as the institutions of the heroic ages of Greece formed a part of the laws of Solon and Lycurgus.

Before a year had elapsed from the date of their creation, the Decemvirs had prepared ten books of laws; which, being [pg 135]engraved on wooden or ivory tables, were presented to the people, and received the sanction of the Senate, and ratification of the Comitia Centuriata. Two supplementary tables were soon afterwards added, in consequence of some omissions which were observed and pointed out to the Decemvirs. In all these tables the laws were briefly expressed. The first eight related to matters of private right, the ninth to those of public, and the tenth to those of religious concern. These ten tables established very equitable rules for all different ranks, without distinction; but in the two supplemental tables some invidious distinctions were introduced, and many exclusive privileges conferred on the patricians.

On the whole, the Decemvirs appear to have been very well versed in the science of legislation. Those who, like Cicero²⁹⁷ and Tacitus, possessed the Twelve Tables complete, and who were the most competent judges of how far they were adapted to the circumstances and manners of the people, have highly commended the wisdom of these laws. Modern detractors have chiefly objected to the sanguinary punishments they inflicted, the principles of the law of retaliation which they recognized, and the barbarous privileges permitted to creditors on the persons of their debtors. The severer enactments, however, of the Twelve Tables, were evidently never put in force, or so soon became obsolete, that the Roman laws were at length esteemed remarkable for the mildness of their punishments—the penalties

of scourging, or death, being scarcely in any case inflicted on a Roman citizen.

The tables on which the Decemviral Code had been inscribed, were destroyed by the Gauls at the sack of the city; but such pains were taken in recovering copies, or making them out from recollection, that the laws themselves were almost completely re-established.

It might reasonably have been expected that a system of jurisprudence, carefully extracted from the whole legislative wisdom of Italy and Greece, should have restored in the commonwealth that good order and security which had been overthrown by the uncertainty of the laws, and the disputes of the patricians and plebeians. But the event did not justify the well-founded expectation. The ambition and lawless passions of the chief Decemvir had rendered it necessary for him and his colleagues to abdicate their authority before they had settled with sufficient precision how their enactments were to be put in practice or enforced. It thus became essential to introduce certain *formulae*, called *Legis Actiones*, in order [pg 136] that the mode of procedure might not remain arbitrary and uncertain. These, consisting chiefly of certain symbolical gestures, adapted to a legal claim or defence, were prepared by Claudius Cæcus about the middle of the fifth century of Rome, but were intended to be kept private among the pontiffs and patrician Jurisconsults, that the people might not have the benefit of the law without their assistance. Cl. Flavius, however, a secretary of Claudius, having access to these formularies, transcribed and communicated them to the people about the middle of the fifth century of Rome. From this circumstance they were called the *Jus civile Flavianum*. This discovery was so disagreeable to the patricians, that they devised new legal forms, which they kept secret with still more care than the others. But in 553, Sextus Ælius Catus divulged them again, and in consequence, these last prescripts obtained the name of *Jus Ælium*, which may be regarded as the last part and completion of the Decemviral laws; and it continued to be employed as the form of process during the whole remaining period of the existence of the commonwealth.

As long as the republic survived, the Twelve Tables formed the foundation of the Roman law, though they were interpreted and enlarged by such new

enactments as the circumstances of the state demanded²⁹⁸. Thus the *Lex Aquilia* and *Alinia* were mere modifications of different heads of the twelve tables. Most of the new laws were introduced in consequence of the increase of empire and luxury, and the conflicting interests of the various orders in the state. Laws, properly so called, were proposed by a superior magistrate, as the Consul, Dictator, or Prætor, with consent of the Senate; they were passed by the whole body of the people, patricians and plebeians, assembled in the *Comitia Centuriata*, and bore ever after the name of the proposer.

The *Plebiscita* were enacted by the plebeians in the *Comitia Tributa*, apart from the patricians, and independently of the sanction of the Senate, at the *rogation* of their own Tribunes, instead of one of the superior magistrates. The patricians generally resisted these decrees, as they were chiefly directed against the authority of the Senate, and the privileges of the higher orders of the state. But, by the *Lex Horatia*, the same weight and authority were given to them as to laws properly so termed, and thenceforth they differed only in name, and the manner in which they were enacted.

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A *Senatusconsultum* was an ordinance of the Senate on those points concerning which it possessed exclusive authority; but rather referred to matters of state, as the distribution of provinces, the application of public money, and the like, than to the ordinary administration of justice.

The patricians, being deprived by the Twelve Tables of the privilege of arbitrarily pronouncing decisions, as best suited their interests; and being frustrated in their miserable attempts to maintain an undue advantage in matters of form, by secreting the rules of procedure held in courts of justice, they had now reserved to them only the power of interpreting to others the scope and spirit of the laws. Till the age, at least, of Augustus, the civil law was completely unconnected and dissipated; and no systematic, accessible, or authoritative treatise on the subject, appeared during the existence of the republic²⁹⁹. The laws of the Twelve Tables were extremely concise and elliptical; and it seems highly probable that they were written in this style, not for the sake of perspicuity, but to leave all that required to be supplied or interpreted in the power of the Patricians³⁰⁰. The changes, too, in the

customs and language of the Romans, rendered the style of the Twelve Tables less familiar to each succeeding generation; and the ambiguous passages were but imperfectly explained by the study of legal antiquarians. It was the custom, likewise, for each successive Prætor to publish an edict, announcing the manner in which justice was to be distributed by him—the rules which he proposed to follow in the decision of doubtful cases; and the degree of relief which his equity would afford from the precise rigour of ancient statutes. This annual alteration in forms, and sometimes even in the principles of law, introduced a confusion, which persons engrossed with other occupations could not unravel. The obscurity of old laws, and fluctuating jurisdiction of the Prætors, gave rise to that class of men called Jurisconsults, whose business it was to explain legal difficulties, and reconcile statutory contradictions. It was the relation of patron and client, which was coeval almost with the city itself, and was invested with a sacred, inviolable character, that gave weight to the *dicta* of those who, in some measure, came in place of the ancient patrons, and usually belonged to the patrician order.—“On the public days of market or assembly,” says Gibbon, “the masters of the art were seen walking in the Forum, ready to impart the needful advice to the meanest of their fellow-citizens, from [pg 138]whose votes, on a future occasion, they might solicit a grateful return. As their years and honours increased, they seated themselves at home on a chair or throne, to expect with patient gravity the visits of their clients, who, at the dawn of day, from the town and country, began to thunder at their door. The duties of social life, and incidents of judicial proceedings, were the ordinary subject of these consultations; and the verbal or written opinions of the jurisconsults were framed according to the rules of prudence and law. The youths of their own order and family were permitted to listen; their children enjoyed the benefit of more private lessons; and the Mucian race was long renowned for the hereditary knowledge of the civil law³⁰¹.” Though the judges and prætors were not absolutely obliged, till the time of the emperors, to follow the recorded opinions of the Jurisconsults, they possessed during the existence of the republic a preponderating weight and authority. The province of legislation was thus gradually invaded by these expounders of ancient statutes, till at length their recorded opinions, the *Responsa Prudentum*, became so numerous, and of such authority, that they formed the greatest part of the system of Roman jurisprudence, whence they were styled by Cicero, in his oration for Cæcina, *Jus Civile*.

It is perfectly evident, however, that the civil law was neither much studied nor known by the *orators* of the Senate, and Forum. Cicero, in his treatise *De Oratore*, informs us, that Ser. Galba, the first speaker of his day, was ignorant of law, inexperienced in civil rights, and uncertain as to the institutions of his ancestors. In his *Brutus* he says nearly the same thing of Antony and Sulpicius, who were the two greatest orators of their age, and who, he declares, knew nothing of public, private, or civil law. Antony in particular, always expressed a contempt for the study of the civil law³⁰². Accordingly, in the dialogue *De Oratore*, he is made to say, “I never studied the civil law, nor have I been sensible of any loss from my ignorance of it in those causes which I was capable of managing in our courts³⁰³.” In the same dialogue, Scævola says, “The present age is totally ignorant of the laws of the Twelve Tables, except you, Crassus, who, led by curiosity, rather than from its being any province annexed to eloquence, studied civil law under me.” In his oration for Muræna, Cicero talks lightly of the study of the civil law, and treats his opponent with scorn on account of his knowledge of its words of [pg 139]style and forms of procedure³⁰⁴. With exception, then, of Crassus, and of Scævola, who was rather a jurisconsult than a speaker, the orators of the age of Cicero, as well as those who preceded it, were uninstructed in law, and considered it as no part of their duty to render themselves masters, either of the general principles of jurisprudence, or the municipal institutions of the state. Crassus, indeed, expresses his opinion, that it is impossible for an orator to do justice to his client without some knowledge of law, particularly in questions tried before the Centumviri, who had cognizance of points with regard to egress and regress in property, the interests of minors, and alterations in the course of rivers; and he mentions several cases, some of a criminal nature, which had lately occurred at Rome, where the question hinged entirely on the civil law, and required constant reference to precedents and authorities. Antony, however, explains how all this may be managed. A speaker, for example, ignorant of the mode of drawing up an agreement, and unacquainted with the forms of a contract, might defend the rights of a woman who has been contracted in marriage, because there were persons who brought everything to the orator or patron, ready prepared,—presenting him with a brief, or memorial, not only on matters of fact, but on the decrees of the Senate, the precedents and the opinions of the jurisconsults. It also appears that there were solicitors, or professors of civil law, whom the orators consulted on any point concerning

which they wished to be instructed, and the knowledge of which might be necessary previous to their appearance in the Forum. In this situation, the harangue of the orator was more frequently an appeal to the equity, common sense, or feelings of the judge, than to the laws of his country. Now, where a pleader addresses himself to the equity of his judges, he has much more occasion, and also much more scope, to display his eloquence, than where he must draw his arguments from strict law, statutes, and precedents. In the former case, many circumstances must be taken into account; many [pg 140]personal considerations regarded; and even favour and inclination, which it belongs to the orator to conciliate, by his art and eloquence, may be disguised under the appearance of equity. Accordingly, Cicero, while speaking in his own person, only says, that the science of law and civil rights should not be neglected; but he does not seem to consider it as essential to the orator of the Forum, while he enlarges on the necessity of elegance of language, the erudition of the scholar, a ready and popular wit, and a power of moving the passions³⁰⁵.

That these were the arts to which the Roman orators chiefly trusted for success in the causes of their clients, is apparent from the remains of their discourses, and from what is said of the mode of pleading in the rhetorical treatises of Cicero. "Pontius," says Antony, in the dialogue so often quoted, "had a son, who served in the war with the Cimbri, and whom he had destined to be his heir; but his father, believing a false report which was spread of his death, made a will in favour of another child. The soldier returned after the decease of his parent; and, had you been employed to defend his cause, you would not have discussed the legal doctrine as to the priority or validity of testaments; you would have raised his father from the grave, made him embrace his child, and recommend him, with many tears, to the protection of the Centumviri."

Antony, speaking of one of his own most celebrated orations, says, that his whole address consisted, 1st, in moving the passions; 2d, in recommending *himself*; and that it was thus, and not by convincing the understanding of the judges, that he baffled the impeachment against his clients³⁰⁶. Valerius Maximus has supplied, in his eighth book, many examples of unexpected and unmerited acquittals, as well as condemnations, from bursts of compassion and theatrical incidents. The wonderful influence, too, of a

ready and popular wit in the management of causes, is apparent from the instances given in the second book *De Oratore* of the effects it had produced in the Forum. The jests which are there recorded, though not very excellent, may be regarded as the finest flowers of wit of the Roman bar. Sometimes they were directed against the opposite party, his patron, or witnesses; and, if sufficiently impudent, seldom failed of effect.

That the principles and precepts of the civil law were so little studied by the Roman orators, and hardly ever alluded to in their harangues, while, on the other hand, the arts of persuasion, and wit, and excitement of the passions, were all-powerful, and were the great engines of legal discussion, must be attributed to the constitution of the courts of law, and the nature of the judicial procedure, which, though very imperfect for the administration of justice, were well adapted to promote and exercise the highest powers of eloquence. It was the forms of procedure—the description of the courts before which questions were tried—and the nature of these questions themselves³⁰⁷—that gave to Roman oratory such dazzling splendour, and surrounded it with a glory, which can never shine on the efforts of rhetoric in a better-regulated community, and under a more sober dispensation of justice.

The great exhibitions of eloquence were, 1st, In the civil and criminal causes tried before the Prætor, or judges appointed under his eye. 2d, The discussions on laws proposed in the assemblies of the people. 3d, The deliberations of the Senate.

The Prætor sat in the Forum, the name given to the great square situated between Mount Palatine and the Capitol, and there administered justice. Sometimes he heard causes in the Basilicæ, or halls which were built around the Forum; but at other times the court of the Prætor was held in the area of the Forum, on which a tribunal was hastily erected, and a certain space for the patron, client, and witnesses, was railed off, and protected from the encroachment of surrounding spectators. This space was slightly covered above for the occasion with canvass, but being exposed to the air on all sides, the court was an open one, in the strictest sense of the term³⁰⁸.

From the time of the first Punic war there were two Prætors, to whom the cognizance of *civil* suits was committed,—the *Prætor urbanus* and *Prætor*

peregrinus. The former tried the causes of citizens according to the Roman laws; the latter judged the cases of allies and strangers by the principles of natural equity; but as judicial business multiplied, the number of Prætors was increased to six. The Prætor was the chief judge in all questions that did not fall under the immediate cognizance of the assemblies of the people or the Senate. Every action, therefore, came, in the first instance, before the Prætor; but he decided only in civil suits of importance: and if the cause was not of sufficient magnitude for the immediate investigation of his tribunal, or hinged entirely on matters of fact, he appointed one or more persons to judge of it. These [pg 142]were chosen from a list of *judices selecti*, which was made up from the three orders of senators, knights, and people. If but one person was appointed, he was properly called a *judex*, or *arbiter*. The *judex* determined only such cases as were easy, or of small importance; and he was bound to proceed according to an express law, or a certain form prescribed to him by the Prætor. The *arbiter* decided in questions of equity which were not sufficiently defined by law, and his powers were not so restricted by the Prætor as those of the ordinary *judex*. When more persons than one were nominated by the Prætor, they were termed *Recuperatores*, and they settled points of law or equity requiring much deliberation. Certain cases, particularly those relating to testaments or successions, were usually remitted by the Prætor to the *Centumviri*, who were 105 persons, chosen equally from the thirty-five tribes. The Prætor, before sending a case to any of those, whom I may call by the general name of judges, though, in fact, they more nearly resembled our jury, made up a *formula*, as it was called, or issue on which they were to decide; as, for example, "If it be proved that the field is in possession of Servilius, give sentence against Catulus, unless he produce a testament, from which it shall appear to belong to him."

It was in presence of these judges that the patrons and orators, surrounded by a crowd of friends and retainers, pleaded the causes of their clients. They commenced with a brief exposition of the nature of the points in dispute. Witnesses were afterwards examined, and the arguments on the case were enforced in a formal harangue. A decision was then given, according to the opinion of a majority of the judges. The *Centumviri* continued to act as judges for a whole year; but the other *judices* only sat till the particular cause was determined for which they had been appointed. They remained,

however, on the numerous list of the *judices selecti*, and were liable to be again summoned till the end of the year, when a new set was chosen for the judicial business of the ensuing season. The Prætor had the power of reversing the decisions of the judges, if it appeared that any fraud or gross error had been committed. If neither was alleged, he charged himself with the duty of seeing the sentence which the judges had pronounced carried into execution. Along with his judicial and ministerial functions, the Prætor possessed a sort of legislative power, by which he supplied the deficiency of laws that were found inadequate for many civil emergencies. Accordingly, each new Prætor, as we have already seen, when he entered on his office, issued an edict, announcing the supplementary code which he intended to follow. Every Prætor had a totally different edict; and, what was worse, none thought of adhering to the rules which he had himself traced; till at length, in the year 686, the Cornelian law, which met with much opposition, prohibited the Prætor from departing in practice from those principles, or regulations, he had laid down in his edict.

Capital trials, that is, all those which regarded the life or liberty of a Roman citizen, had been held in the *Comitia Centuriata*, after the institution of these assemblies by Servius Tullius; but the authority of the people had been occasionally delegated to Inquisitors, (*Quæsitores*), in points previously fixed by law. For some time, all criminal matters of consequence were determined in this manner: But from the multiplicity of trials, which increased with the extent and vices of the republic, other means of despatching them were necessarily resorted to. The Prætors, originally, judged only in civil suits; but in the time of Cicero, and indeed from the beginning of the seventh century, four of the six Prætors were nominated to preside at criminal trials—one taking cognizance of questions of extortion—a second of peculation—a third of illegal canvass—and the last, of offences against the state, as the *Crimen majestatis*, or treason. To these, Sylla, in the middle of the seventh century, added four more, who inquired into acts of public or private violence. In trials of importance, the Prætor was assisted by the counsel of select judges or jurymen, who originally were all chosen from the Senate, and afterwards from the order of Knights; but in Cicero's time, in consequence of a law of Cotta, they were taken from the Senators, Knights, and Tribunes of the treasury. The number of these assessors, who were appointed for the year, and nominated by the

Prætor, varied from 300 to 600; and from them a smaller number was chosen by lot for each individual case. Any Roman citizen might accuse another before the Prætor; and not unfrequently the young patricians undertook the prosecution of an obnoxious magistrate, merely to recommend themselves to the notice or favour of their countrymen. In such cases there was often a competition between two persons for obtaining the management of the impeachment, and the preference was determined by a previous trial, called *Divinatio*. This preliminary point being settled, and the day of the principal trial fixed, the accuser, in his first speech, explained the nature of the case,—fortifying his statements as he proceeded by proofs, which consisted in the voluntary testimony of free citizens, the declarations of slaves elicited by torture, and written documents. Cicero made little account of the evidence of slaves; but the art of extracting truth from a free [pg 144]witness—of exalting or depreciating his character—and of placing his deposition in a favourable light, was considered among the most important qualifications of an orator. When the evidence was concluded, the prosecutor enforced the proofs by a set speech, after which the accused entered on his defence.

But though the cognizance of crimes was in ordinary cases delegated to the Prætors, still the Comitia reserved the power of judging; and they actually did judge in causes, in which the people, or tribunes, who dictated to them, took an interest, and these were chiefly impeachments of public magistrates, for bribery or peculation. It was not understood, in any case, whether tried before the whole people or the Prætor, that either party was to be very scrupulous in the observance of truth. The judges, too, were sometimes overawed by an array of troops, and by menaces. Canvassing for acquittal and condemnation, were alike avowed, and bribery, at least for the former purpose, was currently resorted to. Thus the very crimes of the wretch who had plundered the province intrusted to his care, afforded him the most obvious means of absolution; and, to the wealthy peculator, nothing could be more easy than an escape from justice, except the opportunity of accusing the innocent and unprotected. “Foreign nations,” says Cicero, “will soon solicit the repeal of the law, which prohibits the extortions of provincial magistrates; for they will argue, that were all prosecutions on this law abolished, their governors would take no more than what satisfied their own rapacity, whereas now they exact over and

above this, as much as will be sufficient to gratify their patrons, the *Prætor and the judges*; and that though they can furnish enough to glut the avarice of one man, they are utterly unable to pay for his impunity in guilt³⁰⁹.”

The organization of the judicial tribunals was wretched, and their practice scandalous. The Senate, Prætors, and Comitia, all partook of the legislative and judicial power, and had a sort of reciprocal right of opposition and reversal, which they exercised to gratify their avarice or prejudices, and not with any view to the ends of justice. But however injurious this system might be to those who had claims to urge, or rights to defend, it afforded the most ample field for the excursions of eloquence. The Prætors, though the supreme judges, were not men bred to the law—advanced in years—familiarized with precedents—secure of independence—and fixed in their stations for life. They were young men of lit[pg 145]tle experience, who held the office for a season, and proceeded through it, to what were considered as the most important situations of the republic. Though their procedure was strict in some trivial points of preliminary form, devised by the ancient Jurisconsults, they enjoyed, in more essential matters, a perilous latitude. On the dangerous pretext of equity, they eluded the law by various subtleties or fictions; and thus, without being endued with legislative authority, they abrogated ancient enactments according to caprice. It was worse when, in civil cases, the powers of the Prætor were intrusted to the judges; or when, in criminal trials, the jurisdiction was assumed by the whole people. The inexperience, ignorance, and popular prejudices of those who were to decide them, rendered litigations extremely uncertain, and dependent, not on any fixed law or principle, but on the opinions or passions of tumultuary judges, which were to be influenced and moved by the arts of oratory. This furnished ample scope for displaying all that interesting and various eloquence, with which the pleadings of the ancient orators abounded. The means to be employed for success, were conciliating favour, rousing attention, removing or fomenting prejudice, but, above all, exciting compassion. Hence we find, that in the defence of a criminal, while a law or precedent was seldom mentioned, every thing was introduced which could serve to gain the favour of the judges, or move their pity. The accused, as soon as the day of trial was fixed, assumed an apparently neglected garb; and although allowed, whatever was the crime, to go at large till sentence was pronounced, he usually attended in court surrounded

by his friends, and sometimes accompanied by his children, in order to give a more piteous effect to the lamentations and exclamations of his counsel, when he came to that part of the oration, in which the fallen and helpless state of his client was to be suitably bewailed. Piso, justly accused of oppression towards the allies, having prostrated himself on the earth in order to kiss the feet of his judges, and having risen with his face defiled with mud, obtained an immediate acquittal. Even where the cause was good, it was necessary to address the passions, and to rely on the judge's feelings of compassion, rather than on his perceptions of right. Rutilius prohibited all exclamations and entreaties to be used in his defence: He even forbade the accustomed and expected excitement of invocations, and stamping with the feet; and "he was condemned," says Cicero, "though the most virtuous of the Romans, because his counsel was compelled to plead for him as he would have done in the republic of Plato." It thus appears, that it was dangerous to trust to innocence alone, and the judges were the capricious arbiters of the fate of their fellow-citizens, and not (as their situation so urgently required) the inflexible interpreters of the laws of their exalted country.

But if the manner of treating causes was favourable to the exertions of eloquence, much also must be allowed for the nature of the questions themselves, especially those of a criminal description, tried before the Prætor or people. One can scarcely figure more glorious opportunities for the display of oratory, than were afforded by those complaints of the oppressed and plundered provinces against their rapacious governors. From the extensive ramifications of the Roman power, there continually arose numerous cases of a description that can rarely occur in other countries, and which are unexampled in the history of Britain, except in a memorable impeachment, which not merely displayed, but created such eloquence as can be called forth only by splendid topics, without which rhetorical indignation would seem extravagant, and attempted pathos ridiculous.

The spot, too, on which the courts of justice assembled, was calculated to inspire and heighten eloquence. The Roman Forum presented one of the most splendid spectacles that eye could behold, or fancy conceive. This space formed an oblong square between the Palatine and Capitoline hills, composed of a vast assemblage of sumptuous though irregular edifices. On

the side next the Palatine hill stood the ancient Senate-house, and Comitium, and Temple of Romulus the Founder. On the opposite quarter, it was bounded by the Capitol, with its ascending range of porticos, and the temple of the tutelar deity on the summit. The other sides of the square were adorned with basilicæ, and piazzas terminated by triumphal arches; and were bordered with statues, erected to the memory of the ancient heroes or preservers of their country³¹⁰. Having been long the theatre of the factions, the politics, the intrigues, the crimes, and the revolutions of the capital, every spot of its surface was consecrated to the recollection of some great incident in the domestic history of the Romans; while their triumphs over foreign enemies were vividly called to remembrance by the Rostrum itself, which stood in the centre of the vacant area, and by other trophies gained from vanquished nations:—

“Et cristæ capitum, et portarum ingentia claustra,
Spiculaque, clipeique, ereptaque rostra carinis³¹¹.”

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A vast variety of shops, stored with a profusion of the most costly merchandize, likewise surrounded this heart and centre of the world, so that it was the mart for all important commercial transactions. Being thus the emporium of law, politics, and trade, it became the resort of men of business, as well as of those loiterers whom Horace calls *Forenses*. Each Roman citizen, regarding himself as a member of the same vast and illustrious family, scrutinized with jealous watchfulness the conduct of his rulers, and looked with anxious solicitude to the issue of every important cause. In all trials of oppression or extortion, the Roman multitude took a particular interest,—repairing in such numbers to the Forum, that even its spacious square was hardly sufficient to contain those who were attracted to it by curiosity; and who, in the course of the trial, were in the habit of expressing their feelings by shouts and acclamations, so that the orator was ever surrounded by a crowded and tumultuary audience. This numerous assembly, too, while it inspired the orator with confidence and animation, after he had commenced his harangue, created in prospect that anxiety which led to the most careful preparation previous to his appearance in public. The apprehension and even trepidation felt by the greatest speakers at Rome on the approach of the day fixed for the hearing of momentous

causes, is evident from many passages of the rhetorical works of Cicero. The Roman orator thus addressed his judges with all the advantages derived both from the earnest study of the closet, and the exhilaration imparted to him by unrestrained and promiscuous applause.

2. Next to the courts of justice, the great theatre for the display of eloquence, was the Comitia, or assemblies of the people, met to deliberate on the proposal of passing a new law, or abrogating an old one. A law was seldom offered for consideration but some orator was found to dissuade its adoption; and as in the courts of justice the passions of the judges were addressed, so the favourers or opposers of a law did not confine themselves to the expediency of the measure, but availed themselves of the prejudices of the people, alternately confirming their errors, indulging their caprices, gratifying their predilections, exciting their jealousies, and fomenting their dislikes. Here, more than anywhere, the many were to be courted by the few—here, more than anywhere, was created that excitement which is most favourable to the influence of eloquence, and forms indeed the element in which alone it breathes with freedom.

3. Finally, the deliberations of the Senate, which was the great council of the state, afforded, at least to its members, [pg 148]the noblest opportunities for the exertions of eloquence. This august and numerous body consisted of individuals who had reached a certain age, and who were possessed of a certain extent of property, who were supposed to be of unblemished reputation, and most of whom had passed through the annual magistracies of the state. They were consulted upon almost everything that regarded the administration or safety of the commonwealth. The power of making war and peace, though it ultimately lay with the people assembled in the Comitia Centuriata, was generally left by them entirely to the Senate, who passed a decree of peace or war previous to the suffrages of the Comitia. The Senate, too, had always reserved to itself the supreme direction and superintendence of the religion of the country, and the distribution of the public revenue—the levying or disbanding troops, and fixing the service on which they should be employed—the nomination of governors for the provinces—the rewards assigned to successful generals for their victories, and the guardianship of the state in times of civil dissension. These were the great subjects of debate in the Senate, and they were discussed on certain

fixed days of the year, when its members assembled of course, or when they were summoned together for any emergency. They invariably met in a temple, or other consecrated place, in order to give solemnity to their proceedings, as being conducted under the immediate eye of Heaven. The Consul, who presided, opened the business of the day, by a brief exposition of the question which was to be considered by the assembly. He then asked the opinions of the members in the order of rank and seniority. Freedom of debate was exercised in its greatest latitude; for, though no senator was permitted to deliver his sentiments till it came to his turn, he had then a right to speak as long as he thought proper, without being in the smallest degree confined to the point in question. Sometimes, indeed, the Conscript Fathers consulted on the state of the commonwealth in general; but even when summoned to deliberate on a particular subject, they seem to have enjoyed the privilege of talking about anything else which happened to be uppermost in their minds. Thus we find that Cicero took the opportunity of delivering his seventh Philippic when the Senate was consulted concerning the Appian Way, the coinage, and Luperci—subjects which had no relation to Antony, against whom he inveighed from one end of his oration to the other, without taking the least notice of the only points which were referred to the consideration of the senators³¹². The resolution of the major[pg 149]ity was expressed in the shape of a decree, which, though not properly a law, was entitled to the same reverence on the point to which it related; and, except in matters where the interests of the state required concealment, all pains were taken to give the utmost publicity to the whole proceedings of the Senate.

The number of the Senate varied, but in the time of Cicero, it was nearly the same as the British House of Commons; but it required a larger number to make a quorum. Sometimes there were between 400 and 500 members present; but 200, at least during certain seasons of the year, formed what was accounted a full house. This gave to senatorial eloquence something of the spirit and animation created by the presence of a popular assembly, while at the same time the deliberative majesty of the proceedings required a weight of argument and dignity of demeanour, unlooked for in the Comitia, or Forum. Accordingly, the levity, ingenuity, and wit, which were there so often crowned with success and applause, were considered as misplaced in the Senate, where the consular, or prætorian orator, had to

prevail by depth of reasoning, purity of expression, and an apparent zeal for the public good.

It was the authority of the Senate, with the calm and imposing aspect of its deliberations, that gave to Latin oratory a somewhat different character from the eloquence of Greece, to which, in consequence of the Roman spirit of imitation, it bore, in many respects, so close a resemblance. The power of the Areopagus, which was originally the most dignified assembly at Athens, had been retrenched amid the democratic innovations of Pericles. From that period, everything, even the most important affairs of state, depended entirely, in the pure democracy of Athens, on the opinion, or rather the momentary caprice of an inconstant people, who were fond of pleasure and repose, who were easily swayed by novelty, and were confident in their power. As their precipitate decisions thus often hung on an instant of enthusiasm, the orator required to dart into their bosoms those electric sparks of eloquence which inflamed their passions, and left no corner of the mind fitted for cool consideration. It was the business of the speaker to allow them no time to recover from the shock, for its force would have been spent had they been permitted to occupy themselves with the beauties of style and diction. "Applaud not the orator," says Demos[pg 150]thenes, at the end of one of his Philippics, "but do what I have recommended. I cannot save you by my words, you must save yourselves by your actions." When the people were persuaded, every thing was accomplished, and their decision was embodied in a sort of decree by the orator. The people of Rome, on the other hand, were more reflective and moderate, and less vain than the Athenians; nor was the whole authority of the state vested in them. There was, on the contrary, an accumulation of powers, and a complication of different interests to be managed. Theoretically, indeed, the sovereignty was in the people, but the practical government was intrusted to the Senate. As we see from Cicero's third oration, *De Lege Agraria*, the same affairs were often treated at the same time in the Senate and on the Rostrum. Hence, in the judicial and legislative proceedings, in which, as we have seen, the feelings of the judges and prejudices of the vulgar were so frequently appealed to, some portion of the senatorial spirit pervaded and controlled the popular assemblies, restrained the impetuosity of decision, and gave to those orators of the Forum, or Comitia, who had just spoken, or were to speak next day in the Senate, a more grave and temperate tone, than

if their tongues had never been employed but for the purpose of impelling a headlong multitude.

But if the Greeks were a more impetuous and inconstant, they were also a more intellectual people than the Romans. Literature and refinement were more advanced in the age of Pericles than of Pompey. Now, in oratory, a popular audience must be moved by what corresponds to the feelings and taste of the age. With such an intelligent race as the Greeks, the orator was obliged to employ the most accurate reasoning, and most methodical arrangement of his arguments. The flowers of rhetoric, unless they grew directly from the stem of his discourse, were little admired. The Romans, on the other hand, required the excitation of fancy, of comparisons, and metaphors, and rhetorical decoration. Hence, the Roman orator was more anxious to seduce the imagination than convince the understanding; his discourse was adorned with frequent digressions into the field of morals and philosophy, and he was less studious of precision than of ornament.

On the whole, the circumstances in the Roman constitution and judicial procedure, appear to have wonderfully conspired to render

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CICERO

an accomplished orator. He was born and educated at a period when he must have formed the most exalted idea of his country. She had reached the height of power, and had not yet sunk into submission or servility. The subjects to be discussed, and characters to be canvassed, were thus of the most imposing magnitude, and could still be treated with freedom and independence. The education, too, which Cicero had received, was highly favourable to his improvement. He had the first philosophers of the age for his teachers, and he studied the civil law under Scævola, the most learned jurisconsult who had hitherto appeared in Rome. When he came to attend the Forum, he enjoyed the advantage of daily hearing Hortensius, unquestionably the most eloquent speaker who had yet shone in the Forum or Senate. The harangues of this great pleader formed his taste, and raised his emulation, and, till near the conclusion of his oratorical career, acted as an incentive to exertions, which might have abated, had he been left without a competitor in the Forum. The blaze of Hortensius's rhetoric would communicate to his rival a brighter flame of eloquence than if he had been called on to refute a cold and inanimate adversary. Still, however, the great secret of his distinguished oratorical eminence was, that notwithstanding his vanity, he never fell into the apathy with regard to farther improvement, by which self-complacency is so often attended. On the contrary, Cicero, after he had delivered two celebrated orations, which filled the Forum with his renown, so far from resting satisfied with the acclamations of the capital, abandoned, for a time, the brilliant career on which he had entered, and travelled, during two years, through the cities of Greece, in quest of philosophical improvement and rhetorical instruction.

With powers of speaking beyond what had yet been known in his own country, and perhaps not inferior to those which had ever adorned any other, he possessed, in a degree superior to all orators, of whatever age or nation, a general and discursive acquaintance with philosophy and literature, together with an admirable facility of communicating the fruits of his labours, in a

manner the most copious, perspicuous, and attractive. To this extensive knowledge, by which his mind was enriched and supplied with endless topics of illustration—to the lofty ideas of eloquence, which perpetually revolved in his thoughts—to that image which ever haunted his breast, of [pg 152]such infinite and superhuman perfection in oratory, that even the periods of Demosthenes did not fill up the measure of his conceptions³¹³, we are chiefly indebted for those emanations of genius, which have given, as it were, an immortal tongue to the now desolate Forum and ruined Senate of Rome.

The first oration which Cicero pronounced, at least of those which are extant, was delivered in presence of four judges appointed by the Prætor, and with Hortensius for his opponent. It was in the case of Quintius, which was pleaded in the year 672, when Cicero was 26 years of age, at which time he came to the bar much later than was usual, after having studied civil law under Mucius Scævola, and having further qualified himself for the exercise of his profession by the study of polite literature under the poet Archias, as also of philosophy under the principal teachers of each sect who had resorted to Rome. This case was undertaken by Cicero, at the request of the celebrated comedian Roscius, the brother-in-law of Quintius; but it was not of a nature well adapted to call forth or display any of the higher powers of eloquence. It was a pure question of civil right, and, in a great measure, a matter of form; the dispute being whether his client had forfeited his recognisances, and whether his opponent Nævius had got legal possession of his effects by an edict which the Prætor had pronounced, in consequence of the supposed forfeiture. But even here, where the point was more one of dry legal discussion than in any other oration of Cicero, we meet with much invective, calculated to excite the indignation of the judges against the adverse party, and many pathetic supplications, interspersed with high-wrought pictures of the distresses of his client, in order to raise their sympathy in his favour.

Pro Sext. Roscio. In the year following that in which he pleaded the case of Quintius, Cicero undertook the defence of Roscius of Ameria, which was the first public or criminal trial in which he spoke. The father of Roscius had two mortal enemies, of his own name and district. During the proscriptions of Sylla, he was assassinated one evening at Rome, while

returning home from supper; and, on pretext that he was in the list proscribed, his estate was purchased for a mere nominal price by Chrysogonus, a favourite slave, to whom Sylla had given freedom, and whom he had permitted to buy the property of Roscius as a forfeiture. Part of the valuable lands thus acquired, were made over by Chrysogonus to the Roscii. These new proprietors, in order to secure themselves in the possession, hired Erucius, an informer and prosecutor [pg 153] by profession, to charge the son with the murder of his father, and they, at the same time, suborned witnesses, in order to convict him of the parricide. From dread of the power of Sylla, the accused had difficulty in prevailing on any patron to undertake his cause; but Cicero eagerly embraced this opportunity to give a public testimony of his detestation of oppression and tyranny. He exculpates his client, by enlarging on the improbability of the accusation, whether with respect to the enormity of the crime charged, or the blameless character and innocent life of young Roscius. He shows, too, that his enemies had completely failed in proving that he laboured under the displeasure of his father, or had been disinherited by him; and, in particular, that his constant residence in the country was no evidence of this displeasure—a topic which leads him to indulge in a beautiful commendation of a rural life, and the ancient rustic simplicity of the Romans. But while he thus vindicates the innocence of Roscius, the orator has so managed his pleading, that it appears rather an artful accusation of the two Roscii, than a defence of his own client. He tries to fix on them the guilt of the murder, by showing that they, and not the son, had reaped all the advantages of the death of old Roscius, and that, availing themselves of the strict law, which forbade slaves to be examined in evidence against their masters, they would not allow those who were with Roscius at the time of his assassination, but had subsequently fallen into their own possession, to be put to the torture. The whole case seems to have been pleaded with much animation and spirit, but the oration was rather too much in that florid Asiatic taste, which Cicero at this time had probably adopted from imitation of Hortensius, who was considered as the most perfect model of eloquence in the Forum; and hence the celebrated passage on the punishment of parricide, (which consisted in throwing the criminal, tied up in a sack, into a river,) was condemned by the severer taste of his more advanced years. “Its intention,” he declares, “was to strike the parricide at once out of the system of nature, by depriving him of air, light, water, and earth, so that he who had

destroyed the author of his existence might be excluded from those elements whence all things derived their being. He was not thrown to wild beasts, lest their ferocity should be augmented by the contagion of such guilt—he was not committed naked to the stream, lest he should contaminate that sea which washed away all other pollutions. Everything in nature, however common, was accounted too good for him to share in; for what is so common as air to the living, earth to the dead, the sea to those who float, the shore to those who are [pg 154]cast up. But the parricide lives so as not to breathe the air of heaven, dies so that the earth cannot receive his bones, is tossed by the waves so as not to be washed by them, so cast on the shore as to find no rest on its rocks.” This declamation was received with shouts of applause by the audience; yet Cicero, referring to it in subsequent works, calls it the exuberance of a youthful fancy, which wanted the control of his sounder judgment, and, like all the compositions of young men, was not applauded so much on its own account, as for the promise it gave of more improved and ripened talents³¹⁴. This pleading is also replete with severe and sarcastic declamation on the audacity of the Roscii, as well as the overgrown power and luxury of Chrysogonus; the orator has even hazarded an insinuation against Sylla himself, which, however, he was careful to palliate, by remarking, that through the multiplicity of affairs, he was obliged to connive at many things which his favourites did against his inclination.

Cicero’s courage in defending and obtaining the acquittal of Roscius, under the circumstances in which the case was undertaken, was applauded by the whole city. By this public opposition to the avarice of an agent of Sylla, who was then in the plenitude of his power, and by the energy with which he resisted an oppressive proceeding, he fixed his character for a fearless and zealous patron of the injured, as much as for an accomplished orator. The defence of Roscius, which acquired him so much reputation in his youth, was remembered by him with such delight in his old age, that he recommends to his son, as the surest path to true honour, to defend those who are unjustly oppressed, as he himself had done in many causes, but particularly in that of Roscius of Ameria, whom he had protected against Sylla himself, in the height of his authority³¹⁵.

Immediately after the decision of this cause, Cicero, partly on account of his health, and partly for improvement, travelled into Greece and Asia, where he spent two years in the assiduous study of philosophy and eloquence, under the ablest teachers of Athens and Asia Minor. Nor was his style alone formed and improved by imitation of the Greek rhetoricians: his pronunciation also was corrected, by practising under Greek masters, from whom he learned the art of commanding his voice, and of giving it greater compass and variety than it had hitherto attained³¹⁶. The first cause which he pleaded after his return to Rome, was that of Roscius, the celebrated [pg 155]comedian, in a dispute, which involved a mere matter of civil right, and was of no peculiar interest or importance. All the orations which he delivered during the five following years, are lost, of which number were those for Marcus Tullius, and L. Varenus, mentioned by Priscian as extant in his time. At the end of that period, however, and when Cicero was now in the thirty-seventh year of his age, a glorious opportunity was afforded for the display of his eloquence, in the prosecution instituted against Verres, the Prætor of Sicily, a criminal infinitely more hateful than Catiline or Clodius, and to whom the Roman *republic*, at least, never produced an equal in turpitude and crime. He was now accused by the Sicilians of many flagrant acts of injustice, rapine, and cruelty, committed by him during his triennial government of their island, which he had done more to ruin than all the arbitrary acts of their native tyrants, or the devastating wars between the Carthaginians and Romans.

In the advanced ages of the republic, extortion and violence almost universally prevailed among those magistrates who were exalted abroad to the temptations of regal power, and whose predecessors, by their moderation, had called forth in earlier times the applause of the world. Exhausted in fortune by excess of luxury, they now entered on their governments only to enrich themselves with the spoils of the provinces intrusted to their administration, and to plunder the inhabitants by every species of exaction. The first laws against extortion were promulgated in the beginning of the seventh century. But they afforded little relief to the oppressed nations, who in vain sought redress at Rome; for the decisions there depending on judges generally implicated in similar crimes, were more calculated to afford impunity to the guilty, than redress to the

aggrieved. This undue influence received additional weight in the case of Verres, from the high quality and connections of the culprit.

Such were the difficulties with which Cicero had to struggle, in entering on the accusation of this great public delinquent. This arduous task he was earnestly solicited to undertake, by a petition from all the towns of Sicily, except Syracuse and Messina, both which cities had been occasionally allowed by the plunderer to share the spoils of the province. Having accepted this trust, so important in his eyes to the honour of the republic, neither the far distant evidence, nor irritating delays of all those guards of guilt with which Verres was environed, could deter or slacken his exertions. The first device on the part of the criminal, or rather of his counsel, Hortensius, to defeat the ends of justice, was an [pg 156]attempt to wrest the conduct of the trial from the hands of Cicero, by placing it in those of Cæcilius³¹⁷, who was a creature of Verres, and who now claimed a preference to Cicero, on the ground of personal injuries received from the accused, and a particular knowledge of the crimes of his pretended enemy. The judicial claims of these competitors had therefore to be first decided in that kind of process called *Divinatio*, in which Cicero delivered his oration, entitled *Contra Cæcilium*, and shewed, with much power of argument and sarcasm, that he himself was in every way best fitted to act as the impeacher of Verres.

Having succeeded in convincing the judges that Cæcilius only wished to get the cause into his own hands, in order to betray it, Cicero was appointed to conduct the prosecution, and was allowed 110 days to make a voyage to Sicily, in order to collect information for supporting his charge. He finished his progress through the island in less than half the time which had been granted him. On his return he found that a plan had been laid by the friends of Verres, to procrastinate the trial, at least till the following season, when they expected to have magistrates and judges who would prove favourable to his interests. In this design they so far succeeded, that time was not left to go through the cause according to the ordinary forms and practice of oratorical discussion in the course of the year: Cicero, therefore, resolved to lose no time by enforcing or aggravating the several articles of charge, but to produce at once all his documents and witnesses, leaving the rhetorical part of the performance till the whole evidence was concluded. The first

oration, therefore, against Verres, which is extremely short, was merely intended to explain the motives which had induced him to adopt this unusual mode of procedure. He accordingly exposes the devices by which the culprit and his cabal were attempting to pervert the course of justice, and unfolds the eternal disgrace that would attach to the Roman law, should their stratagems prove successful. This oration was followed by the deposition of the witnesses, and recital of the documents, which so clearly established the guilt of Verres, that, driven to despair, he submitted, without awaiting his sentence, to a voluntary exile³¹⁸. It therefore appears, that of the six orations against Verres, only one was pronounced. The other five, forming the series of harangues [pg 157]which he intended to deliver after the proof had been completed, were subsequently published in the same shape as if the delinquent had actually stood his trial, and was to have made a regular defence.

The first of these orations, which to us appears rather foreign to the charge, but was meant to render the proper part of the accusation more probable, exposes the excesses and malversations committed by Verres in early life, before his appointment to the Prætorship of Sicily—his embezzlement of public money while Quæstor of Gaul—his extortions under Dolabella in Asia, and, finally, his unjust, corrupt, and partial decisions while in the office of *Prætor Urbanus* at Rome, which, forming a principal part of the oration, the whole has been entitled *De Prætura Urbana*. In the following harangue, entitled *De Jurisdictione Siciliensi*, the orator commences with an elegant eulogy on the dignity, antiquity, and usefulness of the province, which was not here a mere idle or rhetorical embellishment, but was most appropriately introduced, as nothing could be better calculated to excite indignation against the spoiler of Sicily, than the picture he draws of its beauty; after which, he proceeds to give innumerable instances of the flagrant sale of justice, offices, and honours, and, among the last, even of the priesthood of Jupiter. The next oration is occupied with the malversations of Verres concerning grain, and the new ordinances, by which he had contrived to put the whole corps of the island at the disposal of his officers. In this harangue the dry statements of the prices of corn are rather fatiguing; but the following oration, *De Signis*, is one of the most interesting of his productions, particularly as illustrating the history of ancient art. For nearly six centuries Rome had been filled only with the

spoils of barbarous nations, and presented merely the martial spectacle of a warlike and conquering people. Subsequently, however, to the campaigns in *Magna Græcia*, Sicily, and Greece, the Roman commanders displayed at their triumphs costly ornaments of gold, pictures, statues, and vases, instead of flocks driven from the Sabines or Volsci, the broken arms of the Samnites, and empty chariots of the Gauls. The statues and paintings which Marcellus transported from Syracuse to Rome, first excited that cupidity which led the Roman provincial magistrates to pillage, without scruple or distinction, the houses of private individuals, and temples of the gods³¹⁹. Marcellus and Mummius, however, despoiled only hostile and conquered countries. They had made over their [pg 158]plunder to the public, and, after it was conveyed to Rome, devoted it to the embellishment of the capital; but subsequent governors of provinces having acquired a taste for works of art, began to appropriate to themselves those masterpieces of Greece, which they had formerly neither known nor esteemed. Some contrived plausible pretexts for borrowing valuable works of art from cities and private persons, without any intention of restoring them; while others, less cautious, or more shameless, seized whatever pleased them, whether public or private property, without excuse or remuneration. But though this passion was common to most provincial governors, none of them ever came up to the full measure of the rapacity of Verres, who, allowing much for the high colouring of the counsel and orator, appears to have been infected with a sort of disease, or mania, which gave him an irresistible propensity to seize whatever he saw or heard of, which was precious either in materials or workmanship. For this purpose he retained in his service two brothers from Asia Minor, on whose judgment he relied for the choice of statues and pictures, and who were employed to search out everything of this sort which was valuable in the island. Aided by their suggestions, he seized tapestry, pictures, gold and silver plate, vases, gems, and Corinthian bronzes, till he literally did not leave a single article of value of these descriptions in the whole island. The chief objects of this pillage were the statues and pictures of the gods, which the Romans regarded with religious veneration; and they, accordingly, viewed such rapine as sacrilege. Hence the frequent adjurations and apostrophes to the deities who had been insulted, which are introduced in the oration. The circumstances of violence and circumvention, under which the depredations were committed, are detailed with much vehemence, and at considerable length. Some

description is given of the works of sculpture; and the names of the statuary by whom they were executed, are also frequently recorded. Thus, we are told that Verres took away from a private gentleman of Messina the marble Cupid, by Praxiteles: He sacrilegiously tore a figure of Victory from the temple of Ceres—he deprived the city Tyndaris of an image of Mercury, which had been restored to it from Carthage, by Scipio, and was worshipped by the people with singular devotion and an annual festival. Some of the works of art were openly carried off—some borrowed under plausible pretences, but never restored, and others forcibly purchased at an inadequate value. If the speech *De Signis* be the most curious, that *De Suppliciis* is incomparably the finest of the series of *Verrine* orations. The [pg 159]subject afforded a wider field than the former for the display of eloquence, and it presents us with topics of more general and permanent interest. Such, indeed, is the vehement pathos, and such the resources employed to excite pity in favour of the oppressed, and indignation against the guilty, that the genius of the orator is nowhere more conspicuously displayed—not even in the Philippics or Catilinarian harangues. It was now proved that Verres had practiced every species of fraud and depredation, and on these heads no room was left for defence. But as the duties of provincial Prætors were twofold—the administration of the laws, and the direction of warlike operations—it was suspected that the counsel of Verres meant to divert the attention of the judges from his avarice to his military conduct and valour. This plea the orator completely anticipates. His misconduct, indeed, in the course of the naval operations against the pirates, forms one of the chief topics of Cicero's bitter invective. He demonstrates that the fleet had been equipped rather for show than for service; that it was unprovided with sailors or stores, and altogether unfit to act against an enemy. The command was given to Cleomenes, a Syracusan, who was ignorant of naval affairs, merely that Verres might enjoy the company of his wife during his absence. The description of the sailing of the fleet from Syracuse is inimitable, and it is so managed that the whole seems to pass before the eyes. Verres, who had not been seen in public for many months, having retired to a splendid pavilion, pitched near the fountain of Arethusa, where he passed his time in company of his favourites, amidst all the delights that arts and luxury could administer, at length appeared, in order to view the departure of the squadron; and a Roman Prætor exhibited himself, standing on the shore in sandals, with a purple cloak flowing to his

heels, and leaning on the shoulder of a harlot! The fleet, as was to be expected, was driven on shore, and there burned by the pirates, who entered Syracuse in triumph, and retired from it unmolested. Verres, in order to divert public censure from himself, put the captains of the ships to death; and this naturally leads on to the subject which has given name to the oration,—the cruel and illegal executions, not merely of Sicilians, but Roman citizens. The punishments of death and torture usually reserved for slaves, but inflicted by Verres on freemen of Rome, formed the climax of his atrocities, which are detailed in oratorical progression. After the vivid description of his former crimes, one scarcely expects that new terms of indignation will be found; but the expressions of the orator become more glowing, in proportion as Verres grows more daring in [pg 160]his guilt. The sacred character borne over all the world by a Roman citizen, must be fully remembered, in order to read with due feeling the description of the punishment of Gavius, who was scourged, and then nailed to a cross, which, by a refinement in cruelty, was erected on the shore, and facing Italy, that he might suffer death with his view directed towards home and a land of liberty. The whole is poured forth in a torrent of the most rapid and fervid composition; and had it actually flowed from the lips of the speaker, we cannot doubt the prodigious effect it would have had on a Roman audience, and on Roman judges. In the oration *De Signis*, something, as we have seen, is lost to a modern reader, by the diminished reverence for the mythological deities; and, in like manner, we cannot enter fully into the spirit of the harangue *De Suppliciis*, which is planned with a direct reference to national feeling, to that stern decorum which could not be overstepped without shame, and that adoration of the majesty of Rome, which invested its citizens with inexpressible dignity, and bestowed on them an almost inviolable nature. Hence the appearance of Verres in public, in a long purple robe, is represented as the climax of his enormities, and the punishment of scourging inflicted on a Roman citizen is treated (without any discussion concerning the justice of the sentence) as an unheard-of and unutterable crime. Yet even those parts least attractive to modern readers, are perfect in their execution; and the whole series of orations will ever be regarded as among the most splendid monuments of Tully's transcendent genius.

In the renowned cause against Verres, there can be no doubt that the orator displayed the whole resources of his vast talents. Every circumstance

concurred to stimulate his exertions and excite his eloquence. It was the first time he had appeared as an accuser in a public trial—his clients were the injured people of a mighty province, rivalling in importance the imperial state—the inhabitants of Sicily surrounded the Forum, and an audience was expected from every quarter of Italy, of all that was exalted, intelligent, and refined. But, chiefly, he had a subject, which, from the glaring guilt of the accused, and the nature of his crimes, was so copious, interesting, and various, so abundant in those topics which an orator would select to afford full scope for the exercise of his powers, that it was hardly possible to labour tamely or listlessly in so rich a mine of eloquence. Such a wonderful assemblage of circumstances never yet prepared the course for the triumphs of oratory; so great an opportunity for the exhibition of forensic art will, in all probability, never again occur. Suffice it to say, that the orator surpassed by his workmanship the singular beauty of his materials; and instead of being overpowered by their magnitude, derived from the vast resources which they supplied the merit of an additional excellence, in the skill and discernment of his choice.

The infinite variety of entertaining anecdotes with which the series of pleadings against Verres abounds—the works of art which are commemorated—the interesting topographical descriptions—the insight afforded into the laws and manners of the ancient Sicilians—the astonishing profusion of ironical sallies, all conspire to dazzle the imagination and rivet the attention of the reader; yet there is something in the idea that they were not actually delivered, which detracts from the effect of circumstances which would otherwise heighten our feelings. It appears to us even preposterous to read, in the commencement of the second oration, of a report having been spread that Verres was to abandon his defence, but that there he sat braving his accusers and judges with his characteristic impudence. The exclamations on his effrontery, and the adjurations of the judges, lose their force, when we cannot help recollecting that before one word of all this could be pronounced, the person against whom they were directed as present had sneaked off into voluntary exile. Whatever effect this recollection may have had on the ancients, who regarded oratory as an art, and an oration as an elaborate composition, nothing can be more grating or offensive to the taste and feelings of a modern reader, whose idea of

eloquence is that of something natural, heart-felt, inartificial, and extemporaneous.

The Sicilians, though they could scarcely have been satisfied with the issue of the trial, appear to have been sufficiently sensible of Cicero's great exertions in their behalf. Blainville, in his Travels, mentions, that while at Grotta Ferrata, a convent built on the ruins of Cicero's Tusculan Villa, he had been shown a silver medal, unquestionably antique, struck by the Sicilians in gratitude for his impeachment of Verres. One side exhibits a head of Cicero, crowned with laurel, with the legend *M. T. Ciceroni*—on the reverse, there is the representation of three legs extended in a triangular position, in the form of the three great capes or promontories of Sicily, with the motto,—“*Prostrato Verre Trinacria.*”

Pro Fonteio. It is much to be regretted, that the oration for Fonteius, the next which Cicero delivered, has descended to us incomplete. It was the defence of an unpopular governor, accused of oppression by the province intrusted to his administration; and, as such, would have formed an interesting contrast to the accusation of Verres.

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Pro Cæcina. This was a mere question of civil right, turning on the effect of a Prætorian edict.

Pro Lege Manilia. Hitherto Cicero had only addressed the judges in the Forum in civil suits or criminal prosecutions. The oration for the Manilian law, which is accounted one of the most splendid of his productions, was the first in which he spoke to the whole people from the rostrum. It was pronounced in favour of a law proposed by Manilius, a tribune of the people, for constituting Pompey sole general, with extraordinary powers, in the war against Mithridates and Tigranes, in which Lucullus at that time commanded. The chiefs of the Senate regarded this law as a dangerous precedent in the republic; and all the authority of Catulus, and eloquence of Hortensius, were directed against it. It has been conjectured, that in supporting pretensions which endangered the public liberty, Cicero was guided merely by interest, since an opposition to Pompey might have prevented his own election to the consulship, which was now the great object of his ambition. His life, however, and writings, will warrant us in

ascribing to him a different, though perhaps less obvious motive. With the love of virtue and the republic, which glowed so intensely in the breast of this illustrious Roman, that less noble passion, the immoderate desire of popular fame, was unfortunately mingled. “Fame,” says a modern historian, “was the prize at which he aimed; his weakness of bodily constitution sought it through the most strenuous labours—his natural timidity of mind pursued it through the greatest dangers. Pompey, who had fortunately attained it, he contemplated as the happiest of men, and was led, from this illusion of fancy, not only to speak of him, but really to think of him,” (till he became unfortunate,) “with a fondness of respect bordering on enthusiasm. The glare of glory that surrounded Pompey, concealed from Cicero his many and great imperfections, and seduced an honest citizen, and finest genius in Rome, a man of unparalleled industry, and that generally applied to the noblest purposes, into the prostitution of his abilities and virtues, for exalting an ambitious chief, and investing him with such exorbitant and unconstitutional powers, as virtually subverted the commonwealth³²⁰.”

In defending this pernicious measure, Cicero divided his discourse into two parts—showing, first, that the importance and imminent dangers of the contest in which the state was engaged, required the unusual remedy proposed—and, secondly, that Pompey was the fittest person to be intrusted with the conduct [pg 163]of the war. This leads to a splendid panegyric on that renowned commander, in which, while he does justice to the merits of his predecessor, Lucullus, he enlarges on the military skill, valour, authority, and good fortune of this present idol of his luxuriant imagination, with all the force and beauty which language can afford. He fills the imagination with the immensity of the object, kindles in the breast an ardour of affection and gratitude, and, by an accumulation of circumstances and proofs, so aggrandizes his hero, that he exalts him to something more than mortal in the minds of his auditory; while, at the same time, every word inspires the most perfect veneration for his character, and the most unbounded confidence in his integrity and judgment. The whole world is exhibited as an inadequate theatre for the actions of such a superior genius; while all the nations, and potentates of the earth, are in a manner called as witnesses of his valour and his truth. By enlarging on these topics, by the most solemn protestations of his own sincerity, and by adducing examples from antiquity,

of the state having been benefited or saved, by intrusting unlimited power to a single person, he allayed all fears of the dangers which it was apprehended might result to the constitution, from such extensive authority being vested in one individual—and thus struck the first blow towards the subversion of the republic!

Pro Cluentio. This is a pleading for Cluentius, who, at his mother's instigation, was accused of having poisoned his stepfather, Oppianicus. Great part of the harangue appears to be but collaterally connected with the direct subject of the prosecution. Oppianicus, it seems, had been formerly accused by Cluentius, and found guilty of a similar attempt against his life; but after his condemnation, a report became current that Cluentius had prevailed in the cause by corrupting the judges, and, to remove the unfavourable impression thus created against his client, Cicero recurs to the circumstances of that case. In the second part of the oration, which refers to the accusation of poisoning Oppianicus, he finds it necessary to clear his client from two previous charges of attempts to poison. In treating of the proper subject of the criminal proceedings, which does not occupy above a sixth part of the whole oration, he shows that Cluentius could have had no access or opportunity to administer poison to his father, who was in exile; that there was nothing unusual or suspicious in the circumstances of his death; and that the charge originated in the machinations of Cluentius' unnatural mother, against whom he inveighs with much force, as one hurried along blindfold by guilt—who acts with such folly that no one can ac[pg 164]count her a rational creature—with such violence that none can imagine her to be a woman—with such cruelty, that none can call her a mother. The whole oration discloses such a scene of enormous villainy—of murders, by poison and assassination—of incest, and subornation of witnesses, that the family history of Cluentius may be regarded as the counterpart in domestic society, of what the government of Verres was in public life. Though very long, and complicated too, in the subject, it is one of the most correct and forcible of all Cicero's judicial orations; and, under the impression that it comes nearer to the strain of a modern pleading than any of the others, it has been selected by Dr Blair as the subject of a minute analysis and criticism³²¹.

De Lege Agraria contra Rullum. In his discourse *Pro Lege Manilia*, the first of the deliberative kind addressed to the assembly of the people, Cicero had the advantage of speaking for a favourite of the multitude, and against the chiefs of the Senate; but he was placed in a very different situation when he came to oppose the Agrarian law. This had been for 300 years the darling object of the Roman tribes—the daily attraction and rallying word of the populace—the signal of discord, and most powerful engine of the seditious tribunate. The first of the series of orations against the Agrarian law, now proposed by Rullus, was delivered by Cicero in the Senate-house, shortly after his election to the consulship: The second and third were addressed to the people from the rostrum. The scope of the present Agrarian law was, to appoint Decemvirs for the purpose of selling the public domains in the provinces, and to recover from the generals the spoils acquired in foreign wars, by which a fund might be formed for the purchase of lands in Italy, particularly Campania—to be equally divided among the people. Cicero, in his first oration, of which the commencement is now wanting, quieted the alarms of the Senate, by assuring them of his resolution to oppose the law with his utmost power. When the question came before the people, he did not fear to encounter the Tribunes on their own territory, and most popular subject; he did not hesitate to make the rabble judges in their own cause, though one in which their passions, interests, and prejudices, and those of their fathers, had been engaged for so many centuries. Conscious of his superiority, he invited the Tribunes to ascend the rostrum, and argue the point with him before the assembled multitude; but the field was left clear to his argument and eloquence, and by alternately flatter[pg 165]ing the people, and ridiculing the proposer of the law, he gave such a turn to their inclinations, that they rejected the proposition as eagerly as they had before received it.

But although the Tribunes were unable to cope with Cicero in the Forum, they subsequently contrived to instil suspicions into the minds of the populace, with regard to his motives in opposing the Agrarian law. These imputations made such an impression on the city, that he found it necessary to defend himself against them, in a short speech to the people. It has been disputed, whether this third oration was the last which Cicero pronounced on occasion of this Agrarian law. In the letters to Atticus, while speaking of his consular orations, he says, “that among those sent, was that pronounced

in the Senate, and that addressed to the people, on the Agrarian law³²².” These are the first and second of the speeches, which we now have against Rullus; but he also mentions, that there were two *apospasmatia*, as he calls them, concerning the Agrarian law. Now, what is at present called the third, was probably the first of these two, and the last must have perished.

Pro Rabirio. About the year 654, Saturninus, a seditious Tribune, had been slain by a party attached to the interests of the Senate. Thirty-six years afterwards, Rabirius was accused of accession to this murder, by Labienus, subsequently well known as Cæsar’s lieutenant in Gaul. Hortensius had pleaded the cause before the Duumvirs, Caius and Lucius Cæsar, by whom Rabirius being condemned, appealed to the people, and was defended by Cicero in the Comitia. The Tribune, it seems, had been slain in a tumult during a season of such danger, that a decree had been passed by the Senate, requiring the Consuls to be careful that the republic received no detriment. This was supposed to sanction every proceeding which followed in consequence; and the design of the popular party, in the impeachment of Rabirius, was to attack this prerogative of the Senate. Cicero’s oration on this contention between the Senatorial and Tribunitial power, gives us more the impression of prompt and unstudied eloquence than most of his other harangues. It is, however, a little obscure, partly from the circumstance that the accuser would not permit him to exceed half an hour in the defence. The argument seems to have been, that Rabirius did not kill Saturninus; but that even if he had slain him, the action was not merely legal, but praiseworthy, since all citizens had been required to arm in aid of the Consuls.

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It was believed, that in spite of the exertions of Cicero, Rabirius would have been condemned, had not the Prætor Metellus devised an expedient for dissolving the Comitia, before sentence could be passed. The cause was neither farther prosecuted at this time, nor subsequently revived; the public attention being now completely engrossed by the imminent dangers of the Catilinarian Conspiracy, which was discovered during the Consulship of Cicero.

Contra Catilinam. The detection and suppression of that nefarious plot, form the most glorious part of the political life of Cicero; and the orations

he pronounced against the chief conspirator, are still regarded as the most splendid monuments of his eloquence. It was no longer to defend the rights and prerogatives of a municipal town or province, nor to move and persuade a judge in favour of an unfortunate client, but to save his country and the republic, that Cicero ascended the Rostrum. The conspiracy of Catiline tended to the utter extinction of the city and government. Cicero, having discovered his design, (which was to leave Rome and join his army, assembled in different parts of Italy, while the other conspirators remained within the walls, to butcher the Senators and fire the capital,) summoned the Senate to meet in the Temple of Jupiter Stator, with the intention of laying before it the whole circumstances of the plot. But Catiline having unexpectedly appeared in the midst of the assembly, his audacity impelled the consular orator into an abrupt invective, which is directly addressed to the traitor, and commences without the preamble by which most of his other harangues are introduced. In point of effect, this oration must have been perfectly electric. The disclosure to the criminal himself of his most secret purposes—their flagitious nature, threatening the life of every one present—the whole course of his villainies and treasons, blazoned forth with the fire of incensed eloquence—and the adjuration to him, by flying from Rome, to free his country from such a pestilence, were all wonderfully calculated to excite astonishment, admiration, and horror. The great object of the whole oration, was to drive Catiline into banishment; and it appears somewhat singular, that so dangerous a personage, and who might have been so easily convicted, should thus have been forced, or even allowed, to withdraw to his army, instead of being seized and punished. Catiline having escaped unmolested to his camp, the conduct of the Consul in not apprehending, but sending away this formidable enemy, had probably excited some censure and discontent; and the second Catilinarian oration was in consequence delivered by Cicero, in an assembly of the people, in [pg 167]order to justify his driving the chief conspirator from Rome. A capital punishment, he admits, ought long since to have overtaken Catiline, but such was the spirit of the times, that the existence of the conspiracy would not have been believed, and he had therefore resolved to place his guilt in a point of view so conspicuous, that vigorous measures might without hesitation be adopted, both against Catiline and his accomplices. He also takes this opportunity to warn his audience against those bands of conspirators who still lurked within the city, and whom he divides into

various classes, describing, in the strongest language, the different degrees of guilt and profligacy by which they were severally characterized.

Manifest proofs of the whole plot having been at length obtained, by the arrest of the ambassadors from the Allobroges, with whom the conspirators had tampered, and who were bearing written credentials from them to their own country, Cicero, in his third oration, laid before the people all the particulars of the discovery, and invited them to join in celebrating a thanksgiving, which had been decreed by the Senate to his honour, for the preservation of his country.

The last Catilinarian oration was pronounced in the Senate, on the debate concerning the punishment to be inflicted on the conspirators. Silanus had proposed the infliction of instant death, while Cæsar had spoken in favour of the more lenient sentence of perpetual imprisonment. Cicero does not precisely declare for any particular punishment; but he shows that his mind evidently inclined to the severest, by dwelling on the enormity of the conspirators' guilt, and aggravating all their crimes with much acrimony and art. His sentiments finally prevailed; and those conspirators, who had remained in Rome, were strangled under his immediate superintendence.

In these four orations, the tone and style of each of them, particularly of the first and last, is very different, and accommodated with a great deal of judgment to the occasion, and to the circumstances under which they were delivered. Through the whole series of the Catilinarian orations, the language of Cicero is well calculated to overawe the wicked, to confirm the good, and encourage the timid. It is of that description which renders the mind of one man the mind of a whole assembly, or a whole people³²³.

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Pro Muræna.—The Comitia being now held in order to choose Consuls for the ensuing year, Junius Silanus and Muræna were elected. The latter candidate had for his competitor the celebrated jurisconsult Sulpicius Rufus; who, being assisted by Cato, charged Muræna with having prevailed by bribery and corruption. This impeachment was founded on the Calpurnian law, which had lately been rendered more strict, on the suggestion of Sulpicius, by a *Senatusconsultum*. Along with this accusation, the profligacy of Muræna's character was objected to, and also the

meanness of his rank, as he was but a knight and soldier, whereas Sulpicius was a patrician and lawyer. Cicero therefore shows, in the first place, that he amply merited the consulship, from his services in the war with Mithridates, which introduces a comparison between a military and forensic life. While he pays his usual tribute of applause to cultivated eloquence, he derides the forms and phraseology of the jurisconsults, by whom the civil law was studied and practised. As to the proper subject of the accusation, bribery in his election, it seems probable that Muræna had been guilty of some practices which, strictly speaking, were illegal, yet were warranted by custom. They seem to have consisted in encouraging a crowd to attend him on the streets, and in providing shows for the entertainment of the multitude; which, though expected by the people, and usually overlooked by the magistrates, appeared heinous offences in the eye of the rigid and stoical Cato. Aware of the weight added to the accusation by his authority, Cicero, in order to obviate this influence, treats his stoical principles in the same tone which he had already used concerning the profession of Sulpicius. In concluding, he avails himself of the difficulties of the times, and the yet unsuppressed conspiracy of Catiline, which rendered it unwise to deprive the city of a Consul well qualified to defend it in so dangerous a crisis.

This case was one of great expectation, from the dignity of the prosecutors, and eloquence of the advocates for the accused. Before Cicero spoke, it had been pleaded by Hortensius, and Crassus the triumvir; and Cicero, in engaging in the cause, felt the utmost desire to surpass these rivals of his eloquence. Such was his anxiety, that he slept none during the whole night which preceded the hearing of the cause; and being thus exhausted with care, his eloquence on this occasion fell short of that of Hortensius³²⁴. He shows, however, much delicacy and art in the manner in which he manages the attack on the philosophy of Cato, and profession of Sulpicius, [pg 169]both of whom were his particular friends, and high in the estimation of the judges he addressed³²⁵.

Pro Valerio Flacco.—Flaccus had aided Cicero in his discovery of the conspiracy of Catiline, and, in return, was defended by him against a charge of extortion and peculation, brought by various states of Asia Minor, which he had governed as Pro-prætor.

Pro Cornelio Sylla.—Sylla, who was afterwards a great partizan of Cæsar's, was prosecuted for having been engaged in Catiline's conspiracy; but his accuser, Torquatus, digressing from the charge against Sylla, turned his raillery on Cicero; alleging, that he had usurped the authority of a king; and asserting, that he was the third foreign sovereign who had reigned at Rome after Numa and Tarquin. Cicero, therefore, in his reply, had not only to defend his client, but to answer the petulant raillery by which his antagonist attempted to excite envy and odium against himself. He admits that he was a foreigner in one sense of the word, having been born in a municipal town of Italy, in common with many others who had rendered the highest services to the city; but he repels the insinuation that he usurped any kingly authority; and being instigated by this unmerited attack, he is led on to the eulogy of his own conduct and consulship,—a favourite subject, from which he cannot altogether depart, even when he enters more closely into the grounds of the prosecution.

For this defence of Cornelius Sylla, Cicero privately received from his client the sum of 20,000 sesterces, which chiefly enabled him to purchase his magnificent house on the Palatine Hill.

Pro Archia.—This is one of the orations of Cicero on which he has succeeded in bestowing the finest polish, and it is perhaps the most *pleasing* of all his harangues. Archias had been his preceptor, and, after having obtained much reputation by his Greek poems, on the triumphs of Lucullus over Mithridates, and of Marius over the Cimbri, was now attempting to celebrate the consulship of Cicero; so that the orator, in pleading his cause, expected to be requited by the praises of his muse.

This poet was a native of Antioch, and, having come to Italy in early youth, was rewarded for his learning and genius with the friendship of the first men in the state, and with the citizenship of Heraclea, a confederate and enfranchised town of Magna Græcia. A few years afterwards, a law was [pg 170]enacted, conferring the rights of Roman citizens on all who had been admitted to the freedom of federate states, provided they had a settlement in Italy at the time when the law was passed, and had asserted the privilege before the Prætor within sixty days from the period at which it was promulgated. After Archias had enjoyed the benefit of this law for more

than twenty years, his claims were called in question by one Gracchus, who now attempted to drive him from the city, under the enactment expelling all foreigners who usurped, without due title, the name and attributes of Roman citizens. The loss of records, and some other circumstances, having thrown doubts on the legal right of his client, Cicero chiefly enlarged on the dignity of literature and poetry, and the various accomplishments of Archias, which gave him so just a claim to the privileges he enjoyed. He beautifully describes the influence which study and a love of letters had exercised on his own character and conduct. He had thence imbibed the principle, that glory and virtue should be the darling objects of life, and that to attain these, all difficulties, or even dangers, were to be despised. But, of all names dear to literature and genius, that of poet was the most sacred: hence it would be an extreme of disgrace and profanation, to reject a bard who had employed the utmost efforts of his art to make Rome immortal by his muse, and had possessed such prevailing power as to touch with pleasure even the stubborn and intractable soul of Marius.

The whole oration is interspersed with beautiful maxims and sentences, which have been quoted with delight in all ages. There appears in it, however, perhaps too much, and certainly more than in the other orations, of what Lord Monboddo calls *concinnity*. “We have in it,” observes he, speaking of this oration, “strings of antitheses, the figure of like endings, and a perfect similarity of the structure, both as to the grammatical form of the words, and even the number of them³²⁶.” The whole, too, is written in a style of exaggeration and immoderate praise. The orator talks of the poet Archias, as if the whole glory of Rome, and salvation of the commonwealth, depended on his poetical productions, and as if the smallest injury offered to him would render the name of Rome execrable and infamous in all succeeding generations.

Pro Cn. Plancio.—The defence of Plancius was one of the first orations pronounced by Cicero after his return from banishment. Plancius had been Quæstor of Macedon when Cicero came to that country during his exile, and had received [pg 171]him with honours proportioned to his high character, rather than his fallen fortunes. In return for this kindness, Cicero undertook his defence against a charge, preferred by a disappointed competitor, of bribery and corruption in suing for the ædileship.

Pro Sextio.—This is another oration produced by the gratitude of Cicero, and the circumstances of his banishment. Sextius, while Tribune of the people, had been instrumental in procuring his recall, and Cicero requited this good office by one of the longest and most elaborate of his harangues. The accusation, indeed, was a consequence of his interposition in favour of the illustrious exile; for when about to propose his recall to the people, he was violently attacked by the Clodian faction, and left for dead on the street. His enemies, however, though obviously the aggressors, accused him of violence, and exciting a tumult. This was the charge against which Cicero defended him. The speech is valuable for the history of the times; as it enters into all the recent political events in which Cicero had borne so distinguished a part. The orator inveighs against his enemies, the Tribune Clodius, and the Consuls Gabinius and Piso, and details all the circumstances connected with his own banishment and return, occasionally throwing in a word or two about his client Sextius.

Contra Vatinius.—Vatinius, who belonged to the Clodian faction, appeared, at the trial of Sextius, as a witness against him. This gave Cicero an opportunity of interrogating him; and the whole oration being a continued invective on the conduct of Vatinius, poured forth in a series of questions, without waiting for an answer to any of them, has been entitled, *Interrogatio*.

Pro Cælio.—Middleton has pronounced this to be the most entertaining of the orations which Cicero has left us, from the vivacity of wit and humour with which he treats the gallantries of Clodia, her commerce with Cælius, and in general the gaities and licentiousness of youth.

Cælius was a young man of considerable talents and accomplishments, who had been intrusted to the care of Cicero on his first introduction to the Forum; but having imprudently engaged in an intrigue with Clodia, the well-known sister of Clodius, and having afterwards deserted her, she accused him of an attempt to poison her, and of having borrowed money from her in order to procure the assassination of Dio, the Alexandrian ambassador. In this, as in most other prosecutions of the period, a number of charges, unconnected with the main one, seem to have been accumulated, in order to [pg 172]give the chief accusation additional force and

credibility. Cicero had thus to defend his client against the suspicions arising from the general libertinism of his conduct. He justifies that part of it which related to his intercourse with Clodia, by enlarging on the loose character of this woman, whom he treats with very little ceremony; and, in order to place her dissolute life in a more striking point of view, he conjures up in fancy one of her grim and austere ancestors of the Clodian family reproaching her with her shameful degeneracy. All this the orator was aware would not be sufficient for the complete vindication of his client; and it is curious to remark the ingenuity with which the strenuous advocate of virtue and regularity of conduct palliates, on this occasion, the levities of youth,—not, indeed, by lessening the merits of strict morality, but by representing those who withstand the seductions of pleasure as supernaturally endued.

This oration was a particular favourite of one who was long a distinguished speaker in the British Senate. “By the way,” says Mr Fox, in a letter to Wakefield, “I know no speech of Cicero more full of beautiful passages than this is, nor where he is more in his element. Argumentative contention is what he by no means excels in; and he is never, I think, so happy as when he has an opportunity of exhibiting a mixture of philosophy and pleasantry; and especially when he can interpose anecdotes and references to the authority of the eminent characters in the history of his country. No man appears, indeed, to have had such real respect for authority as he; and therefore, when he speaks upon that subject, he is always natural and in earnest; and not like those among *us*, who are so often declaiming about the wisdom of our ancestors, without knowing what they mean, or hardly ever citing any particulars of their conduct, or of their *dicta*³²⁷.”

De Provinciis Consularibus. The government of Gaul was continued to Cæsar, in consequence of this oration, so that it may be considered as one of the immediate causes of the ruin of the Roman Republic, which it was incontestibly the great wish of Cicero to protect and maintain inviolate. But Cicero had evidently been duped by Cæsar, as he formerly had nearly been by Catiline, and as he subsequently was by Octavius, Pollio, and every one who found it his interest to cajole him, by proclaiming his praises, and professing ardent zeal for the safety of the state. So little had he penetrated the real views of Cæsar, that we find him asking the Senate, in his oration, what possible motive or inducement Cæsar [pg 173] could have to remain in

the province of Gaul, except the public good. “For would the amenity of the regions, the beauty of the cities, or civilization of the inhabitants, detain him there—or can a return to one’s native country be so distasteful?”

Pro Cornelio Balbo.—Balbus was a native of Cadiz, who having been of considerable service to Pompey, during his war in Spain, against Sertorius, had, in return, received the freedom of Rome from that commander, in virtue of a special law, by which he had obtained the power of granting this benefit to whom he chose. The validity of Pompey’s act, however, was now questioned, on the ground that Cadiz was not within the terms of that relation and alliance to Rome, which could, under any circumstances, entitle its citizens to such a privilege. The question, therefore, was, whether the inhabitants of a federate state, which had not adopted the institutions and civil jurisprudence of Rome, could receive the rights of citizenship. This point was of great importance to the municipal towns of the Republic, and the oration throws considerable light on the relations which existed between the provinces and the capital.

In Pisonem.—Piso having been recalled from his government of Macedon, in consequence of Cicero’s oration, *De Provinciis Consularibus*, he complained, in one of his first appearances in the Senate, of the treatment he had received, and attacked the orator, particularly on the score of his poetry, ridiculing the well known line,

“Cedant arma togæ—concedat laurea linguæ.”

Cicero replied in a bitter invective, in which he exposed the whole life and conduct of his enemy to public contempt and detestation. The most singular feature of this harangue is the personal abuse and coarseness of expression it contains, which appear the more extraordinary when we consider that it was delivered in the Senate-house, and directed against an individual of such distinction and consequence as Piso. Cicero applies to him the opprobrious epithets of *bellua*, *furia*, *carnifex*, *furcifer*, &c.; he banters him on his personal deformities, and upbraids him with his ignominious descent on one side of the family, while, on the other, he had no resemblance to his ancestors, except to the sooty complexion of their images.

Pro Milone.—When Milo was candidate for the Consulship, the notorious demagogue Clodius supported his competitors, and during the canvass, party spirit grew so violent, that the [pg 174]two factions often came to blows within the walls of the city. While these dissensions were at their height, Clodius and Milo met on the Appian Way—the former returning from the country towards Rome, and the latter setting out for Lanuvium, both attended by a great retinue. A quarrel arose among their followers, in which Clodius was wounded and carried into a house in the vicinity. By order of Milo, the doors were broken open, his enemy dragged out, and assassinated on the highway. The death of Clodius excited much confusion and tumult at Rome, in the course of which the courts of justice were burned by a mob. Milo having returned from the banishment into which he had at first withdrawn, was impeached for the crime by the Tribunes of the people; and Pompey, in virtue of the authority conferred on him by a decree of the Senate, nominated a special commission to inquire into the murder committed on the Appian Way. In order to preserve the tranquillity of the city, he placed guards in the Forum, and occupied all its avenues with troops. This unusual appearance, and the shouts of the Clodian faction, which the military could not restrain, so discomposed the orator, that he fell short of his usual excellence. The speech which he actually delivered, was taken down in writing, and is mentioned by Asconius Pedianus as still extant in his time. But that beautiful harangue which we now possess, is one which was retouched and polished, as a gift for Milo, after he had retired in exile to Marseilles.

In the oration, as we now have it, Cicero takes his exordium from the circumstances by which he was so much, though, as he admits, so causelessly disconcerted; since he knew that the troops were not placed in the Forum to overawe, but to protect. In entering on the defence, he grants that Clodius was killed, and by Milo; but he maintains that homicide is, on many occasions, justifiable, and on none more so than when force can only be repelled by force, and when the slaughter of the aggressor is necessary for self-preservation. These principles are beautifully illustrated, and having been, as the orator conceives, sufficiently established, are applied to the case under consideration. He shows, from the circumstantial evidence of time and place—the character of the deceased—the retinue by which he was accompanied—his hatred to Milo—the advantages which would have

resulted to him from the death of his enemy, and the expressions proved to have been used by him, that Clodius had laid an ambush for Milo. Cicero, it is evident, had here the worst of the cause. The encounter appears, in fact, to have been accidental; and though the servants of Clodius may, perhaps, have been the assailants, [pg 175]Milo had obviously exceeded the legitimate bounds of self defence. The orator accordingly enforces the argument, that the assassination of Clodius was an act of public benefit, which, in a consultation of Milo's friends, was the only one intended to have been advanced, and was the sole defence adopted in the oration which Brutus is said to have prepared for the occasion. Cicero, while he does not forego the advantage of this plea, maintains it hypothetically, contending that *even if* Milo had openly pursued and slain Clodius as a common enemy, he might well boast of having freed the state from so pernicious and desperate a citizen. To add force to this argument, he takes a rapid view of the various acts of atrocity committed by Clodius, and the probable situation of the Republic, were he to revive. When the minds of the judges were thus sufficiently prepared, he ascribes his tragical end to the immediate interposition of the providential powers, specially manifested by his fall near the temple of Bona Dea, whose mysteries he had formerly profaned. Having excited sufficient indignation against Clodius, he concludes with moving commiseration for Milo, representing his love for his country and fellow-citizens,—the sad calamity of exile from Rome,—and his manly resignation to whatever punishment might be inflicted on him.

The argument in this oration was perhaps as good as the circumstances admitted; but we miss through the whole that reference to documents and laws, which gives the stamp of truth to the orations of Demosthenes. Each ground of defence, taken by itself, is deficient in argumentative force. Thus, in maintaining that the death of Clodius was of no benefit to Milo, he has taken too little into consideration the hatred and rancour mutually felt by the heads of political factions: but he supplies his weakness of argument by illustrative digressions, flashes of wit, bursts of eloquence, and appeals to the compassion of the judges, on which he appears to have placed much reliance³²⁸. On the whole, this oration was accounted, both by Cicero himself and by his contemporaries, as the finest effort of his genius; which confirms what indeed is evinced by the whole history of Roman eloquence,

that the judges were easily satisfied on the score of reasoning, and attached more importance to pathos, and wit, and sonorous periods, than to fact or law.

Pro Rabirio Postumo.—This is the defence of Rabirius, who was prosecuted for repayment of a sum which he was [pg 176]supposed to have received, in conjunction with the Proconsul Gabinius, from King Ptolemy, for having placed him on the throne of Egypt, contrary to the injunctions of the Senate.

Pro Ligario.—This oration was pronounced after Cæsar, having vanquished Pompey in Thessaly, and destroyed the remains of the Republican party in Africa, assumed the supreme administration of affairs at Rome. Merciful as the conqueror appeared, he was understood to be much exasperated against those who, after the rout at Pharsalia, had renewed the war in Africa. Ligarius, when on the point of obtaining a pardon, was formally accused by his old enemy Tubero, of having borne arms in that contest. The Dictator himself presided at the trial of the case, much prejudiced against Ligarius, as was known from his having previously declared, that his resolution was fixed, and was not to be altered by the charms of eloquence. Cicero, however, overcame his prepossessions, and extorted from him a pardon. The countenance of Cæsar, it is said, changed, as the orator proceeded in his speech; but when he touched on the battle of Pharsalia, and described Tubero as seeking his life, amid the ranks of the army, the Dictator became so agitated, that his body trembled, and the papers which he held dropped from his hand³²⁹.

This oration is remarkable for the free spirit which it breathes, even in the face of that power to which it was addressed for mercy. But Cicero, at the same time, shows much art in not overstepping those limits, within which he knew he might speak without offence, and in seasoning his freedom with appropriate compliments to Cæsar, of which, perhaps, the most elegant is, that he forgot nothing but the injuries done to himself. This was the person whom, in the time of Pompey, he characterized as *monstrum et portentum tyrannum*, and whose death he soon afterwards celebrated as *divinum in rempublicam beneficium*!

The oration of Tubero against Ligarius, was extant in Quintilian's time, and probably explained the circumstances which induced a man, who had fought so keenly against Cæsar at Pharsalia, to undertake the prosecution of Ligarius.

Pro Rege Dejotaro.—Dejotarus was a Tetrarch of Galatia, who obtained from Pompey the realm of Armenia, and from the Senate the title of King. In the civil war he had espoused the cause of his benefactors. Cæsar, in consequence, deprived him of Armenia, but was subsequently reconciled to him, and, while prosecuting the war against Pharnaces, visited him in his original states of Galatia. Some time after[pg 177]wards, Phidippus, the physician of the king, and his grandson Castor, accused him of an attempt to poison Cæsar, during the stay which the Dictator had made at his court. Cicero defended him in the private apartments of Cæsar, and adopted the same happy union of freedom and flattery, which he had so successfully employed in the case of Ligarius. Cæsar, however, pronounced no decision on the one side or other.

Philippica.—The remaining orations of Cicero are those directed against Antony, of whose private life and political conduct they present us with a full and glaring picture. The character of Antony, next to that of Sylla, was the most singular in the Annals of Rome, and in some of its features bore a striking resemblance to that of the fortunate Dictator. Both were possessed of uncommon military talents—both were imbued with cruelty which makes human nature shudder—both were inordinately addicted to luxury and pleasure—and both, for men of their powers of mind and habits, had apparently, at least, a strange superstitious reliance on destiny, portents, and omens. Yet there were strong shades of distinction even in those parts of their characters in which we trace the closest resemblance: The cruelty of Sylla was more deliberate and remorseless—that of Antony, more regardless and unthinking—and amid all the atrocities of the latter, there burst forth occasional gleams of generosity and feeling. But then Sylla was a man of much greater discernment and penetration—a much more profound and successful dissembler—and he was possessed of many refined and elegant accomplishments, of which the coarser Antony was destitute. Sylla gratified his voluptuousness, but Antony was ruled by it. The former indulged in pleasure when within his grasp, but ease, power,

and revenge, were his great and ultimate objects: The chief aim of the latter, was the sensual pleasure to which he was subservient. Sylla would never have been the slave of Cleopatra, or the dupe of Octavius. Hence the wide difference between the destiny of the triumphant Dictator, whose chariot rolled on the wheels of Fortune to the close of his career, and the sad fate of Antony. Yet that very fate has mitigated the abhorrence of posterity, and weakness having been added to wickedness, has unaccountably palliated, in our eyes, the faults of the soft Triumvir, now more remembered as the devoted lover of Cleopatra, than as the chief promoter of the Proscriptions.

The Philippics against Antony, like those of Demosthenes, derive their chief beauty from the noble expression of just indignation, which indeed composes many of the most splendid and admired passages of ancient eloquence. They were all [pg 178]pronounced during the period which elapsed between the assassination of Cæsar, and the defeat of Antony at Modena. Soon after Cæsar's death, Cicero, fearing danger from Antony, who held a sort of military possession of the city, resolved on a voyage to Greece. Being detained, however, by contrary winds, after he had set out, and having received favourable intelligence from his friends at Rome, he determined to return to the capital. The Senate assembled the day after his arrival, in order, at the suggestion of Antony, to consider of some new and extraordinary honours to the memory of Cæsar. To this meeting Cicero was specially summoned by Antony, but he excused himself on pretence of indisposition, and the fatigue of his journey. He appeared, however, in his place, when the Senate met on the following day, in absence of Antony, and delivered the first of the orations, afterwards termed Philippics, from the resemblance they bore to those invectives which Demosthenes poured forth against the great foe of the independence of Greece. Cicero opens his speech by explaining the motives of his recent departure from Rome—his sudden return, and his absence on the preceding day—declaring, that if present, he would have opposed the posthumous honours decreed to the usurper. His next object, after vindicating himself, being to warn the Senate of the designs of Antony, he complains that he had violated the most solemn and authentic even of Cæsar's laws; and at the same time enforced, as ordinances, what were mere jottings, found, or pretended to have been found, among the Dictator's *Memoranda*, after his death.

Antony was highly incensed at this speech, and summoned another meeting of the Senate, at which he again required the presence of Cicero. These two rivals seem to have been destined never to meet in the Senate-house. Cicero, being apprehensive of some design against his life, did not attend; so that the Oration of Antony, in his own justification, which he had carefully prepared in intervals of leisure at his villa, near Tibur, was unanswered in the Senate. The second Philippic was penned by Cicero in his closet, as a reply to this speech of Antony, in which he had been particularly charged with having been not merely accessory to the murder of Cæsar, but the chief contriver of the plot against him. Some part of Cicero's oration was thus necessarily defensive, but the larger portion, which is accusatory, is one of the severest and most bitter invectives ever composed, the whole being expressed in terms of the most thorough contempt and strongest detestation of Antony. By laying open his whole criminal excesses from his earliest youth, he exhibits one continued scene of debauch[pg 179]ery, faction, rapine, and violence; but he dwells with peculiar horror on his offer of the diadem to Cæsar, at the festival of the Lupercalia—his drunken debauch at the once classic villa of Terentius Varro—and his purchase of the effects that belonged to the great Pompey—on which last subject he pathetically contrasts the modesty and decorum of that renowned warrior, once the Favourite of Fortune, and darling of the Roman people, with the licentiousness of the military adventurer who now rioted in the spoils of his country. In concluding, he declares, on his own part, that in his youth he had defended the republic, and, in his old age, he would not abandon its cause.—“The sword of Catiline I despised; and never shall I dread that of Antony.” This oration is adorned with all the charms of eloquence, and proves, that in the decline of life Cicero had not lost one spark of the fire and spirit which animated his earlier productions. Although not delivered in the Senate, nor intended to be published till things were actually come to an extremity, and the affairs of the republic made it necessary to render Antony's conduct and designs manifest to the people, copies of the oration were sent to Brutus, Cassius, and other friends of the commonwealth: hence it soon got into extensive circulation, and, by exciting the vengeance of Antony, was a chief cause of the tragical death of its author.

The situation of Antony having now become precarious, from the union of Octavius with the party of the Senate, and the defection of two legions, he abruptly quitted the city, and placing himself at the head of his army, marched into Cisalpine Gaul, which, since the death of Cæsar, had been occupied by Decimus Brutus, one of the conspirators. The field being thus left clear for Cicero, and the Senate being assembled, he pronounced the third Philippic, of which the great object was to induce it to support Brutus, by placing an army at the disposal of Octavius, along with the two Consuls elect, Hirtius and Pansa. He exhorts the Senate to this measure, by enlarging on the merits of Octavius and Brutus, and concludes with proposing public thanks to these leaders, and to the legions which had deserted the standard of Antony.

From the Senate, Cicero proceeded directly to the Forum, where, in his fourth Philippic, he gave an account to the people of what had occurred, and explained to them, that Antony, though not nominally, had now been actually declared the enemy of his country. This harangue was so well received by an audience the most numerous that had ever listened to his orations, that, speaking of it afterwards, he declares he would have reaped sufficient fruit from the exertions of his [pg 180]whole life, had he died on the day it was pronounced, when the whole people, with one voice and mind, called out that he had twice saved the republic³³⁰.

Brutus being as yet unable to defend himself in the field, withdrew into Modena, where he was besieged by Antony. Intelligence of this having been brought to Rome, Cicero, in his fifth Philippic, endeavoured to persuade the Senate to proclaim Antony an enemy of his country, in opposition to Calenus, who proposed, that before proceeding to acts of hostility, an embassy should be sent for the purpose of admonishing Antony to desist from his attempt on Gaul, and submit himself to the authority of the Senate. After three days' successive debate, Cicero's proposal would have prevailed, had not one of the Tribunes interposed his negative, in consequence of which the measure of the embassy was resorted to. Cicero, nevertheless, before any answer could be received, persisted, in his sixth and seventh Philippics, in asserting that any accommodation with a rebel such as Antony, would be equally disgraceful and dangerous to the republic. The deputies having returned, and reported that Antony would consent to

nothing which was required of him, the Senate declared war against him—employing, however, in their decree, the term tumult, instead of war or rebellion. Cicero, in his eighth Philippic, expostulated with them on their timorous and impolitic lenity of expression. In the ninth Philippic, pronounced on the following day, he called on the Senate to erect a statue to one of the deputies, Servius Sulpicius, who, while labouring under a severe distemper, had, at the risk of his life, undertaken the embassy, but had died before he could acquit himself of the commission with which he was charged. The proposal met with considerable opposition, but it was at length agreed that a brazen statue should be erected to him in the Forum, and that an inscription should be placed on the base, importing that he had died in the service of the republic.

The Philippics, hitherto mentioned, related chiefly to the affairs of Cisalpine Gaul, the scene of the contest between D. Brutus and Antony. A long period was now elapsed since the Senate had received any intelligence concerning the chiefs of the conspiracy, Marcus Brutus and Cassius, the former of whom had seized on the province of Macedonia, while the latter occupied Syria. Public despatches, however, at length arrived from M. Brutus, giving an account of his successful proceedings in Greece. The Consul Pansa having communicated the contents at a meeting of the Senate, and having [pg 181]proposed for him public thanks and honours, Calenus, a creature of Antony, objected, and moved, that as what he had done was without lawful authority, he should be required to deliver up his army to the Senate, or the proper governor of the province. Cicero, in his tenth Philippic, replied, in a transport of eloquent and patriotic indignation, to this most unjust and ruinous proposal, particularly to the assertion by which it was supported, that veterans would not submit to be commanded by Brutus. He thus succeeded in obtaining from the Senate an approbation of the conduct of Brutus, a continuance of his command, and pecuniary assistance.

About the same time accounts arrived from Asia, that Dolabella, on the part of Antony, had taken possession of Smyrna, and there put Trebonius, one of the conspirators, to death. On receiving this intelligence, a debate arose concerning the choice of a general to be employed against Dolabella, and Cicero, in his eleventh Philippic, strenuously maintained the right of Cassius, who was then in Greece, to be promoted to that command. In the

twelfth and thirteenth, he again warmly and successfully opposed the sending a deputation to Antony. All further mention of pacification was terminated by the joyful tidings of the total defeat of Antony before Modena, by the army under Octavius, and the Consuls Hirtius and Pansa—the latter of whom was mortally wounded in the conflict. The intelligence excited incredible joy at Rome, which was heightened by the unfavourable reports that had previously prevailed. The Senate met to deliberate on the despatches of the Consuls communicating the event. Never was there a finer opportunity for the display of eloquence, than what was afforded to Cicero on this occasion; of which he most gloriously availed himself in the fourteenth Philippic. The excitation and tumult consequent on a great recent victory, give wing to high flights of eloquence, and also prepare the minds of the audience to follow the ascent. The success at Modena terminated a long period of anxiety. It was for the time supposed to have decided the fate of Antony and the Republic; and the orator, who thus saw all his measures justified, must have felt the exultation, confidence, and spirit, so favourable to the highest exertions of eloquence. This, with the detestable character of the conquered foe,—the wounds of Pansa, who was once suspected by the Republic, but by his faithful zeal had gradually obtained its confidence, and at length sealed his fidelity with his blood,—the rewards due to the surviving victors,—the honours to be paid to those who had fallen in defence of their country,—the thanksgivings to be rendered to the immortal gods,—all afforded topics of triumph, panegyric, and pathos, which have been seldom supplied to the orator in any age or country. In extolling those who had fallen, Cicero dwells on two subjects; one appertaining to the glory of the heroes themselves, the other to the consolation of their friends and relatives. He proposes that a splendid monument should be erected, in common to all who had perished, with an inscription recording their names and services; and in recommending this tribute of public gratitude, he breaks out into a funeral panegyric, which has formed a more lasting memorial than the monument he suggested.

This was the last Philippic and last oration which Cicero delivered. The union of Antony and Octavius soon after annihilated the power of the Senate; and Cicero, like Demosthenes, fell the victim of that indignant eloquence with which he had lashed the enemies of his country:—

“Eloquio sed uterque periit orator; utrumque
Largus et exundans letho dedit ingenii fons.
Ingenio manus est et cervix cæsa, nec unquam
Sanguine cauidici maduerunt rostra pusilli³³¹.”

Besides the complete orations above mentioned, Cicero delivered many, of which only fragments remain, or which are now entirely lost. All those which he pronounced during the five years intervening between his election to the Quæstorship and the Ædileship have perished, except that for M. Tullius, of which the exordium and narrative were brought to light at the late celebrated discovery by Mai, in the Ambrosian library at Milan. Tullius had been forcibly dispossessed (*vi armata*) by one of the Fabii of a farm he held in Lucania; and the whole Fabian race were prosecuted for damages, under a law of Lucullus, whereby, in consequence of depredations committed in the municipal states of Italy, every family was held responsible for the violent aggressions of any of its tribe. A large fragment of the oration for Scaurus forms by far the most valuable part of the discovery in the Ambrosian library. The oration, indeed, is not entire, but the part we have of it is tolerably well connected. The charge was one of provincial embezzlement, and in the exordium the orator announces that he was to treat, 1st, of the general nature of the accusation itself; 2d, of the character of the Sardinians; 3d, of that of Scaurus; and, lastly, of the special charge concerning the corn. Of these, the first two heads are tolerably entire; and that in which he exposes the faithless character of the Sardinians, and thus shakes the cred[pg 183]ibility of the witnesses for the prosecution is artfully managed. The other fragments discovered in the Ambrosian library consist merely of detached sentences, of which it is almost impossible to make a connected meaning. Of this description is the oration *In P. Clodium*; yet still, by the aid of the Commentary found along with it, we are enabled to form some notion of the tenor of the speech. The well-known story of Clodius finding access to the house of Cæsar, in female disguise, during the celebration of the mysteries of Bona Dea, gave occasion to this invective. A sort of altercation had one day passed in the Senate between Cicero and Clodius, soon after the acquittal of the latter for this offence, which probably suggested to Cicero the notion of writing a connected oration, inveighing against the vices and crimes of Clodius, particularly his profanation of the secret rites of the goddess, and the

corrupt means by which he had obtained his acquittal. In one of his epistles to Atticus, Cicero gives a detailed account of this altercation, which certainly does not afford us a very dignified notion of senatorial gravity and decorum.

Of those orations of Cicero which have entirely perished, the greatest loss has been sustained by the disappearance of the defence of Cornelius, who was accused of practices against the state during his tribuneship. This speech, which was divided into two great parts, was continued for four successive days, in presence of an immense concourse of people, who testified their admiration of its bright eloquence by repeated applause³³². The orator himself frequently refers to it as among the most finished of his compositions³³³; and the old critics cite it as an example of genuine eloquence. “Not merely,” says Quintilian, “with strong, but with shining armour did Cicero contend in the cause of Cornelius.” We have also to lament the loss of the oration for C. Piso, accused of oppression in his government—of the farewell discourse delivered to the Sicilians, (*Quum Quæstor Lilybæo discederet*), in which he gave them an account of his administration, and promised them his protection at Rome—of the invective pronounced in the Senate against Metellus, in answer to a harangue which that Tribune had delivered to the people concerning Cicero’s conduct, in putting the confederates of Catiline to death without trial; and, finally, of the celebrated speech *De Proscriptorum Liberis*, in which, on political grounds, he opposed, while admitting their justice, the claims of the children of those whom Sylla had proscribed and disqualified from holding [pg 184]any honours in the state, and who now applied to be relieved from their disabilities. The success which he obtained in resisting this demand, is described in strong terms by Pliny: “Te orante, proscriptorum liberos honores petere puduit³³⁴.” A speech which is now lost, and which, though afterwards reduced to writing, must have been delivered extempore, afforded another strong example of the persuasiveness of his eloquence. The appearance of the Tribune, Roscius Otho, who had set apart seats for the knights at the public spectacles, having one day occasioned a disturbance at the theatre, Cicero, on being informed of the tumult, hastened to the spot, and, calling out the people to the Temple of Bellona, he so calmed them by the magic of his eloquence, that, returning immediately to the theatre, they clapped their hands in honour of Otho, and vied with the

knights in giving him demonstrations of respect³³⁵. One topic which he touched on in this oration, and the only one of which we have any hint from antiquity, was the rioters' want of taste, in creating a tumult, while Roscius was performing on the stage³³⁶. This speech, the orations against the Agrarian law, and that *De Proscriptorum Liberis*, have long been cited as the strongest examples of the power of eloquence over the passions of mankind: And it is difficult to say, whether the highest praise be due to the orator, who could persuade, or to the people, who could be thus induced to relinquish the most tempting expectations of property and honours, and the full enjoyment of their favourite amusements.

In the age of that declamation which prevailed at Rome from the time of Tiberius to the fall of the empire, it was the practice of rhetoricians to declaim on similar topics with those on which Cicero had delivered, or was supposed to have delivered, harangues. It appears from Aulus Gellius³³⁷, that in the age of Marcus Aurelius doubts were entertained with regard to the authenticity of certain orations circulated as productions of Cicero. He was known to have delivered four speeches almost immediately after his recall from banishment, on subjects closely connected with his exile. The first was addressed to the Senate³³⁸, and the second to the people, a few days subsequently to his return³³⁹; the third to the college of Pontiffs, in order to obtain restitution of a piece of ground on the Palatine hill, on which his house had formerly stood, but had been demolished, and a temple erected on the spot, with a view, as he feared, to alienate it irretrievably from the proprietor, by thus consecrating [pg 185]it to religious purposes³⁴⁰. The fourth was pronounced in consequence of Clodius declaring that certain menacing prodigies, which had lately appeared, were indubitably occasioned by the desecration of this ground, which the Pontiffs had now discharged from religious uses. Four orations, supposed to have been delivered on those occasions, and entitled, *Post Reditum in Senatu*, *Ad Quirites post Reditum*, *Pro domo sua ad Pontifices*, *De Haruspicum Responsis*, were published in all the early editions of Cicero, without any doubts of their authenticity being hinted by the commentators, and were also referred to as genuine authorities by Middleton in his *Life of Cicero*. At length, about the middle of last century, the well-known dispute having arisen between Middleton and Tunstall, concerning the letters to Brutus, Markland engaged in the controversy; and his remarks on the

correspondence of Cicero and Brutus were accompanied with a “Dissertation on the Four Orations ascribed to M. T. Cicero,” published in 1745, which threw great doubts on their authenticity. Middleton made no formal reply to this part of Markland’s observations; but he neither retracted his opinion nor changed a word in his subsequent edition of the Life of Cicero.

Soon afterwards, Ross, the editor of Cicero’s *Epistolæ Familiares*, and subsequently Bishop of Exeter, ironically showed, in his “Dissertation, in which the defence of P. Sulla, ascribed to Cicero, is clearly proved to be spurious, after the manner of Mr Markland,” that, on the principles and line of argument adopted by his opponent, the authenticity of any one of the orations might be contested. This *jeu d’esprit* of Bishop Ross was seriously confuted in a “Dissertation, in which the Objections of a late Pamphlet to the Writings of the Ancients, after the manner of Mr Markland, are clearly Answered; and those Passages in Tully corrected, on which some of the Objections are founded.—1746.” This dissertation was printed by Bowyer, and he is generally believed to have been the author of it³⁴¹. In Germany, J. M. Gesner, with all the weight attached to his opinion, and *Thesaurus*, strenuously defended these orations in two prelections, held in 1753 and 1754, and inserted in the 3d volume of the new series of the Transactions of the Royal Academy at Gottingen, under the title *Cicero Restitutus*, in which he refuted, one by one, all the objections of Markland.

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After this, although the Letters of Brutus were no longer considered as authentic, literary men in all countries—as De Brosses, the French Translator of Sallust, Ferguson, Saxius, in his *Onomasticon*, and Rhunkenius—adopted the orations as genuine. Ernesti, in his edition of Cicero, makes no mention of the existence of any doubts respecting them; and, in his edition of Fabricius³⁴², alludes to the controversy concerning them as a foolish and insignificant dispute. A change of opinion, however, was produced by an edition of the four orations which Wolfius published at Berlin in 1801, to which he prefixed an account of the controversy, and a general view of the arguments of Markland and Gesner. The observations of each, relating to particular words and phrases, are placed below the passages as they occur, and are followed by Wolf’s own remarks, refuting,

to the utmost of his power, the opinions of Gesner, and confirming those of Markland. Schütz, the late German editor of Cicero, has completely adopted the notions of Wolf; and by printing these four harangues, not in their order in the series, but separately, and at the end of the whole, along with the discarded correspondence between Cicero and Brutus, has thrown them without the classical pale as effectually as Lambinus excluded the once recognized orations, *In pace*, and *Antequam iret in Exilium*. In the fourth volume of his new edition of the works of Cicero now proceeding in Germany, Beck has followed the opinion of Wolf, after an impartial examination of the different arguments in his notes, and in an *excursus criticus* devoted to this subject.

Markland and Wolf believe, that these harangues were written as a rhetorical exercise, by some declaimer, who lived not long after Cicero, probably in the time of Tiberius, and who had before his eyes some orations of Cicero now lost, (perhaps those which he delivered on his return from exile,) from which the rhetorician occasionally borrowed ideas or phrases, not altogether unworthy of the orator's genius and eloquence. But, though they may contain some insulated Ciceronian expressions, it is utterly denied that these orations can be the continued composition of Cicero. The arguments against their authenticity are deduced, *first* from their matter; and, *secondly*, from their style. These critics dwell much on the numerous thoughts and ideas inconsistent with the known sentiments, or unsuitable to the disposition of the author,—on the relation of events, told in a different manner from that in which they have been recorded by him in his undoubted works,—and, finally, on the gross ignorance shown of the laws, [pg 187]institutions, and customs of Rome, and even of the events passing at the time. Thus it is said, in one of these four orations, that, on some political occasion, all the senators changed their garb, as also the Prætors and Ædiles, which proves, that the author was ignorant that all Ædiles and Prætors were necessarily senators, since, otherwise, the special mention of them would be superfluous and absurd. What is still stronger, the author, in the oration *Ad Quirites post reditum*, refers to the speech in behalf of Gabinius, which was not pronounced till 699, three years subsequently to Cæsar's recall; whereas the real oration, *Ad Quirites*, was delivered on the second or third day after his return. With regard to the style of these harangues, it is argued, that the expressions are affected, the sentences

perplexed, and the transitions abrupt; and that their languor and want of animation render them wholly unworthy of Cicero. Markland particularly points out the absurd repetition of what the declaimer had considered Ciceronian phrases,—as, “Aras, focos, penates—Deos immortales—Res incredibiles—Esse videatur.” Of the orations individually he remarks, and justly, that the one delivered by Cicero in the Senate immediately after his return, was known to have been prepared with the greatest possible care, and to have been committed to writing before it was pronounced; while the fictitious harangue which we now have in its place, is at all events, quite unlike anything that Cicero would have produced with elaborate study. The second is a sort of compendium of the first, and the same ideas and expressions are slavishly repeated; which implies a barrenness of invention, and sterility of language, that cannot be supposed in Cicero. Of the third oration he speaks, in his letters to Atticus, as one of his happiest efforts³⁴³; but nothing can be more wretched than that which we now have in its stead,—the first twelve chapters, indeed, being totally irrelevant to the question at issue.

The oration for Marcellus, the genuineness of which has also been called in question, is somewhat in a different style from the other harangues of Cicero; for, though entitled *Pro Marcello*, it is not so much a speech in his defence, as a panegyric on Cæsar, for having granted the pardon of Marcellus at the intercession of the Senate. Marcellus had been one of the most violent opponents of the views of Cæsar. He had recommended in the Senate, that he should be deprived of the province of Gaul: he had insulted the magistrates of one of Cæsar’s new-founded colonies; and had been present at Pharsalia on the side of Pompey. After that battle he retired to Mitylene, where he was obliged to remain, being one of the [pg 188]few adversaries to whom the conqueror refused to be reconciled. The Senate, however, one day when Cæsar was present, with an united voice, and in an attitude of supplication, having implored his clemency in favour of Marcellus, and their request having been granted, Cicero, though he had resolved to preserve eternal silence, being moved by the occasion, delivered one of the most strained encomiums that has ever been pronounced.

In the first part he extols the military exploits of Cæsar; but shows, that his clemency to Marcellus was more glorious than any of his other actions, as it

depended entirely on himself, while fortune and his army had their share in the events of the war. In the second part he endeavours to dispel the suspicions which it appears Cæsar still entertained of the hostile intentions of Marcellus, and takes occasion to assure the Dictator that his life was most dear and valuable to all, since on it depended the tranquillity of the state, and the hopes of the restoration of the commonwealth.

This oration, which Middleton declares to be superior to anything extant of the kind in all antiquity, and which a celebrated French critic terms, “Le discours le plus noble, le plus pathétique, et en meme tems le plus patriotique, que la reconnaissance, l’amitié, et la vertu, puissent inspirer à une ame élevée et sensible,” continued to be not only of undisputed authenticity, but one of Cicero’s most admired productions, till Wolf, in the preface and notes to a new edition of it, printed in 1802, attempted to show, that it was a spurious production, totally unworthy of the orator whose name it bore, and that it was written by some declaimer, soon after the Augustan age, not as an imposition upon the public, but as an exercise,—according to the practice of the rhetoricians, who were wont to choose, as a theme, some subject on which Cicero had spoken. In his letters to Atticus, Cicero says, that he had returned thanks to Cæsar *pluribus verbis*. This Middleton translates a *long speech*; but Wolf alleges it can only mean a few words, and never can be interpreted to denote a full oration, such as that which we now possess for Marcellus. That Cicero did not deliver a long or formal speech, is evident, he contends, from the testimony of Plutarch, who mentions, in his life of Cicero, that, a short time afterwards, when the orator was about to plead for Ligarius, Cæsar asked, how it happened that he had not heard Cicero speak for so long a period,—which would have been absurd if he had heard him, a few months before, pleading for Marcellus. Being an extemporary effusion, called forth by an unforeseen occasion, it could not (he continues to urge) have been prepared and written beforehand; nor is it at all probable, that, like many other orations of Cicero, it was revised and made public after being delivered. The causes which induced the Roman orators to write out their speeches at leisure, were the magnitude and public importance of the subject, or the wishes of those in whose defence they were made, and who were anxious to possess a sort of record of their vindication. But none of these motives existed in the present case. The matter was of no importance or difficulty; and we know

that Marcellus, who was a stern republican, was not at all gratified by the intervention of the senators, or conciliated by the clemency of Cæsar. As to internal evidence, deduced from the oration, Wolf admits, that there are interspersed in it some Ciceronian sentences; and how otherwise could the learned have been so egregiously deceived? but the resemblance is more in the varnish of the style than in the substance. We have the words rather than the thoughts of Cicero; and the rounding of his periods, without their energy and argumentative connection. He adduces, also, many instances of phrases unusual among the classics, and of conceits which betray the rhetorician or sophist. His extolling the act of that day on which Cæsar pardoned Marcellus as higher than all his warlike exploits, would but have raised a smile on the lips of the Dictator; and the slighting way in which the cause of the republic and Pompey are mentioned, is totally different from the manner in which Cicero expressed himself on these delicate topics, even in presence of Cæsar, in his authentic orations for Deiotarus and Ligarius.

It is evident, at first view, that many of Wolf's observations are hypercritical; and that in his argument concerning the encomiums on Cæsar, and the overrated importance of his clemency to Marcellus, he does not make sufficient allowance for Cicero's habit of exaggeration, and the momentary enthusiasm produced by one of those transactions,

—— “Quæ, dum geruntur,
Percellunt animos.” ——

Accordingly, in the year following that of Wolf's edition, Olaus Wormius published, at Copenhagen, a vindication of the authenticity of this speech. To the argument adduced from Plutarch, he answers, that some months had elapsed between the orations for Marcellus and Ligarius, which might readily be called a long period, by one accustomed to hear Cicero harangue almost daily in the Senate or Forum. Besides, the phrase of Plutarch, λεγοντος may mean pleading [pg 190]for some one, which was not the nature of the speech for Marcellus. As to the motive which led to write and publish the oration, Cicero, above all men, was delighted with his own productions, and nothing can be more probable than that he should have wished to preserve the remembrance of that memorable day, which he calls in his letters, *diem illam pulcherrimam*. It was natural to send the oration to

Marcellus, in order to hasten his return to Rome, and it must have been an acceptable thing to Cæsar, thus to record his fearlessness and benignity. With regard to the manner in which Pompey and the republican party are talked of, it is evident, from his letters, that Cicero was disgusted with the political measures of that faction, that he wholly disapproved of their plan of the campaign, and foreseeing a renewal of Sylla's proscriptions in the triumph of the aristocratic power, he did not exaggerate in so highly extolling the humanity of Cæsar.

The arguments of Wormius were expanded and illustrated by Weiske, *In Commentario perpetuo et pleno in Orat. Ciceronis pro Marcello*, published at Leipsic, in 1805³⁴⁴, while, on the other hand, Spalding, in his *De Oratione pro Marcello Disputatio*, published in 1808, supported the opinions of Wolfius.

The controversy was in this state, and was considered as involved in much doubt and obscurity, when Aug. Jacob, in an academical exercise, printed at Halle and Berlin, in 1813, and entitled *De Oratione quæ inscribitur pro Marcello, Ciceroni vel abjudicata vel adjudicata, Quæstio novaque conjectura*, adopted a middle course. Finding such dissimilarity in the different passages of the oration, some being most powerful, elegant, and beautiful, while others were totally futile and frigid, he was led to believe that part had actually flowed from the lips of Cicero, but that much had been subsequently interpolated by some rhetorician or declaimer. He divides his whole treatise into four heads, which comprehend all the various points agitated on the subject of this oration: 1. The testimony of different authors tending to prove the authenticity or spuriousness of the production: 2. The history of the period, with which every genuine oration must necessarily concur: 3. The genius and manner of Cicero, from which no [pg 191]one of his orations could be entirely remote: 4. The style and phraseology, which must be correct and classical. In the prosecution of his inquiry in these different aspects of the subject, the author successively reviews the opinions and judgments of his predecessors, sometimes agreeing with Wolf and his followers, at other times, and more frequently, with their opposers. He thinks that the much-contested phrase *pluribus verbis*, may mean a long oration, as Cicero elsewhere talks of having pleaded for Cluentius, *pluribus verbis*, though the speech in his defence

consists of 58 chapters. Besides, Cicero only says that he had *returned thanks* to Cæsar, *pluribus verbis*. Now, the whole speech does not consist of thanks to Cæsar, being partly occupied in removing the suspicions which he entertained of Marcellus. With regard to encomiums on Cæsar, which Spalding has characterized as abject and fulsome, and totally different from the delicate compliments addressed to him in the oration for Deiotarus or Ligarius, Jacob reminds his readers that the harangues could have no resemblance to each other, the latter being pleadings in behalf of the accused, and the former a professed panegyric. Nor can any one esteem the eulogies on Cæsar too extravagant for Cicero, when he remembers the terms in which the orator had formerly spoken of Roscius, Archias, and Pompey.

Schütz, the late German editor of Cicero, has subscribed to the opinion of Wolf, and has published the speech for Marcellus, along with the other four doubtful harangues at the end of the genuine orations.

But supposing that these five contested speeches are spurious, a sufficient number of genuine orations remain to enable us to distinguish the character of Cicero's eloquence. Ambitious from his youth of the honours attending a fine speaker, he early travelled to Greece, where he accumulated all the stores of knowledge and rules of art, which could be gathered from the rhetoricians, historians, and philosophers, of that intellectual land. While he thus extracted and imbibed the copiousness of Plato, the sweetness of Isocrates, and force of Demosthenes, he, at the same time, imbued his mind with a thorough knowledge of the laws, constitution, antiquities, and literature, of his native country. Nor did he less study the peculiar temper, the jealousies, and enmities of the Roman people, both as a nation and as individuals, without a knowledge of which, his eloquence would have been unavailing in the Forum or Comitia, where so much was decided by favouritism and cabal. By these means he ruled the passions and deliberations of his countrymen with almost resistless sway—[pg 192]upheld the power of the Senate—stayed the progress of tyranny—drove the audacious Catiline from Rome—directed the feelings of the state in favour of Pompey—shook the strong mind of Cæsar—and kindled a flame by which Antony had been nearly consumed. But the main secret of his success lay in the warmth and intensity of his feelings. His heart swelled

with patriotism, and was dilated with the most magnificent conceptions of the glory of Rome. Though it throbbed with the fondest anticipations of posthumous fame, the momentary acclaim of a multitude was a chord to which it daily and most readily vibrated; while, at the same time, his high conceptions of oratory counteracted the bad effect which this exuberant vanity might otherwise have produced. Thus, when two speakers were employed in the same cause, though Cicero was the junior, to him was assigned the peroration, in which he surpassed all his contemporaries; and he obtained this pre-eminence not so much on account of his superior genius or knowledge of law, as because he was more moved and affected himself, without which he would never have moved or affected his judges.

With such natural endowments, and such acquirements, he early took his place as the refuge and support of his fellow-citizens in the Forum, as the arbiter of the deliberations of the Senate, and as the most powerful defender from the Rostrum of the political interests of the commonwealth.

Cicero and Demosthenes have been frequently compared. Suidas says, that one Cicilius, a native of Sicily, whose works are now lost, was the first to institute the parallel, and they have been subsequently compared, in due form, by Plutarch and Quintilian, and, (as far as relates to sublimity,) by Longinus, among the ancients; and among the moderns, by Herder, in his *Philosophical History of Man*, and by Jenisch, in a German work devoted to the subject³⁴⁵. Rapin, and all other French critics, with the exception of Fenelon, give the preference to Cicero.

From what has already been said, it is sufficiently evident that Cicero had not to contend with any of those obstructions from nature which Demosthenes encountered; and his youth, in place of being spent like that of the Greek orator, in remedying and supplying defects, was unceasingly employed in pursuit of the improvements auxiliary to his art. But if Cicero derived superior advantages from nature, Demosthenes possessed other advantages, in the more advanced progress of his country in refinement and letters, at the era in which he appeared. Greek literature had reached its full perfection before the birth of Demosthenes, but Cicero was, in a great measure, himself the creator of the literature of Rome, and no prose writer of eminence had yet existed, after whom he could model his

phraseology. In other external circumstances, they were placed in situations not very dissimilar. But Cicero had a wider, and perhaps more beautiful field, in which to expatiate and to exercise his powers. The wide extent of the Roman empire, the striking vices and virtues of its citizens, the memorable events of its history, supplied an endless variety of great and interesting topics; whereas many of the orations of Demosthenes are on subjects unworthy of his talents. Their genius and capacity were in many respects the same. Their eloquence was of that great and comprehensive kind, which dignifies every subject, and gives it all the force and beauty it is capable of receiving. "I judge Cicero and Demosthenes," says Quintilian, "to be alike in most of the great qualities they possessed. They were alike in design, in the manner of dividing their subject, and preparing the minds of the audience; in short, in every thing belonging to invention." But while there was much similarity in their talents, there was a wide difference in their tempers and characters. Demosthenes was of an austere, harsh, melancholy disposition, obstinate and resolute in all his undertakings: Cicero was of a lively, flexible, and wavering humour. This seems the chief cause of the difference in their eloquence; but the contrasts are too obvious, and have been too often exhibited to be here displayed. No person wishes to be told, for the twentieth time, that Demosthenes assumes a higher tone, and is more serious, vehement, and impressive, than Cicero; while Cicero is more insinuating, graceful, and affecting: That the Greek orator struck on the soul by the force of his argument, and ardour of his expressions; while the Roman made his way to the heart, alternately moving and allaying the passions of his hearers, by all the arts of rhetoric, and by conforming to their opinions and prejudices.

Cicero was not only a great orator, but has also left the fullest instructions and the most complete historical details on the art which he so gloriously practised. His precepts are contained in the dialogue *De Oratore* and the *Orator*; while the history of Roman eloquence is comprehended in the dialogue entitled, *Brutus, sive De Claris Oratoribus*.

In his youth, Cicero had written and published some undigested observations on the subject of eloquence; but considering these as unworthy of the character and experience he afterwards acquired, he applied himself to write a treatise on the art which might be more commensurate to his matured talents. He himself mentions several Sicilians and Greeks, who had written on oratory³⁴⁶. But the models he chiefly followed, were Aristotle, in his books of rhetoric³⁴⁷; and Isocrates, the whole of whose theories and precepts he has comprehended in his rhetorical works. He has thrown his ideas on the subject into the form of dialogue or conference, a species of composition, which, however much employed by the Greeks, had not hitherto been attempted at Rome. This mode of writing presented many advantages: By adopting it he avoided that dogmatical air, which a treatise from him on such a subject would necessarily have worn, and was enabled to instruct without dictating rules. Dialogue, too, relieved monotony of style, by affording opportunity of varying it according to the characters of the different speakers—it tempered the austerity of precept by the cheerfulness of conversation, and developed each opinion with the vivacity and fulness naturally employed in the oral discussion of a favourite topic. Add to this, the facility which it presented of paying an acceptable compliment to the friends who were introduced as interlocutors, and its susceptibility of agreeable description of the scenes in which the persons of the dialogue were placed—a species of embellishment, for which ample scope was afforded by the numerous villas of Cicero, situated in the most beautiful spots of Italy, and in every variety of landscape, from the Alban heights to the shady banks of the Liris, or glittering shore of Baïæ. As a method of communicating knowledge, however, (except in discussions which are extremely simple, and susceptible of much delineation of character,) the mode of dialogue is, in many respects, extremely inconvenient. “By the interruptions which are given,” says the author of the life of Tasso, in his remarks on the dialogues of that poet,—“By the interruptions which are given, if a dialogue be at all dramatic—by the preparations and transitions, order and precision must, in a great degree, be sacrificed. In reasoning, as much brevity must be used as is consistent with perspicuity; but in dialogue, so much verbiage must be employed, that the scope of the argument is generally lost. The replies, too, to the objections of the opponent, seem rather arguments *ad hominem*, than possessed of the value of abstract truth; so that the reader is perplexed and bewildered, and

concludes the inquiry, beholding one of the characters puzzled, indeed, and perhaps subdued, but not [pg 195]at all satisfied that the battle might not have been better fought, and more victorious arguments adduced.”

The dialogue *De Oratore* was written in the year 698, when Cicero, disgusted with the political dissensions of the capital, had retired, during part of the summer, to the country: But, according to the supposition of the piece, the dialogue occurred in 662. The author addresses it to his brother in a dedication, strongly expressive of his fondness for study; and, after some general observations on the difficulty of the oratoric art, and the numerous accomplishments requisite to form a complete orator, he introduces his dialogue, or rather the three dialogues, of which the performance consists. Dialogue writing may be executed either as direct conversation, in which none but the speakers appear, and where, as in the scenes of a play, no information is afforded except from what the persons of the drama say to each other; or as the recital of the conversation, where the author himself appears, and after a preliminary detail concerning the persons of the dialogue, and the circumstances of time and place in which it was held, proceeds to give an account of what passed in the discourse at which he had himself been present, or the import of which was communicated to him by some one who had attended and borne his part in the conference. It is this latter method that has been followed by Cicero, in his dialogues *De Oratore*. He mentions in his own person, that during the celebration of certain festivals at Rome, the orator Crassus retired to his villa at Tusculum, one of the most delightful retreats in Italy, whither he was accompanied by Antony, his most intimate friend in private life, but most formidable rival in the Forum; and by his father-in-law, Scævola, who was the greatest jurisconsult of his age, and whose house in the city was resorted to as an oracle, by men of the highest rank and dignity. Crassus was also attended by Cotta and Sulpicius, at that time the two most promising orators of Rome, the former of whom afterwards related to Cicero (for the author is not supposed to be personally present) the conversation which passed among these distinguished men, as they reclined on the benches under a planetree, that grew on one of the walks surrounding the villa. It is not improbable, that some such conversation may have been actually held, and that Cicero, notwithstanding his age, and the authority derived from his rhetorical reputation, may have chosen to avail himself of the circumstance, in order

to shelter his opinions under those of two ancient masters, who, previously to his own time, were regarded as the chief organs of Roman eloquence.

Crassus, in order to dissipate the gloom which had been occasioned by a serious and even melancholy conversation, on the situation of public affairs, turned the discourse on oratory. The sentiments which he expresses on this subject are supposed to be those which Cicero himself entertained. In order to excite the two young men, Cotta and Sulpicius, to prosecute with ardour the career they had so successfully commenced, he first enlarges on the utility and excellence of oratory; and then, proceeding to the object which he had principally in view, he contends that an almost universal knowledge is essentially requisite to perfection in this noble art. He afterwards enumerates those branches of knowledge which the orator should acquire, and the purposes to which he should apply them: he inculcates the necessity of an acquaintance with the antiquities, manners, and constitution of the republic—the constant exercise of written composition—the study of gesture at the theatre—the translation of the Greek orators—reading and commenting on the philosophers, reading and criticizing the poets. The question hence arises, whether a knowledge of the civil law be serviceable to the orator? Crassus attempts to prove its utility from various examples of cases, where its principles required to be elucidated; as also from the intrinsic nobleness of the study itself, and the superior excellence of the Roman law to all other systems of jurisprudence. Antony, who was a mere practical pleader, considered philosophy and civil law as useless to the orator, being foreign to the real business of life. He conceived that eloquence might subsist without them, and that with regard to the other accomplishments enumerated by Crassus, they were totally distinct from the proper office and duty of a public speaker. It is accordingly agreed, that on the following day Antony should state his notions of the acquirements appropriate to an orator. Previous to the commencement of the second conversation, the party is joined by Catulus and Julius Cæsar, (grand-uncle to the Dictator,) two of the most eminent orators of the time, the former being distinguished by his elegance and purity of diction, the latter by his turn for pleasantry. Having met Scævola, on his way from Tusculum to the villa of Lælius, and having heard from him of the interesting conversation which had been held, the remainder of which had been deferred till the morrow, they came over from a neighbouring villa to

partake of the instruction and entertainment. In their presence, and in that of Crassus, Antony maintains his favourite system, that eloquence is not an art, because it depends not on knowledge. Imitation of good models, practice, and minute attention to each particular case, which should be scrupulously examined in all its bearings, are laid down by him as the foundations of forensic eloquence. The great objects of an orator being, in the first place, to recommend himself to his clients, and then to prepossess the audience and judges in their favour, Antony enlarges on the practice of the bar, in conciliating, informing, moving, and undeceiving those on whom the decision of causes depends; all which is copiously illustrated by examples drawn from particular questions, which had occurred at Rome in cases of proof, strict law, or equity. The chief weight and importance is attributed to moving the springs of the passions. Among the methods of conciliation and prepossession, humour and drollery are particularly mentioned. Cæsar being the oratorical wit of the party, is requested to give some examples of forensic jests. Those he affords are for the most part wretched quibbles, or personal reflections on the opposite parties, and their witnesses. The length of the dissertation, however, on this topic, shows the important share it was considered as occupying among the qualifications of the ancient orator.

Antony having thus explained the mechanical part of the orator's duty, it is agreed, that in the afternoon Crassus should enter on the embellishments of rhetoric. In the execution of the task assigned him, he treats of all that relates to what may be called the ornamental part of oratory—pronunciation, elocution, harmony of periods, metaphors, sentiments, action, (which he terms the predominant power in eloquence,) expression of countenance, modulation of voice, and all those properties which impart a finished grace and dignity to a public discourse.

Cicero himself highly approved of this treatise on Oratory, and his friends regarded it as one of his best productions. The style of the dialogue is copious, without being redundant, as is sometimes the case in the orations. It is admirable for the diversity of character in the speakers, the general conduct of the piece, and the variety of matter it contains. It comprehends, I believe, everything valuable in the Greek works on rhetoric, and also many excellent observations, suggested by the author's long experience, acquired

in the numerous causes, both public and private, which he conducted in the Forum, and the important discussions in which he swayed the counsels of the Senate. As a composition, however, I cannot consider the dialogue *De Oratore* altogether faultless. It is too little dramatic for a dialogue, and occasionally it expands into continued dissertation; while, at the same time, by adopting the form of dialogue, a rambling and desultory effect is produced in the discussion of a subject, where, of all others, method and close connection were most desirable. There is also [pg 198] frequently an assumed liveliness of manner, which seems forced and affected in these grave and consular orators.

The dialogue entitled *Brutus, sive De Claris Oratoribus*, was written, and is also feigned to have taken place, after Cæsar had attained to sovereign power, though he was still engaged in the war against Scipio in Africa. The conference is supposed to be held among Cicero, Atticus, and Brutus, (from whom it has received its name,) near a statue of Plato, which stood in the pleasure-grounds of Cicero's mansion, at Rome.

Brutus having experienced the clemency of the conqueror, whom he afterwards sacrificed, left Italy, in order to amuse himself with an agreeable tour through the cities of Greece and Asia. In a few months he returned to Rome, resigned himself to the calm studies of history and rhetoric, and passed many of his leisure hours in the society of Cicero and Atticus. The first part of the dialogue, among these three friends, contains a few slight, but masterly sketches, of the most celebrated speakers who had flourished in Greece; but these are not so much mentioned with an historical design, as to support by examples the author's favourite proposition, that perfection in oratory requires proficiency in all the arts. The dialogue is chiefly occupied with details concerning Roman orators, from the earliest ages to Cicero's own time. He first mentions such speakers as Appius Claudius and Fabricius, of whom he knew nothing certain, whose harangues had never been committed to writing, or were no longer extant, and concerning whose powers of eloquence he could only derive conjectures, from the effects which they produced on the people and Senate, as recorded in the ancient annals. The second class of orators are those, like Cato the Censor, and the Gracchi, whose speeches still survived, or of whom he could speak traditionally, from the report of persons still living who had heard them. A

great deal of what is said concerning this set of orators, rests on the authority of Hortensius, from whom Cicero derived his information³⁴⁸. The third class are the deceased contemporaries of the author, whom he had himself seen and heard; and he only departs from his rule of mentioning no living orator at the special request of Brutus, who expresses an anxiety to learn his opinion of the merits of Marcellus and Julius Cæsar. Towards the conclusion, he gives some account of his own rise and progress, of the education he had received, and the various methods which he had practised in order to reach those heights of eloquence he had attained.

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This work is certainly of the greatest service to the history of Roman eloquence; and it likewise throws considerable light on the civil transactions of the republic, as the author generally touches on the principal incidents in the lives of those eminent orators whom he mentions. It also gives additional weight and authority to the oratorical precepts contained in his other works, since it shows, that they were founded, not on any speculative theories, but on a minute observation of the actual faults and excellencies of the most renowned speakers of his age. Yet, with all these advantages, it is not so entertaining as might be expected. The author mentions too many orators, and says too little of each, which gives his treatise the appearance rather of a dry catalogue, than of a literary essay, or agreeable dialogue. He acknowledges, indeed, in the course of it, that he had inserted in his list of orators many who possessed little claim to that appellation, since he designed to give an account of all the Romans, without exception, who had made it their study to excel in the arts of eloquence.

The *Orator*, addressed to Brutus, and written at his solicitation, was intended to complete the subjects examined in the dialogues, *De Oratore*, and *De Claris Oratoribus*. It contains the description of what Cicero conceived necessary to form a perfect orator,—a character which, indeed, nowhere existed, but of which he had formed the idea in his own imagination. He admits, that Attic eloquence approached the nearest to perfection; he pauses, however, to correct a prevailing error, that the only genuine Atticism is a correct, plain, and slender discourse, distinguished by purity of style, and delicacy of taste, but void of all ornaments and redundancy. In the time of Cicero, there was a class of orators, including

several men of parts and learning, and of the first quality, who, while they acknowledged the superiority of his genius, yet censured his diction as not truly Attic, some calling it loose and languid, others tumid and exuberant. These speakers affected a minute and fastidious correctness, pointed sentences, short and concise periods, without a syllable to spare in them—as if the perfection of oratory consisted in frugality of words, and the crowding of sentiments into the narrowest possible compass. The chief patrons of this taste were Brutus and Licinius Calvus. Cicero, while he admitted that correctness was essential to eloquence, contended, that a nervous, copious, animated, and even ornate style, may be truly Attic; since, otherwise, Lysias would be the only Attic orator, to the exclusion of Isocrates, and even Demosthenes himself. He accordingly opposed the system of these ultra-[pg 200]Attic orators, whom he represents as often deserted in the midst of their harangues; for although their style of rhetoric might please the ear of a critic, it was not of that sublime, pathetic, or sonorous species, of which the end was not only to instruct, but to move an audience,—whose excitement and admiration form the true criterions of eloquence.

The remainder of the treatise is occupied with the three things to be attended to by an orator,—what he is to say, in what order his topics are to be arranged, and how they are to be expressed. In discussing the last point, the author enters very fully into the collocation of words, and that measured cadence, which, to a certain extent, prevails even in prose;—a subject on which Brutus wished particularly to be instructed, and which he accordingly treats in detail.

This tract is rather confusedly arranged; and the dissertation on prosaic harmony, though curious, appears to us somewhat too minute in its object for the attention of an orator. Cicero, however, set a high value on this production; and, in a letter to Lepta, he declares, that whatever judgment he possessed on the subject of oratory, he had thrown it all into that work, and was ready to stake his reputation on its merits³⁴⁹.

The *Topica* may also be considered as another work on the subject of rhetoric. Aristotle, as is well known, wrote a book with this title. The lawyer, Caius Trebatius, a friend of Cicero, being curious to know the

contents and import of the Greek work, which he had accidentally seen in Cicero's Tusculan library, but being deterred from its study by the obscurity of the writer, (though it certainly is not one of the most difficult of Aristotle's productions,) requested Cicero to draw up this extract, or commentary, in order to explain the various *topics*, or common-places, which are the foundation of rhetorical argument. Of this request Cicero was some time afterwards reminded by the view of Velia, (the marine villa of Trebatius,) during a coasting voyage which he undertook, with the intention of retiring to Greece, in consequence of the troubles which followed the death of Cæsar. Though he had neither Aristotle nor any other book at hand to assist him, he drew it up from memory as he sailed along, and finished it before he arrived at Rhegium, whence he sent it to Trebatius³⁵⁰.

This treatise shows, that Cicero had most diligently studied Aristotle's *Topics*. It is not, however, a translation, but an extract or explanation of that work; and, as it was addressed to a lawyer, he has taken his examples chiefly from the civil law of the Romans, which he conceived Trebatius would understand better than illustrations drawn, like those of Aristotle, from the philosophy of the Greeks.

It is impossible sufficiently to admire Cicero's industry and love of letters, which neither the inconveniences of a sea voyage, which he always disliked, nor the harassing thoughts of leaving Italy at such a conjuncture, could divert from the calm and regular pursuit of his favourite studies.

The work *De Partitione Rhetorica*, is written in the form of a dialogue between Cicero and his son; the former replying to the questions of the latter concerning the principles and doctrine of eloquence. The tract now entitled *De Optimo genere Oratorum*, was originally intended as a preface to a translation which Cicero had made from the orations of Æschines and Demosthenes in the case of Ctesipho, in which an absurd and trifling matter of ceremony has become the basis of an immortal controversy. In this preface he reverts to the topic on which he had touched in the *Orator*—the mistake which prevailed in Rome, that Attic eloquence was limited to that accurate, dry, and subtle manner of expression, adopted in the orations of Lysias. It was to correct this error, that Cicero undertook a free translation of the two master-pieces of Athenian eloquence; the one being an example

of vehement and energetic, the other of pathetic and ornamental oratory. It is probable that Cicero was prompted to these repeated inquiries concerning the genuine character of Attic eloquence, from the reproach frequently cast on his own discourses by Brutus, Calvus, and other sterile, but, as they supposed themselves, truly Attic orators, that his harangues were not in the Greek, but rather in the Asiatic taste,—that is, nerveless, florid, and redundant.

It appears, that in Rome, as well as in Greece, oratory was generally considered as divided into three different styles—the Attic, Asiatic, and Rhodian. Quintilian, at least, so classes the various sorts of oratory in a passage, in which he also shortly characterizes them by those attributes from which they were chiefly distinguishable. “Mihi autem,” says he, “orationis differentiam fecisse et dicentium et audientium naturæ videntur, quod *Attici* limati quidem et emuncti nihil inane aut redundans ferebant. *Asiana* gens, tumidior alioquin et jactantior, vaniore etiam dicendi gloria inflata est. Tertium mox qui hæc dividebant adjecerunt genus *Rhodium*, quod velut medium esse, atque ex utroque mixtum volunt³⁵¹.” Brutus and Licinius Calvus, as we have seen, affected the slender, polished, and somewhat barren conciseness of Attic eloquence. [pg 202]The speeches of Hortensius, and a few of Cicero’s earlier harangues, as that for Sextus Roscius, afforded examples of the copious, florid, and sometimes tumid style of Asiatic oratory. The latter orations of Cicero, refined by his study and experience, were, I presume, nearly in the Rhodian taste. That celebrated school of eloquence had been founded by Æschines, the rival of Demosthenes, when, being banished from his native city by the influence of his competitor, he had retired to the island of Rhodes. Inferior to Demosthenes in power of argument and force of expression, he surpassed him in copiousness and ornament. The school which he founded, and which subsisted for centuries after his death, admitted not the luxuries of Asiatic diction; and although the most ornamental of Greece, continued ever true to the principles of its great Athenian master. A chief part of the two years during which Cicero travelled in Greece and Asia was spent at Rhodes, and his principal teacher of eloquence at Rome was Molo the Rhodian, from whom he likewise afterwards received lessons at Rhodes. The great difficulty which that rhetorician encountered in the instruction of his promising disciple, was, as Cicero himself informs us, the effort of

containing within its due and proper channel the overflowings of a youthful imagination³⁵². Cicero's natural fecundity, and the bent of his own inclination, preserved him from the risk of dwindling into ultra-Attic slenderness; but it is not improbable, that from the example of Hortensius and his own copiousness, he might have swelled out to Asiatic pomp, had not his exuberance been early reduced by the seasonable and salutary discipline of the Rhodian.

Cicero, in his youth, also wrote the *Rhetorica, seu de Inventione Rhetorica*, of which there are still extant two books, treating of the part of rhetoric that relates to invention. This is the work mentioned by Cicero, in the commencement of the treatise *De Oratore*, as having been published by him in his youth. It is generally believed to have been written in 666, when Cicero was only twenty years of age, and to have originally contained four books. Schütz, however, the German editor of Cicero, is of opinion, that he never wrote, or at least, never published, more than the two books we still possess.

A number of sentences in these two books of the *Rhetorica, seu de Inventione*, coincide with passages in the *Rhetoricum ad Herennium*, which is usually published along with the works of Cicero, but is not of his composition. Purgold thinks [pg 203] that the *Rhetor. ad Herennium* was published first, and that Cicero copied from it those corresponding passages³⁵³. It appears, however, a little singular, that Cicero should have borrowed so largely, and without acknowledgment, from a recent publication of one of his contemporaries. To account for this difficulty some critics have supposed, that the anonymous author of the *Rhetor. ad Herennium* was a rhetorician, whose lectures Cicero had attended, and had inserted in his own work notes taken by him from these prelections, before they were edited by their author³⁵⁴. Some, again, have imagined, that Cicero and the anonymous author were fellow-students under the same rhetorician, and that both had thus adopted his ideas and expressions; while others believe, that both copied from a common Greek original. But then, in opposition to this last theory, it has been remarked, that the Latin words employed by both are frequently the same; and there are the same references to the history of Rome, and of its ancient native poets, with which no Greek writer can be supposed to have had much acquaintance.

Who the anonymous author of the *Rhetor. ad Herennium* actually was, has been the subject of much learned controversy, and the point remains still undetermined. Priscian repeatedly cites it as the work of Cicero; whence it was believed to be the production of Cicero by Laurentius Valla, George of Trebizond, Politian, and other great restorers of learning in the fifteenth century; and this opinion was from time to time, though feebly, revived by less considerable writers in succeeding periods. It seems now, however, entirely abandoned; but, while all critics and commentators agree in *abjudicating* the work from Cicero, they differ widely as to the person to whom the production should be assigned. Aldus Manutius, Sigonius, Muretus, and Riccobonus, were of opinion, that it was written by Q. Cornificius the elder, who was Cæsar's Quæstor during the civil war, and subsequently his lieutenant in Africa, of which province, after the Dictator's death, he kept possession for the republican party, till he was slain in an engagement with one of the generals of Octavius. The judgment of these scholars is chiefly founded on some passages in Quintilian, who attributes to Cornificius several critical and philological definitions which coincide with those introduced in the *Rhetorica ad Herennium*. Gerard Vossius, however, has adopted an opinion, that if at all written by a [pg 204]person of that name, it must have been by the younger Cornificius³⁵⁵, who was born in 662, and, having followed the party of Octavius, was appointed Consul by favour of the Triumvirate in 718. Raphael Regius also seems inclined to attribute the work to Cornificius the son³⁵⁶. But if the style be considered too remote from that of the age of Cicero, to be ascribed to any of his contemporaries, he conceives it may be plausibly conjectured to have been the production of Timolaus, one of the thirty tyrants in the reign of Gallienus. Timolaus had a brother called Herenianus, to whom his work may have been dedicated, and he thinks that *Timolaus ad Herenianum* may have been corrupted into *Tullius ad Herennium*. J. C. Scaliger attributes the work to Gallio, a rhetorician in the time of Nero³⁵⁷—an opinion which obtained currency in consequence of the discovery of a MS. copy of the *Rhetorica ad Herennium*, with the name of Gallio prefixed to it³⁵⁸.

Sufficient scope being thus left for new conjectures, Schütz, the German editor of Cicero, has formed a new hypothesis on the subject. Cicero's tract *De Inventione* having been written in his early youth, the period of its composition may be placed about 672. From various circumstances, which

he discusses at great length, Schütz concludes that the *Rhetorica ad Herennium* was the work which was first written, and consequently previous to 672. Farther, the *Rhetorica ad Herennium* must have been written subsequently to 665, as it mentions the death of Sulpicius, which happened in that year. The time thus limited corresponds very exactly with the age of M. Ant. Gniphio, who was born in the year 640; and him Schütz considers as the real author of the *Rhetorica ad Herennium*. This he attempts to prove, by showing, that many things which Suetonius relates of Gniphio, in his work *De Claris Rhetoribus*, agree with what the author of the *Rhetorica ad Herennium* delivers concerning himself in the course of that production. It is pretty well established, that both Gniphio and the anonymous author of the *Rhetorica ad Herennium* were free-born, had good memories, understood Greek, and were voluminous authors. It is unfortunate, however, that these characteristics, except the first, were probably common to almost all rhetoricians; and Schütz does not allude to any of the more particular circumstances mentioned by Suetonius, as that Gniphio was a Gaul by birth, that he studied at Alexandria, [pg 205]and that he taught rhetoric in the house of the father of Julius Cæsar.

Cicero, who was unquestionably the first orator, was as decidedly the most learned philosopher of Rome; and while he eclipsed all his contemporaries in eloquence, he acquired, towards the close of his life, no small share of reputation as a writer on ethics and metaphysics. His wisdom, however, was founded entirely on that of the Greeks, and his philosophic writings were chiefly occupied with the discussion of questions which had been agitated in the Athenian schools, and from them had been transmitted to Italy. The disquisition respecting the certainty or uncertainty of human knowledge, with that concerning the supreme good and evil, were the inquiries which he chiefly pursued; and the notions which he entertained of these subjects, were all derived from the Portico, Academy, or Lyceum.

The leading principles of the chief philosophic sects of Greece flowed originally from Socrates—

—— “From whose mouth issued forth
Mellifluous streams, that watered all the schools
Of Academics, Old and New³⁵⁹,”

and who has been termed by Cicero³⁶⁰ the perennial source of philosophy, much more justly than Homer has been styled the fountain of all poetry. Though somewhat addicted to them from education and early habit, Socrates withdrew philosophy from those obscure and intricate physical inquiries, in which she had been involved by the founders and followers of the Ionic school, and from the subtle paradoxical hypotheses of the sophists who established themselves at Athens in the time of Pericles. It being his chief aim to improve the condition of mankind, and to incline them to discharge the several duties of the stations in which they had been placed, this moral teacher directed his examinations to the nature of vice and virtue, of good and evil. To accomplish the great object he had in view, his practice

was to hazard no opinion of his own, but to refute prevalent errors and prejudices, by involving the pretenders to knowledge in manifest absurdity, while he himself, as if in contrast to the presumption of the sophists, always professed that he knew nothing. This confession of ignorance, which amounted to no more than a general acknowledgment [pg 206] of the imbecility of the human understanding, and was merely designed to convince his followers of the futility of those speculations which do not rest on the firm basis of experience, or to teach them modesty in their inquiries, and diffidence in their assertions, having been interpreted in a different sense from that in which it was originally intended, gave rise to the celebrated dispute concerning the certainty of knowledge.

The various founders of the philosophic sects of Greece, imbibed that portion of the doctrines of Socrates which suited their own tastes and views, and sometimes perverted his high authority even to dogmatical or sophistical purposes. It is from Plato we have derived the fullest account of his system; but this illustrious disciple had also greatly extended his knowledge by his voyages to Egypt, Sicily, and Magna Græcia. Hence in the Academy which he founded, (while, as to morals, he continued to follow Socrates,) he superadded the metaphysical doctrines of Pythagoras; in physics, which Socrates had excluded from philosophy, he adopted the system of Heraclitus; and he borrowed his dialectics from Euclid of Megara. The recondite and *eisoteric* tenets of Pythagoras—the obscure principles of Heraclitus—the superhuman knowledge of Empedocles, and the sacred *Arcana* of Egyptian priests, have diffused over the page of Plato a majesty and mysticism very different from what we suppose to have been the familiar tone of instruction employed by his great master, of whose style at least, and manner, Xenophon probably presents us with a more faithful image.

In Greece, the heads of sects were succeeded in their schools or academies as in a domain or inheritance. Speusippus, the nephew of Plato, continued to deliver lectures in the Academy, as did also four other successive masters, Xenocrates, Polemo, Crates, and Crantor, all of whom retained the name of Academics, and taught the doctrines of their master without mixture or corruption. But on the appointment of Xenocrates to the chair of the Academy, Aristotle, the most eminent of Plato's scholars, had betaken

himself to another Gymnasium, called the Lyceum, which became the resort of the Peripatetics. The commanding genius of their founder enlarged the sphere of knowledge and intellect, devised the rules of logic, and traced out the principles of rhetorical and poetical criticism: But the sect which he exalted to unrivalled celebrity, though differing in name from the contemporary Academics, coincided with them generally in all the principal points of physical and moral philosophy, and particularly in those concerning which the Romans chiefly inquired. “Though they [pg 207]differed in terms,” says Cicero, “they agreed in things³⁶¹, and those persons are grossly mistaken who imagine that the old Academics, as they are called, are any other than the Peripatetics.” Accordingly, we find that both believed in the superintending care of Providence, the immortality of the soul, and a future state of reward and punishment. The supreme good they placed in virtue, with a sufficiency of the chief external advantages of nature, as health, riches, and reputation. Such enjoyments they taught, when united with virtue, make the felicity of man perfect; but if virtuous, he is capable of being happy, (though not entirely so,) without them.

Plato, in his mode of communicating instruction, and promulgating his opinions, had not strictly adhered to the method of his master Socrates. He held the concurrence of memory, with a recent impression, to be a criterion of truth, and he taught that opinions might be formed from the comparison of a present with a recollected perception. But his successors, both in the Academy and Lyceum, departed from the Socratic method still more widely. They renounced the maxim, of affirming nothing; and instead of explaining everything with a doubting reserve, they converted philosophy, as it were, into an art, and formed a system of opinions, which they delivered to their disciples as the peculiar tenets of their sect. They inculcated the belief, that our knowledge has its origin in the senses—that the senses themselves do not judge of truth, but the mind through them beholds things as they really are—that is, it perceives the ideas which always subsist in the same state, without change; so that the senses, through the medium of the mind, may be relied on for the ascertainment of truth. Such was the state of opinions and instruction in the Academy when Arcesilaus, who was the sixth master of that school from Plato, and in his youth had heard the lessons of Pyrrho the sceptic, resolved to reform the dogmatic system into which his predecessors had fallen, and to restore, as

he conceived, in all its purity, the Socratic system of affirming nothing with certainty. This founder of the New, or Middle Academy as it is sometimes called, denied even the certain truth of the proposition that we know nothing, which Socrates had reserved as an exception to his general principle. While admitting that there is an actual certainty in the nature of things, he rejected the evidence both of the senses and reason as positive testimony; and as he denied that there existed any infallible criterion of truth or falsehood, he maintained that no wise man ought to [pg 208]give any proposition whatever the sanction of his assent. He differed from the Sceptics or Pyrrhonists only in this, that he admitted degrees of probability, whereas the Sceptics fluctuated in total uncertainty.

As Arcesilaus renounced all pretensions to the certain determination of any question, he was chiefly employed in examining and refuting the sentiments of others. His principal opponent was his contemporary, Zeno, the founder of the stoical philosophy, which ultimately became the chief of those systems which flourished at Rome. The main point in dispute between Zeno and Arcesilaus, was the evidence of the senses. Arcesilaus denied that truth could be ascertained by their assistance, because there is no criterion by which to distinguish false and delusive objects from such as are real. Zeno, on the other hand, maintained that the evidence of the senses is certain and clear, provided they be perfect in themselves, and without obstacle to prevent their effect. Thus, though on different principles, the founder of the Stoics agreed with the Peripatetics and old Academicians, that there existed certain means of ascertaining truth, and consequently that there was evident and certain knowledge. Arcesilaus, though he did not deny that truth existed, would neither give assent nor entertain opinions, because appearances could never warrant his pronouncing on any object or proposition whatever. Nor did the Stoics entertain opinions; but they refrained from this, because they thought that everything might be perceived with certainty.

Arcesilaus, while differing widely from the teachers of the old Platonic Academy in his ideas as to the certainty of knowledge, retained their system concerning the supreme good, which, like them, he placed in virtue, accompanied by external advantages. This was another subject of contest with Zeno, who, as is well known, placed the supreme good in virtue alone,

—health, riches, and reputation, not being by him accounted essential, nor disease, poverty, and ignominy, injurious to happiness.

The systems promulgated in the old and new Academy, and the stoical Portico, were those which became most prevalent in Rome. But the Epicurean opinions were also fashionable there. The philosophy of Epicurus has been already mentioned while speaking of Lucretius. Moschus of Phœnicia, who lived before the Trojan war, is said to have been the inventor of the Atomic system, which was afterwards adopted and improved by Leucippus and Democritus, whose works, as Cicero expresses it, were the source from which flowed the [pg 209]streams that watered the gardens of Epicurus³⁶². To the evidence of the senses this teacher attributed such weight, that he considered them as an infallible rule of truth. The supreme good he placed in pleasure, and the chief evil in pain. His scholars maintained, that by pleasure, or rather happiness, he meant a life of wisdom and temperance; but a want of clearness and explicitness in the definition of what constituted pleasure, has given room to his opponents for alleging that he placed consummate felicity in sensual gratification.

It was long before a knowledge of any portion of Greek philosophy was introduced at Rome. For 600 years after the building of the city, those circumstances did not arise in that capital which called forth and promoted philosophy in Greece. The ancient Romans were warriors and agriculturists. Their education was regulated with a view to an active life, and rearing citizens and heroes, not philosophers. The *Campus Martius* was their school; the tent their Lyceum, and the traditions of their ancestors, and religious rites, their science,—they were taught to act, to believe, and to obey, not to reason or discuss. Among them a class of men may indeed have existed not unlike the seven sages of Greece—men distinguished by wisdom, grave saws, and the services they had rendered to their country; but these were not philosophers in our sense of the term. The wisdom they inculcated was not sectarian, but resembled that species of philosophy cultivated by Solon and Lycurgus, which has been termed political by Brucker, and which was chiefly adapted to the improvement of states, and civilization of infant society. At length, however, in the year 586, when Perseus, King of Macedon, was finally vanquished, his conqueror brought with him to Rome the philosopher Metrodorus, to aid in the instruction of

his children³⁶³. Several philosophers, who had been retained in the court of that unfortunate monarch, auguring well from this incident, followed Metrodorus to Italy; and about the same time a number of Achæans, of distinguished merit, who were suspected to have favoured the Macedonians, were summoned to Rome, in order to account for their conduct. The younger Scipio Africanus, in the course of the embassy to which he was appointed by the Senate, to the kings of the east, who were in alliance with the republic, having landed at Rhodes, took under his protection the Stoic philosopher Panætius³⁶⁴, who was a native of that island, and carried him back to Rome, where [pg 210]he resided in the house of his patron. Panætius afterwards went to Athens, where he became one of the most distinguished teachers of the Portico³⁶⁵, and composed a number of philosophical treatises, of which the chief was that on the Duties of Man.

But though the philosophers were encouraged and cherished by Scipio, Lælius, Scævola, and others of the more mild and enlightened Romans, they were viewed with an eye of suspicion by the grave Senators and stern Censors of the republic. Accordingly, in the year 592, only six years after their first arrival in Rome, the philosophers were banished from the city by a formal decree of the Senate³⁶⁶. The motives for issuing this rigorous edict are not very clearly ascertained. A notion may have been entertained by the severer members of the commonwealth, that the established religion and constitution of Rome might suffer by the discussion of speculative theories, and that the taste for science might withdraw the minds of youth from agriculture and arms. This dread, so natural to a rigid, laborious, and warlike people, would be increased by the degraded and slavish character of the Greeks, which, having been an accompaniment, might be readily mistaken for a consequence, of their progress in philosophy. As most of the philosophers, too, had come from the states of a hostile monarch, the Senate may have feared, lest they should inspire sentiments in the minds of youth, not altogether patriotic or purely republican.

“Sed vetuere patres quod non potuere vetare.”

Though driven from Rome, many of the Greek philosophers took up their residence in the municipal towns of Italy. By the intercession likewise of Scipio Africanus, an exception was made in favour of Panætius and the

historian Polybius, who were permitted to remain in the capital. The spirit of inquiry, too, had been raised, and the mind had received an impulse which could not be arrested by any senatorial decree, and on which the slightest incident necessarily bestowed an accelerated progress.

The Greek philosophers returned to Rome in the year 598, under the sacred character of ambassadors, on occasion of a political complaint which had been made against the Athenians, and from which they found it necessary to defend them[pg 211]selves. Notwithstanding the disrespect with which philosophers had recently been treated in Italy, the Athenians resolved to dazzle the Romans by a grand scientific embassy. The three envoys chosen were at that time the heads of the three leading sects of Greek philosophers,—Diogenes, the Stoic, Critolaus, the Peripatetic, and Carneades of Cyrene, who now held the place of Arcesilaus in the new Academy. Besides their philosophical learning, they were well qualified by their eloquence, (a talent which had always great influence with the Romans,) to persuade and bring over the minds of men to their principles. Such, indeed, were their extraordinary powers of speaking and reasoning, that it was commonly said at Rome that the Athenians had sent orators, not to persuade, but to compel³⁶⁷. During the period of their embassy at Rome they lectured to crowded audiences in the most public parts of the city. The immediate effect of the display which these philosophic ambassadors made of their eloquence and wisdom, was to excite in the Roman youth an ardent thirst after knowledge, which now became a rival in their breasts to the love of military glory³⁶⁸. Scipio, Lælius, and Furius, showed the strongest inclination for these new studies, and profited most by them; but there was scarcely a young patrician who was not in some degree attracted by the modest simplicity of Diogenes, the elegant, ornamental, and polished discourse of Critolaus, or the vehement, rapid, and argumentative eloquence of Carneades³⁶⁹. The principles inculcated by Diogenes, who professed to teach the art of reasoning, and of separating truth from falsehood, received their strongest support from the jurisconsults, most of whom became Stoics; and in consequence of their responses, we find at this day that the stoical philosophy exercised much influence on Roman jurisprudence, and that many principles and divisions of the civil law have been founded on its favourite maxims. Of these philosophic ambassadors, however, Carneades was the most able man, and the most popular teacher. “He was blessed,”

says Cicero, “with a divine quickness of understanding and command of expression³⁷⁰.” “In his disputations, he never defended what he did not prove, and never attacked what he did not overthrow³⁷¹.” By some he has been considered and termed the founder of a third Academy, but there appears to be no solid ground for such a distinction. In his lectures, which chiefly turned on ethics, he agreed with both [pg 212]Academies as to the supreme good, placing it in virtue and the primary gifts of nature. Like Arcesilaus, he was a zealous advocate for the uncertainty of human knowledge, but he did not deny, with him, that there were truths, but only maintained that we could not clearly discern them³⁷². The sole other difference in their tenets, is one not very palpable, mentioned by Lucullus in the *Academica*. Arcesilaus, it seems, would neither assent to anything nor opine. Carneades, though he would not assent, declared that he would opine; under the constant reservation, however, that he was merely opinionating, and that there was no such thing as positive comprehension or perception³⁷³. In this, Lucullus, who was a follower of the *old* Academy, thinks Carneades the most absurd and inconsistent of the two. Carneades succeeded to the old dispute between the Academics and Stoics, and in his prelections he combated the arguments employed by Chrysippus³⁷⁴, in his age the chief pillar of the Portico, as Arcesilaus had formerly maintained the controversy with Zeno, its founder. He differed from the Pyrrhonists, by admitting the real existence of good and evil, and by allowing different degrees of probability³⁷⁵, while his sceptical opponents contended that there was no ground for embracing or rejecting one opinion more than another. Carneades was no less distinguished by his artful and versatile talents for disputation, than his vehement and commanding oratory. But his extraordinary powers of persuasion, and of maintaining any side of an argument, for which the academical philosophy peculiarly qualified him, were at length abused by him, to the scandal of the serious and inflexible Romans. Thus, we are told, that he one day delivered a discourse before Cato, with great variety of thought and copiousness of diction, on the advantages of a rigid observance of the rules of justice. Next day, in order to fortify his doctrine of the uncertainty of human knowledge, he undertook to refute all his former arguments³⁷⁶. It is likely that his attack on justice was a piece of pleasantry, like Erasmus’ *Encomium of Folly*; and many of his audience were captivated by his ingenuity; but the Censor immediately insisted, that the affairs which had brought these subtle ambassadors to

Rome, should be forthwith despatched by the Senate, in order that they might be dismissed with all possible expedition³⁷⁷. Whether [pg 213]Cato entertained serious apprehensions, as is alleged by Plutarch, that the military virtues of his country might be enfeebled, and its constitution undermined, by the study of philosophy, may, I think, be questioned. It is more probable that he dreaded the influence of the philosophers themselves on the opinions of his fellow-citizens, and feared lest their eloquence should altogether unsettle the principles of his countrymen, or mould them to whatever form they chose. Lactantius, too, in a quotation from Cicero's treatise *De Republica*, affords what may be considered as an explanation of the reason why Carneades' lecture against justice was so little palatable to the Censor, and probably to many others of the Romans. One of the objections which he urged against justice, or rather against the existence of a due sense of that quality, was, that if such a thing as justice were to be found on earth, the Romans would resign their conquests, and return to their huts and original poverty³⁷⁸. Cato likewise appears to have had a considerable spirit of personal jealousy and rivalry; while, at the same time, his national pride led him to scorn all the arts of a country which the Roman arms had subdued.

Carneades promulgated his opinions only in his eloquent lectures; and it is not known that he left any writings of importance behind him³⁷⁹. But his oral instructions had made a permanent impression on the Roman youth, and the want of a written record of his principles was amply supplied by his successor Clitomachus, who was by birth a Carthaginian, and was originally called Asdrubal. He had fled from his own country to Athens during the siege of Carthage, by the Romans, in the third Punic war³⁸⁰; and in the year 623 he went from Greece to Italy, to succeed Carneades in the school which he had there established. Clitomachus was a most voluminous author, having written not less than four ample treatises on the necessity of withholding the assent from every proposition whatever. One of these tracts was dedicated to Lucilius, the satiric poet³⁸¹, and another to the Consul Censorinus. The essence of the principles which he maintained in these works, has been extracted by Cicero, and handed down to us in a passage inserted in the *Academica*. It is there said, that the resemblances of things are of such a nature that some of them appear probable, and others not; but this is no sufficient ground for supposing that some objects may be

correctly perceived, since many falsities are probable, whereas no falsity can be accurately perceived or [pg 214]known: The Academy never attempted to deprive mankind of the use of their senses, by denying that there are such things as colour, taste, and sound; but it denied that there exists in these qualities any criterion or characteristic of truth and certainty. A wise man, therefore, is said, in a double sense, to withhold his assent; in one sense, when it is understood that he absolutely assents to no proposition; in another, when he suspends answering a question, without either denying or affirming. He ought never to assent implicitly to any proposition, and his answer should be withheld until, according to *probability*, he is in a condition to reply in the affirmative or negative. But as Cicero admits, that a wise man, who, on every occasion, suspends his assent, may yet be impelled and moved to action, he leaves him in full possession of those motives which excite to action, together with a power of answering in the affirmative or negative to certain questions, and of following the probability of objects; yet still without giving them his assent³⁸².

Clitomachus was succeeded by Philo of Larissa, who fled from Greece to Italy, during the Mithridatic war, and revived at Rome a system of philosophy, which by this time began to be rather on the decline. Cicero attended his lectures, and imbibed from them the principles of the new Academy, to which he ultimately adhered. Philo published two treatises, explanatory of the doctrines of the new Academy, which were answered in a work entitled *Sosus*, by Antiochus of Ascalon, who had been a scholar of Philo, but afterwards abjured the innovations of the new Academy, and returned to the old, as taught by Plato and his immediate successors,—uniting with it, however, some portion of the systems of Aristotle and Zeno³⁸³. In his own age, Antiochus was the chief support of the original principles of the Academy, and was patronized by all those at Rome, who were still attached to them, particularly by Lucullus, who took the philosopher along with him to Alexandria, when he went there as Quæstor of Egypt.

In the circumstances of Rome, the first steps towards philosophical improvement, were a general abatement of that contempt which had been previously entertained for philosophical studies—a toleration of instruction

—the power of communicating wisdom without shame or restraint, and its cordial reception by the Roman youth. This proficiency, which necessarily preceded speculation or invention, had already taken place. Partly through the instructions of Greek philo[pg 215]sophers who resided at Rome, and partly by means of the practice which now began to prevail, of sending young men for education to the ancient schools of wisdom, philosophy made rapid progress, and almost every sect found followers or patrons among the higher order of the Roman citizens.

From the earliest times, however, till that of Cicero, Greek philosophy was chiefly inculcated by Greeks. There was no Roman who devoted himself entirely to metaphysical contemplation, and who, like Epicurus, Aristotle, and Zeno, lounged perpetually in a garden, paced about in a Lyceum, or stood upright in a portico. The Greek philosophers passed their days, if not in absolute seclusion, at least in learned leisure and retirement. Speculation was the employment of their lives, and their works were the result of a whole age of study and reflection³⁸⁴. The Romans, on the other hand, regarded philosophy, not as the business of life, but as an elegant relaxation, or the means of aiding their advancement in the state. They heard with attention the ingenious disputes agitated among the Greeks, and perused their works with pleasure; but with all this taste for philosophy, they had not sufficient leisure to devise new theories. The philosophers of Rome were Scipio, Cato, Brutus, Lucullus—men who governed their country at home, or combated her enemies abroad. They had, indeed, little motive to invent new systems, since so many were presented to them, ready formed, that every one found in the doctrines of some Greek sect, tenets which could be sufficiently accommodated to his own disposition and situation. In the same manner as the plunder of Syracuse or Corinth supplied Rome with her statues and pictures, and rendered unnecessary the exertions of native artists; and as the dramas of Euripides and Menander provided sufficient materials for the Roman stage; so the Garden, Porch, and Academy, furnished such variety of systems, that new inventions or speculations could easily be dispensed with. The prevalence, too, of the principles of that Academy, which led to doubt of all things, must have discouraged the formation of new and original theories. Nor were even the Greek systems, after their introduction into Italy, classed and separated as they had been in Greece. Most of the distinguished men of Rome, however, in the time of

Cicero, were more inclined to one school than [pg 216]another, and they applied the lessons of the sect which they followed with more success, perhaps, than their masters, to the practical purposes of active life. The juriconsults, chief magistrates, and censors, adopted the Stoical philosophy, which had some affinity to the principles of the Roman constitution, and which they considered best calculated for ruling their fellow-citizens, as well as meliorating the laws and morals of the state. The orators who aspired to rise by eloquence to the highest honours of the republic, had recourse to the lessons of the new Academy, which furnished them with weapons for disputation; while those who sighed for the enjoyment of tranquillity, amid the factions and dangers of the commonwealth, retired to the Gardens of Epicurus. But while subscribing to the leading tenets of a sect, they did not strive to gain followers with any of the spirit of sectarism; and it frequently happened, that neither in principle nor practice did they adopt all the doctrines of the school to which they chiefly resorted. Thus Cæsar, who was accounted an Epicurean, and followed the Epicurean system in some things, as in his belief of the materiality and mortality of the soul, doubtless held in little reverence those ethical precepts, according to which,

—— “Nihil in nostro corpore prosunt,
Nec fama, neque nobilitas, nec gloria regni.”

Lucretius was a sounder Epicurean, and gave to the precepts of his master all the dignity and grace which poetical embellishment could bestow. But Atticus, the well-known friend and correspondent of Cicero, was perhaps the most perfect example ever exhibited of genuine and practical Epicurism.

The rigid and inflexible Cato, was, both in his life and principles, the great supporter of the Stoical philosophy—conducting himself, according to an expression of Cicero, as if he had lived in the polity of Plato, and not amid the dregs of Romulus. The old Academy boasted among its adherents Lucullus, the conqueror of Mithridates—the Lorenzo of Roman arts and literature—whose palaces rivalled the porticos of Greece, and whose library, with its adjacent schools and galleries, was the resort of all who were distinguished for their learning and accomplishments. Whilst Quæstor of Macedonia, and subsequently, while he conducted the war against

Mithridates, Lucullus had enjoyed frequent opportunities of conversing with the Greek philosophers, and had acquired such a relish for philosophical studies, that he devoted to [pg 217]them all the leisure he could command³⁸⁵. At Rome, his constant companion was Antiochus of Ascalon, who, though a pupil of Philo, became himself a zealous supporter of the old Academy; and accordingly, Lucullus, who favoured that system, often repaired to his house, to partake in the private disputations which were there carried on against the advocates for the new or middle Academy. The old Academy also numbered among its votaries Varro, the most learned of the Romans, and Brutus, who was destined to perform so tragic a part on the ensanguined stage of his country.

Little was done by these eminent men to illustrate or enforce their favourite systems by their writings. Even the productions of Varro were calculated rather to excite to the study of philosophy, than to aid its progress. The new Academy was more fortunate in the support of Cicero, who has asserted and vindicated its principles with equal industry and eloquence. From their first introduction, the doctrines of the new Academy had been favourably received at Rome. The tenets of the dogmatic philosophers were so various and contradictory, were so obstinately maintained, and rested on such precarious foundations, that they afforded much scope and encouragement to scepticism. The plausible arguments by which the most discordant opinions were supported, led to a distrust of the existence of absolute truth, and to an acquiescence in such probable conclusions, as were adequate to the practical purposes of life. The speculations, too, of the new Academy, were peculiarly fitted to the duties of a public speaker, as they left free the field of disputation, and habituated him to the practice of collecting arguments from all quarters, on every doubtful question. Hence it was that Cicero addicted himself to this sect, and persuaded others to follow his example. It has been disputed, if Cicero was really attached to the new Academic system, or had merely resorted to it as being best adapted for furnishing him with oratorical arguments suited to all occasions. At first, its adoption was subsidiary to his other plans. But, towards the conclusion of his life, when he no longer maintained the place he was wont to hold in the Senate or the Forum, and when philosophy formed the occupation “with which existence was just tolerable, and without which it would have been intolerable³⁸⁶,” he doubtless became convinced that the principles of the

new Academy, illustrated as they had been by Carneades and Philo, formed the soundest system which had descended to mankind from the schools of Athens.

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The attachment, however, of Cicero to the Academic philosophy, was free from the exclusive spirit of sectarism, and hence it did not prevent his extracting from other systems what he found in them conformable to virtue and reason. His ethical principles, in particular, appear Eclectic, having been, in a great measure, formed from the opinions of the Stoics. Of most Greek sects he speaks with respect and esteem. For the Epicureans alone, he seems (notwithstanding his friendship for Atticus) to have entertained a decided aversion and contempt.

The general purpose of Cicero's philosophical works, was rather to give a history of the ancient philosophy, than dogmatically to inculcate opinions of his own. It was his great aim to explain to his fellow-citizens, in their own language, whatever the sages of Greece had taught on the most important subjects, in order to enlarge their minds and reform their morals; while, at the same time, he exercised himself in the most useful employment which now remained to him—a superior force having deprived him of the privilege of serving his country as an orator or Consul.

Cicero was in many respects well qualified for the arduous but noble task which he had undertaken, of naturalizing philosophy in Rome, and exhibiting her, according to the expression of Erasmus, on the Stage of life. He was a man of fertile genius, luminous understanding, sound judgment, and indefatigable industry—qualities adequate for the cultivation of reason, and sufficient for the supply of subjects of meditation. Never was a philosopher placed in a situation more favourable for gathering the fruits of an experience employed on human nature and civil society, or for observing the effects of various qualities of the mind on public opinion and on the actions of men. He lived at the most eventful crisis in the fate of his country, and in the closest connection with men of various and consummate talents, whose designs, when fully developed by the result, must have afforded on reflection, a splendid lesson in the philosophy of mind. But this situation, in some respects so favourable, was but ill calculated for

revolving abstract ideas, or for meditating on those abstruse and internal powers, of which the consequences are manifested in society and the transactions of life. Accordingly, Cicero appears to have been destitute of that speculative disposition which leads us to penetrate into the more recondite and original principles of knowledge, and to mark the internal operations of thought. He had cultivated eloquence as clearing the path to political honours, and had studied philosophy, as the best auxiliary to eloquence. But the contem[pg 219]plative sciences only attracted his attention, in so far as they tended to elucidate ethical, practical, and political subjects, to which he applied a philosophy which was rather that of life than of speculation.

In the writings of Cicero, accordingly, everything deduced from experience and knowledge of the world—every observation on the duties of society, is clearly expressed, and remarkable for justness and acuteness. But neither Cicero, nor any other Roman author, possessed sufficient subtlety and refinement of spirit, for the more abstruse discussions, among the labyrinths of which the Greek philosophers delighted to find a fit exercise for their ingenuity. Hence, all that required research into the ultimate foundation of truths, or a more exact analysis of common ideas and perceptions—all, in short, that related to the subtleties of the Greek schools, is neither so accurately expressed, nor so logically connected.

In theoretic investigation, then,—in the explication of abstract ideas—in the analysis of qualities and perceptions, Cicero cannot be regarded as an inventor or profound original thinker, and cannot be ranked with Plato and Aristotle, those mighty fathers of ancient philosophy, who carried back their inquiries into the remotest truths on which philosophy rests. Where he does attempt fixing new principles, he is neither very clear nor consistent; and it is evident, that his general study of all systems had, in some degree, unsettled his belief, and had better qualified him to dispute on either side with the Academics, than to examine the exact weight of evidence in the scale of reason, or to exhibit a series of arguments, in close and systematic arrangement, or to deduce accurate conclusions from established and certain principles. His philosophic dialogues are rather to be considered as popular treatises, adapted to the ordinary comprehension of well-informed men, than profound disquisitions, suited only to a Portico or Lyceum. They

bespeak the orator, even in the most serious inquiries. Elegance and fine writing, their author appears to have considered as essential to philosophy; and historic, or even poetical illustration, as its brightest ornament. The peculiar merit, therefore, of Cicero, lay in the happy execution of what had never been before attempted—the luminous and popular exposition of the leading principles and disputes of the ancient schools of philosophy, with judgments concerning them, and the application of results, deduced from their various doctrines to the peculiar manners or employments of his countrymen. Hence, though it may be honouring Cicero too highly, to term his works, with Gibbon, a Repository of Reason, they are at least a Miscellany of [pg 220]Philosophic Information, which has become doubly valuable, from the loss of the writings of many of those philosophers, whose opinions he records; and though the merit of originality rests with the Greek schools, no compositions transmitted from antiquity present so concise and comprehensive a view of the opinions of the Greek philosophers³⁸⁷.

That the mind of Cicero was most amply stored with the learning of the Greek philosophers, and that he had the whole circle of their wisdom at his command, is evident, from the rapidity with which his works were composed—having been all written, except the treatise *De Legibus*, during the period which elapsed from the battle of Pharsalia till his death; and the greater part of them in the course of the year 708.

It is justly remarked by Goerenz, in the introduction to his edition of the book *De Finibus*³⁸⁸, and assented to by Schütz³⁸⁹, that it seems scarcely possible, that those numerous philosophical works, which are asserted to have been composed by Cicero in the year 708, could have been begun and finished in one year; and that such speed of execution leads us to suppose, that either the materials had been long collected, or that the productions themselves were little more than versions. In his *Academica*, Cicero remarks,—“Ego autem, dum me ambitio, dum honores, dum causæ, dum reipublicæ non solum cura, sed quædam etiam procuratio multis officiis implicatum et constrictum tenebat, hæc inclusa habebam; et, ne obsolescerent, renovabam, quum licebat, legendo. Nunc vero et fortunæ gravissimo percussus vulnere, et administratione reipublicæ liberatus, doloris medicinam a philosophiâ peto, et otii oblectationem hanc,

honestissimam judico.” It is not easy to determine, as Schütz remarks, whether, by the expression “hæc inclusa habebam,” Cicero means merely the writings of philosophical authors, or treatises and materials for treatises by himself. “We ought, however,” proceeds Schütz, “the less to wonder that Cicero composed so many works in so short a time, when we read the following passage in a letter to Atticus, written in July 708—‘De linguâ Latinâ securi es animi, dices, qui talia conscribis! ἀπογραφα sunt; minore labore fiunt: verba tantum affero, quibus abundo³⁹⁰’; which words, according to Gronovius, imply, that the philosophic writings of Cicero are little more than versions from the Greek.”

In the laudable attempt of naturalizing philosophy at Rome, [pg 221]the difficulty which Lucretius had encountered, in embodying in Latin verse the precepts of Epicurus,—

“Propter egestatem linguæ rerumque novitatem,”

must have been almost as powerfully felt by Cicero. Philosophy was still little cultivated among the Romans; and no people will invent terms for thoughts or ideas with which it is little occupied. One of his letters to Atticus is strongly expressive of the trouble which he had in interpreting the philosophic terms of Greece in his native tongue³⁹¹. Thus, for example, he could find no Latin word equivalent to the ἐποχῇ, or that withholding of assent from all propositions, which the new Academy professed. The language of the Greeks had been formed along with their philosophy. Their terms of physics had their origin in the ancient Theogonies, or the speculations of the Milesian sage; and Plato informs us, that one might make a course of moral philosophy in travelling through Attica and reading the inscriptions engraved on the tombs, pillars, and monuments, erected in the earliest ages near the public ways and centre of villages³⁹². Hence, in Greece, words naturally became the apposite signs of speculative and moral ideas; but in Rome, a foreign philosophy had to be inculcated in a tongue which was already completely formed, which was greatly inferior in flexibility and precision to the Greek; and which, though Cicero certainly used some liberties in this respect, had too nearly reached maturity, to admit of much innovation. Its words, accordingly, did not always precisely express the subtle notions signified in the original language, whence there

was often an appearance of obscurity in the idea, and of a defect in conclusions, drawn from premises which were indefinite, or which differed by a shade of meaning from those established in Greece.

Aware of this difficulty, and conscious, perhaps, that he possessed not precision and originality of thinking sufficient to recommend a formal treatise, Cicero adopted the mode of writing in dialogues, in which rhetorical diffuseness, and looseness of definition, might be overlooked, and in which ample scope would be afforded for the ornaments of language.

It was by oral discourse that knowledge was chiefly communicated at the dawn of science, when books either did not exist, or were extremely rare. In the Porch, in the Garden, or among the groves of the Academy, the philosopher conferred with his disciples, listened to their remarks, and replied [pg 222]to their objections. Socrates, in particular, was accustomed thus to inculcate his moral lessons; and it was natural for the scholars, who recorded them, to follow the manner in which they had been disclosed. Of these disciples, Plato, who was the most distinguished, readily adopted a form of composition, which gave scope to his own fertile and poetical imagination; while, at the same time, it enabled him more accurately to paint his great master. One of his chief objects, too, was to represent the triumph of Socrates over the Sophists; and if a writer wish to cover an opponent with ridicule, perhaps no better mode could be devised, than to set him up as a man of straw in a dialogue. As argumentative victory, or the embarrassment of the antagonist of Socrates, was often all that was aimed at, it was unnecessary to be very scrupulous about the means, and, considered in this view, the agreeable irony of that philosopher—the address with which, by seeming to yield, he ensnares the adversary—his quibbles—his subtle distinctions, and perplexing interrogatories, display consummate skill, and produce considerable dramatic effect; while, at the same time, the scenery and circumstances of the dialogue are often described with a richness and beauty of imagination, which no philosophic writer has as yet surpassed³⁹³.

When Cicero, towards the close of his long and meritorious life, employed himself in transferring to Rome the philosophy of Greece, he appears to have been chiefly attracted by the diffusive majesty of Plato, whose

intellectual character was in many respects congenial to his own. His dialogues in so far resemble those of Plato, that the personages are real, and of various characters and opinions; while the circumstances of time and place are, for the most part, as completely fictitious as in his Greek models. Yet there is a considerable difference in the manner of Cicero's Dialogues, from those of the great founder of the Academy. Plato ever preserved something of the Socratic method of giving birth to the thoughts of others—of awakening, by interrogatories, the sense of truth, and supplanting errors. But Cicero himself, or the person who speaks his sentiments, always takes the lead in the conference, and gives us long, and often uninterrupted dissertations. His object, too, appears to have been not so much to cover his adversaries with ridicule, or even to prevail in the argument, as to pay a complimentary tribute to his numerous and illustrious friends, or to recall, as it were, from the tomb, the departed heroes and sages of his country.

In the form of dialogue, Cicero has successively treated of Law, Metaphysics, Theology, and Morals.

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De Legibus.—Of this dialogue there are only three books now extant, and even in these considerable chasms occur. A conjecture has been recently hazarded by a learned German, in an introduction to a translation of the dialogue, that these three books, as we now have them, were not written by Cicero, but that they are mere excerpts taken from his lost writings, by some monk or father of the church³⁹⁴. There are few works, however, in which more genuine marks of the master-hand of Cicero may be traced, than in the tract *De Legibus*; and the connection between the different parts is too closely preserved, to admit of the notion that it has been made up in the manner which this critic supposes. Another conjecture is, that it formed part of the third, fourth, and fifth books of Cicero's lost treatise *De Republica*. This surmise, however, was highly improbable, since Cicero, in the course of the work *De Legibus*, refers to that *De Republica* as a separate production, and it is now proved to be chimerical by the discovery of Mai. The dialogue *De Legibus*, however, seems to have been drawn up as a kind of supplement to that *De Republica*, being intended to point out what laws would be most suitable to the perfect republic, which the author had previously described³⁹⁵.

As to the period of composition, it thus manifestly appears to have been written subsequently to the dialogue *De Republica*; and it is evident, from his letters to his brother Quintus, that the work *De Republica* was begun in 699, and finished in 700³⁹⁶, so that the dialogue *De Legibus* could not have been composed before that year. It is further clear, that it was written after the year 701, since he obviously alludes in it to the murder of Clodius,—boasting that his chief enemy was now not only deprived of life, but wanted sepulture, and the accustomed funeral obsequies³⁹⁷. Now, it is well known that Clodius was slain in 701, and that his dead body was dragged naked by a lawless mob into the Forum, where it was consumed amid the conflagration raised in the Senate-house. It is equally evident that the treatise *De Legibus* was written before that *De Finibus*, composed in 708, since, in the former work, the author alludes to the questions which we find discussed in the latter, as controversies which he is one day to take up³⁹⁸. But it is demonstrable that the dialogue *De Legibus* was written even previous to the battle of Pharsalia, which was fought in 705, since the author talks in it of Pompey as of [pg 224]a person still alive, and in the plenitude of glory³⁹⁹. Chapman, in his dissertation *De Ætate Librorum de Legibus*, subjoined to Tunstall's Latin letter to Middleton, concerning the epistles to Brutus, thinks that it was not written till the year 709. He is of opinion, that what is said of Pompey, and the allusions to the murder of Clodius, as to a recent event, were only intended to suit the time in which the dialogue takes place: But then it so happens, that no historical period whatever is assigned by the author of the dialogue, as the date of its actual occurrence. Chapman also maintains, that this is the only mode of accounting for the work *De Legibus* not being mentioned in the treatise *De Divinatione*, where Cicero's other philosophical productions are enumerated. The reason of this omission, however, might be, that the work *De Legibus* never was made public by the author; and, indeed, with exception of the first book, the whole is but a sketch or outline of what he intended to write, and is far from having received the polish and perfection of those performances which he circulated himself.

The discussion *De Legibus* is carried on, in the shape of dialogue, by Cicero, his brother Quintus, and Atticus. Of these Cicero is the chief interlocutor. The scene is laid amid the walks and pleasure-grounds of Cicero's villa of Arpinum, which lay about three miles from the town of

that name, and was situated in a mountainous but picturesque region of the ancient territory of the Samnites, now forming part of the kingdom of Naples. This house was the original seat of the family of Cicero, who was born in it during the life of his grandfather, while it was yet small and humble as the Sabine cottage of Curius or Cincinnatus; but his father had gradually enlarged and embellished it, till it became a spacious and elegant mansion, where, as his health was infirm, he passed the greater part of his life in literary retirement⁴⁰⁰. Cicero was thus equally attracted to this villa by the many pleasing and tender recollections with which it was associated, and by the amenity of the situation, which was the most retired and delightful, even in that region of enchanting landscape. It was closely surrounded by a grove, and stood not far from the confluence of the Fibrenus with the Liris. The former stream, which murmured over a rocky channel, was remarkable for its clearness, rapidity, and coolness; and its sloping verdant banks were shaded with lofty poplars⁴⁰¹. “Many streams,” says Mr. Kelsall, one of our latest Italian tourists, “which are celebrated in story and song, disappoint the traveller,— [pg 225]

‘Dumb are their fountains, and their channels dry,’—

but, in the course of long travels, I never met with so abundant and lucid a current as the Fibrenus; the length of the stream considered, which does not exceed four miles and a half. It flows with great rapidity, and is about thirty or thirty-five feet in width near the Ciceronian isles. It is generally fifteen and even twenty in depth; ‘largus et exundans,’ like the genius of him who had so often trodden its banks. The water even in the intensest heats, still retains its icy coldness; and, although the thermometer was above 80° in the shade, the hand, plunged for a few seconds into the Fibrenus, caused a complete numbness⁴⁰².” Near to the house, the Fibrenus was divided into equal streams by a little island, which was fringed with a few plane-trees, and on which stood a portico⁴⁰³, where Cicero often retired to read or meditate, and composed some of his sublimest harangues. Just below this islet, each branch of the stream rushed by a sort of cascade, into the cerulean Liris⁴⁰⁴, on which the Fibrenus bestowed additional freshness and coolness, and after this union received the name of the more noble river⁴⁰⁵. The epithet *taciturnus*, applied to the Liris by Horace, and *quietus*, by Silius Italicus, must be understood only of the lower windings of its course. No

river in Italy is so noisy as the Liris about Arpino and Cicero's villa; for the space of a mile and a half after receiving the Fibrenus, it formed no less than six cascades, varying in height from three to twenty feet⁴⁰⁶. This spot, embellished with all the ornaments of hills and valleys, and wood and water-falls, was one of Cicero's most favourite retreats. When Atticus first visited it, he was so charmed, that, instead of wondering as before that it was such a favourite residence of his friend, he expressed his surprise that he ever retired elsewhere⁴⁰⁷; declaring, at the same time, his contempt of the marble pavements, arched ceilings, and artificial canals of magnificent villas, compared with the tranquillity and natural beauties of Arpinum. Cicero, indeed, appears at one time to have thought of the island, formed by the Fibrenus, as the place most suitable for the monument which he intended to raise to his beloved daughter Tullia⁴⁰⁸.

The situation of this villa was close to the spot where now [pg 226]stands the city of Sora⁴⁰⁹. "The Liris," says Eustace, "still bears its ancient name till it passes Sora, when it is called the Garigliano. The Fibrenus, still so called, falls into it a little below Sora, and continues to encircle the island in which Cicero lays the scene of the dialogue *De Legibus*. Arpinum, also, still retains its name⁴¹⁰." Modern travellers bear ample testimony to the scenery round Sora being such as fully justifies the fond partiality of Cicero, and the admiration of Atticus. "Nothing," says Mr Kelsall, "can be imagined finer than the surrounding landscape. The deep azure of the sky, unvaried by a single cloud—Sora on a rock at the foot of the precipitous Apennines—both banks of the Garigliano covered with vineyards—the *fragor aquarum*, alluded to by Atticus in the work *De Legibus*—the coolness, rapidity, and ultramarine hue of the Fibrenus,—the noise of its cataracts—the rich turquoise colour of the Liris—the minor Apennines round Arpino, crowned with umbrageous oaks to their very summits, present scenery hardly elsewhere to be equalled, certainly not to be surpassed, even in Italy⁴¹¹." The spot where Cicero's villa stood, was, in the time of Middleton, possessed by a convent of monks, and was called the villa of St Dominic. It was built in the year 1030, from the fragments of the Arpine villa!

"Art, Glory, Freedom, fail—but Nature still is fair."

The first conference, *De Legibus*, is held in a walk on the banks of the Fibrenus; the other two in the island which it formed, and which Cicero called Amalthea, from a villa belonging to Atticus in Epirus. These three books are all that are now extant. It appears, however, that, at the commencement of the fifth dialogue, the sun having then passed the meridian, and its beams striking in such a direction that the speakers were no longer sheltered from its rays by the young plane-trees, which had been recently planted, they left the island, and descending to the banks of the Liris, finished their discourse under the shade of the alder-trees, which stretched their branches over its margin⁴¹².

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An ancient oak, which stood in Cicero's pleasure-grounds, led Atticus to inquire concerning the augury which had been presented to Marius, a native of Arpinum, from that very oak, and which Cicero had celebrated in a poem devoted to the exploits of his ferocious countryman, Cicero hints, that the portent was all a fiction; which leads to a discussion on the difference between poetry and history, and the poverty of Rome in the latter department. As Cicero, owing to the multiplicity of affairs, had not then leisure to supply this deficiency, he is requested by his guests, to give them, in the meanwhile, a dissertation on Laws—a subject with which he was so conversant, that he could require no previous preparation. It is agreed, that he should not treat of particular or arbitrary laws,—as those concerning *Stillicide*, and the forms of judicial procedure—but should trace the philosophic principles of jurisprudence to their remotest sources. From this recondite investigation he excludes the Epicureans, who decline all care of the republic, and bids them retire to their gardens. He entreats that the new Academy should be silent, since her bold objections would soon destroy the fair and well-ordered structure of his lofty system. Zeno, Aristotle, and the immediate followers of Plato, he represents as the teachers who best prepare a citizen for performing the duties of social life. Then he professes chiefly to follow; and, in conformity with their system, he announces in the first book, which treats of laws in general, that man being linked to a supreme God by reason and virtue, and the whole species being associated by a communion of feelings and interests, laws are alike founded on divine authority and natural benevolence.

According to this sublime hypothesis, the whole universe forms one immense commonwealth of gods and men, who participate of the same essence, and are members of the same community. Reason prescribes the law of nature and nations; and all positive institutions, however modified by accident or custom, are drawn from the rule of right which the Deity has inscribed on every virtuous mind. Some actions, therefore, are just in their own nature, and ought to be performed, not because we live in a society where positive laws punish those who pay no regard to them, but for the sake of that equity which accompanies them, independently of human ordinances. These principles may be applicable to laws in a certain sense; but, in fact, it is rather moral right and justice than laws that the author discusses—for bad or pernicious laws he does not admit to be laws at all. To do justice, to love mercy, and to worship God with a pure heart, were, doubtless, laws in his meaning, (that is, they were right,) previous to their enactment, and no human enactment to the contrary could abrogate them. His principles, however, apply to laws in this sense, and not to arbitrary civil institutions.

Having, in the first discourse, laid open the origin of laws, and source of obligations, he proceeds, in the remaining books, to set forth a body of laws conformable to his own plan and ideas of a well-ordered state;—announcing, in the first place, those which relate to religion and the worship of the gods; secondly, such as prescribe the duties and powers of magistrates. These laws are, for the most part, taken from the ancient government and customs of Rome, with some little modification calculated to obviate or heal the disorders to which the republic was liable, and to give its constitution a stronger bias in favour of the aristocratic faction. The species of instruction communicated in these two books, has very little reference to the sublime and general principles with which the author set out. Many of his laws are arbitrary municipal regulations. The number of the magistrates, the period of the duration of their offices, with the suffrages and elections in the Comitia, were certainly not founded in the immutable laws of God or nature; and the discussion concerning them has led to the belief, that the second and third books merely comprehended a collection of facts, from which general principles were to be subsequently deduced.

At the end of the third book it is mentioned, that the executive power of the magistracy, and rights of the Roman citizens, still remain to be discussed. In what number of books this plan was accomplished, is uncertain. Macrobius, as we have seen, quotes the fifth book⁴¹³; and Goerenz thinks it probable there were six,—the fourth being on the executive power, the fifth on public, and the sixth on private rights.

What authors Cicero chiefly followed and imitated in his work *De Legibus*, has been a celebrated controversy since the time of Turnebus. It seems now to be pretty well settled, that, in substance and principles, he followed the Stoics; but that he imitated Plato in the style and dress in which he arrayed his sentiments and opinions. That philosopher, as is well known, after writing on government in general, drew up a body of laws adapted to that particular form of it which he had delineated. In like manner, Cicero chose to deliver his sentiments, not by translating Plato, but by imitating his manner [pg 229]in the explication of them, and adapting everything to the constitution of his own country. The Stoic whom he principally followed, was probably Chrysippus, who wrote a book *Περὶ Νομῶν*⁴¹⁴, some passages of which are still extant, and exhibit the outlines of the system adopted in the first book *De Legibus*. What of general discussion appears in the third book is taken from Theophrastus, Dio, and Panætius the Stoic.

De Finibus Bonorum et Malorum.—This work is a philosophical account of the various opinions entertained by the Greeks concerning the Supreme Good and Extreme Evil, and is by much the most subtle and difficult of the philosophic writings of Cicero. It consists of five books, of that sort of dialogue, in which, as in the treatise *De Oratore*, the discourse is not dramatically represented, but historically related by the author. The constant repetition of “said I,” and “says he,” is tiresome and clumsy, and not nearly so agreeable as the dramatic form of dialogue, where the names of the different speakers are alternately prefixed, as in a play. The whole is addressed to Marcus Brutus in an Introduction, where the author excuses his study of philosophy, which some persons had blamed as unbecoming his character and dignity. The conference in the first two books is supposed to be held at Cicero’s Cuman villa, which was situated on the hills of old Cumæ, and commanded a prospect of the Campi Phlegræi, the bay of Puteoli, with its islands, the Portus Misenus the harbour of the Roman fleet,

and Baiaë, the retreat of the most wealthy patricians. Here Cicero received a visit from Lucius Torquatus, a confirmed Epicurean, and from a young patrician, Caius Triarius, who is a mute in the ensuing colloquy. Torquatus engages their host in philosophical discussion, by requesting to know his objections to the Epicurean system. These Cicero states generally; but Torquatus, in his answer, confines himself to the question of the Supreme Good, which he placed in pleasure. This tenet he supports on the principle, that, of all things, Virtue is the most pleasurable; that we ought to follow its laws, in consequence of the serenity and satisfaction arising from its practice; and that honourable toil, or even pain, are not always to be avoided, as they often prove necessary means towards obtaining the most exquisite gratifications. Cicero, in his refutation, which is contained in the second book, gives rather a different representation of the philosophy of Epicurus, from his great poetic contemporary Lucretius. The term ἡδονη, (voluptas,) used by Epicurus to express his Supreme Good, can only, as Cicero maintains, mean sensual [pg 230]enjoyment, and can never be so interpreted as to denote tranquillity of mind. But supposing virtue to be cultivated merely as productive of pleasure, or as only valuable because agreeable—a cheat, who had no remorse or conscience, might enjoy the *summum bonum* in defrauding a rightful owner of his property; and no act would thus be accounted criminal, if it escaped the brand of public infamy. On the other hand, if pain be accounted the Supreme Evil, how can any man enjoy felicity, when this greatest of all misfortunes may at any moment seize him!

In the third and fourth books, the scene of the dialogue is changed. In order to inspect some books of Aristotelian philosophy, Cicero walks over to the villa of young Lucullus, to whom he had been appointed guardian, by the testament of his illustrious father. Here he finds Cato employed in perusing certain works of Stoical authors; and a discussion arises on that part of the Stoical system, relating to the Supreme Good, which Cato placed in virtue alone. Cicero, in his answer to Cato, attempts to reconcile this tenet with the doctrines of the Academic philosophy, which he himself professed, by showing that the difference between them consisted only in the import affixed to the term *good*—the Academic sect assigning a pre-eminence to virtue, but admitting that external advantages are good also in their decree. Now, the Stoics would not allow them to be good, but merely valuable,

eligible, or preferable; so that the sects could be reconciled in sentiments, if the terms were a little changed. The Academical system is fully developed in the fifth book, in a dialogue held within the Academy; and, at the commencement, the associations which that celebrated, though then solitary spot, was calculated to awaken are finely described. "I see before me," says Piso, "the perfect form of Plato, who was wont to dispute in this very place: These gardens not only recall him to my memory, but present his very person to my senses—I fancy to myself that here stood Speusippus—there Xenocrates—and here, on this bench, sat his disciple Polemo. To me, our ancient Senate-house seems peopled with the like visionary forms; for often when I enter it, the shades of Scipio, of Cato, and of Lælius, and, in particular, of my venerable grandfather, rise up to my imagination." Here Piso, who was a great Platonist, gives an account, in the presence of Cicero and Cicero's brother Quintus, of the hypothesis of the old Academy concerning moral good, which was also that adopted by the Peripatetics. According to this system, the *summum bonum* consists in the highest improvement of all the mental and bodily faculties. The perfection, in short, of everything [pg 231]consistent with nature, enters into the composition of supreme felicity. Virtue, indeed, is the highest of all things, but other advantages must also be valued according to their worth. Even pleasures become ingredients of happiness, if they be such as are included in the *prima naturæ*, or primary advantages of nature. Cicero seems to approve this system, and objects only to one of the positions of Piso, That a wise man must be always happy. Our author thus contrasts with each other the different systems of Greek philosophy, particularly the Epicurean with the Stoical tenets; and hence, besides, refuting them in his own person, he makes the one baffle the other, till he arrives at what is most probable, the utmost length to which the middle or new Academy pretended to reach. The chief part of the work *De Finibus*, is taken from the best writings of the different philosophers whose doctrines he explains. The first book closely follows the tract of Epicurus, Κυριων δοξων. Cicero's second book, in which he refutes Epicurism, is borrowed from the stoic Chrysippus, who wrote ten books Of the beautiful, and of pleasure, (Περι τοῦ καλοῦ και της ἡδουνης,) wherein he canvassed the Epicurean tenets concerning the Supreme Good and Evil. His third book is derived from a treatise of the same Chrysippus, entitled Περι τελων⁴¹⁵. The fourth, where he refutes the Stoics, is from the writings of Polemo, who, following the example of

his master Xenocrates, amended the Academic doctrines, and nearly accommodated them on this subject of Good and Evil to the opinions of the ancient Peripatetics. Some works of Antiochus of Ascalon, who, in the time of Cicero, was the head of the old Academy, supplied the materials for the concluding dialogue.

The work *De Finibus* was written in 708, and though begun subsequently to the *Academica*, was finished before it. The period, however, of the three different conferences of which it consists, is laid a considerable time before the date of its publication. It is evident that the first dialogue is supposed to be held in 703, since Torquatus, the principal speaker, who perished in the civil war, is mentioned as *Prætor Designatus*, and this prætorship he bore in the year 704. The following conference is placed subsequently, at least, to the death of the great Lucullus, who died in 701. The last dialogue is carried more than thirty years back, being laid in 674, when Cicero was in his twenty-seventh year, and was attending the lessons of the Athenian philosophers. For this change, the reason seems to have been, that as Piso was the fittest person whom the author could find to support the doctrines of the [pg 232]old Academy, and as he had renounced his friendship during the time of the disturbances occasioned by the Clodian faction, it became necessary to place the conference at a period when they were fellow-students at Athens. The critics have observed some anachronisms in this last book, in making Piso refer to the other two dialogues, of which he had no share, and could have had no knowledge, as being held at a later period than that of the conference he attended.

Academica.—This work is termed *Academica*, either because it chiefly relates to the Academic philosophy, or because it was composed at the villa of Puteoli, where a grove and portico were called by Cicero, from an affected imitation of the Athenians, his Academy⁴¹⁶. There evidently existed what may be termed two editions of the *Academica*, neither of which we now possess perfect—what we have being the second book of the first edition, and the first of the second. In the first edition, the speakers were Cicero himself, Catulus, Lucullus, and Hortensius. The first book was inscribed Catulus, and the second Lucullus, these persons being the chief interlocutors in their respective divisions. The first dialogue, or Catulus, was held in the villa of that senator. Every word of it is unfortunately lost,

but the import may be gathered, from the references to it in the Lucullus, or second book, which is still extant. It appears to have contained a sketch of the history of the old and the new Academy, and then to have entered minutely into the doctrines and principles of the latter, to which Catulus was attached. Catulus explained them as they had been delivered by Carneades, whose lectures his father had attended, and in his old age imparted their substance to his son. He refuted the philosophy of Philo, where that writer differed from Carneades, (which, though of the new Academy, he did in some particulars,) and also the opinions of Antiochus, who followed the old Academy. Hortensius seems to have made a short reply, but the more ample discussion of the system of the old Academy was reserved for Lucullus. Previous, however, to entering on this topic, our philosophers pass over from the Cuman villa of Catulus to that of Hortensius, at Bauli, one of the many magnificent seats belonging to that orator, and situated a little above the luxurious Baiæ, in the direction towards Cumæ, on an inlet of the Bay of Naples. Here they had resolved to remain till a favourable breeze should spring up, which might carry Lucullus to his Neapolitan, and Cicero to his Pompeian villa. While awaiting this opportunity, they repaired to an open gallery, which looked towards [pg 233]the sea, whence they descried the vessels sailing across the bay, and the ever changeful hue of its waters, which appeared of a saffron colour under the morning beam, but became azure at noon, till, as the day declined, they were rippled by the western breeze, and empurpled by the setting sun⁴¹⁷. Here Lucullus commenced his defence of the old Academy, and his disputation against Philo, according to what he had learned from the philosopher Antiochus, who had accompanied him to Alexandria, when he went there as Quæstor of Egypt. While residing in that city, two books of Philo arrived, which excited the philosophic wrath of Antiochus, and gave rise to much oral discussion, as well as to a book from his pen, entitled *Sosus*, in which he attempted to refute the doctrines so boldly promulgated by Philo. Lucullus was thus enabled fully and faithfully to detail the arguments of the chief supporter and reviver in those later ages of the old Platonic Academy. His discourse is chiefly directed against that leading principle of the new Academy, which taught that nothing can be known or ascertained. Recurring to nature, and the constitution of man, he confirms the faith we have in our external senses, and the mental conclusions deduced from them. To this Cicero replies, from the writings of

Clitomachus, and of course enlarges on the delusion of the senses—the false appearances we behold in sleep, or while under the influence of phrensy, and the uncertainty of everything so fully demonstrated by the different opinions of the great philosophers, on the most important of all subjects, the Providence of the Gods—the Supreme Good and Evil, and the formation of the world.

These two books, the *Catulus* and *Lucullus*, of which, as already mentioned, the last alone is extant, were written after the termination of the civil wars, and a copy of them sent by Cicero to Atticus. It occurred, however, to the author soon afterwards, that the characters introduced were not very suitable to the subjects discussed, since *Catulus* and *Lucullus*, though both ripe scholars, and well-educated men, could not, as statesmen and generals, be supposed to be acquainted with all the *minutiæ* of philosophic controversy contained in the books bearing their names. While deliberating if he should not rather put the dialogue into the lips of Cato and Brutus, he received a letter from Atticus, acknowledging the present of his work, but mentioning that their common friend, Varro, was displeased to find that none of his treatises were addressed to him, or inscribed with his name. This intimation, and the [pg 234]incongruity of the former characters with the subject, determined the author to dedicate the work to Varro, and to make him the principal speaker in the dialogue⁴¹⁸. This change, and the reflection, perhaps, on certain defects in the arrangement of the old work, as also the discovery of considerable omissions, particularly with regard to the tenets of Arcesilaus, the founder of the new academy, induced him to remodel the whole, to add in some places, to abridge in others, and to bestow on it more lustre and polish of style. In this new form, the *Academica* consisted of four books, a division which was better adapted for treating his subject: But of these four, only the first remains. The dialogue it contains is supposed to be held during a visit which Atticus and Cicero paid to Varro, in his villa near Cumæ. His guests entreat him to give an account of the principles of the old Academy, from which Cicero and Atticus had long since withdrawn, but to which Varro had continued steadily attached. This first book probably comprehends the substance of what was contained in the *Catulus* of the former edition. Varro, in complying with the request preferred to him, deduces the origin of the old Academy from Socrates; he treats of its doctrines as relating to physics, logic, and morals, and traces its

progress under Plato and his legitimate successors. Cicero takes up the discourse when this historical account is brought down to Arcesilaus, the founder of the new Academy. But the work is broken off in the most interesting part, and just as the author is entering on the life and lectures of Carneades, who introduced the new Academy at Rome. Cicero, however, while he styles it the new Academy, will scarcely allow it to be new, as it was in fact the most genuine exposition of those sublime doctrines which Plato had imbibed from Socrates. The historical sketch of the Academic philosophy having been nearly concluded in the first book, the remaining books, which are lost, contained the disputatious part. In the second book the doctrines of Arcesilaus were explained; and from one of the few short fragments preserved, there appears to have been a discussion concerning the remarkable changes that occur in the colour of objects, and the complexion of individuals, in consequence of the alterations they undergo in position or age, which was one of Arcesilaus' chief arguments against the certainty of evidence derived from the senses. The third and fourth books probably contained the doctrines of Carneades and Philo, with Varro's refutation of them, according to the principles of Antiochus. From a fragment of [pg 235]the third book, preserved by Nonius, it appears that the scene of the dialogue was there transferred to the banks of the Lucrine lake, which lay in the immediate vicinity of Varro's Cuman villa⁴¹⁹.

These four books formed the work which Cicero wished to be considered as the genuine and improved Academics. The former edition, however, which he had sent to Atticus, had gone abroad, and as he could not recall it, he resolved to complete it, by prefixing an introductory eulogy of Catulus to the first, and of Lucullus to the second book,—extolling, in particular, the incredible genius of the latter, which enabled him, though previously inexperienced in the art of war, merely by conversation and study, during his voyage from Rome, to land on the coast of Asia, with the acquirements of a consummate commander, and to extort the admission from his antagonist, Mithridates, who had coped with Sylla, that he was the first of warriors.

This account of the two editions of the Academics, which was first suggested by Talæus⁴²⁰, has been adopted by Goerenz⁴²¹; and it appears to me completely confirmed by the series of Cicero's letters to Atticus,

contained in the 13th book of his Epistles. It is by no means, however, unanimously assented to by the French and German commentators. Lambinus, seeing that Nonius quoted, as belonging to the fourth book of the *Academica*, passages which we find in the Lucullus, or second book of the first edition, considered and inscribed it as the fourth of the new edition, instead of the second of the old, in which he was followed by many subsequent editors; but this is easily accounted for, since the new edition, being remodelled on the old, many things in the last or second book of the old edition would naturally be transferred to the fourth or last of the new, and be so cited by those grammarians who wrote when the whole work was extant. Ranitz denies that there ever were two editions of the *Academica* made public, or preserved, and that, so far from the last three books being lost, the Lucullus contains the whole of these three, but from the error of transcribers they have been run into each other⁴²². This critic is right, indeed, in the notion he entertains, that Cicero wished the first edition of the *Academica* to be destroyed, or to fall into oblivion, but it does not follow that [pg 236]either of these wishes was accomplished; and indeed it is proved, from Cicero's own letters, that the older edition had passed into extensive circulation.

Tusculanæ Disputationes, are so called by Cicero, from having been held at his seat near Tusculum—a town which stood on the summit of the Alban hill, about a mile higher up than the modern Frascati, and communicated its name to all the rural retreats in its neighbourhood. This was Cicero's chief and most favourite villa. "It is," says he, "the only spot in which I completely rest from all my uneasiness, and all my toils."—"It stood," says Eustace, "on one of the *Tumuli*, or beautiful hills grouped together on the Alban Mount. It is bounded on the south by a deep dell, with a streamlet that falls from the rock, then meanders through the recess, and disappears in its windings. Eastward rises the lofty eminence, once crowned with Tusculum—Westward, the view descends, and passing over the Campagna, fixes on Rome, and the distant mountains beyond it.—On the south, a gentle swell presents a succession of vineyards and orchards; and behind it towers the summit of the Alban Mount, once crowned with the temple of Jupiter Latiaris. Thus Cicero, from his portico, enjoyed the noblest and most interesting view that could be imagined to a Roman and a Consul; the temple of the tutelary divinity of the empire, the seat of victory and

triumph, and the theatre of his glorious labours,—the Capital of the World⁴²³.” A yet more recent traveller informs us, that “the situation of the ancient Tusculum is delightful. The road which leads to it is shaded with umbrageous woods of oak and ilex. The ancient trees and soft verdant meadows around it, almost remind us of some of the loveliest scenes of England; and the little brook that babbles by, was not the less interesting from the thought, that its murmurs might perchance have once soothed the ear of Cicero⁴²⁴.”

The distance of Tusculum from Rome, which was only four leagues, afforded Cicero an easy retreat from the fatigues of the Senate and Forum. Being the villa to which he most frequently resorted, he had improved and adorned it beyond all his other mansions, and rendered its internal elegance suitable to its majestic situation. It had originally belonged to Sylla, by whom it was highly ornamented. In one of its apartments there was a painting of his victory near Nola, during the Marsic war, in which Cicero had served under him as a volunteer. But its new master had bestowed on this seat a more classical [pg 237]and Grecian air. He had built several halls and galleries in imitation of the schools and porticos of Athens, which he termed Gymnasia. One of these, which he named the Academia, was erected at a little distance from the villa, on the declivity of the hill facing the Alban Mount⁴²⁵. Another Gymnasium, which he called the Lyceum, stood higher up the hill than the Academy: It was adjacent to the villa, and was chiefly designed for philosophical conferences. Cicero had given a general commission to Atticus, who spent much of his time in Greece, to purchase any elegant or curious piece of Grecian art, in painting or sculpture, which his refined taste might select as a suitable ornament for his Tusculan villa. He, in consequence, received from his friend a set of marble Mercuries, with brazen heads, with which he was much pleased; but he was particularly delighted with a sort of compound emblematical figures called *Hermathenæ* and *Hermeraclæ* representing Mercury and Minerva, or Mercury and Hercules, jointly on one base; for, Hercules being the proper deity of the Gymnasium, Minerva of the Academy, and Mercury common to both, they precisely suited the purpose for which he desired them to be procured. One of these Minerval Mercuries pleased him so wonderfully, and stood in such an advantageous position, that he declared the whole Academy at Tusculum appeared to have been contrived in order to receive

it⁴²⁶. So intent was he on embellishing this Tusculan villa with all sorts of Grecian art, that he sent over to Atticus the plans and devices for his ceilings, which were of stucco-work, in order to bespeak various pieces of sculpture and painting to be inserted in the compartments; as also the covers for two of his wells or fountains, which, by the custom of those times, were often formed after some elegant pattern, and adorned with figures in relief⁴²⁷.

La Grotta Ferrata, a convent of Basilian friars, is now, according to Eustace, built on the site of Cicero's Tusculan villa. Nardini, who wrote about the year 1650, says, that there had been recently found, among the ruins of Grotta Ferrata, a piece of sculpture, which Cicero himself mentions in one of his Familiar Epistles. In the middle of last century, there yet remained vast subterranean apartments, as well as a great circumference and extent of ruins⁴²⁸. But these, it would appear, have been still farther dilapidated since that period. "Scarce [pg 238]a trace," says Eustace, "of the ruins of Tusculum is now discoverable: Great part remained at the end of the 10th century, when a Greek monk from Calabria demolished it, and erected on the site, the monastery of Grotta Ferrata. At each end of the portico is fixed in the wall a fragment of basso relievo. One represents a philosopher sitting with a scroll in his hand, in a thinking posture—in the other, are four figures supporting the feet of a fifth of colossal size, supposed to represent Ajax. These, with the beautiful pillars which support the church, are the only remnants of the decorations and furniture of the ancient villa. 'Conjiciant,' says an inscription near the spot, '*quæ et quanta fuerunt.*'"⁴²⁹

When Cæsar had attained the supremacy at Rome, and Cicero no longer gave law to the Senate, he became the head of a sort of literary or philosophical society. Filelfo, who delivered public lectures at Rome, on the Tusculan Disputations, attempted to prove that he had stated meetings of learned men at his house, and opened a regular Academy at Tusculum⁴³⁰. This notion was chiefly founded on a letter of Cicero to Pætus, where he says that he had followed the example of the younger Dionysius, who, being expelled from Syracuse, taught a school at Athens. At all events, it was his custom, in the opportunities of his leisure, to carry some friends with him from Rome to the country, where the entertainments they enjoyed were chiefly speculative. In this manner, Cicero, on one occasion, spent five

days at his Tusculan villa; and after [pg 239]employing the morning in declamation and rhetorical exercises, retired in the afternoon with his friends to the gallery, called the Academy, which he had constructed for the purpose of philosophical conference. Here Cicero daily offered to maintain a thesis on any topic proposed to him by his guests; and the five dialogues thus introduced, were, as we are informed by the author, afterwards committed to writing, nearly in the words which had actually passed⁴³¹. They were completed early in 709, and, like so many of his other works, are dedicated to Brutus—each conference being at the same time furnished with an introduction expatiating on the excellence of philosophy, and the advantage of naturalizing the wisdom of the Greeks, by transfusing it into the Latin language. In the first dialogue, entitled *De Contemnenda Morte*, one of the guests, who is called the *Auditor* through the remainder of the performance, asserts, that death is an evil. This proposition Cicero immediately proceeds to refute, which naturally introduces a disquisition on the immortality of the soul—a subject which, in the pages of Cicero, continued to be involved in the same doubt and darkness that had veiled it in the schools of Greece.

It is true, that in the ancient world some notion had been entertained, and by a few some hope had been cherished, that we are here only in the infancy of our existence, and that the grave might be the porch of immortality, and not the goal of our career. The natural love that we have for life, amidst all its miseries—the grief that we sometimes feel at being torn from all that is dear to us—the desire for posterity and for posthumous fame—the humiliating idea, that the thoughts which wander through eternity, should be the operations of a being destined to flutter for a moment on the surface of the earth, and then for ever to be buried in its bosom—all, in short, that is selfish, and all that is social in our nature, combined in giving importance to the inquiry, If the thinking principle was to be destroyed by death, or if that great change was to be an introduction to a future state of existence. Having thus a natural desire for the truth of this doctrine, the philosophers of antiquity anxiously devised arguments, which might justify their hopes. Sometimes they deduced them from metaphysical speculations—the spirituality, unity, and activity of the soul—sometimes from its high ideas of things moral and intellectual. Is it possible, they asked, that a being of such excellence should be here imprisoned for a term of years, only to be the

sport of the few pleasures and the many pains which [pg 240]chequer this mortal life? Is not its future destination seen in that satiety and disrelish, which attend all earthly enjoyments—in those desires of the mind for things more pure and intellectual than are here supplied—in that longing and endeavour, which we feel after something above us, and perfective of our nature? At other times, they have found arguments in the unequal distribution of rewards and punishments; and in our sighs over the misfortunes of virtue, they have recognized a principle, which points to a future state of things, where that shall be discovered to be good which we now lament as evil, and where the consequences of vice and virtue shall be more fully and regularly unfolded, than in this inharmonious scene. They have then looked abroad into nature, and have seen, that if death follows life, life seemingly emanates from death, and that the cheerful animations of spring succeed to the dead horrors of winter. They have observed the wonderful changes that take place in some sentient beings—they have considered those which man himself has undergone—and, charmed by all these speculations, they have indulged in the pleasing hope, that our death may, like our birth, be the introduction to a new state of existence. But all these fond desires—all these longings after immortality, were insufficient to dispel the doubts of the sage, or to fill the moralist with confidence and consolation. The wisest and most virtuous of the philosophers of antiquity, and who most strongly indulged the hope of immortality, is represented by an illustrious disciple as expressing himself in a manner which discloses his sad uncertainty, whether he was to be released from the tomb, or for ever confined within its barriers.

In the age of Cicero, the existence of a world beyond the grave was still covered with shadows, clouds, and darkness. “Whichsoever of the opinions concerning the substance of the soul be true,” says he, in his first Tusculan Disputation, “it will follow, that death is either a good, or at least not an evil—for if it be brain, blood, or heart, it will perish with the whole body—if fire, it will be extinguished—if breath, it will be dissipated—if harmony, it will be broken—not to speak of those who affirm that it is nothing; but other opinions give hope, that the vital spark, after it has left the body, may mount up to Heaven, as its proper habitation.”

Cicero then proceeds to exhaust the whole Platonic reasoning for the soul's immortality, and its ascent to the celestial regions, where it will explore and traverse all space—receiving, in its boundless flight, infinite enjoyment. From his system of future existence, Cicero excludes all the gloomy fables feigned of the descent to Avernus, the pale murky regions, the sluggish stream, the gaunt hound, and the grim boatman. But even if death is to be considered as the total extinction of sense and feeling, our author still denies that it should be accounted an evil. This view he strongly supports, from a consideration of the insignificance of those pleasures of which we are deprived, and beautifully illustrates, from the fate of many characters distinguished in history, who, by an earlier death, would have avoided the greatest ills of life. Had Metellus died sooner, he would not have laid his sons on the funeral pile—had Pompey expired, when the inhabitants of all Italy were decked with wreaths and garlands, as testimonies of joy for his restoration to health from the fever with which he was seized in Campania, he would not have taken arms unprepared for the contest, nor fled his home and country; nor, having lost a Roman army, would he have fallen on a foreign shore by the sword of a slave⁴³². He completes these illustrations by reference to his own misfortunes; and the arguments which he deduced from them, received, in a few months, a strong and melancholy confirmation.—“Etiam ne mors nobis expedit? qui et domesticis et forensibus solatiis ornamentisque privati, certe, si ante occidissemus, mors nos a malis, non a bonis abstraxisset.”

The same unphilosophical guest, who had asserted that death was a disadvantage, and whom Cicero, in charity to his memory, does not name, is doomed, in the second dialogue, *De Tolerando Dolo*re, to announce the still more untenable proposition, that pain is an evil. But Cicero demonstrated, that its sufferings may be overcome, not by remembrance of the silly Epicurean maxims,—“Short if severe, and light if long,” but by fortitude and patience; and he accordingly censures those philosophers, who have represented pain in too formidable colours, and reproaches those poets, who have described their heroes as yielding to its influence.

In the third book, *De Aegritudine Lenienda*, the author treats of the best alleviations of sorrow. To foresee calamities, and be prepared for them, is either to repel their assaults, or to mitigate their severity. After they have

occurred, we ought to remember, that grieving is a folly which cannot avail us, and that misfortunes are not peculiar to ourselves, but are the common lot of humanity. The sorrow of which Cicero here treats, seems chiefly that occasioned by deprivation of friends and relatives, to which the recent loss of his daughter Tullia, [pg 242]and the composition of his treatise *De Consolatione*, had probably directed his attention.

The fourth book treats *De Reliquis animi Perturbationibus*, including all those passions and vexations, which the author considers as diseases of the soul. These he classes and defines—pointing out, at the same time, the remedy or relief appropriate to each disquietude. In the fifth book, in which he attempts to prove that virtue alone is sufficient for perfect felicity—*Virtutem ad beate vivendum se ipsâ esse contentam*—he coincides more completely with the opinions of the Stoics, than in his work *De Finibus*, where he seems to assent, to the Peripatetic doctrine, “that though virtue be the chief good, the perfection of the other qualities of nature enters into the composition of supreme happiness.”

In these Tusculan Disputations, which treat of the subjects most important and subservient to the happiness of life, the whole discourse is in the mouth of Tully himself;—the Auditor, whose initial letter some editors have whimsically mistaken for that of Atticus, being a mere man of straw. He is set up to announce what is to be represented as an untenable proposition: but after this duty is performed, no English hearer or Welsh uncle could have listened with less dissent and interruption. The great object of Cicero’s continued lectures, is by fortifying the mind with practical and philosophical lessons, adapted to the circumstances of life, to elevate us above the influence of all its passions and pains.

The first conference, which is intended to diminish the dread of death, is the best; but they are all agreeable, chiefly from the frequent allusion to ancient fable, the events of Greek and Roman history, and the memorable sayings of heroes and sages. There is something in the very names of such men as Plato and Epaminondas, which bestows a sanctity and fervour on the page. The references also to the ancient Latin poets, and the quotations from their works, particularly the tragic dramas, give a beautiful richness to the whole composition; and even on the driest topics, the mind is relieved by the

recurrence of extracts characteristic of the vigour of the Roman Melpomene, who, though unfit, as in Greece,

“To wake the soul by tender strokes of art,”

long trod the stage with dignity and elevation.

Paradoxa.—This tract contains a defence of six peculiar opinions or paradoxes of the Stoics, somewhat of the description of those which Cato was wont to promulgate in the Senate. These are, that what is morally fitting (*honestum*) is [pg 243]alone good,—that the virtuous can want nothing for complete happiness—that there are no degrees in crimes or good actions—that every fool is mad—that the wise alone are wealthy—that the wise man alone is free, and that every fool is a slave. These absurd and quibbling positions the author supports, in a manner certainly more ingenious than philosophical. The *Paradoxa*, indeed, seem to have been written as a sort of exercise of rhetorical wit, rather than as a serious disquisition in philosophy; and each paradox is personally applied or directed against an individual. There is no precision whatever in the definitions; the author plays on the ambiguity of the words, *bonum* and *dives*, and his arguments frequently degenerate into particular examples, which are by no means adequate to support his general proposition.

De Naturâ Deorum.—Of the various philosophical works of Cicero, the most curious perhaps, and important, is that on the Nature of the Gods. It is addressed to Brutus, and is written in dialogue. This form of composition, besides the advantages already pointed out, is peculiarly fitted for subjects of delicacy and danger, where the author dreads to expose himself to reproach or persecution. On this account chiefly it seems to have been adopted by the disciples of Socrates. That philosopher had fallen a victim to popular fury,—to those imputations of impiety which have so often and so successfully been repeated against philosophers. In the schools of his disciples, a double doctrine seems to have been adopted for the purpose of escaping persecution, and Plato probably considered the form of dialogue as best calculated to secure him from the imputations of his enemies. It was thus, in later times, that Galileo endeavoured to shield himself from the attacks of error and injustice, and imagined, that by presenting his

conclusions in the Platonic manner, he would shun the malignant vigilance of the Court of Inquisition⁴³³.

In the dialogue *De Naturâ Deorum*, the author presents the doctrines of three of the most distinguished sects among the ancients—the Epicureans, the Stoics, and the Academics—on the important subject of the Nature of the Divine Essence, and of Providence. He introduces three illustrious persons of his country, each elucidating the tenets of the sect that he preferred, and contending for them, doubtless, with the chief arguments which the learning or talents of the author himself could supply. Cicero represents himself as hav[pg 244]ing gone to the house of C. Cotta the Pontifex Maximus, whom he found sitting in his study with C. Velleius, a Senator, who professed the principles of Epicurus, and Q. Lucilius Balbus, a supporter of the doctrines of the Stoics.—“As soon as Cotta saw me, ‘You are come,’ says he, ‘very seasonably, for I have a dispute with Velleius upon an important subject, in which, considering the nature of your studies, it is not improper for you to join.’—‘Indeed,’ said I, ‘I am come very seasonably, as you say, for here are three chiefs of the three principal sects met together.’” Cotta himself is a new Academic, and he proceeds to inform Cicero that they were discoursing on the nature of the gods, a topic which had always appeared to him very obscure, and that therefore he had prevailed on Velleius to state the sentiments of Epicurus upon the subject. Velleius is requested to go on with his arguments; and after recapitulating what he had already said, “with the confidence peculiar to his sect, dreading nothing so much as to seem to doubt about anything, he began, as if he had just then descended from the council of the gods⁴³⁴.”

The discourse of Velleius consists, in a considerable degree, of raillery and declamations directed against the doctrines of different sects, of which he enumerates a great variety, and which supposes in Cicero extensive philosophical erudition, or rather, perhaps, from the slight manner in which they are passed over, that he had taken his account of them from some ancient Diogenes Laertius, or Stanley⁴³⁵.—“I have hitherto,” says Velleius, “rather exposed the dreams of dotards than the opinions of philosophers; and whoever considers how rashly [pg 245]and inconsiderately their tenets are advanced, must entertain a veneration for Epicurus, and rank him in the number of those beings who are the subject of this dispute, for he alone first

founded the existence of the gods, on the impression which nature herself hath made on the minds of men.”

Velleius having concluded his discourse, (the remainder of which can now have little interest as relating to the form of the gods and their apathy,) Cotta, after some compliments to him, enters on a confutation of what he had advanced; and, while admitting that there are gods, he pronounces the reasons given by Velleius for their existence to be altogether insufficient. He then proceeds to attack the other positions of Velleius, with regard to the form of the gods, and their exemption from the labours of creation and providence. His arguments against Anthropomorphism are excellent; and in reply to the hypothesis of Epicurus concerning the indolence of the gods, he inquires, “What reason is there that men should worship the gods, when the gods, as you say, not only do not regard men, but are entirely careless of everything, and absolutely do nothing? But they are, you say, of so glorious a nature, that a wise man is induced by their excellence to adore them. Can there be any glory in that nature, which only contemplates its own happiness, and neither will do, nor does, nor ever did anything? Besides, what piety is due to a being from whom you receive nothing, or how are you indebted to him who bestows no benefits?”

When Cotta has concluded his refutation of Velleius, with which the first book closes, Balbus is next requested to give the sentiments of the Stoics, on the subject of the gods, to which, making a slight excuse, he consents. His first argument for their existence, after shortly alluding to the magnificence of the world, and the prevalence of the doctrine, is “the frequent appearance of the gods themselves. In the war with the Latins,” he continues, “when A. Posthumius, the Dictator, attacked Octavius Mamilius, the Tusculan, at Regillus, Castor and Pollux were seen fighting in our army on horseback, and since that time the same offspring of Tyndarus gave notice of the defeat of Perseus; for P. Vatinus, grandfather of the present youth of that name, coming in the night to Rome, from his government of Reate, two young men on white horses appeared to him, and told him King Perseus was that day taken prisoner. This news he carried to the Senate, who immediately threw him into prison, for speaking inconsiderately on a state affair; but when it was confirmed by letters from Paullus, he was recompensed by the Senate with land and exemption. The voices of the

Fauns have been often heard, and [pg 246]deities have appeared in forms so visible, that he who doubts must be hardened in stupidity or impiety.”

Balbus, after farther arguing for the existence of the gods, from events consequent on auguries and auspices, proceeds to what is more peculiarly the doctrine of the Stoics. He remarks,—“that Cleanthes, one of the most distinguished philosophers of that sect, imputes the idea of the gods implanted in the minds of men, to four causes—The first is, what I just now mentioned, a pre-knowledge of future things: The second is, the great advantages we enjoy from the temperature of the air, the fertility of the earth, and the abundance of various kinds of benefits: The third is, the terror with which the mind is affected by thunder, tempests, snow, hail, devastation, pestilence, earthquakes, often attended with hideous noises, showers of stones, and rain like drops of blood. His fourth cause,” continues Balbus, “and that the strongest, is drawn from the regularity of the motion, and revolution of the heavens, the variety, and beauty, and order of the sun, moon, and stars; the appearance only of which is sufficient to convince us they are not the effects of chance; as when we enter into a house, a school, or court, and observe the exact order, discipline, and method therein, we cannot suppose they are so regulated without a cause, but must conclude there is some one who commands, and to whom obedience is paid; so we have much greater reason to think that such wonderful motions, revolutions, and order of those many and great bodies, no part of which is impaired by the vast infinity of age, are governed by some intelligent being.”

This argument is very well stated, but Balbus, in a considerable degree, weakens its effect, by proceeding to contend, that the world, or universe itself, (the stoical deity,) and its most distinguished parts, the sun, moon, and stars, are possessed of reason and wisdom. This he founds partly on a metaphysical argument, and partly on the regularity, beauty, and order of their motions.

Balbus, after various other remarks, enters on the topic of the creation of the world, and its government by the providence of the gods. He justly observes, that nothing can be more absurd than to suppose that a world, so beautifully adorned, could be formed by chance, or by a fortuitous concourse of atoms⁴³⁶. “He who believes this possible,” says he, “may [pg

247]as well believe, that if a great number of the one-and-twenty letters, composed either of gold, or any other metal, were thrown on the ground, they would fall into such order as legibly to form the Annals of Ennius. I doubt whether fortune could make a single verse of them.” He quotes a very beautiful passage from a now lost work of Aristotle, in which that philosopher urges the argument that may be deduced from providential design, with more soundness and imagination than are usual with him. Balbus then proceeds to display the marks of deliberate plan in the universe, beginning with astronomy. In treating of the constellations, he makes great use of Cicero’s poetical version of Aratus, much of which he is supposed, perhaps with little probability, or modesty in the author, to have by heart; and, accordingly, we are favoured with a considerable number of these verses. He also adduces manifold proofs of design and sovereign wisdom, from a consideration of plants, land animals, fishes, and the structure of the human body; a subject on which Cicero discovers more anatomical knowledge than one should have expected. Balbus also contends that the gods not only provide for mankind universally, but for individuals. “The frequent appearances of the gods,” he observes, “demonstrate their regard for cities and particular men. This, indeed, is also apparent from the foreknowledge of events, which we receive either sleeping or waking.”

Cicero makes Balbus, in the conclusion of his discourse, express but little confidence in his own arguments.—“This is almost the whole,” says he, “that has occurred to my mind, on the nature of the gods, and that I thought proper to advance. Do you, Cotta, if I may advise, defend the same cause. Remember that in Rome you keep the first rank—remember you are Pontifex. It is a pernicious and impious custom, either seriously or seemingly to argue against the gods.”

In the third book of this very remarkable work, Cicero exhibits Cotta as refuting the doctrines of Balbus. “But before I enter on the subject,” says Cotta, “I have a word to say concerning myself; for I am greatly influenced by your authority, and your exhortation at the conclusion of your discourse, to remember I was Cotta, and Pontifex; by which, I presume, you intimated that I should defend the religion and ceremonies which we received from our ancestors: Truly, I always have, and always will defend them, nor shall the arguments, either of the learned or unlearned, ever remove the

opinions I have imbibed concerning the worship of the immortal gods. In matters of religion, I submit to the rules of the High Priests, T. Coruncanius, P. Scipio, and P. Scævola. These, Balbus,” continues he, “are my sentiments, both as a priest and Cotta. But you must bring me to your opinion by the force of your reason; for a philosopher should prove to me the religion he would have me embrace; but I must believe without proof the religion of our ancestors.”

The Pontifex thus professing to believe the existence of the gods merely on the authority of his ancestors, proceeds to ridicule this very authority. He represents the appearances of Castor and Pollux, and those others adduced by Balbus, as idle tales. “Do you take these for fabulous stories?” says Balbus. “Is not the temple built by Posthumius, in honour of Castor and Pollux, to be seen in the Forum? Is not the decree of the Senate concerning Vatienus still subsisting? Ought not such authorities to move you?”—“You oppose me,” replies Cotta, “with stories; but I ask reasons of you.”

A chasm here follows in the original, in which Cotta probably stated the reasons of his scepticism, in spite of the acts of the Senate, and so many public memorials of supernatural facts. “You believe,” continues Cotta, “that the Decii, in devoting themselves to death, appeased the gods. How great, then, was the iniquity of the gods, that they could not be appeased, but at the price of such noble blood!—As to the voice of the Fauns, I never heard it; if you assure me you have, I shall believe you; though I am absolutely ignorant what a Faun is. Truly, Balbus, you have not yet proved the existence of the gods. I believe it, indeed, but not from any arguments of the Stoics. Cleanthes, you said, attributes the idea that men have of the gods to four causes. The first is a foreknowledge of future events; the second,—tempests and other shocks of nature; the third,—the utility and plenty of things we enjoy; the fourth,—the invariable order of the stars and heavens. Foreknowledge I have already answered. With regard to tempests in the air, the sea, and the earth, I own, that many people are affrighted by them, and imagine that the immortal gods are the authors of them. But the question is not, whether there be people who believe there are gods, but whether there are gods or not. As to the two other causes of Cleanthes, one of which is derived from the plenty we enjoy, the other from the invariable order of the

seasons and heavens, [pg 249]I shall treat on them when I answer your discourse concerning the providence of the gods.”

In the meantime, Cotta goes on to refute the Stoical notions with regard to the reason and understanding attributed to the sun, moon, and stars. He then proceeds to controvert, and occasionally to ridicule, the opinions entertained of numerous heathen gods; the three Jupiters, and other deities, and sons of deities.—“You call Jupiter and Neptune gods,” says he; “their brother Pluto, then, is one; Charon, also, and Cerberus, are gods, but that cannot be allowed. Nor can Pluto be placed among the deities; how then can his brothers?” Cotta next ridicules the Stoics for the delight they take in the explication of fables, and in the etymology of names; after which he says, “Let us proceed to the two other parts of our dispute. 1st, Whether there is a Divine Providence that governs the world? and, lastly, Whether that Providence particularly regards mankind? For these are the remaining propositions of your discourse.”

There follows a considerable *hiatus* in the original, so that we are deprived of all the arguments of Cotta on the proposition maintained by Balbus, that there is a Divine Providence which governs the world. At the end of this chasm, we find him quoting long passages from tragedies, and arguing against the advantages of reason, from the ill use which has been made of it. He then adduces a number of instances, drawn from history and observation, of fortunate vice, and of wrecked and ruined virtue, in order to overturn the doctrine of *particular providence*; contending, that as no family or state can be supposed to be formed with any judgment or discipline, if there are no rewards for good actions, or punishment for bad, so we cannot believe that a Divine Providence regulates the world, when there is no distinction between the honest and the wicked.

“This,” concludes Cotta, “is the purport of what I had to say concerning the nature of the gods, not with a design to destroy their existence, but merely to show what an obscure point it is, and with what difficulties an explanation of it is attended.” Balbus observing that Cotta had finished his discourse, “You have been very severe,” says he, “against the being of a Divine Providence, a doctrine established by the Stoics, with piety and wisdom; but, as it grows too late, I shall defer my answer to another

day.”—“There is nothing,” replied Cotta, “I desire more than to be confuted.”—“The conversation ended here, and we parted. Velleius judged that the arguments of Cotta were the truest, but those of Balbus seemed to me to have the greater probability.”

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It seems likely that this profession or pretext, that the discourse is left unfinished, may (like the occasional apologies of Cotta) be introduced to save appearances⁴³⁷. It is evident, however, that Cicero intended to add, at least, new prefaces to the two latter books of this work, probably from suspecting, as he went on, that the discourses are too long to have taken place in one day, as they are now represented. Balbus says, in the second book, “Velut a te ipso, hesterno die dictum est⁴³⁸.” Fulvius Ursinus had remarked that this was an inadvertence, either in Cicero or a transcriber, as the discourse is continued throughout the same day. That it was not owing to a transcriber, or to any inadvertence in Cicero, but to a design of altering the introductions to the second and third books, appears from a passage in book third, where Cotta says to Balbus, “Omniaque, quæ a te *nudiustertius* dicta sunt⁴³⁹.” Now, it is extremely unlikely that there should have been two such instances of inadvertency in the author, or carelessness in the copyist.

The work on the Nature of the Gods, though in many respects a most valuable production, and a convincing proof of the extensive learning of its author, gives a melancholy picture of the state of his mind. Unfitted to bear adversity, and borne down by the calamities of his country, and the death of his beloved daughter, (misfortunes of which he often complains,) Cicero seems to have become a sceptic, and occasionally to have doubted even of a superintending Providence. Warburton appears to be right in supposing, that Cicero was advanced in years before he seriously adopted the sceptical opinions of the new Academy. “This farther appears,” says he, after some remarks on this head, “from a place in his Nature of the Gods, where he says, that his espousing the new Academy of a sudden, was a thing altogether unlooked for⁴⁴⁰. The change, then, was late, and after [pg 251]the ruin of the republic, when Cicero retired from business, and had leisure in his recess to plan and execute this noble undertaking. So that a learned critic appears to have been mistaken, when he supposed the choice of the

new Academy was made in his youth. ‘This sect,’ says he, ‘did best agree with the vast genius, and ambitious spirit, of *young Cicero*⁴⁴¹.’ ”

It appears not, however, to have been, as Warburton supposes, altogether from a systematic plan, of explaining to his countrymen the philosophy of the Greeks, that Cicero became a sceptic; but partly from gloomy views of nature and providence. It seems difficult otherwise to account for the circumstance, that Cotta, an ancient and venerable Consul, the *Pontifex* of the metropolis of the world, should be introduced as contending, even against an Epicurean, for the non-existence of the gods. Lord Bolingbroke has justly remarked, “that Cotta disputes so vehemently, and his arguments extend so far, that Tully makes his own brother accuse him directly, and himself by consequence indirectly, of atheism.—‘*Studio contra Stoicos disserendi deos mihi videtur funditus tollere.*’ Now, what says Tully in his own name? He tells his brother that Cotta disputes in that manner, rather to confute the Stoics than to destroy the religion of mankind.—‘*Magis quam ut hominum deleat religionem.*’ But Quintus answers, that is, Tully makes him answer, he was not the bubble of an artifice, employed to save the appearance of departing from the public religious institutions. ‘*Ne communi jure migrare videatur*⁴⁴².’ ” Cotta, indeed, goes so far in his attack on Providence, that Lord Bolingbroke, who is not himself a model of orthodoxy, takes up the other side of the question against the Roman Pontiff, and pleads the cause of Providence with no little reason and eloquence.⁴⁴³

In the foregoing analysis, or abridgment of the work on the Nature of the Gods, it will have been remarked, that two chasms occur in the argument of Cotta. Olivet enters into some discussion with regard to the latter and larger chasm. “I cannot,” says he, “see any justice in the accusation against the primitive Christians, of having torn this passage out of all the MSS. What appearance is there, that through a pious motive they should have erased this any more than many others in the same book, which they must undoubtedly have looked upon [pg 252]as no less pernicious?” Olivet seems inclined to suspect the Pagans; but, in my opinion, the chasms in the discourse of Cotta, if not accidental, are to be attributed rather to Christian than pagan zeal. Arnobius, indeed, speaking of this work, says, That many were of opinion that it ought to have been destroyed by the Roman Senate,

as the Christian faith might be approved by it, and the authority of antiquity subverted⁴⁴⁴. There is no evidence, however, that any such destruction or mutilation was attempted by the Pagans; and we find that the satire directed against the heathen deities has been permitted to remain, while the chasms intervene in portions of the work, which might have been supposed by a pious zealot, to bear, in some measure, against the Christian, as well as the Pagan faith. In the first of them, the Pontifex begins, and is proceeding to contend, that in spite of Acts of the Senate, temples, statues, and other commemorations of miraculous circumstances, all such prodigies were nothing but mere fables, however solemnly attested, or generally believed. Now, the transcriber might fear, lest a similar inference should be drawn by the sceptic, to that which has in fact been deduced by the English translator of this work, in the following passage of a note:—"Hence we see what little credit ought to be paid to facts, said to be done out of the ordinary course of nature. These miracles are well attested: They were recorded in the annals of a great people—believed by many learned and otherwise sagacious persons, and received as religious truths by the populace; but the testimonies of ancient records, the credulity of some learned men, and the implicit faith of the vulgar, can never prove that to have been, which is impossible in the nature of things ever to be." At the beginning of the other and larger chasm, Cotta was proceeding to argue against the proposition of the Stoics, that there is a Divine Providence which governs the world. Now, there is a considerable analogy between the system of the ancient Stoics, and the Christian scheme of Providence, both in the theoretical doctrine, and in the practical inference, of the propriety of a cheerful and unqualified submission to the chain of events—to the dispensations of nature in the Stoical, and of God in the purer doctrine. To Christian zeal, therefore, rather than to pagan prudence, we must attribute the two chasms which now intervene in the discourse of Cotta.

In the remarks which have been now offered on this work, *De Naturâ Deorum*, I trust I have brought no unfounded or [pg 253]uncharitable accusation against Cicero. He was a person, at least in his own age and country, of unrivalled talents and learning—he was a great, and, on the whole, a good man—but his mind was sensitive, and feeble against misfortune. There are æras, and monuments perhaps in every æra, when we are ready to exclaim with Brutus, "That virtue is an empty name:" And the

doubts and darkness of such a mind as that of Cicero, enriched with all the powers of genius, and all the treasures of philosophy, afford a new proof of the necessity for the appearance of that Divine Messenger, who was then on the eve of descending upon earth.

De Divinatione.—The long account which has been given of the dialogue on the Nature of the Gods, renders it unnecessary to say much on the work *De Divinatione*. This treatise may be considered, in some measure, as a supplement to that *De Naturâ Deorum*. The religion of the Romans consisted of two different branches—the worship of the gods, and the observation of the signs by which their will was supposed to be revealed. Cicero having already discussed what related to the nature and worship of the gods, a treatise on Divination formed a natural continuation of the subject⁴⁴⁵. In his work on this topic, which was one almost peculiar to the Romans, Cicero professes to relate the substance of a conversation held at Tusculum with his brother, in which Quintus, on the principles of the Stoics, supported the credibility of divination, while Cicero himself controverted it. The dialogue consists of two books, the first of which comprehends an enumeration by Quintus of the different kinds or classes of divination, with the reasons or presumptions in their favour. The second book contains a refutation by Cicero of his brother's arguments.

Quintus, while walking with his brother in the Lyceum at Tusculum, begins his observations by stating, that he had read the third book which Cicero had lately written, on the Nature of the Gods, in which Cotta seemed to contend for atheism, but had by no means been able to refute Balbus. He remarks, at the same time, that the subject of divination had not been treated of in these books, perhaps in order that it might be separately discussed more fully, and that he would gladly, if his brother had leisure and inclination, state his own opinions on the subject. The answer of Cicero is very noble.—“Ego vero, inquam, Philosophiæ, Quinte, semper [pg 254]vaco. Hoc autem tempore, quum sit nihil aliud quod libenter agere possim multo magis aveo audire de divinatione quid sentias.”

Quintus, after observing that divinations of various kinds have been common among all people, remarks, and afterwards frequently repeats, that it is no argument against different modes of divination, that we cannot

explain how or why certain things happen. It is sufficient, that we know from experience and history, that they do happen⁴⁴⁶. He contends that Cicero himself supports the doctrine of divination, in the poem on his Consulship, from which he quotes a long passage, sufficient to console us for the loss of that work. He argues, that although events may not always succeed as predicted, it does not follow that divination is not an art, more than that medicine is not an art, because cures may not always be effected. In the course of this book we have a complete account of the state contrivances which were practised by the Roman government, to instil among the people those hopes and fears whereby it regulated public opinion, in which view it has been justly termed a chapter in the history of man. The great charm, however, of the first book, consists in the number of histories adduced by Quintus, in proof of the truth of different kinds of omens, dreams, portents, and divinations.—“Negemus omnia,” says he, “comburamus annales.” He states various circumstances consistent with his and his brother’s own knowledge; and, among others, two remarkable dreams, one of which had occurred to Cicero, and one to himself. He asks if the Greek history be also a fable.—“Num etiam Græcorum historia mentita est?” and, in short, throughout takes the following high ground:—“Quid est, igitur, cur dubitandum sit, quin sint ea, quæ disputavi, verissima? Si ratio mecum facit, si eventa, si populi, si nationes, si Græci, si barbari, si majores etiam nostri, si summi philosophi, si poetæ, et sapientissimi viri qui res publicas constituerunt, qui urbes condiderunt; si denique hoc semper ita putatum est: an dum bestiæ loquantur, expectamus, hominum consentiente auctoritate, contenti non sumus⁴⁴⁷?”

The second book of this work is introduced by a preface, in which Cicero enumerates the philosophical treatises which he had lately written. He then proceeds to state, that at the conclusion of the discourse of Quintus, which was held while they were walking in the Lyceum, they sat down in the library, and he began to reply to his brother’s arguments. His commencement is uncommonly beautiful.—“Atque ego; Accurate tu [pg 255]quidem, inquam, Quinte, et Stoice Stoicorum sententiam defendisti: quodque me maxime delectat, plurimis nostris exemplis usus es, et iis quidem claris et illustribus. Dicendum est mihi igitur ad ea, quæ sunt a te dicta, sed ita, nihil ut affirmem, quæram omnia, dubitans plerumque, et mihi ipse diffidens⁴⁴⁸.” It is unnecessary to give any summary of the arguments

of Cicero against auguries, auspices, astrology, lots, dreams, and every species of omens and prodigies. His discourse is a masterpiece of reasoning; and if sufficiently studied during the dark ages of Europe, would have sufficed, in a great degree, to have prevented or dispelled the superstitious gloom. Nothing can be finer than the concluding chapter on the evils of superstition, and Cicero's efforts to extirpate it, without injuring religion. The whole thread, too, of his argumentative eloquence, is interwoven and strengthened by curious and interesting stories. As a specimen of the agreeable manner in which these are introduced, the twenty-fourth chapter may be cited:—"Vetus autem illud Catonis admodum scitum est, qui mirari se aiebat, quod non rideret haruspex, haruspicem quum vidisset. Quota enim quæque res evenit prædicta ab ipsis? Aut si evenit quippiam, quid afferri potest, cur non casu id evenerit? Rex Prusias, quum Annibali apud eum exsulanti depugnari placeret, negabat se audere, quod exta prohiberent. An tu, inquit, carunculæ vitulinæ mavis, quam imperatori veteri, credere? Quid? Ipse Cæsar, quum a summo haruspice moneretur, ne in Africam ante brumam transmitteret, nonne transmisit? Quod ni fecisset, uno in loco omnes adversariorum copiæ convenissent. Quid ego haruspicum responsa commemorem, (possum equidem innumerabilia,) quæ aut nullos habuerunt exitus, aut contrarios? Hoc civili bello, Dii Immortales! Quam multa luserunt—quæ nobis in Græciam Româ responsa haruspicum missa sunt? Quæ dicta Pompeio? Etenim ille admodum extis et ostentis movebatur. Non lubet commemorare, nec vero necesse est, tibi præsertim, qui interfuisti. Vides tamen, omnia fere contra, ac dicta sunt, evenisse." One great charm of all the philosophical works of Cicero, and particularly of this treatise, consists in the anecdotes with which they abound. This practice of intermingling histories, might have been partly owing to Tully's habits as a pleader—partly to the works having been composed in "narrative old age." His moral conclusions seem thus occasionally to have the certainty of physical experiments, by the support which they receive from occurrences, suggested to him by his wide experience; while, at the same time,—

“His candid style, like a clean stream doth slide,
And his bright fancy, all the way,
Doth like the sun-shine on it play⁴⁴⁹.”

De Fato.—This tract, which is the last of Cicero’s philosophical works, treats of a subject which occupied as important a place in the metaphysics and theology of the ancients, as free will and necessity have filled in modern speculation. The dialogue *De Fato* is held in the villa of Cicero, called the Puteolan or the Academia, which was situated on the shore of Baiæ, between the lake Avernus and the harbour of Puteoli. It stood in the curve of the bay, and almost on the beach, so as to enjoy the breezes and murmurs of the sea. The house was built according to the plan of the Academy at Athens, being adorned with a portico and grove, for the purposes of philosophical conference⁴⁵⁰; and with a gallery, which surrounded a square court in the centre. “Twelve or thirteen arches of the Puteolan villa,” says Mr Kelsall, “are still seen on the side next the vineyard, and, intermixed as they are with trees, are very picturesque seen from the sea. These ruins are about one mile from Pozzuolo, and have always been styled *l’Academia di Cicerone*. Pliny is very circumstantial in the description of the site, ‘*Ab Averno lacu Puteolos tendentibus imposita littori.*’ The classical traveller will not forget that the Puteolan villa is the scene of some of the orator’s philosophical works. I searched in vain for the mineral spring commemorated by Laurea Tullius, in the well-known complimentary verses preserved by Pliny; for it was defaced by the convulsions which the whole of this tract experienced in the 16th century, so poetically described in Gray’s hexameters.” After the death of Cicero, the villa was acquired by Antistius Vetus, who repaired and improved it. It was subsequently possessed by the Emperor Hadrian, who, while expiring here⁴⁵¹, breathed out the celebrated address to his fleeting, fluttering soul, on its approaching departure for those cold and pallid regions, that must have formed in his fancy such a gloomy contrast to the glowing sunshine and animated shore which he left with so much reluctance.

The dialogue is held between Cicero and Hirtius, on one of the many occasions on which they met to consult concerning the situation of public affairs. Hirtius was the author of [pg 257]the Commentaries on the Civil Wars, and perished a few months afterwards, at the battle of Modena, in the moment of victory. The wonderful events which had recently occurred, and the miserable fate of so many of the greatest and most powerful of the Romans, naturally introduced a conversation on destiny. We have now neither the commencement nor conclusion of the dialogue; but some critics have supposed that it originally consisted of two books, and that the fragment we at present possess formed part of the second book—an opinion which seems justified by a passage in the seventeenth chapter of the second book, where the first conversation is cited. Others, however, refer these words to a separate and previous work on Fate. The part of the dialogue now extant, contains a refutation of the doctrine of Chrysippus the Stoic, which was that of fatality. “The spot,” says Eustace, “the subject, the speakers, both fated to perish in so short a time, during the contest which they both foresaw, and endeavoured in vain to avert, were circumstances which give a peculiar interest to this dialogue, and increase our regret that it has not reached us in a less mutilated state⁴⁵².”

I have now enumerated what may be strictly regarded as the philosophical and theological writings of Cicero. Some of the advantages to be derived from these productions, have already been pointed out during our progress. But on a consideration of the whole, it is manifest that the chief profit accruing from them, is the satisfactory evidence which they afford of the little reason we have to regret the loss of the writings of Zeno, Cleanthes, Chrysippus, and other Greek philosophers. The intrinsic value of these works of Cicero, consists chiefly in what may be called the Roman portion of them—in the anecdotes of distinguished Romans, and of the customs and opinions of that sovereign people.

We now proceed to the *moral* writings of Cicero, of which the most important is the work *De Officiis*. The ancient Romans had but an imperfect notion of moral obligations; their virtues were more stern than amiable, and their ardent exclusive patriotism restricted the wide claims of philanthropy, on the one hand, and of domestic duties, on the other. Panætius, a Greek philosopher, who resided at Rome, in the time of Scipio, wrote a book

entitled *Περὶ Καθηκόντος*. He divided his subject according to the threefold considerations which he conceived should operate in determining our resolutions with regard to the performance of moral duties; 1. Whether the thing itself be virtuous or shameful; 2. Whether it conduce to [pg 258]utility and the enjoyment of life; 3. What choice is to be made when an apparent utility seems to clash with virtue. Cicero followed nearly the same arrangement. In the first book he treats of what is virtuous in itself, and shows in what manner our duties are founded in morality and virtue—in the right perception of truth, justice, fortitude, and decorum; which four qualities are referred to as the constituent parts of virtue, and the sources from which all our duties are drawn. In the second book, the author enlarges on those duties which relate to utility, the improvement of life, and the means employed for the attainment of wealth and power. This division of the work principally regards political advancement, and the honourable means of gaining popularity, as generosity, courtesy, and eloquence. Thus far Cicero had, in all probability, closely followed the steps of Panætius. Garve, in his commentary on this work⁴⁵³, remarks, that it is quite clear, when he comes to the more subtle and philosophic parts of his subject, that Cicero translates from the Greek, and that he has not always found words in his own language to express the nicer distinctions of the Greek schools. The work of Panætius, however, was left imperfect, and did not treat of the third part of the subject, the choice and distinction to be made when there was a jarring or inconsistency between virtue and utility. On this topic, accordingly, Cicero was left to his own resources. The discussion, of course, relates only to the subordinate duties, as the true and undoubted *honestum* never can be put in competition with private advantage, or be violated for its sake. As to the minor duties, the great maxim inculcated is that nothing should be accounted useful or profitable but what is strictly virtuous, and that, in fact, there ought to be no separation of the principles of virtue and utility. Cicero enters into some discussion, however, and affords some rules to enable us to form a just estimate of both in cases of doubt, where seeming utility comes into competition with virtue. Accordingly, he proposes and decides a good many questions in casuistry, in order to fix in what situations one may seek private gain with honour. He takes his examples from Roman history, and particularly considers the case of Regulus in the obligation of his oath, and the advice which he gave to the Roman Senate. The author disclaims having been indebted to any preceding

writers on this subject; but it appears, from what he afterwards states, that the sixth book of the work of Hecato, a scholar of Panætius, was full of questions of this kind: As, for example—If something must be thrown into the sea to lighten a vessel in a storm, whether one should sacrifice a valuable horse, or a worthless slave? Whether, if, during a shipwreck, a fool has got hold of a plank, a wise man ought to take it from him, if he be able? If one, unknowingly, receives bad money for his goods, may he pay it away to a third hand, after he is aware that it is bad? Diogenes, it seems, one of the three philosophic ambassadors who came to Rome from Athens, in the end of the sixth century, maintained the affirmative of this last proposition.

The subject being too extensive for dialogue, (the form of his other philosophical treatises,) the author has addressed the work *De Officiis* to his son, and has represented it as written for his instruction. “It is,” says Kelsall, “the noblest present ever made by a parent to a child.” Cicero declares, that he intended to treat in it of all the duties⁴⁵⁴; but it is generally considered to have been chiefly drawn up as a manual of political morality, and as a guide to young Romans of his son’s age and distinction, which might enable them to attain political eminence, and to tread with innocence and safety “the slippery steeps of power.”

De Senectute.——

“O Thou all eloquent, whose mighty mind
Streams from the depths of ages on mankind,
Streams like the day—who angel-like hast shed
Thy full effulgence on the hoary head;
Speaking in Cato’s venerable voice—
“Look up and faint not—faint not, but rejoice”—
From thy Elysium guide us⁴⁵⁵.”

The treatise *De Senectute* is not properly a dialogue, but a continued discourse, delivered by Cato the Censor, at the request of Scipio and Lælius. It is, however, one of the most interesting pieces of the kind which have descended to us from antiquity; and no reader can wonder that Cicero experienced such pleasure in its composition, that the delightful employment, not only, as he says, made him forget the infirmities of old

age, but rendered that portion of existence agreeable. In consequence of the period of life to which Cicero had attained, at the time of its composition, and the circumstances in which he was then placed, it must, indeed, have been penned with peculiar interest and feeling. It was written by him in his 63d year, and is addressed to his friend Atticus, (who reached the same term of existence,) with a view of rendering to both the accumulating burdens of age as [pg 260]light as possible. In order to give his precepts the greater force, he represents them as delivered by the elder Cato, (while flourishing in the eighty-fourth year of a vigorous and useful old age,) on occasion of young Scipio and Lælius expressing their admiration at the wonderful ease with which he still bore the load of life. This affords the author an opportunity of entering into a full explanation of his ideas on the subject. His great object is to show that the closing period of life may be rendered, not only tolerable, but comfortable, by internal resources of happiness. He reduces those causes which are commonly supposed to constitute the infelicity of advanced age, under four general heads:—That it incapacitates from mingling in the affairs of the world—that it produces infirmities of body—that it disqualifies for the enjoyment of sensual gratifications—and that it brings us to the verge of death. Some of these supposed disadvantages, he maintains, are imaginary, and for any real pleasures of which old men are deprived, others more refined and higher may be substituted. The whole work is agreeably diversified and illustrated by examples of eminent Roman citizens, who had passed a respected and agreeable evening of life. Indeed, so much is said of those individuals who reached a happy old age, that it may rather be styled a Treatise on Old Men, than on Old Age. On the last point, the near approach of death, it is argued, conformably to the first book of the Tusculan Questions, that if death extinguish the soul's existence, it is utterly to be disregarded, but much to be desired, if it convey her to a happier region. The apprehension of future punishment, as in the Tusculan Disputations, is laid entirely aside, and it is assumed as a principle, that, after death, we either shall not be miserable, or be superlatively happy. In other respects, the tract *De Senectute* almost seems a confutation of the first book of the Tusculan Questions, which is chiefly occupied in showing the wretchedness of long-protracted existence. The sentiments put into the mouth of Cato, are acknowledged by Cicero as his own; but, notwithstanding this, and also a more elegant and polished style of composition than could be expected from the Censor, many

characteristics of his life, conversation, and manners, are brought before us—his talk is a little boastful, and his sternness, though softened down by old age into an agreeable gossiping garrulity, is still visible; and, on the whole, the discourse is so managed, that we experience, in reading it, something of that complaisant respect, which we feel in intercourse with a venerable old man, who has around him so much of the life to [pg 261]come, as to be purified at least from the grosser desires of this lower world.

It has been remarked as extraordinary, that, amidst the anxious enumeration of the comforts of age, those arising from domestic society are not mentioned by Cicero; but his favourite daughter Tullia was now no more, and the husband of Terentia, the father of Marcus Cicero, and the father-in-law of Dolabella, may have felt something on that subject, of which he was willing to spare himself the recollection. But though he has omitted what we number among its chief consolations, still he has represented advanced age under too favourable a view. He denies, for instance, that the memory is impaired by it—asserting, that everything continues to be remembered, in which we take an interest, for that no old man ever forgot where he had concealed his treasure. He has, besides, only treated of an old age distinguished by deeds or learning, terminating a life great and glorious in the eyes of men. The table of the old man whom he describes, is cheered by numerous friends, and his presence, wherever he appears, is hailed by clients and dependants. All his examples are drawn from the higher and better walks of life. In the venerable picture of the Censor, we have no traces of second childhood, or of the slippered pantaloons, or of that melancholy and almost frightful representation, in the tenth satire of Juvenal. But even persons of the station, and dignity, and talents of Cato, are, in old age, liable to weaknesses and misfortunes, with which the pleasing portrait, that Tully has drawn, is in no way disfigured:—

“In life’s last scene, what prodigies surprise,
Fears of the brave, and follies of the wise!
From Marlborough’s eyes the tears of dotage flow,
And Swift expires a driveller and a show.”

The treatise *De Senectute* has been versified by Denham, under the title of *Cato Major*. The subject of the evils of old age is divided, as by Cicero, into

four parts. “I can neither,” says he, in his preface, “call this piece Tully’s nor my own, being much altered from the original, not only by the change of the style, but by addition and subtraction.” In fact, the fine sentiments are Cicero’s—the doggerel English verse, into which he has converted Cicero’s classical prose, his own. The fourth part, on the approach of death, is that which is best versified.

This tract is also the model of the dialogue *Spurinna, or the Comforts of Old Age*, by Sir Thomas Bernard. Hough, Bishop of Worcester, who is in his ninetieth year at the date [pg 262] of the conference, supposed to be held in 1739, is the Cato of the dialogue. The other interlocutors are Gibson, Bishop of London, and Mr Lyttleton, subsequently Lord Lyttleton. After considering, in the same manner as Cicero, the disadvantages of old age, the English author proceeds to treat of its advantages, and the best mode of increasing its comforts. Many ideas and arguments are derived from Cicero; but among the consolations of advanced age, the promises of revelation concerning a future state of happiness, to which the Roman was a stranger, are prominently brought forward, and the illustrations are chiefly drawn from British, instead of Grecian or Roman history.

De Amicitia.—In this, as in all his other dialogues, Cicero has most judiciously selected the persons whom he introduces as speakers. They were men of eminence in the state; and though deceased, the Romans had such a just veneration for their ancestors, that they would listen with the utmost interest even to the supposed conversation of the ancient heroes or sages of their country. Such illustrious names bestowed additional dignity on what was delivered, and even now affect us with sentiments of veneration far superior to that which is felt for the itinerant sophists, who, with the exception of Socrates, are the chief speakers in the dialogues of Plato.

The memorable and hereditary friendship which subsisted between Lælius and the younger Scipio Africanus, rendered them the most suitable characters from whom the sentiments expressed on this delightful topic could be supposed to flow. Their mutual and unshaken attachment threw an additional lustre over the military glory of the one, and the contemplative wisdom of the other. “Such,” says Cicero in the introduction to the treatise

De Republicâ, “was the common law of friendship between them, that Lælius adored Africanus as a god, on account of his transcendent military fame; and that Scipio, when they were at home, revered his friend, who was older than himself, as a father⁴⁵⁶.” The kindred soul of Cicero appears to have been deeply struck with this delightful assemblage of all the noblest and loveliest qualities of our nature. The friendship which subsisted between himself and Atticus was another beautiful example of a similar kind: And the dialogue *De Amicitîâ* is accordingly addressed with peculiar propriety to Atticus, who, as Cicero tells him in his dedication, could not fail to discover his own portrait in the delineation of [pg 263]a perfect friend. This treatise approaches nearer to dialogue than that *De Senectute*, for there is a story, with the circumstances of time and place. Fannius, the historian, and Mucius Scævola, the Augur, both sons-in-law of Lælius, paid him a visit immediately after the sudden and suspicious death of Scipio Africanus. The recent loss which Lælius had thus sustained, leads to an eulogy on the inimitable virtues of the departed hero, and to a discussion on the true nature of that tie by which they had been so long connected. Cicero, while in his earliest youth, had been introduced by his father to Mucius Scævola; and hence, among other interesting matters which he enjoyed an opportunity of hearing, he was one day present while Scævola related the substance of the conference on Friendship, which he and Fannius had held with Lælius a few days after the death of Scipio. Many of the ideas and sentiments which the mild Lælius then uttered, are declared by Scævola to have originally flowed from Scipio, with whom the nature and laws of friendship formed a favourite topic of discourse. This, perhaps, is not entirely a fiction, or merely told to give the stamp of authenticity to the dialogue. Some such conversation was probably held and related; and I doubt not, that a few of the passages in this celebrated dialogue reflect the sentiments of Lælius, or even of Africanus himself.

The philosophical works of Cicero, which have been hitherto enumerated, are complete, or nearly so. But it is well known that he was the author of many other productions which have now been entirely lost, or of which only fragments remain.

Of these, the most important was the Treatise *De Republicâ*, which, in the general wreck of learning, shared the fate of the institutions it was intended

to celebrate. The greater part of this dialogue having disappeared along with the *Origines* of Cato, the works of Varro, and the History of Sallust, we have been deprived of all the writings which would have thrown the most light on the Roman institutions, manners, and government—of everything, in short, which philosophically traced the progress of Rome, from its original barbarism to the perfection which it had attained in the age of the second Scipio Africanus.

There are few monuments of ancient literature, of which the disappearance had excited more regret, than that of the work *De Republicâ*, which was long believed to have been the grand repository of all the political wisdom of the ancients. The great importance of the subject—treated, too, by a writer at once distinguished by his genius and former [pg 264]official dignity; the pride and predilection with which the author himself speaks of it, and the sublimity and beauty of the fragment entitled *Somnium Scipionis*, preserved from it by Macrobius, all concurred to exalt this treatise in the imagination of the learned, and to exasperate their vexation at its loss. The fathers of the church, particularly Lactantius, had afforded some insight into the arguments employed in it on different topics; several fragments existed in the works of the grammarians, and a complete copy was extant as late as the 11th century. Since that time the literary world have been flattered at different periods with hopes of its discovery; but it is only within the last few years that such a portion of it has been recovered, as may suffice, in a considerable degree, to satisfy curiosity, though not perhaps to fulfil expectation.

It is well known to many, and will be mentioned more fully in the [Appendix](#), that owing to a scarcity of papyrus and parchment, it was customary, at different times, to erase old, in order to admit new, writing. To a MS. of this kind, the name of Palimpsest has been given—a term made use of by Cicero himself. In a letter to the lawyer Trebatius, who had written to him on such a sheet, Cicero says, “that while he must praise him for his parsimony in employing a palimpsest, he cannot but wonder what he had erased to scribble such a letter, except it were his law notes: For I cannot think,” adds he, “that you would efface my letter to substitute your own⁴⁵⁷.” This practice became very common in the middle ages, when both the papyrus and parchment were scarce, and when the classics were, with

few exceptions, no longer the objects of interest. Montfaucon had remarked, that these obliterated MSS. were perhaps more numerous than those which had been written on for the first time⁴⁵⁸. But though in some cases the original writing was still visible on close observation, no practical use was made of such inspection till Angelo Mai published some fragments recovered from palimpsest MSS. in the Ambrosian library, of which he was keeper. Encouraged by his success, he persevered in this new pursuit, and published at intervals fragments of considerable value. At length, being called to Rome as a recompense for his learned labours, Mai prosecuted in the Vatican those noble researches which he had commenced at Milan; and it is to him we now owe the discovery and publication of a considerable portion of Cicero *De Republicâ*, which had been expunged, (it is supposed in [pg 265]the 6th century,) and crossed by a new writing, which contained a commentary by St Augustine on the Psalms⁴⁵⁹.

The work *De Republicâ* was begun by Cicero in the month of May, in the year 699, when the author was in the fifty-second year of his age, so that, of all his philosophical writings, it was at least the earliest commenced. In a letter to his brother Quintus, he tells him that he had employed himself in his Cuman and Pompeian villas, in writing a large and laborious political work; that, should it succeed to his mind, it would be well, but, if not, he would cast it into that sea which was in view when he wrote it; and, as it was impossible for him to be idle, commence some other undertaking⁴⁶⁰. He had proceeded, however, but a little way, when he repeatedly changed the whole plan of the work; and it is curious to perceive, that an author of so perfect a genius as Cicero, had similar advices from friends, and the same discouragement, and doubts, and irresolution, which agitate inferior writers.

When he had finished the first and second books, they were read to some of his friends at his Tusculan villa. Sallust, who was one of the company present, advised him to change his plan, and to treat the subject in his own person—alleging that the introduction of those ancient philosophers and statesmen, to whom Cicero had assigned parts in the dialogue, instead of adding gravity, gave a fictitious air to the argument, which would have greater weight if delivered from Cicero himself, as being the work, not of a sophist or contemplative theorist, but of a consular senator and statesman, conversant in the greatest affairs, and writing only what his own experience

had taught him to be true. These reasons seemed to Cicero very plausible, and for some time made him think of altering his plan, especially since, by placing the scene of the dialogue so far back, he had precluded himself from touching on those important revolutions in the Republic, which were later than the period to which he had confined himself. But after some deliberation, feeling reluctant to throw away the [pg 266]two books which were already finished, and with which he was much pleased, he resolved to adhere to his original plan⁴⁶¹. And as he had preferred it from the first, for the sake of avoiding offence, so he pursued it without any other alteration than that he now limited to six what he had before proposed to extend to nine books. These six were made public previously to his departure for the government of Cilicia. While there, he received the epistolary congratulations of his friends on their success⁴⁶², and in his answers he discloses all the delight of a gratified and successful author⁴⁶³.

Mai discusses at considerable length the question, To whom the treatise *De Republicâ* was dedicated. The beginning of the proœmium to the first book, which might have determined this point, is lost; but the author says, “Disputatio repetenda memoriâ est, quæ mihi, *tibique quondam adolescentulo*, est a P. Rutilio Rufo, Zmyrnæ cùm simul essemus, complures dies exposita.” Cicero was at Smyrna in the twenty-ninth year of his age, and it is evident that his companion, to whom this treatise is dedicated, was younger than himself, as he says, “Mihi, *tibique quondam adolescentulo*.” Atticus was two years older than Cicero, and therefore could not be the person. In fact, there is every reason to suppose that the treatise *De Republicâ* was dedicated to its author’s younger brother Quintus, who, as we know from the proœmium of the last book, *De Finibus*, was with Cicero at Athens during the voyage, in the course of which he touched at Smyrna—who probably attended him to Asia,—and whose age suited the expression “mihi, *tibique adolescentulo*.” Add to this, that Cicero, when he mentions to his brother, (in the passage of the letter above referred to,) that he meant to alter the plan of his work, says, “Nunc loquar ipse *tecum*, et tamen illa quæ institueram ad te, si Romam venero, mittam⁴⁶⁴.” The work in its first concoction, therefore, was addressed to Quintus, and, as the author, after some hesitation, published it nearly in its original form, it can scarcely be doubted that it was still dedicated to his brother.

The first book *De Republicâ*, which was one of those read by Cicero to Sallust and some other friends, in his Tusculan villa, is, as already mentioned, imperfect at the commencement. Not much, however, seems to be wanting, and a prologue of considerable length still remains, in which the author [pg 267](pleading, perhaps, his own cause) combats the opinions of philosophers, who, preferring a contemplative to an active life, blame those who engage in public affairs. To the former he opposes the example of many wise and great men, and answers those objections to a busy political life, which have been repeatedly urged against it. This prologue contains some good reasoning, and, like all the writings of its illustrious author, displays a noble patriotic feeling. He remarks, that he had entered into this discussion as introductory to a book concerning the republic, since it seemed proper, as prefatory to such a work, to combat the sentiments of those who deny that a philosopher should be a statesman. “As to the work itself,” says he, addressing (as I have supposed) his brother, “I shall lay down nothing new or peculiar to myself, but shall repeat a discussion which once took place among the most illustrious men of their age, and the wisest of our state, such as it was related to myself, and to you when a youth, by P. Rutilius Rufus, when we were with him some days at Smyrna—in which discussion nothing of importance to the right constitution of a commonwealth, appears to have been omitted.”

The author then proceeds to mention, that during the consulship of Tuditanus and Aquilius, (as he had heard from Rufus,) the younger Scipio Africanus determined to pass the Latin festivals (*Latinæ Feriæ*) in his gardens, where some of his most intimate friends had promised to visit him. The first of these who makes his appearance is his nephew, Quintus Tubero, a person devoted to the Stoical philosophy, and noted for the austerity of his manners. A remark which Tubero makes about two suns, a prodigy which, it seems, had lately appeared in the heavens, leads Scipio to praise Socrates for his abandonment of physical pursuits, as neither very useful to man, nor capable of being thoroughly investigated—a sentiment (by the way) which, with all due submission to the Greek philosopher, does little credit to his sagacity, as physical inquiries have been not only highly useful to mankind, but are almost the only subjects in which accurate science has been attained. Furius, Philus, and Rutilius, who is stated to have related the discussion to Cicero, now enter, and, at last, comes Lælius, attended by his friend,

Spurius Mummius, (brother to the well-known connoisseur in the fine arts who took Corinth,) and by his two sons-in-law, C. Fannius and Q. Scævola. After saluting them, Scipio, as it was now winter, takes them to a sunny spot, in a meadow, and in proceeding thither the party is joined by M. Manilius.

“In this choice of his principal speakers, Cicero,” as has been well remarked, “was extremely judicious and happy. It [pg 268]was necessary that the persons selected should have been distinguished both as statesmen and as scholars, in order that a philosophical discussion might appear consistent with their known characters, and that a high political reputation might give authority to their remarks on government. Scipio and Lælius united both these requisites in a remarkable degree. They were among the earliest of the Romans who added the graces of Grecian taste and learning to the manly virtues of their own ruder country. These accomplishments had refined and polished their characters, without at all detracting from their force and purity. The very name of the Scipios, the *duo fulmina belli*, was the symbol of military talent, patriotism, and magnanimity: Lælius was somewhat less distinguished in active life; but enjoyed, on the other hand, a still higher reputation for contemplative wisdom⁴⁶⁵.”

After the party had been all seated, the subject of the two suns is resumed; and Lælius, while he remarks that they had enough to occupy attention in matters more at hand, adds, that since they were at present idle, he for his part, had no objection to hear Philus, who was fond of astronomical pursuits, on the subject. Philus, thus encouraged, proceeds to give an account of a kind of Orrery, which had been formed by Archimedes, and having been brought to Rome by Marcellus, its structure, as well as uses, had on one occasion, when Philus was present, been explained by C. Sulpicius Gallus. The application of this explanation to the phenomenon of the two suns is lost, as a *hiatus* of eight pages here occurs in the palimpsest. Probably, the solution of the problem would not, if extant, make a great figure in the *Philosophical Transactions*. But one cannot fail to admire the discursive and active genius of Cicero, who considered all knowledge as an object deserving ardent pursuit⁴⁶⁶.

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At the end of the *hiatus*, we find Scipio, in reference to Gallus's astronomical knowledge, which had been celebrated by Philus, relating, that when his father, Paulus Æmilius, commanded in Macedonia, the army being terrified by an eclipse, Gallus had calmed their fears by explaining the phænomenon—an anecdote, which, with another similar to it here told of Pericles, proves the value of physical pursuits, and their intimate connection with the affairs of life. This inference seems to have been drawn in a passage which is lost; and several beautiful sentiments follow, similar to some of those in the *Somnium Scipionis*, on the calm exquisite delights of meditation and science, and on the littleness of all earthly things, when compared with immortality or the universe. “Quid porro,” says Scipio, in the most elevated tone of moral and intellectual grandeur—“quid porro aut præclarum putet in rebus humanis, qui hæc deorum regna perspexerit? aut diuturnum, qui cognoverit quid sit æternum? aut gloriosum, qui viderit quàm parva sit terra, primum universa, deinde ea pars ejus quam homines incolant, quamque nos in exiguâ ejus parte adfixi, plurimis ignotissimi gentibus, speremus tamen nostrum nomen volitare et vagari latissime? Agros, vero, et ædificia, et pecudes, et immensum argenti pondus atque auri, qui bona nec putare nec appellare soleat, quod earum rerum videatur ei, levis fructus, exiguus usus, incertus dominatus, sæpe etiam teterrimorum hominum immensa possessio. Quàm est hic fortunatus putandus, cui soli vere liceat omnia non Quiritium sed sapientium jure pro suis vindicare! nec civili nexu, sed communi lege naturæ, quæ vetat ullam rem esse cujusquam nisi ejus qui tractare et uti sciat: qui imperia consulatusque [pg 270]nostros in necessariis non in expetendis rebus muneris fungendi gratiâ subeundos, non præmiorum aut gloriæ causâ adpetendos putet: qui denique ut Africanum avum meum scribit Cato solitum esse dicere, possit idem de se prædicare, nunquam se plus agere, quàm nihil cùm ageret; nunquam minus solum esse, quàm cùm solus esset.

“Quis enim putare vere potest plus egisse Dionysium tum cùm omnia moliendo eripuerit civibus suis libertatem, quàm ejus civem Archimedes, cùm istam ipsam Sphæram, nihil cùm agere videretur, effecerit? Quis autem non magis solos esse qui in foro turbâque quicum conloqui libeat non habeant, quam qui nullo arbitro vel secum ipsi loquantur, vel quasi doctissimorum hominum in concilio adsint cùm eorum inventis scriptisque se oblectent? Quis vero divitiorem quemquam putet, quàm eum cui nihil

desit, quod quidem natura desideret? aut potentiores quàm illum, qui omnia quæ expetat, consequatur? aut beatiores quàm qui sit omni perturbatione animi liberatus?”

Lælius, however, is no way moved by these sonorous arguments; and still persists in affirming, that the most important of all studies are those which relate to the *Republic*, and that it concerned them to inquire, not why two suns had appeared in heaven, but why, in the present circumstances, (alluding to the projects of the Gracchi,) there were two senates, and almost two peoples. In this state of things, therefore, and since they had now leisure, their fittest object would be to learn from Scipio what he deemed the best condition of a commonwealth. Scipio complies with this request, and begins with defining a republic; “Est igitur respublica res populi—populus autem non omnis hominum cœtus quoquo modo congregatus, sed cœtus multitudinis juris consensu.” In entering on the nature of what he had thus defined, he remounts to the origin of society, which he refers entirely to that social spirit which is one of the principles of our nature, and not to hostility, or fear, or compact. A people, when united, may be governed by *one*, by *several*, or by a *multitude*, any one of which simple forms may be tolerable if well administered, but they are liable to corruptions peculiar to themselves. Of these three simple forms, Scipio prefers the monarchical; and for this choice he gives his reasons, which are somewhat metaphysical and analogical. But though he more approves of a pure regal government than of the two other simple forms, he thinks that none of them are good, and that a perfect constitution must be compounded of the three. “Quod cùm ita sit, tribus primis generibus longe præstat, meâ sententiâ, regium; regio autem ipsi præstabit id quod erit æquatum et tempera[pg 271]tum ex tribus optimis rerum publicarum modis. Placet enim esse quiddam in re publicâ præstans et regale; esse aliud auctoritate principum partum ac tributum; esse quasdam res servatas iudicio voluntatique multitudinis. Hæc constitutio primum habet æqualitatem quamdam magnam, quâ carere diutius vix possunt liberi; deinde firmitudinem.”

In this panegyric on a mixed constitution, Cicero has taken his idea of a perfect state from the Roman commonwealth—from its consuls, senate, and popular assemblies. Accordingly, Scipio proceeds to affirm, that of all constitutions which had ever existed, no one, either as to the distribution of

its parts or discipline, was so perfect as that which had been established by their ancestors; and that, therefore, he will constantly have his eye on it as a model in all that he means to say concerning the best form of a state.

This explains what was the chief scope of Cicero in his work *De Republica*—an eulogy on the Roman government, such as it was, or he supposed it to have been, in the early ages of the commonwealth. In the time of Cicero, when Rome was agitated by the plots of Catiline, and factions of Clodius, with the proscriptions of Sylla but just terminated, and the usurpation of Cæsar impending, the Roman constitution had become as ideal as the polity of Plato; and in its best times had never reached the perfection which Cicero attributes to it. But when a writer is disgusted with the present, and fearful for the future, he is ever ready to form an *Utopia* of the past⁴⁶⁷.

In the *second* book, which, like the first, is imperfect at the beginning, (though Mai seems to think that only a few words are wanting;) Scipio records a saying of Cato the Censor, that the constitution of Rome was superior to that of all other states, because *they* had been modelled by single legislators, as Crete by Minos, and Sparta by Lycurgus, whereas the Roman commonwealth was the result of the gradually improved experience and wisdom of ages. “To borrow, therefore,” says he, “a word from Cato, I shall go back to the *origin* of the Roman state; and show it in its birth, childhood, youth, and maturity—a plan which seems preferable to the delineation of an imaginary republic like that of Plato.”

Scipio now begins with Romulus, whose birth, indeed, he seems to treat as a fable; but in the whole succeeding development of the Roman history, he, or, in other words, Cicero, exercises little criticism, and indulges in no scepticism. He [pg 272]admires the wisdom with which Romulus chose the site of his capital—not placing it in a maritime situation, where it would have been exposed to many dangers and disadvantages, but on a navigable river, with all the conveniences of the sea.—“Quî potuit igitur divinitus et utilitates complecti maritimas Romulus et vitia vitare? quàm quòd urbem perennis amnis et æquabilis et in mare late influentis posuit in ripâ, quo posset urbs et accipere ex mari quo egeret, et reddere quo redundaret: eodemque ut flumine res ad victum cultumque maxime necessarias non solum mari absorberet sed etiam advectas acciperet ex terrâ: ut mihi jam

tum divinâsse ille videatur, hanc urbem sedem aliquando ut domum summo esse imperio præbituram: nam hanc rerum tantam potentiam non ferme facilius aliâ in parte Italiæ posita urbs tenere potuisset.”—In like manner he praises the sagacity of the succeeding rulers of the Roman state. “Faithful to his plan,” says M. Villemain, “of referring all to the Roman constitution, and of forming rather a history than a political theory, Cicero proceeds to examine, as it were chronologically, the state of Rome at the different epochs of its duration, beginning with its kings. This plan, if it produced any new light on a very dark subject, would have much more interest for us than ideas merely speculative. But Cicero scarcely deviates from the common traditions, which have often exercised the scepticism of the learned. He takes the Roman history nearly as we now have it, and his reflections seem to suppose no other facts than those which have been so eloquently recorded by Livy.” But although, for the sake of illustration, and in deference to common opinion, he argues on the events of early Roman history, as delivered by vulgar tradition, it is evident that, in his own belief, they were altogether uncertain; and if any new authority on that subject were wanting, Cicero’s might be added in favour of their total uncertainty; for Lælius thus interrupts his account of Ancus Martius—“Laudandus etiam iste rex—sed obscura est historia Romana;” and Scipio replies, “Ita est: sed temporum illorum tantum fere regum illustrata sunt nomina.”

At the close of Scipio’s discourse, which is a perpetual panegyric on the successive governments of Rome, and, with exception of the above passage, an uncritical acquiescence in its common history, Tubero remarks, that Cicero had rather praised the Roman government, than examined the constitution of commonwealths in general, and that hitherto he had not explained by what discipline, manners, and laws, a state is to be constituted or preserved. Scipio replies, that this is to be a farther subject of discussion; and he seems now to [pg 273]have adopted a more metaphysical tone: But of the remainder of the book only a few fragments exist; from which, however, it appears, that a question was started, how far the exact observance of justice in a state is politic or necessary. This discussion, at the suggestion of Scipio, is suspended till the succeeding day⁴⁶⁸.

As the *third* book of Cicero’s treatise began a second day’s colloquy, it was doubtless furnished with a proœmium, the greater part of which is now lost,

as also a considerable portion of the commencement of the dialogue. Towards the conclusion of the preceding book, Scipio had touched on the subject, how far the observance of justice is useful to a state, and Philus had proposed that this topic should be treated more fully, as an opinion was prevalent, that policy occasionally required injustice. Previously to the discovery of Mai, we knew from St Augustine, *De Civitate Dei*, that in the third book of the treatise *De Republicâ*, Philus, as a disputant, undertook the cause of injustice, and was answered by Lælius. In the fragment of the third book, Philus excuses himself from becoming (so to speak) the devil's advocate; but at length agrees to offer, not his own arguments on the subject, but those of Carneades, who, some years before, had one day pleaded the cause of justice at Rome, and next day overturning his own arguments, became the patron of injustice. Philus accordingly proceeds to contend, that if justice were something real, it would be everywhere the same, whereas, in one nation, that is reckoned equitable and holy, which in another is unjust and impious; and, in like manner, in the same city, what is just at one period, becomes unjust at another. In the palimpsest, these sophisms, which have been revived in modern times by Mandeville and others, are interrupted by frequent chasms in the MS. Lælius, as we learn from St Augustine, and from a passage in Aulus Gellius, was requested by all present to undertake the defence of justice; but his discourse, with the exception of a few sentences, is wholly wanting in the palimpsest. At the close he is highly complimented by Scipio, but a large *hiatus* again intervenes. After this, Scipio is found contending, that wealth and power, Phidian statues, or the most magnificent public works, do not constitute a republic, but the *res populi*, the good of the whole, and not of any single governing portion of the state. He then concludes with affirming, that of all forms of government, the [pg 274]purely democratic is the worst, and next to that, an unmixed aristocracy.

Of the *fourth* book only one leaf remains in the palimpsest, the contents of which seem to confirm what we learn from other sources, that it treated of Education and Morals. It is particularly to be regretted that this book has disappeared. It is easy to supply abstract discussions about justice, democracy, and power, and, if they be not supplied, little injury is sustained; but the loss of details relating to manners and customs, from such a hand as that of Cicero, is irreparable. The fifth book is nearly as much mutilated as

the fourth, and of the sixth not a fragment remains in the palimpsest, so that Mai's discovery has added nothing to the beautiful extract from this book, entitled the *Somnium Scipionis*, preserved by Macrobius. The conclusion of the work *De Republicâ*, had turned on immortality of fame here, and eternity of existence elsewhere. The *Somnium Scipionis* is intended to establish, under the form of a political fiction, the sublime dogma of the soul's immortality, and was probably introduced at the conclusion of the work, for the purpose of adding the hopes and fears of future retribution to the other motives to virtuous exertion. In illustration of this sublime topic, Scipio relates that, in his youth, when he first served in Africa, he visited the court of Massinissa, the steady friend of the Romans, and particularly of the Cornelian family. During the feasts and entertainments of the day, the conversation turned on the words and actions of the first great Scipio. His adopted grandchild having retired to rest, the shade of the departed hero appeared to him in sleep, darkly foretold the future events of his life, and encouraged him to tread in the paths of patriotism and true glory, by announcing the reward provided in Heaven for those who have deserved well of their country.

I have thought it proper to give this minute account of the treatise *De Republicâ*, for the sake of those who may not have had an opportunity of consulting Mai's publication, and who may be curious to know somewhat of the value and extent of his discovery. On the whole, I suspect that the treatise will disappoint those whose expectations were high, especially if they thought to find in it much political or statistical information. It corresponds little to the idea that one would naturally form of a political work from the pen of Cicero—a distinguished statesman, always courted by the chiefs of political parties, and at one time himself at the head of the government of his country. But, on reflection, it will not appear surprising that we receive from this work so little insight into the doubtful and disputed points of Roman polity. Those questions, with [pg 275]regard to the manner in which the Senate was filled up—the force of degrees of the people, and the rank of the different jurisdictions, which in modern times have formed subjects of discussion, had not become problems in the time of Cicero. The great men whom he introduces in conversation together, understood each other on such topics, by a word or suggestion; and I am satisfied that those parts of the treatise *De Republicâ*, which are lost,

contained as little that could contribute to the solution of such difficulties, as the portions that have been recovered.

But though the work of Cicero will disappoint those who expect to find in it much political information, still, as in his other productions, every page exhibits a rich and glowing magnificence of style, ever subjected to the controul of a taste the most correct and pure. It contains, like all his writings, some passages of exquisite beauty, and everywhere breathes an exalted spirit of virtue and patriotism. The Latin language, so noble in itself, and dignified, assumes additional majesty in the periods of the Roman Consul, and adds an inexpressible beauty and loftiness to the natural sublimity of his sentiments. No writings, in fact, are so full of moral and intellectual grandeur as those of Cicero, none are more calculated to elevate and purify our nature—to inculcate the *TU VERO ENITERE*, in the path of knowledge and virtue, and to excite not merely a fond desire, or idle longing, but strenuous efforts after immortality. Indeed, the whole life of the Father of his Country was a noble fulfilment, and his sublime philosophic works are but an expansion of that golden precept, *tu vero enitere*, enjoined from on high, to his great descendant, by the Spirit of the first Africanus⁴⁶⁹.

About a century after the revival of letters, when mankind had at length despaired of any farther discovery of the philosophic writings of Cicero, the learned men of the age employed themselves in collecting the scattered fragments of his lost works, and arranging them according to the order of the books from which they had been extracted. Sigonius had thus united the detached fragments of the work *De Republicâ*, and he made a similar attempt to repair another lost treatise of Cicero, entitled *De Consolatione*. But in this instance he not merely collected the fragments, but connected them by sentences of his own composition. The work *De Consolatione* was written by Cicero in the year 708, on occasion of the death of his much-loved Tullia, with the design of relieving his own mind, and consecrating to all posterity the virtues [pg 276]and memory of his daughter⁴⁷⁰. In this treatise, he set out with the paradoxical propositions, that human life is a punishment, and that men are brought into the world only to pay the forfeit of their sins⁴⁷¹. Cicero chiefly followed Crantor the Academic⁴⁷², who had left a celebrated piece on the same topic; but he inserted whatever pleased him in any other author who had written on the subject. He illustrated his

precepts, as he proceeded, by examples from Roman history, of eminent characters who had borne a similar loss with that which he had himself sustained, or other severe misfortunes, with remarkable constancy⁴⁷³,—dwelling particularly on the domestic calamities of Q. Maximus, who buried a consular son; of Æmilius Paullus, who lost two sons in two days; and of M. Cato, who had been deprived of a son, who was Prætor-Elect⁴⁷⁴. Sigonius pretended, that the patched-up treatise *De Consolatione*, which he gave to the public, was the lost work of Cicero, of which he had discovered a MS. The imposture succeeded for a considerable time, but was at length detected and pointed out by Riccoboni⁴⁷⁵.

Cicero also wrote a treatise in two books, addressed to Atticus, on the subject of Glory, which was the predominant and most conspicuous passion of his soul. It was composed in the year 710, while sailing along the delightful coast of the Campagna, on his voyage to Greece:—

“On as he moved along the level shore,
These temples, in their splendour eminent
Mid arcs, and obelisks, and domes, and towers,
Reflecting back the radiance of the west,
Well might he dream of GLORY⁴⁷⁶!”

This treatise was extant in the 14th century. A copy had been presented to Petrarch, from his vast collection of books, by Raymond Soranzo, a Sicilian lawyer⁴⁷⁷. Petrarch long preserved this precious volume with great care, and valued it highly. Unfortunately a man called Convenoli, who resided at Avignon, and who had formerly been his preceptor, begged and obtained the loan of it; and having afterwards fallen into indigent circumstances, pawned it for the relief of his necessities, to some unknown person, from whom Petrarch never [pg 277]could regain its possession. Two copies, however, were still extant in the subsequent century, one in a private library at Nuremburg, and another in that of a Venetian nobleman, Bernard Giustiniani, who, dying in 1489, bequeathed his books to a monastery of nuns, to whom Petrus Alcyonius was physician. Filelfo was accused, though on no good foundation, of having burned the Nuremburg copy, after inserting passages from it in his treatise *De Contemptu Mundi*⁴⁷⁸. But the charge of destroying the original MS. left by Giustiniani to the nuns, has

been urged against Alcyonius on better grounds, and with more success. Paulus Manutius, of whose printing-press Alcyonius had been at one time corrector, charged him with having availed himself of his free access to the library of the nuns, whose physician he was, to purloin the treatise *De Gloria*, and with having destroyed it, to conceal his plagiarisms, after inserting from it various passages in his dialogue *De Exilio*⁴⁷⁹. The assertion of Manutius is founded only on the disappearance of the MS.,—the opportunities possessed by Alcyonius of appropriating it, and his own critical opinion of the dialogue *De Exilio*, in which he conceives that there are many passages composed in a style evincing a writer of talents, far superior to those of its nominal author. This accusation was repeated by Paulus Jovius and others⁴⁸⁰. Mencken, in the preface to his edition of the dialogue *De Exilio*, has maintained the innocence of Alcyonius, and has related a conversation which he had with Bentley on the subject, in the course of which that great scholar declared, that he found nothing in the work of Alcyonius which could convict him of the imputed plagiarism⁴⁸¹. He has been defended at greater length by Tiraboschi, on the strong grounds that Giustiniani lived after the invention of printing, and that had he actually been in possession of Cicero's treatise *De Gloriâ*, he would doubtless have published it—that it is not said to what monastery of nuns Giustiniani bequeathed this precious MS.—that the charge against Alcyonius was not advanced till after his death, although his dialogue *De Exilio* was first printed in 1522, and he survived till 1527; and, finally, that so great a proportion of it relates to modern events, that there are not more than a few pages which could possibly have been pilfered from Cicero, or any writer of his age⁴⁸². M. Bernardi, in a [pg 278]dissertation subjoined to a work above mentioned, *De la Republique*, has revived the accusation, at least to a certain extent, by quoting various passages from the work of Alcyonius, which are not well connected with the others, and which, being of a superior order of composition, may be conjectured to be those he had detached from the treatises of Cicero. On the whole, the question of the theft and plagiarism of Alcyonius still remains undecided, and will probably continue so till the discovery of some perfect copy of the tract *De Gloriâ*—an event rather to be earnestly desired than reasonably anticipated.

A fourth lost work of Cicero, is his *Hortensius sive de Philosophia*. Besides the orator after whom it is named, Catulus, Lucullus, and Cicero himself,

were speakers in the dialogue. In the first part, where Hortensius discourses, it was intended to exalt eloquence above philosophy. To his arguments Cicero replied, showing the service that philosophy rendered to eloquence, even in an imperfect state of the social progress, and its superior use in an improved condition of society, in which there should be no wrong, and consequently no tribunals of justice. All this appears from the account given of the *Hortensius* by St Augustine, who has also quoted from it many beautiful passages—declaring, at the same time, that it was the perusal of this work which first inspired him with a love of wisdom.—“Viluit mihi repente omnis vana spes, et immortalitatem sapientiæ concupiscebam æstu cordis incredibili⁴⁸³.” This dialogue continued to be preserved for a long period after the time of St Augustine, since it is cited as extant in his own age by the famous Roger Bacon⁴⁸⁴.

It was not till after the æra of Augustus, that works originally destined for the public assumed the name and form of letters. But several collections of epistles, written, during the period on which we are now engaged, to relatives or friends in private confidence, were afterwards extensively circulated. Those of Cornelia, the daughter of the elder Scipio Africanus, and mother of the Gracchi, addressed chiefly to her sons, were much celebrated; but the most ample collection now extant, is that of the Letters of Cicero.

These may be divided into four parts,—1. The *Epistolæ Familiares*, or Miscellaneous Correspondence; 2. Those to Atticus; 3. To his brother Quintus; 4. To Brutus.

The correspondence, usually entitled *Ad Familiares*, includes a period of about twenty years, commencing immediately after Cicero's consulate, and ending a few months before his death. The letters which this collection comprehends, are so extremely miscellaneous, that it is impossible even to run over their contents. Previous to the battle of Pharsalia, it chiefly consists of epistles concerning the distribution of consular provinces, and the political intrigues relating to that constantly recurring subject of contention,—commendatory letters sent with acquaintances going into the provinces—details to absent friends, with regard to the state of parties at Rome, particularly the designs of Pompey

and Cæsar, and the factions of Milo and Clodius; and, finally, entertaining anecdotes concerning the most popular and fashionable amusements of the Capital.

Subsequently to the battle of Pharsalia, and during the supremacy of Cæsar, the letters are principally addressed to the chiefs of the Pompeian party, who were at that time in banishment for their adherence to the same cause in which Cicero had been himself engaged. These epistles are chiefly occupied with consolatory reflections on the adverse circumstances in which they were placed, and accounts of his own exertions to obtain their recall. In the perusal of these letters, it is painful and humiliating to observe the gratification which Cicero evidently appears to have received at this period, from the attentions, not merely of Cæsar, but of his creatures and favourites, as Balbus, Hirtius, and Pansa.

After the assassination of Cæsar, the correspondence for the most part relates to the affairs of the Republic, and is directed to the heads of the conspiracy, or to leading men in the state, as Lepidus and Asinius Pollio, who were then in the command of armies, and whom he anxiously exhorts to declare for the commonwealth, and stand forward in opposition to Antony.

There are a good many letters inserted in this collection, addressed to Cicero by his friends. The greatest number are from his old client Cælius, who appears to have been an admirable gossip. They are written to Cicero, during his absence from Rome, in his government of Cilicia, and give him news of party politics—intelligence of remarkable cases tried in the Forum—and of the fashionable scandal of the day. The great object of Cælius seems to have been to obtain in return, the dedication of one of Cicero's works, and a cargo of panthers from Asia, for his exhibition of games to the Roman people. Towards the conclusion, there are a good many letters from generals, who were at the head of armies in the provinces at the death of Cæsar, and continued their command during the war which the Senate waged against Antony. All of them, [pg 280]but particularly Asinius Pollio, and Lepidus, appear to have acted with consummate treachery and dissimulation towards Cicero and the Senate. On the whole, though the *Epistolæ Familiares* were private letters, and though some private affairs

are treated of in them, they chiefly relate to public concerns, comprehending, in particular, a very full history of Cicero's government in Cilicia, the civil dissensions of Rome, and the war between Pompey and Cæsar. Seldom, however, do they display any flashes of that eloquence with which the orator was so richly endued; and no transaction, however important, elevated his style above the level of ordinary conversation.

The *Epistolæ ad Atticum*, are also of great service for the History of Rome. "Whoever," says Cornelius Nepos, "reads these letters of Cicero, will not want for a connected history of the times. So well does he describe the views of the leading men, the faults of generals, and the changes of parties in the state, that nothing is wanting for our information; and such was his sagacity, we are almost led to believe that it was a kind of divination; for Cicero not only foretold what afterwards happened in his own lifetime, but, like a prophet, predicted events which are now come to pass⁴⁸⁵." Along with this knowledge, we obtain more insight into Cicero's private character, than from the former series of letters, where he is often disguised in the political mask of the great theatre on which he acted, and where many of his defects are concealed under the graceful folds of the *toga*. It was to Atticus that he most freely unbosomed his thoughts—more completely than even to Tullia, Terentia, or Tiro. Hence, while he evinces in these letters much affection for his family—ardent zeal for the interests of his friends—strong feelings of humanity and justice—warm gratitude to his benefactors, and devoted love to his country, he has not repressed his vanity, or concealed the faults of a mental organization too susceptible of every impression. His sensibility, indeed, was such, that it led him to think his misfortunes were peculiarly distinguished from those of all other men, and that neither himself nor the world could ever sufficiently deplore them: hence the querulous and plaintive tone which pervades the whole correspondence, and which, in the letters written during his exile, resembles more the wailings of the *Tristia* of Ovid, than what might be expected from the first statesman, orator, and philosopher of the Roman Republic. In every page of them, too, we see traces of his inconsistencies and irresolution—his political, if not his [pg 281]personal timidity—his rash confidence in prosperity, his alarm in danger, his despondence in adversity—his too nice jealousies and delicate suspicions—his proneness to offence, and his unresisting compliance with those who had gained him by flattery, and hypocritical professions of

attachment to the commonwealth. Atticus, it is clear, was a bad adviser for his fame, and perhaps for his ultimate safety; and to him may be in a great measure attributed that compromising conduct which has detracted so much from the dignity of his character. "You succeeded," says Cicero, speaking of Cæsar and Pompey, "in persuading me to keep well with the one, because he had rendered me services, and with the other, because he possessed great power⁴⁸⁶." Again, "I followed your advice so punctually, that neither of them had a favourite beyond myself;" and after the war had actually broken out, "I take it very kind that you, in so friendly a manner, advise me to declare as little as possible for either party⁴⁸⁷." Such fatal counsels, it is evident, accorded too well with his own inclinations, and palliated, perhaps, to himself the weaknesses to which he gave way. These weaknesses of Cicero it would, indeed, be in vain to deny; but *his* feelings are little to be envied who can think of them without regret, or speak of them without indulgence.

It is these letters, however, which have handed down the remembrance of Atticus to posterity, and have rendered his name almost as universally known as that of his illustrious correspondent. "Nomen Attici perire," says Seneca, "Ciceronis Epistolæ non sinunt. Nihil illi profuissent gener Agrippa, et Tiberius progener, et Drusus Cæsar pronepos. Inter tam magna nomina taceretur nisi Cicero illum applicuisset."

Perhaps the most interesting correspondence of Cicero is that with his brother Quintus, who was some years younger than the orator. He attained the dignity of Prætor in 693, and afterwards held a government in Asia as Pro-prætor for four years. He returned to Rome at the moment in which his brother was driven into exile; and for some time afterwards, was chiefly employed in exerting himself to obtain his recall. As Cæsar's lieutenant, he served with credit in Gaul; but espoused the republican party at the breaking out of the civil war. He was pardoned, however, by Cæsar, and was slain by the blood-thirsty triumvirate established after his death. Quintus was a man of warm affections, and of some military talents, but of impatient and irritable temper. The orator [pg 282] had evidently a high opinion of his qualifications, and has introduced him as an interlocutor in the dialogues *De Legibus* and *De Divinatione*.

The correspondence with Quintus is divided into three books. The first letter in the collection, is one of the noblest productions of the kind which has ever been penned. It is addressed to Quintus on occasion of his government in Asia being prolonged for a third year. Availing himself of the rights of an elder brother, as well as of the authority derived from his superior dignity and talents, Cicero counsels and exhorts his brother concerning the due administration of his province, particularly with regard to the choice of his subordinate officers, and the degree of trust to be reposed in them. He earnestly reproves him, but with much fraternal tenderness and affection, for his proneness to resentment; and he concludes with a beautiful exhortation, to strive in all respects to merit the praise of his contemporaries, and bequeath to posterity an untainted name. The second letter transmits to Quintus an account of some complaints which Cicero had heard in Rome, with regard to his brother's conduct in the administration of his government. The two following epistles, which conclude the first book, are written from Thessalonica, in the commencement of his exile. The first of these, beginning, "Mi frater, mi frater, mi frater," written in a sad state of agitation and depression, is a fine specimen of eloquent and pathetic expostulation. It is full of strong and almost unbounded expressions of attachment, and exhibits much of that exaggeration, both in sentiment and language, in which Cicero indulged so frequently in his orations.

The second and third books of letters, addressed to his brother in Sardinia and Gaul, give an interesting account of the state of public affairs during the years 697, 698, and part of 699, as also of his subsisting domestic relations during the same period.

Along with his letters to Quintus, there is usually printed an epistle or memoir, which Quintus addressed to his brother when he stood candidate for the consulship, and which is entitled *De Petitione Consulatus*. It gives advice with regard to the measures he should pursue to attain his object, particularly inculcating the best means to gain private friends, and acquire general popularity. But though professedly drawn up merely for the use of his brother, it appears to have been intended by the author as a guide, or manual, for all who might be placed in similar circumstances. It is written with considerable elegance, and perfect purity of style, and forms an

important document for the history of the Roman republic, as it affords [pg 283]us a clearer insight than we can derive from any other work now extant, into the intrigues resorted to by the heads of parties to gain the suffrages of the people.

The authenticity of the *Correspondence between Cicero and Brutus*, has formed the subject of a literary controversy, perhaps the most celebrated which has ever occurred, except that concerning the Epistles of Phalaris.

It is quite ascertained, that a correspondence had been carried on between Cicero and Brutus; and a collection of the letters which had passed between them, extending to not less than eight books, existed for several ages after Cicero's death. They were all written during the period which elapsed from the assassination of Cæsar to the tragical end of the orator, which comprehended about a year and a half; and it appears from the fragments of them, cited by Plutarch and the grammarians, that they chiefly related to the memorable political events of that important interval, and to a literary controversy which subsisted between Cicero and Brutus, with regard to the attributes of perfect eloquence⁴⁸⁸.

This collection is mentioned, and passages cited from it, by Quintilian, Plutarch, and even Nonius Marcellus⁴⁸⁹, who lived about the year 400. After this, all trace of it is lost, till, in the fourteenth century, we find some of the disputed letters in the possession of Petrarch; and it has been conjectured that Petrarch himself was the discoverer of them⁴⁹⁰. Eighteen of these letters, which were all that were then known, were published at Rome in 1470. Many years afterwards, five more, but in a mutilated state, were found in Germany, and these, in all subsequent editions, were printed along with the original eighteen. All the letters relate to the situation of public affairs after the death of Cæsar. They contain a good deal of recrimination: Brutus blaming Cicero for his dangerous elevation of Octavius, and conferring honours on him too profusely; Cicero censuring Brutus for having spared the life of Antony at the time of the conspiracy.

Now the point in dispute is, If these twenty-three letters be parts of the original eight books of the genuine correspondence of Cicero and Brutus, so often cited by Plutarch, Quintilian, and Nonius; or if they be the forgery of

some monk or [pg 284]sophist, during the dark ages which elapsed between the time of Nonius and Petrarch.

From their very first appearance, the eighteen letters, which had come into the possession of Petrarch, passed among the learned for original epistles of Cicero and Brutus; and the five discovered in Germany, though doubted for a while, were soon received into the same rank with the others. Erasmus seems to have been the first who suspected the whole to be the declamatory composition of some rhetorician or sophist. They continued, however, to be cited by every other commentator, critic, and historian, as the unquestionable remains of the great author to whom they were ascribed. Middleton, in particular, in his *Life of Cicero*, freely referred to them as biographical authorities, along with the *Familiar Epistles*, and those to Atticus.

Matters were in this situation, when Tunstall, in 1741, addressed a Latin Epistle to Middleton, written professedly to introduce a proposal for a new edition of Cicero's letters to Atticus, and his brother Quintus. In the first part of this epistle, he attempted to retrieve the original readings of these authentic treasures of Ciceronian history, and asserted their genuine sense against the corruptions or false interpretations of them, which had led to many erroneous conclusions in Middleton's *Life of Cicero*. In the second part, he denies the authenticity of the whole correspondence between Cicero and Brutus, which he alleges is the production of some sophist or scholiast of the middle ages, who probably wrote them, according to the practice of those days, as an exercise for his rhetorical talents, and with the view either of drawing up a supplement to the *Epistles to Atticus*, so as to carry on the history from the period at which they terminate, or to vindicate Cicero's character from the imputation of rashness, in throwing too much power into the hands of Octavius. Tunstall farther thinks, that the leading subject of these letters was suggested to the sophist by a passage in Plutarch's *Life of Brutus*, where it is mentioned that Brutus had remonstrated with Cicero, and complained of him to their mutual friend Atticus, for the court he paid to Octavius, which showed that his aim was not to procure liberty for his country, but a kind master to himself.

Middleton soon afterwards published an English translation of the whole correspondence between Brutus and Cicero, with notes; and, in a prefatory dissertation, written with considerable and unprovoked asperity, he attempted to vindicate the authority of the epistles, and to answer the objections of Tunstall. His adversary replied in an immense English work, of [pg 285]more than 400 pages, entitled, “Observations on the present Collection of Epistles between Cicero and Brutus, representing several evident marks of Forgery in those Epistles, in answer to the late pretences of Dr Middleton: 1744.”

It is difficult to give any sketch of the argumentative part of this famed controversy, as the merit of all such discussion consists in the extreme accuracy and minuteness of investigation. The main scope, however, of the objections, is thus generally exhibited by Tunstall in his Latin epistle. He declares, “that as he came fresh from the perusal of Cicero’s genuine letters, he perceived that those to Brutus wanted the beauty and copiousness of the Ciceronian diction—that the epistles, both of Brutus and Cicero, were drawn in the same style and manner of colouring, and trimmed up with so much art and diligence, that they seemed to proceed rather from scholastic subtlety and meditation, than from the genuine acts and affairs of life—that when, both before and after the date of the letters to Atticus, several epistles had been addressed from Brutus to Cicero, and from Cicero to Brutus, it was strange that those which preceded the letters to Atticus should have been lost, and those alone remain which appear to have been industriously designed for an epilogue to the Epistles to Atticus—that such reasons induced him to suspect, but on looking farther into the letters themselves, he discovered many absurdities in the sense, many improprieties in the language, many remarkable predictions of future events, both on Brutus’s side and Cicero’s; but what was most material, a great number of historical facts, not only quite new, but wholly altered, and some even apparently false, and contradictory to the genuine works of Cicero.”

Such was the state of the controversy, as it stood between Tunstall and Middleton. In 1745, the year after Middleton had published his translation of the epistles, Markland engaged in this literary contest, and came forward in opposition to the authenticity of the letters, by publishing his “Remarks on the Epistles of Cicero to Brutus, and of Brutus to Cicero, in a Letter to a

Friend.” The arguments of Tunstall had chiefly turned on historical inconsistencies—those of Markland principally hinge on phrases to be found in the letters, which are not Ciceronian, or even of pure Latinity.

I must here close this long account of the writings of Cicero—of Cicero, distinguished as the Consul of the republic—as the father and saviour of his country—but not less distinguished as the orator, philosopher, and moralist of Rome.—“Salve primus omnium Parens Patriæ appellate,—primus in togâ triumphum linguæque lauream merite, et facundiæ, Latiarumque [pg 286]Literarum parens: atque (ut Dictator Cæsar, hostis quondam tuus, de te scripsit,) omnium triumphorum lauream adopte majorem; quanto plus est, ingenii Romani terminos in tantum promovisse, quàm imperii⁴⁹¹.”

In the former volume of this work, I had traced the progress of the language of the Romans, and treated of the different poets by whom it was adorned till the era of Augustus. I had chiefly occasion, in the course of that part of my inquiry, to compare the poetical productions of Rome with those of Greece, and to show that the Latin poetry of this early age, being modelled on that of Athens or Alexandria, had acquired an air of preparation and authorship, and appeared to have been written to obtain the cold approbation of the public, or smiles of a Patrician patron, while the native lines of the Grecian bards seem to be poured fourth like the Delphic oracles, because the god which inspired them was too great to be contained within the bosom. In the prose compositions of the Romans, which have been considered in the present volume, though the *exemplaria Græca* were still the models of style, we have not observed the same servility of imitation. The agricultural writers of Latium treated of a subject in a great measure foreign to the maritime feelings and commercial occupations of the Greeks; while, in the Latin historians, orators, and philosophers, we listen to a tone of practical utility, derived from the familiar acquaintance which their authors exercised with the affairs of life. The old Latin historians were for the most part themselves engaged in the affairs they related, and almost every oration of Cicero was actually delivered in the Senate or Forum. Among the Romans, philosophy was not, as it had been with many of the Greeks, an academic dream or speculation, which was substituted for the

realities of life. In Rome, philosophic inquiries were chiefly prosecuted as supplying arguments and illustrations to the patron for his conflicts in the Forum, and as guiding the citizen in the discharge of his duties to the commonwealth. Those studies, in short, alone were valued, which, as it is beautifully expressed by Cicero, in the person of Lælius—"Efficiant ut usui civitati simus: id enim esse præclarissimum sapientiæ munus, maximumque virtutis documentum puto."

[pg A-1]

APPENDIX.

[pg A-2]

“Some felt the silent stroke of mouldering age,
Some hostile fury, some religious rage:
Barbarian blindness, Christian zeal conspire,
And Papal piety, and Gothic fire.”

POPE’S *Epistle to Addison*.

[pg A-3]

APPENDIX.

In order to be satisfied as to the authenticity of the works commonly called Classical, it is important to ascertain in what manner they were given to the public by their respective authors—to trace how they were preserved during the long night of the dark ages—and to point out by whom their perishing remains were first discovered at the return of light. Nor will it be uninteresting to follow up this sketch by an enumeration of the principal Editions of the Classics mentioned in the preceding pages, and of the best Translations of them which, from time to time, have appeared in the Italian, French, and English languages.

The manuscripts of the Latin Classics, during the existence of the Roman republic and empire, may be divided into what have been called *notata* and *perscripta*. The former were those written by the author himself, or his learned slaves, in contractions or signs which stood for syllables and words; the latter, those which were fully transcribed in the ordinary characters by the *librarius*, who was employed by the *bibliopolæ*, or booksellers, to prepare the productions of an author for public sale.

The books written in the hand of the authors were probably not very legible, at least if we may judge of others by Cicero. His brother Quintus had complained that he could not read his letters, and Cicero says in reply: “Scribis te meas literas superiores vix legere potuisse; hoc facio semper ut quicumque calamus in manus meas venerit, eo sic utar tamquam bono⁴⁹².”

But the works,—at least the prose works,—of the Romans were seldom written out in the hand of the author, and were generally dictated by him to some slave or freedman instructed in penmanship. It is well known that many of the orations of Cicero, Cato, and their great rhetorical contemporaries, were taken down by short-hand writers stationed in the Senate or Forum. But even the works most carefully prepared in the closet were *notata*, in a similar manner, by slaves and freedmen. There was no part of his learned compositions on which Cicero took more pains, or about which his thoughts were more occupied⁴⁹³, than the dedication of the *Academica* to Varro, and even this he *dictated* to his slave Spintharus, though he did so slowly, word by word, and not in whole sentences to Tiro, as was his practice in his other productions. “Male mihi sit,” says he in a letter to Atticus, “si umquam quidquam tam enitar. Ergo ne Tironi quidem dictavi, qui totas *periochas* persequi solet, sed Spintharo syllabatim⁴⁹⁴.”

This practice of authors dictating their works created a necessity, or at least a conveniency, of writing with rapidity, and of employing contractions, or conventional marks, in almost every word.

Accordingly, from the earliest periods of Roman literature, words were contracted, or were signified by notes, which sometimes stood for more than one letter, sometimes for syllables, and at other times for whole words. Funccius, who main[pg A-4]tains that Adam was the first short-hand writer⁴⁹⁵, has asserted, with more truth, that the Romans contracted their words from the remotest ages of the republic, and to a greater degree than any other ancient nation. Sometimes the abbreviations consisted merely in writing the initial letter instead of the whole word. Thus P. C. stood for Patres Conscripti; C. R., for Civis Romanus; S. N. L., for Socii Nominis Latini. This sort of contraction being employed in words frequently recurring, and which in one sense might be termed public, and being also universally recognized, would rarely produce any misapprehension or mistake. But frequently the abbreviations were much more complex, and the leading letters of words in less common use being *notata*, the contractions became of much more difficult and dubious interpretation. For example, *Meit.* expressed meminit; *Acus.*, Acerbus; *Quit.*, quærit; *Ror.*, Rhetor.

For the sake, however, of yet greater expedition in writing, and perhaps, in some few instances for the purpose of secrecy, signs or marks, which could be currently made with one dash or scratch with the *stylus*, and without lifting or turning it, came to be employed, instead of those letters which were themselves the abbreviations of words. Some writers have supposed that these signs were entirely arbitrary⁴⁹⁶, whilst others have, with more probability, maintained that their forms can be resolved or analysed into the figures, or parts of the figures, of the letters themselves which they were intended to represent, though they have often departed far from the shape of the original characters⁴⁹⁷. Ennius is said to have invented 1100 of these signs⁴⁹⁸, which he no doubt employed in his multifarious compositions. Others came into gradual use in the manual operation of writing with rapidity to dictation. Tiro, the favourite freedman of Cicero, greatly increased the number, and brought this sort of tachygraphy to its greatest perfection among the Romans. In consequence of this fashion of authors dictating their works, expedition came to be considered of the utmost importance; it was regarded as the chief accomplishment of an amanuensis; and he alone was considered as perfect in his art, whose pen could equal the rapidity of utterance:

Hic et scriptor erit felix, cui litera verbum est,
Quique notis linguam superet, cursumque loquentis,
Excipiens longas per nova compendia voces⁴⁹⁹.

These lines were written by a poet of the age of Augustus, and it appears from Martial⁵⁰⁰, Ausonius⁵⁰¹, and Prudentius, that this system of dictation by the author, and rapid notation by his amanuensis, continued in practice during the later ages of the empire.

Such was the mode in which most of the writings of the ancients came originally from their authors, and were delivered to those friends who were desirous to possess copies, or to the booksellers to be *perscripta*, or transcribed, for publication.

There exists sufficient proof of the high estimation in which accurate transcriptions of the works of their own writers were held by the Romans. The correctness of printing, however, could not be expected. In the original notation, some mistakes might probably be made from carelessness of

pronunciation in the author who dictated, and haste in his amanuensis; but the great source of errors in MSS. was the blunders made by the *librarius* in copying out from the noted exemplar. There was the greatest ambiguity and doubt in the interpretation, both of words contracted in the ordinary character and in the artificial signs. Sometimes the same word was expressed by different letters; thus MR. MT. MTR. all expressed *Mater*. Sometimes, on the other hand, the same set of letters expressed different words; for instance, ACT. signified *Actor*, *Auctoritas*, and *Hactenus*. The collocation of the letters was often inverted from the order in which they stood in the word when fully expressed; and frequently one letter had not merely its own power, but that of several [pg A-5]others. Thus AMO. signified *animo*, because M had there not only its own force, but, as its shape in some measure announces, the power of *ni* also. Matters were still worse, when not only abbreviations, but signs had been resorted to. These were variously employed by different writers, and were also differently interpreted by transcribers. Some of these signs were extremely similar in form: it was scarcely possible to discriminate the sign which denoted the syllable *ab* from that which expressed the syllable *um*; and the signs of the syllables *is* and *it* were nearly undistinguishable; while *ad* and *at* were precisely the same. The mark which expressed the word *talis*, being a little more sloped or inclined, expressed *qualis*; and the difference in the Tironian signs which stood for the complete words *Ager* and *Amicus*, was scarcely perceptible⁵⁰².

The ancient Latin writers also employed a number of marks to denote the accents of words, and the quantities of syllables. The oldest writers, as Livius Andronicus and Nævius, always placed two vowels when a syllable was to be pronounced long⁵⁰³. Attius, the great tragic author, was the first to relinquish this usage; and after his time, in conformity to the new practice which he had adopted, a certain mark was placed over the long vowels. When this custom also (which is stigmatised by Quintilian as *ineptissimus*⁵⁰⁴) fell into disuse, the mark was frequently misunderstood, and Funccius has given several examples of corruptions and false readings from the mistake of transcribers, who supposed that it was intended to express an *m*, an *n*, or other letters⁵⁰⁵.

In addition to all this, little attention was paid to the separation of words and sentences, and the art of punctuation was but imperfectly understood.

Finally, and above all, the orthography of Latin was extremely fluctuating and uncertain. We have seen, in an early part of this work, how it varied in the time of the republic, and it, in fact, never became fixed. Mai talks repeatedly, in his preface, of the strange inconsistencies of spelling in the Codex, which contained Cicero's work *De Republica*; and Cassiodorus, who of all his contemporaries chiefly cultivated literature during the reign of the barbarians in Italy, often regrets that the ancient Romans had left their orthography encumbered with the utmost difficulties. "Orthographia," says he, "apud Græcos plerumque sine ambiguitate probatur expressa; inter Latinos vero sub ardua difficultate relictæ monstratur; unde etiam modo studium magnum lectoris inquirat."

In consequence of this dictation to short-hand, and this uncertain orthography, we find that the corruption of the classics had begun at a very early period. The ninth Satire of Lucilius was directed against the ridiculous blunders of transcribers, and contained rules for greater correctness. Cicero, in his letters to his brother Quintus, bitterly complains of the errors of copyists,—“De Latinis vero, quo me vertam, nescio; ita mendose et scribuntur, et veneunt⁵⁰⁶.” Strabo says, that in his time booksellers employed ignorant transcribers, who neglected to compare what they wrote with the exemplar; which, he adds, has occurred in many works, copied for the purpose of being sold, both at Rome and Alexandria⁵⁰⁷. Martial, too, thus cautions his reader against the mistakes occasioned by the inaccuracy and haste of the venders of books, and the transcribers whom they employed:

“Si qua videbuntur chartis tibi, lector, in istis,
Sive obscura nimis, sive Latina parum;
Non meus est error: nocuit Librarius illis,
Dum properat versus annumerare tibi⁵⁰⁸.”

Aulus Gellius repeatedly complains of the inaccuracy of copies in his time: We learn from him, that the writings of the greatest Classics were already corrupted and falsified, not only by the casual errors of copyists, but by the deliberate perversions of critics, who boldly altered everything that was too

elegant or poetical for their own taste and understanding⁵⁰⁹. To the numerous corruptions in the text of Sallust he particularly refers⁵¹⁰.

[pg A-6]

The practice, too, of abridging larger works, particularly histories, and extracting from them, was injurious to the preservation of MSS. This practice, occasioned by the scarcity of paper, began as early as the time of Brutus, who extracted even from the meagre annals of his country. These excerpts seldom compensated for the originals, but made them be neglected, and in consequence they were lost.

It seems also probable, that the destruction of the treasures of classical literature commenced at a very early period. Varro's library, which was the most extensive private collection of books in Italy, was ruined and dispersed when his villa was occupied by Antony⁵¹¹; and some of his own treatises, as that addressed to Pompey on the duties of the Consulship, were irretrievably lost. Previous to the art of printing, books, in consequence of their great scarcity and value, were chiefly heaped up in public libraries. Several of these were consumed in the fire, by which so many temples were burned to the ground in the reign of Nero⁵¹², particularly the library in the temple of Apollo, on the Palatine Hill, which was founded by Augustus, and contained all the Roman poets and historians previous to his age. This literary establishment having been restored as far as was possible by Domitian, suffered a second time by the flames; and the extensive library of the Capitol perished in a fire during the reign of Commodus⁵¹³. When it is considered, that at these periods the copies of Latin works were few, and chiefly confined within the walls of Rome, some notion may be formed of the extent of the loss sustained by these successive conflagrations.

From the portentous æra of the death of Pertinax, the brief reign of each succeeding emperor ended in assassination, civil war, and revolution. The imperial throne was filled by soldiers of fortune, who came like shadows, and like shadows departed. Rome at length ceased to be the fixed and habitual residence of her sovereigns, who were now generally employed at a distance in the field, in repelling foreign enemies, or repressing usurpers. While it is certain, that during this period many of the finest monuments of the arts were destroyed, and some of the most splendid works of

architecture defaced, it can hardly be supposed that the frail texture of the parchment, or papyrus, should have resisted the stroke of sudden ruin, or the gradual mouldering of neglect.

But the chief destruction took place after the removal of the seat of empire by Constantine. The loss of so many classical works subsequently to that æra, has been attributed chiefly to the irruption of the northern barbarians; but it was fully as much owing to the blind zeal of the early Christians. Many of the public libraries were placed in temples, and hence were the more exposed to the fury of the proselytes to the new faith. This devastation began in Italy in the fourth century, before the barbarians had penetrated to the heart of the empire; and, in the same century, if Sulpicius Severus may be credited, Bishop Martin undertook a crusade against the temples of the Gauls⁵¹⁴. St Augustine, St Jerome, and Lactantius, indeed, knew the classics well; but they considered them as a sort of forbidden fruit: and St Jerome, as he himself informs us, was whipped by an angel for perusing Plautus and Cicero⁵¹⁵. The following or fifth century, was distinguished by the first capture of Rome, and its successive devastations by Alaric, Genseric, and Attila. In the latter part of the century, Milan, too, was plundered; which, next to Rome, was the chief repository of books in Italy.

Monachism, which, in its first institution, particularly in the east, had been so destructive of literary works, became, when more advanced in its progress, a chief cause of their preservation. When the monks were at length united, in a species of civil union, under the fixed rules of St Benedict, in the beginning of the sixth century, the institution contributed, if not to the diffusion of literature, at least to the preservation of literary works. There was no prohibition in the ordinances of St Benedict against the reading of classical writings, as in those of St Isidore: and the consequence was, that wherever any abbot, or even monk, had a taste for [pg A-7]letters, books were introduced into the convent. We have a remarkable example of this in the instance of Cassiodorus, whose genius, learning, and virtue, shed a lustre on one of the darkest periods of Italian history. After his pre-eminent services as minister of state during the reign of Theodoric, and regency of Amalasuntha, he retired, in the year 540, when he had reached the age of seventy, to the monastery of Monte Casino, situated in a most delightful spot, near the place of his birth, in Calabria.

There he became as serviceable to literature as he had formerly been to the state; and the convent to which he betook himself deserves to be first mentioned in any future history of the preservation of the Classics. Before his entrance into it, he possessed an extensive library, with which he enriched the cloister⁵¹⁶; and subsequently enlarged it by a collection of MSS., which he caused to be brought to him from various quarters of Italy. There is still extant his order to a monk to procure for him Albinus' treatise on Music; which shows, that his collection was not entirely confined to theological treatises: while his work *De Artibus ac Disciplinis liberalium Literarum*, is an ample testimony of his classical learning, and of the value which he attached to it. His library contained, at least, Ennius, Terence, Lucretius, Varro, Cicero, and Sallust⁵¹⁷. The monks of his convent were excited by him to the transcription of MSS.; and, in his work *De Orthographia*, he did not disdain to give minute directions for copying with facility and correctness.

Thus, in collecting an ample library—in diffusing copies of ancient MSS.—in verbal instructions, written lectures, and the composition of voluminous works—he closed, in the service of religion and learning, a long and meritorious life.

The example of Cassiodorus was followed in other convents. About half a century after his death, Columbanus founded a monastery of Benedictines at Bobbio, a town situated among the northern Apennines. This religious society, as Tiraboschi informs us, was remarkable, not only for the sanctity of its manners, but the cultivation of literature. It was fortunate that receptacles for books had now been thus provided, as otherwise the treasures of classical literature in Italy would, in all likelihood, have perished during the wars of Belisarius, and Narses, and the invasion of Totila. It is in the age of Cassiodorus,—that is, the beginning and middle of the sixth century,—that Tiraboschi places the serious and systematic commencement of the transcription of the classics⁵¹⁸. He mentions the names of some of the most eminent copyists; but a fuller list had been previously furnished by Fabricius⁵¹⁹.

In Gregory the Great, who was Pope at the end of the sixth and beginning of the seventh century, literature, according to popular belief, found an

enemy in the west, as fatal to its interests as the Caliph Omar had been in the east. This pontiff was accused of burning a classical library, and also some valuable works, which had replaced those formerly consumed in the Palatine library. John of Salisbury is the sole authority for this charge; and even he, who lived six centuries after the age of Gregory, only mentions it as a tradition and report: “Fertur Beatus Gregorius bibliothecam combussisse gentilem, quo divinæ paginæ gratior esset locus, et major auctoritas, et diligentia studiosior⁵²⁰,” and again, “Ut traditur a majoribus, incendio dedit probatæ lectionis scripta, Palatinus quæcunque tenebat Apollo⁵²¹.” Cardan informs us, that Gregory also caused the plays of Nævius, Ennius, and Afranius, to be burned. That he suppressed the works of Cicero, rests on the authority of a passage in an edict published by Louis XI., dated 1473, and quoted by Lyron in his *Singularitéz Historiques*⁵²². St Antonius, who was Archbishop of Florence in the middle of the fifteenth century, is cited by Vossius as the most ancient author who has asserted that he burned the decades of Livy⁵²³. These charges have been strenuously supported by Brucker⁵²⁴, while Tiraboschi, on the other hand, has endeavoured to vindicate the memory of the pontiff from all such aspersions⁵²⁵. Bayle [pg A-8] has adopted a prudent neutrality⁵²⁶. Dendina⁵²⁷ and Ginguéné⁵²⁸, the most recent authors who have touched on the subject, seem to consider the question, after all that has been written on it, as still doubtful, and not likely to receive any farther elucidation. It appears certain, that Gregory disliked classical, or profane literature, on account of the oracles, idolatry, and rites, with which it is associated, and that he prohibited its study by the clergy⁵²⁹;—whence may, perhaps, have originated the reports of his wilfully destroying the then surviving libraries and books of Rome.

During the course of the two centuries which followed the death of Gregory, Italy was divided between the Greeks and Lombards, and was torn by spiritual dissensions. The most numerous and barbarous swarm which had yet crossed the Alps was the Lombards, who descended on Italy, under their king, Alboinus, in 568, immediately after the death of Narses. It was no longer a tribe or army by which Italy was invaded; but a whole nation of old men, women, and children, covered its plains. This ignorant and ferocious race spread themselves from the Alps to Rome during the seventh and eighth centuries. And although Rome itself escaped the Lombard

dominion, the horrors of a perpetual siege can alone convey an adequate idea of its distressed situation. The feuds of the Lombard chiefs, their wars with the Greeks, who still remained masters of Rome, and at length with the Franks, (all which contests were marked with fire and massacre,) made a desert of the Peninsular garden⁵³⁰. Hitherto the superstitious feelings of the northern hordes had inspired them with some degree of respect for the sacerdotal order which they found established in Italy. Reverence for the person of the priest had extended itself to the security of his property, and while the palace and castle were wrapt in flames, the convent escaped sacrilege. But the Lombards extended their fury to objects which their rude predecessors had generally respected; and learning was now attacked in her most vulnerable part. Amid the general destruction, the monasteries and their libraries were no longer spared; and with others, that of Monte Casino, one of the most valuable and extensive in Italy, was plundered by the Lombards⁵³¹. Some books preserved in the sack of the libraries were carried back by these invaders to their native country, and a few were saved by monks, who sought refuge in other kingdoms, which accounts for the number of classical MSS. subsequently discovered in France and Germany⁵³².

Amid the ruin of taste and letters in these ages, it is probable that but few new copies were made from the MSS. then extant. Some of the classics, however, were still spared, and remained in the monastic libraries. Anspert, who was Abbot of Beneventum, in the eighth century, declares that he had never studied Homer, Cicero, or Virgil, which implies, that they were still preserved, and accessible to his perusal⁵³³.

The division of Italy between the Lombards and Greeks continued till the end of the eighth century, when Charlemagne put an end to the kingdom of the former, and founded his empire. Whether this monarch himself had any pretensions to the character of a scholar, is more than doubtful; but whether he possessed learning or not, he was a generous patron of those who did. He assembled round his court such persons as were most distinguished for talents and erudition; he established schools and pensioned scholars; and he founded also a species of Academy, of which Alcuin was the head, and in which every one adopted a scriptural or classic appellation. This tended to multiply the MSS. of the classics, and many of them found a place in the

imperial library mentioned by Eginhard. Charlemagne also established the monastery of Fulda, and, in consequence, copies of these MSS. found their way to Germany in the beginning of the ninth century⁵³⁴. The more recent Latin writers, as Boethius, Macrobius, and Capella, were chiefly popular in his age; but Virgil, [pg A-9]Cicero, and Livy, were not unknown. Alcuin's poetical account of the library at York, founded by Archbishop Egbert, and of which he had been the first librarian, affords us some notion of the usual contents of the libraries at that time.—

“Illic invenies veterum vestigia patrum;
Quicquid habet pro se Latio Romanus in orbe,
Græcia vel quicquid transmisit clara Latinis.”

Then, after enumerating the works of all the Fathers which had a place in the library, he proceeds with his catalogue.—

“Historici veteres, Pompeius, Plinius, ipse
Acer Aristoteles rhetor, atque Tullius ingens;
Quid quoque Sedulius, vel quid canit ipse Juvenius,
Alcuinus, et Clemens Prosper, Paulinus orator;
Quid Fortunatus vel quid Lactantius edunt.
Quæ Maro Virgilius, Statius, Lucanus et auctor,
Artis grammaticæ vel quid scripsere magistri.”

But though there were libraries in other countries, Italy always contained the greatest number of classical MSS. In the ninth century, Lupus, who was educated at Fulda, and afterwards became Abbot of Ferrieres, a monastery in the Orleanois, requested Pope Benedict III. to send him Cicero *de Oratore* and Quintilian, of both of which he possessed parts, but had neither of them complete⁵³⁵; and in another letter he begs from Italy a copy of Suetonius⁵³⁶. The series of his letters gives us a favourable impression of the state of profane literature in his time. In his very first letter to Einhart, who had been his preceptor, he quotes Horace and the Tusculan Questions. Virgil is repeatedly cited in the course of his epistles, and the lines of Catullus are familiarly referred to as authorities for the proper quantities of syllables. Lupus did not confine his care to the mere transcription of MSS. He bestowed much pains on the rectification of the texts, as is evinced by his letter to Ansald, Abbot of Prum, where he acknowledges having received

from him a copy of the epistles of Cicero, which would enable him to correct the MSS. of them which he himself possessed⁵³⁷.

It was a rule in convents, that those who embraced the monastic life should employ some hours each day in manual labour; but as all were not fit for those occupations which require much corporeal exertion, many of the monks fulfilled their tasks by copying MSS. Transcription thus became a favourite exercise in the ninth century, and was much encouraged by the Abbots⁵³⁸. In every great convent there was an apartment called the *Scriptorium*, in which writers were employed in transcribing such books as were deemed proper for the library. The heads of monasteries borrowed their classics from each other, and, having copied, returned them⁵³⁹.—By this means, books were wonderfully multiplied. Libraries became the constant appendages of cloisters, and in Italy existed nowhere else. We do not hear, during this period, of either royal or private libraries. There was little information among the priests or parochial clergy, and almost every man of learning was a member of a convent.

But while MSS. thus increased in the monasteries, there were, at the same time, during this century, many counteracting causes, which rendered them more scarce than they would otherwise have been. During the Norman invasion, the convents were the chief objects of plunder. From the time, too, of the conquest of Alexandria by the Saracens, in the seventh century, when the Egyptian papyrus almost ceased to be imported into Europe, till the close of the tenth, when the art of making paper from cotton rags seems to have been introduced, there were no materials for writing except parchment, a substance too expensive to be readily spared for mere purposes of literature⁵⁴⁰. The scarcity of paper, too, not only prevented the increase [pg A-10]of classical MSS., but occasioned the loss of some which were then in existence, from the characters having been deleted, in order to make way for a more favourite production. The monkish scribes were accustomed to peel off the surface of parchment MSS., or to obliterate the ink by a chemical process, for the purpose of fitting them to receive the works of some Christian author; so that, by a singular and fatal metamorphosis, a classic was frequently translated into a vapid homily or monastic legend. That many valuable works of antiquity perished in this way, is evinced by the number of MSS. which have been discovered,

evidently written on erased parchments. Thus the fragments of Cicero's Orations, lately found in the Ambrosian library, had been partly obliterated, to make room for the works of Sedulius, and the Acts of the Council of Chalcedon; and Cicero's treatise *de Republica* had been effaced, in order to receive a commentary of St Augustine on the Psalms.

The tenth century has generally been accounted the age of deepest darkness in the west of Europe. During its course, Italy was united by Otho I. with the German empire, and was torn by civil dissensions. Muratori gives a detailed account of the plundering of Italian convents, which was the consequence of these commotions, and of the irruption of the Huns in 899⁵⁴¹. Still, however, Italy continued to be the great depository of classical MSS.; and in that country they were occasionally sought with the utmost avidity. Gerbert, who became Pope in the last year of the tenth century, by name of Sylvester II., spared neither pains nor expense in procuring transcriptions of MSS. This extraordinary man, impelled by a thirst of science, had left his home and country at an early period of life: He had visited various nations of Europe, but it was in Spain, then partly subject to the Arabs, that he had chiefly obtained an opportunity of gratifying his mathematical talent, and desire of general information. Being no less ready to communicate than eager to acquire learning, he founded a school on his return to Italy, and greatly increased the library at Bobbio, in Lombardy, to the abbacy of which he had been promoted. While Archbishop of Rheims, in France, that kingdom experienced the effects of his enlightened zeal. During his papacy, obtained for him by his pupil Otho III., he persevered in his love of learning. In his generosity to scholars, and his expenditure of wealth for the employment of copyists, as well as for exploring the repositories in which the mouldering relics of ancient learning were yet to be found, we trace a liberality, bordering on profusion.—“Nosti,” says he, in one of his epistles to the monk Rainaldo, “quanto studio librorum exemplaria undique conquiram; nosti quot scriptores in urbibus, aut in agris Italiae passim habeantur. Age ergo, et te solo conscio, ex tuis sumptibus fac ut mihi scribantur Manilius de Astronomia, et Victorinus. Spondeo tibi, et certum teneo quod, quicquid erogaveris, cumulativem remittam⁵⁴².” Having by this means exhausted Italy, Sylvester directed his researches to countries beyond the Alps, as we perceive from his letter to Egbert, Abbot of Tours. —“Cui rei preparandae bibliothecam assidue comparo; et sicut Romae

dudum, et in aliis partibus Italiæ, in Germanià quoque, et Belgicà, scriptores auctorumque exemplaria multitudine nummorum redemi; adjutus benevolentia et studio amicorum comprovincialium: sic identidem apud vos per vos fieri sinite ut exorem. Quos scribi velimus, in fine epistolæ designabimus⁵⁴³.” This list, however, is not printed in any of the editions of Gerbert’s Letters, which I have had an opportunity of consulting.

It thus appears that there were zealous researches for the classics, and successful discoveries of them, long before the age of Poggio, or even of Petrarch; but so little intercourse existed among different countries, and the monks had so little acquaintance with the treasures of their own libraries, that a classical author might be considered as lost in Italy, though familiar to a few learned men, and still lurking in many of the convents.

Gerbert, previous to his elevation to the Pontificate, had, as already mentioned, been Abbot of Bobbio; and the catalogue which Muratori has given of the library in that convent, may be taken as an example of the description and extent of the classical treasures contained in the best monastic libraries of the tenth century. While the collection, no doubt, chiefly consists of the works of the saints and fathers, we find Persius, Valerius Flaccus, and Juvenal, contained in one volume. [pg A-11] There are also enumerated in the list Cicero’s Topica, and his Catilinarian orations, Martial, parts of Ausonius and Pliny, the first book of Lucretius, four books of Claudian, the same number of Lucan, and two of Ovid⁵⁴⁴. The monastery of Monte Casino, which was the retreat, as we have seen, of Cassiodorus, was distinguished about the same period for its classical library.—“The monks of Casino, in Italy,” observes Warton, “were distinguished before the year 1000, not only for their knowledge of the sciences, but their attention to polite learning, and an acquaintance with the classics. Their learned Abbot, Desiderius, collected the best of the Roman writers. This fraternity not only composed learned treatises on music, logic, astronomy, and the Vitruvian architecture, but likewise employed a portion of their time in transcribing Tacitus, Jornandes, Ovid’s Fasti, Cicero, Seneca, Donatus the grammarian, Virgil, Theocritus, and Homer.”

During the eleventh century, the Benedictines having excited scandal by their opulence and luxury, the Carthusian and Cistercian orders attracted

notice and admiration, by a self-denying austerity; but they valued themselves not less than the Benedictines, on the elegance of their classical transcriptions; and about the same period, translations from the Classics into the *Lingua volgare*, first commenced in Italy.

At the end of the eleventh century, the Crusades began; and during the whole course of the twelfth century, they occupied the public mind, to the exclusion of almost every other object or pursuit. Schools and convents were affected with this religious and military mania: All sedentary occupations were suspended, and a mark of reproach was affixed to every undertaking which did not promote the contagion of the times.

About the middle of the thirteenth century, and after the death of the Emperor Frederic II., Italy was for the first time divided into a number of petty sovereignties, unconnected by any system of general union, except the nominal allegiance still due to the Emperor. This separation, while it excited rivalry in arms, also created some degree of emulation in learning. Many Universities were established for the study of theology and the exercise of scholastic disputation; and though the classics were not publicly diffused, they existed within the walls of the convent, and were well known to the learned men of the period. Brunetto Latini, the teacher of Dante, and author of the *Tesoro*, translated into Italian several of Cicero's orations, some parts of his rhetorical works, and considerable portions of Sallust⁵⁴⁵. Dante, in his *Amoroso Convito*, familiarly quotes Livy, Virgil, and Cicero *de Officiis*; and Mehus mentions various translations of Seneca, Ovid, and Virgil, which had been executed in the age of Dante, and which he had seen in MSS. in the different libraries of Italy⁵⁴⁶.

It was Petrarch, however, who, in the fourteenth century, led the way in drawing forth the classics from the dungeons where they had been hitherto immured, and holding up their light and glory to the eyes of men. While enjoying the reputation of having perfected the most melodious and poetical language of Europe, Petrarch has acquired a still higher title to fame, by his successful exertions in rousing his country from a slumber of ignorance which threatened to be eternal. In his earliest youth, instead of the dry and dismal works which at that time formed the general reading, he applied himself to the reading of Virgil and Cicero; and when he first commenced

his epistolary correspondence, he strongly expressed his wish that their fame should prevail over the authority of Aristotle and his commentators; and declared his belief of the high advantages the world would enjoy if the monkish philosophy should give place to classical literature. Petrarch, as is evinced by his letters, was the most assiduous recoverer and restorer of ancient MSS. that had yet existed. He was an enthusiast in this as he was in every thing else that merited enthusiasm—love, friendship, glory, patriotism, and religion. He never passed an old convent without searching its library, or knew of a friend travelling into those quarters [pg A-12] where he supposed books to be concealed, without entreaties to procure for him some classical MS. It is evident that he came just in time to preserve from total ruin many of the mouldering remains of classical antiquity, and to excite among his countrymen a desire for the preservation of those treasures when its gratification was on the very eve of being rendered for ever impracticable. He had seen, in his youth, several of Cicero's now lost treatises, and Varro's great work *Rerum Divinarum et Humanarum*⁵⁴⁷, which has forever disappeared from the world; and it is probable that had not some one, endued with his ardent love of letters, and indefatigable research, arisen, many similar works which we now enjoy, would soon have sunk into a like oblivion.

About the same period, Boccaccio also collected several Latin MSS., and copied such as he could not purchase. He transcribed so many of the Latin poets, orators, and historians, that it would appear surprising had a copyist by profession performed so much. In a journey to Monte Casino, a place generally considered as remarkably rich in MSS., he was both astonished and afflicted to find the library exiled from the monastery into a barn, which was accessible only by a ladder. He opened many of the books, and found much of the writing effaced by damp. His grief was redoubled when the monks told him, that when they wanted money, they erased an ancient writing, wrote psalters and legends on the parchment, and sold the new MSS. to women and children⁵⁴⁸.

But though, in the fourteenth century, copies of the classics were multiplied and rendered more accessible to the world, and though a few were made by such hands as those of Petrarch and Boccaccio, the transcriptions in general were much less accurate than those of a former period. The Latin tongue,

which had received more stability than could otherwise have been expected, from having been consecrated in the service of the church, had now at length become a dead language, and many of the transcribers did not understand what they wrote. Still more mistakes than those produced by ignorance, were occasioned by the presumption of pretenders to learning, who were often tempted to alter the text, in order to accommodate the sense to their own slender capacity and defective taste. Whilst a remedy has been readily found for the gross oversight or neglect of the ignorant and idle, in substituting one letter for another, or inserting a word without meaning, errors affecting the sense of the author, which were thus introduced, have been of the worst species, and have chiefly contributed to compose that mass of various readings, on which the sagacity of modern scholars has been so copiously exercised. In a passage of Coluccio Salutati's treatise *De Fato*, published by the Abbé Mehus, the various modes in which MSS. were depraved by copyists are fully pointed out⁵⁴⁹. To such extent had these corruptions proceeded, that Petrarch, talking of the MSS. of his own time, and those immediately preceding it, asks, "Quis scriptorum inscitiae medebitur, inertiaeque corrumpenti omnia ac miscenti? Non quaero jam aut queror Orthographiam, quæ jam dudum interiit; qualitercunque utinam scriberent quod jubentur. An si redeat Cicero aut Livius, ante omnes Plinius Secundus, sua scripta religentes intelligent?" So sensible was Coluccio Salutati of the injury which had been done to letters by the ignorance or negligence of transcribers, that he proposed, as a check to the evil, that public libraries should be every where formed, the superintendence of which should be given to men of learning, who might carefully collate the MSS. intrusted to them, and ascertain the most correct readings⁵⁵⁰. To this labour, and to the detection of counterfeit works, of which many, from various motives, now began to be circulated, Coluccio devoted a considerable portion of his own time and studies. His plan for the institution of public libraries did not succeed; but he amassed a private one, which, in that age, was second only to the library of Petrarch. A considerable classical library, though consisting chiefly of the later classics, particularly Seneca, Macrobius, Apuleius, and Suetonius, was amassed by Tedaldo de Casa, whose books, with many remarks and emendations in his own hand, were inspected by the Abbé Mehus in the library of Santa-Croce at Florence⁵⁵¹.

The path which had been opened up by Petrarch, Boccaccio, and Coluccio Salutati, in the fourteenth century, was followed out in the ensuing century with wonderful assiduity and success by Poggio Bracciolini, Filelfo, and Ambrosio Traversari, Abbott of Camaldoli, under the guidance and protection of the Medicean Family and Niccolo Niccoli.

Of all the learned men of his time, Poggio seems to have devoted himself with the greatest industry to the search for classical MSS. No difficulties in travelling, or indifference in the heads of convents to his literary inquiries, could damp his zeal. His ardour and exertions were fortunately crowned with most complete success. The number of MSS. discovered by him in different parts of Europe, during the space of nearly fifty years, will remain a lasting proof of his unceasing perseverance, and of his sagacity in these pursuits. Having spent his youth in travelling through different countries, he at length settled at Rome, where he continued as secretary, in the service of eight successive Pontiffs. In this capacity he, in the year 1414, accompanied Pope John XXIII. to the Council of Constance, which was opened in that year. While residing at Constance, he made several expeditions, most interesting to letters, in intervals of relaxation during the prosecutions of Jean Hus and Jerome of Prague, of which he had the official charge. His chief excursion was to the monastery of St Gal, about twenty miles distance from Constance, where his information led him to expect that he might find some MSS. of the ancient Roman writers⁵⁵². The earliest Abbots, and many of the first monks of St Gal, had been originally transferred to that monastery from the literary establishment founded by Charlemagne at Fulda. Werembert and Helperic, who were sent to St Gal from Fulda in the ninth century, introduced in their new residence a strong taste for letters, and the practice of transcribing the classics. In examining the *Histoire Litteraire de la France*, by the Benedictines, we find that no monastery in the middle ages produced so many distinguished scholars as St Gal. In this celebrated convent, which, (as Tenhove expresses it) had been so long the Dormitory of the Muses, Poggio discovered some of the most valuable classics,—not, however, in the library of the cloister, but covered with dust and filth, and rotting at the bottom of a dungeon, where, according to his own account, no criminal condemned to death would have been thrown⁵⁵³. This evinces that whatever care may at one time have been taken of

classical MSS. by the monks, they had subsequently been shamefully neglected.

The services rendered to literature by Ambrosio of Camaldoli were inferior only to those of Poggio. Ambrosio was born at Forli in 1386, and was a disciple of Emanuel Chrysoloras. At the age of fourteen, he entered into the convent of Camaldoli at Florence, and thirty years afterwards became the Superior of his order. In the kind conciliatory disposition of Ambrosio, manifested by his maintaining an uninterrupted friendship with Niccolo Niccoli, Poggio, and Filelfo, and by moderating the quarrels of these irascible *Literati*—in his zeal for the sacred interests, discipline, and purity of his convent, to which his own moral conduct afforded a spotless example—and, finally, in his enthusiastic love of letters, in which he was second only to Petrarch, we behold the brightest specimen of the monastic character, of which the memory has descended to us from the middle ages. Though chiefly confined within the limits of a cloister, Ambrosio had perhaps the best pretensions of any man of his age, to the character of a polite scholar. The whole of the early part of his life, and the leisure of its close, were employed in collecting ancient MSS. from every quarter where they could be procured, and in maintaining a constant correspondence with the most distinguished men of his age. His letters which have been published in 1759, at Florence, with a long preface and life by the Abbé Mehus, contain the fullest information that can be any where found with regard to the recovery of ancient classical MSS. and the state of literature at Florence in the fifteenth century.

It would appear from these Epistles, that though the monks had been certainly instrumental in preserving the precious relics of classical antiquity, their avarice and bigotry now rather obstructed the prosecution of the researches undertaken for the purpose of bringing them to light. It was their interest to keep these treasures to themselves, because it was a maxim of their policy to impede the diffusion of knowledge, and because the transcription of MSS. was to them a source of considerable emolument. Hence they often threw obstacles in the way of the inquiries of the learned, who were obliged to have recourse to various artifices, in order to draw classical MSS. from the recesses of the cloister⁵⁵⁴.

[pg A-14]

The exertions of Poggio and Ambrosio, however, were stimulated and aided by the munificent patronage of many opulent individuals of that period, who spared no expense in reimbursing and rewarding those who had made successful researches after these favourite objects of pursuit. "To such an enthusiasm," says Tiraboschi, "was this desire carried, that long journeys were undertaken, treasures were levied, and enmities were excited, for the sake of an ancient MS.; and the discovery of a book was regarded as almost equivalent to the conquest of a kingdom."

The most zealous promoters of these researches, and most eager collectors of MSS. during the fifteenth century, were the Cardinal Ursini, Niccolo Niccoli and the Family of Medici.

Niccolo Niccoli, who was an humble citizen of Florence, devoted his whole time and fortune to the acquisition of ancient MSS. In this pursuit he had been eminently successful, having collected together 800 volumes, of which a great proportion contained Roman authors. Poggio, in his funeral oration of Niccolo, bears ample testimony to his liberality and zeal, and attributes the successful discovery of so many classical MSS. to the encouragement which he had afforded. "Quod autem," says he, "egregiam laudem meretur, summam operam, curamque adhibuit ad pervestigandos auctores, qui culpâ temporum perierant. Quâ in re verè possum dicere, omnes libros fere, qui noviter tum ab aliis reperti sunt, tum a me ipso, qui integrum Quintilianum, Ciceronis nostri orationes, Silium Italicum, Marcellinum, Lucretii partem, multosque præterea e Germanorum Gallorumque ergastulis, meâ diligentia eripui, atque in lucem extuli, Nicholai suasu, impulsu, cohortatione, et pæne verborum molestia esse Latinis literis restitutos⁵⁵⁵." Several of these classical works Niccolo copied with his own hand, and with great accuracy, after he had received them⁵⁵⁶. The MSS. in his hand-writing were long known and distinguished by the beauty and distinctness of the characters. Nor did he content himself with mere transcription: He diligently employed himself in correcting the errors of the MSS. which were transmitted to him, and arranging the text in its proper order. "Quum eos auctores," says Mehus, "ex vetustissimis codicibus exscriberet, qui suo potissimum consilio, aliorum vero operâ inventi sunt, non solum mendis, quibus obsiti erant, expurgavit, sed etiam distinxit, capitibusque locupletavit⁵⁵⁷." Such

was the judgment of Niccolo, in this species of emendation, that Politian always placed the utmost reliance on his MS. copies⁵⁵⁸; and, indeed, from a complimentary poem addressed to him in his own time, it would seem that he had carefully collated different MSS. of the same work, before he transcribed his own copy—

“Ille hos errores, unâ exemplaribus actis
Pluribus ante oculos, ne postera oberret et ætas,
Corrigit.”

Previous to the time of Niccolo, the only libraries of any extent or value in Italy, were those of Petrarch, Coluccio Salutati, and Boccaccio. The books which had belonged to Petrarch and Coluccio, were sold or dispersed after the decease of their illustrious possessors. Boccaccio’s library had been bequeathed by him to a religious order, the Hermits of St Augustine; and this library was repaired and arranged by Niccolo, for the use of the convent, and a proper hall built for its reception⁵⁵⁹. Niccolo was likewise the first person in modern times who conceived the idea of forming a public library. Previous to his death, which happened in 1437, he directed that his books should be devoted to the use of the public; and for this purpose he appointed sixteen curators, among whom was Cosmo de Medici. After his demise, it appeared that he was greatly in debt, and that his liberal intentions were likely to be frustrated by the insolvency of his circumstances. Cosmo therefore offered to his associates, that if they would resign to him the exclusive right of the disposal of the books, he would himself discharge all the debts of Niccolo, to which proposal they readily acceded. Having thus obtained the sole direction of the MSS., he deposited them for public use in the Dominican Monastery of St Marco, at Florence, which he had himself erected at an enormous expense⁵⁶⁰. This library, for some time celebrated under the name of the *Bibliotheca Marciana*, or library of St Marc, was [pg A-15]arranged and catalogued by Tommaso da Sarzana Calandrino, at that time a poor but zealous scholar in the lower orders of the clergy, and afterwards Pope, by the name of Nicholas V. The building which contained the books of Niccolo having been destroyed by an earthquake in 1454, Cosmo rebuilt it on such a plan, as to admit a more extensive collection. After this it was enriched by private donations from

citizens of Florence, who, catching the spirit of the reigning family, vied with each other in the extent and value of their gifts⁵⁶¹.

When Cosmo, having finally triumphed over his enemies, was recalled from banishment, and became the first citizen of Florence, “which he governed without arms or a title,” he employed his immense wealth in the encouragement of learned men, and in collecting, under his own roof, the remains of the ancient Greek and Roman writers. His riches, and extensive mercantile intercourse with different parts of Europe and Asia, enabled him to gratify a passion of this kind beyond any other individual. He gave injunctions to all his friends and correspondents, to search for and procure ancient MSS., in every language, and on every subject. From these beginnings arose the celebrated library of the Medici, which, in the time of Cosmo, was particularly distinguished for MSS. of Latin classics—possessing, in particular, full and accurate copies of Virgil, Cicero, Seneca, Ovid, and Tibullus⁵⁶². This collection, after the death of its founder, was farther enriched by the attention of his descendants, particularly his grandson, Lorenzo, under whom it acquired the name of the Medicean-Laurentian Library. “If there was any pursuit,” says the biographer of Lorenzo, “in which he engaged more ardently, and persevered more diligently, than the rest, it was in that of enlarging his collections of books and antiquities. His emissaries were dispersed through every part of the globe, for the purpose of collecting books, and he spared no expense in procuring, for the learned, the materials necessary for the prosecution of their studies⁵⁶³.” In the execution of his noble design, he was assisted by Ermolao Barbaro, and Paulo Cortesi; but his principal coadjutor was Politian, to whom he committed the care and arrangement of his collection, and who made excursions, at intervals, through Italy, to discover and purchase such remains of antiquity as suited the purposes of his patron. An ample treasure of books was expected, during his last illness, under the care of Lascaris. When the vital spark was nearly extinguished, he called Politian to his side, and grasping his hand, told him he could have wished to have lived to see the library completed⁵⁶⁴.

After the death of Lorenzo, some of the volumes were dispersed, when Charles VIII. of France invaded Italy; and, on the expulsion of the Medici

family from Florence, in 1496, the remaining volumes of the Laurentian collection were united with the books in the library of St Mark.

It being the great object of Lorenzo to diffuse the spirit of literature as extensively as possible, he permitted the Duke of Urbino, who particularly distinguished himself as a patron of learning, to copy such of his MSS. as he wished to possess. The families, too, of Visconti at Milan, of Este at Ferrara, and Gonzaga at Mantua, excited by the glorious example set before them, emulated the Medici in their patronage of classical literature, and formation of learned establishments. “The division of Italy,” says Mr Mills, “into many independent principalities, was a circumstance highly favourable to the nourishing and expanding learning. Every city had a Mæcenæas sovereign. The princes of Italy rivalled each other in literary patronage as much as in political power, and changes of dominion did not affect letters⁵⁶⁵.” Eight Popes, in succession, employed Poggio as their secretary, which greatly aided the promotion of literature, and the collecting of MSS. at Rome. The last Pontiff he served was Nicholas V., who, before his elevation, as we have seen, had arranged the library of St Mark at Florence. From his youth he had shown the most wonderful avidity for copies of ancient MSS., and an extraordinary turn for elegant [pg A-16]and accurate transcription, with his own hand. By the diligence and learning which he exhibited in the schools of Bologna, he secured the patronage of many literary characters. Attached to the family of Cardinal Albergati, he accompanied him in several embassies, and seldom returned without bringing back with him copies of such ancient works as had been previously unknown in Italy. The titles of some of these are mentioned by his biographer, who adds, that there was no Latin author, with whose writings he was unacquainted. This enabled him to be useful in the arrangement of many libraries formed at this period⁵⁶⁶. His promotion to the Pontifical chair, in 1447, was, in the circumstances of the times, peculiarly auspicious to the cause of letters. With the assistance of Poggio, he founded the library of the Vatican. The scanty collection of his predecessors had been nearly dissipated or destroyed, by frequent removals from Rome to Avignon: But Nicholas more than repaired these losses; and before his death, had collected upwards of 5000 volumes of Greek and Roman authors—and the Vatican being afterwards increased by Sixtus IV. and Leo X. became, both in extent and value, the first library in the world.

It is with Poggio, that the studies peculiar to the commentator may be considered as having commenced, at least so far as regards the Latin classics. Poggio lived from 1380 to 1459. He was succeeded towards the close of the fifteenth century, and during the whole course of the sixteenth, by a long series of Italian commentators, among whom the highest rank may be justly assigned to Politian.—(Born, 1454—died, 1494.) To him the world has been chiefly indebted for corrections and elucidations of the texts of Roman authors, which, from a variety of causes, were, when first discovered, either corrupt, or nearly illegible. In the exercise of his critical talents, Politian did not confine himself to any one precise method, but adopted such as he conceived best suited his purpose—on some occasions only comparing different copies, diligently marking the variations, rejecting spurious readings, and substituting the true. In other cases he proceeded farther, adding *scholia* and notes, illustrative of the text, either from his own conjecture, or the authority of preceding writers. To the name of Politian, I may add those of his bitter rival and contemporary, Georgius Merula, (born, 1420—died, 1494); Aldus Manutius, (1447—1516); his son Paullus; Landini, author of the *Disputationes Camaldulenses*, (1424—1504); Philippus Beroaldus, (1453—1505); Petrus Victorius, (1498—1585); Robortellus, (1516—1567). Most of these commentators were entirely verbal critics; but this was by far the most useful species of criticism which could be employed at the period in which they lived. We have already seen, that in the time of Petrarch, classical manuscripts had been very inaccurately transcribed; and, therefore, the first great duty of a commentator, was to amend and purify the text. Criticisms on the general merits of the author, or the beauties of particular passages, and even expositions of the full import of his meaning, deduced from antiquities, mythology, history, or geography, were very secondary considerations. Nor, indeed, was knowledge far enough advanced at the time, to supply such illustrations. Grammar, and verbal criticism, formed the porch by which it was necessary to enter that temple of sublimity and beauty which had been reared by the ancients; and without this access, philosophy would never have enlightened letters, or letters ornamented philosophy. “I cannot, indeed, but think,” says Mr Payne Knight, in his Analytical Essay on the Greek Alphabet, “that the judgment of the public, on the respective merits of the different classes of critics, is peculiarly partial and unjust. Those among them who assume the office of pointing out the beauties, and detecting the faults, of literary composition,

are placed with the orator and historian, in the highest ranks, whilst those who undertake the more laborious task of washing away the rust and canker of time, and bringing back those forms and colours, which are the objects of criticism, to their original purity and brightness, are degraded with the index-maker and antiquary among the pioneers of literature, whose business it is to clear the way for those who are capable of more splendid and honourable enterprizes. Nevertheless, if we examine the effects produced by those two classes of critics, we shall find that the first have been of no use whatever, and that the last have rendered the most important services to mankind. All persons of taste and understanding know, from their own feelings, when to approve and disapprove, and therefore stand in no need of instructions from the critic. But [pg A-17]whatever may be the taste or discernment of a reader, or the genius and ability of a writer, neither the one nor the other can appear while the text remains deformed by the corruptions of blundering transcribers, and obscured by the glosses of ignorant grammarians. It is then that the aid of the verbal critic is required; and though his minute labour in dissecting syllables and analysing letters may appear contemptible in its operation, it will be found important in its effect.” It is to those early critics, then, who washed away the rust and canker of time, and brought back those forms and colours which are the subject of criticism, that classical literature has been chiefly indebted. The newly discovered art of printing, which was itself the offspring of the general ardour for literary improvement, and of the daily experience of difficulties encountered in prosecuting classical studies, contributed, in an eminent degree, to encourage this species of useful criticism. At the instigation of Lorenzo, and other patrons of learning in Italy, many scholars in that country were induced to bestow their attention on the collation and correction of the MSS. of ancient authors, in order that they might be submitted to the press with the greatest possible accuracy, and in their original purity. Nor was it a slight inducement to the industrious scholar, that his commentaries were no longer to be hid in the recesses of a few vast libraries, but were to be now placed in the view of mankind, and enshrined, as it were, for ever in the immortal page of the poet or historian whose works he had preserved or elucidated.

With Fulvius Ursinus, who died in the year 1600, the first school of Italian commentators may be considered as terminating. In the following century,

classical industry was chiefly directed to translation; and in the eighteenth century, the list of eminent commentators was increased only by the name of Vulpinus, who introduced a new style in classical criticism, by an amusing collection of verses, both in ancient and modern poets, which were parallel to passages in his author, not merely in some words, but in the poetical idea.

The career which had so gloriously commenced in Italy in the end of the fifteenth century, was soon followed in France and Germany. Julius Scaliger, a native of Verona, had been naturalized in France, and he settled there in the commencement of the sixteenth century. In that country classical studies were introduced, under the patronage of Francis I., and were prosecuted in his own and the six following reigns, by a long succession of illustrious scholars, among whom Turnebus (1512–1565), Lambinus (1526–1572), the family of the Stephenses, who rivalled the Manutii of Italy, Muretus (1526–1585), Casaubon (1559–1614), Joseph Scaliger (1540–1609), and Salmasius (1588–1653), distinguished themselves by the illustration of the Latin classics, and the more difficult elucidation of those studies which assist and promote a full intelligence of their meaning and beauties. Our geographical and historical knowledge of the ancient world, was advanced by Charles Stephens—its chronology was ascertained by Scaliger, and the whole circle of antiquities was extended by Salmasius. After the middle of the seventeenth century, a new taste in the illustration of classical literature sprung up in France—a lighter manner and more philosophic spirit being then introduced. The celebrated controversy on the comparative merit of the ancients and moderns, aided a more popular elucidation of the classics; and as the preceptors of the royal family were on the side of the ancients, they promoted the famed Delphin edition, which commenced under the auspices of the Duke De Montausier, and was carried on by a body of learned Jesuits, under the superintendence of Bossuet and Huetius. Elegance and taste were required for the instruction of a young French Prince; and accordingly, instead of profound philological learning, or the assiduous collation of MSS., light notes were appended, explanatory of the mythological and historical allusions contained in the works of the author, as also remarks on his most prominent defects and excellencies.

Joseph Scaliger and Salmasius, who were French Protestants, found shelter for their heretical principles, and liberal reward for their learning, in the

University of Leyden; and with Douza (1545–1604), and Justus Lipsius (1547–1606), became the fathers and founders of classical knowledge in the Netherlands. As the inhabitants of that territory spoke and wrote a language which was but ill adapted for the expression of original thought, their whole force of mind was directed to throwing their humorous and grand conceptions on canvass, or to the elucidation of the writings of those who had been gifted with a more propitious tongue. These studies and researches were continued by Heinsius (1582–1655), Gerard and Isaac Vossius (1577–1689), and Gronovius (1611–1671). At this period Schrevelius (1615–1664) commenced the publication of the Classics, *cum Notis* [pg A-18]*Variorum*; and in the end of the seventeenth century, his example was followed by some of the most distinguished editors. The merit of these editions was very different, and has been variously estimated. Morhoff, while he does justice to the editorial works of Gronovius and other learned men, in which parts of the commentaries of predecessors, judiciously extracted, were given at full length, has indulged himself in an invective against other *variorum* editions, in which everything was mutilated and incorrect. “Sane ne comparandæ quidem illi” (the editions of Aldus) “sunt ineptæ Variorum editiones; quam nuper pestem bonis auctoribus Bibliopolæ Batavi inducere cœperunt, reclamantibus frustra viris doctis⁵⁶⁷.” In the course of the eighteenth century, the Burmans (1668–1778), Oudendorp (1696–1761), and Havercamp (1684–1742), continued to support the honour of a school, which as yet had no parallel in certainty, copiousness, and depth of illustration.

In Germany, the school which had been established by Charlemagne at Fulda, and that at Paderborn, long flourished under the superintendence of Meinwerk. The author of the Life of that scholar, speaking of these establishments, says, “Ibi viguit Horatius, magnus atque Virgilius, Crispus et Sallustius, et Urbanus Statius.” During the ninth century, Rabin Maur, a scholar of Alcuin, and head of the cathedral school at Fulda, became a celebrated teacher; and profane literature was not neglected by him amid the importance of his sacred lessons. Classical learning, however, was first thoroughly awakened in Germany, by the scholars of Thomas A’Kempis, in the end of the fifteenth century. A number of German youths, who were associated in a species of literary fraternity, travelled into Italy, at the time when the search for classical MSS. in that country was most eagerly prosecuted. Rudolph Agricola, afterwards Professor of Philosophy at

Worms, was one of the most distinguished of these scholars. Living immediately after the invention of printing, and at a time when that art had not yet entirely superseded the transcription of MSS., he possessed an extensive collection of these, as well as of the works which had just issued resplendent from the press. Both were illustrated by him with various readings on the margin; and we perceive from the letters of Erasmus the value which even he attached to these notes, and the use which he made of the variations. Rudolph was succeeded by Herman von Busche, who lectured on the classics at Leipsic. He had in his possession a number of the Latin classics; but it is evident from his letters that some, as for instance Silius Italicus, were still inaccessible to him, or could only be procured with great difficulty. The German scholars did not bring so many MSS. to light, or multiply copies of them, so much as the Italians, because, in fact, their country was less richly stored than Italy with the treasures bequeathed to us by antiquity; but they exercised equal critical acuteness in amending the errors of the MSS. which they possessed. The sixteenth century was the age which produced in Germany the most valuable and numerous commentaries on the Latin classics. That country, in common with the Netherlands, was enlightened, during this period, by the erudition of Erasmus (1467–1536). In the same and succeeding age, Camerarius (1500–1574), Taubmann (1565–1613), Acidalius (1567–1595), and Gruterus (1560–1627), enriched the world with some of the best editions of the classics which had hitherto appeared. Towards the close of the seventeenth century, classical literature had for some time rather declined in Germany—polemical theology and religious wars having at this period exhausted and engrossed the attention of her universities. But it was revived again about the middle of the eighteenth by J. Math. Gesner (1691–1761), and Ernesti (1707–1781), who created an epoch in Germany for the study of the ancient authors. These two scholars surpassed all their predecessors in taste, in a philosophical spirit, and in a wide acquaintance with the subsidiary branches of erudition: They made an advantageous use of their critical knowledge of the languages; they looked at once to the words and to the subject of the ancient writers, established and applied the rules of a legitimate interpretation, and carefully analysed the meaning as well as the form of the expression. Their task was extended from words to things; and what has been called *Æsthetic* annotations, were combined with philological discussion. “Non volui,” says Gesner, in the Preface to his edition of Claudian, “commentarios scribere,

collectos undique, aut locos communes: Non volui dictionem poetæ, [pg A-19]congestis aliorum poetarum formulis illustrare; sed cum illud volui efficere poeta ut intelligatur, tum iudicio meo juvare volui juniorum iudicium, quid pulchrum, atque decens, et summorum poetarum simile putarem ostendendo, et contra, ea, ubi errâsse illum a naturâ, a magnis exemplis, a decoro arbitrarer, cum fide indicando.” J. Ernesti considers Gesner as unquestionably the first who introduced what he terms the *Æsthetic mode of criticism*⁵⁶⁸. But the honour of being the founder of this new school, has perhaps, with more justice, been assigned by others to Heyne⁵⁶⁹ (1729–1811). “From the middle of last century,” it is remarked, in a late biographical sketch of Heyne, “several intelligent philologists of Germany displayed a more refined and philosophic method in their treatment of the different branches of classical learning, who, without neglecting either the grammatical investigation of the language, or the critical constitution of the text, no longer regarded a Greek or Roman writer as a subject for the mere grammarian and critic; but, considering the study of the ancients as a school for thought, for feeling, and for taste, initiated us into the great mystery of reading every thing in the same spirit in which it had originally been written. They demonstrated, both by doctrine and example, in what manner it was necessary for us to enter into the thoughts of the writer, to pitch ourselves in unison with his peculiar tone of conception and expression, and to investigate the circumstances by which his mind was affected—the motives by which he was animated—and the influences which co-operated in giving the intensity and character of his feelings. At the head of this school stands Heyne; and it must be admitted, that nothing has contributed so decisively to maintain or promote the study of classical literature, as the combination which he has effected of philosophy with erudition, both in his commentaries on ancient authors, and those works in which he has illustrated various points of antiquity, or discussed the habit of thinking and spirit of the ancient world.” From the time of Heyne, almost the whole grand inheritance of Roman literature has been cultivated by commentators, who have raised the Germans to undisputed pre-eminence among the nations of Europe, for profound classical learning, and all the delightful researches connected with literary history. I have only space to mention the names of Zeunius (1736–1788), Jani (1743–1790), Wernsdorff (1723–1793); and among those who still survive, Harles (born 1738), Schütz (1747), Schneider (1751), Wolf (1757),

Beck, (1757), Doering (1759), Mitscherlich (1760), Wetzel (1762), Goerenz (1765), Eichstädt (1771), Hermann (1772).

While classical literature and topography were so highly cultivated abroad, England, at the revival of literature, remained greatly behind her continental neighbours in the elucidation and publication of the precious remains of ancient learning. It appears from Ames' *Typographical Antiquities*, that the press of our celebrated ancient printers, as Caxton, Wynkin de Worde, and Pynson, was rarely employed in giving accuracy or embellishment to the works of the classics; and, indeed, so late as the middle of the sixteenth century, only Terence and Cicero's *Offices* had been published in this country, in their original tongue. Matters had by no means improved in the seventeenth century. Evelyn, who had paid great attention to the subject, gives the following account of the state of classical typography and editorship in England, in a letter to the Lord Chancellor Clarendon, dated November 1666: "Our booksellers," says he, "follow their own judgment in printing the ancient authors, according to such text as they found extant when first they entered their copy; whereas, out of the MSS. collated by the industry of later critics, those authors are exceedingly improved. For instance, about thirty years since, Justin was corrected by Isaac Vossius, in many hundreds of places, most material to sense and elegance, and has since been frequently reprinted in Holland, after the purer copy; but with us still according to the old reading. The like has Florus, Seneca's Tragedies, and near all the rest, which have, in the meantime, been castigated abroad by several learned hands, which, besides that it makes ours to be rejected, and dishonours our nation, so does it no little detriment to learning, and to the treasure of the nation in proportion. The cause of this is principally the stationer driving as hard and cruel a bargain with the printer as he can, and the printer taking up any smatterer in the tongues, to be the less loser; an exactness in this no ways import[pg A-20]ing the stipulation, by which means errors repeat and multiply in every edition⁵⁷⁰." Since the period in which this letter is dated, Bentley, who bears the greatest name in England as a critic, however acute and ingenious, did more by his slashing alterations to injure than amend the text, at least of the Latin authors on whom he commented. He substituted what he thought best for what he actually found; and such was his deficiency in taste, that what he thought

best (as is evinced by his changes on the text of Lucretius), was frequently destructive of the poetical idea, and almost of the sense of his author.

I have thought it right, before entering into detail concerning the *Codices* and editions of the works of the early classics mentioned in the text, briefly to remind the reader of the general circumstances connected with the loss and recovery of the classical MSS. of Rome, and to recall to his recollection the names of a few of the most celebrated commentators in Italy, France, Holland, and Germany. This will render the following Appendix, in which there must be constant reference to the discovery of MSS. and the labours of commentators, somewhat more distinct and perspicuous than I could otherwise make it.

LIVIUS ANDRONICUS, NÆVIUS.

The fragments of these old writers are so inconsiderable, that no one has thought of editing them separately. They are therefore to be found only in the general collections of the whole Latin poets; as Maittaires *Opera et Fragmenta Veterum Poetarum Latinorum*, London, 1713. 2 Tom. fo., (to some copies of which a new title-page has been printed, bearing the date, Hag. Comit. 1721;) or in the collections of the Latin tragic poets, as Delrio's *Syntagma Tragædiæ Latinæ*, Paris, 1620, and Scriverius' *Collectanea Veterum Tragicorum*, Lugd. Bat. 1620. It is otherwise with

ENNIUS,

of whose writings, as we have seen, more copious fragments remain than from those of his predecessors. The whole works of this poet were extant in the time of Cassiodorus; but no copy of them has since appeared. The fragments, however, found in Cicero, Macrobius, and the old grammarians, are so considerable, that they have been frequently collected together, and largely commented on. They were first printed in Stephen's *Fragmenta Veterum Poetarum Latinorum*, but without any proper connection or criticism. Ludovicus Vives had intended to collect and arrange them, as we are informed in one of his notes to St Augustine, *De Civitate Dei*: But this task he did not live to accomplish⁵⁷¹. The first person who arranged these scattered fragments, united them together, and classed them under the books to which they belonged, was Hier. Columna. He adopted the orthography which, from a study of the ancient Roman monuments and inscriptions, he found to be that of the Latin language in the age of Ennius. He likewise added a commentary, and prefixed a life of the poet. The edition which he had thus fully prepared, was first published at Naples in 1590, four years after his death, by his son Joannes Columna⁵⁷². This *Editio Princeps* of Ennius is very rare, but it was reprinted under the care of Fr. Hesselius at Amsterdam in 1707. To the original commentary of Columna there are added the annotations on Ennius which had been inserted in Delrio and Scriverius' collection of the Latin tragic poets; and Hesselius himself supplied a very complete *Index Verborum*. The ancient authors, who quote lines from Ennius, sometimes mention the book of the *Annals*, or the name of the tragedy to which they belonged, but sometimes this information is omitted. The arrangement, therefore, of the verses of the latter description (which are marked with an asterisk in Columna's edition), and indeed the precise collocation of the whole, is in a great measure conjectural. Accordingly, we find [pg A-21]that the order of the lines in the edition of Paulus Merula is very different from that adopted by Columna. The materials for Merula's edition, which comprehends only the *Annals* of Ennius, had already been collected and prepared at the time when

Columna's was first given to the world. Merula, however, conceived that while the great object of Columna had been to compare and contrast the lines of Ennius with those of other heroic poets, he himself had been more happy in the arrangement of the verses, and the restoration of the ancient orthography, which is much more antiquated in the edition of Merula than in that of Columna. He had also discovered some fragments of the *Annals*, unknown to Columna, in the MS. of a work of L. Calp. Piso, a writer of the age of Trajan, entitled *De Continentiâ Veterum Poetarum*, and preserved in the library of St Victor at Paris. In these circumstances, Merula was not deterred by the appearance of the edition of Columna, from proceeding with his own, which at length came forth at Leyden in the year 1595. The same sort of discrepancy which exists between Columna and Merula's arrangement of the *Annals*, appears in the collocation of the *Tragic Fragments* adopted by Columna, and that which has been preferred by Delrio, in his *Syntagma Tragædiæ Latinæ*.

H. Planck published at Gottingen, in 1807, the fragments of Ennius's tragedy of *Medea*. These comprehend all the verses belonging to this drama, collected by Columna, and some newly extracted by the editor from old grammarians. The whole are compared with the parallel passages in the *Medea* of Euripides. Two dissertations are prefixed; one on the Origin and Nature of Tragedy among the Romans; and the other, on the question, whether Ennius wrote two tragedies, or only a single tragedy, entitled *Medea*. A commentary is also supplied, in which, as Fuhrmann remarks, one finds many things, but not much:—"Man findet in demselben *multa*, aber nicht *multum*⁵⁷³."

Some fine passages of the fragments of Ennius have been filled up, and the old readings corrected, by the recent discovery of the work *De Republicâ* of Cicero, who is always quoting from the ancient poets. Thus the passage in the *Annals*, where the Roman people are described as lamenting the death of Romulus, stands thus in Columna's edition:—

—— "O Romole, Romole, *dic ô*
Qualem te patriæ custodem dii genuerunt,
Tu produxisti nos intra luminis oras,
O pater, ô genitor, ô sanguen diis oriundum."

This fragment may be now supplied, and the verses arranged and corrected, from the quotation in the first book *De Republicâ*—

“Pectora pia tenet desiderium; simul inter
Sese sic memorant—O Romule, Romule *die*,
Qualem te patriæ custodem di genuerunt,
O pater, ô genitor, ô sanguen dñs oriundum!
Tu produxisti nos intra luminis oras.”

The fragments of the Annals of Ennius, as the text is arranged by Merula, have been translated into Italian by Bernardo Philippini, and published at Rome in 1659, along with his *Poesie*. I know of no other translations of these fragments.

PLAUTUS.

There can be no doubt that even the oldest MSS. of Plautus were early corrupted by transcribers, and varied essentially from each other. Varro, in his book *De Analogiâ*, ascribes some phrase of which he did not approve, in the *Truculentus*, to the negligence of copyists. The Latin comedies, written in the age of Plautus, were designed to be represented on the stage, and not to be read at home. It is [pg A-22]therefore, probable, that, during the reign of the Republic at least, there were few copies of Plautus's plays, except those delivered to the actors. The dramas were generally purchased by the *Ædiles*, for the purpose of amusing the people during the celebration of certain festivals. As soon as the poet's agreement was concluded with the *Ædile*, he lost his right of property in the play, and frequently all concern in its success. It seems probable, therefore, that even during the life of the author, these magistrates, or censors employed by them, altered the verses at their own discretion, or sent the comedy for alteration to the author: But there is no doubt that, after his death, the actors changed and modelled the piece according to their own fancy, or the prevailing taste of the public, just as Cibber and Garrick wrought on the plays of Shakspeare. Hence new prologues, adapted to circumstances, were prefixed—whole verses were suppressed, and lines properly belonging to one play, were often transferred to another. This corruption of MSS. is sufficiently evinced by the circumstance, that the most ancient grammarians frequently cite verses as from a play of Plautus, which can now no longer be found in the drama quoted. Thus, a line cited by Festus and Servius, from the *Miles*, does not appear in any MSS. or ancient edition of that comedy, though, in the more recent impressions, it has been inserted in what was judged to be its proper place⁵⁷⁴. Farther—Plautus, and indeed the old Latin writers in general, were much corrupted by transcribers in the middle ages, who were not fully acquainted with the variations which had taken place in the language, and to whom the Latin of the age of Constantine was more familiar than that of the Scipios. They were often puzzled and confused by finding a letter, as c, for example, introduced into a word which they had been accustomed to spell

with a g, and they not unfrequently were totally ignorant of the import or signification of ancient words. In a fragment of Turpilius, a character in one of the comedies says, “Qui mea verba venatur pestis arcedat;” now, the transcriber being ignorant of the verb *arcedat*, wrote *ars cedat*, which converts the passage into nonsense⁵⁷⁵.

The comedies of Plautus are frequently cited by writers of the fourteenth century, particularly by Petrarch, who mentions the amusement which he had derived from the *Casina*⁵⁷⁶. Previous, however, to the time of Poggio, only eight of them were known, and we consequently find that the old MSS. of the fourteenth century just contain eight comedies⁵⁷⁷. By means, however, of Nicolas of Treves, whom Poggio had employed to search the monasteries of Germany, twelve more were discovered. The plays thus brought to light were the *Bacchides*, *Menæchmi*, *Mostellaria*, *Miles Gloriosus*, *Mercator*, *Pseudolus*, *Pænulus*, *Persa*, *Rudens*, *Stichus*, *Trinummus*, *Truculentus*. As soon as Poggio heard of this valuable and important discovery, he urged the Cardinal Ursini to despatch a special messenger, in order to convey the treasure in safety to Rome. His instances, however, were not attended to, and the MSS. of the comedies did not arrive till two years afterwards, in the year 1428, under the charge of Nicolas of Treves himself⁵⁷⁸. They were seized by the Cardinal immediately after they had been brought to Italy. This proceeding Poggio highly resented; and having in vain solicited their restoration, he accused Ursini of attempting to make it be believed that Plautus had been recovered by his exertions, and at his own expense⁵⁷⁹. At length, by the intervention of Lorenzo, the brother of Cosmo de Medici, the Cardinal was persuaded to intrust the precious volume to Niccolo Niccoli, who got it carefully transcribed. Niccolo, however, detained it at Florence long after the copy from it had been made; and we find his friend Ambrosio of Camaldoli using the most earnest entreaties on the part of the Cardinal for its restitution.—“Cardinalis Ursinus Plautum suum recipere cupit. Non video quam ob causam, Plautum illi restituere non debeas, quem olim transcripsisti. Oro, ut amicissimo homini geratur mos⁵⁸⁰.” The original MS. was at length restored to the Cardinal, after whose death it fell into the possession of Lorenzo de Medici, and thus came to form a part of the Medicean library. The copy taken by [pg A-23]Niccolo Niccoli was transferred, on his decease, along with his other books, to the convent of St Mark.

From a transcript of this copy, which contained the twelve newly-recovered plays, and from MSS. of the other eight comedies, which were more common and current, Georgius Merula, the disciple of Filelfo, and one of the greatest Latin scholars of the age, formed the first edition of the plays of Plautus, which was printed by J. de Colonia and Vindelin de Spira, at Venice, 1472, folio, and reprinted in 1482 at Trevisa. It would appear that Merula had not enjoyed direct access to the original MS. brought from Germany, or to the copy deposited in the Marcian library; for he says, in his dedication to the Bishop of Pavia, “that there was but one MS. of Plautus, from which, as an archetype, all the copies which could be procured were derived; and if, by any means,” he continues, “I could have laid my hands on it, the *Bacchides*, *Mostellaria*, *Menæchmi*, *Miles*, and *Mercator*, might have been rendered more correct; for the copies of these comedies, taken from the original MS., had been much corrupted in successive transcriptions; but the copies I have procured of the last seven comedies have not been so much tampered with by the critics, and therefore will be found more accurate.” Merula then compares his toil, in amending the corrupt text, to the labours of Hercules. His edition has usually been accounted the *editio princeps* of Plautus; but I think it is clear, that at least eight of the comedies had been printed previously: Harles informs us, that Morelli, in one of his letters, had thus written to him:—“There is an edition of Plautus which I think equally ancient with the Venetian one of 1472; it is *sine ullâ notâ*, and has neither numerals, signatures, nor catch-words. It contains the following plays: *Amphitryo*, *Asinaria*, *Aulularia*, *Captivi*, *Curculio*, *Casina*, *Cistellaria*, *Epidicus*⁵⁸¹.” Now, it will be remarked, that these were the eight comedies current in Italy before the important discovery of the remaining twelve, made by Nicholas of Treves, in Germany; and the presumption is, that they were printed previous to the date of the edition of Merula, because by that time the newly-recovered comedies having got into circulation, it is not likely that any editor would have given to the world an imperfect edition of only eight comedies, when the whole dramas were accessible, and had excited so much interest in the mind of the public.

Eusebius Scutarius, a scholar of Merula, took charge of an edition, which was amended from that of his master, and was printed in 1490, Milan, folio, and reprinted at Venice 1495.

In 1499, an edition was brought out at Venice, by the united labour of Petrus Valla, and Bernard Saracenus. To these, succeeded the edition of Jo. Bapt. Pius, at Milan, 1500, with a preface by Phillip Beroald. Taubman says, that “omnes editiones mangonum manus esse passas ex quo Saracenus et Pius regnum et tyrannidem in literis habuere.” In the Strasburg impression, 1508, the text of Scutari has been followed, and about the same time there were several reprints of the editions of Valla and Pius.

The edition of Charpentier, in 1513, was prepared from a collation of different editions, as the editor had no MSS.; but the editions of Pius and Saracenus were chiefly employed. Charpentier has prefixed arguments, and has divided the lines better than any of his predecessors; and he has also arranged the scenes, particularly those of the *Mostellaria*, to greater advantage.

Few Latin classics have been more corrupted than Plautus, by those who wished to amend his text. In all the editions which had hitherto appeared, the perversions were chiefly occasioned by the anxiety of the editors to bend his lines to the supposed laws of metre. Nic. Angelius, who superintended an edition printed by the Giunta at Florence, 1514, was the first who observed that the corruptions had arisen from a desire “ad implendos pedum numeros.” He accordingly threw out, in his edition, all the words which had been unauthorizedly inserted to fill up the verses. From some MSS. which had not hitherto been consulted, he added several prologues to the plays; and also the commencement of the first act of the *Bacchides*, which Lascaris, in one of his letters to Cardinal Bembo, says he had himself found at Messina, in Sicily. These, however, though they have been inserted into all subsequent editions of Plautus, are evidently written by a more modern hand than that of Plautus. Two editions were superintended and printed by the Manutii, [pg A-24]1516 and 1522; that in 1522, though prepared by F. Asulanus, from a MS. corrected in the hand of the elder Aldus and Erasmus, is not highly valued⁵⁸². Two editions, by R. Stephens, 1529 and 1530, were formed on the edition of the Giunta, with the correction of a few errors. These were followed by many editions in Italy, France, and Germany, some of which were merely reimpressions, but others were accompanied with new and learned commentaries.

To no one, however, has Plautus been so much indebted as to Camerarius, whose zeal and diligence were such, that there was scarcely a verse of Plautus which did not receive from him some emendation. In 1535, there had appeared at Magdeburg six comedies (*Aulularia*, *Captivi*, *Miles Gloriosus*, *Menæchmi*, *Mostellaria*, *Trinummus*,) which he had revised and commented on, but which were published from his MS. without his knowledge or authority. The privilege of the first complete edition printed under his own direction, is dated in 1538.

The text and annotations of Camerarius now served as the basis for most of the subsequent editions. The Plantin editions, of which Sambucus was the editor, and which were printed at Antwerp 1566, and Basil 1568, contain the notes and corrections of Camerarius, with about 300 verses more than any preceding impression.

Lambinus, in preparing the Paris edition, 1577, collated a number of MSS. and amassed many passages from the ancient grammarians. He only lived, however, to complete thirteen of the comedies; but his colleague, Helias, put the finishing hand to the work, and added an index, after which it came forth with a prefatory dedication by Lambinus's son. On this edition, (in which great critical learning and sagacity, especially in the discovery of *double entendres*, were exhibited,) the subsequent impressions, Leyden, 1581⁵⁸³, Geneva, 1581, and Paris 1587, were chiefly formed.

Lambinus, in preparing his edition, had chiefly trusted to his own ingenuity and learning. Taubman, the next editor of Plautus of any note, compiled the commentaries of others. The text of Camerarius was principally employed by him, but he collated it with two MSS. in the Palatine library, which had once belonged to Camerarius; and he received the valuable assistance of Gruterus, who was at that time keeper of the library at Heidelberg. Newly-discovered fragments—the various opinions of ancient and modern writers concerning Plautus—a copious *index verborum*—a preface—a dedication to the triumvirs of literature of the day, Joseph Scaliger, Justus Lipsius, and Casaubon—in short, every species of literary apparatus accompanied the edition of Taubman, which first appeared at Frankfort in 1605. It was very inaccurately printed, however; so incorrectly indeed, that the editor, in a letter addressed to Jungerman, in September 1606, acknowledges that he

was ashamed of it. Philip Pareus, who had long been pursuing similar studies with those of Taubman, embraced the opportunity, afforded by the inaccuracy of this edition, of publishing in Frankfort, in 1610, a Plautus, which was professedly the rival of that which had been produced by the united efforts of Taubman and Gruterus, and which had not only disappointed the expectations of the public, but of the learned editors themselves. Their feelings on this subject, and the *opposition Plautus* edited by Pareus, stimulated Taubman to give an amended edition of his former one. This second impression, which is much more accurate than the first, was printed at Wittenberg in 1612, and was accompanied with the dissertation of Camerarius *De Fabulis Plautonicis*, and that of Jul. Scaliger, *De Versibus Comicis*. Taubman died the year after the appearance of this edition: Its fame, however, survived him, and not only retrieved his character, which had been somewhat sullied by the bad ink and dirty paper of the former edition, but completely eclipsed the classical reputation of Pareus. Envious of the renown of his rivals, that scholar obtained an opportunity of inspecting the MSS. which had been collated by Taubman and Gruterus. These he now compared more minutely than his predecessors had done, and published the fruits of his labour at Neustadt, in 1617. This was considered as derogating from [pg A-25]the accuracy and critical ingenuity of Gruterus, and insulting to the manes of Taubman.—“Hinc jurgium, tumultus Grutero et Pareo.” Gruterus attacked Pareus in a little tract, entitled *Asini Cumani fraterculus e Plauto electis electus per Eustathium Schwarzium puerum*, 1619, and was answered by Pareus not less bitterly, in his *Provocatio ad Senatum Criticum adversus personatos Pareomastigos*. From this time Pareus and Gruterus continued to print successive editions of Plautus, in emulation and odium of each other. Gruterus printed one at Wittenberg in 1621, with a prefatory invective against Pareus, and with the *Euphemiæ amicorum in Plautum Gruteri*. Pareus then attempted to surpass his rival, by comprehending in his edition a collection of literary miscellanies—as Bullengerus’ description of Greek and Roman theatres. At length Pareus got the better of his obstinate opponent, in the only way in which that was possible—by surviving him; he then enjoyed an opportunity of publishing, unmolested, his last edition of Plautus, printed at Frankfort, 1641, containing a Dissertation on the Life and Writings of Plautus; the Eulogies pronounced on him; Remarks on his Versification; a diatribe *de jocis et salibus Plautinis*; an exhibition of his

Imitations from the Greek Poets; and, finally, the *Euphemiæ* of Learned Friends. Being now relieved of all apprehensions from the animadversions of Gruterus, he boldly termed his edition “Absolutissimam, perfectissimam, omnibusque virtutibus suis ornatissimam.”

I have now brought the history of this notable controversy to a conclusion. During its subsistence, various other editions of Plautus had been published—that of Isaac Pontanus, Amsterdam, 1620, from a MS. in his own possession—that of Nic. Heinsius, Leyden, 1635, and that of Buxhornius, 1645, who had the advantage of consulting a copy of Plautus, enriched with MS. notes, in the handwriting of Joseph Scaliger.

Gronovius at length published the edition usually called the *Variorum*. Bentley, in his critical emendations on Menander, speaks with great contempt of the notes which Gronovius had compiled. The first Variorum edition was printed at Leyden in 1664, the second in 1669, and the third, which is accounted the best, at Amsterdam, 1684.

The Delphin edition was nearly coeval with these Variorum editions, having been printed at Paris, 1679. It was edited under care of Jacques l’Œuvre or Operarius, but is not accounted one of the best of the class to which it belongs. The text was principally formed on the last edition of Gruterus, and the notes of Taubman were chiefly employed. The *Prolegomena* on the Life and Writings of Plautus, is derived from various sources, and is very copious. None of the old commentators could publish an edition of Plautus, without indulging in a dissertation *De Obscænis*. In every Delphin edition of the classics we are informed, that *consultum est pudori Serenissimi Delphini*; but this has been managed in various ways. Sometimes the offensive lines are allowed to remain, but the *interpretatio* is omitted, and in its place star lights are hung out alongside of the passage: but in the Delphin Plautus they are concentrated in one focus, “*in gratiam*,” as it is expressed, “*provectoris ætatis*,” at the end of the volume, under the imposing title “PLAUTI OBSCÆNA:”

“And there we have them all at one full swoop;
Instead of being scattered through the pages,
They stand forth marshalled in a handsome troop,
To meet the ingenuous youth of future ages.

Till some less rigid editor shall stoop
To call them back into their separate cages;
Instead of standing staring all together,
Like garden gods, and not so decent either⁵⁸⁴.”

What is termed the Ernesti edition of Plautus, and which is commonly accounted the best of that poet, was printed at Leipsic, 1760. It was chiefly prepared by Aug. Otho, but Ernesti wrote the preface, containing a full account of the previous editions of Plautus.

The two editions by the Vulpii were printed at Padua, 1725 and 1764.

The text of the second Bipontine edition, 1788, was corrected by Brunck. The [pg A-26]plan of the Bipontine editions of the Latin classics is well known. There are scarcely any annotations or commentary subjoined; but the text is carefully corrected, and an account of previous editions is prefixed.

In the late edition by Schmieder (Gottingen, 1804), the text of Gronovius has been principally followed; but the editor has also added some conjectural emendations of his own. The commentary appears to have been got up in considerable haste. The preliminary notices concerning the Life and Writings of Plautus, and the previous editions of his works, are very brief and unsatisfactory. There is yet a more recent German edition by Bothe, which has been published in volumes from time to time at Berlin. Two MSS. never before consulted, and which the editor believes to be of the eleventh or twelfth century, were collated by him. His principal aim in this new edition is to restore the lines of Plautus to their proper metrical arrangement.

With a similar view of restoring the proper measure to the verses, various editions of single plays of Plautus have, within these few years, been printed in Germany. Of this sort is the edition of the *Trinummus*, by Hermann (Leipsic, 1800), and of the *Miles* (Weimar, 1804), by Danz, who has made some very bold alterations on the text of his author.

Italy having been the country in which learning first revived,—in which the MSS. of the Classics were first discovered, and the first editions of them

printed,—it was naturally to be expected, that, of all the modern tongues of Europe, the classics should have been earliest translated into the Italian language. Accordingly we find, that the most celebrated and popular of them appeared in the *Lingua Volgare*, previous to the year 1500⁵⁸⁵.

With regard to Plautus, Maffei mentions, as the first translation of the *Amphitryon*, a work in *ottava rima*, printed without a date. This work was long believed to be a production of Boccaccio⁵⁸⁶, but it was in fact written by Ghigo Brunelleschi, an author of equal or superior antiquity, and whose initials were mistaken for those of Giovanni Boccaccio. Though spoken of by Maffei as a dramatic version, it is in fact a tale or novel founded on the comedy of Plautus, and was called *Geta e Birria*⁵⁸⁷. Pandolfo Collenuccio was the first who translated the *Amphitryon* in its proper dramatic form, and *terza rima*. He was in the service of Hercules, first Duke of Ferrara, who made this version be represented, in January, 1487, in the splendid theatre which he had recently built, and on occasion of the nuptials of his daughter Lucretia. The *Menechmi*, partly translated in *ottava* and partly in *terza rima*, was the first piece ever acted on that theatre. The Este family were great promoters of these versions; which, though not printed till the sixteenth century, were for the most part made and represented before the close of the fifteenth. The dramatic taste of Duke Hercules descended to his son Alphonso, by whose command Celio Calcagnino translated the *Miles Gloriosus*. Paitoni enumerates four different translations of the *Asinaria*, in the course of the sixteenth century, one of which was acted in the monastery of St Stephen's, at Venice.

There were also a few versions of particular plays in the course of the *eighteenth* century; but Paitoni, whose work was printed in 1767, mentions no complete Italian translation of Plautus, nor any version whatever of the *Truculentus*, or *Trinummus*. The first version of all the comedies was that of Nic. Eug. Argelio, which was accompanied by the Latin text, and was printed at Naples, 1783, in 10 volumes 8vo.

The subject of translation was early attended to in *France*. In the year 1540, a work containing rules for it was published by Steph. Dolet, which was soon followed by similar productions; and, in the ensuing century, its principles became a great topic of controversy among critics and scholars.

Plautus, however, was not one of the classics earliest rendered. Though Terence had been repeatedly translated while the language was almost in a state of barbarism, Plautus did not appear in a French garb, till clothed in it by the Abbé Marolles, at the solicitation of Furetiere, in 1658. The Abbé, being more anxious to write many than good books, completed his task in a few months, and wrote as the sheets were throwing off. His translation is dedicated to the King, Louis XIV., and is accompanied by the Latin text. We shall find, as we proceed, that almost all the Latin authors of this [pg A-27]period were translated into French by the indefatigable Abbé de Marolles. He was unfortunately possessed of the opulence and leisure which Providence had denied to Plautus, Terence, and Catullus; and the leisure he enjoyed was chiefly devoted to translation. "Translation," says D'Israeli, "was the mania of the Abbé de Marolles; sometimes two or three classical victims in a season were dragged into his slaughter-house. The notion he entertained of his translations was their closeness; he was not aware of his own spiritless style and he imagined that poetry only consisted in the thoughts, and not in the grace and harmony of verse⁵⁸⁸."

De Coste's translation of the *Captivi*, in prose, 1716, has been already mentioned. This author was not in the same hurry as Marolles, for he kept his version ten years before he printed it. He has prefixed a Dissertation, in which he maintains, that Plautus, in this comedy, has rigidly observed the dramatic unities of time and place.

Mad. Dacier has translated the *Amphitryon*, *Rudens*, and *Epidicus*. Her version, which is accompanied by the Latin text, and is dedicated to Colbert, was first printed 1683. An examination of the defects and beauties of these comedies, particularly in respect of the dramatic unities, is prefixed, and remarks by no means deficient in learning are subjoined. Some changes from the printed Latin editions are made in the arrangement of the scenes. In her dissertation on the *Epidicus*, which was a favourite play of Plautus himself, Mad. Dacier attempts to justify this preference of the poet, and wishes indeed to persuade us, that it is a faultless production. Goujet remarks that one is not very forcibly struck with all the various beauties which she enumerates in perusing the original, and still less sensible of them in reading her translation.

M. de Limiers, who published a version of the whole plays of Plautus in 1719, has not rendered anew those which had been translated by Mad. Dacier and by De Coste, but has inserted their versions in his work. These are greatly better than the others, which are translated by Limiers himself. All of them are in prose, except the *Stichus* and *Trinummus*, which the author has turned into verse, in order to give a specimen of his poetic talents. In the versifications, he has placed himself under the needless restraint of rendering each Latin line by only one in French, so that there should not be a verse more in the translation than the original; the consequence of which is, that the whole is constrained and obscure. Examinations and analyses of each piece, expositions of the plots, with notices of Plautus' imitations of the ancient writers, and those of the moderns after him, are inserted in this work.

In the same year in which Limiers published his version, Gueudeville brought out a translation of Plautus. It is a very free one; and Goujet says, it is "Plaute travesti, plutot que traduit." He attempts to make his original more burlesque by exaggerations; and by singular hyperbolical expressions; the *obscœna* are a good deal enhanced; and he has at the end formed a sort of table, or index, of the obscene passages, referring to their proper page, which may thus be found without perusing any other part of the drama. The professed object of the table is, that the reader may pass them over if he choose.

A contemporary journal, comparing the two translations, observes,—“Il semble que M. Limiers s'attache davantage à son original, et qu'il en fait mieux sentir le véritable caractère; et que le Sieur Gueudeville est plus badin, plus vif, plus bouffon⁵⁸⁹.” Fabricius passes on them nearly the same judgment⁵⁹⁰.

The *English* were early acquainted with the plays of Plautus. It appears from Holinshed, that in the eleventh year of King Henry VIII.—that is, in 1520—a comedy of Plautus was played before the King⁵⁹¹. We are informed by Miss Aikin, in her *Memoirs of the Court of Elizabeth*, that when that Queen visited Cambridge in 1564, she went on a Sunday morning to King's Chapel, to hear a Latin sermon, *ad clerum*; “and in the evening, the body of this solemn edifice being converted into a temporary theatre, she was there

gratified with a representation of the *Aulularia* of Plautus⁵⁹².” It has been mentioned in the text, that, in 1595, there appeared a translation of the *Menæchmi* of Plautus, by W. W.—initials which have [pg A-28]generally been supposed to stand for William Warner, author of *Albion’s England*. In 1694, Echard published a prose translation of the three comedies which had been selected by Mad. Dacier—the *Amphitryon*, *Epidicus*, and *Rudens*. It is obvious, however, that he has more frequently translated from the French, than from his original author. His style, besides, is coarse and inelegant; and, while he aims at being familiar, he is commonly low and vulgar. Some passages of the *Amphitryon* he has translated in the coarsest dialogue of the streets:—“By the mackins, I believe Phœbus has been playing the good fellow, and’s asleep too! I’ll be hanged if he ben’t in for’t, and has took a little too much of the creature.” In every page, also, we find the most incongruous jumble of ancient and of modern manners. He talks of the Lord Chief Justice of Athens, of bridewell, and aldermen; and makes his heathen characters swear British and Christian oaths, such as, “By the Lord Harry! —’Fore George!—’Tis as true as the Gospel!”

In the year 1746, Thomas Cooke, the well-known translator of Hesiod, published proposals for a complete translation of Plautus, but he printed only the *Amphitryon*. Dr Johnson has told, that Cooke lived twenty years on this translation of Plautus, for which he was always taking in subscriptions⁵⁹³.

In imitation of Colman, who, in his Terence, had introduced a new and elegant mode of translation in familiar blank verse, Mr Thornton, in 1667, published a version of seven of the plays after the same manner,—*Amphitryon*, *Miles Gloriosus*, *Captivi*, *Trinummus*, *Mercator*, *Aulularia*, *Rudens*. Of these, the translation of the *Mercator* was furnished by Colman, and that of the *Captivi* by Mr Warner. Thornton intended to have translated the remaining thirteen, but was prevented by death. The work, however, was continued by Mr. Warner, who had translated the *Captivi*. To both versions, there were subjoined remarks, chiefly collected from the best commentators, and from the notes of the French translators of Plautus.

TERENCE.

The MSS. of Terence which were coeval with the age of the author, or shortly posterior to it, were corrupted from the same cause as the MSS. of Plautus. Varro says, that, in his time, the copies of Terence then existing were extremely corrupt. He is, however, one of the classics whose works cannot properly be said to have been discovered at the revival of literature, as, in fact, his comedies never were lost. They were commented on, during the later ages of the empire, by Æmilius Asper, Valerius Probus, Martius Salutaris, Flavius Caper, and Helenius Acro; and towards the end of the fifth century, Rufinus wrote a diatribe on the metres of Terence. Sulpicius Apollinaris, a grammarian of the second century, composed arguments to the plays, and Ælius Donatus commented on them in the fourth century. The person styling himself Calliopius, revised and amended, in the eighth century, a MS. which was long preserved in the Vatican. Eugraphius commented on Terence, again, in the tenth, and Calpurnius in the middle of the fifteenth century. Guiniforte delivered lectures on Terence at Novarra in 1430, and Filelfo at Florence about the same period⁵⁹⁴. Petrarch, too, when Leontius Pilatus, disgusted with Italy, returned to his native country, gave him a copy of Terence as his travelling companion,—a foolish present, as Petrarch adds, for there is no resemblance between the most gloomy of all the Greeks, and the most lively of the Africans. As Petrarch at this time seems to have cordially disliked Leontius, it is not probable that the copy of Terence he gave him was very scarce. All this shows, that the six plays of Terence were not merely extant, but very common in Italy, during the dark ages. One of the oldest MSS. of Terence, and that which was probably used in the earliest printed editions, was preserved in the Vatican library: Fabricius has described it as written by Hrodogarius in the time of Charlemagne, and as revised by Calliopius⁵⁹⁵. Another MS. of Terence in the Vatican library, is one which, in the sixteenth century, had fallen into the possession of Cardinal Bembo. It had been revised by Politian⁵⁹⁶, who wrote on it, in his own hand, that he had never seen one [pg A-29]more ancient: —“Ego, Angelus Politianus, homo vetustatis minime incuriosus, nullum me

vidisse, ad hanc diem, codicem vetustiores fateor.” Its age, when Fabricius wrote, in 1698, was, as that author testifies, more than a thousand years, which places its transcription at the latest in 698. In this MS. there is a division of verses which is not employed in that above mentioned, written by Hrodogarius. Politian corrected from it, with his own hand, a copy which was in the Laurentian library, and collated with it another, which subsequently belonged to Petrus Victorius. After the death of Cardinal Bembo, this ancient MS. came into the possession of Fulvius Ursinus, and was by him bequeathed to the Vatican library⁵⁹⁷.

There is much uncertainty with regard to the *Editio Princeps* of Terence, and, indeed, with regard to most of the editions of his works which appeared during the fifteenth century. That printed by Mentelin at Strasburg, without date, but supposed to be 1468, seems now to be considered as having the best claims to priority⁵⁹⁸. The Terence printed by Pynson in 1497, was, I believe, the first Latin classic published in this country. The earliest editions of Terence are without any separation of verses, the division of them having been first introduced in the edition of 1487, according to the arrangement made by Politian from Cardinal Bembo’s copy. Westerhovius, in the *prolegomena* to his edition, 1726, enumerates not fewer than 248 editions of Terence previous to his time. Though the presses of the Aldi (1517–21), the Stephenses (1529–52, &c.), and the Elzevirs (1635), were successively employed in these editions, the text of Terence does not seem to have engaged the attention of any of the most eminent scholars or critics of the sixteenth and seventeenth centuries, with the exception of Muretus. The edition of Faernus, (Florence, 1565,) for which various valuable MSS. were collated, became the foundation of almost all subsequent impressions, particularly that of Westerhovius, which is usually accounted the best edition of Terence. It is nevertheless declared, by Mr Dibdin, “to be more admirable for elaborate care and research, than the exhibition of any critical niceties in the construction of the text, or the illustration of difficult passages.” It contains the Commentaries of Donatus, Calpurnius, and Eugraphius, and there are prefixed the Life of Terence, attributed to Suetonius,—a dissertation of D. Heinsius, *Ad Horatii de Plauto et Terentio judicium*,—Evanthius, *De Tragœdiâ et Comœdiâ*,—and a treatise, compiled by the editor from the best authorities, concerning the scenic representations of the Romans.

Bentley's first edition of Terence was printed at Cambridge in the same year with that of Westerhovius. One of Bentley's great objects was the reformation of the metres of Terence, concerning which he prefixed a learned dissertation. The boldness of his alterations on the text, which were in a great measure calculated to serve this purpose, drew down on him, in his own age, the appellation of "slashing Bentley," and repeated castigation from subsequent editors.

Of the more recent editions, that of Zeunius (Leipsic, 1774) is deservedly accounted the best in point of critical excellence. There are, however, three German editions still more recent; that by Schmieder, (Halle, 1794,) by Bothe, (Magdeburg, 1806,) and by Perlet, (Leipsic, 1821;) which last is chiefly remarkable for its great number of typographical errors—about as numerous as those in one of the old English *Pearl Bibles*.

The plays of Terence being much less numerous than those of Plautus, translations of the whole of them appeared at an earlier period, both in Italian and French. The first complete *Italian* translation of Terence was in prose. It is dedicated to Benedetto Curtio, by a person calling himself Borgofranco; but from the ambiguity of some expressions in this dedication, there has been a dispute, whether he be the author, or only the editor of the version—Fontanini supporting the former, and Apostolo Zeno the latter proposition⁵⁹⁹. It was first printed at Venice, 1533; and Paitoni enumerates six subsequent editions of it in the course of the sixteenth century. The next version was that of Giovanni Fabrini, which, as we learn by the title, is rendered word for word from the original; it was printed at Venice, [pg A-30]1548. A third prose translation, published at Rome, 1612, is dedicated to the Cardinal Borghese by the printer Zanetti, who mentions, that it was the work of an unknown author, which had fallen accidentally into his hands: Fontanini, however, and Apost. Zeno, have long since discovered, that the author was called Cristoforo Rosario. Crescimbeni speaks favourably of a version by the Marchioness of Malespini. Another lady, Luisa Bergalli, had translated in *verso sciolto*, and printed separately, some of the plays of Terence: These she collected, and, having completed

the remainder, published them together at Venice, in 1733. In 1736, a splendid edition of a poetical translation of Terence, and accompanied by the Latin, was printed at Urbino, with figures of the actors, taken from a MS. preserved in the Vatican. It is written in *verso sciolto*, except the prologues, which are in *versi sdrucchioli*. The author, who was Nicholas Fortiguerra, and who died before his version was printed, says, that the comedies are *nunc primum Italicis versibus redditæ*⁶⁰⁰; but in this he had not been sufficiently informed, as his version was preceded by that of Luisa Bergalli, and by many separate translations of each individual play. A translation of two of Terence's plays, the *Andria* and *Eunuchus*, into *versi sdrucchioli*, by Giustiano de Candia, was printed by Paullus Manutius in 1544⁶⁰¹. Three of Terence's plays, the *Andria*, *Eunuchus*, and *Heautontimorumenos*, were subsequently translated in *versi sdrucchioli*, by the Abbé Bellaviti, and published at Bassan in 1758.

It is not certain who was the author of the first *French* translation of Terence, or even at what period he existed. Du Verdier and Fabricius say, he was Octavien de Saint Gelais, Bishop of Angouleme, who lived in the reign of Charles VIII. This, however, is doubtful, since Pierre Grosnet, a French poet, contemporary with the Bishop, while mentioning the other classics which he had translated, says nothing of any version of Terence by him, but expressly mentions one by Gilles Cybile—

“Maistre Gilles nommé Cybile,
Il s'est montré très-fort habile:
Car il a tout traduit Therence
Ou il y a mainte sentence⁶⁰².”

The author, whoever he may be, mentions, that the translation was made by order of the King; but he does not specify by which of the French monarchs the command was given. His work was first printed, but without date, by Anthony Verard, so well known as the printer of some of the earliest romances of chivalry; and as Verard died in 1520, it must have been printed before that date⁶⁰³. It is in one volume folio, ornamented with figures in wood-cuts, and is entitled, *Le Grant Therence en François, tant en rime qu'en prose, avecques le Latin*. As this title imports, there is both a prose and verse translation; and the Latin text is likewise given. It is difficult to

say which of the translations is worst; that in verse, which is in lines of eight syllables, is sometimes almost unintelligible, and the variation of masculine and feminine rhymes, is scarcely ever attended to.

The translation, printed 1583, with the Latin text, and of which the author is likewise unknown, is little superior to that by which it was preceded. Beauchamp, in his *Recherches sur les Théâtres de France*, mentions two other translations of the sixteenth century—one in 1566, the other in 1584. The first by Jean Bourlier, is in prose—the second is in rhyme, and is translated verse for verse. Mad. Dacier includes all the versions of the sixteenth century in one general censure, only excepting that of the *Eunuch* by Baif, printed 1573, in his *jeux poétiques*. It is in lines of eight and ten syllables, and was undertaken by order of Queen Catharine, mother of Charles IX. Mad. Dacier pronounces it to be a good translation, except that, in about twenty passages, the sense of the original author has been mistaken. It is remarked by Goujet, in his *Bibliothèque Française*, that if Mad. Dacier had [pg A-31]been acquainted with the *Andrian*, by Bonaventure des Perriers, printed in 1537, she would have made an exception in favour of it also. Bonaventure was the valet of Margaret, Queen of Navarre, and after her death the editor of her tales, and himself the author of a collection in a similar taste. He wrote at a time when the French language was at its highest perfection, being purified from the coarseness which appeared in the romances of chivalry, and yet retaining that energy and simplicity, which it in a great measure lost, soon after the accession of the Bourbons. This version was one of Bonaventure's first productions, as, in the *Avis aux Lecteurs*, he says, "Que c'était son apprentissage:" he intended to have translated the whole plays of Terence, but was prevented by his tragical death. The same comedy chosen by Bonaventure des Perriers, was translated into prose by Charles Stephens, brother of the celebrated printers.

The Abbé Marolles has succeeded no better in his translation of Terence, than in that of Plautus. We recognize in it the same heaviness—the same want of elegance and fidelity to the original. Chapelain remarks, "Que ce traducteur étoit l'Antipode du bon sens, et qu'il s'éloignoit partout de l'intelligence des auteurs qui avoient le malheur de passer par ses mains."

His translation appeared in 1659, in two volumes 8vo, accompanied by remarks, in the same taste as those with which he had loaded his Plautus.

About this period, the Gentlemen of the Port-Royal, in France, paid considerable attention to the education of youth, and to the cultivation of classical learning. M. de Sacy, a distinguished member of that religious association, and well known in his day as the author of the *Heures de Port-Royal*, translated into prose the *Andria*, *Adelphi*, and *Phormio*⁶⁰⁴. This version, which he printed in 1647, under the assumed name of M. de Saint-Aubin, is much praised in the *Parnasse Reformé*, and the *Jugemens des Sçavans*. There were many subsequent editions of it, and some even after the appearance of the translation by Mad. Dacier. The version of the other three comedies, by the Sieur de Martignac, was intended, and announced as a supplement, or continuation of the work of M. de Sacy.

It still remains for me to mention the translation of Terence by Mad. Dacier. This lady was advised against the undertaking by her friends, but she was determined to persevere⁶⁰⁵. She rose at five o'clock every morning, during a whole winter, in the course of which she completed four comedies; but having perused them at the end of some months, she thought them too much laboured and deficient in ease. She therefore threw them into the fire, and, with more moderation, recommenced her labour, which she at length completed, with satisfaction to herself and the public. Her translation was printed in 1688, 3 vols. 12mo, accompanied with the Latin text, a preface, a life of the poet, and remarks on each of his pieces. She has not entered, as in her translations of Plautus, into a particular examination of every scene, but has contented herself with some general observations. This lady has also made considerable changes as to the commencement and termination of the scenes and acts; and her conjectures on these points are said to have been afterwards confirmed by an authoritative and excellent MS., discovered in the *Bibliothèque de Roi*⁶⁰⁶. The first edition was improved on, in one subsequently printed at Rotterdam in 1717, which was also ornamented with figures from two MSS. There is yet a more recent translation by Le Monnier, 1771, which is now accounted the best.

The first translation which appeared in this country, and which is entitled "Terence in Englysh," is without date, but is supposed to have been printed

in 1520. It was followed by Bernard's translation, 1598—Hoole's, 1670—Echard's, 1694—and Dr Patrick's, 1745. All those prose versions are flat and obsolete, and in many places unfaithful to their original. At length Colman published a translation in familiar blank verse, in which he has succeeded extremely well. He has seldom mistaken the sense of his author, and has frequently attained to his polished ease of style and manner. The notes, which have been judiciously selected from former commentators, with some observations of his own, form a valuable part of the work.

[pg A-32]

LUCILIUS.

F. Douza was the first who collected the fragments of this satiric poet, and formed them into a *cento*. Having shewn his MS. and notes to Joseph Scaliger, he was encouraged to print them, and an edition accordingly came forth at Leyden, in 1597. It soon, however, became very scarce. A single copy of it was accidentally discovered by Vulpius, in one of the principal public libraries of Italy; but, owing to the place which it had occupied, it had been so destroyed by constant eaves-dropping from the roof of the house, that when he laid his hands on it, it was scarcely legible. Having restored, however, and amended the text as far as possible, he reprinted it at Padua in 1735.

LUCRETIVS.

The work of Lucretius, like the *Æneid* of Virgil, had not received the finishing hand of its author, at the period of his death. The tradition that Cicero revised it, and gave it to the public, does not rest on any authority more ancient than that of Eusebius; and, had the story been true, it would probably have been mentioned in some part of Cicero's voluminous writings, or those of the early critics. Eichstädt⁶⁰⁷, while he denies the revisal by Cicero, is of opinion that it had been corrected by some critic or grammarian; and that thus two MSS., differing in many respects from each other, had descended to posterity—the one as it came from the hand of the poet, and the other as amended by the reviser. This he attempts to prove from the great inequality of the language—now obsolete and rugged—now polished and refined—which difference can only, he thinks, be accounted for, from the original and corrected copies having been mixed together in some of those middle-age transcriptions, on which the first printed editions were formed. The old grammarians, too, he alleges, frequently quote verses of Lucretius, which no longer compose parts of his poem, and which therefore must have been altogether omitted by the corrector; and, finally, the readings in the different MSS. are so widely different, that it is incredible that the variations could have proceeded from the transcribers or interpolators, and could have been occasioned only by the author or reviser of the poem.

But though not completely polished by the author, there is no ground for the conjecture, that the poem ever consisted of more than the present six books—an opinion which seems to have originated in an orthographical error, and which is contradictory to the very words of the poet himself.⁶⁰⁸

The work of Lucretius does not appear to have been popular at Rome, and the MSS. of it were probably not very numerous in the latter ages of the empire. It is quoted by Raban Maur, Abbot of Fulda, in his book *De Universo*⁶⁰⁹, which was written in the ninth century. The copies of it,

however, seem to have totally disappeared, previous to the revival of literature; but at length Poggio Bracciolini, while attending the Council of Constance, whither he repaired in 1414, discovered a MS. in the monastery of St Gal, about twenty miles from that city⁶¹⁰. It is from the following lines, in a Latin elegy, by Cristoforo Landini, on the death of this celebrated ornament of his age, that we learn to whom we are indebted for the first of philosophic poems. Landini, recording the discoveries of his friend, exclaims—

“Illius manu, nobis, doctissime rhetor,
Integer in Latium, Quintiliane, redis;
Et te, Lucreti, longo post tempore, tandem
Civibus et Patriæ reddit habere tuæ.”

Poggio sent the newly-discovered treasure to Niccolo Niccoli, who kept the original MS. fourteen years. Poggio earnestly demanded it back, and at length ob[pg A-33]tained it; but before it was restored, Niccoli made from it, with his own hand, a transcript, which is still extant in the Laurentian library⁶¹¹.

The edition published at Verona, 1486, which is not a very correct one, was long accounted the *Editio Princeps* of Lucretius. A more ancient impression, however, printed at Brescia, 1473, has recently become known to bibliographers. It was edited by Ferrandus from a single MS. copy, which was the only one he could procure. But though he had not the advantage of collating different MSS., the edition is still considered valuable, for its accuracy and excellent readings. There are, I believe, only three copies of it now extant, two of which are at present in England. The text of Lucretius was much corrupted in the subsequent editions of the fifteenth century, and even in that of Aldus, published at Venice in 1500, of which Avancius was the editor, and which was the first *Latin* classic printed by Aldus⁶¹². This was partly occasioned by the second edition of 1486 being unfortunately chosen as the basis of all of them, instead of the prior and preferable edition, printed at Brescia. In a few, but very few readings, the second edition has improved on the first, as, for example, in the beautiful description of the helplessness of a new-born infant—

“Navita, nudus humi jacet infans, *indigus* omni

Vitali auxilio,” ——

where the Brescian edition reads *indignus*, instead of *indigus*. And again, in the fifth book—

“Nec poterat quenquam placidi pellacia ponti,
Subdola *pellicere* in fraudem, ridentibus undis,”

where the Brescian edition reads *pollicere*, instead of *pellicere*, which seems to be wrong. At length Baptista Pius, by aid of some emendations of his preceptor, Philippus Beroaldus, to which he had access, and by a laborious collation of MSS., succeeded in a great measure in restoring the depraved text of his author to its original purity. His edition, printed at Bologna in 1511, and the two Aldine editions, published in 1515, under the superintendence of Nevagero, who was a much better editor than Avancius, continued to be regarded as those of highest authority till 1563, when Lambinus printed at Paris an edition, prepared from the collation of five original MSS., and all the previous editions of any note, except the first and second, which seem to have been unknown to him. The text, as he boasts in the preface, was corrected in 800 different places, and was accompanied by a very ample commentary. Lambinus was succeeded by Gifanius, who was more a grammarian than an acute or tasteful critic. He amassed together, without discrimination, the notes and conjectures on Lucretius, of all the scholars of his own and the preceding age. Douza, in a sort of satirical verses, accused him of having appropriated and published in his edition, without acknowledgment, some writings of L. Fruterius, which had been committed to him on death-bed, in order to be printed. His chief merit lies in what relates to grammatical interpretation, and the explanation of ancient customs, and in a more ample collection of parallel passages than had hitherto been made. The editions of D. Pareus, (Frankfort, 1631,) and of Nardius, (Florence, 1647,) were not better than that of Gifanius; and the Delphin edition of Lucretius, by M. Le Fay, has long been known as the very worst of the class to which it belongs. “Notæ ejus,” says Fabricius, “plenæ sunt pudendis hallucinationibus.” Indeed, so much ashamed of it were his colleagues, and those who directed this great undertaking of the Delphin classics, that they attempted, though unsuccessfully, to suppress it.

Nearly a century and a half had elapsed, from the first publication of the edition of Lambinus, without a tolerable new impression of Lucretius being offered to the public, when Creech, better known as the translator of Lucretius, printed, in 1695, a Latin edition of the poet, to whose elucidation he had devoted his life. His study of the Epicurean system, and intimate acquaintance with the works of Gassendi, [pg A-34]fully qualified him for the philosophic illustration of his favourite author. On the whole, however, Havercamp's edition, Leyden, 1725, is the best which has yet appeared of Lucretius. It was prepared from the collation of twenty-five MSS., as well as of the most ancient editions, and contained not only the whole annotations of Creech and Lambinus, but also some notes of Isaac Vossius, which had not previously been printed. The prefaces of the most important editions are prefixed; and the only fault which has been found with it is, that in his new readings the editor has sometimes injured the harmony of the versification. Lucretius certainly can not be considered as one of the classics who have been most fortunate in their editors and commentators. In the sixteenth and seventeenth centuries, he failed to obtain the care of the most pre-eminent critics of the age, and was thus left to the conjectures of second-rate scholars. It was his lot to be assigned to the most ignorant and barbarous of the Delphin editors; and his catastrophe has been completed by falling into the hands of Wakefield, whose edition is one of the most injudicious and tasteless that ever issued from the press. In preparing this work, which is dedicated to Mr Fox, the editor had the use of several MSS. in the University of Cambridge and the British Museum; and also some MS. notes of Bentley, found in a copy of a printed edition, which originally belonged to Dr Mead. In his preface, he expresses himself with much asperity against Mr Cumberland, for withholding from him some other MS. notes of Bentley, which were in his possession. It would have been fortunate for him if he had never seen any of Bentley's annotations, since many of his worst readings are derived from that source. By an assiduous perusal of MSS. and the old editions, he has restored as much of the ancient Latin orthography, as renders the perusal of the poet irksome, though, by his own confession, he has not in this been uniform and consistent; and he has most laboriously amassed, particularly from Virgil, a multitude of supposed parallel passages, many of which have little resemblance to the lines with which they are compared. The long Latin poem, addressed to Fox, lamenting the horrors of war, does not compensate for the very brief and

unsatisfactory notices, as to every thing that regards the life and writings of the poet, and the previous editions of his works. The commentary is dull, beyond the proverbial dulness of commentaries; and wherever there was a disputed or doubtful reading, that one is generally selected, which is most tame and unmeaning—most grating to the ear, and most foreign, both to the spirit of the poet, and of poetry in general. I shall just select one instance from each book, as an example of the manner in which the finest lines have been utterly destroyed by the alteration of a single word, or even letter, and I shall choose such passages as are familiar to every one. In his magnificent eulogy of Epicurus, in the first book, Lucretius, in admiration of the enlightened boldness of that philosopher, described him as one—

“Quem neque fama Deûm, nec fulmina, nec minitanti
Murmure compressit cœlum.”

The expression *Fama Deûm* implies, that Epicurus could not be restrained by that imposing character, with which deep-rooted prejudice, and the authority of fable, had invested the gods of Olympus—a thought highly poetical, and at the same time panegyrical of the mighty mind which had disregarded all this superstitious renown. But Wakefield, by the alteration of a single letter, strips the passage both of its sense and poetry—he reads,

“Quem neque *fana* Deûm, nec fulmina, nec minitanti,”

which imports that the determined mind of Epicurus could not be controlled by the temples of the gods, which, if it has any meaning at all, is one most frigid and puerile. This innovation, which the editor calls, in the note, *egregiam emendationem*, is not supported, as far as he informs us, by the authority of any ancient MS. or edition whatever, but it was so written on the margin of the copy of Lucretius, which had belonged to Bentley, where it was placed, as Wakefield admits, *nude ascripta et indefensa*. In the second book, Lucretius maintaining that absence of splendour is no diminution of happiness, says,

[pg A-35]

“Si non aurea sunt juvenum simulacra per ædes, &c.

* * * * *

Nec citharæ reboant laqueata aurataque *tecta*.”

But Wakefield, instead of *tecta*, reads *templa*, and justifies his reading, not on the authority of any ancient MSS., but by showing that *templa* is used for *tecta* by some authors, and applied to private dwellings! The third book commences very spiritedly with an eulogy of Epicurus:

“E tenebris tantis tam clarum extollere lumen
Qui primus potuisti, illustrans commoda vitæ,
Te sequor, O Graiæ gentis decus!”

This sudden and beautiful apostrophe is weakened and destroyed by a change to

“O tenebris tantis tam clarum extollere lumen.”

The lines are rendered worse by the interjection being thus twice repeated in the course of three verses. In the fourth book, Lucretius, alluding to the merits of his own work, says,

“Deinde, quod obscurâ de re tam lucida *pango*
Carmina, Musæo contingens cuncta lepore.”

Here the word *pango* presents us with the image of the poet at his lyre, pouring forth his mellifluous verses, and it has besides, in its sound, something of the twang of a musical instrument. Wakefield, however, has changed the word into *pando*, which reminds us only of transcription and publication. Lucretius, in book fifth, assigns as the reason why mankind supposed that the abode of the gods was in heaven,

“Per cœlum volvi quia nox et luna videtur,
Luna, dies, et nox, et noctis signa *serena*!”

This last word Wakefield has changed into *severa*, which greatly impairs the beauty of the line. *Noctis signa serena*, are the stars and planets; but if instead of these be substituted the *signa severa*, the passage becomes tautological, for the *signa severa* are introduced immediately afterwards in the line

“Noctivagæque faces cœli flammæque volantes.”

I have only selected passages where Wakefield has departed from the usual readings, without support from any ancient edition or authoritative MS. whatever. The instances where, in a variation of the MSS. and editions, he has chosen the worse reading, are innumerable.

The first edition of Wakefield's Lucretius was printed at London in 1796; the second at Glasgow, 1813, which is rendered more valuable than the first, by a running collation in the last volume of the readings of the *Editio Princeps*, printed at Brescia; that of Verona, 1486—Venice 1495—the Aldine edition, 1500—and the Bipontine, 1782, which places in a very striking point of view the superiority of the *Editio Princeps* over those by which it was immediately succeeded. At the end of this edition, there are published some MS. notes and emendations, taken from Bentley's own copy of Faber's edition of Lucretius, in the library of the British Museum. They are not of much consequence, and though a few of them are doubtless improvements on Faber's text, yet, taken as a whole, they would injure the lines of the poet, should they be unfortunately adopted in subsequent editions.

Eichstädt, in his recent impression, published at Leipsic, has chiefly followed the text of Wakefield, but has occasionally deviated from it when he thought the innovations too bold. He had the advantage of consulting the *Editio Princeps*, which no modern editor enjoyed. He has prefixed Wakefield's prefaces, and a long dissertation of his own, on the Life and Poetical Writings of Lucretius, in which he scarcely does justice to the poetical genius of his author. The first volume, containing the text and a very copious verbal index, was printed at Leipsic in 1801. It is intended that the second volume should comprise the commentary, but it has not yet been published.

[pg A-36]

There is hardly any poet more difficult to translate happily than Lucretius. In the abstruse and jejune philosophical discussions which occupy so large a proportion of the poem, it is hardly possible, without a sacrifice of perspicuity, to retain the harmony of versification; and, in the ornamental

passages, the diction is so simple, pure, and melodious, that it is an enterprize of no small difficulty to translate with fidelity and elegance.

In consequence, perhaps, of the freedom of his philosophical, and a misrepresentation of his moral tenets, Lucretius was longer of being rendered into the *Italian* language than almost any other classic. It was near the end of the seventeenth century, before any version was executed, when a translation into *verso sciolto*, was undertaken by Marchetti, Professor of Mathematics and Philosophy in the University of Pisa. Marchetti has evidently translated from the edition of Lambinus—the best which had at that time appeared. His version, however, though completed in the seventeenth century, was not published till 1717, three years after his death, when it was printed, with the date of London, under the care of a person styling himself Antinoo Rullo, with a prefatory dedication to the great Prince Eugene, in which the editor terms it, “la più grande, e la più bella poetic’ opera che nel passato secolo nascesse ad accrescere un nuovo lume di gloria ad Italia.” Public opinion, both in Italy and other countries, has confirmed that of the editor, and it is universally admitted, that the translator has succeeded in faithfully preserving the spirit and meaning of the Latin original, without forfeiting any of the beauties of the Italian language. It has been said, that such was the freedom and freshness of this performance, that unless previously informed as to the fact, no one could distinguish whether the Latin or Italian Lucretius was the original. Graziana, himself a celebrated poet, who had perused it in MS., thus justly characterizes its merits, in a letter addressed to the author:—“you have translated this poem with great felicity and ease; unfolding its sublime and scientific materials in a delicate style and elegant manner; and, what is still more to be admired, your diction seldom runs into a lengthened paraphrase, and never without the greatest judgment.” The perusal of this admirable translation was forbidden by the inquisition, but the prohibition did not prevent a subsequent impression of it from being printed at Lausanne, in 1761. This edition, which is in two volumes, contains an Italian translation of Polignac’s *Anti-Lucretius*, by F. Maria Ricci. The editor, Deregni, indeed declares that he would not have ventured to publish any translation of Lucretius, however excellent, unless accompanied by this powerful antidote. There are prefixed to this edition historical and critical notices; as

also the preface, and the *Protesta del Traduttore*, which had been inserted in the first edition.

Most of the *French* translations of Lucretius are in prose. Of all sorts of poetry, that called didactic, which consists in the detail of a regular system, or in rational precepts, which flow from each other in a connected train of thought, suffers least by being transfused into prose. Almost every didactic poet, however, enriches his work with such ornaments as spring out of his subject, though not strictly attached to it; but in no didactic poem are these passages so numerous and so charming as in that of Lucretius; and, accordingly, in a prose translation, while all that is systematic or preceptive may be rendered with propriety, all that belongs to embellishment, and which forms the principal grace of the original, appears impertinent and misplaced. The earliest translation of Lucretius into the French language, was by Guillaume des Autels, about the middle of the sixteenth century. The Abbé Morolles, already mentioned as the translator of Plautus and Terence, turned Lucretius into French prose: Of this version there were two editions, the first of which was printed in 1650. It was addressed to Christina, Queen of Sweden; and, as the author had been very liberal to this princess in compliment, he hoped she would be equally liberal in reward; but he was much deceived, and of this disappointment he bitterly complains in his Memoirs. Of this translation, Goujet remarks, that one is constantly obliged to have recourse to the Latin text, in order to comprehend its meaning⁶¹³. It was a good deal amended, however, in the second edition, 1659, under circumstances of which the author introduces an account in the list of his works subjoined to his translation of Virgil. Gassendi, who had profoundly studied the system of Epicurus and Lucretius, having procured a copy of Ma[pg A-37]rolles' first edition, he sent a few days before his death for the author, and pointed out to him, with his own hand, those passages in which he thought his translation defective, and also supplied him with a number of notes in illustration of the poet. The Abbé was thus provided with ample materials for the improvement of his work, and so pleased was he with his second edition, that he got a prohibition against reprinting the first introduced into the *Privilége* of the second. He inserted in it a *Discours Apologetique*, defending the translating and reading of Lucretius, and prefixed a dedication to M. Lamoignon, President of the Parliament, whom he now substituted for Queen Christina. Moliere having seen the first

edition of Marolles' prose translation, was thereby induced to render Lucretius into French verse. His original intention was to have versified the whole poem, but he afterwards confined his rhymes to the more decorative parts, and delivered the rest in plain prose. As he proceeded with his version, he uniformly rehearsed it both to Chapelle and Rohaut, who jointly testified their approbation of the performance. But it was destined to perish when brought very near its completion. A valet of the translator, who had charge of his dress-wig, being in want of paper to put it into curl, laid hold of a loose sheet of the version, which was immediately rent to pieces, and thrown into the fire as soon as it had performed its office. Moliere was one of the most irritable of the *genus irritabile vatum*, and the accident was too provoking to be endured. He resolved never to translate another line, and threw the whole remainder of his version into the flames, which had thus consumed a part of it⁶¹⁴. This abortive attempt of Moliere incited the Abbé Marolles to render the whole of Lucretius into verse. He completed this task in less than four months, and published the fruits of his labour in 1677. Rapidity of execution, however, is the only merit of which he has to boast. His translation is harsh, flat, and inverted; and it is also very diffuse: The poem of Lucretius consists of 7389 lines, and the version of not less than 12338⁶¹⁵.

Lucretius was subsequently translated into prose by the Baron des Coutures. His version, printed at Paris 1685, is somewhat better in point of style than those of Marolles, but is not more faithful to the original, being extremely paraphrastic. A Life of Lucretius, drawn up from the materials furnished by Hubert, Gifanius, Lambinus, and other commentators, is prefixed, and to every book is appended a small body of notes, which shew that the author was better acquainted with his subject than Marolles. Still, however, the poem of Lucretius was not much known in France during the seventeenth century, either in the original or translated form. Chaulieu, one of the most elegant and polished poets of that age, was so little acquainted with the moral lessons which it inculcated, as to write the following lines:—

—— “Epicure et Lucrece
M’ont appris que la Sagesse
Veut qu’au sortir d’un repas,
Ou des bras de sa maîtresse,

Content l'on aille là bas.”

At length La Grange translated Lucretius in 1768, and Le Blanc de Guillet in 1788. Brunet speaks highly of the version of La Grange, which he seems to think is the best in the French language, and he says that of Le Blanc de Guillet is *peu recherché*. Mr Good, in mentioning the various translations of Lucretius, does not allude to the production of La Grange, but speaks highly of the version of Le Blanc de Guillet. He is sometimes, he admits, incorrect, and still more frequently obscure: “On the whole, however,” he continues, “it is a work of great merit, and ranks second amid the translations of Lucretius, which have yet appeared in any nation:” Of course, it ranges immediately next to that of Marchetti. This version is accompanied with the Latin text in alternate pages. It is decorated with plates, [pg A-38]illustrated by notes, and introduced by a comprehensive preliminary discourse, which contains a biography of the original author, drawn up from Gifanius and Creech, and also some general observations on the Epicurean philosophy.

The first attempt to transfer the poem of Lucretius into the *English* language, was made by Evelyn, the celebrated author of the *Sylva*. It was one of his earliest productions, having been printed in 1656. It was accompanied by an appendix of notes, which show considerable acquaintance with his subject, and there are prefixed to it complimentary letters or verses by Waller, Fanshaw, Sir Richard Brown, and Christopher Wasse. Evelyn commenced his arduous task with great enthusiasm, a due admiration of his original, and anxious desire to do it full justice. On actual trial, however, he became conscious of his own inability to produce, as he expresses it, “any traduction to equal the elegancy of the original;” and he accordingly closed his labours with the first book. To this resolution, the negligent manner in which his specimen of the translation was printed, contributed, as he alleges, in no small degree. Prefixed to the copy in the library at Wotton, is this note in his own handwriting: “Never was book so abominably misused by the printer; never copy so negligently surveyed, by one who undertook to look over the proof-sheets with all exactness and care, namely, Dr Triplet, well known for his ability, and who pretended to oblige me in my absence, and so readily offered himself. This good I received by it, that publishing it vainly, its ill success at the printer’s discouraged me with troubling the world with the rest⁶¹⁶.” This pretended

disgust, however, at the typography of his Lucretius, was probably a pretext. It is more likely that he was deterred from the farther execution of his version, either by its want of success, or by the hints which he received from some of his friends concerning the moral and religious danger of his undertaking. “For your Lucretius,” says Jeremy Taylor, in a letter to him, dated 16th April, 1656, “I perceive you have suffered the importunity of your too kind friends to prevail with you. I will not say to you that your Lucretius is as far distant from the severity of a Christian as the fair Ethiopian was from the duty of Bishop Heliodorus; for indeed it is nothing but what may become the labours of a Christian gentleman, those things only abated which our evil age needs not: for which also I hope you either have by notes, or will by preface, prepare a sufficient antidote; but since you are engaged in it, do not neglect to adorn it, and take what care of it it can require or need; for that neglect will be a reproof of your own act, and look as if you did it with an unsatisfied mind; and then you may make that to be wholly a sin, from which, only by prudence and charity, you could before be advised to abstain. But, sir, if you will give me leave, I will impose such a penance upon you, for your publication of Lucretius, as shall neither displease God nor you; and since you are busy in these things which may minister directly to learning, and indirectly to error, or the confidences of men, who, of themselves, are apt enough to hide their vices in irreligion, I know you will be willing, and will suffer to be entreated, to employ the same pen in the glorification of God, and the ministries of eucharist and prayer⁶¹⁷.”

In 1682, Creech, who was deterred by no such religious scruples, published his translation of the whole poem of Lucretius. As a scholar, he was eminently qualified for the arduous undertaking in which he had engaged: but he wrote with such haste, that his production everywhere betrays the inaccuracies of an author who acquiesces in the first suggestions of his mind, and who is more desirous of finishing, than ambitious of finishing well. Besides, he is at all times rather anxious to communicate the simple meaning of his original, than to exhibit any portion of the ornamental garb in which it is arrayed. Hence, though generally faithful to his author, he is almost everywhere deficient in one of the most striking characteristics of the Roman poet—grandeur and felicity of expression. He is often tame, prosaic, and even doggerel; and he sometimes discovers the conceits of a

vitiating taste, in the most direct opposition to the simple character and majestic genius of his Roman original. Pope said, “that Creech had greatly hurt his translation of Lucretius, by imitating Cowley, and bringing in turns even into some of the most grand parts⁶¹⁸.” It is also remarked by Dr Drake, “that in this version the couplet has led in almost [pg A-39]every page to the most ridiculous redundancies. A want of taste, however, in the selection of language, is as conspicuous in Creech as a deficiency of skill and address in the management of his versification⁶¹⁹.” The ample notes with which the translation is accompanied, are chiefly extracted from the works of Gassendi. A number of commendatory poems are prefixed, and among others one from Evelyn, in which he acknowledges, that Creech had succeeded in the glorious enterprize in which he himself had failed. Dryden was also much pleased with Creech’s translation, but this did not hinder him from versifying some of the higher and more ornamental passages, to which Creech had hardly done justice, as those at the beginning of the first and second books, the concluding part of the third book, against the fear of death, and of the fourth concerning the nature of love. On these fine passages Dryden bestowed the ease, the vigour, and harmony of his muse; but though executed with his accustomed spirit, his translations want the majestic solemn colouring of Lucretius, and are somewhat licentious and paraphrastic. For this, however, he accounts in his Poetical Miscellanies, in mentioning his translations in comparison with the version of Creech. “The ways of our translation,” he observes, “are very different—he follows Lucretius more closely than I have done, which became an interpreter to the whole poem, I take more liberty, because it best suited with my design, which was to make him as pleasing as I could. He had been too voluminous had he used my method in so long a work, and I had certainly taken his, had I made it my business to translate the whole.”

The translations by Creech and Dryden are both in rhyme. That of Mr Good, printed in 1805, is in blank verse, and it may well be doubted if this preference was conducive to the successful execution of his purpose. The translation is accompanied with the original text of Lucretius, printed from Wakefield’s edition, and very full notes are subjoined, containing passages exhibiting imitations of Lucretius by succeeding poets. The preface includes notices of preceding editions of his author, and the explanation of his own plan. Then follow a Life of Lucretius, and an Appendix to the Life,

comprehending an analysis and defence of the system of Epicurus, with a comparative sketch of most other philosophical theories, both ancient and modern.

The translation of Mr Good was succeeded, in 1813, by that of Dr Busby, which is in rhyme, and is introduced by enormous *prolegomena* on the Life and Genius of Lucretius, and the Philosophy and Morals of his Poem.

CATULLUS.

The MSS. of Catullus were defaced and imperfect, as far back as the time of Aulus Gellius⁶²⁰, who lived in the reigns of Adrian and the Antonines; and there were *variæ lectiones* in his age, as well as in the fifteenth century. There was a MS. of Catullus extant at Verona in the tenth century which was perused by the Bishop Raterius, who came from beyond the Alps, and who refers to it in his Discourses as a work he had never seen till his arrival at Verona. Another was possessed in the fourteenth century by Pastrengo, a Veronese gentleman, and a friend of Petrarch⁶²¹, who quotes it twice in his work *De Originibus*; but these and all other MSS. had entirely disappeared amid the confusions with which Italy was at that time agitated, and Catullus may, therefore, be considered as one of the classics brought to light at the revival of literature. The MS. containing the poems of Catullus was not found in Italy, but in one of the monasteries of France or Germany, (Scaliger says of France,) in the course of the fifteenth century, and according to Maffei, in 1425⁶²². All that we know concerning its discovery is contained in a barbarous Latin epigram, written by Guarinus of Verona, who chose to give his information on the subject in an almost unintelligible riddle. It was prefixed to an edition of Catullus, printed in Italy 1472, where it is entitled *Hextichum Guarini Veronensis Oratoris Clariss. in libellum V. Catulli ejus concivis*:

[pg A-40]

“Ad Patriam venio longis de finibus exul:
Causa mei reditûs compatriota fuit.
Scilicet a calamis tribuit cui Francia nomen,
Quique notat turbæ prætereuntis iter.
Quo licet ingenio vestrum celebrate Catullum
Quovis sub modio clausa papyrus erat.”

The first line explains that the MS. was brought to Italy from beyond the Alps, and the second that it was discovered by a countryman of Catullus, that is, by a citizen of Verona. The third line contains the grand *conundrum*. Some critics have supposed that it points out the name of a monastery where the MS. was discovered; others, that it designates the name of the person who found it. Lessing is of this last opinion; and, according to his interpretation, the line implies, that it was discovered by some one whose name is the French word for quills or pens, that is, *plumes*. The name nearest this is Plumatus, on which foundation Lessing attributes the discovery of Catullus to Bernardinus Plumatus, a great scholar and physician of Verona, who flourished during the last half of the fifteenth century⁶²³. This conjecture of Lessing was better founded than he himself seems to have been aware, as the second syllable in the name Plumatus is not remote from the French verb *hater*, which, in one sense, as the epigram expresses it—

“Notat turbæ prætereuntis iter.”

Lucius Pignorius, who thinks that these lines were not written by Guarinus of Verona, but that the MS. was discovered by him, also conjectures that it was found in a barn, since it is said in the last line, that it was concealed *sub modio*, and bushels are nowhere but in barns⁶²⁴. This is taking the line in its most literal signification, but the expression probably was meant only as proverbial.

The wretched situation in which this MS. was found, and the circumstance of its being the only one of any antiquity extant, sufficiently accounts for the numerous and evident corruptions of the text of Catullus, and for the editions of that poet presenting a greater number of various and contradictory readings than those of almost any other classic.

After this MS. was brought to Italy, it fell into the hands of Guarinus of Verona, who took much pains in correcting it, and it was further amended by his son Baptista Guarinus, as a third person of the family, Alexander Guarinus, informs us, in the *proæmium* to his edition of Catullus, 1521, addressed to Alphonso, third Duke of Ferrara. Baptista Guarinus, as Alexander farther mentions in his *proæmium*, published an edition of Catullus from the MS. which he had taken so much pains to correct, but

without any commentary. This edition, however, has now entirely disappeared; and that of 1472, printed by Spira, at Venice, in which Catullus is united with Tibullus and Propertius, is accounted the *Editio Princeps*. The different editions in which these poets have appeared conjoined, will be more conveniently enumerated hereafter: both in them, and in the impressions of Catullus printed separately, the editors had departed widely from the corrected text of Baptista Guarinus. Accordingly, Alexander Guarinus, in 1521, printed an edition of Catullus, with the view of restoring the genuine readings of his father and grandfather, who had wrought on the ancient MS. which was the prototype of all the others. It would appear, however, that the erroneous readings had become inveterate. Maffei, in his *Verona Illustrata*⁶²⁵, points out the absurd and unauthorized alterations of Vossius and Scaliger on the pure readings of the Guarini.

Muretus took charge of an edition of Catullus, which was printed by the younger Aldus Manutius in 1558. This production is not accounted such as might be expected from the consummate critic and scholar by whom it was prepared. Isaac Vossius had commented on Catullus; but his annotations lay concealed for many years after his death, till they were at length brought to light by his amanuensis Beverland, who, by means of this valuable acquisition, was enabled to prepare the best edition which had yet appeared of Catullus, and which was first printed in London in 1684. His commentary was on every point profoundly learned.—“Poetam,” says Harles, “commentario eruditissimo, ita tamen ut inverecundiâ illi interdum haud cederet, illustravit.” Vulpus published a yet better edition at [pg A-41]Padua, in 1737, in the preparation of which he made great use of the *Editio Princeps*. In the notes, he has introduced a new and most agreeable species of commentary,—illustrating his author by parallel passages from the ancient and modern poets, particularly the Italian; not such parallel passages as Wakefield has amassed, where the words *qui* or *atque* occur in both, but where there is an obvious imitation or resemblance in the thought or image. He has also prefixed a diatribe *De Metris Catullianis*. In the year 1738, a curious fraud was practised with regard to Catullus. Carradini de Allio, a scholar of some note, published at Venice an edition, which he pretended to have printed from an ancient MS. accidentally discovered by him in a pottery, without a cover or title-page, and all besmeared with filth. It was dedicated to the Elector of Bavaria; and though one of the most

impudent cheats of the sort that had been practised since the time of Sigonius and Annius Viterbiensis, it imposed on many learned men. The credit it obtained, introduced new disorders into the text of Catullus; and when the fraud was at length detected, the contriver of it only laughed at the temporary success of his imposture.

Doering, in early life, had printed an edition of the principal poem of Catullus, the *Epithalamium of Peleus and Thetis*. Encouraged by the success of this publication, he subsequently prepared a complete edition of Catullus, which came forth at Leipsic in 1788.

The *Epithalamium of Peleus and Thetis*, the chief production of Catullus, was translated into *Italian* by Ludovico Dolce, and printed in 1538, at the end of a small volume of miscellaneous works dedicated to Titian. In the colophon it is said, “Il fine dell’ epitalamio tradotto per M. Lod. Dolce, in verso sciolto.” This *Epithalamium* was also translated in the eighteenth century, into *Ottava Rima*, by Parisotti, with a long preface, in which he maintains that the *ottava*, or *terza rima*, is better adapted for the translation of the Latin classics than *versi sciolti*. Ginguené, in the preface to his French translation of this *Epithalamium*, mentions three other Italian versions of the last century, those of Neruci, Torelli, and the Count d’Ayano, all of which, he says, possess considerable merit. He also informs us, that Antonio Conti had commenced a translation of this poem, which was found incomplete at his death; but it was accompanied by many valuable criticisms and annotations, which have been much employed in a Memoir inserted in the transactions of the French Academy, by M. D’Arnaud, whose plagiarisms from the Italian author have been pointed out at full length by M. Ginguené, in his preface. Conti completed a translation of the *Coma Berenices* in *versi sciolti*, accompanied by an explanation of the subject, and learned notes, which was printed along with his works at Venice, in 1739. The *Coma Berenices* was also translated in *terza rima* by the Neapolitan Saverio Mattei, and by Pagnini in *versi sdrucchioli*. At length, in 1803, M. Ugo Foscolo, now well known in this country as the author of the Letters of Jacopo Ortis, printed at Milan a translation of this elegy, in blank

verse, under the title of *La Chioma di Berenice, poema di Callimaco, tradotto da Valerio Catullo, volgarizzato ed illustrato da Ugo Foscolo*. The version is preceded by four dissertations; the text is accompanied with notes, and followed by fourteen *considerazioni*, as they are called, in which the author severely censures and satirizes the pedantic commentators and philologists of his country. Mr Hobhouse, in his *Illustrations of Childe Harold*⁶²⁶, says, that the whole lucubration, extending to nearly 300 pages of large octavo, is a grave and continued irony on the verbal criticisms of commentators. “Some of the learned,” he continues, “fell into the snare, and Foscolo, who had issued only a few copies, now added a Farewell to his readers, in which he repays their praises, by exposing the mysteries and abuses of the philological art. Those whom he had deceived must have been not a little irritated to find that his frequent citations were invented for the occasion, and that his commentary had been purposely sprinkled with many of the grossest faults.”

The whole works of Catullus were first translated into Italian by the Abbot Francis Maria Biacca of Parma, who concealed his real designation, according to the affected fashion of the times, under the appellation of Parmindo Ibichense, *Pastor Arcade*. The Abbot died in 1735, and his version was printed at Milan after his death, in 1740, in the twenty-first volume of the General Collection of [pg A-42]Italian Translations from the Ancient Latin Poets. The most recent Italian version is that of Puccini, printed at Pisa in 1805. It is very deficient in point of spirit; and the last English translator of Catullus observes, “that it is chiefly remarkable for the squeamishness with which it omits all warmth in the love verses, while it unblushingly retains some of the most disgusting passages.”

The *French* have at all times dealt much in prose translations of the Classics. These did not suit very well for the epic poems, or even comedies or the Romans; and were totally abhorrent from the lyrical or epigrammatic productions of Catullus. A great deal of the beauty of every poem consists in the melody of its numbers. But there are certain species of poetry, of which the *chief* merit lies in the sweetness and harmony of versification. A boldness of figures, too—a luxuriance of imagery—a frequent use of metaphors—a quickness of transition—a freedom of digression, which are allowable in every sort of poetry, are to many species of it essential. But

these are quite unsuitable to the character of prose, and when seen in a prose translation, they appear preposterous and out of place, because they are never found in any original prose composition. Now, the beauties of Catullus are precisely of that nature, of which it is impossible to convey the smallest idea in a prose translation. Many of his poems are of a lyric description, in which a greater degree of irregularity of thought, and a more unrestrained exuberance of fancy, are permitted than in any other kind of composition. To attempt, therefore, a translation of a lyric poem into prose, is the most absurd of all undertakings; for those very characters of the original, which are essential to it, and which constitute its highest beauty, if transferred to a prose translation, become unpardonable blemishes. What could be more ridiculous than a French prose translation of the wild dithyrambics of Atis, or the fervent and almost phrenzied love verses to Lesbia? It is from poetry that the elegies of Catullus derive almost all their tenderness—his amorous verses all their delicacy, playfulness, or voluptuousness—and his epigrams all their sting.

That indefatigable translator of the Latin poets, the Abbé Marolles, was the first person who *traduced* Catullus in French. He was an author, of all others, the worst qualified to succeed in the task which he had undertaken, as his heavy and leaden pen was ill adapted to express the elegant light graces of his original. His prose translation was printed in 1653. It was succeeded, in 1676, by one in verse, also by Marolles, but of which only thirty copies were thrown off and distributed among the translator's friends. La Chapelle (not the author of the *Voyage*) translated most of the poems of Catullus, and inserted them in his *Histoire Galante*, entitled the *Amours de Catulle*, printed in 1680, which relates, in the style of an amatory prose romance, the adventures and intrigues of Catullus, his friends, and mistresses. The next translation, though not of the whole of his pieces, is by M. Pezay, printed 1771, who misses no opportunity of ridiculing Marolles and his work. It is in prose, as is also a more recent French translation by M. Noel, Paris, 1806. The first volume of Noel's work contains the *Discours Preliminaire* on the Life, Poetry, Editions, and Translations of Catullus; and the version itself, which is accompanied with the Latin text. The second volume comprises a very large body of notes, chiefly exhibiting the imitations of Catullus by French poets. Brunet mentions a translation

still more recent, by M. Mollevaut, which is in verse, and proves that more justice may be done to Catullus in rhyme than prose.

An *English* translation of Catullus, usually ascribed to Dr Nott, was published anonymously in 1795, accompanied with some valuable annotations. He was the first to give, as he himself says, the whole of Catullus, without reserve, and in some way or other, to translate all his indecencies. This version adheres very closely to the original, and has the merit of being simple and literal, but it is meagre and inelegant: it is defective in ease and freedom, and but seldom presents us with any of those graces of poetry, and indeed almost unattainable felicities of diction, which characterize the original. While writing this, the poetical translation by Mr Lamb has come to my hands. It is also furnished with a long preface and notes, which appear to be tasteful and amusing. The chief objections to the translation are quite the reverse of those which have been stated to the version by which it was preceded—it seems defective in point of fidelity, and is too diffuse and redundant. No author suffers so much by being diluted as Catullus, and he can only be given with effect by a brevity as condensed and *piquant* as his own. Indeed, the thoughts and language of Catullus throw more difficulties in the way of a translator, than those of almost any other classic author. His peculiarities of feeling—his idiomatic delicacies [pg A-43]of style—that light ineffable grace—that elegant ease and spirit, with which he was more richly endued than almost any other poet, can hardly pass through the hands of a translator without being in some degree sullied or alloyed.

LABERIUS—PUBLIUS SYRUS.

The only fragment of any length or importance which we possess of Laberius, has been saved by Macrobius, in his *Saturnalia*. The fragments of Publius Syrus were chiefly preserved by Seneca and Au. Gellius, and the scattered maxims which they had recorded, were collected in various MSS. of the fourteenth and fifteenth centuries. They were first printed together, under the superintendence of Erasmus, in 1502, as revised and corrected from a MS. in the University of Cambridge. Fabricius published some additional maxims, which had not previously been printed, in 1550. Stephens edited them at the end of his *Fragments from the Greek and Latin Comic Poets*, 1564; and Bentley published them along with Terence and the *Fables of Phædrus*, at Cambridge, in 1726. An improved edition, which had been prepared by Gruter, was printed under the superintendence of Havercamp, from a MS. after his death. The most complete edition, however, which has yet appeared, is that published by Orellius, at Leipsic, 1822. It contains 879 maxims, arranged in alphabetical order, from which, at least as the editor asserts, all those which are spurious have been rejected, and several that are genuine added. A Greek version of the maxims, by Jos. Scaliger, is given by him on the opposite side of the page, and he has appended a long commentary, in which he has quoted all the maxims of preceding or subsequent authors, who have expressed sentiments similar to those of Publius Syrus.

The sentences were translated into *English* from the edition of Erasmus, under the following title: “Proverbs or Adagies, with newe Additions, gathered out of the Chiliades of Erasmus, by Richard Taverner. Hereunto be also added, Mimi Publiani. Imprinted at Lo’don, in Fletstrete, at the signe of the Whyte Harte. *Cum privilegio ad imprimendum solum.*” On the back of the title is “the Prologe of the author, apologizing for his slender capacitie;” and concluding, “yet my harte is not to be blamed.” It contains sixty-four leaves, the last blank. On the last printed page are the “Faultes escaped in printynge,” which are seven in number. Beneath is the colophon,

“Imprinted at London by Richarde Bankes, at the Whyte Harte, 1539.” This book was frequently reprinted. James Elphinston, long known to the public by his unsuccessful attempt to introduce a new and uniform mode of spelling into the English language, translated, in 1794, “The Sentencious Poets—Publius dhe Syrrian—Laberius dhe Roman Knight, &c. arrainged and translated into correspondent Inglish Mezzure⁶²⁷.”

CATO—VARRO.

It appears from Aulus Gellius, that, even in his time, the works of Cato had begun to be corrupted by the ignorance of transcribers. As mentioned in the text, his book on Agriculture, the only one of his numerous writings which survives, has come down to us in a very imperfect and mutilated state. A MS. of Cato, but very faulty and incomplete, was in possession of Niccolo Niccoli; and a letter from him is extant, requesting one of his correspondents, called Michelotius, to borrow for him a very ancient copy from the Bishop Aretino, in order that his own might be rendered more perfect⁶²⁸. Most of the editions we now have, follow a MS. which is said to have been discovered at Paris by the architect Fra Giocondo of Verona, and was brought by him to Italy. Varro's treatise on Agriculture was first discovered by Candidi, as he himself announces in a letter to Niccolo Niccoli⁶²⁹.

[pg A-44]

The agricultural works of Cato and Varro have generally been printed together, and also along with those of Columella and Palladius, under the title of *Rei Rusticæ Scriptores*. There is no ancient MS. known, in which all the *Rei Rusticæ Scriptores* are collected together. They were first combined in the *Editio Princeps*, edited by Georgius Merula, and printed at Venice, in 1470. The next edition, superintended by Bruschi, and printed in 1482, has almost entirely disappeared. In many passages, its readings were different from those of all other editions, as appears from the annotations communicated from Rome, by Pontedera to Gesner, while he was preparing his celebrated edition⁶³⁰. Philippus Beroaldus corrected a good many faults and errors which had crept into the *Editio Princeps*. His emendations were made use of in the edition of Bologna, 1494, by Benedict Hector. Gesner has assiduously collated that edition with the *Editio princeps*, and he informs us, that it contained many important corrections. Though differing in some respects, he considers all the editions previous to that of Aldus, as belonging to the same class or family. The Aldine edition, printed 1514, was

superintended by Fra Giocondo of Verona, who, having procured at Paris some MSS. not previously consulted, introduced from them many new readings, and filled up several chasms in the text, particularly the fifty-seventh chapter⁶³¹. This edition, however, is not highly esteemed; “Sequitur,” says Fabricius, “novi nec optimi generis editio Aldina:” And Schneider, the most recent editor of the *Rei Rusticæ Scriptores*, affirms that Giocondo corrupted and perverted almost every passage which he changed. Nicholas Angelius took charge of the edition published by the Giunta at Florence, in 1515. His new readings are ingenious; but many of them are quite unauthorized and conjectural. The Aldine continued to form the basis of all subsequent editions, till the time of Petrus Victorius, who was so great a restorer and amender of the *Rei Rusticæ Scriptores*, that he is called their *Æsculapius* by Gesner, and *Sospitator* by Fabricius. Victorius had got access to a set of MSS. which Politian had collated with the *Editio Princeps*. The most ancient and important of these MSS., containing Cato, and almost the whole of Varro, was found by Victorius in the library of St Mark; another in French characters was in the Medicean library; and a third had belonged to Franciscus Barbarus, and was transcribed by him from an excellent exemplar at Padua⁶³². But though Victorius had the advantage of consulting these MSS., it does not appear that he possessed the collation by the able hand of Politian; because that was inserted, not in the MSS., but in his own printed copy of the *Editio Princeps*; and Gesner shows at great length that Petrus Victorius had never consulted any copy whatever of the *Editio Princeps*⁶³³. Victorius first employed his learning and critical talents on Varro. Some time afterwards, Giovanni della Casa being sent by the Pope on some public affairs to Florence, where Victorius at that time resided, brought him a message from the Cardinal Marcellus Cervinus, requesting that he should exert on Cato some part of that diligence which he had formerly employed on Varro. Victorius soon completed the task assigned him. He also resumed Varro, and attentively revised his former labours on that author⁶³⁴. At last he determined to collate whatever MSS. of the Rustic writers he could procure. Those above-mentioned, as having been inspected by Politian, were the great sources whence he derived new and various readings.

It is not known that Victorius printed any edition containing the text of the *Rei Rusticæ Scriptores* in Italy. His letter to Cervinus speaks as if he was

just about to edit them; but whether he did so is uncertain. “Quartam classem,” says Harles, “constituit Victorius, sospitator horum scriptorum: qui quidem num primum in Italiâ recensitos dederit eos cum Gesnero et Ernesti ignoro⁶³⁵.” As far as now appears, his corrections and emendations were first printed in the edition of Leyden, 1541, where the authors it contains, are said in the title to be *Restituti per Petrum Victorium, ad veterum exemplarium fidem, suæ integritati*. His castigations were printed in the year following, but without the text of the authors, at Florence. The Leyden edition was reprinted at Paris, in 1543, by Robert Stephens, and was followed by the edition of Hier. Commellinus, 1595.

[pg A-45]

At length Gesner undertook a complete edition of the *Rei Rusticæ Scriptores*, under circumstances of which he has given us some account in his preface. The eminent bookseller, Fritschius, had formed a plan of printing these authors; and to aid in this object, he had employed Schoettgenius, a young, but even then a distinguished scholar. A digest of the best commentators, and a collection of various readings, were accordingly prepared by him. The undertaking, however, was then deferred, in expectation of the arrival of MSS. from Italy; and Schoettgenius was meanwhile called to a distance to some other employment, leaving the fruits of his labour in the hands of Fritschius. In 1726, that bookseller came to Gesner, and informed him, that Politian’s collations, written on his copy of the *Editio Princeps*, had at length reached him, as also some valuable observations on the rustic writers, communicated from Italy by Pontedera and Facciolati. Fritschius requested that Gesner should now arrange the whole materials which had been compiled. Selections from the commentaries, and the various readings previous to the time of Victorius, were prepared to his hand; but he commenced an assiduous study of every thing that was valuable in more recent editions. At length his ponderous edition came out with a preface, giving a full detail of the labours of others and his own, and with the prefaces to the most celebrated preceding editions. Some of the notes had been previously printed, as those of Meursius, Scaliger, and Fulvius Ursinus—others, as those of Schoettgenius, Pontedera, and Gesner himself, had never yet seen the light. Though Gesner never names Pontedera without duly styling him *Clarissimus Pontedera*, that scholar was by no means pleased with the result of Gesner’s edition,

and attacked it with much asperity, in his great work, *Antiquitatum Rusticarum*. Gesner's first edition was printed at Leipsic, 1735. Ernesti took charge of the publication of the second edition; and, in addition to the dissertation of Ausonius Popma, *De Instrumento Fundi*, which formed an appendix to the first, he has inserted Segner's description and explanation of the aviary of Varro.

The most recent edition of the *Scriptores Rei Rusticæ*, is that of Schneider, who conceives that he has perfected the edition of Gesner, by having collated the ancient edition of Bruschi, and the first Aldine edition, neither of which had been consulted by his predecessor.

Besides forming parts of every collection of the *Rei Rusticæ Scriptores*, the agricultural treatises of Cato and Varro have been repeatedly printed by themselves, and apart from those of Columella and Palladius. Ausonius Popma, in his separate edition of Cato, 1590, has chiefly, and without much acknowledgment, employed some valuable annotations and remarks contained in the *Adversaria* of Turnebus. This edition was accompanied by some other fragments of Cato. These, however, were of small importance; and the principal part of the publication being the work on Agriculture, its sale was much impeded by Commellinus' full edition of the agricultural writers, published five years afterwards. Raphellengius, however, reprinted it in 1598, with a new title; and with the addition of the notes of Meursius. Popma again revised his labours, and published an improved edition in 1620. Varro's treatise, *De Re Rusticâ*, was published alone in 1545, and with his other writings, by Stephens, in 1569. Ausonius Popma also edited it in 1601, appropriating, according to his custom, the notes and observations of others.

Cato's work *De Re Rusticâ*, has been translated into *Italian* by Pagani, whose version was printed at Venice, 1792; and into *French* by Saboureux, Paris, 1775. I am not aware of any full *English* translation of Cato, but numerous extracts are made from it in Dickson's *Husbandry of the Ancients*.

Italy has produced more translations of the Latin writers than any other country; and one would naturally suppose, that the agricultural writings of those who had cultivated the same soil as themselves, would be peculiarly interesting to the Italians. I do not know, however, of any version of Varro in their language. There is an *English* translation, by the Rev. Mr Owen, printed at Oxford in 1800. In his preface, the author says,—“Having collated many copies of this work of the Roman writer in my possession, and the variations being very numerous, I found it no easy task to make a translation of his treatise on agriculture. To render any common Arabic author into English, would have been a labour less difficult to me some years ago, than it has been to translate this part of the works of this celebrated writer.”

SALLUST.

This historian was criticized in a work of Asinius Pollio, particularly on account of his affected use of obsolete words and expressions. Sulpicius Apollinaris, the grammarian, who lived in the reigns of the Antonines, boasted that he was the only person of his time who could understand Sallust. His writings were illustrated by many of the ancient grammarians, as Asper and Statilius Maximus. In the course of the ninth century, we find Lupus, Abbot of Ferriers, in one of his letters, praying his friend Regimbertus to procure for him a copy of Sallust⁶³⁶; and there was a copy of his works in the Library of Glastonbury Abbey, in the year 1240⁶³⁷. The style of Sallust is very peculiar: He often omits words which other writers would insert, and inserts those which they would omit. Hence his text became early, and very generally, corrupted, from transcribers and copyists leaving out what they naturally enough supposed to be redundancies, and supplying what they considered as deficiencies.

There appeared not less than three editions of Sallust in the course of the year 1470. It has been much disputed, and does not seem to be yet ascertained, which of them is the *Editio Princeps*. One was printed under the care of Merula, by Spira, at Venice; but the other two are without name of place or printer: It has been conjectured, that of these two, the one which is in folio was printed at Rome⁶³⁸; and the other, in quarto, at Paris, by Gering, Crantz, and Friburg⁶³⁹. The Venice Edition is usually accounted the *Editio Princeps*⁶⁴⁰, but Fuhrmann considers both the Paris and Roman editions as prior to it. The Roman, he thinks, in concurrence with the opinion of Harles, is the earliest of all. The Bipontine editors style the Parisian impression the *Primaria Princeps*. Besides these three, upwards of thirty other editions were published in the course of the fifteenth century. One of them was printed at Venice, 1493, from the *Recension* of Pomponius Lætus, who has been accused by subsequent editors of introducing many of the corruptions which have crept into the text of Sallust⁶⁴¹. There were also a number of commentaries in this century, by scholars, who did not

themselves publish editions of the historian, but greatly contributed to the assistance of those who prepared them in the next. The commentary of Laurentius Valla, in particular, which was first printed at Rome in 1490, and in which scarcely a single word is passed over without remark or explanation, enriched most of the editions which appeared in the end of the fifteenth, and the beginning of the subsequent century⁶⁴². The first of any note in the sixteenth century, were those of Aldus, Venice, 1509, and 1521. Carrio, who published an edition at Antwerp in 1579, collected many of the fragments of Sallust's great History of Rome; and he amended the text of the Catilinarian and Jugurthine Wars, as he himself boasts, in several thousand places. The edition of Gruter, in 1607, in which the text received considerable alterations, on the authority of the Palatine MS., obtained in its time considerable reputation. The earliest *Variorum* edition is in 1649; but the best is that printed at Leyden, with the notes of Gronovius, in 1690. An immense number of MSS., and copies of the most ancient editions, were collated by Wasse for the Cambridge edition, 1710. He chiefly followed the text of Gruter, but he has added the notes of various commentators, and also some original observations of his own, particularly comparisons, which he has instituted between his author and the ancient Greek writers. The editions of Cortius (Leipsic, 1724), and of Havercamp (Amsterdam, 1742), are both excellent. The former, in preparing his work, consulted not less than thirty MSS., fifteen of which were preserved in the Wolfenbittel library. He also assiduously collated most of the old editions, and found some good readings in those of Venice, 1470–1493, and that of Leipsic, 1508. Most of the editions, however, of the fifteenth century, he affirms, are very bad; and, according to him, a greater number of the errors, which [pg A-47] had crept into the text of Sallust, are to be attributed to them, than to the corruptions of Pomponius Lætus. Cortius chiefly erred in conceiving that Sallust's conciseness consisted solely in paucity of words, so that he always preferred the readings where the greatest number of them were thrown out, though the meaning was thereby obscured, and sometimes altogether lost. The readings in Havercamp's edition are all founded on those of Wasse and Gruter. The text is overloaded with notes: "Textus," says Ernesti, "velut cymba in oceano, ita in notis natat." The various readings are separated from the notes, being inserted between the text and the commentary. In the first volume, we have the text of Sallust, and the annotations—in the second, the prefaces of different editors of Sallust—his

life—the fragments of his works—and the judgments pronounced by ancient authors on his writings. The text of Teller's edition, Berlin, 1790, is formed on that of Cortius, but departs from it, where the editor conceived himself justified by the various readings of a rare and ancient edition, published at Brescia, 1495, which he had consulted. It is totally unprovided with *prolegomena*, or notices, with regard to the life and writings of the author, or his works; but there is appended to it a recension of the celebrated Spanish Translation, executed under the auspices of the Infant Don Gabriel, and a very full *Index Latinitatis*. The best of the recent German editions, is that of Lange, Halle, 1815. In this work, the editor chiefly follows Havercampus. His great object was to restore the purity of the text, which he believed to have been greatly corrupted by the rash and unauthorized alterations of preceding editors, more particularly of Cortius. Notes are subjoined, partly illustrative of Sallust's genius and talents, and partly of that portion of Roman history, of which he treated.

Sallust has been translated into *Italian*, by a Genoese of the name of Agost. Ortica, (Venice, 1518). The work of Ortica also comprehends a version of Cicero's fourth Catilinarian orations, and the supposed reply of Catiline. The style is barbarous, involved, and obscure, and in some passages nearly unintelligible. In point of style, the translation of Lelio Carani (Florence, 1530) is purer, but it is too paraphrastic, and has not always accurately expressed the meaning of the original. The version of Paulo Spinola (1564) was scarcely more happy. These three translations having become scarce by the middle of last century, and being defective in many of the most essential qualities of a translation, the Doctor Battista Bianchi, Professor of Latin at Sienna, undertook an improved translation, in which he attempted to imitate the brevity of Sallust, though he did not, like some of his predecessors, insert obsolete Italian words, corresponding to the antique Latin expressions adopted by his original. To this translation, first printed at Venice, 1761, there is prefixed a long and elaborate preface, in which the author discusses the historical and literary merits of Sallust, and enumerates the translations of his works which had at that time appeared in the different languages of Europe. After this follows the life of the Latin author. There are likewise

annotations at the foot of the page, and an index at the end of the whole. The next Italian translation of any note which appeared, was that by Alfieri, which is considered in Italy as a masterpiece: His prose style, which was founded on that of the classic writers, qualified him admirably for the task.

There have been more translations of Sallust in *French*, than in any other language. It was translated, it is said, as far back as the reign of King John of France, who died in 1364. “Le Roi Jean,” says Villaret, “ainsi qu’on l’a rapporté, avoit fait entreprendre des versions de quelques auteurs Latins, tels que Salluste et Tite-Live⁶⁴³.” I do not suppose, however, that this translation was given to the press on the invention of printing. The first version printed was that of Baudoin, in 1617; which was succeeded, in the course of the same century, by the futile attempts of Cassagne and Du Teil. The version of the Abbé Le Masson, which appeared in the commencement of the ensuing century, was accompanied with a defence of the moral character of the historian. It was followed, in a few years afterwards, by that of the Abbé Thyvon, which, though it does not convey an adequate idea of the strength and sententious brevity of the original, is for the most part extremely faithful to the meaning of the author. Its deficiency in the former qualities, seems to have induced M Dotteville to attempt a new translation, as he appears to be [pg A-48]always striving at terseness and conciseness of style. “His Sallust,” says the most recent English translator, “like his Tacitus, is harsh and dry; and his fruitless endeavours to vie in brevity with either historian, are sufficient to prove, if such proof were needful, how absurd an attempt it is in any translator, for the sake of seizing some peculiar feature of resemblance, or some fancied grace of diction, to violate the genius of his native language.” A similar criticism is extended, in the following paragraph, to the version of M. Beauzie, though it is admitted to be the most faithful and accurate that ever appeared in the French language. The translation of Dotteville was first printed in 1760, and that of Beauzie fifteen years afterwards. About the same time M. de Brosses, President of the Parliament of Dijon, published a History of Rome during the Seventh Century, which professes to be chiefly made up from the fragments of Sallust. The War of Jugurtha comes first in the historical arrangement—then follow the events which intervened between that contest and the Conspiracy of Catiline, taken from the fragments of Sallust, which are interwoven with the body of the narrative—and, lastly, the Conspiracy. The work, which

extends to three volumes 4to, comprehends very full notes, and includes a life of Sallust, which, though written in an indifferent style, displays considerable learning and research. Although the version of De Broses was generally accounted one of the best translations of the Classics, which had appeared in the French, or any other language, it does not seem to have been considered as precluding subsequent attempts. A translation by Dureau Delamalle appeared in 1808, and one by Mollevaut, yet more recent, which has gone through at least three editions. Still, however, many persons in France prefer the version of Dotteville to the more modern translations.

It would appear, that the writings of Sallust became known and popular in *England* soon after the revival of literature. A translation of the Jugurthine War, executed by “Sir Alexander Barclay, Priest, at the command of the Duke of Norfolke, and printed by Richard Pynson,” in folio, was published as early as the reign of Henry VIII. It bears on the title-page—“Here begynneth the famous Cronycle of the Warre which the Romaynes had against Jugurth, usurper of the Kyngdome of Numidy: Which Cronycle was compyled in Latin by the renowned Sallust. And translated into English by Sir Alexander Barclay, Preest, at commandment of the right hye and mighty Prince, Thomas Duke of Northfolke.” The volume is without date, but is supposed to have been printed about 1540. It was twice reprinted in 1557, and in one of these editions was accompanied with Catiline’s Conspiracy, translated by Thomas Paynel. The version of Barclay, though a good one for the time, having become obsolete, not less than three translations appeared in the middle and end of the seventeenth century—one by William Crosse, and the other two by anonymous authors. These early translations are all “Faithfully done in Englysh,” according to the taste of the time, which, if the sense were tolerably rendered, was little solicitous for accuracy, and still less for elegance of diction⁶⁴⁴. In Rowe’s translation, 1709, the sense of the author is given with correctness, but the style is feeble and colloquial. Gordon, better known as the translator of Tacitus, also translated Sallust in 1744. His version is accompanied with a series of discourses on topics connected with Roman history, as on faction and parties, public corruption, and civil wars. The Epistles of Sallust to Cæsar on Government, are also translated by him, and their authenticity vindicated. In 1751, Dr Rose published a new translation of the Catilinarian and Jugurthine Wars. “This translation,” says Steuart, “is justly entitled to the esteem in which it has

been held, and the author himself to considerable praise, for his endeavours to combine the advantages of a free and literal version. His chief defect proceeds from what constitutes the great difficulty in all classical translation—the uniting a clear transfusion of the sense with the ease and freedom of original composition. To the critical reader, this will be abundantly obvious, if he compare the version of Sallust with the original pieces of Dr Rose himself. In the speeches, too, where the ancient writers laid out all their energy, and in which they should be followed by a like effort of the translator, the author is cold and languid, and he rises on no occasion above the level of ordinary narrative.” The most recent English translation is that by the author above quoted—1806, two volumes quarto. Two long Essays, with notes, are prefixed to it—the one on the Life, and the other on the Literary Character and Writings of Sallust. [pg A-49]The Spanish translation of Sallust, executed under the auspices of the Infant Don Gabriel, has been much celebrated on account of its plates and incomparable typography. It was printed in 1772.

CÆSAR.

Lupus, Abbot of Ferriers, says, in one of his letters, that no historic work of Cæsar was extant, except his Commentaries on the Gallic War, of which he promises to send his correspondent, the Bishop Heribold, a copy, as soon as he can procure one⁶⁴⁵. The other Commentaries, *De Bello Civili*, and *De Bello Alexandrino*, of which he speaks as being also extant, were written, he affirms, by Hirtius. It thus appears, that though Lupus was mistaken as to the author of the work *De Bello Civili*, the whole series of memoirs now known by the name of Cæsar's Commentaries, was extant in the ninth century. About a century afterwards, Pope Gerbert, or Sylvester II., writes to the Archbishop of Rheims to procure the loan of a copy of Cæsar from the Abbot of Terdon, who was possessed of one, and to have it transcribed for him⁶⁴⁶. Cæsar's Commentaries are repeatedly quoted in the *Speculum Historiale* of Vincent de Beauvais, a work of the thirteenth century, and in various other productions of the same period. It is probable, therefore, that copies of them were not very scarce in that age; but they had become so rare by the middle of the fifteenth century, that Candidi, in a letter to Niccolo Niccoli, announces the discovery of a MS. of Cæsar as a great event.

Andrea, Bishop of Aleria, took charge of the first edition of Cæsar, and an erudite epistle by him is prefixed to it. It came forth at Rome, from the printing-press of Sweynheim and Pannartz, as early as the year 1469. Of this *Editio Princeps* of Cæsar, only 275 copies were thrown off; but it was reprinted at the same place in 1472. There were a good many editions published towards the end of the fifteenth century, most of which have now become rare. The first of the ensuing century was that of Philippus Beroaldus, (Bologna 1504). It was followed by the Aldine editions, (Venice 1513–19,) which are not so remarkable either for accuracy or beauty as the other early editions of the Classics which issued from the celebrated press of the Manutii. The first had seven pages of errata—"Mendis scatet," say the Bipontine editors. In the edition, 1566, there were inserted plates of

warlike instruments, encampments, and the most celebrated places mentioned in Cæsar's campaigns, which became a common ornament and appendage in subsequent impressions.

Fulvius Ursinus published an edition of considerable note in 1570. Ursinus had discovered a MS. written in the middle of the tenth century, which he chiefly employed in the correction of the text. He is accused of having committed a literary theft in the publication of this work, it being alleged that he had received many annotations from Petrus Ciacconius, which he mixed up with his own, and inserted as such, suppressing altogether the name of the real author.

The next edition of any eminence, was that of Strada (Frankfort, 1574). This impression is remarkable for containing forty plates of battles, and other things relating to the campaigns of Cæsar; as also inscriptions, found in various cities of Spain. It is also distinguished as having been the prototype of Clarke's splendid edition of Cæsar, which Mr Dibdin pronounces to be "the most sumptuous classical volume which this country ever produced. It contains," says he, "eighty-seven copperplates, which were engraved at the expense of the different noblemen to whom they are dedicated. Of these plates, I am not disposed to think so highly as some fond admirers: The head of Marlborough, to whom this courtly work is dedicated, by Kneller and Vertue, does not convey any exalted idea of that renowned hero; and the bust of Julius Cæsar, which follows it, will appear meagre and inelegant to those who have contemplated a similar print in the quarto publication of Lavater's Physiognomy. The plates are in general rather curious than ably executed; and compared with what Flaxman has done for Homer and Æschylus, are tasteless and uninspired. The type of this magnificent volume is truly beautiful and splendid, and for its fine lustre and perfect execution, reflects immortality on the publisher. The text is accompanied with various readings in the margin; and at the end of the volume, after the fragments of Cæsar, are the critical notes of the editor, compiled with great labour from the collation of ancient MSS. and former editions. A MS. in the Queen's library, and one belonging to the Bishop of Ely, were particularly consulted by Dr Clarke. The work closes with a large and correct index of names and places. It is upon the whole a

most splendid edition, and will be a lasting monument of the taste, as well as erudition of the editor.”

The best edition since the time of Dr Clarke’s, is that by Oudendorp, printed at Leyden in 1737. This editor had the use of many ancient MSS., particularly two of the beginning of the ninth century, one of which had belonged to Julius Bongarsius, and the other to Petrus Bellovacensis. “The preceding commentators on Cæsar,” says Harles, “have all been eclipsed by the skill and researches of Oudendorp, who, by a careful examination of numerous MSS. and editions, has often successfully restored the true ancient reading of his author.” He has inserted in his publication Dodwell’s disquisition concerning the author of the books *De Bello Alexandrino*, and Scaliger’s *Topographical Description of Gaul*. Morus reprinted this edition, but with many critical improvements, at Leipsic, 1780. He has illustrated the military tactics of Cæsar, from Ritter’s History of the Gauls, and from the books of Guischartus, *De Re Militari Veterum*. The best modern German edition is that of Oberlin, (Leipsic, 1805). It is founded on the basis of those of Oudendorp and Morus, with additional observations, and a careful revision of the text. In the preface, those writings in which the faith due to Cæsar’s Commentaries is attempted to be shaken, are reviewed and refuted; and there are added several fragments of Cæsar, as also those notices of ancient authors concerning him, which had been neglected or omitted by Morus.

Cæsar was first rendered into *Italian* by Agost. Ortica, the translator of Sallust. He says, in the preface, that his version was executed in a very hurried manner, as it was transcribed and printed all in the course of six months. Argelati could not ascertain the date of the most ancient edition, which was printed at Milan, but he thinks that it was as old as the fifteenth century⁶⁴⁷. This impression was followed by not fewer than twelve others, before the middle of the sixteenth century. A subsequent translation, by F. Baldelli, appeared at Venice, 1554. This edition was, succeeded by many others, particularly one at Venice in 1595, quarto, of which Palladio, the great architect, took charge. He inserted in it various engravings of battles,

encampments, sieges, and other military operations, from plates which had been executed by his two sons, Leonida and Orazio, and had come into his hands soon after their premature decease. He prepared the edition chiefly for the sake of introducing these designs, and thereby honouring the memory of his children. To this edition there is a preface by Palladio on the military affairs of the Romans, their legions, arms, and encampments. A splendid impression of Baldelli's version, accompanied with Palladio's designs, was thrown off at Venice in 1619. In 1737, a translation appeared at Venice, bearing to be printed from an ancient MS. of Cæsar, in Italian, which the editor says he had discovered, (*where* he does not specify,) and had in some few places corrected and modernized. Paitoni has exposed this literary fraud, and has shown, that it is just the translation of Baldelli, with a few words altered at the beginning of paragraphs. In some respects, however, it is a good edition, containing various tables and notices conducive to the proper understanding of the author.

We have seen that several translations of the Latin classics were executed by order of the French king, John. Charles V., who succeeded him in 1364, was a still warmer patron of learning, and was himself tolerably versed in Latin literature. "Tant que compettement," says Christine de Pise, in her Memoirs of him, "entendoit son Latin." By his order and directions the first *French* translation of Cæsar was undertaken⁶⁴⁸. But the earliest French translation of Cæsar's Commentaries which was printed, was that of Robert Gaguin, dedicated to Charles VIII. and published in 1488. Of the recent French versions the most esteemed is that by Turpin de Crissi, accompanied by historical and critical notes, and printed at Montargis, 1785.

[pg A-51]

The part of Cæsar's Commentaries which relates to the Gallic wars was translated into *English* as early as 1565, by Arthur Golding, who dedicated his work to Sir William Cecil, afterwards Lord Burleigh. In 1695, a translation of the whole Commentaries was printed with the following title: "The Commentaries of Cæsar, of his Wars in Gallia, and of the Civil Wars betwixt him and Pompey, *with many excellent and judicious Observations*

thereupon; as also, the Art of our Modern Training; by Clement Edmonds, Esq.” The best translation is that by “William Duncan, Professor of Philosophy in the University of Aberdeen, printed at London, 1755,” with a long preliminary Discourse concerning the Roman Art of War.

CICERO.

Some of Cicero's orations were studied harangues, which he had prepared and written over previous to their delivery. This, however, was not the case with the greater proportion of his speeches, most of which were pronounced without much premeditation, but were afterwards copied out, with such corrections and embellishments as bestowed on them a greater polish and lustre than when they had originally fallen from his lips. Before the invention of printing had increased the means of satisfying public curiosity, as no oration was given to the world but by the author himself, he had always the power of altering and improving by his experience of the effect it produced at delivery. Pliny informs us, that many things on which Cicero had enlarged at the time when he actually spoke in the Senate and the Forum, were retrenched when he ultimately gave his orations to the public in writing⁶⁴⁹. Cicero himself had somewhere declared, that the defence of Cornelius had occupied four days, whence Pliny concludes, that those orations which, when delivered at full length, took up so much time at the bar, were greatly altered and abridged, when he afterwards comprised them in a single volume. The orations, in particular, for Muræna and Varenus, he says, seem now to contain merely the general heads of a discourse. Sometimes, however, they were extended and not curtailed, by the orator in the closet, as was confessedly the case in the defence of Milo. A few of the orations which Cicero had delivered, he did not consider as at all worthy of preservation. Thus, of the oration for Dejotarus, he says, in one of his letters to Dolabella, "I did not imagine that I had preserved among my papers the trifling speech which I made in behalf of Dejotarus; however, I have found it, and sent it to you, agreeably to your request⁶⁵⁰." This accounts for many speeches of Cicero, the delivery of which is recorded in history, being now lost. It appears, however, that those which he considered deserving of his care, though they may be widely different from the state in which they were originally pronounced, came pure from the hand of the author, either in the shape in which he would have wished to have delivered them, or in that which he considered best adapted for publication and perusal. They were

probably transcribed by himself, and copies of them multiplied by his freedmen, such as Tyro and Tyrannio, whom he had accustomed to accurate transcription. His orations had also the good fortune to meet, at a very early period, with a judicious and learned commentator in the person of Asconius Pedianus, a grammarian in the reign of Nero, part of whose Commentary was discovered by Poggio, along with other classical works, in the monastery of St Gall, near Constance.

All the orations of Cicero were not lost during the middle ages. Pope Gerbert, in one of his letters, asks from the Abbot Gesilbert a copy of the concluding part of the speech for Dejotarus; and he writes to another of his correspondents, to bring him Cicero's treatise *De Republicâ*, and the Orations against Verres, "Comitentur iter tuum Tulliana opuscula, et de Republicâ et in Verrem⁶⁵¹:" Brunetto Latini, who died in 1294, translated into Italian the orations for Dejotarus, Marcellus, and Ligarius, which were afterwards printed at Lyons in 1568⁶⁵². These three harangues [pg A-52]being in a great measure complimentary addresses to Cæsar, and containing no sentiment but what might be safely expressed in presence of an unlimited sovereign, more transcripts had been made of them in Rome's tyrannical ages, than of those orations which breathed forth the expiring spirit of liberty.

Cicero was the idol of Petrarch, the great restorer of classical literature. He never could speak of him but in terms of deep and enthusiastic admiration. The sweetness and sonorousness of Tully's periods charmed his ear; and though unable to penetrate the depths of his philosophy, yet his vigorous fancy often soared with the Roman orator into the highest regions of imagination. Hence, while eager for the discovery of all the classics, his chief diligence was exercised in endeavouring to preserve such works of Cicero as were then known, and to recover such as were lost⁶⁵³. Petrarch received in loan from Lapo of Castiglione a copy of several of Cicero's orations, among which were the Philippics, and the oration for Milo. These he kept by him for four years, that he might transcribe them with his own hand, on account of the blunders of the copyists in that age. This we learn from the letters of Lapo, published by the Abbé Mehus. Coming to Liege when about twenty-five years of age, that is, in 1329, Petrarch remained there till two orations of Cicero, which he had discovered in that city, were

transcribed, one by his own hand, and another by a friend, both of which were immediately transmitted by him to Italy. He was detained at Liege for some time by the difficulty of procuring even the worst sort of ink. Several other orations of Cicero were discovered by Petrarch in different parts of Italy.

Dominico Arretino, who was nearly contemporary with Petrarch, declares, in one of his works, entitled *Fons*, that he had seen eleven of Cicero's orations, and that a person had told him that he actually possessed and had read twenty of them⁶⁵⁴. It appears, however, that in the time of Cosmo de Medici those works of Cicero which were extant were very much corrupted. "Illorum librorum," says Niccolo Niccoli, speaking of some of the works of Cicero, "magna pars interierit, hi vero qui supersunt adeo mendosi sunt, ut paulo ab interitu distent;" hence, in the middle of the fifteenth century, the discovery of a new MS. of Cicero was hailed as a new acquisition. At Langres, in a library of the monks of Clugni, in Burgundy, Poggio found the oration for Cæcina, which he immediately transcribed, and sent various copies of it to his friends in Italy. In the monasteries around Constance he discovered the two orations against Rullus, *De Lege Agrariâ*, and that to the people on the same subject; also the orations *Pro Rabirio*, and *Pro Roscio*. A note on the MS. copy of the oration *in Pisonem*, preserved in the abbey of Santa Maria, in Florence, records the fact of this harangue having been likewise discovered by Poggio⁶⁵⁵.

A compendium of Cicero's treatise *De Inventione* was well known in the dark ages, having been translated into Italian, in an abridged form, in the thirteenth century, by a professor of Bologna. This was almost the first prose work which had appeared in the language, and was printed at Lyons with the *Ethica d'Aristotile*, by Brunetto Latini, who also translated the first book *De Inventione*⁶⁵⁶. Lupus of Ferrieres possessed a copy of Cicero's *Rhetorica*, as he himself informs us⁶⁵⁷, but it was incomplete; and he accordingly asks Einhart, who had been his preceptor, for the loan of his MS. of this work, in order that his own might be perfected. Ingulphus, who flourished in England towards the close of the eleventh century, declares, that he was sent from Westminster to the school at Oxford, where he learned Aristotle, and the first two books of Tully's *Rhetorica*⁶⁵⁸. Now, if the first two books of the *Rhetorica*, which are all that have hitherto been

discovered, were used as an elementary work in the public school at Oxford, they can hardly be supposed to have been very scarce in Italy. From the jurisconsult, Raymond Superantius, or Sorranza, to whom he had been indebted for the books *De Gloriâ*, Petrarch received an imperfect copy of the tract *De Oratore*, of which the MSS., though generally incomplete, were by no means uncommon at that period. “Ab hoc [pg A-53]habui,” says he, “et Varronis et Ciceronis aliqua: Cujus unum volumen de communibus fuit; sed inter ipsa communia libri de Oratore ac de Legibus imperfecti, ut fere semper inveniuntur.” Nearly half a century from the death of Petrarch had elapsed, before the discovery of a complete copy of Cicero’s rhetorical works. It was about the year 1418, during the Popedom of Martin V., and while Poggio was in England, that Gerard Landriani, Bishop of Lodi, found in that city, among the ruins of an ancient monastery, a MS., containing Cicero’s treatise *De Oratore*, his *Brutus* and *Orator*. He carried the MS. with him to Milan, and there gave it to Gaspar Bazizza. The character, however, in which it was written, was such, that few scholars or antiquaries in that city could read it. At length Cosmus, a young Veronese scholar, deciphered and transcribed the dialogue *De Oratore*. Blondus Flavius, the author of the *Italia Illustrata*, who had come in early youth from his native place, Forli, to Milan, transcribed the *Brutus*, and sent copies of it to Guarinus of Verona, and Leonard Justiniani, at Venice. By these means the rhetorical works of Cicero were soon diffused all over Italy. The discovery was hailed as a triumph, and subject of public congratulation. Poggio was informed of it while in England, and there awaited the arrival of a copy with the most lively impatience⁶⁵⁹.

The philosophic writings of Cicero have descended to us in a more imperfect state than his oratorical dialogues or orations. In consequence of the noble spirit of freedom and patriotism which they breathe, their proscription would no doubt speedily follow that of their author. There is a common story of a grandson of Augustus concealing one of Cicero’s philosophic works, on being detected while perusing it by his grandfather, and though he received his gracious permission to finish it, the anecdote shews that it was among the *libri prohibiti*. The chief reading, indeed, of Alexander Severus, was the *Republic* and *Offices*⁶⁶⁰: But Alexander was an imperial phœnix, which never revived in the Roman empire; and we hear

little of Cicero during the reigns of the barbarian sovereigns of Italy in the middle ages.

Petrarch procured an imperfect copy of Cicero's treatise *De Legibus*, from the Lawyer Raymond Sorranza⁶⁶¹, who had a most extensive library, and to whom, as we have just seen, he had been indebted for a MS. of the dialogue *De Oratore*.

No further discovery was subsequently made of the remaining parts of the work *De Legibus*. The other philosophical writings of Cicero were found by Petrarch among the books in his father's library, or were recovered for him by the persons whom he employed for this purpose in almost every quarter of Italy: "Abeuntibus amicis," says he, "et, ut fit, petentibus numquid e patriâ suâ vellem, respondebam,—nihil præter libros Ciceronis." Petrarch frequently quotes the treatise *De Finibus*, as a work with which he was familiar. Leonard Aretine, however, has been generally considered as the discoverer of that dialogue, as also of the treatise *De Naturâ Deorum*⁶⁶².

"There is no collection of my letters," says Cicero, in one of his epistles to Atticus; "but Tiro has about seventy of them, and you can furnish some more. I must look over and correct them, and then they may be published." This, however, never was accomplished by himself. After the revolution of the Roman state, the publication of his letters must have been dangerous, on account of the freedom with which he expresses himself concerning Octavius, and the ministers of his power. Cornelius Nepos mentions, that some of Cicero's letters were published, but that sixteen books of Epistles to Atticus, from his consulship to his death, though extant, were by no means in common circulation⁶⁶³. The reigns of the princes who succeeded Augustus, were not more favourable to freedom than his own; and hence the Familiar Letters, as well as those to Atticus, probably remained long in the cabinets [pg A-54]of the curious, before they received any critical inspection. The Letters of Cicero, however, were well known in the middle ages, and even in those times pains were taken to have accurate copies of them. Lupus Ferrariensis procured duplicates of Cicero's Epistles, in order to collate them with his own MSS., and thus to make up a correct and complete collection⁶⁶⁴. John of Salisbury cites two of Cicero's letters to Caius Cassius; one of which is now contained in the twelfth, and the other

in the fifteenth book of the *Familiar Epistles*. In the Life of Julius Cæsar, which passes under the name of Julius Celsus, and which was written during the middle ages, extracts are occasionally made from the *Familiar Epistles*. They had become scarce, however, at the time when Petrarch found a copy of them at Verona, a place where he little expected to make such a discovery⁶⁶⁵. This old MS., which Victorius thinks of the age of the Florentine Pandects, ultimately came into the Medicean library; and a copy which Petrarch had transcribed from it, was brought from Padua to Florence by Niccolo Niccoli, at whose death it was placed in the library of St Marc in that city⁶⁶⁶. Several scholars who inspected both have observed, that the transcript by Petrarch differed in some respects from the original⁶⁶⁷. It was also marked with various corrections and glosses, in the hand-writing of Niccolo Niccoli himself⁶⁶⁸. All the other MSS. of the *Familiar Epistles* flowed from this discovered by Petrarch, as we learn from a passage of Lagomarsinus, who speaks thus of the different *codices* of the *Epistolæ Familiares*: “Quibus tamen ego codicibus non tantum tribuo, quantum uni illi omnium quotquot ubique terrarum, idem epistolarum corpus continentes, extant, vetustissimo, (et ex quo cæteros omnes qui usquam sunt tanquam e fonte ac capite manâsse, et Angelus Politianus, et Petrus Victorius memoriæ prodiderunt,) qui Florentiæ in Mediceo-Laurentianæ Bibliothecæ XLIX. adservatur numero IX. extra notatus⁶⁶⁹.” There has been a good deal of doubt and discussion how these Letters first came to obtain the title of *Familiares*. They are not so called in any original MS. of Cicero, nor are they cited by this name in any ancient author, as Aulus Gellius, or Priscian. These writers generally quote each book of the *Epistles* by the name of the person to whom the first letter in that book is addressed. Thus Gellius cites the first book by the name of the Letters to Lentulus, because it commences with a letter to him. Nor are the MSS. in which the appellation of the *Epistolæ Familiares* is employed uniform in the title. In some MSS. they are called *Epistolæ Familiares*, in others, *Epistolæ ad Familiares*, and in a Palatine MS. *Libri Epistolarum Familiarum*.

Previous to the year 1340, Petrarch also discovered the *Epistles to Atticus*⁶⁷⁰ which had been missing for many centuries; and on perusing them, declared that he now recognized Cicero as an inconsiderate and unfortunate old man. He copied them over with his own hand, and arranged them in their proper order. The MS. in his hand-writing passed, after his death, into the

possession of Coluccio Salutati, and subsequently became the property of Coluccio's disciple Leonard Aretine. Donatus, the son of Leonard, succeeded to it, and by him it was transferred to Donatus Acciaiolus. After his decease, it fell into the hands of an obscure grammarian, who gave it to Bartollomeo Cavalcanti, in whose library it was consulted by P. Victorius, and was afterwards bestowed on him by the owner. Victorius, highly valuing this MS., which he first recognised to be in the hand-writing of Petrarch, conceived that it would be preserved with greatest security in some public collection; and he accordingly presented it to Cosmo, the first Duke of Tuscany, to be deposited in the Medicean library⁶⁷¹. With regard to the most ancient MS. from which Petrarch made the copy, it unfortunately was lost, as Petrus Victorius laments in one of his Epistles⁶⁷². "Utinam inveniretur exemplum, unde has ad Atticum descripsit Petrarca, ut exstat illud, quo usus est in describendis alteris illis, quæ Familiares appellantur, de cujus libri antiquitate, omni veneratione digna, magnifice multa vereque alio loco prædicavi." It thus appears, that the Epistles to Atticus were well known to Petrarch. Still, however, as they were scarce in the fifteenth century, Poggio, who found a copy, while attending the Council of Constance, [pg A-55]was considered in his own age as the discoverer of the entire collection of the *Epistles to Atticus*, and has been regarded in the same light by modern writers.

The three books of the Letters of Cicero to his brother Quintus, were found by an Italian grammarian, Casparinus of Bergamo, who died in the year 1431; and who some time before his death had taken great pains to amend their corrupted text⁶⁷³. That they were much corrupted, may be conjectured from what we know of the manner in which they were originally written, for it appears, from one of the Letters of Cicero⁶⁷⁴, that Quintus had complained that he could scarcely read some of his former letters. Now, when Quintus could scarcely read his brother's hand-writing, what must have been the difficulties and mistakes of the *Librarius* by whom they were first collected and copied?

Cicero's translation of Aratus appears to have been extant in the ninth century. Lupus of Ferrieres had an imperfect copy of it, and begs a complete copy from his correspondent Ansald. "Tu autem," says he, "huic nostro

cursori Tullium in Arato trade; ut ex eo, quem me impetraturum credo, quæ deesse illi Egil noster aperuit, suppleantur.⁶⁷⁵”

Various editions of separate portions of the writings of Cicero were printed before the publication of a complete collection of his works. *The Orations*—the treatise *De Oratore*—the *Opera Philosophica*—the *Epistolæ Familiares*—and *Ad Atticum*, were all edited in Italy between the years 1466 and 1471—most of them being printed at Rome by Sweynheim and Pannartz. The most ancient printing-press in Italy was that established at the Monastery of Subiaco, in the Campagna di Roma, by these printers. Sweynheim and Pannartz were two German scholars, who had been induced to settle at that convent by the circumstance that it was chiefly inhabited by German monks. In 1467, they went from Subiaco, to Rome⁶⁷⁶; after this removal, they received in correcting their editions, the assistance of a poor but eminent scholar, Giandrea de Bussi; and were aided by the patronage of Andrea, Bishop of Aleria, who furnished prefaces to many of their classical editions. Notwithstanding the rage for classical MSS. which had so recently existed, and the novelty, usefulness, and importance of the art which they first introduced into Italy, as also the support which they received from men of rank and learning, they laboured under the greatest difficulties, and prosecuted their undertaking with very inadequate compensation, as we learn from a petition presented, 1472, in their names, to Pope Sextus, by the chief patron, the Bishop of Aleria. Their necessities were probably produced by the number of copies of each impression which they threw off, and which exceeding the demand, they were so encumbered by those left on their hands, as to be reduced to the greatest poverty and distress⁶⁷⁷. The first book which they printed at Rome, was the *Epistolæ Familiares* of Cicero.

Alexander Minutianus, who published an edition of the whole works at Milan, 1498, in four volumes folio, was the first person who comprised the scattered publications of Cicero in one uniform book. Harles informs us, in one passage, that Minutianus did not consult any MSS. in the preparation of this edition, but merely collated the editions of the separate parts of Cicero’s

writings previously published, so that his work is only a continued reimpression of preceding editions⁶⁷⁸; but he elsewhere mentions, that he had inspected the MSS. of the Orations which Poggio had brought from Germany to Italy⁶⁷⁹. In the Orations, Minutianus chiefly followed the Brescian edition, 1483, which was itself founded on that of Rome. The work was printed off, not according to the best arrangement, but as the copies of the preceding editions successively reached him, which he himself acknowledges in the preface. “Sed quam necessitas præscripsit dum vetustiora exemplaria ex diversis et longinquis locis exspectamus.” “If we peruse Saxius,” says Mr Dibdin, “we shall see with what toil, and at what a heavy expense, this celebrated work of Minutianus was compiled.” De Bure and Ernesti are lavish in their praises of its typographical beauty. The latter says it is printed “grandi modulo, chartis et lite[pg A-56]ris pulchris et splendidis.” The Aldine edition, which was published in parts from 1512 to 1523, is not accounted a very critical or correct one, though the latter portion of it was printed under the care of Naugerius. It would be endless to enumerate the subsequent editions of Cicero. That of Petrus Victorius, however, whom Harles calls *Ciceronis Æsculapius*, printed at Venice in 1534–37, in four volumes folio, should not be forgotten, as there is no commentator to whom Cicero has been more indebted than to Victorius, particularly in the correction and emendation of the Epistles. The edition of Lambinus, Paris, 1566, also deserves notice. Lambinus was an acute and daring commentator, who made many corrections on the text, but adopted some alterations too rashly. From his time downwards, Harles thinks that the editors of Cicero may be divided into two classes; some following the bold changes introduced by Lambinus, and others preferring the more scrupulous text of Victorius. Of the latter class was Gruterus, who, in his edition published at Hamburgh, 1618, appears to have obstinately rejected even the most obvious emendations which had been recently made on the text of his author. The three editions of Ernesti’s Cicero, (Lips. 1737, Hal. Sax. 1758–74,) and the three of Olivet’s, (Paris, 1740, Geneva, 1758, Oxon. 1783,) are too well known to be particularized or described. Olivet did not collate MSS.; but he compared with each other what he considered as the four most important editions of Cicero; those of P. Victorius, Paullus Manutius, Lambinus, and Gruterus. In 1795, the first volume of a new edition of Cicero, by Beck, was printed at Leipsic, and since that period, three more volumes, at long intervals, have fallen from the press. The last

volume which appeared, was in 1807; and along with the three by which it was preceded, comprehends the Orations of Cicero. The preface contains a very full account of preceding editions, and the most authoritative MSS. of Cicero. Ernesti's editions were adopted as the basis of the text; but the editor departs from them where he sees occasion. He does not propose many new emendations of his own; but he seems a very acute judge of the merit of various readings, and a judicious selector from the corrections of others. While this edition of Beck was proceeding in Germany, Schütz brought forth another, which is now completed, except part of the *Index Latinitatis*. There are few notes subjoined to the text; but long summaries are prefixed to each oration and work of Cicero; and the *Rhetorica ad Herennium* is introduced by an ample dissertation concerning the real author of that treatise. A new arrangement of the *Epistolæ Familiares* has also been adopted. They are no longer printed, as in most other editions, in a chronological series, but are classed according to the individuals to whom they are addressed. The whole publication is dedicated to Great Britain and the Allied Sovereigns, in a long columnar panegyric.

There have also been lately published in Germany, several learned and critical editions of separate portions of the works of Cicero, particularly his Philosophical Writings. The edition of all his Philosophic Treatises, by Goerenz, which is now proceeding and already comprehends the *Academica*, the dialogues *De Legibus* and *De Finibus*, is distinguished by intelligent Prefaces and Excursuses on the periods of the composition of the respective Dialogues; as also on the design of the author in their composition.

The translations of Cicero are so numerous, that for the Italian translations I must refer the reader to Paitoni, *Biblioteca degli autori antichi Greci e Latini Volgarizzati*, Tom. I. p. 219; and Argelati, *Biblioteca degli Volgarizzatori*, Tom. I. p. 214. For French versions, to Goujet, *Bibliothèque Française*, Tom. II. p. 221; and, for English, to Brüggemann, *View of the Editions and Translations of the Ancient Greek and Latin authors*, p. 481.

For the benefit of those who wish to prosecute their inquiries into the subject of Roman Literature, I have subjoined a note of some of the most important Books which treat of the subject. An asterisk is prefixed to the titles of those works which have been consulted by me in the compilation of the preceding pages.

AIMERICHIVS.—*Specimen veteris Romanæ Literaturæ deperditæ vel adhuc latentis, seu Syllabus Historicus et Criticus veterum olim notæ eruditionis Romanorum, ab urbe conditâ ad Honorii Augusti excessum, eorum imprimis quorum Latina opera vel omnino vel ex parte desiderantur.* Ferrara, 1784. 8vo.

“This work is intended to give an idea of Roman literature, from the foundation of the city to the death of the Emperor Honorius. The preface, written by a friend of the author, gives an account of the manner in which the Romans lived, both in the capital and in the provinces, during this long period. The historical and literary Syllabus contains, under nine articles, a variety of literary matters. In the first, the Abbé Aimerichius gives us brief notices, and a critical review of the ancient Roman writers, both Pagan and Christian, whose works were extant in public or private libraries, before the death of the Emperor Honorius. In the second, we have the titles and subjects of several works which have been lost, but which have been cited or indicated by contemporary writers, or writers nearly such, whose testimonies are related by our author. The third contains an account of the most celebrated public or private libraries, that were known at Rome before the death of Honorius: and, in the fourth, we have the author’s inquiries concerning the pronunciation of the Romans, their manner of writing, and the changes which took place in their orthography. In the fifth, the Abbé treats of the magistracies that could not be obtained, either at Rome or in the provinces, but by men of letters, as also of rites and sacrifices, of luxury, riches, public shows, &c. In the sixth, he gives his particular opinion concerning the ancient literature of the Romans, and the mixture of the

Latin and Greek languages which they employed, both in their conversation and in their writings. The seventh contains an indication of the principal heresies that disturbed the church, from the time of the Apostles to that of Honorius; and the eighth several memorable facts and maxims, not generally known, which belong to the literary, civil, military, and ecclesiastical history of this period. In the concluding article, the Abbé takes notice of the Latin works which had been lost for a considerable time, and shows how, and by whom, they were first discovered.”—From this account, which I have extracted from Horne’s *Introduction to the Study of Bibliography*, I regret extremely that I have had no opportunity of consulting the work of Aimerichius.

BLESSIG.—*De Origine Philosophiæ apud Romanos*. Strasburgh, 1770. 4to.

BECMANNUS.—*Manductio ad linguam Latinam cum Tractatu de Originibus Lingue Latinæ*. 1608. 8vo.

*CASAUBON.—*De Satyrica Græcorum Poësi et Romanorum Satira libri duo, in quibus etiam Poëtæ recensentur, qui in utrâque poësi floruerunt*. Halæ, 1774. 8vo.

This treatise, which is one of the most learned and agreeable productions of Casaubon, is the source of almost everything that has been written by modern [pg A-58]authors, on the subject of the satiric poetry of the Romans. Casaubon traces its early history in the Fescennine verses, the Atellane fables, and the satires of Ennius and Lucilius, and vindicates to the Romans the invention of this species of composition, for which, he contends, they had no model in the poetry of the Greeks.

CELLARIUS.—*Dissertatio de Studiis Romanorum Literariis*. Halle, 1698. 4to.

CORRADUS.—*Quæstura—Partes duæ, quarum altera de Ciceronis Vitâ et Libris—Altera Ciceronis Libros permultis locis emendat*. Lips. 1754. 8vo.

*CRUSIUS.—*Lives of the Roman Poets*. London, 1733. 2 Vols.

*EBERHARDT.—*Über den Zustand der Schönen Wissenschaften bei den Römern*. Altona, 1801. 8vo.

This work was written by a Swede, and in the Swedish language. It contains, in its original form, a very superficial and inaccurate sketch of the subject; but some valuable notes and corrections accompany the German translation.

*FABRICIUS.—*Bibliotheca Latina, digesta et aucta diligentia Jo. Aug. Ernesti*. Lips. 1773. 3 Tom. 8vo.

The well-known and justly-esteemed *Bibliotheca* of Fabricius gives an account of all the Latin writers from Plautus to Marcian Capella. In most of the articles we have a biographical sketch of the author—a list of his writings—an account of the most authoritative MSS. of his works—of the best editions, and of the most celebrated translations in the modern languages of Europe.

FUHRMANN.—*Handbuch der Classischen Literatur, oder Anleitung zur Kenntniss der Griechischen und Römischen Classischen Schriftsteller, ihren Schriften, und der besten Ausgaben, und Uebersetzungen derselben*. Rudolstadt, 1809–10.

Two of the volumes of this work relate to Roman literature. It is chiefly bibliographical, containing very full accounts of the editions and translations of the Classics which have appeared, particularly in Germany; but there are also some critical accounts of the works of the Roman authors: these are chiefly extracted from Journals and Reviews, and, in consequence, the author frequently repeats the same thing in different words, and still more frequently contradicts himself.

*FUHRMANN.—*Anleitung zur Geschichte der Classischen Literatur der Griechen und Römer*. Rudolstadt, 1816.

An abridgment of the preceding work.

*FUNCCIUS.—*De Origine et Pueritiâ, De Adolescentiâ, Virili Ætate, et Senectute Linguæ Latinæ*. Frankfort, 1720.

This is one of the most learned and valuable works extant on the subject of Latin literature. In the first tract, *De Pueritiâ*, the author chiefly treats of the origin and progress of the Roman language.

*GAUDENTIUS PAGANINUS.—*De Philosophiæ ap. Romanos Ortu et Progressu*. Pisa, 1643, 4.

A very dull and imperfect account of the state of philosophy among the Romans, from the earliest periods to the time of Boethius.

*HANKIUS. (MART.)—*De Romanarum Rerum Scriptoribus*. Lips. 1687. 4to.

The first part of this work contains a succinct account of the ancient Roman Annalists and Historians. The latter part relates to modern writers who treated of Roman affairs.

*HARLES. (TH. CHRIST.)—*Introductio in Notitiam Literaturæ Romanæ, imprimis Scriptorum Latinorum*. Noriberg. 1781. 2 Tom. 8vo.

This work of Harles, as far as it extends, is written on the same plan, and is much of the same description, as the *Bibliotheca* of Fabricius. It is not continued farther, however, than the Augustan age inclusive.

[pg A-59]

*HARLES. (TH. CHRIST.)—*Brevior Notitia Literaturæ Romanæ, imprimis Scriptorum Latinorum*. Lips. 1788. 1 Tom. 8vo.

*HARLES. (TH. CHRIST.)—*Supplementa ad Breviorem Notitiam Literaturæ Romanæ*. Lips. 1788. 2 Tom. 8vo.

This work, and the preceding, are on the same plan as the *Introductio*; but bring down the history of Roman writers, and the editions of their works, to the latest periods. It is much to be regretted, that these works of Harles had not been incorporated into one; since, taken separately, each is incomplete, and collectively, they abound in repetitions.

*KLÜGLING. (C. F.)—*Supplementa ad Breviorem Notitiam Literaturæ Romanæ*. Lips. 1817.

This Supplement to Harles, contains an account of the editions of the Classics which had appeared chiefly in Germany, subsequent to the publication of the *Brevior Notitia*.

KÖNIG.—*De Satirâ Romanorum*. Oldenburgh, 1796.

KRIEGK.—*Diatribæ de Veterum Romanorum Peregrinationibus Academicis*. Jenæ, 1704. 4to.

LEO (ANNIBAL DI).—*Memorie di Pacuvio*. Neapol. 1763.

MEIEROTTO.—*De Præcipuis rerum Romanarum Scriptoribus*. Berlin, 1792. folio.

*MÜLLER.—*Einleitung zu nöthiger Kentniss und Gebrauche der alten Lateinischen Schriftsteller*. Dresden, 1747. 5 Tom. 8vo.

*MOINE D'ORGEVAL.—*Considerations sur le Progrés des Belles Lettres chez les Romains*. Paris, 1749.

*OSANNUS.—*Analecta Critica, Poësis Romanorum scænicæ reliquias illustrantia*. Berlin, 1717.

This is a work of considerable ingenuity and research. It contains some discussion concerning the date at which regular comedies and tragedies were first exhibited at Rome; but it is chiefly occupied with comparisons between the Fragments of the ancient Latin Dramatists, and the corresponding passages in the Greek originals.

*SAGITTARIUS (CASP.)—*Commentatio de Vitâ et Scriptis Liv. Andronici, Nævii, Ennii, Cæcilii, Pacuvii, Attii, Attilii, Lucilii, Afranii, Catonis*. Altenburg, 1672.

This is a small volume of 110 pages, which has now become extremely scarce.

SAGITTARIUS (CASP.)—*De Vitâ, scriptis, editionibus, interpretibus, lectione, atque imitatione Plauti, Terentii, Ciceronis*. Altenburg, 1671.

*SCHOELL.—*Histoire Abregée de la Litterature Romaine*. Paris, 1815. 4 Tom. 8vo.

See above. Preface, p. xiii.

*TIRABOSCHI.—*Storia della Litteratura Italiana*. Modena, 1787. Tom. I. and II.

See above. Preface, p. xiii.

*VOSSIUS (GERARD).—*De Historicis Latinis Libri tres*. Lugd. Bat. 1651.

*WALCHIUS.—*Historia Critica Latinæ Linguæ*. Lips. 1761.

*ZIEGLER.—*De Mimis Romanorum*. Gotting. 1789.

[pg A-60]

CHRONOLOGICAL TABLE.

	Born.	Dies.
	A.U.C.	A.U.C.
L. Andronicus		534
Nævius		550
Ennius	515	585
Plautus	525	570
Cæcilius		586
Terence	560	594
Pacuvius	534	624
Attius	584	664
Lucilius	605	659?
Lucretius	658	702
Catullus	667	708?
Laberius		710
Cato	519	605
Varro	637	727
Sallust	668	718
Cæsar	656	709
Hortensius	640	703
Cicero	647	710

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- [1.](#) *Voyage du Jeune Anacharsis*, T. II. c. 20.
- [2.](#) *Antiquitat. Rom.* Lib. I.
- [3.](#) *Geograph.* Lib. VI.
- [4.](#) *Hist. Nat.* Lib. XVIII. c. 11.; XXXVII. c. 12.
- [5.](#) Virgil, *Georg.* Lib. II.
- [6.](#) Plutarch, *in Numa*.
- [7.](#) Livy, *Epitome*, Lib. XVIII. Valer. Maxim. Lib. IV. c. 4. § 6.
- [8.](#) Cicero, *De Senectute*, c. 16.
- [9.](#) Rapin, *Hortorum*, Lib. IV.
- [10.](#) Bonstetten, *Voyage dans le Latium*, p. 274.
- [11.](#) J. C. L. Sismondi, *Tableau de l'Agriculture Toscane*, and Chasteauvieux, *Lettres Ecrites d'Italie*. Paris, 1816. 2 Tom.
- [12.](#) Plutarch, *in Cato*.
- [13.](#) Plutarch, *in Cato*.
- [14.](#) Plin. *Hist. Nat.* Lib. XIV. c. 4; Lib. XVI. c. 39.
- [15.](#) Plutarch, *in Cato*.
- [16.](#) Ibid.
- [17.](#) *In Cato*.
- [18.](#) C. 160.
- [19.](#) Cicero, *Brutus*, c. 17.
- [20.](#) Vegetius, Lib. I. c. 8.
- [21.](#) Plutarch, *in Cato*.
- [22.](#) Valerius Maximus, Lib. VIII. c. 7. Valerius says, he was in his 86th year; but Cato did not survive beyond his 85th. Cicero, *in*

- Bruto*, c. 20. Pliny, *Hist. Nat.* Lib. XIX. c. 1.
- [23.](#) Livy, Lib. XXXIX. c. 40.
- [24.](#) Lib. XXXIV. c. 2.
- [25.](#) *Noct. Attic.* Lib. VII. c. 3.
- [26.](#) *Brutus*, c. 17.
- [27.](#) Lib. XXXIX. c. 40.
- [28.](#) *Noct. Attic.* Lib. X. c. 3.
- [29.](#) *Hist. Nat.* Lib. VIII. c. 5.
- [30.](#) *Brutus*, c. 17.
- [31.](#) *Brutus*, c. 87.
- [32.](#) Quintil. *Inst. Orat.* Lib. III. c. 1.
- [33.](#) Pliny, *Hist. Nat.* Lib. XXV. c. 2.
- [34.](#) Pliny, *Hist. Nat.* Lib. XXV. c. 2.
- [35.](#) Livy, Lib. IV. c. 25.
- [36.](#) Plin. *Hist. Nat.* Lib. XXIX. c. 1.
- [37.](#) Plutarch, *in Cato*.
- [38.](#) Plin. *Hist. Nat.* Lib. XX. c. 9.
- [39.](#) Ibid. Lib. XXIX. c. 1.
- [40.](#) Pliny, *Hist. Nat.* Lib. XXIX. c. 1.
- [41.](#) *Stor. del. Let. Ital.* Part. III. Lib. III. c. 5. § 5.
- [42.](#) See Spon, *Recherches Curieuses d'Antiquité*. Diss. 27. Bayle, *Dict. Hist.* art. Porcius, Rem. H.

In what degree of estimation medicine was held at Rome, and by what class of people it was practised, were among the *quæstiones vexatæ* of classical literature in our own country in the beginning and middle of last century. Dr Mead, in his *Oratio Herveiana*, and Spon, in his *Recherches d'Antiquité*, followed out an idea first suggested by Casaubon, in his animadversions on Suetonius, that

physicians in Rome were held in high estimation, and were frequently free citizens; that it was the surgeons who were the *servile pecus*; and that the erroneous idea of physicians being slaves, arose from confounding the two orders. These authors chiefly rested their argument on classical passages, from which it appears that physicians were called the friends of Cicero, Cæsar, and Pompey. Middleton, in a well known Latin dissertation, maintains that there was no distinction at Rome between the physician, surgeon, and apothecary, and that, till the time of Julius Cæsar at least, the art of medicine was exercised only by foreigners and slaves, or by freedmen, who, having obtained liberty for their proficiency in its various branches, opened a shop for its practice.—*De Medicorum apud veteres Romanos degentium Conditione Dissertatio. Miscellaneous Works, Vol. IV.* See on this topic, *Schlæger, Histor. litis, De Medicorum apud veteres Romanos degentium Conditione. Helmst. 1740.*

[43.](#) *Noct. Attic. Lib. VII. c. 10.*

[44.](#) *De Officiis, Lib. I. c. 29.* Multa sunt multorum facete dicta: ut ea, quæ a sene Catone collecta sunt, quæ vocant apophthegmata.

[45.](#) *Sat. Lib. I. 2.*

[46.](#) For Cato's family, see Aulus Gellius, *Noct. Attic. Lib. XIII. c. 19.*

[47.](#) We have many minute descriptions of the villas of luxurious Romans, from the time of Hortensius to Pliny, but there are so few accounts of those in the simpler age of Scipio, that I have subjoined the description of Seneca, who saw this mansion precisely in the same state it was when possessed and inhabited by the illustrious conqueror of Hannibal. "Vidi villam structam lapide quadrato, murum circumdatum sylvæ, turres quoque in propugnaculum villæ utrimque subrectas. Cisternam ædificiis et viridibus subditam, quæ sufficere in usum exercitûs posset. Balneolum angustum, tenebricosum ex consuetudine antiquâ. Magna ergo me voluptas subit contemplantem mores Scipionis et nostros. In hoc angulo, ille Carthaginis horror, cui Roma debet quod tantum semel capta est, abluebat corpus laboribus rusticis fessum; exercebat enim operâ se, terramque, ut mos fuit priscis,

ipse subigebat. Sub hoc ille tecto tam sordido stetit—hoc illum pavementum tam vile sustinuit.” Senec. *Epist.* 86.

- [48.](#) Lib. II.
- [49.](#) *Trionfo della Fama*, c. 3.
- [50.](#) Varro, *De Re Rusticâ*, Lib. II. proœm.
- [51.](#) Cæsar, *Comment. de Bello Civili*, Lib. II. c. 17, &c.
- [52.](#) Suetonius, in *Jul. Cæs.* c. 44.
- [53.](#) *Epist. Fam.* Lib. IX. Ep. 6. Ed. Schütz.
- [54.](#) *De Re Rusticâ*, Lib. II.
- [55.](#) Cicero, *Philip.* II. c. 40.
- [56.](#) See Castell’s *Villas of the Ancients*.
- [57.](#) *De Re Rusticâ*, Lib. III. c. 5.
- [58.](#) *Classical Tour in Italy*.
- [59.](#) Appian, *De Bello Civili*, Lib. IV. 47.
- [60.](#) Berwick’s *Lives of Asin. Pollio, M. Varro, &c.*
- [61.](#) *Scaligerana prima*, p. 144.
- [62.](#) Πολυγρωτατος. *Epist. ad Attic.* Lib. III. Ep. 18.
- [63.](#) Cicero, *De Divinat.* Lib. I. c. 18. Seneca, *Epist.* 98.
- [64.](#) Suetonius, *De Illust. Grammat.* c. 1.
- [65.](#) Suetonius (*De Illust. Gram.*) says, that he was sent by Attalus, at the moment of the death of Ennius. Now, Ennius died in 585, at which time Eumenes reigned at Pergamus, and was not succeeded by Attalus till the year 595; so that Suetonius was mistaken, either as to the year in which Crates came to Rome, or the king by whom he was sent—I rather think he was wrong in the latter point; for, if Crates was the first Greek rhetorician who taught at Rome, which seems universally admitted, he must have been there before 593, in which year the rhetoricians were expressly banished from Rome, along with the philosophers.

- [66.](#) Suetonius, c. 2.
- [67.](#) Court de Gebelin, *Monde Primitif*, T. VI. Disc. Prelim. p. 12.
- [68.](#) *Epist. ad Attic.* Lib. XIII. Ep. 12.
- [69.](#) Ibid. Lib. XIII. Ep. 18.
- [70.](#) *Epist. Famil.* Lib. IX. Ep. 8.
- [71.](#) Aulus Gellius, Lib. I. c. 18
- [72.](#) See also as to the Celtic derivations, Court de Gebelin, *Monde Primitif*. Disc. Prelim. T. VI. p. 23.
- [73.](#) Jupiter, Juno, Saturnus, Vulcanus, Vesta, et alii plurimi quos Varro conatur ad mundi partes sive elementa transferre. (*St August. Civit. Dei*, Lib. VIII. c. 5.)
- [74.](#) Lactantius, *Div. Inst.* Lib. I. c. 6.
- [75.](#) Bolingbroke, *Use and Study of History*, Lett. 3.
- [76.](#) Au. Gellius, Lib. XIV. c. 7.
- [77.](#) St Augustine, *De Civitat. Dei*, Lib. XIX. c. 1.
- [78.](#) Antiochus of Ascalon, a teacher of the old Academy.
- [79.](#) Fabricius, *Biblioth. Latin.* Lib. I. c. 7.
- [80.](#) Au. Gellius, *Noct. Attic.* Lib. XIII. c. 11.
- [81.](#) Ibid. Lib. VII. c. 16.
- [82.](#) Tom. I. p. 241.
- [83.](#) It was long believed, that Pope Gregory the First had destroyed the works of Varro, in order to conceal the plagiarisms of St Augustine, who had borrowed largely from the theological and philosophic writings of the Roman scholar. This, however, is not likely. That illustrious Father of the Christian Church is constantly referring to the learned heathen, without any apparent purpose of concealment; and he extols him in terms calculated to attract notice to the subject of his eulogy. Nor did St Augustine possess such meagre powers of genius, as to require him to build up the

city of the true God from the crumbling fragments of Pagan temples.

- [84.](#) *Academ. Poster.* Lib. I. c. 3.
- [85.](#) Morhof, *Polyhistor.* Tom. I. Lib. I. Falsterus, *Hist. Rei Liter. ap. Roman.*
- [86.](#) Middendorp, *De Academ.* Lib. III.
- [87.](#) Tiraboschi, *Stor. dell Lett. Ital.* Part III. Lib. III. c. 8.
- [88.](#) Plin. *Hist. Nat.* Lib. XVIII. c. 3.
- [89.](#) Plutarch, *in Paul. Æmil.*
- [90.](#) Id. *in Sylla.*
- [91.](#) Plutarch, *in Lucullo.*
- [92.](#) *Ibid.*
- [93.](#) *Epist. ad Attic.* Lib. IV. Ep. 4 and 8.
- [94.](#) *Epist. ad Quint. Frat.* Lib. II. Ep. 4. According to some writers, it was a younger Tyrannio, the disciple of the elder, who arranged Cicero's library, and taught his nephew.—Mater, *Ecole d'Alexandrie*, Tom. I. p. 179.
- [95.](#) Suidas, *Lexic.*
- [96.](#) Plin. *Hist. Nat.* Lib. VII. c. 30.
- [97.](#) Plin. *Hist. Nat.* Lib. XXXV. c. 14.
- [98.](#) Au. Gellius, Lib. IV. c. 9.
- [99.](#) Plutarch, *in Cicero.*
- [100.](#) *Chron. Euseb.*
- [101.](#) Suetonius, *in August.* c. 94.
- [102.](#) Au. Gellius, *Noct. Attic.* Lib. XIX. c. 14.
- [103.](#) *Ibid.*
- [104.](#) Au. Gellius, Lib. X. c. 4.
- [105.](#)

See farther, with regard to Nigidius Figulus, Bayle, *Dict. Histor. Art. Nigidius*, and *Mem. de l'Acad. des Inscriptions*, Tom. XXIX. p. 190.

- [106.](#) Au. Gellius, *Noct. Attic.* Lib. XIII. c. 9.
- [107.](#) Griffet, *De Arte Regnandi.*
- [108.](#) *De Oratore*, Lib. II. c. 13.
- [109.](#) Vopiscus, *Vit. Taciti Imp.*
- [110.](#) *Römische Geschichte*, Tom. I. p. 367.
- [111.](#) Cicero, *De Oratore*, Lib. II. c. 13.
- [112.](#) Lib. I. c. 2.
- [113.](#) Quæ in Commentariis Pontificum aliisque publicis privatisque erant monumentis, incensâ urbe, pleræque interficere. Livy, Lib. VI. c. 1.
- [114.](#) Livy, Lib. VI. c. 1.
- [115.](#) Polybius, Lib. III. c. 22, 25, 26.
- [116.](#) *Epist.* Lib. II. Ep. 1.
- [117.](#) Lib. IV. p. 257. ed. Sylburg, 1586.
- [118.](#) Lib. II. p. 111.
- [119.](#) Lib. III. p. 174.
- [120.](#) Lib. IV. c. 7.
- [121.](#) Lib. III. c. 22.
- [122.](#) *Hist. Nat.* Lib. XXXIV. c. 14.
- [123.](#) *Hist. Nat.* Lib. XXXIV. c. 14.
- [124.](#) Livy, Lib. IV. c. 23.
- [125.](#) Dionys. Halic. Lib. I. p. 60.
- [126.](#) Pliny, *Hist. Nat.* Lib. XXXV. c. 2.
- [127.](#) *In Numa.*
- [128.](#) Lib. VIII. c. 40.

- [129.](#) His laudationibus historia rerum nostrarum est facta mendosior. Multa enim scripta sunt in iis, quæ facta non sunt—falsi triumphi, plures consulatus, genera etiam falsa. *Brutus*, c. 16.
- [130.](#) Lib. III. c. 20.
- [131.](#) *L'Evesque, Hist. Critique de la Republique Romaine*, T. I.
- [132.](#) Livy, Lib. V. c. 21.
- [133.](#) Bankes, *Civil History of Rome*, Vol. I.
- [134.](#) *Brutus*, c. 11.
- [135.](#) Livy, Lib. II. c. 40.
- [136.](#) The question concerning the authenticity or uncertainty of the Roman history, was long, and still continues to be, a subject of much discussion in France.—“At Paris,” said Lord Bolingbroke, “they have a set of stated paradoxical orations. The business of one of these was to show that the history of Rome, for the four first centuries was a mere fiction. The person engaged in it proved that point so strongly, and so well, that several of the audience, as they were coming out, said, the person who had set that question had played booty, and that it was so far from being a paradox, that it was a plain and evident truth.”—SPENCE’S *Anecdotes*, p. 197. It was chiefly in the *Memoires de l’Academie des Inscriptions*, &c. that this literary controversy was plied. M. de Pouilly, in the *Memoirs* for the year 1722, produced his proofs and arguments against the authenticity. He was weakly opposed, in the following year, by M. Sallier, and defended by M. Beaufort, in the *Memoirs* of the Academy, and at greater length in his *Dissert. sur l’Incertitude des cinq premiers siècles de l’Hist. Romaine*, (1738,) which contains a clear and conclusive exposition of the state of the question. The dispute has been lately renewed in the *Memoirs* of the Institute, in the proceedings of which, for 1815, there is a long paper, by M. Levesque, maintaining the total uncertainty of the Roman history previous to the invasion of the Gauls; while the opposite side of the question has been strenuously espoused by M. Larcher. This controversy, though it commenced in France, has not been confined to that country. Hooke and Gibbon have

argued for the certainty, (*Miscell. Works*, Vol. IV. p. 40,) and Cluverius for the uncertainty, of the Roman history, (*Ital. Antiq. Lib. III. c. 2.*) Niebuhr, the late German historian of Rome, considers all before Tullus Hostilius as utterly fabulous. The time that elapsed from his accession to the war with Pyrrhus, he regards as a period to be found in almost every history, between mere fable and authentic record. Beck, in the introduction to his German translation of Ferguson's Roman Republic, *Ueber die Quellen der ältesten Römischen Geschichte und ihren Werth*, has attempted to vindicate the authenticity of the Roman history to a certain extent; but his reasonings and citations go little farther than to prove, what never can be disputed, that there is much truth in the general outline of events—that the kings were expelled—that the Etruscans were finally subdued; and that consuls were created. He admits, that much rested on tradition; but tradition, he maintains, is so much interwoven with every history, that it cannot be safely thrown away. The remainder of the treatise is occupied with a feeble attempt to show, that more monuments existed at Rome after its capture by the Gauls, than is generally supposed, and that Fabius Pictor made a good use of them.

[137.](#) Pliny, *Hist. Nat.* Lib. XXXV. c. 4.

[138.](#) Hankius, *De Romanar. Rerum Scriptor.* Pars I. c. 1.

[139.](#) Lib. VII.

[140.](#) Lib. IV. p. 234.

[141.](#) *In Romulo.*

[142.](#) Lib. III. c. 9.

[143.](#) Lib. I.

[144.](#) Lib. III. c. 8.

[145.](#) Ernesti has attempted, but I think unsuccessfully, to support the authenticity of the Annals of Fabius against the censures of Polybius, in his dissertation, entitled, *Pro Fabii Fide adversus Polybium*, inserted in his *Opuscula Philologica*, Leipsic, 1746—Lugd. Bat. 1764. He attempts to show, from other passages, that

Polybius was a great detractor of preceding historians, and that he judged of events more from what was probable and likely to have occurred, than from what actually happened, and that no historian could have better information than Fabius. To the interrogatories which Polybius puts to Fabius, with regard to the causes assigned by him as the origin of the second Punic war, Ernesti replies for him, that the Senate of Carthage could no more have taken the command from Hannibal in Spain, or delivered him up, than the Roman Senate could have deprived Cæsar of his army, when on the banks of the Rubicon; and as to the support which Hannibal received while in Italy, it is answered, that it was quite consistent with political wisdom, and the practice of other nations, for a government involuntarily forced into a struggle, by the disobedience or evil counsels of its subjects, to use every exertion to obtain ultimate success, or extricate itself with honour, from the difficulties in which it had been reluctantly involved.

[146.](#) Lib. I. p. 64.

[147.](#) Fabium æqualem temporibus hujusce belli potissimum auctorem habui. Lib. XXII. c. 7.

[148.](#) *Brutus*, c. 27.

[149.](#) *Hist. Nat.* Lib. XI. c. 53.

[150.](#) *Noct. Attic.* Lib. XI. c. 14.

[151.](#) He also probably suggested to Sallust a phrase which has given much scandal in so grave a historian. Cicero says, in one of his letters, (*Epist. Famil.* Lib. IX. Ep. 22,) “At vero Piso, in annalibus suis, queritur, adolescentes peni deditos esse.”

[152.](#) *Römische Geschichte*, Tom. I. p. 245.

As his account of Roman affairs was written in Greek, I omit in the list of Latin annalists Lucius Cincius Alimentus, who was contemporary with Fabius, having been taken prisoner by Hannibal during the second Punic war. But though his history was in Greek, he wrote in Latin a biographical sketch of the Sicilian Rhetorician Gorgias Leontinus, and also a book, *De Re Militari*, which has been cited by Au. Gellius, and acknowledged by

Vegetius as the foundation of his more elaborate Commentaries on the same subject.

- [153.](#) *Brutus*, c. 26.
- [154.](#) The passage is a fragment from the first book of Sallust's lost history. Mar. Victorinus *in prim. Ciceronis de Inventione*.
- [155.](#) *De Fontibus et Auctoritate Vitarum Parallel. Plutarchi*, p. 134. Gotteng. 1820.
- [156.](#) Lib. I. c. 7.
- [157.](#) *Brutus*, c. 26.
- [158.](#) Lib. I. c. 7.
- [159.](#) Æl. Spartianus, *in Hadriano*.
- [160.](#) Au. Gellius, *Noct. Attic.* Lib. II. c. 13.
- [161.](#) *De Legibus*, Lib. I. c. 2.
- [162.](#) Lib. V. c. 18.
- [163.](#) *Brutus*, c. 35.
- [164.](#) *Noct. Attic.* Lib. IX. c. 13.
- [165.](#) *Noct. Attic.* Lib. XIII. c. 28.
- [166.](#) Ibid. Lib. VII. c. 19.
- [167.](#) *Noct. Attic.* Lib. VI. c. 8.
- [168.](#) See above, Vol. I. p. 322.
- [169.](#) *Brutus*, c. 63.
- [170.](#) Lib. II. c. 9.
- [171.](#) *Jugurtha*, c. 95.
- [172.](#) *Brutus*, c. 63.
- [173.](#) *De Legibus*, Lib. I. c. 2.
- [174.](#) *Brutus*, c. 29. Some persons have supposed that Cicero did not here mean Xenophon's *Cyropædia*, but a life of Cyrus, written by Scaurus. This, indeed, seems at first a more probable meaning

than that he should have bestowed a compliment apparently so extravagant on the Memoirs of Scaurus; but his words do not admit of this interpretation.—“Præclaram illam quidem, sed neque tam rebus nostris aptam, nec tamen Scauri laudibus anteponendam.”

[175.](#) Lib. VII.

[176.](#) *In Mario.*

[177.](#) Lib. II. c. 13.

[178.](#) Lib. II. c. 5. Lib. VI. c. 4.

[179.](#) Plutarch, *in Lucullo.*

[180.](#) Plutarch, *In Sylla.*—Appian.

[181.](#) *In Mario.*

[182.](#) *Memoirs of the Court of Augustus*, Vol. I.

[183.](#) *In Vespasiano*, c. 8.

[184.](#) Malheureux sort de l’histoire! Les spectateurs sont trop peu instruits, et les acteurs trop intéressés pour que nous puissions compter sur les recits des uns ou des autres.—GIBBON’S *Miscell. Works*, Vol. IV.

[185.](#) *Noct. Att.* Lib. XVII. c. 18.

[186.](#) Nardini, *Roma Antica.* Lib. IV. c. 7.

[187.](#) Steuart’s *Sallust*, Essay I.

[188.](#) *Classical Tour*, Vol. II. c. 6.

[189.](#) *Sat.* Lib. I. Sat. 2.

[190.](#) Suetonius, *De Grammaticis.*

[191.](#) *Leben des Sallust.*

[192.](#) Banks, *Civil Hist. of Rome*, Vol. II.

[193.](#) The authors of the Universal History suppose that these books were Phœnician and Punic volumes, carried off from Carthage by Scipio, after its destruction, and presented by him to Micipsa; and

they give a curious account of these books, of which some memory still subsists, and which they conjecture to have formed part of the royal collection of Numidia.

[194.](#) Senec. *Epist.* 114.

[195.](#) It is curious into what gross blunders the most learned and accurate writers occasionally fall. Fabricius, speaking of these letters, says, “Duæ orationes (sive epistolæ potius) de Rep. ordinandâ ad Cæsarem missæ, cum in Hispanias proficisceretur contra Petreium et Afranium, victo Cn. Pompeio.”—*Bibliothec. Latin.* Lib. I. c. 9.

[196.](#) *Lectiones Subsecivæ*, Lib. I. c. 3. Lib. II. c. 2.

[197.](#) Asinius Pollio, however, as we learn from Suetonius, thought that the Commentaries were drawn up with little care or accuracy, that the author was very credulous as to the actions of others, and that he had very hastily written down what regarded himself, with the intention, which he never accomplished, of afterwards revising and correcting.—Sueton. *in Cæsar.* c. 56.

[198.](#) Bankes, *Civil Hist. of Rome*, Vol. II.

[199.](#) Neque Druides habent, qui rebus divinis præsent; neque sacrificiis student. Deorum numero eos solos ducunt, quos cernunt, et quorum opibus aperte juvantur—Solem, et Vulcanum, et Lunam: reliquos ne famâ quidem acceperunt. Lib. VI. c. 21.

[200.](#) Deorum maximè Mercurium colunt, cui, certis diebus, humanis quoque hostiis, litare fas habent. Herculem ac Martem concessis animalibus placant ... Lucos ac nemora consecrant, deorumque nominibus appellant Secretum illud, quod solâ reverentia vident. *De Mor. Germ.* c. 9.

[201.](#) *Germ. Antiqua*, Lib. I. c. 3.

[202.](#) *Brutus*, c. 72.

[203.](#) See Plutarch *In Cæsare*, where it is related that Cæsar wrote verses and speeches, and read them to the pirates by whom he was taken prisoner, on his return to Rome from Bithynia, where he had sought refuge from the power of Sylla.

- [204.](#) *Hist. Critic. Ling. Lat.* p. 537.
- [205.](#) *Epist. ad Attic.* Lib. XII. ep. 40.
- [206.](#) Middleton's *Life of Cicero*, Vol. II, p. 347, 2d ed.
- [207.](#) *Hist. Nat.* Lib. XVIII. c. 26.
- [208.](#) Sueton. *In Cæsar.* c. 56.
- [209.](#) Cicero, *Brutus* c. 72.
- [210.](#) Au. Gellius, *Noct. Attic.* Lib. I. c. 10.
- [211.](#) Charisius, Lib. I.
- [212.](#) Au. Gellius, Lib VII, c. 9.
- [213.](#) Sueton. *In Cæsar.* c. 56.
- [214.](#) Ibid.
- [215.](#) See above, Vol. I. p. 204.
- [216.](#) See also Blondellus, *Hist. du Calendrier Romain*. Paris, 1682, 4to; Bianchinus, *Dissert. de Calendario et Cyclo Cæsaris*, Rom. 1703, folio; and Court de Gebelin, *Monde Primit.* T. IV.
- [217.](#) Mihi non illud quidem accidit, ut Alexandrino atque Africano bello interesset; quæ bella tamen ex parte nobis Cæsar's sermone sunt nota. *De Bell. Gall.* Lib. VIII.
- [218.](#) Imperfecta ab rebus gestis Alexandria confeci, usque ad exitum, non quidem civilis dissensionis, cujus finem nullum videmus, sed vitæ Cæsar's. *De Bell. Gall.*
- [219.](#) *De Hist. Lat.* Lib. I. c. 13.
- [220.](#) Sueton. *In Cæsar.* c. 72.
- [221.](#) *Epist. Famil.* Lib. V. Ep. 12.
- [222.](#) Lib. IV. Ep. 6.
- [223.](#) *De Ling. Lat.* Lib. IV.
- [224.](#) *Hist. Nat.* Lib. VIII. c. 2.
- [225.](#) *Epist. Famil.* Lib. VI. Ep. 7.

- [226.](#) “Duæ sunt artes,” says Cicero, “quæ possunt locare homines in amplissimo gradu dignitatis: una imperatoris, altera oratoris boni: Ab hoc enim pacis ornamenta retinentur; ab illo belli pericula repelluntur.” *Orat. pro Muræna*, c. 14.
- [227.](#) Ratio ipsa in hanc sententiam ducit, ut existimem sapientiam sine eloquentia parum prodesse civitatibus. *Rhetoricorum*, Lib. I. c. 1.
- [228.](#) Lib. II.
- [229.](#) *Brutus*, c. 22.
- [230.](#) *De Orat.* Lib. I. c. 60.
- [231.](#) *Rhetoric. seu De Inventione*, Lib. I. c. 1.
- [232.](#) Plutarch, *In Tiber. Graccho*.
- [233.](#) Plutarch, *In Tiber. Graccho*.
- [234.](#) *Noct. Attic.* Lib. X. c. 3.
- [235.](#) Plutarch, *In Tib. Graccho*.
- [236.](#) *De Orator.* Lib. III. c. 60. Plutarch and Cicero’s accounts of the eloquence of C. Gracchus, seem not quite consistent with what is delivered on the subject by Gellius.
- [237.](#) Funccius, *De Virili Ætate Lat. Ling.* c. 1. § 24.
- [238.](#) Lib. IV. Od. 1.
- [239.](#) Cicero, *De Oratore*, Lib. II. c. 2.
- [240.](#) Valer. Maxim. Lib. VII. c. 3.
- [241.](#) Valer. Maxim. Lib. III. c. 7; and Lib. VI. c. 8.
- [242.](#) *De Oratore*, Lib. II. c. 28, 29, 48, 49.
- [243.](#) *Id.* Lib. II. c. 47.
- [244.](#) Plutarch *In Mario*. Valerius Maximus, Lib. VIII. c. 9.
- [245.](#) Cicero, *De Oratore*, Lib. III. c. 3.
- [246.](#) *Id.* Lib. I. c. 33.
- [247.](#) Cicero, *De Orat.* Lib. I. c. 26, 27.

- [248.](#) Cicero, *De Orat.* Lib. II. c. 1.
- [249.](#) Plutarch, *In Sylla*.
- [250.](#) *De Oratore*, Lib. III. c. 3.
- [251.](#) Plutarch, *In Sylla*.
- [252.](#) *De Oratore*, Lib. III. c. 3.
- [253.](#) *Brutus*, c. 89.
- [254.](#) *Brutus*, c. 63.
- [255.](#) Ibid.
- [256.](#) *De Oratore*, Lib. III. c. 61.
- [257.](#) Cicero, *Brutus*, c. 89.
- [258.](#) Ibid.
- [259.](#) Ibid.
- [260.](#) Plin. *Hist. Nat.* Lib. XVII. c. 1.
- [261.](#) Ibid. Lib. XXXIII. c. 11.
- [262.](#) Nardini, *Roma Antica*, Lib. VI. c. 15.
- [263.](#) Sueton. *in Augusto*, c. 72.
- [264.](#) Varro, *De Re Rustica*, Lib. III. c. 6.
- [265.](#) Macrobius, *Saturnalia*, Lib. III. c. 13.
- [266.](#) Plin. *Hist. Nat.* Lib. XIV. c. 14.
- [267.](#) Ibid. Lib. XXV. c. 11.
- [268.](#) Varro, *De Re Rustica*, Lib. III. c. 3.
- [269.](#) Ibid. Lib. III. c. 17.
- [270.](#) Ibid.
- [271.](#) Plin. *Hist. Nat.* Lib. IX. c. 55.
- [272.](#) Cicer. *Academica*, Lib. II. c. 25, 31, 33.
- [273.](#) Bonstetten, *Voyage dans le Latium*, p. 152–160. Nibby, *Viaggio Antiquario ne contorni di Roma*, T. II.

- [274.](#) Varro, *De Re Rustica*, Lib. III. c. 13.
- [275.](#) Cicero, *Brutus*, c. 95.
- [276.](#) Varro, *De Re Rustica*. Cicero, *Epist. ad Attic.* Lib. V. Ep. 2.
- [277.](#) Seren. Samonicus, *De Medicina*, c. 15.
- [278.](#) Cicero, *Epist. Familiares*, Lib. VIII. Ep. 2.
- [279.](#) Dio Cassius, Lib. XXXIX.
- [280.](#) Quint. *Inst. Orat.* Lib. XI. c. 3.
- [281.](#) *Epist. ad Atticum*, Lib. III. Ep. 9, &c.
- [282.](#) As a proof of his astonishing memory, it is recorded by Seneca, that, for a trial of his powers of recollection, he remained a whole day at a public auction, and when it was concluded, he repeated in order what had been sold, to whom, and at what price. His recital was compared with the clerk's account, and his memory was found to have served him faithfully in every particular. Senec. *Præf.* Lib. I. *Controv.*
- [283.](#) Aulus Gellius, *Noct. Attic.* Lib. I. c. 5.
- [284.](#) Valerius Maximus, Lib. VIII. c. 10.
- [285.](#) Ibid.
- [286.](#) Macrobius, *Saturnalia*, Lib. III. c. 13.
- [287.](#) Ibid.
- [288.](#) Meiners, *Decadence des Mœurs chez les Romains*.
- [289.](#) Hortensius was first married to a daughter of Q. Catulus, the orator, who is one of the speakers in the Dialogue *De Oratore*. (Cicero, *De Oratore*, Lib. III. c. 61.) He afterwards asked, and obtained from Cato, his wife Marcia; who, having succeeded to a great part of the wealth of Hortensius on his death, was then taken back by her former husband. (Plutarch, *In Catone*.) By his first wife, Hortensius had a son and daughter. In his son Quintus, he was not more fortunate than his rival, Cicero, in his son Marcus. Cicero, while Proconsul of Cilicia, mentions, in one of his letters, the ruffian and scandalous appearance made by the younger

Hortensius at Laodicea, during the shows of gladiators.—“I invited him once to supper,” says he, “on his father’s account; and, on the same account, only once.” (*Epist. Ad Attic. Lib. VI. Ep. 3.*) Such, indeed, was his unworthy conduct, that his father at this time entertained thoughts of disinheriting him, and making his nephew, Messala, his heir; but in this intention he did not persevere. (*Valer. Maxim. Lib. V. c. 9.*) After his father’s death, he joined the party of Cæsar, (*Cicero, Epist. Ad Att. Lib. X. Ep. 16, 17, 18,*) by whom he was appointed Proconsul of Macedonia; in which situation he espoused the side of the conspirators, subsequently to the assassination of Cæsar. (*Cicero, Philip. X. c. 5 and 6.*) By order of Brutus, he slew Caius Antonius, brother to the Triumvir, who had fallen into his hands; and, being afterwards taken prisoner at the battle of Philippi, he was slain by Marc Antony, by way of reprisal, on the tomb of his brother. (*Plutarch, In M. Bruto.*)

Hortensia, the daughter, inherited something of the spirit and eloquence of her father. A severe tribute having been imposed on the Roman matrons by the Triumvirs, Antony, Octavius, and Lepidus, she boldly pleaded their cause before these noted extortioners, and obtained some alleviation of the impost. (*Valer. Maxim. Lib. VIII. c. 3.*)

Quintus, the son of the orator, left two children, Q. Hortensius Corbio, and M. Hortensius Hortalus. The former of these was a monster of debauchery; and is mentioned by his contemporary, Valerius Maximus, among the most striking examples of those descendants who have degenerated from the honour of their ancestors. (*Lib. III. c. 5.*) This wretch, not being likely to become a father, and the wealth of the family having been partly settled on the wife of Cato, partly dissipated by extravagance, and partly confiscated in the civil wars, Augustus Cæsar, who was a great promoter of matrimony, gave Hortensius Hortalus a pecuniary allowance to enable him to marry, in order that so illustrious a family might not become extinct. He and his children, however, fell into want during the reign of his benefactor’s successor. Tacitus has painted, with his usual power of striking delineation, that humiliating scene, in which he appeared, with his four

children, to beg relief from the Senate; and the historian has also recorded the hard answer which he received from the unrelenting Tiberius. Perceiving, however, that his severity was disliked by the Senate, the Emperor said, that, if they desired it, he would give a certain sum to each of Hortalus's male children. They returned thanks; but Hortalus, either from terror or dignity of mind, said not a word; and, from this time, Tiberius showing him no favour, his family sunk into the most abject poverty: (Tacit. *Annal.* Lib. II. c. 37 and 38.) And such were the descendants of the orator with the park, the plantations, the ponds, and the pictures!

[290.](#) Catull. *Carm.* 53.

[291.](#) Pliny, *Epist.* Lib. I. ep. 2.

[292.](#) *Brutus*, c. 80.

[293.](#) Ibid.

[294.](#) According to some authorities it was a short while before, and according to others a short while after, the expulsion of Tarquin.

[295.](#) "Exactis deinde regibus leges hæ exoleverunt; iterumque cœpit populus Romanus incerto magis jure et consuetudine ali, quam per latam legem."—POMPON. LÆTUS, *De Leg.* II. § 3.

[296.](#) Gibbon, *Decline and Fall of the Roman Empire*, c. 44.

[297.](#) *De Legibus*, Lib. II. c. 23. *De Oratore*, Lib. I, c. 42.

[298.](#) "Decem tabularum leges," says Livy, "nunc quoque, in hoc immenso aliarum super aliis acervatarum legum cumulo, fons omnis publici privatique est juris."

[299.](#) Cicero, *De Oratore*, Lib. II. c. 33.

[300.](#) Saint Prix, *Hist. du Droit Romain*, p. 23. Ed. Paris, 1821.

[301.](#) *Decline and Fall of the Roman Empire*, c. 44.

[302.](#) Cicero, *De Orat.* Lib. I. c. 57.

[303.](#) Ibid. Lib. I. c. 58.

[304.](#)

It must be admitted, however, that Cicero, in other passages of his works, has given the study of civil law high encomiums, particularly in the following beautiful passage delivered in the person of Crassus: “Senectuti vero celebrandæ et ornandæ quid honestius potest esse perfugium, quàm juris interpretatio? Equidem mihi hoc subsidium jam inde ab adolescentiâ comparavi, non solum ad causarum usum forensem, sed etiam ad decus atque ornamentum senectutis; ut cùm me vires (quod fere jam tempus adventat) deficere cœpissent, ab solitudine domum meam vindicarem.” (*De Oratore*, Lib. I. c. 45.) Schultingius, the celebrated civilian, in his dissertation *De Jurisprudentia Ciceronis*, tries to prove, from various passages in his orations and rhetorical writings, that Cicero was well versed in the most profound and nice questions of Roman jurisprudence, and that he was well skilled in international law, as Grotius has borrowed from him many of his principles and illustrations, in his treatise *De Jure Belli et Pacis*.

[305.](#) *De Oratore*, Lib. I.

[306.](#) *Ibid.* Lib. II. c. 49.

[307.](#) “An non pudeat, certam creditam pecuniam periodis postulare, aut circa stillicidia affici?”—Quint. *Inst. Orat.* Lib. VIII. c. 3.

[308.](#) Polletus, *Historia Fori Romani*, ap. *Supplement. ad Graevii et Gronov. antiquitat.* T. I. p. 351.

[309.](#) *In Verrem*, Act. I. c. 14.

[310.](#) Nardini, *Roma Antica*, Lib. V. c. 2, &c.

[311.](#) Virg. *Æneid.* Lib. VII.

[312.](#) “Parvis de rebus,” says he, “sed fortasse necessariis consulimur, Patres conscripti. De Appiâ viâ et de monetâ Consul—De Lupercis tribunus plebis refert. Quarum rerum etsi facilis explicatio videtur, tamen animus aberrat a sententiâ, suspensus curis majoribus.”—C. I.

[313.](#) *Orator*, c. 30.

[314.](#) *Orator*, c. 30. spe et expectatione laudati.

- [315.](#) *De Officiis*, Lib. II. c. 14.
- [316.](#) *Brutus*, c. 91.
- [317.](#) Cæcilius was a Jew, who had been domiciled in Sicily; whence Cicero, playing on the name of Verres, asks, “Quid Judæo cum Verre?” (a boar.)
- [318.](#) He ultimately, however, met with a well-merited and appropriate fate. Having refused to give up his Corinthian vases to Marc Antony, he was proscribed for their sake, and put to death by the rapacious Triumvir.
- [319.](#) Livy, Lib. XXV. c. 40.
- [320.](#) Gillies, *History of Greece*, Part II. T. IV. c. 27.
- [321.](#) *Lectures on Rhetoric*, &c. Vol. II. Lect. XXVIII.
- [322.](#) Lib. II. Ep. 1.
- [323.](#) Wolf, in the preface to his edition of the Oration for Marcellus, mentions having seen a scholastic declamation, entitled, *Oratio Catilinæ, in M. Ciceronem*. It concludes thus,—“Me consularem patricium, civem et amicum reipublicæ a faucibus inimici consulis eripite; supplicem atque insontem pristinæ claritudini, omnium civium gratiæ, et benevolentia vestræ restitute. *Amen.*”
- [324.](#) Funccius, *De Viril. Ætat. Ling. Lat.* Pars II. c. 2.
- [325.](#) Aonius Palearius wrote a declamation in answer to this speech, entitled, *Contra Murænam*.
- [326.](#) *Origin and Progress of Language*, Book IV.
- [327.](#) *Correspondence*, p. 85.
- [328.](#) Jenisch, *Parallel der beiden grösten Redner des Althertum*, p. 124, ed. Berlin, 1821.
- [329.](#) Plutarch, *In Cicero*.
- [330.](#) *Philip*. VI. c. 1.
- [331.](#) Juvenal, *Satir.* X. v. 118.
- [332.](#) Quintil. *Inst. Orat.* Lib. V.

- [333.](#) *Orator*, c. 67, 70.
- [334.](#) *Hist. Nat. Lib. VII.* c. 30.
- [335.](#) Plutarch, *In Cicer.*
- [336.](#) Macrobius, *Saturnal. Lib. III.* c. 14.
- [337.](#) *Noct. Attic. Lib. I.* c. 7.
- [338.](#) Dio Cassius, XXXIX. c. 9.
- [339.](#) *Epist. ad Attic. Lib. IV.* Ep. 1.
- [340.](#) *Epist. ad Attic. Lib. IV.* Ep. 2.
- [341.](#) See Nichol's *Literary Anecdotes*. Harles, also, seems to suppose that Bishop Ross was in earnest:—"Orationem pro Sulla spuriam esse audacter pronunciavit vir quidam doctus in—A Dissertation, in which the defence of P. Sulla, &c. is proved to be spurious."—HARLES, *Introduct. in Notitiam Literat. Rom.* Tom. II. p. 153.
- [342.](#) *Bib. Lat. Lib. I.* c. 8.
- [343.](#) *Lib. IV.* Ep. 2.
- [344.](#) "Cum Appendice De Oratione, quæ vulgo fertur, M. T. Ciceronis pro Q. Ligario," in which the author attempts to adjudicate from Cicero the beautiful oration for Ligarius, which shook even the soul of Cæsar, while he has translated into his own language the two wretched orations, *Post Reditum*, and *Ad Quirites*, insisting on the legitimacy of both, and enlarging on their truly classical beauties! In his Preface, he has pleasantly enough parodied the arguments of Wolf against the oration for Marcellus, ironically showing that they came not from that great scholar, but from a *pseudo* Wolf, who had assumed his name.
- [345.](#) *Paral. der Beyden Grösten Redner des Altherthums.*
- [346.](#) *Brutus*, c. 12, &c.
- [347.](#) *Epist. Famil. Lib. I.* Ep. 9.
- [348.](#) *Epist. ad Attic. Lib. XII.* Ep. 5, &c.
- [349.](#) *Epist. Famil. Lib. VI.* Ep. 18.

- [350.](#) *Ibid.* Lib. VII. Ep. 19.
- [351.](#) *Inst. Orat.* Lib. XII. c. 10.
- [352.](#) *Brutus*, c. 91. Is dedit operam (si modo id consequi potuit) ut nimis redundantes nos juvenili quâdam dicendi impunitate et licentiâ reprimeret; et quasi extra ripas diffluentes coerceret.
- [353.](#) *Observat. Critic. in Sophoc. et Ciceron.* Lips. 1802.
- [354.](#) Fuhrmann, *Handbuch der Classisch. Literat.*
- [355.](#) *De Nat. et Const. Rhetor.* c. 13.
- [356.](#) *Dissert. Utrum ars Rhetorica ad Herennium Ciceroni falsò inscribitur.*
- [357.](#) *De Re Poet.* Lib. III. c. 31. and 34.
- [358.](#) See P. Burmanni Secund. *In Præf. ad Rhetoric. ad Herennium.* Also Fabricius, *Bib. Lat.* Lib. I. c. 8.
- [359.](#) *Paradise Regained.*
- [360.](#) *De Orat.* Lib. I. c. 10. Ab illo fonte et capite Socrate.
- [361.](#) *Academ.* Lib. II. c. 5.
- [362.](#) *De Natur. Deor.* Lib. I. c. 43.
- [363.](#) Pliny, *Hist. Nat.* Lib. XXXV. c. 11.
- [364.](#) *Mem. de l'Institut. Royale*, Tom. XXX.
- [365.](#) Cicero styles him Princeps Stoicorum, (*De Divin.* Lib. II. c. 47,) and eruditissimum hominem, et pæne divinum (*Pro Muræna*, c. 31.)
- [366.](#) Censuerunt ut M. Pomponius Prætor animadverteret uti e republicâ fideque suâ videretur Romæ ne essent. (Au. Gellius, *Noct. Attic.* Lib. XV. c. 11.)
- [367.](#) Ælian, *Histor. Var.* Lib. III. c. 17.
- [368.](#) Plutarch, *In Catone.*
- [369.](#) Au. Gellius, *Noct. Attic.* Lib. VII. c. 14.
- [370.](#) *De Oratore*, Lib. III. c. 18.

- [371.](#) *Ibid.* Lib. II. c. 38.
- [372.](#) Hæc in philosophiâ ratio contra omnia disserendi, nullamque rem aperte judicandi, profecta a Socrate, repetita ab Arcesilao, confirmata a Carneade, usque ad nostram viguit ætatem. *De Nat. Deor.* Lib. I. c. 5.
- [373.](#) *Academ. Prior.* Lib. II. c. 48.
- [374.](#) Valer. Max. Lib. VIII. c. 7.
- [375.](#) *Academ. Prior.* Lib. II. c. 31.
- [376.](#) Quintil. *Inst. Orat.* Lib. XII. c. 1. Lactant. *Instit.* Lib. V. c. 14.
- [377.](#) Plutarch, *In Catone.* Plin. *Hist. Nat.* Lib. VII. c. 30.
- [378.](#) *Divin. Institut.* Lib. V. c. 16.
- [379.](#) Plutarch, *De Fortitud. Alexandri.*
- [380.](#) Diog. Laert. *In Clitomacho.*
- [381.](#) Cicero, *Academic. Prior.* Lib. II. c. 32.
- [382.](#) *Academic. Prior.* Lib. II. c. 32.
- [383.](#) Mater, *Ecole d’Alexandrie*, Tom. II. p. 131.
- [384.](#) Dans la Grèce, après ces épreuves, commençoit enfin la vie champêtre dans les jardins du Lycée ou de l’Academie, où l’on entreprenoit un cours de philosophie, que les véritables amateurs avoient l’art singulier de ne jamais finir. Ils restoient toute leur vie attachés à quelque chef de secte comme Metrodore à Epicure, moudroient dans les écoles, et étoient ensuite enterrés à l’ombre de ces mêmes arbustes, sous lesquels ils avoient tant médité. (De Pauw, *Recherches Philosophiques sur les Grecs*, T. II.)
- [385.](#) Cicero, *Academ. Prior.* Lib. II. c. 4.
- [386.](#) *Epist. Familiares.*
- [387.](#) Garve, *Anmerk. zu Büchern von den Pflichten.* Breslau, 1819. Schoell, *Hist. Abregée de la Litterat. Romaine.*
- [388.](#) P. XII.
- [389.](#) *Ciceron. Opera*, Tom. XIII. p. 15.

- [390.](#) *Epist. ad Attic.* Lib. XII. Ep. 52.
- [391.](#) *Epist.* Lib. XIII. Ep. 21.
- [392.](#) *Dialog. Hipparchus.*
- [393.](#) Black's *Life of Tasso*, Vol. II.
- [394.](#) Hulsemann, *Über die Principien und den Geist der Gesetze.* Leipsic, 1802.
- [395.](#) Quæque de optimâ republicâ sentiremus, in sex libris ante diximus; accommodabimus hoc tempore leges ad illum, quem probamus civitatûs statum. *De Legib.* Lib. III. c. 2.
- [396.](#) *Epist. ad Quint. Frat.* Lib. II. Ep. 14. Lib. III. Ep. 5 and 6.
- [397.](#) *De Legib.* Lib. II. c. 17.
- [398.](#) *Ibid.* Lib. I. c. 20.
- [399.](#) Hominis Amicissimi, Cn. Pompeii, laudes illustrabit. Lib. I. c. 3.
- [400.](#) *De Legibus*, Lib. II. c. 1.
- [401.](#) *Ibid.* Lib. I. c. 5.
- [402.](#) *Excursion from Rome to Arpino*, p. 89. Ed. Geneva, 1820.
- [403.](#) Plin. *Hist. Nat.* Lib. XXXI. c. 2.
- [404.](#) "Cæruleus nos Liris amat."—*Martial*, Lib. XIII. Ep. 83. See also Lucan, Lib. II.
- [405.](#) *De Legibus*, Lib. II. c. 2.
- [406.](#) Kelsall, *Excursion*, p. 116.
- [407.](#) *De Legibus*, Lib. II. c. 1.
- [408.](#) *Epist. ad Attic.* Lib. XII. Ep. 12.
- [409.](#) *Classic Tour through Italy*, by Sir R. C. Hoare, Vol. I. p. 293.
- [410.](#) *Classical Tour*, Vol. II. c. 9.
- [411.](#) *Classical Excursion from Rome to Arpino*, p. 99. Cicero always considered the citizens of Arpinum as under his particular protection and patronage; and it is pleasant to find, that its modern inhabitants still testify, in various ways, due veneration

for their illustrious townsman. Their theatre is called the *Teatro Tulliano*, of which the drop-scene is painted with a bust of the orator; and even now, workmen are employed in building a new town-hall, with niches, destined to receive statues of Marius and Cicero.

- [412.](#) Macrob. *Saturnal.* Lib. VI. c. 4.
- [413.](#) *Saturnal.* Lib. VI. c. 4.
- [414.](#) *Diogenes Laertius*, Lib. VII.
- [415.](#) *Diog. Laert.* Lib. VII.
- [416.](#) Plin. *Hist. Nat.* Lib. XXXI. c. 3.
- [417.](#) *Academ. Prior.* Lib. II. c. 33.
- [418.](#) *Epist. Famil.* Lib. IX. Ep. 8.
- [419.](#) Et ut nos nunc sedemus ad Lucrinum, pisciculosque exsultantes videmus. *De propriet. Serm.* c. 1. 335. voc. *exsultare*.
- [420.](#) *Epist. Dedicat. ad Prælect. in Cic. Acad.*
- [421.](#) *Introduct. in Academic.* Ed. Lips. 1810.
- [422.](#) Nec esse, nec dici posse novum opus, ac penitus mutatum; sed tantummodo correctum, magis politum, et quoad formam et dictionem, hîc et illic, splendidius mutatum. *De Lib. Cic. Academ. Comment.*
- [423.](#) *Classical Tour*, Vol. II. c. 8.
- [424.](#) *Rome in the Nineteenth Century*, Vol. III. Let. 93.
- [425.](#) *De Finibus*, Lib. III. and IV. Kelsall, *Excursion from Rome to Arpino*, p. 193.
- [426.](#) *Epist. ad Attic.* Lib. I. Ep. 1.
- [427.](#) Middleton's *Life of Cicero*, Vol. I. p. 142.
- [428.](#) Blainville's *Travels*, Vol. II.
- [429.](#) Eustace, *Classical Tour*, Vol. II. c. 8. Grotta Ferrata was long considered both by travellers (Addison, *Letters on Italy*, Blainville, *Travels*, &c.) and antiquarians (Calmet, *Hist. Univers.*

Cluverius, *Italic. Antiq.*) as the site of Cicero's Tusculan villa. The opinion thus generally received, was first deliberately called in question by Zuzzeri, in a dissertation published in 1746, entitled *Sopra un' antica Villa scoperta sopra Frescati nell appartenenze della nuova villa dell collegio Romano*. This writer places the site close to the villa and convent of Ruffinella, which is higher up the hill than Grotta Ferrata, lying between Frescati and the town of Tusculum. He was answered by Cardoni, a monk of the Basilian order of Grotta Ferrata, in his *Disceptatio Apologetica de Tusculano Ciceronis*, Romæ, 1757. Cardoni chiefly rests his argument on a passage of Strabo, where that geographer says, that the *Tusculan hill* is fertile, well watered, and surrounded with beautiful villas. Now Cardoni, referring this passage (which applies to the Tusculan hill in general) solely to the Tusculan villa, argues somewhat unfairly, that Strabo's description answers to Grotta Ferrata, but not to Ruffinella. (p. 8, &c.) Nibby in his *Viaggio Antiquario*, supports the claims of Ruffinella, on the authority of a passage in Frontinus, which he interprets with no greater candour or success. (T. II. p. 41.) With exception of Eustace, however, all modern travellers, whose works I have consulted, declare in favour of Ruffinella. "At the convent of Ruffinella, says Forsyth, farther up the hill than Grotta Ferrata, his (Cicero's) name was found stamped on some ancient tiles, which should ascertain the situation of a villa in preference to any moveable."—*Remarks on Italy*, p. 281. See also *Rome in the Nineteenth Century*, Vol. III. Letter 92, and Kelsall's *Classical Excursion*, p. 192.

[430.](#) Alex. ab Alexandro, *Dies Geniales*, Lib. I. c. 23. Rossmini, *Vita di Filelfo*, T. III. p. 59. Ed. Milan, 1808, 3 Tom. 8vo.

[431.](#) *Tusc. Disp.* Lib. II. c. 3. Lib. III. c. 3.

[432.](#) Juvenal, I think, had probably this passage of the Tusculan Disputations in view, in the noble and pathetic lines of his tenth Satire—

“Provida Pompeio dederat Campania febres,” &c.

- [433.](#) Some of the advantages and disadvantages of the method of writing in dialogue, are stated by Mr. Hume, in the introduction to his *Dialogues concerning Natural Religion*, (London, 1779, 8vo,) a work apparently modelled on Cicero's *Nature of the Gods*.
- [434.](#) In the English extracts from Cicero *De Nat. Deor.* I have availed myself of a very good but anonymous translation, printed Lond. 1741, 8vo.
- [435.](#) In the *Herculanensia*, (p. 22,) Sir William Drummond contends, at considerable length, that a work *On Piety according to Epicurus*, (*Περὶ Εὐσεβεΐας κατ' Ἐπικούρου*,) of which a fragment has been discovered at Herculaneum, was the prototype of a considerable part of the discourse of Velleius. The reader will find a version of the passages in which a resemblance appears, in the *Quarterly Review*, (No. V.) where it is also remarked, "that Sir William seems to us to have failed altogether in rendering it probable that Cicero had ever seen this important fragment, the passages in which there is any resemblance, relating, without exception, to what each author is reporting of the doctrines of certain older philosophers, as expressed in their works; and the reports are not by any means so precisely similar as to induce us to suppose that Cicero had even taken the very justifiable liberty of saving himself some little trouble, by making use of another author's abstract, from Chrysippus, and from Diogenes the Babylonian." Schütz, the German editor of Cicero, enumerates some works, which he thinks Cicero had read, and others, which he seems to have known merely from summaries and abridgments. The following is his conjecture with regard to the writings of Epicurus:—"Epicuri denique κυριας δοξας, ejus κανονα seu libros, de Judicio, item περὶ φύσεως et περὶ ὁσιότητος, non ex aliorum tantum testimoniis, sed ex suâ ipsius lectione ei notos fuisse, facile, tot locis ubi de eo agitur inter se collatis, intelligitur." (Cicer. *Opera*, Tom. XV. p. 27.) Perhaps the treatise, *περὶ Ὀσιότητος*, was a similar work to that, *Περὶ Εὐσεβεΐας*.
- [436.](#) In his *Dialogues on Natural Religion*, Mr. Hume puts two very good remarks into the mouth of one of his characters. Speaking of

Cicero's argument for a Deity, deduced from the grandeur and magnificence of nature, he observes, "If this argument, I say, had any force in former ages, how much greater must it have at present, when the bounds of nature are so infinitely enlarged, and such a magnificent scene is opened to us!" P. 103.—Again, in mentioning that the infidelity of Galen was cured by the study of anatomy, (which was much more extended by him than it had been in the days of Cicero,) he says, "And if the infidelity of Galen, even when these natural sciences were still imperfect, could not withstand such striking appearances, to what pitch of pertinacious obstinacy must a philosopher in this age have attained, who can now doubt of a Supreme Intelligence!" P. 23.—See also Lactantius, *De Opificio Dei*.

[437.](#) There was published, *Bononiæ*, 1811, *M. T. Ciceronis de Naturâ Deorum Liber Quartus: e pervetusto Codice MS. Membranaceo nunc primum edidit P. Seraphinus Ord. Fr. Min.*—This tract was republished, (*Oxonii*, 1813,) by Mr. Lunn, who says in a prefatory note, that "he entertains no doubt, from the opinion of several of his friends, of this production being a literary forgery." Of this, indeed, there can be no doubt, as appears among various other proofs, from the minute account of the Jews.—"Sed etiam plures adhibere deos vel divos, a quibus ipsi regantur, quos nomine Elohim designare soleant, secundi ordinis," &c. (p. 12.)—There is some humour in the manner in which the Italian editor, in a preface written in the rude style of a simple friar, obtests that the work is not a forgery.—"Sed ne quis existimet, me ipsum fecisse hunc librum, testor, detestor, obtestor, et contestor, per S. Franciscum Assissium, me talem facere non posse, qui sacris incumbere cogor, nec profanis possum," &c.

[438.](#) C. 29.

[439.](#) C. 7.

[440.](#) Multis etiam sensi mirabile videri, eam nobis potissimum probatam esse philosophiam, quæ lucem eriperet, et quasi noctem quandam rebus offunderet, desertæque disciplinæ et jampridem

relictæ patrociniū nec opinatum a nobis esse susceptum.—(*De Nat. Deor.* Lib. I. c. 3.)

[441.](#) Warburton, *Divine Legation*, Vol. II. p. 168. Ed. 1755. Warburton here alludes to Bentley—*Remarks on a late Discourse of Free-thinking*, Part II. Rem. 53.

[442.](#) *Bolingbroke's Works*, Vol. VIII. p. 81. ed. 8vo.

[443.](#) Ibid. p. 266, 278.

[444.](#) Fuerint qui judicarent oportere statui per Senatum ut aboleantur hæc scripta, quibus religio Christiana comprobetur, et vetustatis opprimatur auctoritas.—Arnobius, *Adversus Gentes*, Lib. III.

[445.](#) In the preface to the second book of this treatise, *De Divinatione*, Cicero, enumerating his late philosophical compositions, says, “Quibus libris editis, tres libri perfecti sunt *De Naturâ Deorum* *
* quæ ut plene essent cumulateque perfecta, *De Divinatione* ingressi sumus his libris scribere.”—(*De Div.* Lib. II. c. 1.)

[446.](#) Hoc sum contentus; quod, etiamsi, quomodo quidque fiat, ignorem, quid fiat, intelligo.

[447.](#) C. 38.

[448.](#) C. 3.

[449.](#) Cowley.

[450.](#) Plin. *Hist. Nat.* Lib. XXXI. c. 2.

[451.](#) At least so says Middleton, (Vol. III. p. 297,) and he quotes as his authority Spartian's Life of Hadrian, (c. 25.) Spartian, however, only tells, that he was *buried* at Cicero's villa of Puteoli—“Apud ipsas Bajas periit, invisusque omnibus sepultus est in villâ Ciceronianâ Puteolis.”

[452.](#) *Classical Tour*, Vol. II. c. 11.

[453.](#) *Philosophische Anmerkungen zu Cicero's Büchern von den Pflichten*, Breslau, 1819.

[454.](#) Lib. I. c. 39.

[455.](#) Rogers, *Human Life*.

- [456.](#) “Fuit enim hoc in amicitîâ quasi quoddam jus inter illos, ut militiæ, propter eximiam belli gloriam, Africanum ut deum coleret Lælius; domi vicissim Lælium, quòd ætate antecedeat, observaret in parentis loco Scipio.”
- [457.](#) *Epist. Famil. Lib. VII. ep. 18.* In palimpsesto, laudo equidem parsimoniam, sed miror, quid in illâ chartulâ fuerit, quod delere malueris quam hæc non scribere; nisi forte tuas formulas: non enim puto te meas epistolas delere, ut reponas tuas.
- [458.](#) *Mem. de l’Academ. des Inscriptions, &c. Tom. VI.*
- [459.](#) Mai published the *De Republicâ* at Rome, with a preface, giving a history of his discovery, notes, and an index of emendations. It was reprinted from this edition at London, without change, 1823; also at Paris, 1823, with the notes of Mai, and excerpts from his preface; and *cura* Steinacker at Leipsic, 1823. To this German edition there is a prefatory epistle by Hermann, which I was disappointed to find contained only some observations on a single passage of the *De Republicâ*, with regard to the division of the citizens into classes by Servius Tullius. In the same year an excellent French translation was published by M. Villemain, accompanied with an introductory review of the work he translates; as also notes and dissertations on those topics of Education, Manners, and Religion, which he supposes to have formed the subjects of the last three books which have not yet been recovered.
- [460.](#) *Epist. ad Quint. Frat. Lib. II. ep. 14.*
- [461.](#) *Epist. ad Quint. Frat. Lib. III. ep. 5 and 6.*
- [462.](#) Cælius ad Ciceronem, *Epist. Famil. Lib. VIII. Ep. 1.* Tui libri politici omnibus vigent.
- [463.](#) *Epist. ad Attic. Lib. VI.*
- [464.](#) *Epist. ad Quint. Frat. Lib. III. ep. 6.*
- [465.](#) The above quotation is from the XL. Number of the *North American Review*, July 1823. It is highly creditable to the scholarship of our Transatlantic brethren, that the work *De*

Republicâ, should on its first publication, have been the subject of an article in one of their principal literary journals, while, as far as I know, the reviews of this ancient land of colleges and universities, have passed over, in absolute silence, the most important classical discovery since the age of the Medici.

466. I do not know that this distinguishing feature of the character of Cicero has been anywhere so well described as in the following passage of M. Villemain, in which he has introduced in this respect a beautiful comparison between Cicero and the most illustrious writer of his own nation. Talking of the digression concerning the Parhelion and Orrery, he admits it was little to the purpose, but he adds, “Peut on se défendre d’un mouvement de respect, quand on songe à ce beau caractère de curiosité philosophique, à ce goût universel de la science dont fut animé Cicéron, et qui au milieu d’une vie agitée par tant de travaux, et dans un état de civilisation encore dénué de secours, lui fit rechercher avec un insatiable ardeur tous les moyens de connoissances nouvelles et de lumières?

“Cet homme qui avait si laborieusement médité l’art de l’éloquence, et le pratiquait chaque jour dans le Forum, dans le sénat, dans les tribunaux; ce grand orateur, qui même pendant son consulat plaidait encore des causes privées, au milieu d’une vie toute de gloire, d’agitations, et de périls, dans ce mouvement d’inquiétudes et d’affaires attesté par cette foule de lettres si admirables et si rapidement écrites, étudiait encore tout ce que dans son siècle il était possible de savoir. Il avait cultivé la poésie: il avait approfondi et transporté chez les Romains toutes les philosophies de la Grèce; il cherchait à recueillir les notions encore imparfaites des sciences physiques. Nous voyons même par une de ses lettres qu’il s’occupa de faire un traité technique de géographie, à peu près comme VOLTAIRE compilait laborieusement un abrégé chronologique de l’histoire d’Allemagne. Ces deux génies ont eu en effet ce caractère distinctif de mêler aux plus brillans trésors de l’imagination et de goût, l’ardeur de toutes les connoissances, et cette activité intellectuelle qui ne s’arrête, ni ne se lasse jamais.

“Sans doute il y avait entre eux de grands dissemblances, surtout

dans cette vocation prédominante qui entraînait l'un vers l'éloquence et l'autre vers la poésie; sans doute aussi la diversité des temps et des situations mettait plus de différence encore entre l'auteur Français de dix huitième siècle, et le Consul de la republique Romaine: mais cette ardeur de tout savoir, ce mouvement de la pensée qui s'appliquait également à tout, forme un trait éminent qui les rapproche; et peut-être le sentiment confus de cette vérité agissait il sur Voltaire dans l'admiration si vivement sentie, si sérieuse, que cet esprit contempteur de tant de renommées antiques exprima toujours pour le génie de Cicéron."—P. LXII.

- [467.](#) This first book occupied in the palimpsest 211 pages. Of these, 72 are wanting; but two short fragments belonging to this book are to be found in Lactantius and Nonius, so that about a third of the book is still lost.
- [468.](#) Mai cannot exactly state how much of the second book is wanting in the palimpsest, but he thinks probably a third part; enough remains of it to console the reader for the loss.
- [469.](#) *Somnium Scipionis.*
- [470.](#) *Epist. ad Attic. Lib. XII. Ep. 14.*
- [471.](#) Lactantius, *Divin. Inst. Lib. III. c. 18.* Luendorum scelerum causâ nasci homines.
- [472.](#) Plin. *Hist. Nat. Lib. I. Pref.*
- [473.](#) *De Divin. Lib. II. c. 9.*
- [474.](#) *Tusc. Disput. Lib. III. c. 28.*
- [475.](#) Scharfii, *Dissert. de vero auctore Consolationis. Miscell. Lips. Observ. 130.*
- [476.](#) Rogers' *Lines, written at Pæstum.*
- [477.](#) Petrarch, *Epist. Rer. Senil. Lib. XV. Ep. 1.*
- [478.](#) Varillas, *Vie de Louis XI. Menagiana, Tom. II.*
- [479.](#) *In Comment. Epist. Ad Attic. XV. 27.*

- [480.](#) *Eulogia*.
- [481.](#) Mencken, *Præf. P. Alcyonî de Exilio*, Lips. 1707.
- [482.](#) Tiraboschi, *Stor. dell. Letter. Ital.* Part. III. Lib. III. c. 4. § 14.—Ginguené thinks that Tiraboschi has completely succeeded in justifying Alcyonius. *Hist. Litter. d'Ital.* T. VII. p. 254.
- [483.](#) *Confess.* III. 4, and *De Vit. Beata.* procœm.
- [484.](#) Tunstall, *Observations on the Epistles between Cicero and Brutus*, p. 20. Ed. London, 1744.
- [485.](#) *Vit. Attici*, c. 16.
- [486.](#) *Epist.* Lib. VII. Ep. 1.
- [487.](#) *Ibid.* Ep. 26.
- [488.](#) A few unimportant letters which had passed between these two great men, during Cicero's proconsulship in Cilicia, were included among the *Epistolæ Familiares*, and are of undisputed authenticity. It does not seem clear, whether they ever formed part of the great collection of eight books, which contained the subsequent correspondence between Cicero and Brutus.
- [489.](#) Middleton's *Pref. to the Epistles of Cicero and Brutus*, p. 4. London, 1743.
- [490.](#) Tunstall, *Observations*, &c. p. 27.
- [491.](#) Pliny, *Hist. Nat.*
- [492.](#) *Epist. ad Quint. Frat.* Lib. II. Ep. 15.
- [493.](#) *Epist. Ad Attic.* Lib. XIII. *passim*, ed. Schütz.
- [494.](#) *Ibid.* *Epist.* 25.
- [495.](#) *De Pueritia Ling. Lat.* c. 1. § 10. Adamum scribendi atque signandi modum præmonstrasse primitus ratio ipsa persuadet.
- [496.](#) Lennep, *De Tirone*, p. 77. Ed. Amsteld. 1804.
- [497.](#) Kopp, *Palæographia Critica*. Ed. Manheim, 1817. 2 Tom. 4to.
- [498.](#) Isidorus, *Originum*, Lib. I. c. 21.

- [499.](#) Manilius, *Astronom.* Lib. IV. v. 197.
- [500.](#) Lib. XIV. Epig. 202.
- [501.](#) Epigr. 138.
- [502.](#) Kopp, *Palæographia Critica.*
- [503.](#) Quintil. *Inst. Orator.* Lib. I. c. 3.
- [504.](#) Ibid.
- [505.](#) Funccius, *De Virili Ætat. Ling. Lat.* Pars II. c. 8. § 9.
- [506.](#) *Epist. ad Quint. Frat.* Lib. III. Ep. 5.
- [507.](#) *Geograph.* Lib. XIII.
- [508.](#) Lib. II. Ep. 8.
- [509.](#) *Noct. Attic.* Lib. II. c. 14. *et passim.*
- [510.](#) *Ibid.* Lib. XX. c. 6.
- [511.](#) *Noct. Attic.* Lib. III. c. 10.
- [512.](#) Tacit. *Annal.* Lib. XV. c. 38–41.
- [513.](#) Joann. Sarisberiensis, *De Nug. Curial.* Lib. VIII. c. 19. Lursenius, *Dissert. De Bibliothecis Veterum*, p. 297.
- [514.](#) Sulp. Severus, *De Martini Vita*, c. 16.
- [515.](#) *Epist. XVIII. Opera.*
- [516.](#) Cassiodor. *Opera.*
- [517.](#) Petit-Radel, *Recherches sur les Biblioth. Anciennes.*
- [518.](#) *Stor. dell Letter. Ital.* Part I. Lib. I.
- [519.](#) *Bibliotheca Latin.*
- [520.](#) *De Nug. Cur.* Lib. VIII. c. 19.
- [521.](#) *Ibid.* Lib. II. c. 26.
- [522.](#) Tom. I.
- [523.](#) *De Historicis Latinis*, Lib. I, c. 19.
- [524.](#) *Hist. Critic. Philosoph.* Tom. III.

- [525.](#) *Stor. dell Letterat. Ital.* Tom. III. Lib. II. c. 2.
- [526.](#) *Dict. Histor. Art.* GREGOIRE.
- [527.](#) *Vicende della Letteratura*, Lib. I. c. 3.
- [528.](#) *Hist. Litter. d'Italie*, Tom. I. c. 2.
- [529.](#) Bayle, *Diction. Histor. Art.* GREGOIRE. Rem. M. Gibbon's *Decline and Fall of the Rom. Emp.* c. 45.
- [530.](#) Muratori, *Antiquitates Italiae Med. Aevi.* Tom. III. p. 853. ed. Milan, 1741.
- [531.](#) Tiraboschi, *Stor. dell. Letterat. Ital.* Tom. III. Lib. II.
- [532.](#) *Ibid.*
- [533.](#) Petit-Radel, *Recherches sur les Biblioth. Anciennes*, p. 53.
- [534.](#) Eichhorn, *Litterargeschichte*, ed. Gotting. 1812.
- [535.](#) Lupi, *Epist.* 103. dated 855.
- [536.](#) *Ibid.* Ep. 91.
- [537.](#) *Epist.* 69.
- [538.](#) Ginguené, *Hist. Litt. d'Italie*, Tom. I. p. 63.
- [539.](#) Ziegel, *Hist. Rei Liter.* Tom. I. *Hist. Liter. de la France*, Tom. IV.
- [540.](#) Hallam's *State of Europe during the Middle Ages*, Vol. III. p. 332, 2d ed.
- [541.](#) *Annali d'Italia*, Ad. Ann. 899, &c.
- [542.](#) *Epist.* 130.
- [543.](#) *Epist.* 44.
- [544.](#) *Antiquitates Italiae Med. Aevi*, Tom. III. p. 818. The most valuable books of the Bobbian collection were transferred, in the seventeenth century, by the Cardinal Borromeo, to the Ambrosian library at Milan; and it is from the Bobbian Palimpsesti there discovered, that Mai has recently edited his fragments of orations of Cicero, and plays of Plautus.
- [545.](#) Mehus, *Vita Ambrosii Camaldulensis*, p. 157. ed. Florent. 1759.

- [546.](#) *Ibid.* p. 183.
- [547.](#) Petrarca. *Epist. ad M. Varronem.*
- [548.](#) Mill's *Travels of Theodore Ducas*, Vol. I. p. 28.
- [549.](#) *Vita Ambrosii Camaldulensis*, p. 290.
- [550.](#) *Ibid.* p. 291.
- [551.](#) *Ibid.* p. 335.
- [552.](#) Roscoe's *Life of Lorenzo de Medici*, c. 1.
- [553.](#) *Epist.* Lib. V.
- [554.](#) Morhoff, *Polyhistor.* Lib. I. c. 7. Lomeierus, *De Bibliothecis*, c. 9. § 2.
- [555.](#) Ap. Mehus, *Pref. ad Epist. Ambros. Camaldulensis*, p. 33. ed. Florent. 1759.
- [556.](#) *Ibid.* p. 31.
- [557.](#) *Ibid.* p. 50.
- [558.](#) *Ibid.* p. 44.
- [559.](#) *Ibid.* p. 31.
- [560.](#) Roscoe's *Life of Lorenzo de Medici*, c. 1.
- [561.](#) Mehus, *Pref.* p. 67.
- [562.](#) Avogradi, *De Magnificentiâ Cosmi Medices*, Lib. II.

“O mira in tectis bibliotheca tuis!
Nunc legis altisoni sparsim pia scripta Maronis,
Nunc ea quæ Cicero ——” &c.

- [563.](#) Roscoe, *Life of Lorenzo*, c. 7.
- [564.](#) *Polit. Epist.* Lib. IV. Ep. 2.
- [565.](#) *Travels of Theod. Ducas*, c. 1.
- [566.](#) Berrington, *Literary Hist. of the Middle Ages*, Book VI.
- [567.](#) *Polyhistor.* Lib. IV. c. 10.

- [568.](#) *De Luxurie Veterum Poet. Lat.*
- [569.](#) Eichhorn, *Litterargeschichte*, Tom. III. p. 569.
- [570.](#) Evelyn's *Memoirs and Corresp.* Vol. II. p. 173. Second ed.
- [571.](#) Morhoff, *Polyhistor*. Lib. IV. c. 11.
- [572.](#) Thuanus, *Hist.* Lib. LXXXIV.
- [573.](#) *Handbuch der Classisch. Litteratur*. T. III. p. 31.
- [574.](#) Osannus, *Analecta Critica*, c. 8.
- [575.](#) *Præf. ad Plautum*, ed. Lambini.
- [576.](#) *Epist. Famil.* Lib. V.
- [577.](#) Bandini, *Catalog. Cod. Lat. Bibliothecæ Mediceæ-Laurentianæ*, Tom. II. p. 243, &c.
- [578.](#) Mehus, *Pref. ad Epist. Ambros. Camaldul.* p. 41.
- [579.](#) Ibid.
- [580.](#) *Ambros. Camaldul. Epist.* Lib. VIII. Ep. 31.
- [581.](#) Harles, *Supplement. ad Not. Literat. Rom.* Tom. II. p. 483.
- [582.](#) Renouard, *Hist. de l'Imprim. des Aldes.* Tom. I. p. 162.
- [583.](#) Muretus, in a letter dated about this time, (1581,) and addressed to his friend Paullus Sacratius, mentions, in the strongest terms of regret and resentment, that a Plautus, on the correction and emendation of which he had bestowed the labour and study of twenty-five years of his life, had been stolen from him by some person whom he admitted to his library. (*Epist.* Lib. III. Ep. 28.)
- [584.](#) *Don Juan.*
- [585.](#) Maffei, *Traduttori Italiani*, p. 8. Ed. Venez. 1720.
- [586.](#) Ibid. 70.
- [587.](#) Paitoni, *Biblioteca degli autor. Lat. Volgarizzati*, Tom. III. p. 118.
- [588.](#) *Curiosities of Literature*, Vol. I. New series.
- [589.](#) *Journal Historique.* Amsterdam, 1719.

- [590.](#) *Bib. Lat. Lib. I. c. 1. § 8.*
- [591.](#) *Pref. to Johnson and Steevens' Shakspeare*, p. 96. 3d Ed.
- [592.](#) Vol. I. p. 370.
- [593.](#) Boswell's *Tour to the Hebrides*.
- [594.](#) Ginguené, *Hist. Lit. d'Italie*, Tom. II. p. 290.
- [595.](#) *Bib. Lat. Lib. I. c. 3. § 4.*
- [596.](#) *Polit. Epist.*
- [597.](#) Bandini, *Catalog. Bib. Med. Laurent.* p. 264. Hawkin's *Inquiry into Lat. Poet.* p. 200.
- [598.](#) Dibdin, *Bibliotheca Spenceriana*, Tom. II.
- [599.](#) *Minerva, o Giornal. de Letter. d'Ital.*
- [600.](#) Argelati, *Biblioteca de Volgarizzatori*, Tom. IV. p. 44.
- [601.](#) Renouard, *Hist. de l'Imprim. des Aldes*, Tom. I.
- [602.](#) *De la louange des bons facteurs en Rime.*
- [603.](#) Sulzer, *Theorie der Schönen Wissensch. Terenz.*
- [604.](#) Baillet, *Jugemens des Sçavans.*
- [605.](#) *Mem. de Trevoux*, 1721.
- [606.](#) Goujet, *Bib. Fran.* Tom. IV. p. 436.
- [607.](#) *De Vit. et Carm. Lucret. Præf.*
- [608.](#) See Good's *Lucretius*, *Pref.* p. 99. Eichstädt, *De Vit. &c. Lucret.* p. 65.
- [609.](#) Lib. XV. c. 2.
- [610.](#) Barbari, *Epist. I. ad Poggium.*
- [611.](#) Mehus, *Præf. ad Epist. Ambros. Camaldul.* p. 38.
- [612.](#) Renouard, *Annales de l'Imprimerie des Aldes*, Tom. I.
- [613.](#) *Biblioth. Franc.* Tom. V.
- [614.](#) Good's *Lucretius*, *Preface.*

- [615.](#) See Goujet, *Bibliothèque Française*, Tom. V. p. 18. Fabricius, however, says, that he does not know who was the author of this verse translation, and Mr Good, in the preface to his Lucretius, attributes it to one James Langlois, who, he says, translated not from the original Latin, but from Marolles' prose version.
- [616.](#) Evelyn's *Memoirs*, Tom. I.
- [617.](#) Evelyn's *Memoirs and Correspondence*, Vol. II. p. 102, 2d edit.
- [618.](#) Spence's *Anecdotes*, p. 106.
- [619.](#) *Literary Hours*, No. II.
- [620.](#) *Noct. Attic.* Lib. VII. c. 20.
- [621.](#) Maffei, *Verona Illustrata*, Part II. p. 4.
- [622.](#) Ibid. Part II. p. 6.
- [623.](#) *Sammtliche Schriften*, Tom. I.
- [624.](#) *Symbol. Epist.* XVI.
- [625.](#) Part. II. p. 5.
- [626.](#) P. 477.
- [627.](#) Brüggemann, *View of the English Editions, Translations, &c. of the Ancient Latin Authors*.
- [628.](#) Mehus, *Præf.* p. 50.
- [629.](#) *Epist. Ad Ambrosium Camald.* Ep. 39.
- [630.](#) Gesner, *Præf.*
- [631.](#) See Maffei, *Verona Illustrata*, Part II. Lib. III.
- [632.](#) *Præf. Pet. Victor. in explicationes, suar. Castig. in Cat. &c.*
- [633.](#) *Præf.* p. 20.
- [634.](#) *Epist. Ad Marcel. Cervinum.*
- [635.](#) *Introduct. in Notit. Litt. Rom.*
- [636.](#) *Epist.* 104.
- [637.](#) Warton, *Hist. of English Poetry*, Vol. I. Dissert. II.

- [638.](#) Fuhrmann, *Handbuch der Classisch. Lit.*
- [639.](#) Dibdin, *Introduction to the Classics*, Vol. II. p. 197.
- [640.](#) Fabricius, *Bib. Lat.* Lib. I. c. 9.
- [641.](#) *Ibid.*
- [642.](#) *Ibid.*
- [643.](#) Villaret, *Hist. de France*, T. XI. p. 121.
- [644.](#) Stuart's *Sallust*, Essay II.
- [645.](#) *Epist.* 37.
- [646.](#) *Epist.* 8.
- [647.](#) *Biblioteca degli Volgarizzatori*, Tom. I. p. 206.
- [648.](#) Villaret, *Hist. de France*, T. XI. p. 121.
- [649.](#) Plin. *Epist.* Lib. I. Ep. 20.
- [650.](#) *Epist. Famil.* Lib. IX. Ep. 12.
- [651.](#) *Epist.* 87.
- [652.](#) Tiraboschi, *Stor. dell Lett. Ital.* Tom. IV. Lib. III. c. 5. § 21.
Maffei, *Traduttori Ital.* p. 41.
- [653.](#) *Epist. Ad Vir. Illust.* ep. 2.
- [654.](#) Mehus, *Vit. Ambros. Camald.* p. 213.
- [655.](#) Ginguené, *Hist. Lit. d'Italie*, Tom. II. *Shepherd's Life of Poggio*.
Bandini, *Catal. Codic. Biblioth. Medic. Laurent.* Tom. II. p. 432.
- [656.](#) Paitoni, *Bibliotec. degli Autor. Volgarizzati*.
- [657.](#) *Epist.* 1.
- [658.](#) Hallam's *Europe during the Middle Ages*, Vol. III. p. 524. 3d ed.
- [659.](#) B. Flavii, *Ital. Illust.* p. 346. ap. Meiners, *Lebenschreibung Beruhmter manner*, Tom. I. p. 39. Ginguené, *Hist. Lit.* Tom. II.
Pet. Victor, in *Castigat. ad Cicer. post castig. in Paradox.*
- [660.](#) Lemprid. in *Alex. Sev.* c. 29. "Latina cùm legeret, non alia magis legebatur quàm de Officiis Ciceronis et De Republicâ."

- [661.](#) *Epist. Senil.* Lib. XV. Ep. 1.
- [662.](#) Clayton's *History of the House of Medici*, c. 3
- [663.](#) *Vit. Attic.* c. 16.
- [664.](#) *Epist.* 69.
- [665.](#) Petrarca. *Epist. ad Viros Illust.* Ep. 1.
- [666.](#) Mehus, *Vit. Ambros. Camald.* p. 214.
- [667.](#) Fabricius, *Bib. Lat.* Lib. I. c. 8.
- [668.](#) Pet. Vict. *Epist.*
- [669.](#) Lagomarsini, *ad Poggii Epist.* I. 189.
- [670.](#) *Epist. ad Vir. Illust.* Ep. I.
- [671.](#) Bandini, *Catalog. Bib. Laurent.* p. 474.
- [672.](#) Lib. VII.
- [673.](#) Fuhrmann, *Handbuch der Classisch. Lit.* T. IV. p. 208.
- [674.](#) *Epist.* Lib. II. Ep. 15.
- [675.](#) *Epist.* 69.
- [676.](#) Tiraboschi, *Stor. dell' Letterat. Ital.* T. VI. Part I. Lib. I.
- [677.](#) Beloe, *Anecdotes of Literature and Scarce Books*, Vol. VI. p. 140.
- [678.](#) *Introduct. in Notit. Literat. Roman.* p. 47.
- [679.](#) *Ibid.* p. 84.
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Transcriber's Note

The table of contents has been added in the electronic version.

The appendix is paginated separately. The page numbers of the appendix have been prefixed with "A-".

"Ibid." is sometimes printed in italics, sometimes not.

In the original, the Appendix was printed in a smaller font.

The book has many inconsistencies in spelling, capitalization or punctuation, especially in the quotations from foreign languages, where sometimes diacritical signs are missing or wrong. They were not corrected or modernized, except in the following places which can be regarded as printing errors.

[page 8](#), "Liv." changed to "Lib."

[page 16](#), "Appian" changed to "Oppian"

[page 22](#), "from" added before "the city"

[page 22](#), "questiones" changed to "quæstiones"

[page 23](#), "Cumae" changed to "Cumæ", "sylvae" to "sylvæ", "villae" to "villæ"

[page 28](#), "edile" changed to "ædile"

[page 32](#), "Edile" changed to "Ædile"

[page 40](#), "Theatreales" changed to "Theatrales"

[page 42](#), quote added following “vitâ.”
[page 57](#), period removed following “Taciti”
[page 68](#), “vented” changed to “invented”
[page 68](#), comma changed to period following “fables”
[page 71](#), “givi g” changed to “giving”
[page 71](#), “c.” added before “53”
[page 83](#), italics removed from second “Sat.”
[page 87](#), “Sullust’s” changed to “Sallust’s”
[page 91](#), “a” changed to “à”
[page 93](#), period added following “unsuccessfully”
[page 117](#), “appropriate” changed to “appropriate”
[page 128](#), “restrain” changed to “restrain”
[page 128](#), period removed following “Dio”
[page 129](#), “alnost” changed to “almost”
[page 133](#), period added following “patrician”
[page 139](#), “coepissent” changed to “cœpissent”
[page 177](#), period added following “court”
[page 178](#), “Phillippic” changed to “Philippic”
[page 188](#), “á” changed to “à”
[page 191](#), “Bnt” changed to “But”
[page 195](#), “occured” changed to “occurred”
[page 204](#), “Praef.” changed to “Præf.”
[page 210](#), “whe” changed to “who”
[page 211](#), comma added following “Scipio”
[page 218](#), “a” added before “philosopher”
[page 220](#), quote added following “abundo”
[page 233](#), “fron” changed to “from”
[page 237](#), “rerepresenting” changed to “representing”
[page 241](#), “Metullus” changed to “Metellus”
[page 246](#), “phiosopher” changed to “philosopher”
[page 253](#) and [A-61](#), “Natura” changed to “Naturâ”
[page 253](#), quote added following “scribere.”
[page 262](#), quote added following “father.”
[page 268](#), double “their” removed before “known characters”
[page 268](#), quote added following “wisdom.”
[page 272](#), “praebituram” changed to “præbituram”
[page 279](#), “Cœlius” changed to “Cælius” (twice)

[page 284](#), “betwen” changed to “between”
[page 285](#), “latinity” changed to “Latinity”
[page 285](#), “appellatæ” changed to “appellate”
[page A-3](#), italics removed from “Ep.”
[page A-3](#), period removed following “Ad”, “Schutz” changed to “Schütz”
[page A-5](#), period added following “Epist” and “Frat”
[page A-12](#), “Abbe” changed to “Abbé”
[page A-17](#), “Causaubon” changed to “Casaubon”
[page A-17](#), “seventh” changed to “seventeenth”
[page A-19](#), “Georenz” changed to “Goerenz”
[page A-19](#), period added following “MSS”
[page A-20](#), apostroph added following “Scriverius”
[page A-21](#), “Hundbuch” changed to “Handbuch”
[page A-28](#), comma added following “Ginguené”
[page A-29](#), “Schmeider” changed to “Schmieder”
[page A-30](#), “Varard” changed to “Verard”
[page A-31](#), comma added following “Goujet”
[page A-34](#), period added following “MSS”
[page A-44](#), “edite” changed to “edit”
[page A-49](#), “Sweyn” changed to “Sweynheim”
[page A-57](#), “whch” changed to “which”
[page A-59](#), “Jenae” changed to “Jenæ”
[page A-62](#), “Tirannio” changed to “Tyrannio”

Some variant spellings were not changed (e. g. “Ferrierres” and “Ferriers”, “truly” and “truely”).

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